OHIO RULES OF CIVIL PROCEDURE

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TITLE I. SCOPE OF RULES—ONE FORM OF ACTION.

RULE 1. Scope of Rules: Applicability; Construction; Exceptions.

(A) Applicability

These rules prescribe the procedure to be followed in all courts of this state in the exercise of civil jurisdiction at law or in equity, except as provided in Rule 1(C), Rule 73, and Rule 75.

(B) Construction

These rules shall be construed and applied to effect just results by eliminating delay, unnecessary expense and all other impediments to the expeditious administration of justice.

(C) Exceptions

These rules, to the extent that they would by their nature be clearly inapplicable, shall not apply to procedure (1) upon appeal to review any judgment, order or ruling, (2) in the appropriation of property, (3) in forcible entry and detainer, (4) in small claims matters under Chapter 1925 of the Revised Code, (5) in uniform reciprocal support actions, (6) in the commitment of the mentally ill, (7) in adoption proceedings under Chapter 3107 of the Revised Code, (8) in all other special statutory proceedings; provided, that where any statute provides for procedure by a general or specific reference to all the statutes governing procedure in civil actions such procedure shall be in accordance with these rules.

(D) Court orders regarding physical appearance

As used in these rules, any option to use live two-way video and audio technology shall not be construed to limit the power of a court to order that a party, attorney, or witness physically appear at a proceeding without the use of live two-way video and audio technology.

Effective Date: July 1, 1970
Amended: July 1, 1971; July 1, 1975; July 1, 2015; July 1, 2023

Staff Note (July 1, 2015 Amendment)

Division (C) is amended to specifically include, within the exceptions to the application of the Civil Rules, Revised Code Chapter 3107 adoption proceedings, to the extent that the rules would by their nature be clearly inapplicable to those proceedings.

RULE 1.1. Definitions.

As used in these rules:

(A) "Appear," "appearance," or "in person" mean the physical or remote presence of an individual.

(B) "Attendance" means the physical or remote presence of an individual.

(C) "Open court" includes a court proceeding open to the public in person or by remote access to the live proceeding.

(D) "Personally" means the physical or remote presence of an individual except as provided by Civ.R. 4.1 through 4.5 and Civ.R. 45.

(E) "Remote presence" means the presence of a person who is using live two-way video and audio technology.

Effective Date: July 1, 2023

RULE 2. One Form of Action.

There shall be only one form of action, and it shall be known as a civil action.

Effective Date: July 1, 1970

TITLE II. COMMENCEMENT OF ACTION AND VENUE; SERVICE OF PROCESS; SERVICE AND FILING OF PLEADINGS AND OTHER PAPERS SUBSEQUENT TO THE ORIGINAL COMPLAINT; TIME.

RULE 3. Commencement of Action; Venue.

(A) Commencement

A civil action is commenced by filing a complaint with the court, if service is obtained within one year from such filing upon a named defendant, or upon an incorrectly named defendant whose name is later corrected pursuant to Civ.R. 15(C), or upon a defendant identified by a fictitious name whose name is later corrected pursuant to Civ.R. 15(D).

(B) Limited appearance by attorney

An attorney's role may be limited in scope, as authorized by Prof.Cond.R. 1.2(c), if that scope is specifically described in a "Notice of Limited Appearance" stating that the limited appearance has been authorized by the party for whom the appearance is made, and filed and served in accordance with Civ.R. 5 prior to or at the time of any such appearance. The attorney's limited appearance terminates without the necessity of leave of court, upon the attorney filing a "Notice of Completion of Limited Appearance" filed and served upon all parties, including the party for whom the appearance was made, in accordance with Civ.R. 5. If there is no objection within ten days of service of this notice, then no entry by the court is necessary for the termination of the limited appearance to take effect.

(C) Venue: where proper

Any action may be venued, commenced, and decided in any court in any county. When applied to county and municipal courts, "county," as used in this rule, shall be construed, where appropriate, as the territorial limits of those courts. Proper venue lies in any one or more of the following counties:

(1) The county in which the defendant resides;

(2) The county in which the defendant has his or her principal place of business;

(3) A county in which the defendant conducted activity that gave rise to the claim for relief;

(4) A county in which a public officer maintains his or her principal office if suit is brought against the officer in the officer's official capacity;

(5) A county in which the property, or any part of the property, is situated if the subject of the action is real property or tangible personal property;

(6) The county in which all or part of the claim for relief arose; or, if the claim for relief arose upon a river, other watercourse, or a road, that is the boundary of the state, or of two or more counties, in any county bordering on the river, watercourse, or road, and opposite to the place where the claim for relief arose;

(7) In actions described in Civ.R. 4.3, in the county where plaintiff resides;

(8) In an action against an executor, administrator, guardian, or trustee, in the county in which the executor, administrator, guardian, or trustee was appointed;

(9) In actions for divorce, annulment, or legal separation, in the county in which the plaintiff is and has been a resident for at least ninety days immediately preceding the filing of the complaint;

(10) In actions for a civil protection order, in the county in which the petitioner currently or temporarily resides;

(11) In tort actions involving asbestos claims, silicosis claims, or mixed dust disease claims, only in the county in which all of the exposed plaintiffs reside, a county where all of the exposed plaintiffs were exposed to asbestos, silica, or mixed dust, or the county in which the defendant has his or her principal place of business.

(12) If there is no available forum in divisions (C)(1) to (C)(10) of this rule, in the county in which plaintiff resides, has his or her principal place of business, or regularly and systematically conducts business activity;

(13) If there is no available forum in divisions (C)(1) to (C)(11) of this rule:

(a) In a county in which defendant has property or debts owing to the defendant subject to attachment or garnishment;

(b) In a county in which defendant has appointed an agent to receive service of process or in which an agent has been appointed by operation of law.

(D) Change of venue

(1) When an action has been commenced in a county other than stated to be proper in division (C) of this rule, upon timely assertion of the defense of improper venue as provided in Civ.R. 12, the court shall transfer the action to a county stated to be proper in division (C) of this rule.

(2) When an action is transferred to a county which is proper, the court may assess costs, including reasonable attorney fees, to the time of transfer against the party who commenced the action in a county other than stated to be proper in division (C) of this rule.

(3) Before entering a default judgment in an action in which the defendant has not appeared, the court, if it finds that the action has been commenced in a county other than stated to be proper in division (C) of this rule, may transfer the action to a county that is proper. The clerk of the court to which the action is transferred shall notify the defendant of the transfer, stating in the notice that the defendant shall have twenty-eight days from the receipt of the notice to answer in the transferred action.

(4) Upon motion of any party or upon its own motion the court may transfer any action to an adjoining county within this state when it appears that a fair and impartial trial cannot be had in the county in which the suit is pending.

(E) Venue: no proper forum in Ohio

When a court, upon motion of any party or upon its own motion, determines: (1) that the county in which the action is brought is not a proper forum; (2) that there is no other proper forum for trial within this state; and (3) that there exists a proper forum for trial in another jurisdiction outside this state, the court shall stay the action upon condition that all defendants consent to the jurisdiction, waive venue, and agree that the date of commencement of the action in Ohio shall be the date of commencement for the application of the statute of limitations to the action in that forum in another jurisdiction which the court deems to be the proper forum. If all defendants agree to the conditions, the court shall not dismiss the action, but the action shall be stayed until the court receives notice by affidavit that plaintiff has recommenced the action in the out-of-state forum within sixty days after the effective date of the order staying the original action. If the plaintiff fails to recommence the action in the out-of-state forum within the sixty day period, the court shall dismiss the action without prejudice. If all defendants do not agree to or comply with the conditions, the court shall hear the action.

If the court determines that a proper forum does not exist in another jurisdiction, it shall hear the action.

(F) Venue: multiple defendants and multiple claims for relief

In any action, brought by one or more plaintiffs against one or more defendants involving one or more claims for relief, the forum shall be deemed a proper forum, and venue in the forum shall be proper, if the venue is proper as to any one party other than a nominal party, or as to any one claim for relief.

Neither the dismissal of any claim nor of any party except an indispensable party shall affect the jurisdiction of the court over the remaining parties.

(G) Venue: notice of pending litigation; transfer of judgments

(1) When an action affecting the title to or possession of real property or tangible personal property is commenced in a county other than the county in which all of the real property or tangible personal property is situated, the plaintiff shall cause a certified copy of the complaint to be filed with the clerk of the court of common pleas in each county or additional county in which the real property or tangible personal property affected by the action is situated. If the plaintiff fails to file a certified copy of the complaint, third persons will not be charged with notice of the pendency of the action.

To the extent authorized by the laws of the United States, division (G)(1) of this rule also applies to actions, other than proceedings in bankruptcy, affecting title to or possession of real property in this state commenced in a United States District Court whenever the real property is situated wholly or partly in a county other than the county in which the permanent records of the court are kept.

(2) After final judgment, or upon dismissal of the action, the clerk of the court that issued the judgment shall transmit a certified copy of the judgment or dismissal to the clerk of the court of common pleas in each county or additional county in which real or tangible personal property affected by the action is situated.

(3) When the clerk has transmitted a certified copy of the judgment to another county in accordance with division (G)(2) of this rule, and the judgment is later appealed, vacated, or modified, the appellant or the party at whose instance the judgment was vacated or modified must cause a certified copy of the notice of appeal or order of vacation or modification to be filed with the clerk of the court of common pleas of each county or additional county in which the real property or tangible personal property is situated. Unless a certified copy of the notice of appeal or order of vacation or modification is so filed, third persons will not be charged with notice of the appeal, vacation, or modification.

(4) The clerk of the court receiving a certified copy filed or transmitted in accordance with the provisions of division (G) of this rule shall number, index, docket, and file it in the records of the receiving court. The clerk shall index the first certified copy received in connection with a particular action in the indices to the records of actions commenced in the clerk's own court, but may number, docket, and file it in either the regular records of the court or in a separate set of records. When the clerk subsequently receives a certified copy in connection with that same action, the clerk need not index it, but shall docket and file it in the same set of records under the same case number previously assigned to the action.

(5) When an action affecting title to registered land is commenced in a county other than the county in which all of such land is situated, any certified copy required or permitted by this division (G) of this rule shall be filed with or transmitted to the

county recorder, rather than the clerk of the court of common pleas, of each county or additional county in which the land is situated.

(H) Venue: collateral attack; appeal

The provisions of this rule relate to venue and are not jurisdictional. No order, judgment, or decree shall be void or subject to collateral attack solely on the ground that there was improper venue; however, nothing here shall affect the right to appeal an error of court concerning venue.

(I) Definitions

As used in division (C)(11) of this rule:

(1) "Asbestos claim" has the same meaning as in section 2307.91 of the Revised Code;

(2) "Silicosis claim" and "mixed dust disease claim" have the same meaning as in section 2307.84 of the Revised Code;

(3) In reference to an asbestos claim, "tort action" has the same meaning as in section 2307.91 of the Revised Code;

(4) In reference to a silicosis claim or a mixed dust disease claim, "tort action" has the same meaning as in section 2307.84 of the Revised Code.

Effective Date: July 1, 1970
Amended: July 1, 1971; July 1, 1986; July 1, 1991; July 1, 1998; July 1, 2005; July 1, 2018

Staff Note (July 1, 1998 Amendment)

Rule 3(A) Commencement

The style used for rule references was changed. There was no substantive amendment to this division.

Rule 3(B) Venue: where proper

The 1998 amendment added a new division (10), and renumbered existing divisions (10) and (11) to (11) and (12), respectively. New division (10) clarifies the appropriate venue for an action seeking the entry of a civil protection order in domestic or family violence cases. The Supreme Court's Domestic Violence Task Force recommended this change in order to clarify Ohio law on this matter. Report of the Supreme Court of Ohio Domestic Violence Task Force: Increasing Safety for Victims, Increasing Accountability of Offenders 16 (October 18, 1996). The amendment uses criteria similar to other venue provisions. For example, the concept of residence is used in other divisions of Civ.R. 3(B), and the concept of a current or temporary residence is similar to the reference to plaintiff's residence in Civ.R. 3(B)(11) (renumbered from Civ.R. 3(B)(10)). See, e.g., *State, ex rel. Saunders v. Court of Common Pleas of Allen Cty*. (1987), 34 Ohio St. 3d 15, 17, 516 N.E. 2d 232 ("the term, 'resides,' as used in [prior] Civ.R. 3(B)(10) ought to be 'liberally construed and not confused with [the] requirements for domicile.'"(quoting McCormac, Ohio Civil Rules Practice). The respondent remains free to challenge venue under Civ.R. 3(D).

Nonsubstantive grammatical revisions were also made to this division.

Rule 3(C) Change of venue

The style used for rule references was changed. There was no substantive amendment to this division.

Rule 3(F) Venue: notice of pending litigation; transfer of judgments

The style used for rule references was changed and the division was made gender-neutral. There was no substantive amendment to this division.

Staff Note (July 1, 2005 Amendment)

Civ.R. 3 is amended in response to requests from the General Assembly contained in Section 3 of Am. Sub. H.B. 342 of the 125th General Assembly, effective September 1, 2004, and Section 4 of Am. Sub. H.B. 292 of the 125th General Assembly, effective September 2, 2004. These acts contain provisions governing tort claims that allege exposure and injury by persons exposed to asbestos, silica, or mixed dust. Each act includes a request that the Supreme Court amend the Rules of Civil Procedure "to specify procedures for venue and consolidation" of asbestosis, silicosis, and mixed dust disease claims.

Rule 3(B) Venue: where proper

Civ.R. 3(B) is amended to include an exclusive venue provision that applies to the filing of actions involving asbestos, silicosis, or mixed dust disease claims. Division (B)(11) states that a civil action alleging one or more of these claims may be filed only in either the county in which all exposed plaintiffs reside, a county where all exposed plaintiffs were exposed to asbestos, silica, or mixed dust occurred, or the county in which the defendant has his or her principal place of business.

Existing divisions (B)(11) and (12) have been renumbered to reflect the addition of new division (B)(11).

Rule 3(H) Definitions

Division (H) is added to reference the statutory definitions of "asbestos claim," "silicosis claim," "mixed dust disease claim," and "tort action" for purposes of Civ.R. 3(B)(11).

Staff Note (July 1, 2018 Amendment)

New Division (B) Limited appearance by attorney

This and other July 1, 2018 amendments to the Ohio Rules of Civil Procedure encourage attorneys to assist pro se parties on a limited basis without undertaking the full representation of the client on all issues related to the legal matter for which the attorney is engaged. By these amendments, the Supreme Court seeks to enlarge access to justice in Ohio's courts as recommended by a 2006 Report of the Court's Task Force on Pro Se & Indigent Litigants and by a 2015 Report of the Court's Task Force on Access to Justice.

New division (B) permits attorneys to enter a limited appearance on behalf of an otherwise unrepresented litigant. The effect of the limited appearance is to permit an attorney to represent a client on one or more matters in a lawsuit but not on all matters. While normally leave of court is required if an attorney seeks to withdraw from representation, under this provision, leave of court is not required for withdrawal from the case at the conclusion of a properly noticed limited appearance, provided the attorney files and serves the proper Notice of Completion of Limited Appearance in accordance with Civ.R. 5.

The benefits of division (B) are obtained only by filing a notice of limited appearance identified as such. The notice of limited appearance must clearly describe the scope of the limited representation and state that the limitation of appearance has been authorized by the party for whom the appearance is made. It is intended that any doubt about the scope of the limited representation be resolved in a manner that promotes the interests of justice and those of the client and opposing party.

RULE 4. Process: Summons.

(A) Summons: issuance

Upon the filing of the complaint the clerk shall forthwith issue a summons for service upon each defendant listed in the caption. Upon request of the plaintiff separate or additional summons shall issue at any time against any defendant.

(B) Summons: form; copy of complaint

The summons shall be signed by the clerk, contain the name and address of the court and the names and addresses of the parties, be directed to the defendant, state the name and address of the plaintiff's attorney, if any, otherwise the plaintiff's address, and the times within which these rules or any statutory provision require the defendant to appear and defend, and shall notify the defendant that in case of failure to do so, judgment by default will be rendered against the defendant for the relief demanded in the complaint. Where there are multiple plaintiffs or multiple defendants, or both, the summons may contain, in lieu of the names and addresses of all parties, the name of the first party on each side and the name and address of the party to be served.

A copy of the complaint shall be attached to each summons. The plaintiff shall furnish the clerk with sufficient copies.

(C) Summons: plaintiff and defendant defined

For the purpose of issuance and service of summons "plaintiff" shall include any party seeking the issuance and service of summons, and "defendant" shall include any party upon whom service of summons is sought.

(D) Waiver of service of summons

(1) Authority to waive service of summons, generally

In any type of action, service of summons may be waived in writing by any person entitled thereto under Civ.R. 4.2 who is at least eighteen years of age and not under disability, or by the party’s attorney as permitted under division (D) (2) of this rule.

(2) Waiver by attorney on behalf of a party

A waiver signed by a party’s attorney is presumed to be authorized.

(3) Waiver by individual on own behalf

A waiver signed by an individual on that individual’s own behalf is valid only if the waiver sets forth a mailing address or e-mail address for that individual, which shall be deemed a proper address for service under Civ.R.5.

(E) Summons: time limit for service

If a service of the summons and complaint is not made upon a defendant within six months after the filing of the complaint and the party on whose behalf such service was required cannot show good cause why such service was not made within that period, the action shall be dismissed as to that defendant without prejudice upon the court's own initiative with notice to such party or upon motion. This division shall not apply to out-of-state service pursuant to Rule 4.3 or to service in a foreign country pursuant to Rule 4.5.

(F) Summons: revivor of dormant judgment

Upon the filing of a motion to revive a dormant judgment the clerk shall forthwith issue a summons for service upon each judgment debtor. The summons, with a copy of the motion attached, shall be in the same form and served in the same manner as provided in these rules for service of summons with complaint attached, shall command the judgment debtor to serve and file a response to the motion within the same time as provided by these rules for service and filing of an answer to a complaint, and shall notify the judgment debtor that in case of failure to respond the judgment will be revived.

Effective Date: July 1, 1970
Amended: July 1, 1971; July 1, 1973; July 1, 1975; July 1, 1984; July 1, 2008; July 1, 2020; July 1, 2024.

Staff Note (July 1, 2008 Amendment)

The adoption of the Ohio Rules of Civil Procedure in 1970 left unclear the procedure and manner of service for a motion to revive a dormant judgment, formerly governed by R.C. 2325.15 and R.C. 2325.16 which referred to statutes superseded by the Rules. Division (F) of Rule 4 has been adopted to make clear that R.C. 2325.15 and R.C. 2325.16 are superseded by this new Rule. It requires, consistent with the practice under the prior statutes, that a motion to revive a dormant judgment be served upon the judgment debtor in the same manner as service of summons with complaint attached, affording the debtor an opportunity to show cause against the revivor.

Staff Note (July 1, 2020 Amendment)

Civ.R. 4(D) is amended to include a reference to the specific provisions for waiver of service of summons provided for in Civ.R. 4.7.

Staff Note (July 1, 2024 Amendment)

Civil Rule 4(D) is amended in three respects. First, Civ.R. 4(D) and 4.7(B) are amended to clarify that service of summons may be waived in any case. No substantive change is intended in this respect. Second, the rule is amended such that a waiver signed by a party's attorney is presumed to be authorized. This amendment promotes the reliability of a waiver signed by an attorney on behalf of a client and minimizes the risk of a defendant, late in the course of an action, asserting that the attorney lacked authority to waive service of summons on behalf of the defendant. Third, the rule is amended such that a waiver signed by an individual on the individual's own behalf is valid only if the waiver sets forth a mailing or e-mail address for that individual, which address is then deemed proper for service of subsequent papers. This amendment is prompted by instances, especially in juvenile court and domestic relations court, of unrepresented parties waiving service of summons without providing the court and the opposing parties an address for service of subsequent papers

RULE 4.1. Process: Methods of Service.

All methods of service within this state, except service by publication as provided in Civ.R. 4.4(A), are described in this rule. Methods of out-of-state service and for service in a foreign country are described in Civ.R. 4.3 and 4.5. Provisions for waiver of service are described in Civ.R. 4.7.

(A) Service by clerk

(1) Methods of service

(a) Service by United States certified or express mail

Evidenced by return receipt signed by any person accepting delivery, service of any process accepting delivery shall be by United States certified or express mail unless otherwise permitted by these rules. The clerk shall deliver a copy of the process and complaint or other document to be served to the United States Postal Service for mailing at the address set forth in the caption or at the address set forth in written instructions furnished to the clerk as certified or express mail return receipt requested, with instructions to the delivering postal employee to show to whom delivered, date of delivery, and address where delivered.

(b) Service by commercial carrier service

Unless the serving party furnishes written instructions to the clerk that service be made pursuant to Civ.R. 4.1(A)(1)(a), the clerk may make service of any process by a commercial carrier service utilizing any form of delivery requiring a signed receipt. The clerk shall deliver a copy of the process and complaint or other document to be served to a commercial carrier service for delivery at the address set forth in the caption or at the address set forth in written instructions furnished to the clerk, with instructions to the carrier to return a signed receipt showing to whom delivered, date of delivery, and address where delivered.

(2) Docket entries; return

The clerk shall forthwith enter on the appearance docket the fact of delivery to the United States Postal Service for mailing or the fact of delivery to a specified commercial carrier service for delivery, and make a similar entry when the return receipt is received. If the return shows failure of delivery, the clerk shall forthwith notify the attorney of record or, if there is no attorney of record, the party at whose instance process was issued and enter the fact and method of notification on the appearance docket. The clerk shall file the return receipt or returned envelope in the records of the action.

(3) Costs

All postage and commercial carrier service fees shall be charged to costs. If the parties to be served are numerous and the clerk determines there is insufficient security for costs, the clerk may require the party requesting service to advance an amount estimated by the clerk to be sufficient to pay the costs of delivery.

(B) Personal service

When the plaintiff files a written request with the clerk for personal service, service of process shall be made by that method.

(1) Civil process server; general

When process issued from the Supreme Court, a court of appeals, a court of common pleas, or a county court is to be served personally under this division, the clerk of the court shall deliver the process and sufficient copies of the process and complaint, or other document to be served, to the sheriff of the county in which the party to be served resides or may be found. When process issues from the municipal court, delivery shall be to the bailiff of the court for service on all defendants who reside or may be found within the county or counties in which that court has territorial jurisdiction and to the sheriff of any other county in this state for service upon a defendant who resides in or may be found in that other county. In the alternative, process issuing from any of these courts may be delivered by the clerk to a person designated by court order to serve civil process under division (E) of this rule.

(2) Civil process server; procedure

(a) The person serving process shall locate the person to be served and shall tender a copy of the process and accompanying documents to the person to be served. When the copy of the process has been served, the person serving process shall endorse that fact on the process and return it to the clerk, who shall make the appropriate entry on the appearance docket.

(b) When the person serving process is unable to serve a copy of the process within twenty-eight days, the person shall endorse that fact and the reasons therefor on the process and return the process and copies to the clerk who shall make the appropriate entry on the appearance docket. In the event of failure of service, the clerk shall follow the notification procedure set forth in division (A)(2) of this rule. Failure to make service within the twenty-eight-day period and

failure to make proof of service do not affect the validity of the service.

(C) Residence service

When the plaintiff files a written request with the clerk for residence service, service of process shall be made by that method.

(1) Civil process server; general

When process is to be served under this division, deliver the process and sufficient copies of the process and complaint, or other document to be served, to the sheriff of the county in which the party to be served resides or may be found. When process issues from the municipal court, delivery shall be to the bailiff of the court for service on all defendants who reside or may be found within the county or counties in which that court has territorial jurisdiction and to the sheriff of any other county in this state for service upon a defendant who resides in or may be found in that county. In the alternative, process may be delivered by the clerk to a person designated by court order to serve civil process under division (E) of this rule.

(2) Civil process server; procedure

(a) The person serving process shall effect service by leaving a copy of the process and the complaint, or other document to be served, at the usual place of residence of the person to be served with some person of suitable age and discretion then residing therein. When the copy of the process has been served, the person serving process shall endorse that fact on the process and return it to the clerk, who shall make the appropriate entry on the appearance docket.

(b) When the person serving process is unable to serve a copy of the process within twenty-eight days, the person shall endorse that fact and the reasons therefor on the process, and return the process and copies to the clerk, who shall make the appropriate entry on the appearance docket. In the event of failure of service, the clerk shall follow the notification procedure set forth in division (A)(2) of this rule. Failure to make service within the twenty-eight-day period and failure to make proof of service do not affect the validity of service.

(D) Civil process server; applicant requirements

To qualify as a civil process server for personal or residence service under divisions (B) or (C) of this rule, an applicant shall certify the applicant satisfies each of the following requirements:

(1) Not less than eighteen years of age;

(2) Not a party to the proceeding, related to a party to the proceeding, or having a financial interest in the outcome of the proceeding;

(3) A United States citizen or a legal resident of the United States;

(4) Hold a valid government-issued identification card, passport, or driver's license;

(5) Not convicted in the last ten years of any felony, offense of violence, or offense involving dishonesty or false statement, and not currently under community control sanctions, probation, post-release control, or parole;

(6) Not currently a respondent under any civil protection order;

(7) Familiar with the required procedure for service of process;

(8) Will conduct themself in a professional manner.

(E) Order for process server

Upon application and certification by an applicant under oath or affirmation that the applicant satisfies the requirements of division (D) of this rule, the court may designate that person by court order to make personal or residence service of process under divisions (B) or (C) of this rule for a period up to one year. The order shall provide that if the appointed person fails to satisfy the requirements set forth under division (D) of this rule during the period of appointment, the authority to serve process under the order shall cease. Continued appointment beyond one year shall require reapplication as set forth in this rule.

Effective Date: July 1, 1970
Amended: July 1, 1971; July 1, 1980; July 1, 1997; July 1, 2012; July 1, 2016; July 1, 2020; July 1, 2023; July 1, 2024

Staff Note (July 1, 1997 Amendment)

Rule 4.1 Process: methods of service

Prior to the 1997 amendment, service of process under this rule was permitted only by certified mail. It appears that service of process by express mail, i.e. as that sort of mail is delivered by the United States Postal Service, can always be obtained return receipt requested, and thus could accomplish the purpose of notification as well as certified mail. The amendment provides for this additional option for service.

Other amendments to this rule are nonsubstantive grammatical or stylistic changes, including lettering of the divisions (A-C) in place of the previous numbering (1-3).

Staff Note (July 1, 2012 Amendment)

Rule 4.1(A) is subdivided and amended to permit the clerk to make service of process using a commercial carrier service to make delivery by any method requiring a signed receipt. A "signed receipt" includes the return and filing of an electronic image of the signature. The amendment also removes the "by mail" limitation to the clerk's method of notifying plaintiff or plaintiff's attorney of a failure of delivery.

Divisions (B) and (C) are amended to make clear that the methods of service of process permitted to be made by a person designated by the court are limited to personal service and residence service.

Rule 4.1(C), which describes residence service, is also amended to track and incorporate where applicable the language of Civ.R. 4.1(B) which describes personal service, clarifying which portions of the two methods are the same and which portions are different.

Staff Note (July 1, 2016 Amendment)

Division 4.1(A)(1)(b) of this rule was adopted in 2012 to provide the clerk with an option to make service of process by a commercial carrier service as an alternative to service by United States certified or express mail. Under certain circumstances, the serving party may prefer that service be made by U.S. mail. Therefore, the provisions of Civ.R. 4.1(A)(1)(b) are amended to permit the serving party to furnish written instructions to the clerk that service be made by United States certified or express mail pursuant to Civ.R. 4.1(A)(1)(a), in which case the commercial carrier option is not available to the clerk for the initial attempt to make service of process.

Staff Note (July 1, 2020 Amendment)

Civ.R. 4.1 is amended to include a reference to the specific provisions for waiver of service of summons provided for in Civ.R. 4.7.

Staff Note (July 1, 2023 Amendment)

Civ.R. 4.1(D) adds minimum guidelines for the appointment of a special process server to promote uniformity and public safety across the state. For appointment orders in place on the effective date of this amendment, courts shall ensure that the appointed server satisfies the new criteria for appointment before or upon the renewal of that order.

RULE 4.2. Process: Who May be Served.

Service of process pursuant to Civ.R. 4 through Civ.R. 4.6, except service by publication as provided in Civ.R. 4.4(A), shall be made as follows:

(A) Upon an individual, other than a person under sixteen years of age or an incompetent person, by serving the individual;

(B) Upon a person under sixteen years of age by serving either the person's guardian or any one of the following persons with whom the person to be served lives or resides: a parent or the individual having the care of the person; or by serving the person if the person neither has a guardian nor lives or resides with a parent or a person having his or her care;

(C) Upon an incompetent person by serving either the incompetent's guardian or the person designated in division (E) of this rule, but if no guardian has been appointed and the incompetent is not under confinement or commitment, by serving the incompetent;

(D) Upon an individual confined to a penal institution of this state or of a subdivision of this state by serving the individual, except that when the individual to be served is a person under sixteen years of age, the provisions of division (B) of this rule shall be applicable;

(E) Upon an incompetent person who is confined in any institution for the mentally ill or mentally deficient or committed by order of court to the custody of some other institution or person by serving the superintendent or similar official of the institution to which the incompetent is confined or committed or the person to whose custody the incompetent is committed;

(F) Upon a corporation either domestic or foreign: by serving the agent authorized by appointment or by law to receive service of process; or by serving the corporation at any of its usual places of business by a method authorized under Civ.R. 4.1(A)(1); or by serving an officer or a managing or general agent of the corporation;

(G) Upon a limited liability company by serving the agent authorized by appointment or by law to receive service of process; or by serving the limited liability company at any of its usual places of business by a method authorized under Civ.R. 4.1(A)(1); or by serving a manager or member;

(H) Upon a partnership, a limited partnership, or a limited partnership association by serving the entity at any of its usual places of business by a method authorized under Civ.R. 4.1(A)(1) or by serving a partner, limited partner, manager, or member;

(I) Upon an unincorporated association by serving it in its entity name at any of its usual places of business by a method authorized under Civ.R. 4.1(A)(1); or by serving an officer of the unincorporated association;

(J) Upon a professional association by serving the association in its corporate name at the place where the corporate offices are maintained by a method authorized under Civ.R. 4.1(A)(1); or by serving a shareholder;

(K) Upon this state or any one of its departments, offices and institutions as defined in division (C) of section 121.01 of the Revised Code, by serving the officer responsible for the administration of the department, office or institution or by serving the attorney general of this state;

(L) Upon a county or upon any of its offices, agencies, districts, departments, institutions or administrative units, by serving the officer responsible for the administration of the office, agency, district, department, institution or unit or by serving the prosecuting attorney of the county;

(M) Upon a township by serving one or more of the township trustees or the township clerk or by serving the prosecuting attorney of the county in which the township is located, unless the township is organized under Chapter 504. of the Revised Code, in which case service may be made upon the township law director;

(N) Upon a municipal corporation or upon any of its offices, departments, agencies, authorities, institutions or administrative units by serving the officer responsible for the administration of the office, department, agency, authority, institution or unit or by serving the city solicitor or comparable legal officer;

(O) Upon any governmental entity not mentioned above by serving the person, officer, group or body responsible for the administration of that entity or by serving the appropriate legal officer, if any, representing the entity. Service upon any person who is a member of the "group" or "body" responsible for the administration of the entity shall be sufficient.

Service of process pursuant to Civ.R. 4 through 4.6, except service by publication as provided in Civ.R. 4.4(A), may be made upon an address confidentiality "program participant," as defined by R.C. 111.41(G), by serving the Secretary of State.

Effective Date: July 1, 1970
Amended: July 1, 1971; July 1, 1996; July 1, 1997; July 1, 2009; July 1, 2012; July 1, 2016; July 1, 2017

Staff Note (July 1, 1996 Amendment)

Rule 4.2 Process: who may be served

In 1991, the General Assembly enacted Chapter 504 of the Ohio Revised Code to give townships an option to organize the "limited self-government form" of government. Townships electing this form of government are required by law to appoint a law director who "shall be the legal advisor to the board of township trustees ... and all other township officers." R.C. 504.15. Upon attaining Chapter 504 status, then, the prosecuting attorney of the county in which the township is located no longer serves as the "legal advisor" of the township. The amendment recognizes this statutory development and should facilitate service of process in actions against Chapter 504 townships.

Staff Note (July 1, 1997 Amendment)

Rule 4.2 Process: who may be served

Prior to the 1997 amendment, service of process under this rule was permitted only by certified mail. It appears that service of process by express mail, i.e. as that sort of mail is delivered by the United States Postal Service, can always be obtained return receipt requested, and thus could accomplish the purpose of notification equally well as certified mail. Therefore, the amendment provides for this additional option for service.

Other amendments to this rule are nonsubstantive grammatical or stylistic changes, including lettering of the divisions (A-N) in place of the previous numbering (1-14).

Staff Note (July 1, 2009 Amendment)

Division (G) is inserted into Civ.R. 4.2 to provide for service on a limited liability company in a manner similar to the provisions of Civ.R. 4.2(F) for service upon a corporation, and the remaining divisions of the rule are re-lettered.

Staff Note (July 1, 2012 Amendment)

Divisions (F) through (J) are amended to permit service of process to be made at a place of business not only by United States certified or express mail as previously authorized, but also by a commercial carrier service under the 2012 amendments to Civ.R. 4.1(A)(1).

Staff Note (July 1, 2016 Amendment)

Division 4.2(B) of the rule is amended to substitute "a parent" for "father" and "mother" as a person upon whom service of process may be made to effectuate service of process upon a person under sixteen years of age. The amendment is made in accordance with the July 26, 2015 Administrative Action of the Ohio Supreme Court, *06/26/2015 Administrative Actions*, 2015-Ohio-2568, which ordered that the Ohio Rules of Civil Procedure be construed and amended as gender neutral where appropriate to comply with the decision of U.S. Supreme Court in *Obergefell v. Hodges*, 576 U.S. ___ , 135 S.Ct. 2584 (2015).

Staff Note (July 1, 2017 Amendment)

At the request made by the Legislature in Section 3 of 2016 Sub.H.B. No. 359, the 2017 amendment adds a final paragraph to the rule to allow service of process to be made upon an address confidentiality "program participant," as defined by R.C. 111.41(G), by serving the Secretary of State as the program participant's agent. "Program participants" include victims of domestic violence and other persons who would be at risk of harm should their addresses be disclosed.

RULE 4.3. Process: Out-of-State Service.

(A) When service permitted

Service of process may be made outside of this state, as provided in this rule, in any action in this state, upon a person who, at the time of service of process, is a nonresident of this state or is a resident of this state who is absent from this state. "Person" includes an individual, an individual's executor, administrator, or other personal representative, or a corporation, partnership, association, or any other legal or commercial entity, who, acting directly or by an agent, has caused an event to occur out of which the claim that is the subject of the complaint arose, from the person's:

(1) Transacting any business in this state;

(2) Contracting to supply services or goods in this state;

(3) Causing tortious injury by an act or omission in this state, including, but not limited to, actions arising out of the ownership, operation, or use of a motor vehicle or aircraft in this state;

(4) Causing tortious injury in this state by an act or omission outside this state if the person regularly does or solicits business, engages in any other persistent course of conduct, or derives substantial revenue from goods used or consumed or services rendered in this state;

(5) Causing injury in this state to any person by breach of warranty expressly or impliedly made in the sale of goods outside this state when the person to be served might reasonably have expected the person who was injured to use, consume, or be affected by the goods in this state, provided that the person to be served also regularly does or solicits business, engages in any other persistent course of conduct, or derives substantial revenue from goods used or consumed or services rendered in this state;

(6) Having an interest in, using, or possessing real property in this state;

(7) Contracting to insure any person, property, or risk located within this state at the time of contracting;

(8) Living in the marital relationship within this state notwithstanding subsequent departure from this state, as to all obligations arising for spousal support, custody, child support, or property settlement, if the other party to the marital relationship continues to reside in this state;

(9) Causing tortious injury in this state to any person by an act outside this state committed with the purpose of injuring persons, when the person to be

served might reasonably have expected that some person would be injured by the act in this state;

(10) Causing tortious injury to any person by a criminal act, any element of which takes place in this state, that the person to be served commits or in the commission of which the person to be served is guilty of complicity.

(B) Methods of service

(1) Service by clerk

The clerk may make service of process or other documents to be served outside the state in the same manner as provided in Civ.R. 4.1(A)(1) through Civ.R. 4.1(A)(3).

(2) Personal service

When ordered by the court, a "person" as defined in division (A) of this rule may be personally served with a copy of the process and complaint or other document to be served. Service under this division may be made by any person not less than eighteen years of age who is not a party and who has been designated by order of the court to make personal service of process. On request, the clerk shall deliver the summons to the plaintiff for transmission to the person who will make the service. The person serving process shall locate the person to be served and shall tender a copy of the process and accompanying documents to the person to be served.

Proof of service may be made as prescribed by Civ.R. 4.1 (B) or by order of the court. Failure to make service within the twenty-eight-day period and failure to make proof of service do not affect the validity of service.

Effective Date: July 1, 1970
Amended: July 1, 1971; July 1, 1980; July 1, 1988; July 1, 1991; July 1, 1997; July 1, 2012; July 1, 2014

Staff Note (July 1, 1997 Amendment)

Rule 4.3 Process: out-of-state service

Prior to the 1997 amendment, service of process under this rule was permitted only by certified mail. It appears that service of process by express mail, i.e. as that sort of mail is delivered by the United States Postal Service, can always be obtained return receipt requested, and thus could accomplish the purpose of notification equally well as certified mail. Therefore, the amendment provides for this additional option for service.

Other amendments to this rule are nonsubstantive grammatical or stylistic changes.

Staff Note (July 1, 2012 Amendment)

Rule 4.3(B) is amended to incorporate, rather than restate, the provisions of amended Civ.R. 4.1(A)(1) through Civ.R. 4.1(A)(3) for service by the clerk. The substantive changes (1) permit the clerk to make service of process outside the state using a commercial carrier service to make delivery by any method requiring a signed receipt and (2) make clear that the method of service of process permitted to be made by a person designated by the court is limited to personal service.

Also eliminated is a prior provision permitting service outside the state to be completed by the filing of an affidavit when service by certified or express mail is returned showing failure of delivery. Rules 4.6(C) and (D) address returns of service showing "refused" and "unclaimed" when service is attempted by U.S. mail under Civ.R. 4.1(A)(1)(a), and those provisions apply to service attempted outside the state by that method.

Staff Note (July 1, 2014 Amendments)

Rule 4.3(B)(2) is amended to be consistent with the provisions of Civ.R. 4.1(B) relating to personal service within the state which specify, "The person serving process shall locate the person to be served and shall tender a copy of the process and accompanying documents to the person to be served" and "Failure to make service within the twenty-eight-day period and failure to make proof of service do not affect the validity of service."

RULE 4.4. Process: Service by Publication.

(A) Residence unknown

(1) Service by publication in a newspaper

Except in an action or proceeding governed by division (A)(2) of this rule, when service of process is required upon a party whose residence is unknown, service shall be made by publication in actions where such service is authorized by law. Before service by publication can be made, an affidavit of the party requesting service or that party's counsel shall be filed with the court. The affidavit shall aver that service of summons cannot be made because the residence of the party to be served is unknown to the affiant, all of the efforts made on behalf of the party to ascertain the residence of the party to be served, and that the residence of the party to be served cannot be ascertained with reasonable diligence.

Upon the filing of the affidavit, the clerk shall cause service of notice to be made by publication in a newspaper of general circulation in the county in which the action or proceeding is filed. If no newspaper is published in that county, then publication shall be in a newspaper published in an adjoining county. The publication shall contain the name and address of the court, the case number, the name of the first party on each side, and the name and last known address, if any, of the person or persons whose residence is unknown. The publication also shall contain a summary statement of the object of the pleading or other document seeking relief against a party whose residence is unknown, and a summary statement of the demand for relief, and shall notify the party to be served that such party is required to answer or respond either within twenty-eight days after the publication or at such other time after the publication that is set as the time to appear or within which to respond after service of such pleading or other document. The publication shall be published at least once a week for six successive weeks unless publication for a lesser number of weeks is specifically provided by law. Service of process shall be deemed complete at the date of the last publication.

After the last publication, the publisher or its agent shall file with the court an affidavit showing the fact of publication together with a copy of the notice of publication. The affidavit and copy of the notice shall constitute proof of service of process.

(2) Service by publication by posting and mail

(a) Actions and Proceedings other than Civil Protection Order Proceedings

In divorce, annulment, or legal separation actions, and in actions pertaining to the care, custody, and control of children whose parents are not married, and in all post-decree proceedings:

(i) If the residence of the party upon whom service is sought is unknown; and,

(ii) if the matter is not governed by Civ.R. 65.1; and,

(iii) If the party requesting service upon another party is proceeding with a poverty affidavit;

service by publication shall be made by posting and mail. Before service by posting and mail can be made under this division (A)(2)(a), an affidavit of the party requesting service or that party's counsel shall be filed with the court. The affidavit shall contain the same averments required by division (A)(1) of this rule and, in addition, shall set forth the defendant's last known address.

Upon the filing of the affidavit, the clerk shall cause service of notice to be made by posting in a conspicuous place in the courthouse or courthouses in which the general and domestic relations divisions of the court of common pleas for the county are located and in two additional public places in the county that have been designated by local rule for the posting of notices pursuant to this rule. Alternatively, the postings, except for protection orders issued pursuant to Civ.R. 65.1, under this division (A)(2)(a), may be made on the website of the clerk of courts, if available, in a section designated for such purpose. The notice shall contain the same information required by division (A)(1) of this rule to be contained in a newspaper publication. The notice shall be posted for six successive weeks.

(b) Civil protection order proceedings

In civil protection order proceedings where the party's residence upon whom service is sought is unknown, service may be made by posting and mail without the necessity of a poverty affidavit. Before service by posting and mail can be made under this division (A)(2)(b), an affidavit of the party requesting service or that party's counsel shall be filed with the court. The affidavit shall contain the same averments required by division (A)(1) of this rule and, in addition, shall set forth the last known address of the party to be served.

Upon the filing of the affidavit, the clerk shall cause service of notice to be made by posting in a conspicuous place in the courthouse or courthouses within the county where Civ.R. 65.1 civil protection order proceedings may be filed and in two additional public places in the county that have been designated by local rule for the posting of notices pursuant to this rule. The postings under this division (A)(2)(b) shall not be made on the website of the clerk of courts. The notice shall contain the same information required

by division (A)(1) of this rule to be contained in a newspaper publication. The notice shall be posted for six successive weeks.

(c) Additional requirement for mailing

When service by publication is sought by posting and mail under either division (A)(2)(a) or division (A)(2)(b) of this rule, the clerk shall also cause the documents for service to be mailed by United States ordinary mail, address correction requested, to the last known address of the party to be served. The clerk shall obtain a certificate of mailing from the United States Postal Service. If the clerk is notified of a corrected or forwarding address of the party to be served within the six-week period that notice is posted pursuant to division (A)(2)(a) or division (A)(2)(b) of this rule, the clerk shall cause the documents for service to be mailed to the corrected or forwarding address. The clerk shall note the name, address, and date of each mailing on the docket.

(d) Docket entry of posting; completion of service

After the last week of posting under either division (A)(2)(a) or division (A)(2)(b) of this rule, the clerk shall note on the docket where and when notice was posted. Service shall be complete upon the entry of posting.

(B) Residence known

If the residence of a party to be served is known, and the action is one in which service by publication is authorized by law, service of process shall be effected by a method other than by publication as provided by:

(1) Civ.R. 4.1, if the party to be served is a resident of this state,

(2) Civ.R. 4.3(B) if party to be served is not a resident of this state, or

(3) Civ.R. 4.5, in the alternative, if service on party to be served is to be effected in a foreign country.

If service of process cannot be effected under the provisions of this subdivision or Civ.R. 4.6(C) or Civ.R. 4.6(D), service of process shall proceed by publication.

Effective Date: July 1, 1970
Amended: July 1, 1971; July 1, 1991; July 1, 2012; July 1, 2013; July 1, 2016; July 1, 2018

Staff Note (July 1, 2016 Amendment)

Division (A) Residence unknown

Division (A)(2) of this rule is amended to provide that publication by posting service of process is an appropriate method of service in Civ.R. 65.1 civil protection order proceedings under the conditions described in that division of the rule. As stated in division (A)(2) of the rule, a petitioner who is proceeding in forma pauperis and who requests publication by posting service of process must file an affidavit with the court containing the same averments required by division (A)(1) of the rule, i.e., that service of summons cannot be made because the residence of the defendant is unknown to the affiant, all of the efforts made on behalf of the party to ascertain the residence of the defendant, and that the residence of the defendant cannot be ascertained with reasonable diligence.

The service of process by publication by way of posting of a civil protection order shall not impact the prompt entry of such an order into the protection order file of the National Crime Information Center. It is to be noted that the alternative method of posting on the website of the clerk of courts is not available for service of protection orders issued pursuant to Civ.R. 65.1.

Staff Note (July 1, 2018 Amendment)

Background to the July 1, 2018 Amendments to Civ.R. 4.4.

As initially adopted in 1970, Civ.R. 4.4(A) provided that when the defendant's residence was unknown, service could be obtained by publication, but only by publication in a newspaper.

In 1991, Civ.R. 4.4(A) was divided into two divisions -- Civ.R. 4.4(A)(1) set forth essentially the same "publication by newspaper" provisions contained in the then-existing rule, while a new Civ.R.4.4(A)(2) allowed an indigent plaintiff in a divorce, annulment, or legal separation action to obtain service by publication "by posting and mail" when the defendant's residence is unknown. In 2013, the application of the publication "by posting and mail" provisions of Civ.R. 4.4(A)(2) were expanded to include an indigent plaintiff in actions pertaining to the care, custody, and control of children whose parents are not married, and in all post-decree proceedings; and a provision for posting at a website of the clerk of courts was added.

In 2016, the application of the publication "by posting and mail" provisions of Civ.R. 4.4(A)(2) were again expanded to include an indigent plaintiff in a civil protection order proceeding pursuant to Civ.R. 65.1; but such civil protection order plaintiffs were precluded from publishing protection orders at a website of the clerk of courts since such publication is prohibited by 18 U.S.C. Section 2265(d)(3).

After the adoption of the 2016 amendments to the rule, the Supreme Court Advisory Committee on Domestic Violence requested that the rule be further amended to allow any petitioner in a civil protection order proceeding, regardless of indigency, to make use of the publication "by posting and mail" provisions of Civ.R. 4.4(A)(2) when the defendant's residence is unknown.

The July 1, 2018 amendments amend and reorganize the rule to eliminate confusion resulting from the existing structure and terminology of its provisions, and to address and account for a number of matters related to its application, including the following:

- Service by publication may be sought by parties other than plaintiffs and may be sought against parties other than defendants, particularly in divorce, annulment, or legal separation actions; in actions pertaining to the care, custody, and control of children whose parents are not married; in post-decree proceedings in such actions; and in civil protection order proceedings governed by Civ.R. 65.1;

- Service by publication may be sought for the service of documents other than complaints

-- such as petitions, motions, and orders -- in divorce, annulment, or legal separation actions; in actions pertaining to the care, custody, and control of children whose parents are not married; in post-decree proceedings in such actions; and in civil protection order proceedings governed by Civ.R. 65.1;

• A time other than within twenty-eight days of service may be required to respond or appear in response to service of a document other than a complaint -- such as service of a petition, motion, or order in divorce, annulment, or legal separation actions; in actions pertaining to the care, custody, and control of children whose parents are not married; in post-decree proceedings in such actions; and in civil protection order proceedings governed by Civ.R. 65.1.

Although the basis for the 1991 exemption from the payment of court costs due to indigency, and the basis provided by R.C. 3113.31(J) for the exemption from the payment of court costs in civil protection order proceedings are decidedly different, part of the rationale which apparently supported the 1991 adoption of Civ.R. 4.4(A)(2) justifies permitting parties in civil protection order proceedings, regardless of indigency, to obtain service by publication by posting and mail, i.e., those parties are not required to pay the substantial costs of service by publication in a newspaper. See *Boddie v. Connecticut*, 401 U.S. 371, 91 S.Ct. 780, 28 L.Ed.2d 113 (1971) and *State ex rel. Blevins, v. Mowery*, 45 Ohio St.3d 20, 543 N.E.2d 99 (1989); *also see* the Staff Notes to the 1998 amendments to Juv.R. 16.

Division (A)(1) Service by publication in a newspaper

The rule is amended by replacing the terms “plaintiff” and “defendant” with the terms “party requesting service” and “party to be served.”

The rule is amended by replacing “where the complaint is filed” with “where the action or proceeding is filed.”

The rule is amended by replacing “object of the complaint” with “object of the pleading or other document.”

The rule is amended to provide “within twenty-eight days after the publication or at such other time after the publication that is set as the time to appear or within which to respond after service of such pleading or other document.”

Division (A)(2) Service by publication by posting and mail

The rule is amended by further sub-dividing it into division (A)(2)(a) addressing service by publication by posting and mail in actions or proceedings other than civil protection order proceedings, and division (A)(2)(b) addressing service by publication by posting and mail in civil protection order proceedings; division (A)(2)(c) addresses the additional requirement for mailing; and division (A)(2)(d) addresses the docketing of the entry of posting and completion of service.

The rule is amended by replacing “proceeding in forma pauperis” with “proceeding with a poverty affidavit.”

The rule is amended by replacing the “defendant” with the “party upon whom service is sought.”

Division (A)(2)(b) Civil protection order proceedings

The new division (A)(2)(b) contains the same general requirements of division (A)(2)(a) except:

• The requirement of a poverty affidavit is eliminated.

• “Courthouses within which domestic relations divisions * * * are located” is replaced with

"Courthouses within the county where Civ.R. 65.1 civil protection order proceedings may be filed[;]"

- Posting on the website of the clerk of courts is prohibited.

Division (A)(2)(c) Additional requirements for mailing

The rule is amended by replacing "complaint and summons" with "documents for service."

The rule is amended by replacing "defendant's last known address" with "last known address of the party to be served."

Division (B) Residence known

The rule is amended by replacing "defendant" with "party to be served."

RULE 4.5. Process: Alternative Provisions for Service in a Foreign Country.

When Civ.R. 4.3 or Civ.R. 4.4 or both allow service upon a person outside this state and service is to be effected in a foreign country, service of the summons and complaint shall be made as provided in this rule.

(A) Hague Convention Signatory

If the foreign country is a signatory to the Hague Convention on the Service Abroad of Judicial and Extrajudicial Documents in Civil or Commercial Matters, service shall be pursuant to a method allowed by the Articles of that Convention, including any method allowed by Article 8 or Article 10 to which the foreign country has not objected in accordance with Article 21.

(B) Other cases

In all cases to which division (A) does not apply, service may be made in a manner provided by Civ.R. 4.3(B)(1) or, if applicable, Civ.R. 4.4, and may also be made:

(1) In the manner prescribed by the law of the foreign country for service in that country in an action in any of its courts of general jurisdiction when service is calculated to give actual notice;

(2) As directed by the foreign authority in response to a letter rogatory when service is calculated to give actual notice;

(3) Upon an individual by delivery to him or her personally;

(4) Upon a corporation or partnership or association by delivery to an officer, a managing or general agent;

(5) By any form of delivery requiring a signed receipt, when the clerk of the court addresses the delivery to the party to be served and delivers the summons to the person who will make the service;

(6) As directed by order of the court.

Service under division (B)(3) or (B)(6) of this rule may be made by any person not less than eighteen years of age who is not a party and who has been designated by order of the court, or by the foreign court. On request the clerk shall deliver the summons to the plaintiff for transmission to the person or the foreign court or officer who will make the service.

(C) Return

Proof of service may be made as prescribed by Civ.R. 4.1(B), or by the law of the foreign country, or by order of the court. Failure to make service within the twenty-eight-day period and failure to make proof of service do not affect the validity of service.

When delivery is made pursuant to division (B)(5) of this rule, proof of service shall include a receipt signed by the addressee or other evidence of delivery to the addressee satisfactory to the court.

Effective Date: July 1, 1970
Amended: July 1, 1997; July 1, 2012; July 1, 2014

Staff Note (July 1, 1997 Amendment)

Rule 4.5 Process Alternative provisions for service in a foreign country

The 1997 amendment changed a cross-reference in division (B) necessitated by the relettering of Civ.R. 4.1, also effective July 1, 1997. Other amendments to this rule are nonsubstantive grammatical or stylistic changes.

Staff Note (July 1, 2012 Amendment)

Rule 4.5 is amended to provide that when service is to be made in a foreign country that is a signatory to the Hague Convention, the provisions of that Convention supersede the other methods for service in a foreign country that are described in the rule. Pursuant to the 2012 amendments to Civ.R. 4.1(A) and Civ.R. 4.3(B)(1), delivery by commercial carrier service, requiring a signed receipt, is also authorized when the Hague Convention does not apply.

Staff Note (July 1, 2014 Amendment)

Rule 4.5(C) is amended to be consistent with the provision of Civ.R. 4.1(B) relating to personal service within the state which specifies, “Failure to make service within the twenty-eight-day period and failure to make proof of service do not affect the validity of service.”

RULE 4.6. Process: Limits; Amendment; Service Refused; Service Unclaimed.

(A) Limits of effective service

All process may be served anywhere in this state and, when authorized by law or these rules, may be served outside this state.

(B) Amendment

The court within its discretion and upon such terms as are just, may at any time allow the amendment of any process or proof of service thereof, unless the amendment would cause material prejudice to the substantial rights of the party against whom the process was issued.

(C) Service refused

If attempted service of process by United States certified or express mail or by commercial carrier service within or outside the state is refused, and the certified or express mail envelope or return of the commercial carrier shows such refusal, or the return of the person serving process by personal service within or outside the state or by residence service within the state specifies that service of process has been refused, the clerk shall forthwith notify the attorney of record or, if there is no attorney of record, the party at whose instance process was issued and enter the fact and method of notification on the appearance docket. If the attorney, or serving party, after notification by the clerk, files with the clerk a written request for ordinary mail service, the clerk shall send by United States ordinary mail a copy of the summons and complaint or other document to be served to the defendant at the address set forth in the caption, or at the address set forth in written instructions furnished to the clerk. The mailing shall be evidenced by a certificate of mailing which shall be completed and filed by the clerk. Answer day shall be twenty-eight days after the date of mailing as evidenced by the certificate of mailing. The clerk shall endorse this answer date upon the summons which is sent by ordinary mail. Service shall be deemed complete when the fact of mailing is entered of record. Failure to claim United States certified or express mail or commercial carrier service is not refusal of service within the meaning of this division. This division shall not apply if any reason for failure of delivery other than "Refused" is also shown on the United States certified or express mail envelope.

(D) United States certified or express mail, or commercial carrier service unclaimed

If attempted service using United States certified or express mail or commercial carrier within or outside the state is returned with an endorsement stating that the envelope was unclaimed or a similar endorsement indicating the item was unclaimed, the clerk shall forthwith notify the attorney of record or, if there is no attorney of record, the party at whose instance process was issued and enter the fact and method of notification on the appearance docket. If the attorney, or serving party, after notification by the clerk, files with the clerk a written request for ordinary mail service, the clerk shall send by United States ordinary mail a copy of the summons and complaint or other document to be served

to the defendant at the address set forth in the caption, or at the address set forth in written instructions furnished to the clerk. The mailing shall be evidenced by a certificate of mailing which shall be completed and filed by the clerk. Answer day shall be twenty-eight days after the date of mailing as evidenced by the certificate of mailing. The clerk shall endorse this answer date upon the summons which is sent by ordinary mail. Service shall be deemed complete when the fact of mailing is entered of record, provided that the ordinary mail envelope is not returned by the postal authorities with an endorsement showing failure of delivery. If the ordinary mail envelope is returned undelivered, the clerk shall forthwith notify the attorney, or serving party.

(E) Duty of attorney of record or serving party

The attorney of record or the serving party shall be responsible for determining if service has been made and shall timely file written instructions with the clerk regarding completion of service notwithstanding the provisions in Civ.R. 4.1 through 4.6 which instruct a clerk to notify the attorney of record or the serving party of failure of service of process.

Effective Date: July 1, 1970
Amended: July 1, 1971; July 1, 1978; July 1, 1997; July 1, 2012; July 1, 2023

Staff Note (July 1, 1997 Amendment)

Rule 4.6 Process: limits; amendment; service refused; service unclaimed

Prior to the 1997 amendment, service of process under this rule was permitted only by certified mail. It appears that service of process by express mail, i.e. as that sort of mail is delivered by the United States Postal Service, can always be obtained return receipt requested, and thus could accomplish the purpose of notification equally well as certified mail. Therefore, the amendment provides for this additional option for service.

Other amendments to this rule are nonsubstantive grammatical or stylistic changes.

Staff Note (July 1, 2012 Amendment)

Divisions (C) and (D) are amended (1) to specify that their provisions for service by United States ordinary mail apply to service by commercial carrier that is returned showing "Refused" but do not apply to service by commercial carrier that is returned showing "Unclaimed" and (2) to make clear that these divisions are applicable to U.S. mail service attempted both within and outside the state.

Division (C) relating to service "Refused" is also amended to specify that its provisions do not apply to ambiguous returns of U.S. certified or express mail stating other reasons for failure of delivery that suggest lack of actual notice to the defendant, such as "unable to forward". Division (D) relating to service "Unclaimed" is not similarly amended with respect to returns stating both "Unclaimed" and other reasons for failure of delivery; however, division (D) continues to apply only to U.S. Postal Service returns showing that the addressee was notified of, and failed to claim, the certified or express mail envelope.

RULE 4.7. Process: Waiving Service.

(A) Requesting a waiver

An individual, corporation, partnership, or association that is subject to service under Civ.R. 4 through 4.6 has a duty to avoid unnecessary expenses of serving the summons. The plaintiff may notify such a defendant that an action has been commenced and request that the defendant waive service of a summons. The notice and request must satisfy all of the following requirements:

(1) Be in writing and be addressed as required by Civ.R. 4.2;

(2) Name the court where the complaint was filed;

(3) Be accompanied by a copy of the complaint, two copies of the waiver form appended to this Rule 4.7, and a prepaid means for returning the form;

(4) Inform the defendant, using the form appended to this Rule 4.7, of the consequences of waiving and not waiving service;

(5) State the date when the request is sent;

(6) Give the defendant a reasonable time of at least twenty-eight days after the request was sent - or at least sixty days if sent to the defendant outside of the United States - to return the waiver;

(7) Be sent by first-class mail or other reliable means.

(B) Scope of application

The waiver of service provisions in this rule only apply in civil actions in the courts of common pleas, except that they do not apply to petitions seeking orders under Civ.R. 65.1 nor to domestic relations matters as defined in R.C. 3105.011.

(C) Failure to waive

If a defendant over which the court has personal jurisdiction fails, without good cause, to sign and return a waiver requested by a plaintiff, the court may impose on the defendant both of the following:

(1) The expenses later incurred in making service;

(2) The reasonable expenses, including attorney's fees, of any motion required to collect those service expenses.

(D) Time to answer after a waiver

A defendant who, before being served with process, timely returns a waiver need not serve an answer to the complaint until sixty days after the request was sent—or until ninety days after it was sent to the defendant in a foreign country.

(E) Results of filing a waiver

When the plaintiff files a waiver, proof of service is not required and these rules apply as if a summons and complaint had been served at the time of filing the waiver.

(F) Jurisdiction and venue not waived

Waiving service of a summons does not waive any objection to jurisdiction or to venue.

[Form] RULE 4.7 NOTICE OF A LAWSUIT AND REQUEST TO WAIVE SERVICE OF SUMMONS.

(Caption)

To *(name the defendant or — if the defendant is a corporation, partnership, or association — name an officer or agent authorized to receive service)*:

WHY ARE YOU GETTING THIS?

A lawsuit has been filed against you, or the entity you represent, in this court under the number shown above. A copy of the complaint is attached.

This is not a summons, or an official notice from the court. It is a request that, to avoid expenses, you waive formal service of a summons by signing and returning the enclosed waiver. To avoid these possible expenses, you must return the signed waiver within (give at least 28 days or at least 60 days if the defendant is outside the United States) from the date shown below, which is the date this notice was sent. Two copies of the waiver form are enclosed, along with a stamped, self-addressed envelope or other prepaid means for returning one copy. You may keep the other copy.

WHAT HAPPENS NEXT?

If you return the signed waiver, I will file it with the court. The action will then proceed as if you had been served on the date the waiver is filed, but no summons will be served on you and you will have 60 days from the date this notice is sent (see the date below) to answer the complaint (or 90 days if this notice is sent to you outside the United States).

If you do not return the signed waiver within the time indicated, I will arrange to have the summons and complaint served on you. And I will ask the court to require you, or the entity you represent, to pay the expenses of making service.

Please read the enclosed statement about the duty to avoid unnecessary expenses.

I certify that this request is being sent to you on the date below.

Date: _____

Name of party requesting waiver of service of summons: _____

Individual issuing this request on behalf of that party:

Printed name: _____

Signature: _____

Address: _____

E-mail address: _____

Telephone number: _____

[Form] RULE 4.7 WAIVER OF THE SERVICE OF SUMMONS.

(Caption)

To *(name the plaintiff's attorney or the unrepresented plaintiff)*:

I have received your request to waive service of a summons in this action along with a copy of the complaint, two copies of this waiver form, and a prepaid means of returning one signed copy of the form to you.

I, or the entity I represent, agree to save the expense of serving a summons and complaint in this case.

I understand that I, or the entity I represent, will keep all defenses or objections to the lawsuit, the court's jurisdiction, and the venue of the action, but that I waive any objections to the absence of a summons or of service.

I also understand that I, or the entity I represent, must file and serve an answer or a motion under Rule 12 within 60 days from _____, the date when this request was sent (or 90 days if it was sent outside the United States). If I fail to do so, a default judgment could be entered against me or the entity I represent.

Name of party waiving service of summons: _____

Individual signing on behalf of party waiving service of summons:

Printed name: _____

Relationship to party waiving service of summons: _____

Signature: _____

Address: _____

E-mail address: _____

Telephone number: _____

(Attach the following)

DUTY TO AVOID UNNECESSARY EXPENSES OF SERVING A SUMMONS

Rule 4.7 of the Ohio Rules of Civil Procedure requires certain defendants to cooperate in saving unnecessary expenses of serving a summons and complaint. A defendant who is subject to the court's personal jurisdiction and who fails to return a signed waiver of service requested by a plaintiff may be required to pay the expenses of service, unless the defendant shows good cause for the failure.

"Good cause" does not include a belief that the lawsuit is groundless, or that it has been brought in an improper venue, or that the court has no jurisdiction over this matter or over the defendant or the defendant's property.

If the waiver is signed and returned, you can still make these and all other defenses and objections, but you cannot object to the absence of a summons or of service.

If you waive service, then you must, within the time specified on the waiver form, serve an answer or a motion under Rule 12 on the plaintiff and file a copy with the court. By signing and returning the waiver form, you are allowed more time to respond than if a summons had been served.

Effective Date: July 1, 2020
Amended: July 1, 2022; July 2024

Staff Note (July 1, 2020 Amendment)

Rule 4.7 is based on the federal rule permitting waiver of service. Paragraph (A) states what the present rule implies: the defendant has a duty to avoid costs associated with the service of a summons not needed to inform the defendant regarding the commencement of an action. The text of the rule also sets forth the requirements for a Notice and Request for Waiver sufficient to put the cost-shifting provision in place. These requirements are illustrated in the forms appended to the rule. Pursuant to Rule 4(D), only those persons who are identified in Rule 4.2 and who are eighteen years of age or older and not under a disability may waive service.

Paragraph (A)(7) permits the use of alternatives to the United States mails in sending the Notice and Request. While private messenger services or electronic communications may be more expensive than the mail, they may be equally reliable and on occasion more convenient to the parties. Especially with respect to transmissions to foreign countries, alternative means may be desirable, for in some countries facsimile transmission or electronic mail are the most efficient and economical means of communication. If electronic means such as facsimile transmission or electronic mail are employed, the sender should maintain a record of the transmission to assure proof of transmission if receipt is denied, but a party receiving such a transmission has a duty to cooperate and cannot avoid liability for the resulting cost of formal service if the transmission is prevented at the point of receipt.

A defendant failing to comply with a request for waiver shall be given an opportunity to show good cause for the failure, which is the case under paragraph (B), but sufficient cause should be rare. It is not a good cause for failure to waive service that the claim is unjust or that the court lacks jurisdiction. Sufficient cause not to shift the cost of service would exist, however, if the defendant did not receive the request or was insufficiently literate in English to understand it. It should be noted that the provisions for shifting the cost of service apply only if the defendant is subject to the court's personal jurisdiction.

Paragraph (C) is a cost-shifting provision. The costs that may be imposed on the defendant could include, for example, the cost of the time of a process server required to make contact with a defendant residing in a guarded apartment house or residential development. The paragraph is explicit that the costs of enforcing the cost-shifting provision are themselves recoverable from a defendant who fails to return the waiver. In the absence of such a provision, the purpose of the rule would be frustrated by the cost of its enforcement, which is likely to be high in relation to the small benefit secured by the plaintiff.

Paragraph (D) extends the time for answer if, before being served with process, the defendant waives formal service. The extension is intended to serve as an inducement to waive service and to assure that a defendant will not gain any delay by declining to waive service and thereby causing the additional time needed to effect service. By waiving service, a defendant is not called upon to respond to the complaint until 60 days from the date the notice was sent to it—90 days if the notice was sent to a foreign country—rather than within the 28-day period from date of service specified in Rule 12.

Paragraph (E) clarifies the effective date of service when service is waived. The device of requested waiver of service is not suitable if a limitations period which is about to expire is not tolled by filing the action. Unless there is ample time, the plaintiff should proceed directly to the formal methods for service identified in Rules 4-4.6.

The procedure of requesting waiver of service should also not be used if the time for service under Rule 4(E) will expire before the date on which the waiver must be returned. The court could refuse a request for additional time unless the plaintiff can demonstrate good cause as to why service was not made within that period. It may be noted that the presumptive time limit for service under Rule 4(E) does not apply to out-of-state service or service in a foreign country.

Paragraph (F) of Rule 4.7 is explicit that a timely waiver of service of a summons does not prejudice the right of a defendant to object by means of a motion authorized by Rule 12(B) to the absence of jurisdiction, or to assert improper venue under Rule 12(B)(3). The only issues eliminated are those involving the sufficiency of the summons or the sufficiency of the method by which it is served.

Staff Note (July 1, 2022 Amendment)

Division (B) is amended to eliminate this method of service for domestic relations cases as well as civil protection order cases. The additional time required to obtain a waiver, and the automatic extension of Answer Day interject too much delay in these categories of cases.

Staff Note (July 1, 2024, Amendment)

Division (B) of this rule is amended with Civ.R. 4(D) to clarify that service of summons may be waived in any type of action. No substantive change is intended. The signature blocks of the forms are amended to promote clarity.

RULE 5. Service and Filing of Pleadings and Other Papers Subsequent to the Original Complaint.

(A) Service: when required

Except as otherwise provided in these rules, every order required by its terms to be served, every pleading subsequent to the original complaint unless the court otherwise orders because of numerous defendants, every paper relating to discovery required to be served upon a party unless the court otherwise orders, every written motion other than one which may be heard ex parte, and every written notice, appearance, demand, offer of judgment, and similar paper shall be served upon each of the parties. Service is not required on parties in default for failure to appear except that pleadings asserting new or additional claims for relief or for additional damages against them shall be served upon them in the manner provided for service of summons in Civ.R. 4 through Civ.R. 4.6.

(B) Service: how made

(1) Serving a party; serving an attorney

Whenever a party is not represented by an attorney, service under this rule shall be made upon the party. If a party is represented by an attorney, service under this rule shall be made on the attorney unless the court orders service on the party. Whenever an attorney has filed a notice of limited appearance pursuant to Civ.R. 3(B), service shall be made upon both that attorney and the party in connection with the proceedings for which the attorney has filed a notice of limited appearance.

(2) Service in general

A document is served under this rule by:

(a) Handing it to the person;

(b) Leaving it:

(i) At the person's office with a clerk or other person in charge or, if no one is in charge, in a conspicuous place in the office; or

(ii) If the person has no office or the office is closed, at the person's dwelling or usual place of abode with someone of suitable age and discretion who resides there;

(c) Mailing it to the person's last known address by United States mail, in which event service is complete upon mailing;

(d) Delivering it to a commercial carrier service for delivery to the person's last known address within three calendar days, in which event service is complete upon delivery to the carrier;

(e) Leaving it with the clerk of court if the person has no known address; or

(f) Sending it by electronic means to a facsimile number or e-mail address provided in accordance with Civ.R. 11 by the attorney or party to be served, or, if mutually agreed in writing by all counsel and unrepresented parties, any other electronic media platform(s), in which event service is complete upon transmission, but is not effective if the serving party learns that it did not reach the person served.

(3) Using court facilities

If a local rule so authorizes, a party may use the court's transmission facilities to make service under Civ.R. 5(B)(2)(f).

(4) Proof of service

The served document shall be accompanied by a completed proof of service which shall state the date and manner of service, specifically identify the division of Civ.R. 5(B)(2) by which the service was made, and be signed in accordance with Civ.R. 11. Documents filed with the court shall not be considered until proof of service is endorsed thereon or separately filed.

(C) Service: numerous defendants

In any action in which there are unusually large numbers of defendants, the court, upon motion or of its own initiative, may order that service of the pleadings of the defendants and replies thereto need not be made as between the defendants and that any cross-claim, counterclaim, or matter constituting an avoidance or affirmative defense contained therein shall be deemed to be denied or avoided by all other parties and that the filing of any such pleading and service thereof upon the plaintiff constitutes due notice of it to the parties. A copy of every such order shall be served upon the parties in such manner and form as the court directs.

(D) Filing

Any paper after the complaint that is required to be served shall be filed with the court within three days after service. The following discovery requests and responses shall not be filed until they are used in the proceeding or the court orders filing: depositions, interrogatories, requests for documents or tangible things or to permit entry on land, and requests for admission.

(E) Filing with the court defined

The filing of documents with the court, as required by these rules, shall be made by filing them with the clerk of court, except that the judge may permit the documents to be filed with the judge, in which event the judge shall note the filing date on the documents and transmit them to the clerk. A court shall provide, by court order or local rule, for the filing of documents by electronic means. The court order or local rule shall include all of the following:

(1) Any signature on electronically transmitted documents shall be considered that of the attorney or party it purports to be for all purposes. If it is established that the documents were transmitted without authority, the court shall order the filing stricken.

(2) A provision shall specify the days and hours during which electronically transmitted documents will be received by the court, and a provision shall specify when documents received electronically will be considered to have been filed.

(3) Any document filed electronically that requires a filing fee may be rejected by the clerk of court unless the filer has complied with the mechanism established by the court for the payment of filing fees.

Effective Date: July 1, 1970
Amended: July 1, 1971; July 1, 1984; July 1, 1991; July 1, 1994; July 1, 2001; July 1, 2012; July 1, 2015; July 1, 2016; July 1, 2018; July 1, 2022

Staff Note (July 1, 2001 Amendment)

Civil Rule 5(E) Filing with the court defined

The amendments to this rule were part of a group of amendments that were submitted by the Ohio Courts Digital Signatures Task Force to establish minimum standards for the use of information systems, electronic signatures, and electronic filing. The substantive amendment to this rule was the amendment of the second sentence and the addition of the last sentence of division (E), and the addition of divisions (E)(2) and (E)(3). Comparable amendments were made to Civil Rule 73 (for probate courts), Criminal Rule 12, Juvenile Rule 8, and Appellate Rule 13.

As part of this electronic filing and signature project, the following rules were amended effective July 1, 2001: Civil Rules 5, 11, and 73; Criminal Rule 12; Juvenile Rule 8; and Appellate Rules 13 and 18. In addition, Rule 26 of the Rules of Superintendence for Courts of Ohio was amended and Rule of Superintendence 27 was added to complement the rules of procedure. Superintendence Rule 27 establishes a process by which minimum standards for information technology are promulgated, and requires that courts submit any local rule involving the use of information technology to a technology standards committee designated by the Supreme Court for approval.

Staff Note (July 1, 2012 Amendment)

Rule 5(B)

Rule 5(B) is amended (1) to permit service of documents after the original complaint to be made by electronic means and by commercial carrier service and (2) to conform the format and language of the rule to the December 1, 2007 amendments to Fed.R.Civ.P. 5(b).

Rule 5(B)(2)(d) permits service of a document by delivering it to a commercial carrier service for delivery within three calendar days. Rule 5(B)(2)(f) adopts the language of Fed.R.Civ.P. 5(b) stating that service by electronic means is not effective if the serving party learns that the document did not reach the person to be served. Rule 5(B)(3) emphasizes a party's duty to provide a proof of service that states the date and specific manner by which the service was made, specifically identifying the division of Civ.R. 5(B)(2) by which service was made.

Rule 5(D)

The provisions of Civ.R. 5(D) relating to the duty to provide a proof of service have been moved to Civ.R. 5(B)(3) and amended to require that a serving party specifically identify the division of Civ.R. 5(B)(2) by which the service was made. Additional changes are made to substitute "document" for "paper" for consistency with other Rules of Civil Procedure.

Staff Note (July 1, 2015 Amendment)

The rule is amended by adding a new division Civ.R. 5(B)(3) permitting a party to use a court's transmission facilities to serve other parties by electronic means if so authorized by local rule, and the subsequent division of the rule is renumbered accordingly.

The amendment eliminates a duplication of effort resulting from the 2012 amendments to Civ.R. 5(B) which permitted a party to use electronic means to fulfill the party's Civ.R. 5 duty to serve all other parties but did not authorize the party to use the facilities of a local court's electronic filing system to perform that duty—even though, under local rules, the court's facilities nevertheless serve by electronic means all parties participating in the electronic filing system. The new provision is virtually identical to Fed.R.Civ.P. 5(b)(3).

Staff Note (July 1, 2016 Amendment)

Division 5(D) of this rule, the general rule for the time for filing, is amended to conform the language to the 2007 stylistic changes to Fed.R.Civ.P. 5(d) to the extent that the substance of the Ohio and Federal Rules are the same.

Staff Note (July 1, 2018 Amendment)

Division (B)(1) Serving a party; serving an attorney

This and other July 1, 2018 amendments to the Ohio Rules of Civil Procedure encourage attorneys to assist pro se parties on a limited basis without undertaking the full representation of the client on all issues related to the legal matter for which the attorney is engaged. By these amendments, the Supreme Court seeks to enlarge access to justice in Ohio's courts as recommended by a 2006 Report of the Court's Task Force on Pro Se & Indigent Litigants and by a 2015 Report of the Court's Task Force on Access to Justice.

The amendment to Civ.R. 5(B)(1) makes clear that when a notice of limited appearance has been filed by an attorney, an opposing party shall continue serving documents upon the party throughout the duration of the limited appearance while also serving the attorney. The purpose of the amendment is to assure appropriate service upon counsel to represented parties, but also to assure that a client being represented on a limited basis has copies of all key documents in the litigation.

Staff Note (July 1, 2022 Amendment)

Although no firm deadline is stated in the rule by which all courts must complete arrangements for filing documents by electronic means, this should be a priority for all courts. Receiving and filing facsimile or electronic mail documents is readily and economically done, and avoids difficulty with delay in United States Postal Service mail delivery.

RULE 6. Time.

(A) Time: computation

In computing any period of time prescribed or allowed by these rules, by the local rules of any court, by order of court, or by any applicable statute, the day of the act, event, or default from which the designated period of time begins to run shall not be included. The last day of the period so computed shall be included, unless it is a Saturday, a Sunday, or a legal holiday, in which event the period runs until the end of the next day which is not a Saturday, a Sunday, or a legal holiday. When the period of time prescribed or allowed is less than seven days, intermediate Saturdays, Sundays, and legal holidays shall be excluded in the computation. When a public office in which an act, required by law, rule, or order of court, is to be performed is closed to the public for the entire day which constitutes the last day for doing such an act, or before its usual closing time on such day, then such act may be performed on the next succeeding day which is not a Saturday, a Sunday, or a legal holiday.

(B) Time: extension

(1) In this division (B), the words "continue" and "continuance" are used in the sense of postponement, delay, and extension of time.

(2) Continuance orders

(a) When under these rules, a local rule, or a court order an event is scheduled for a particular date or an act may or must be done within a specified time or by a particular date, the court for good cause may continue the date or period of time.

(b) No party shall be granted a continuance of a trial or hearing without a written motion from the party or counsel stating the reason for the continuance, endorsed in writing by the party as well as counsel, provided that the trial judge may waive this requirement upon a showing of good cause. Counsel may sign on behalf of their client per allowance. No court shall grant a continuance to any party at any time without first setting a definite date for the trial or hearing.

(c) The court may act with or without motion or notice if the court acts, or if a request is made, before the particular date or the expiration of the specified time.

(d) The court may act on motion made after the particular date or the expiration of the specified time if the moving party failed to act because of excusable neglect.

(e) The court may not extend the time for taking any action under Civ.R. 50(B), Civ.R. 59(B), Civ.R. 59(D), and Civ.R. 60(B), except to the extent and under the conditions stated in those rules.

(3) Reasons for continuances

(a) Motions should address the timing and impact of any continuance.

A party seeking a continuance should explain in writing the rationale for the request and should be cognizant of the various factors that courts consider in ruling on such a request, including (i) the timing of the request, (ii) the length of the proposed continuance, (iii) the age of the case, (iv) the number and nature of any previous similar requests, (v) the availability of alternative ways to address the concern underlying the request, (vi) counsel's diligence and overall compliance with the case schedule and case deadlines, (vii) the nature and complexity of the case, (viii) the court's calendar and the impact of any continuance on other cases, (ix) whether other parties consent to or oppose the request, and (x) any inconvenience, increased costs, and prejudice to the rights and interests of the parties and the public that might result from the granting or the denial of the request.

(b) Witness unavailability.

Before requesting a continuance due to the unavailability of a witness, parties should consider the feasibility of other permitted methods of recording or facilitating the presentation of testimony under these rules and local rules, including deposition or remote testimony.

(c) Attorney unavailability.

When requesting a continuance due to counsel's unavailability, the moving party must notify the court about the reason counsel is unavailable and must indicate when the scheduling conflict arose and was discovered. In most cases, a trial or hearing that was scheduled first will take priority over a conflicting trial or hearing.

(C) Time: motions

(1) Motion responses and movants' replies generally

Responses to a written motion, other than motions for summary judgment, may be served within fourteen days after service of the motion. Responses to motions for summary judgment may be served within twenty-eight days after service of the motion. A movant's reply to a response to any written motion may be served within seven days after service of the response to the motion.

(2) Motions prior to hearing or trial

Unless a different period is fixed under these rules or by order of the court, a written motion for purposes of a hearing that is not a trial shall be served no later than fourteen days prior to the hearing, and a written motion for purposes of a trial shall be served no later than twenty-eight days prior to the start of trial. Responses to such motions may be served as provided by Civ.R. 6(C); however, a movant's reply to the response is not permitted.

(3) Modification for good cause upon motion

Upon motion of a party in an action, and for good cause, the court may reduce or enlarge the periods of time provided in divisions (C)(1) and (C)(2) of this rule.

(D) Time: additional time after service by mail or commercial carrier service

Whenever a party has the right or is required to do some act or take some proceedings within a prescribed period after the service of a notice or other document upon that party and the notice or paper is served upon that party by mail or commercial carrier service under Civ.R. 5(B)(2)(c) or (d), three days shall be added to the prescribed period. This division does not apply to responses to service of summons under Civ.R. 4 through Civ.R. 4.6.

Effective Date: July 1, 1970
Amended: July 1, 1978; July 1, 2012; July 1, 2015; July 1, 2019; July 1, 2026

Staff Note (July 1, 2012 Amendment)

Former Civ.R. 6(C) has been eliminated and the remaining divisions of the rule have been re-lettered. Former division (C) was adopted in 1970 and made reference to the continuing jurisdiction of a court after expiration of a "term of court." The provision was significant at the time for clarifying a court's jurisdiction to vacate its final judgments despite prior statutes which limited a court's jurisdiction to do so "after term of court." Those procedural statutes were repealed or amended with the adoption of the Ohio Rules of Civil Procedure in 1970. However, for organizational and other purposes, R.C. 2301.05 continues to provide for one year "terms" for common pleas courts, and some non-procedural statutes refer to "term of court." Rule 6(C) does not appear to have any continuing significance for Ohio procedure. The provision is not included in Fed. R. Civ. P. 6 and its elimination makes the lettering of Civ.R. 6 consistent with that of the federal rule.

Former Civ.R. 6(E), now Civ.R. 6(D), is amended to make clear that this "three day" rule applies only when service has been made by mail or commercial carrier service under Civ.R. 5(B)(2)(c) or (d). As with the prior rule, it does not apply to responding to service of process made under Civ.R. 4 through Civ.R.4.6, nor does it apply to responding to documents served under any other divisions of Civ.R. 5.

Staff Note (July 1, 2015 Amendment)

The amendment to Civ.R. 6(C) eliminates the prior requirement to serve a "notice of hearing" when serving a motion, recognizing that the requirement is inconsistent with modern practice where most courts determine motions without oral hearing—a practice permitted by Civ.R. 7(B)(2). The amendment also addresses an uncertainty existing under the prior rule as to when a response to a motion is due when there is no local rule or court order specifying a time for responding to motions, by specifying a fallback time of fourteen days after service of the motion within which to serve arguments in response. In the absence of

a local rule or court order addressing replies, the amendment also permits a movant to serve reply arguments within seven days after service of the opposing party's response. The time for filing motion responses and replies is governed by Civ.R. 5(D), again in the absence of a local rule or court order specifying a different time for filing.

Staff Note (July 1, 2019 Amendment)

Division 6(C)

The amendment separates Civ.R. 6(C) into three divisions.

Division (C)(1)

The provisions of Division (C)(1) supersede and replace the differing deadlines for responding to motions imposed by the numerous local rules of Ohio trial courts, thereby eliminating confusion and creating consistency by providing uniform statewide deadlines. The division establishes a twenty-eight- day deadline for service of responses to motions for summary judgment, and a fourteen-day deadline for service of responses to all other motions. A movant's reply to a response to any motion may be served within seven days after service of the response.

Division (C)(2)

The provisions of Division (C)(2) establish deadlines for serving written motions for purposes of a hearing or trial (e.g., motions in limine, motions to bifurcate, etc.). Unless a different period is fixed under another Rule of Civil Procedure or by order of the court (e.g. an scheduling order entered in accordance with Civ.R. 16) written motions for purposes of a hearing must be served not later than fourteen days prior to the hearing, while motions for purposes of trial must be served not later than twenty-eight days prior to trial.

Division (C)(3)

The provisions of Division (C)(3) permit the court to modify the periods of time provided in Division (C)(1) and Division (C)(2) in an individual action upon the filing of a motion of a party and for good cause. For example, expediting interlocutory rulings in an action for injunctive relief might constitute good cause for reducing the time for responding to certain motions in that action.

Staff Note (July 1, 2026 Amendment)

Division (B) has been revised and expanded to include language that formerly appeared in Superintendence Rule 41.

Language transferred from Superintendence Rule 41(A) maintains the requirement that the party and counsel sign the continuance request and explanation. Language was added to clarify that counsel may sign on behalf of the party if the party agrees.

Drawing on that latter provision's former text, new division (B)(3)(b) indicates that where a witness is expected to be unavailable for a hearing, parties should consider the feasibility of alternatives that might obviate the need for a continuance, such as recorded testimony or remote testimony.

Also shifted from the Superintendence Rules into new division (B)(3)(c) is language indicating that where an attorney is scheduled to be in two or more courtrooms at the same time, the attorney must, when seeking a continuance, indicate to the court when the scheduling conflict arose and when it came to the attorney's attention. As was true under language formerly in Superintendence Rule 41, in most cases a trial or hearing that was scheduled first will take priority over a conflicting trial or hearing.

Added to the same division is new language that directs parties to explain in writing the rationale for any continuance request. Included, too, is language intended to apprise parties about the factors that Ohio courts consider when addressing continuance requests. *See, e.g., Freytag v. Freytag*, 2024-Ohio-2403, ¶ 8 (3d Dist.); *In re B.M.*, 2024-Ohio-5505, ¶ 84 (4th Dist.); *Matter of C.W.*, 2025-Ohio-282, ¶ 50 (10th Dist.); *Mentor Economic Assistance Corp. v. Eichels*, 2016-Ohio-1162, ¶ 19 (11th Dist.). When seeking a continuance, parties would be well-advised to address those factors that are relevant in the case.

Other stylistic updates intended to improve the readability of the rule and to bring greater clarity to some of its existing provisions have also been made.

TITLE III. PLEADINGS AND MOTIONS.

RULE 7. Pleadings and Motions.

(A) Pleadings

There shall be a complaint and an answer; a reply to a counterclaim denominated as such; an answer to a cross-claim, if the answer contains a cross-claim; a third-party complaint, if a person who was not an original party is summoned under the provisions of Civ.R. 14; and a third-party answer, if a third-party complaint is served. No other pleading shall be allowed, except that the court may order a reply to an answer or a third-party answer.

(B) Motions

(1) An application to the court for an order shall be by motion which, unless made during a hearing or a trial, shall be made in writing. A motion, whether written or oral, shall state with particularity the grounds therefor, and shall set forth the relief or order sought. A written motion, and any supporting affidavits, shall be served in accordance with Civ.R. 5 unless the motion may be heard ex parte.

(2) To expedite its business, the court may make provision by rule or order not inconsistent with these rules for the submission and determination of motions without oral hearing upon brief written statements of reasons in support and opposition.

(3) The rules applicable to captions, signing, and other matters of form of pleading apply to all motions and other papers provided for by these rules.

(4) All motions shall be signed in accordance with Civ.R. 11.

Effective Date: July 1, 1970
Amended: July 1, 1984; July 1, 2014; July 1, 2015; July 1, 2019

Staff Note (July 1, 2014 Amendment)

Rule 7(C) abolishing demurrers is deleted, corresponding to the 2007 deletion of former Federal Rul©(c). Demurrers are unknown in Ohio modern practice, having been replaced in 1970 by Civ.R. 12(B)(6) with the adoption of the Ohio Rules of Civil Procedure. As the 2007 Federal Advisory Committee Note stated: “Former Rule 7(c) is deleted because it has done its work.”

Staff Note (July 1, 2015 Amendment)

Rule 7(B) is amended by eliminating the reference to a "notice of hearing" which is no longer required by Civ.R. 6(B).

Staff Note (July 1, 2019 Amendment)

Division (B)(2)

Division (B)(2) of the rule is amended to ensure that any local rule or order of the court relating to the submission and determination of motions is not inconsistent with the provisions of any other Rule of Civil Procedure (e.g., Civ.R. 6).

RULE 8. General Rules of Pleading.

(A) Claims for relief

A pleading that sets forth a claim for relief, whether an original claim, counterclaim, cross-claim, or third-party claim, shall contain (1) a short and plain statement of the claim showing that the party is entitled to relief, and (2) a demand for judgment for the relief to which the party claims to be entitled. If the party seeks more than twenty-five thousand dollars, the party shall so state in the pleading but shall not specify in the demand for judgment the amount of recovery sought, unless the claim is based upon an instrument required to be attached pursuant to Civ.R. 10. At any time after the pleading is filed and served, any party from whom monetary recovery is sought may request in writing that the party seeking recovery provide the requesting party a written statement of the amount of recovery sought. Upon motion, the court shall require the party to respond to the request. Relief in the alternative or of several different types may be demanded.

(B) Defenses; form of denials

A party shall state in short and plain terms the party's defenses to each claim asserted and shall admit or deny the averments upon which the adverse party relies. If the party is without knowledge or information sufficient to form a belief as to the truth of an averment, the party shall so state and this has the effect of a denial. Denials shall fairly meet the substance of the averments denied. When a pleader intends in good faith to deny only a part of a qualification of an averment, the pleader shall specify so much of it as is true and material and shall deny the remainder. Unless the pleader intends in good faith to controvert all the averments of the preceding pleading, the pleader may make the denials as specific denials or designated averments or paragraphs, or the pleader may generally deny all the averments except the designated averments or paragraphs as the pleader expressly admits; but, when the pleader does intend to controvert all its averments, including averments of the grounds upon which the court's jurisdiction depends, the pleader may do so by general denial subject to the obligations set forth in Civ.R. 11.

(C) Affirmative defenses

In pleading to a preceding pleading, a party shall set forth affirmatively accord and satisfaction, arbitration and award, assumption of risk, contributory negligence, discharge in bankruptcy, duress, estoppel, failure of consideration, want of consideration for a negotiable instrument, fraud, illegality, injury by fellow servant, laches, license, payment, release, res judicata, statute of frauds, statute of limitations, waiver, and any other matter constituting an avoidance or affirmative defense. When a party has mistakenly designated a defense as a counterclaim or a counterclaim as a defense, the court, if justice so requires, shall treat the pleading as if there had been a proper designation.

(D) Effect of failure to deny

Averments in a pleading to which a responsive pleading is required, other than those as to the amount of damage, are admitted when not denied in the responsive pleading. Averments in a pleading to which no responsive pleading is required or permitted shall be taken as denied or avoided.

(E) Pleading to be concise and direct; consistency

(1) Each averment of a pleading shall be simple, concise, and direct. No technical forms of pleading or motions are required.

(2) A party may set forth two or more statements of a claim or defense alternately or hypothetically, either in one count or defense or in separate counts or defenses. When two or more statements are made in the alternative and one of them if made independently would be sufficient, the pleading is not made insufficient by the insufficiency of one or more of the alternative statements. A party may also state as many separate claims or defenses as he has regardless of consistency and whether based on legal or equitable grounds. All statements shall be made subject to the obligations set forth in Rule 11.

(F) Construction of pleadings

All pleadings shall be so construed as to do substantial justice.

(G) Pleadings shall not be read or submitted

Pleadings shall not be read or submitted to the jury, except insofar as a pleading or portion thereof is used in evidence.

(H) Disclosure of minority or incompetency

Every pleading or motion made by or on behalf of a minor or an incompetent shall set forth such fact unless the fact of minority or incompetency has been disclosed in a prior pleading or motion in the same action or proceeding.

Effective Date: July 1, 1970
Amended: July 1, 1994

RULE 9. Pleading Special Matters.

(A) Capacity

It is not necessary to aver the capacity of a party to sue or be sued or the authority of a party to sue or be sued in a representative capacity or the legal existence of an organized association of persons that is made a party. When a party desires to raise an issue as to the legal existence of any party or the capacity of any party to sue or be sued or the authority of a party to sue or be sued in a representative capacity, he shall do so by specific negative averment, which shall include such supporting particulars as are peculiarly within the pleader's knowledge.

(B) Fraud, mistake, condition of the mind

In all averments of fraud or mistake, the circumstances constituting fraud or mistake shall be stated with particularity. Malice, intent, knowledge, and other condition of mind of a person may be averred generally.

(C) Conditions precedent

In pleading the performance or occurrence of conditions precedent, it is sufficient to aver generally that all conditions precedent have been performed or have occurred. A denial of performance or occurrence shall be made specifically and with particularity.

(D) Official document or act

In pleading an official document or official act it is sufficient to aver that the document was issued or the act done in compliance with law.

(E) Judgment

In pleading a judgment or decision of a court of this state or a foreign court, judicial or quasi-judicial tribunal, or of a board or officer, it is sufficient to aver the judgment or decision without setting forth matter showing jurisdiction to render it.

(F) Time and place

For the purpose of testing the sufficiency of a pleading, averments of time and place are material and shall be considered like all other averments of material matter.

(G) Special damage

When items of special damage are claimed, they shall be specifically stated.

Effective Date: July 1, 1970

RULE 10. Form of Pleadings.

(A) Caption; names of parties

Every pleading shall contain a caption setting forth the name of the court, the title of the action, the case number, and a designation as in Rule 7(A). In the complaint the title of the action shall include the names and addresses of all the parties, but in other pleadings it is sufficient to state the name of the first party on each side with an appropriate indication of other parties.

(B) Paragraphs; separate statements

All averments of claim or defense shall be made in numbered paragraphs, the contents of each of which shall be limited as far as practicable to a statement of a single set of circumstances; and a paragraph may be referred to by number in all succeeding pleadings. Each claim founded upon a separate transaction or occurrence and each defense other than denials shall be stated in a separate count or defense whenever a separation facilitates the clear presentation of the matters set forth.

(C) Adoption by reference; exhibits

Statements in a pleading may be adopted by reference in a different part of the same pleading or in another pleading or in any motion. A copy of any written instrument attached to a pleading is a part of the pleading for all purposes.

(D) Attachments to pleadings

(1) Account or written instrument

When any claim or defense is founded on an account or other written instrument, a copy of the account or written instrument must be attached to the pleading. If the account or written instrument is not attached, the reason for the omission must be stated in the pleading.

(2) Affidavit of merit; medical, dental, optometric, and chiropractic liability claims

(a) Except as provided in division (D)(2)(b) of this rule, a complaint that contains a medical claim, dental claim, optometric claim, or chiropractic claim, as defined in R.C. 2305.113, shall be accompanied by one or more affidavits of merit relative to each defendant named in the complaint for whom expert testimony is necessary to establish liability. Affidavits of merit shall be provided by an expert witness meeting the requirements of Evid.R. 702 and, if applicable, also meeting the requirements of Evid.R. 601(B)(5). Affidavits of merit shall include all of the following:

(i) A statement that the affiant has reviewed all medical records reasonably available to the plaintiff concerning the allegations contained in the complaint;

(ii) A statement that the affiant is familiar with the applicable standard of care;

(iii) The opinion of the affiant that the standard of care was breached by one or more of the defendants to the action and that the breach caused injury to the plaintiff.

(b) The plaintiff may file a motion to extend the period of time to file an affidavit of merit. The motion shall be filed by the plaintiff with the complaint. For good cause shown and in accordance with division (c) of this rule, the court shall grant the plaintiff a reasonable period of time to file an affidavit of merit, not to exceed ninety days, except the time may be extended beyond ninety days if the court determines that a defendant or non-party has failed to cooperate with discovery or that other circumstances warrant extension.

(c) In determining whether good cause exists to extend the period of time to file an affidavit of merit, the court shall consider the following:

(i) A description of any information necessary in order to obtain an affidavit of merit;

(ii) Whether the information is in the possession or control of a defendant or third party;

(iii) The scope and type of discovery necessary to obtain the information;

(iv) What efforts, if any, were taken to obtain the information;

(v) Any other facts or circumstances relevant to the ability of the plaintiff to obtain an affidavit of merit.

(d) An affidavit of merit is required to establish the adequacy of the complaint and shall not otherwise be admissible as evidence or used for purposes of impeachment. Any dismissal for the failure to comply with this rule shall operate as a failure otherwise than on the merits.

(e) If an affidavit of merit as required by this rule has been filed as to any defendant along with the complaint or amended complaint in which claims are first asserted against that defendant, and the affidavit of merit is determined by the court to be defective pursuant to the provisions of

division (D)(2)(a) of this rule, the court shall grant the plaintiff a reasonable time, not to exceed sixty days, to file an affidavit of merit intended to cure the defect.

(E) Size of paper filed

All pleadings, motions, briefs, and other papers filed with the clerk, including those filed by electronic means, shall be on paper not exceeding 8 1/2 x 11 inches in size without backing or cover.

Effective Date: July 1, 1970
Amended: July 1, 1985; July 1, 1991; July 1, 2005; July 1, 2007; July 1, 2016; July 1, 2023

Staff Note (July 1, 2005 Amendment)

Civ.R. 10 is amended in response to a request from the General Assembly contained in Section 3 of Sub. H.B. 215 of the 125th General Assembly, effective September 13, 2004. The act amends and enacts provisions relative to medical, dental, optometric, and chiropractic malpractice actions, and Section 3 contains a request that the Supreme Court adopt a rule that "require[s] a plaintiff filing a medical liability claim to include a certificate of expert review as to each defendant."

Rule 10(D) Attachments to pleadings

Civ.R. 10(D) is retitled and reorganized to reflect the inclusion of a requirement in division (D)(2) that a medical liability complaint include an affidavit of merit concerning the alleged breach of the standard of care by each defendant to the action. Division (D)(2)(a) specifies three items that must be included in the affidavit and sets forth the qualifications of the person providing the affidavit of merit.

There may be instances in which multiple affidavits of merit are required as to a particular plaintiff. For example, the plaintiff may find it necessary to provide one affidavit that addresses only the issue of "standard of care" and a separate affidavit that addresses only the issue of injury caused by the breach of the standard of care.

Because there may be circumstances in which the plaintiff is unable to provide an affidavit of merit when the complaint is filed, division (D)(2)(b) of the rule requires the trial court, when good cause is shown, to provide a reasonable period of time for the plaintiff to obtain and file the affidavit. For example, "good cause" may exist in a circumstance where the plaintiff obtains counsel near the expiration of the statute of limitations, and counsel does not have sufficient time to identify a qualified health care provider to conduct the necessary review of applicable medical records and prepare an affidavit. Similarly, the relevant medical records may not have been provided to the plaintiff in a timely fashion. Further, there may be situations where the medical records do not reveal the names of all of the potential defendants and so until discovery reveals those names, it may be necessary to name a "John Doe" defendant. Once discovery has revealed the name of a previously unknown defendant and that person is added as a party, the affidavit of merit would then be required as to that newly named defendant. Under these or similar circumstances, the court must afford the plaintiff a reasonable period of time, once a qualified health care provider is identified, to have the records reviewed and submit an affidavit that satisfies the requirements set forth in the rule.

Division (D)(2)(c) provides that an affidavit of merit is intended to establish the sufficiency of the complaint filed in a medical liability action and specifies that an affidavit of merit is not otherwise admissible as evidence or for purposes of impeachment.

The amendments to Rule 10 also include nonsubstantive changes.

Staff Note (July 1, 2007 Amendment)

Rule 10(D) Attachments to pleadings

Civ.R. 10 is amended to clarify what constitutes "good cause" to permit the plaintiff an extension of time to file an affidavit of merit and to define the effect of dismissal for failure to comply with the affidavit of merit requirement.

Rule 10(D) Attachments to pleadings

The language of division (D)(2)(a) is amended in recognition of the fact that more than one affidavit may be required as to a particular defendant due to the number of defendants or other circumstances.

Because there may be circumstances in which the plaintiff is unable to provide an affidavit of merit when the complaint is filed, division (D)(2)(b) of the rule requires the trial court, when good cause is shown, to provide a reasonable period of time for the plaintiff to obtain and file the affidavit. Division (D)(2)(c) details the circumstances and factors which the Court should consider in determining whether good cause exists to grant the plaintiff an extension of time to file the affidavit of merit. For example, "good cause" may exist in a circumstance where the plaintiff obtains counsel near the expiration of the statute of limitations, and counsel does not have sufficient time to identify a qualified health care provider to conduct the necessary review of applicable medical records and prepare an affidavit. Similarly, the relevant medical records may not have been provided to the plaintiff in a timely fashion by the defendant or a nonparty to the litigation who possesses the records. Further, there may be situations where the medical records do not reveal the names of all of the potential defendants and so until discovery reveals those names, it may be necessary to name a "John Doe" defendant. Once discovery has revealed the name of a defendant previously designated as John Doe and that person is added as a party, the affidavit of merit is required as to that newly named defendant. The medical records might also fail to reveal how or whether medical providers who are identified in the records were involved in the care that led to the malpractice. Under these and other circumstances not described here, the court must afford the plaintiff a reasonable period of time to submit an affidavit that satisfies the requirements set forth in the rule.

It is intended that the granting of an extension of time to file an affidavit of merit should be liberally applied, but within the parameters of the "good cause" requirement. The court should also exercise its discretion to aid plaintiff in obtaining the requisite information. To accomplish these goals, the plaintiff must specifically inform the Court of the nature of the information needed as opposed to a general averment that more information is needed. The plaintiff should apprise the court, to the extent that it is known, the identity of the person who has the information and the means necessary to obtain the information, to allow the court to grant an appropriate extension of time. If medical records in the possession of a defendant or non-party must be obtained, the court may issue an order compelling the production of the records. If medical records are non-existent, incomplete, or otherwise inadequate to permit an expert to evaluate the care, the court may, in appropriate circumstances, permit a plaintiff to conduct depositions of parties or non-parties to obtain the information necessary for an expert to complete such a review and provide an affidavit.

Division (D)(2)(b) of the rule sets an outside limit of 90 days to extend the time for the filing of an affidavit of merit, unless the court determines that the defendant or a nonparty in possession of the records has failed to cooperate with discovery, and in that circumstance the court may grant an extension beyond 90 days. This division also vests the trial court with the discretion to determine whether any other circumstances justify granting an extension beyond the 90 days.

The rule is intended to make clear that the affidavit is necessary to establish the sufficiency of the complaint. The failure to comply with the rule can result in the dismissal of the complaint, and this dismissal is considered to be a dismissal otherwise than upon the merits pursuant to Civ.R. 10(D)(2)(d).

Finally, new Civ.R. 10(D)(2)(e) allows a plaintiff a reasonable time, not to exceed sixty days, to cure any defects identified by the court in any affidavit filed with a complaint.

Staff Note (July 1, 2016 Amendment)

Division (D)(2) of this rule applies to medical, dental, optometric, and chiropractic claims, as defined by R.C. 2305.113, and was adopted in 2005 to require that, at the time of the filing of a complaint asserting any such claims, the complaint must be accompanied by certificates of expert review. The rule is amended to remedy an inaccuracy in the prior rule which incorrectly indicated that Evid.R. 601(D) applies to the qualifications of an affiant for all medical, dental, optometric, and chiropractic claims. While Evid.R. 702 applies to the qualifications of an affiant for all medical, dental, optometric, and chiropractic claims, Evid.R. 601(D) applies only to the qualifications of an affiant for certain medical claims. See Evid.R. 601(D).

Staff Note (July 1, 2023 Amendment)

The amendment to division (D)(2)(a) of this rule makes a cross-reference change necessitated by prior amendments to Evid.R. 601.

RULE 11. Signing of Pleadings, Motions, or Other Documents.

Every pleading, motion, or other document of a party represented by an attorney shall be signed, by electronic signature or by hand, by at least one attorney of record in the attorney's individual name, whose address, attorney registration number, telephone number, facsimile number, if any, and business e-mail address, if any, shall be stated. A party who is not represented by an attorney shall sign, by electronic signature or by hand, the pleading, motion, or other document and state the party's address, a telephone number, facsimile number, if any, and personal e-mail address, if any, for service by electronic means under Civ.R. 5(B)(2)(f). Except when otherwise specifically provided by these rules, pleadings, as defined by Civ.R. 7(A), need not be verified or accompanied by affidavit. The signature of an attorney or *pro se* party constitutes a certificate by the attorney or party that the attorney or party has read the document; that to the best of the attorney's or party's knowledge, information, and belief there is good ground to support it; and that it is not interposed for delay. If a document is not signed or is signed with intent to defeat the purpose of this rule, it may be stricken as sham and false and the action may proceed as though the document had not been served. For a willful violation of this rule, an attorney or *pro se* party, upon motion of a party or upon the court's own motion, may be subjected to appropriate action, including an award to the opposing party of expenses and reasonable attorney fees incurred in bringing any motion under this rule. Similar action may be taken if scandalous or indecent matter is inserted.

Effective Date: July 1, 1970
Amended: July 1, 1994; July 1, 1995; July 1, 2001; July 1, 2012; July 1, 2022; July 1, 2023

Staff Note (July 1, 1995 Amendment)

Rule 11 Signing of pleadings, motions, or other papers

The amendment of this rule that took effect July 1, 1994 contained two errors that the 1995 amendment corrects. First, in the next-to-last sentence, the word “a” was erroneously omitted and is reinserted as the second word of the sentence by this amendment. Second, the last sentence, which was contained in the original version of this rule, was erroneously omitted from the 1994 amendment and is restored with this amendment.

Staff Note (July 1, 2001 Amendment)

Civil Rule 11 Signing of pleadings, motions, or other documents

The amendments to this rule were part of a group of amendments that were submitted by the Ohio Courts Digital Signatures Task Force to establish minimum standards for the use of information systems, electronic signatures, and electronic filing. The substantive amendment to this rule was the addition of the requirement that an attorney’s telefax number and e-mail address, if any, be on all documents. Also, “document” was substituted for “paper” in the title and in two places in the text, for consistency with other Rules of Civil Procedure.

As part of this electronic filing and signature project, the following rules were amended effective July 1, 2001: Civil Rules 5, 11, and 73; Criminal Rule 12; Juvenile Rule 8; and Appellate Rules 13 and 18. In addition, Rule 26 of the Rules of Superintendence for Courts of Ohio was amended and Rule of Superintendence 27 was added to complement the rules of procedure. Superintendence Rule 27 establishes a process by which minimum standards for information technology are promulgated, and requires that courts submit any local rule involving the use of information technology to a technology standards committee designated by the Supreme Court for approval.

Staff Note (July 1, 2012 Amendment)

Rule 11 has been amended to permit a party who is not represented by an attorney to designate a facsimile number or e-mail address for purposes of service by electronic means.

The amendment also highlights that the term “pleading” as used in the Ohio Rules of Civil Procedure refers to the six specific documents listed in Civ.R. 7(A), and does not refer to other documents filed or served in the action.

RULE 12. Defenses and Objections--When and How Presented--by Pleading or Motion--Motion for Judgment on the Pleadings.

(A) When answer presented

(1) Generally

The defendant shall serve his answer within twenty-eight days after service of the summons and complaint upon him; if service of notice has been made by publication, he shall serve his answer within twenty-eight days after the completion of service by publication.

(2) Other responses and motions

A party served with a pleading stating a cross-claim against him shall serve an answer thereto within twenty-eight days after the service upon him. The plaintiff shall serve his reply to a counterclaim in the answer within twenty-eight days after service of the answer or, if a reply is ordered by the court, within twenty-eight days after service of the order, unless the order otherwise directs. The service of a motion permitted under this rule alters these periods of time as follows, unless a different time is fixed by order of the court: (a) if the court denies the motion, a responsive pleading, delayed because of service of the motion, shall be served within fourteen days after notice of the court's action; (b) if the court grants a motion, a responsive pleading, delayed because of service of the motion, shall be served within fourteen days after service of the pleading which complies with the court's order.

(B) How presented

Every defense, in law or fact, to a claim for relief in any pleading, whether a claim, counterclaim, cross-claim, or third-party claim, shall be asserted in the responsive pleading thereto if one is required, except that the following defenses may at the option of the pleader be made by motion:

(1) Lack of jurisdiction over the subject matter;

(2) Lack of jurisdiction over the person;

(3) Improper venue;

(4) Insufficiency of process;

(5) Insufficiency of service of process;

(6) Failure to state a claim upon which relief can be granted;

(7) Failure to join a party under Rule 19 or Rule 19.1.

A motion making any of these defenses shall be made before pleading if a further pleading is permitted. No defense or objection is waived by being joined with one or more other defenses or objections in a responsive pleading or motion. If a pleading sets forth a claim for relief to which the adverse party is not required to serve a responsive pleading, he may assert at the trial any defense in law or fact to that claim for relief. When a motion to dismiss for failure to state a claim upon which relief can be granted presents matters outside the pleading and such matters are not excluded by the court, the motion shall be treated as a motion for summary judgment and disposed of as provided in Rule 56. Provided however, that the court shall consider only such matters outside the pleadings as are specifically enumerated in Rule 56. All parties shall be given reasonable opportunity to present all materials made pertinent to such a motion by Rule 56.

(C) Motion for judgment on the pleadings

After the pleadings are closed but within such time as not to delay the trial, any party may move for judgment on the pleadings.

(D) Preliminary hearings

The defenses specifically enumerated (1) to (7) in subdivision (B) of this rule, whether made in a pleading or by motion, and the motion for judgment mentioned in subdivision (C) of this rule shall be heard and determined before trial on application of any party.

(E) Motion for definite statement

If a pleading to which a responsive pleading is permitted is so vague or ambiguous that a party cannot reasonably be required to frame a responsive pleading, he may move for a definite statement before interposing his responsive pleading. The motion shall point out the defects complained of and the details desired. If the motion is granted and the order of the court is not obeyed within fourteen days after notice of the order or within such other time as the court may fix, the court may strike the pleading to which the motion was directed or make such order as it deems just.

(F) Motion to strike

Upon motion made by a party before responding to a pleading or, if no responsive pleading is permitted by these rules, upon motion made by a party within twenty-eight days after the service of the pleading upon him or upon the court's own initiative at any time, the court may order stricken from any pleading any insufficient claim or defense or any redundant, immaterial, impertinent, or scandalous matter.

(G) Consolidation of defenses and objections

A party who makes a motion under this rule must join with it the other motions herein provided for and then available to him. If a party makes a motion under this rule and does not include therein all defenses and objections then available to him which this rule permits to be raised by motion, he shall not thereafter assert by motion or responsive pleading, any of the defenses or objections so omitted, except as provided in subdivision (H) of this rule.

(H) Waiver of defenses and objections

(1) A defense of lack of jurisdiction over the person, improper venue, insufficiency of process, or insufficiency of service of process is waived (a) if omitted from a motion in the circumstances described in subdivision (G), or (b) if it is neither made by motion under this rule nor included in a responsive pleading or an amendment thereof permitted by Rule 15(A) to be made as a matter of course.

(2) A defense of failure to state a claim upon which relief can be granted, a defense of failure to join a party indispensable under Rule 19, and an objection of failure to state a legal defense to a claim may be made in any pleading permitted or ordered under Rule 7(A), or by motion for judgment on the pleadings, or at the trial on the merits.

(3) Whenever it appears by suggestion of the parties or otherwise that the court lacks jurisdiction on the subject matter, the court shall dismiss the action.

Effective Date: July 1, 1970
Amended: July 1, 1983

RULE 13. Counterclaim and Cross-Claim.

(A) Compulsory counterclaims

A pleading shall state as a counterclaim any claim which at the time of serving the pleading the pleader has against any opposing party, if it arises out of the transaction or occurrence that is the subject matter of the opposing party's claim and does not require for its adjudication the presence of third parties of whom the court cannot acquire jurisdiction. But the pleader need not state the claim if (1) at the time the action was commenced the claim was the subject of another pending action, or (2) the opposing party brought suit upon his claim by attachment or other process by which the court did not acquire jurisdiction to render a personal judgment on that claim, and the pleader is not stating any counterclaim under this Rule 13.

(B) Permissive counterclaims

A pleading may state as a counterclaim any claim against an opposing party not arising out of the transaction or occurrence that is the subject matter of the opposing party's claim.

(C) Counterclaim exceeding opposing claim

A counterclaim may or may not diminish or defeat the recovery sought by the opposing party. It may claim relief exceeding in amount or different in kind from that sought in the pleading of the opposing party.

(D) Counterclaim against this state

These rules shall not be construed to enlarge beyond the limits now fixed by law the right to assert counterclaims or to claim credits against this state, a political subdivision or an officer in his representative capacity or agent of either.

(E) Counterclaim maturing or acquired after pleading

A claim which either matured or was acquired by the pleader after serving his pleading may, with the permission of the court, be presented as a counterclaim by supplemental pleadings.

(F) Omitted counterclaim

When a pleader fails to set up a counterclaim through oversight, inadvertence, or excusable neglect, or when justice requires, he may by leave of court set up the counterclaim by amendment.

(G) Cross-claim against co-party

A pleading may state as a cross-claim any claim by one party against a co-party arising out of the transaction or occurrence that is the subject matter either of the original action or of a counterclaim therein or relating to any property that is the subject matter of the original action. Such cross-claim may include a claim that the party against whom it is asserted is or may be liable to the cross-claimant for all or part of a claim asserted in the action against the cross-claimant.

(H) Joinder of additional parties

Persons other than those made parties to the original action may be made parties to a counterclaim or cross-claim in accordance with the provisions of Rule 19, Rule 19.1, and Rule 20. Such persons shall be served pursuant to Rule 4 through Rule 4.6.

(I) Separate trials; separate judgments

If the court orders separate trials as provided in Rule 42(B), judgment on a counterclaim or cross-claim may be rendered in accordance with the terms of Rule 54(B) when the court has jurisdiction so to do, even if the claims of the opposing party have been dismissed or otherwise disposed of.

(J) Certification of proceedings

In the event that a counterclaim, cross-claim, or third-party claim exceeds the jurisdiction of the court, the court shall certify the proceedings in the case to the court of common pleas.

Effective Date: July 1, 1970
Amended: July 1, 1971

RULE 14. Third Party Practice.

(A) When defendant may bring in third party

At any time after commencement of the action a defending party, as a third-party plaintiff, may cause a summons and complaint to be served upon a person not a party to the action who is or may be liable to him for all or part of the plaintiff's claim against him. The third-party plaintiff need not obtain leave to make the service if he files the third-party complaint not later than fourteen days after he serves his original answer. Otherwise he must obtain leave on motion upon notice to all parties to the action. The person served with the summons and third-party complaint, hereinafter called the third-party defendant, shall make his defenses to the third-party plaintiff's claim as provided in Rule 12 and his counterclaims against the third-party plaintiff and cross-claims against other third-party defendants as provided in Rule 13. The third-party defendant may assert against the plaintiff any defenses which the third-party plaintiff has to the plaintiff's claim. The third-party defendant may also assert any claim against the plaintiff arising out of the transaction or occurrence that is the subject matter of the plaintiff's claim against the third-party plaintiff. The plaintiff may assert any claim against the third-party defendant arising out of the transaction or occurrence that is the subject matter of the plaintiff's claim against the third-party plaintiff, and the third-party defendant thereupon shall assert his defenses as provided in Rule 12 and his counterclaims and cross-claims as provided in Rule 13. Any party may move to strike the third-party claim, or for its severance or separate trial. If the third-party defendant is an employee, agent, or servant of the third-party plaintiff, the court shall order a separate trial upon the motion of any plaintiff. A third-party defendant may proceed under this rule against any person not a party to the action who is or may be liable to him for all or part of the claim made in the action against the third-party defendant.

(B) When plaintiff may bring in third party

When a counterclaim is asserted against a plaintiff, he may cause a third party to be brought in under circumstances which under this rule would entitle a defendant to do so.

Effective Date: July 1, 1970

RULE 15. Amended and Supplemental Pleadings.

(A) Amendments

A party may amend its pleading once as a matter of course within twenty-eight days after serving it or, if the pleading is one to which a responsive pleading is required within twenty-eight days after service of a responsive pleading or twenty-eight days after service of a motion under Civ.R. 12(B), (E), or (F), whichever is earlier. In all other cases, a party may amend its pleading only with the opposing party's written consent or the court's leave. The court shall freely give leave when justice so requires. Unless the court orders otherwise, any required response to an amended pleading must be made within the time remaining to respond to the original pleading or within fourteen days after service of the amended pleading, whichever is later.

(B) Amendments to conform to the evidence

When issues not raised by the pleadings are tried by express or implied consent of the parties, they shall be treated in all respects as if they had been raised in the pleadings. Such amendment of the pleadings as may be necessary to cause them to conform to the evidence and to raise these issues may be made upon motion of any party at any time, even after judgment. Failure to amend as provided herein does not affect the result of the trial of these issues. If evidence is objected to at the trial on the ground that it is not within the issues made by the pleadings, the court may allow the pleadings to be amended and shall do so freely when the presentation of the merits of the action will be subserved thereby and the objecting party fails to satisfy the court that the admission of such evidence would prejudice him in maintaining his action or defense upon the merits. The court may grant a continuance to enable the objecting party to meet such evidence.

(C) Relation back of amendments

Whenever the claim or defense asserted in the amended pleading arose out of the conduct, transaction, or occurrence set forth or attempted to be set forth in the original pleading, the amendment relates back to the date of the original pleading. An amendment changing the party against whom a claim is asserted relates back if the foregoing provision is satisfied and, within the period provided by law for commencing the action against him, the party to be brought in by amendment (1) has received such notice of the institution of the action that he will not be prejudiced in maintaining his defense on the merits, and (2) knew or should have known that, but for a mistake concerning the identity of the proper party, the action would have been brought against him.

The delivery or mailing of process to this state, a municipal corporation or other governmental agency, or the responsible officer of any of the foregoing, subject to service of process under Rule 4 through Rule 4.6, satisfies the requirements of clauses (1) and (2) of the preceding paragraph if the above entities or officers thereof would have been proper defendants upon the original pleading. Such entities or officers thereof or both may be brought into the action as defendants.

(D) Amendments where name of party unknown

When the plaintiff does not know the name of a defendant, that defendant may be designated in a pleading or proceeding by any name and description. When the name is discovered, the pleading or proceeding must be amended accordingly. The plaintiff, in such case, must aver in the complaint the fact that he could not discover the name. The summons must contain the words "name unknown," and a copy thereof must be served personally upon the defendant.

(E) Supplemental pleadings

Upon motion of a party the court may, upon reasonable notice and upon such terms as are just, permit him to serve a supplemental pleading setting forth transactions or occurrences or events which have happened since the date of the pleading sought to be supplemented. Permission may be granted even though the original pleading is defective in its statement of a claim for relief or defense. If the court deems it advisable that the adverse party plead to the supplemental pleading, it shall so order, specifying the time therefor.

Effective Date: July 1, 1970
Amended: July 1, 2013

Staff Note (July 1, 2013 Amendment)

Rule 15(A) is amended to allow amendment without leave of court of a complaint, or other pleading requiring a responsive pleading, for a period of 28 days after the service of a responsive pleading or motion. Under the prior rule, amendment without leave of court was limited to pleadings not requiring a response or to which a required response had not been served.

Rule 15(A) is also amended to limit amendment without leave of court of a complaint or other pleading requiring a responsive pleading, to a period of 28 days after service of the pleading when a response has not been served. Under the prior rule, the time for amendment without leave of court under those circumstances was not limited, and could be made at any time prior to service of a response.

The 2013 changes to Civ.R. 15(A) are modeled on the 2009 amendments to Fed.R.Civ.P. 15(a) and made for the same reasons that prompted those amendments.

RULE 16. Pretrial Procedure

(A) Purposes of a pretrial conference

In any action, the court may order the attorneys and any unrepresented parties to appear for one or more pretrial conferences for such purposes as:

(1) Expediting disposition of the action;

(2) Establishing early and continuing control so that the case will not be protracted because of lack of management;

(3) Discouraging wasteful pretrial activities;

(4) Improving the quality of the trial through more thorough preparation; and

(5) Facilitating settlement.

Attorneys, their clients, and unrepresented parties shall endeavor in good faith to agree on all the schedules contemplated by this rule and courts shall consider such agreements in the establishment of any such schedule.

(B) Scheduling

(1) Scheduling Order

Except for matters listed in Civ.R. 1(C), the court shall issue a scheduling order:

(a) After receiving the parties' report under Civ.R. 26(F);

(b) After consulting with the parties' attorneys and any unrepresented parties at a scheduling conference; or

(c) Sua sponte by the court.

(2) Time to Issue

The court shall issue the scheduling order as soon as practicable, but unless the court finds good cause for delay, the court shall issue it within the earlier of 90 days after any defendant has been served with the complaint or 60 days after any defendant has responded to the complaint.

(3) Contents

The scheduling order may:

(a) Limit the time to join other parties, amend the pleadings, complete discovery, and file motions;

(b) Modify the timing of disclosures under Civ.R. 26(B)(3);

(c) Modify the extent of discovery;

(d) Provide for disclosure, discovery, or preservation of electronically stored information;

(e) Direct that before moving for an order relating to discovery, the movant must request a conference with the court;

(f) Set dates for pretrial conferences and for trial; and

(g) Include other appropriate matters.

(4) Modifying a Schedule

A schedule may be modified only for good cause and with the court's consent.

(C) Attendance and matters for consideration at a pretrial conference

(1) Attendance

A represented party must authorize at least one of its attorneys to make stipulations and admissions about all matters that can reasonably be anticipated for discussion at a pretrial conference. If appropriate, the court may require that a party or its representative be present or reasonably available by other means to consider possible settlement.

(2) Matters for Consideration

At any pretrial conference, the court shall consider and take appropriate action on the following matters:

(a) The possibility of settlement of the action;

(b) The simplification of the issues;

(c) Itemizations of expenses and special damages;

(d) The necessity of amendments to the pleadings;

(e) The exchange of medical reports and hospital records (The production by any party of medical reports, medical records, hospital records does not constitute a waiver of the privilege granted under section 2317.02 of the Revised Code.);

(f) The number of expert witnesses;

(g) The preservation of electronically stored information and other information held by the parties or third parties;

(h) The timing, methods of search and production, and the limitations, if any, to be applied to the discovery of documents and electronically stored information;

(i) Disclosure and the exchange of documents obtained through public records requests;

(j) Any agreements or decisions on the sharing or shifting of costs pursuant to Rule 26(C)(2);

(k) The adoption of any agreements by the parties for asserting claims of privilege or for protecting designated materials after production;

(l) The imposition of sanctions as authorized by Civ.R. 37;

(m) The possibility of obtaining:

(i) Admissions of fact;

(ii) Agreements on admissibility of documents and other evidence to avoid unnecessary testimony or other proof during trial.

(n) Disposing of pending motions;

(o) Determination of the applicable deadline for disposition of the case pursuant to Sup.R. 5.21 and 5.22, and a timetable for:

(i) Initial disclosures of known and reasonably available non-privileged, non-work product documents and things that support or contradict the specifically pleaded claims and defenses;

(ii) Joining parties;

(iii) Amending the pleadings;

(iv) Mediation or other alternative dispute resolution requested by parties;

(v) Exchanging lists of lay witnesses, expert witnesses and reports, and exhibits for trial;

(vi) Completing discovery;

(vii) Filing of motions, responses, replies and decisions;

(viii) Further case management conferences; and

(ix) A trial date, preferably one agreed-upon by the parties.

(p) Facilitating in other ways, the just, speedy, and inexpensive disposition of the action.

(D) Pretrial orders

After any conference under this rule, the court should issue an order reciting the action taken. This order controls the course of the action unless the court modifies it.

(E) Final pretrial conference and orders

The court may hold a final pretrial conference to formulate a trial plan, including a plan to facilitate the admission of evidence. The conference must be held as close to the start of trial as is reasonable, and must be attended by at least one attorney who will conduct the trial for each party and by any unrepresented party. The court may modify the order issued after a final pretrial conference only to prevent manifest injustice.

Effective Date: July 1, 1970
Amended: July 1, 1993; July 1, 2008; July 1, 2020; July 1, 2021

Staff Note (July 1, 2008 Amendment)

New subsections (8) and (9) are added to clarify that issues relating to discovery of documents and electronically stored information are appropriate topics for discussion and resolution during pretrial conferences. Other linguistic changes, including those made to the subsections (7), (11) and (12) and to the final paragraph of Rule 16, are stylistic rather than substantive.

Staff Note (July 1, 2020 Amendment)

Civ.R. 16 has been amended to bring the Ohio rule closer to the federal rule, while still allowing for Ohio courts to decide whether to hold a scheduling conference. Civ.R. 16(A) lists several

purposes for why a scheduling conference may be held. In addition, the last paragraph of Civ.R. 16(A) provides that parties will attempt to agree on the schedules contemplated by Civ.R. 16, and courts will endeavor to respect the agreements of the parties. This paragraph is consistent with the concept of shared responsibility among parties and courts in Civ.R. 1.

Similar to the prior version of Civ.R. 16, Civ.R. 16(A) still provides that holding a scheduling conference is permissive, not mandatory. However, Civ.R. 16(B) requires that in all cases, except those set forth in Civ.R. 1(C), a scheduling order must be issued by the court. The purpose of this requirement is to promote greater consistency, predictability, and transparency for attorneys, parties, and unrepresented parties in courts across Ohio.

Civ.R. 16(B)(1) clarifies that a scheduling order must be issued after the court receives the parties' Civ.R. 26(F) report or after the court holds a scheduling conference. If no report is submitted or the court does not hold a scheduling conference, the court must issue the scheduling order sua sponte.

Civ.R. 16(B)(2) specifies the timing requirements by which a scheduling order must be issued, based on the date that any defendant has been served with the complaint or that any defendant has responded to the complaint. This subsection does not require a court to wait for all defendants to be served with the complaint or respond to the complaint before entering a scheduling order.

Civ.R. 16(B)(3) lists potential content that a court may include in a scheduling order.

Civ.R. 16(C) describes a variety of items that a court may address at a scheduling conference, including a timetable to address deadlines for discovery and various disclosures, dispositive motions, and trial. Many of the items now listed in Civ.R. 16(C) were included in the prior version of Civ.R. 16.

Civ.R. 16(E) and (F) are identical to these same subsections in the federal rule.

Staff Note (July 1, 2022 Amendment)

Conferences pursuant to this rule may be held by physical or remote presence, in the discretion of the presiding judicial officer.

TITLE IV. PARTIES.

RULE 17. Parties Plaintiff and Defendant; Capacity.

(A) Real party in interest

Every action shall be prosecuted in the name of the real party in interest. An executor, administrator, guardian, bailee, trustee of an express trust, a party with whom or in whose name a contract has been made for the benefit of another, or a party authorized by statute may sue in his name as such representative without joining with him the party for whose benefit the action is brought. When a statute of this state so provides, an action for the use or benefit of another shall be brought in the name of this state. No action shall be dismissed on the ground that it is not prosecuted in the name of the real party in interest until a reasonable time has been allowed after objection for ratification of commencement of the action by, or joinder or substitution of, the real party in interest. Such ratification, joinder, or substitution shall have the same effect as if the action had been commenced in the name of the real party in interest.

(B) Minors or incompetent persons

Whenever a minor or incompetent person has a representative, such as a guardian or other like fiduciary, the representative may sue or defend on behalf of the minor or incompetent person. If a minor or incompetent person does not have a duly appointed representative the minor may sue by a next friend or defend by a guardian ad litem. When a minor or incompetent person is not otherwise represented in an action the court shall appoint a guardian ad litem or shall make such other order as it deems proper for the protection of such minor or incompetent person.

Effective Date: July 1, 1970
Amended: July 1, 1975; July 1, 1985

RULE 18. Joinder of Claims and Remedies.

(A) Joinder of claims

A party asserting a claim to relief as an original claim, counterclaim, cross-claim, or third-party claim, may join, either as independent or as alternate claims, as many claims, legal or equitable, as he has against an opposing party.

(B) Joinder of remedies; fraudulent conveyances

Whenever a claim is one heretofore cognizable only after another claim has been prosecuted to a conclusion, the two claims may be joined in a single action; but the court shall grant relief in that action only in accordance with the relative substantive rights of the parties. In particular, a plaintiff may state a claim for money and a claim to have set aside a conveyance fraudulent as to him, without first having obtained a judgment establishing the claim for money.

Effective Date: July 1, 1970

RULE 19. Joinder of Persons Needed for Just Adjudication.

(A) Persons to be joined if feasible

A person who is subject to service of process shall be joined as a party in the action if (1) in his absence complete relief cannot be accorded among those already parties, or (2) he claims an interest relating to the subject of the action and is so situated that the disposition of the action in his absence may (a) as a practical matter impair or impede his ability to protect that interest or (b) leave any of the persons already parties subject to a substantial risk of incurring double, multiple, or otherwise inconsistent obligations by reason of his claimed interest, or (3) he has an interest relating to the subject of the action as an assignor, assignee, subrogor, or subrogee. If he has not been so joined, the court shall order that he be made a party upon timely assertion of the defense of failure to join a party as provided in Rule 12(B)(7). If the defense is not timely asserted, waiver is applicable as provided in Rule 12(G) and (H). If he should join as a plaintiff but refuses to do so, he may be made a defendant, or, in a proper case, an involuntary plaintiff. In the event that such joinder causes the relief sought to exceed the jurisdiction of the court, the court shall certify the proceedings in the action to the court of common pleas.

(B) Determination by court whenever joinder not feasible

If a person as described in subdivision (A)(1), (2), or (3) hereof cannot be made a party, the court shall determine whether in equity and good conscience the action should proceed among the parties before it, or should be dismissed, the absent person being thus regarded as indispensable. The factors to be considered by the court include: first, to what extent a judgment rendered in the person's absence might be prejudicial to him or those already parties; second, the extent to which, by protective provisions in the judgment, by the shaping of relief, or other measures, the prejudice can be lessened or avoided; third, whether a judgment rendered in the person's absence will be adequate; fourth, whether the plaintiff will have an adequate remedy if the action is dismissed for nonjoinder.

(C) Pleading reasons for nonjoinder

A pleading asserting a claim for relief shall state the names, if known to the pleader, of any persons as described in subdivision (A)(1), (2), or (3) hereof who are not joined, and the reasons why they are not joined.

(D) Exception of class actions

This rule is subject to the provisions of Rule 23.

Effective Date: July 1, 1970

RULE 19.1. Compulsory Joinder.

(A) Persons to be joined

A person who is subject to service of process shall be joined as a party in the action, except as provided in division (B) of this rule, if the person has an interest in or a claim arising out of the following situations:

(1) Personal injury or property damage to the person or property of the decedent which survives the decedent's death and a claim for wrongful death to the same decedent if caused by the same wrongful act;

(2) Personal injury or property damage to a spouse and a claim of the other spouse for loss of consortium or expenses or property damage if caused by the same wrongful act;

(3) Personal injury or property damage to a minor and a claim of the parent or guardian of the minor for loss of consortium or expenses or property damage if caused by the same wrongful act;

(4) Personal injury or property damage to an employee or agent and a claim of the employer or principal for property damage if caused by the same wrongful act.

(5) Personal injury to a parent and a claim of an adult emancipated child of the parent for loss of parental consortium if caused by the same wrongful act.

If the person has not been so joined, the court, subject to division (B) of this rule, shall order that the person be made a party upon timely assertion of the defense of failure to join a party as provided in Civ.R. 12(B)(7). If the defense is not timely asserted, waiver is applicable as provided in Civ.R. 12(G) and (H). If the person should join as a plaintiff but refuses to do so, the person may be made a defendant, or, in a proper case, an involuntary plaintiff. In the event that such joinder causes the relief sought to exceed the jurisdiction of the court, the court shall certify the proceedings in the action to the court of common pleas.

(B) Exception to compulsory joinder

If a party to the action or a person described in ~~s~~ division (A) shows good cause why that person should not be joined, the court shall proceed without requiring joinder.

(C) Pleading reasons for nonjoinder

A pleading asserting a claim for relief shall state the names, if known to the pleader, of any persons as described in divisions (A)(1), (2), (3), or (4) of this rule who are not joined, and the reasons why they are not joined.

(D) Exception of class actions

This rule is subject to the provisions of Rule 23.

Effective Date: July 1, 1970
Amended: July 1, 1996; July 1, 2016; July 1, 2017

Staff Note (July 1, 1996 Amendment)

Rule 19.1(A) Persons to be joined

The amendment conforms the rule to a clarification of law in the Supreme Court's decision in *Gallimore v. Children's Hosp. Med. Ctr.* (1993), 67 Ohio St.3d 244, 617 N.E.2d 1052. There, the Court stated in both syllabi that "Consortium includes society, companionship, affection, comfort, guidance and counsel." Since the word "consortium" is more inclusive than the word "services," it is more appropriate to use the former term. The amendment should avoid confusion between the rule and the substantive law in this regard.

Staff Note (July 1, 2016 Amendment)

The rule is amended to make gender neutral language changes, including at division 19.1(A)(2) where "spouse " is substituted for "husband or wife" as a person to be joined in particular actions. The amendments are made accordance with the July 26, 2015 Administrative Action of the Ohio Supreme Court, *06/26/2015 Administrative Actions*, 2015-Ohio-2568, which ordered that the Ohio Rules of Civil Procedure be construed and amended as gender neutral where appropriate to comply with the decision of U.S. Supreme Court in *Obergefell v. Hodges*, 576 U.S. ___ , 135 S.Ct. 2584 (2015). The amendments also make non-substantive stylistic changes to the rule.

Staff Note (July 1, 2017 Amendment)

Civ.R. 19.1(A)(5). Claims of adult emancipated children for loss of parental consortium.

In *Rolf v. Tri State Motor Transit Co.*, 91 Ohio St.3d 380, 2001-Ohio-44, the Supreme Court of 59 Ohio held that adult emancipated children may recover under Ohio law for the loss of parental 60 consortium caused by injuries to a parent. The 2017 amendments add those claims to the claims 61 enumerated under Civ.R. 19.1(A). The amendments also make other nonsubstantive changes.

RULE 20. Permissive Joinder of Parties.

(A) Permissive joinder

All persons may join in one action as plaintiffs if they assert any right to relief jointly, severally, or in the alternative in respect of or arising out of the same transaction, occurrence, or succession or series of transactions or occurrences and if any question of law or fact common to all these persons will arise in the action. All persons may be joined in one action as defendants if there is asserted against them jointly, severally, or in the alternative, any right to relief in respect of or arising out of the same transaction, occurrence, or succession or series of transactions or occurrences and if any question of law or fact common to all defendants will arise in the action. A plaintiff or defendant need not be interested in obtaining or defending against all the relief demanded. Judgment may be given for one or more of the plaintiffs according to their respective rights to relief, and against one or more defendants according to their respective liabilities.

(B) Separate trials

The court may make such orders as will prevent a party from being prejudiced, delayed, or put to expense by the inclusion of a party against whom he asserts no claim and who asserts no claim against him, and may order separate trials or make other orders to prevent prejudice or delay.

Effective Date: July 1, 1970

RULE 21. Misjoinder and Nonjoinder of Parties.

Misjoinder of parties is not ground for dismissal of an action. Parties may be dropped or added by order of the court on motion of any party or of its own initiative at any stage of the action and on such terms as are just. Any claim against a party may be severed and proceeded with separately.

Effective Date: July 1, 1970

RULE 22. Interpleader.

Persons having claims against the plaintiff may be joined as defendants and required to interplead when their claims are such that the plaintiff is or may be exposed to double or multiple liability. It is not ground for objection to the joinder that the claims of the several claimants or the titles on which their claims depend do not have a common origin or are not identical but are adverse to and independent of one another, or that the plaintiff avers that he is not liable in whole or in part to any or all of the claimants. A defendant exposed to similar liability may obtain such interpleader by way of cross-claim or counterclaim. The provisions of this rule supplement and do not in any way limit the joinder of parties permitted in Rule 20.

In such an action in which any part of the relief sought is a judgment for a sum of money or the disposition of a sum of money or the disposition of any other thing capable of delivery, a party may deposit all or any part of such sum or thing with the court upon notice to every other party and leave of court. The court may make an order for the safekeeping, payment or disposition of such sum or thing.

Effective Date: July 1, 1970

RULE 23. Class Actions.

(A) Prerequisites

One or more members of a class may sue or be sued as representative parties on behalf of all members only if:

(1) The class is so numerous that joinder of all members is impracticable;

(2) There are questions of law or fact common to the class;

(3) The claims or defenses of the representative parties are typical of the claims or defenses of the class;

(4) The representative parties will fairly and adequately protect the interests of the class.

(B) Types of class actions

A class action may be maintained if Civ.R. 23(A) is satisfied, and if:

(1) Prosecuting separate actions by or against individual class members would create a risk of:

(a) Inconsistent or varying adjudications with respect to individual class members that would establish incompatible standards of conduct for the party opposing the class; or

(b) Adjudications with respect to individual class members that, as a practical matter, would be dispositive of the interests of the other members not parties to the individual adjudications or would substantially impair or impede their ability to protect their interests; or

(2) The party opposing the class has acted or refused to act on grounds that apply generally to the class, so that final injunctive relief or corresponding declaratory relief is appropriate respecting the class as a whole; or

(3) The court finds that the questions of law or fact common to class members predominate over any questions affecting only individual members, and that a class action is superior to other available methods for fairly and efficiently adjudicating the controversy. The matters pertinent to these findings include:

(a) The class members' interests in individually controlling the prosecution or defense of separate actions;

(b) The extent and nature of any litigation concerning the controversy already begun by or against class members;

(c) The desirability or undesirability of concentrating the litigation of the claims in the particular forum; and

(d) The likely difficulties in managing a class action.

(C) Certification order; notice to class members; judgment; issues classes; subclasses

(1) Certification order

(a) Time to issue

At an early practicable time after a person sues or is sued as a class representative, the court shall determine by order whether to certify the action as a class action.

(b) Defining the class; appointing class counsel

An order that certifies a class action shall define the class and the class claims, issues, or defenses, and shall appoint class counsel under Civ.R. 23(F).

(c) Altering or amending the order

An order that grants or denies class certification may be altered or amended before final judgment.

(2) Notice

(a) For (B)(1) or (B)(2) classes

For any class certified under Civ.R. 23(B)(1) or (B)(2), the court may direct appropriate notice to the class.

(b) For (B)(3) classes

For any class certified under Civ.R. 23(B)(3), the court shall direct to class members the best notice that is practicable under the circumstances, including individual notice to all members who can be identified through reasonable effort. The notice shall clearly and concisely state in plain, easily understood language:

(i) The nature of the action;

(ii) The definition of the class certified;

(iii) The class claims, issues, or defenses;

(iv) That a class member may enter an appearance through an attorney if the member so desires;

(v) That the court will exclude from the class any member who requests exclusion;

(vi) The time and manner for requesting exclusion; and

(vii) The binding effect of a class judgment on members under Civ.R. 23(C)(3).

(3) Judgment

Whether or not favorable to the class, the judgment in a class action shall:

(a) For any class certified under Civ.R. 23(B)(1) or (B)(2), include and describe those whom the court finds to be class members; and

(b) For any class certified under Civ.R. 23(B)(3), include and specify or describe those to whom the Civ.R. 23(C)(2) notice was directed, who have not requested exclusion, and whom the court finds to be class members.

(4) Particular issues

When appropriate, an action may be brought or maintained as a class action with respect to particular issues.

(5) Subclasses

When appropriate, a class may be divided into subclasses that are each treated as a class under this rule.

(D) Conducting the action

(1) In general

In conducting an action under this rule, the court may issue orders that:

(a) Determine the course of proceedings or prescribe measures to prevent undue repetition or complication in presenting evidence or argument;

(b) Require to protect class members and fairly conduct the action giving appropriate notice to some or all class members of:

(i) Any step in the action;

(ii) The proposed extent of the judgment; or

(iii) The members' opportunity to signify whether they consider the representation fair and adequate, to intervene and present claims or defenses, or to otherwise come into the action;

(c) Impose conditions on the representative parties or on intervenors;

(d) Require that the pleadings be amended to eliminate allegations about representation of absent persons, and that the action proceed accordingly; or

(e) Deal with similar procedural matters.

(2) Combining and amending orders

An order under Civ.R. 23(D)(1) may be altered or amended from time to time and may be combined with an order under Civ.R. 16.

(E) Settlement, voluntary dismissal, or compromise

The claims, issues, or defenses of a certified class may be settled, voluntarily dismissed, or compromised only with the court's approval. The following procedures apply to a proposed settlement, voluntary dismissal, or compromise:

(1) The court shall direct notice in a reasonable manner to all class members who would be bound by the proposal.

(2) If the proposal would bind class members, the court may approve it only after a hearing and on finding that it is fair, reasonable, and adequate.

(3) The parties seeking approval shall file a statement identifying any agreement made in connection with the proposal.

(4) If the class action was previously certified under Civ.R. 23(B)(3), the court may refuse to approve a settlement unless it affords a new opportunity to

request exclusion to individual class members who had an earlier opportunity to request exclusion but did not do so.

(5) Any class member may object to the proposal if it requires court approval under this division (E); the objection may be withdrawn only with the court's approval.

(F) Class counsel

(1) Appointing class counsel

A court that certifies a class shall appoint class counsel. In appointing class counsel, the court:

(a) Shall consider:

(i) The work counsel has done in identifying or investigating potential claims in the action;

(ii) Counsel’s experience in handling class actions, other complex litigation, and the types of claims asserted in the action;

(iii) Counsel’s knowledge of the applicable law; and

(iv) The resources that counsel will commit to representing the class;

(b) May consider any other matter pertinent to counsel's ability to fairly and adequately represent the interests of the class;

(c) May order potential class counsel to provide information on any subject pertinent to the appointment and to propose terms for attorney's fees and nontaxable costs;

(d) May include in the appointing order provisions about the award of attorney's fees or nontaxable costs under Civ.R. 23(G); and

(e) May make further orders in connection with the appointment.

(2) Standard for appointing class counsel

When one applicant seeks appointment as class counsel, the court may appoint that applicant only if the applicant is adequate under Civ.R. 23(F)(1) and (4). If more than one adequate applicant seeks appointment, the court shall appoint the applicant best able to represent the interests of the class.

(3) Interim counsel

The court may designate interim counsel to act on behalf of a putative class before determining whether to certify the action as a class action.

(4) Duty of class counsel

Class counsel shall fairly and adequately represent the interests of the class.

(G) Attorney fees and nontaxable costs

In a certified class action, the court may award reasonable attorney's fees and nontaxable costs that are authorized by law or by the parties' agreement. The following procedures apply:

(1) A claim for an award shall be made by motion. Notice of the motion shall be served on all parties and, for motions by class counsel, directed to class members in a reasonable manner.

(2) A class member, or a party from whom payment is sought, may object to the motion.

(3) The court may hold a hearing and shall state in writing the findings of fact found separately from the conclusions of law.

(4) The court may refer issues related to the amount of the award to a magistrate as provided in Civ.R. 53.

(H) Aggregation of claims

The claims of the class shall be aggregated in determining the jurisdiction of the court.

Effective Date: July 1, 1970
Amended: July 1, 2015

Staff Note (July 1, 2015 Amendment)

The rule is amended to conform its provisions to the changes made to Federal Rule 23 since the 1970 adoption of the Ohio Rule. While Civ.R. 23 has remained unchanged since its adoption, the Federal rule, upon which the Ohio rule was originally modeled, has undergone significant changes to guide courts and parties in the conduct of class actions, most notably the substantive amendments made to the Federal rule in 1998 and the stylistic changes made in 2007. The changes to the Ohio rule include defining the class and appointing class counsel in the certification order; additional detail for the initial notice to Civ.R. 23(B)(3) class members and for the notice of a proposed settlement, voluntary dismissal, or compromise; and new provisions addressing the appointment of class counsel and the awarding of attorney fees and nontaxable costs.

RULE 23.1. Derivative Actions by Shareholders.

In a derivative action brought by one or more legal or equitable owners of shares to enforce a right of a corporation, the corporation having failed to enforce a right which may properly be asserted by it, the complaint shall be verified and shall allege that the plaintiff was a shareholder at the time of the transaction of which he complains or that his share thereafter devolved on him by operation of law. The complaint shall also allege with particularity the efforts, if any, made by the plaintiff to obtain the action he desires from the directors and, if necessary, from the shareholders and the reasons for his failure to obtain the action or for not making the effort. The derivative action may not be maintained if it appears that the plaintiff does not fairly and adequately represent the interests of the shareholders similarly situated in enforcing the right of the corporation. The action shall not be dismissed or compromised without the approval of the court, and notice of the proposed dismissal or compromise shall be given to shareholders in such manner as the court directs.

Effective Date: July 1, 1970

RULE 24. Intervention.

(A) Intervention of right

Upon timely application anyone shall be permitted to intervene in an action: (1) when a statute of this state confers an unconditional right to intervene; or (2) when the applicant claims an interest relating to the property or transaction that is the subject of the action and the applicant is so situated that the disposition of the action may as a practical matter impair or impede the applicant's ability to protect that interest, unless the applicant's interest is adequately represented by existing parties.

(B) Permissive intervention

Upon timely application anyone may be permitted to intervene in an action: (1) when a statute of this state confers a conditional right to intervene; or (2) when an applicant's claim or defense and the main action have a question of law or fact in common. When a party to an action relies for ground of claim or defense upon any statute or executive order administered by a federal or state governmental officer or agency or upon any regulation, order, requirement or agreement issued or made pursuant to the statute or executive order, the officer or agency upon timely application may be permitted to intervene in the action. In exercising its discretion the court shall consider whether the intervention will unduly delay or prejudice the adjudication of the rights of the original parties.

(C) Procedure

A person desiring to intervene shall serve a motion to intervene upon the parties as provided in Civ.R. 5. The motion and any supporting memorandum shall state the grounds for intervention and shall be accompanied by a pleading, as defined in Civ.R. 7(A), setting forth the claim or defense for which intervention is sought. The same procedure shall be followed when a statute of this state gives a right to intervene.

Effective Date: July 1, 1970
Amended: July 1, 1999

Staff Note (July 1, 1999 Amendment)

Rule 24(A) Intervention of right

Masculine references were made gender-neutral; there were no substantive amendments to this division.

Rule 24(C) Procedure

The 1999 amendment was intended to clarify that the "pleading" to be filed with a motion to intervene requires more than just a memorandum in support of the motion to intervene. The Note following Form 17 in the Appendix of Forms was amended accordingly.

RULE 25. Substitution of Parties.

(A) Death

(1) If a party dies and the claim is not thereby extinguished, the court shall, upon motion, order substitution of the proper parties. The motion for substitution may be made by any party or by the successors or representatives of the deceased party and shall be served on the parties as provided in Civ.R. 5 and upon persons not parties in the manner provided in Civ.R. 4 through Civ.R. 4.6 for the service of summons. Unless the motion for substitution is made not later than ninety days after the death is suggested upon the record by service of a statement of the fact of the death as provided herein for the service of the motion, the action shall be dismissed as to the deceased party.

(2) In the event of the death of one or more of the plaintiffs or of one or more of the defendants in an action in which the right sought to be enforced survives only to the surviving plaintiffs or only against the surviving defendants, the action does not abate. The death shall be suggested upon the record and the action shall proceed in favor of or against the surviving parties.

(B) Incompetency

If a party is adjudged incompetent, the court upon motion served as provided in division (A) of this rule shall allow the action to be continued by or against the party's representative.

(C) Transfer of interest

In case of any transfer of interest, the action may be continued by or against the original party, unless the court upon motion directs the person to whom the interest is transferred to be substituted in the action or joined with the original party. Service of the motion shall be made as provided in division (A) of this rule.

(D) Public officers; death or separation from office

(1) When a public officer is a party to an action in the public officer's official capacity and during its pendency dies, resigns, or otherwise ceases to hold office, the action does not abate and the public officer's successor is automatically substituted as a party. Proceedings following the substitution shall be in the name of the substituted party, but any misnomer not affecting the substantial rights of the parties shall be disregarded. An order of substitution may be entered at any time, but the omission to enter such an order shall not affect the substitution.

(2) When a public officer sues or is sued in the public officer's official capacity, the public officer may be described as a party by official title rather than by name. The court however may require the addition of the public officer's name.

(E) Suggestion of death or incompetency

Upon the death or incompetency of a party it shall be the duty of the attorney of record for that party to suggest such fact upon the record within fourteen days after the attorney acquires actual knowledge of the death or incompetency of that party. The suggestion of death or incompetency shall be served on all other parties as provided in Civ.R. 5.

Effective Date: July 1, 1970
Amended: July 1, 2015

Staff Note (July 1, 2015 Amendment)

Rule 25(A) is amended by eliminating the reference to a requirement for service of a "notice of hearing" which is no longer required by Civ.R. 6(B).

TITLE V. DISCOVERY.

RULE 26. General Provisions Governing Discovery.

(A) Policy; discovery methods

It is the policy of these rules (1) to preserve the right of attorneys to prepare cases for trial with that degree of privacy necessary to encourage them to prepare their cases thoroughly and to investigate not only the favorable but the unfavorable aspects of such cases and (2) to prevent an attorney from taking undue advantage of an adversary's industry or efforts.

Parties may obtain discovery by one or more of the following methods: deposition upon oral examination or written questions; written interrogatories; production of documents, electronically stored information, or things or permission to enter upon land or other property, for inspection and other purposes; physical and mental examinations; and requests for admission. Unless the court orders otherwise, the frequency of use of these methods is not limited.

(B) Scope of discovery

Unless otherwise ordered by the court in accordance with these rules, the scope of discovery is as follows:

(1) In General

Unless otherwise limited by court order, the scope of discovery is as follows: Parties may obtain discovery regarding any nonprivileged matter that is relevant to any party's claim or defense and proportional to the needs of the case, considering the importance of the issues at stake in the action, the amount in controversy, the parties' relative access to relevant information, the parties' resources, the importance of the discovery in resolving the issues, and whether the burden or expense of the proposed discovery outweighs its likely benefit. Information within this scope of discovery need not be admissible in evidence to be discoverable.

(2) Insurance agreements

A party may obtain discovery of the existence and contents of any insurance agreement under which any person carrying on an insurance business may be liable to satisfy part or all of a judgment which may be entered in the action or to indemnify or reimburse for payments made to satisfy the judgment. Information concerning the insurance agreement is not by reason of disclosure subject to comment or admissible in evidence at trial.

(3) Initial Disclosure by a Party

(a) Without awaiting a discovery request, a party must provide to the other parties, except as exempted by Civ.R. 26(B)(3)(b) or as otherwise stipulated, or ordered by the court:

(i) The name and, if known, the address, telephone number, and e-mail address of each individual likely to have discoverable information - along with the subjects of that information - that the disclosing party may use to support its claims or defenses, unless the use would be solely for impeachment;

(ii) A copy - or a description by category and location - of all documents, electronically stored information, and tangible things that the disclosing party has in its possession, custody, or control and may use to support its claims or defenses, unless the use would be solely for impeachment;

(iii) A computation of each category of damages claimed by the disclosing party - who must also make available for inspection and copying as under Civ.R. 34 the documents or other evidentiary material, unless privileged or protected from disclosure, on which each computation is based, including materials bearing on the nature and extent of injuries suffered; and

(iv) For inspection and copying as under Civ.R. 34, any insurance agreement under which an insurance business may be liable to satisfy all or part of a possible judgment in the action or to indemnify or reimburse for payments made to satisfy the judgment.

(b) The following proceedings are exempt from initial disclosure:

(i) An action for review on an administrative record;

(ii) An action brought without an attorney by a person in the custody of the United States, a state, or a state subdivision;

(iii) An action to enforce or quash an administrative summons or subpoena;

(iv) A proceeding ancillary to a proceeding in another court; and

(v) An action to enforce an arbitration award.

(c) A party must make the initial disclosures no later than the parties' first pre-trial or case management conference, unless a different time is set by stipulation or court order, or unless a party objects. In ruling on the objection, the court must determine what disclosures, if any, are to be made and must set the time for disclosure.

(d) A party that is first served or otherwise joined after the first pre-trial or case management conference must make the initial disclosures within 30 days after being served or joined, unless a different time is set by stipulation or court order.

(e) A party must make its initial disclosures based on the information then reasonably available to it. A party is not excused from making its disclosures because it has not fully investigated the case or because it challenges the sufficiency of another party's disclosures or because another party has not made its disclosures.

(4) Trial preparation: materials

Subject to the provisions of subdivision (B)(5) and (6) of this rule, a party may obtain discovery of documents, electronically stored information and tangible things prepared in anticipation of litigation or for trial by or for another party or by or for that other party's representative (including his attorney, consultant, surety, indemnitor, insurer, or agent) only upon a showing of good cause therefor. A statement concerning the action or its subject matter previously given by the party seeking the statement may be obtained without showing good cause. A statement of a party is (a) a written statement signed or otherwise adopted or approved by the party, or (b) a stenographic, mechanical, electrical, or other recording, or a transcription thereof, which is a substantially verbatim recital of an oral statement which was made by the party and contemporaneously recorded.

(5) Specific limitations on electronically stored information

A party need not provide discovery of electronically stored information from sources that the party identifies as not reasonably accessible because of undue burden or cost. On motion to compel discovery or for a protective order, the party from whom discovery is sought must show that the information is not reasonably accessible because of undue burden or cost. If that showing is made, the court may nonetheless order discovery from

such sources if the requesting party shows good cause, considering the limitations of Rule 26(B)(6). The court may specify conditions for the discovery.

(6) Limitations on Frequency and Extent

(a) When Permitted

By order, the court may limit the number of depositions, requests under Rule 36, and interrogatories or the length of depositions.

(b) When Required

On motion or on its own, the court must limit the frequency or extent of discovery otherwise allowed by these rules or by local rule if it determines that:

(i) The discovery sought is unreasonably cumulative or duplicative, or can be obtained from some other source that is more convenient, less burdensome, or less expensive;

(ii) The party seeking discovery has had ample opportunity to obtain the information by discovery in the action; or

(iii) The proposed discovery is outside the scope permitted by Rule 26(B)(1).

(c) In ordering production of electronically stored information, the court may specify the format, extent, timing, allocation of expenses and other conditions for the discovery of the electronically stored information.

(7) Disclosure of Expert Testimony

(a) A party must disclose to the other parties the identity of any witness it may use at trial to present evidence under Ohio Rule of Evidence 702, 703, or 705.

(b) The reports of expert witnesses expected to be called by each party shall be exchanged with all other parties. The parties shall submit expert reports and curricula vitae in accordance with the time schedule established by the Court. The party with the burden of proof as to a particular issue shall be required to first submit expert reports as to that issue. Thereafter, the responding party shall submit

opposing expert reports within the schedule established by the Court.

(c) Other than under subsection (d), a party may not call an expert witness to testify unless a written report has been procured from the witness and provided to opposing counsel. The report of an expert must disclose a complete statement of all opinions and the basis and reasons for them as to each matter on which the expert will testify. It must also state the compensation for the expert's study or testimony. Unless good cause is shown, all reports and, if applicable, supplemental reports must be supplied no later than thirty (30) days prior to trial. An expert will not be permitted to testify or provide opinions on matters not disclosed in his or her report.

(d) Healthcare Providers. A witness who has provided medical, dental, optometric, chiropractic, or mental health care may testify as an expert and offer opinions as to matters addressed in the healthcare provider's records. Healthcare providers' records relevant to the case shall be provided to opposing counsel in lieu of an expert report in accordance with the time schedule established by the Court.

(e) A party may take a discovery deposition of their opponent's expert witness only after the mutual exchange of reports has occurred unless the expert is a healthcare provider permitted to testify as an expert under subsection (d). Upon good cause shown, additional time after submission of both sides' expert reports will be provided for these discovery depositions if requested by a party. If a party chooses not to hire an expert in opposition to an issue, that party will be permitted to take the discovery deposition of the proponent's expert.

(f) Drafts of any report provided by any expert, regardless of the form in which the draft is recorded, are protected by division (B)(4) of this rule.

(g) Communications between a party's attorney and any witness identified as an expert witness under division (B)(7) of this rule regardless of the form of the communications, are protected by division (B)(4) of this rule except to the extent that the communications:

(i) Relate to compensation for the expert's study or testimony;

(ii) Identify facts or data that the party's attorney provided and that the expert considered in forming the opinions to be expressed; or

(iii) Identify assumptions that the party's attorney provided and that the expert relied on in forming the opinions to be expressed.

(h) Expert Employed Only for Trial Preparation. Ordinarily, a party may not, by interrogatories or deposition, discover facts known or opinions held by an expert who has been retained or specially employed by another party in anticipation of litigation or to prepare for trial and who is not expected to be called as a witness at trial. But a party may do so only:

(i) As provided in Civ.R. 35(B); or

(ii) On showing exceptional circumstances under which, it is impracticable for the party to obtain facts or opinions on the same subject by other means.

(iii) The party seeking discovery under division (B)(7) of this rule shall pay the expert a reasonable fee for time spent in deposition.

(8) Claims of privilege or protection of trial-preparation materials

(a) Information withheld

When information subject to discovery is withheld on a claim that it is privileged or subject to protection as trial preparation materials, the claim shall be made expressly and shall be supported by a description of the nature of the documents, communications, or things not produced that is sufficient to enable the demanding party to contest the claim.

(b) Information produced

If information is produced in discovery that is subject to a claim of privilege or of protection as trial preparation material, the party making the claim may notify any party that received the information of the claim and the basis for it. After being notified, a receiving party must promptly return, sequester, or destroy the specified information and any copies within the party's possession, custody or control. A party may not use or disclose the information until the claim is resolved. A receiving party may promptly present the

information to the court under seal for a determination of the claim of privilege or of protection as trial preparation material. If the receiving party disclosed the information before being notified, it must take reasonable steps to retrieve it. The producing party must preserve the information until the claim is resolved.

(C) Protective orders

Upon motion by any party or by the person from whom discovery is sought, and for good cause shown, the court in which the action is pending may make any order that justice requires to protect a party or person from annoyance, embarrassment, oppression, or undue burden or expense, including one or more of the following:

(1) That the discovery not be had;

(2) That the discovery may be had only on specified terms and conditions, including a designation of the time or place or the allocation of expenses;

(3) That the discovery may be had only by a method of discovery other than that selected by the party seeking discovery;

(4) That certain matters not be inquired into or that the scope of the discovery be limited to certain matters;

(5) That discovery be conducted with no one present except persons designated by the court;

(6) That a deposition after being sealed be opened only by order of the court;

(7) That a trade secret or other confidential research, development, or commercial information not be disclosed or be disclosed only in a designated way;

(8) That the parties simultaneously file specified documents or information enclosed in sealed envelopes to be opened as directed by the court.

If the motion for a protective order is denied in whole or in part, the court, on terms and conditions as are just, may order that any party or person provide or permit discovery. The provisions of Civ.R. 37(A)(5) apply to the award of expenses incurred in relation to the motion.

Before any person moves for a protective order under this rule, that person shall make a reasonable effort to resolve the matter through discussion with the attorney or unrepresented party seeking discovery. A motion for a protective order shall be accompanied by a statement reciting the effort made to resolve the matter in accordance with this paragraph.

(D) Sequence and timing of discovery

Unless the court upon motion, for the convenience of parties and witnesses and in the interests of justice, orders otherwise, methods of discovery may be used in any sequence and the fact that a party is conducting discovery, whether by deposition or otherwise, shall not operate to delay any other party's discovery.

(E) Supplementation of responses

A party who has responded to a request for discovery with a response that was complete when made is under no duty to supplement his response to include information thereafter acquired, except as follows:

(1) A party is under a duty seasonably to supplement his response with respect to any question directly addressed to (a) the identity and location of person having knowledge of discoverable matters, and (b) the identity of each person expected to be called as an expert witness as trial and the subject matter on which he is expected to testify.

(2) A party who knows or later learns that his response is incorrect is under a duty seasonably to correct the response.

(3) A duty to supplement responses may be imposed by order of the court, agreement of the parties, or at any time prior to trial through requests for supplementation of prior responses.

(F) Conference of the parties; planning for discovery

(1) Conference timing

Other than in cases excepted under Civ.R. 1(C), when the court orders otherwise in a specific case, or in categories of cases excepted by local rule in which little or no pretrial discovery is anticipated, the attorneys and unrepresented parties shall confer as soon as practicable, and in any event no later than twenty-one days before a scheduling conference is to be held.

(2) Conference content; parties' responsibilities

In conferring, the parties must consider the nature and basis of their claims and defenses and the possibilities for promptly settling or resolving the case; make or arrange for the disclosures required by Civ.R. 26(B)(3); discuss any issues about preserving discoverable information; and develop a proposed discovery plan. The attorneys of record and all unrepresented parties that have appeared in the case are jointly responsible for arranging the conference, for attempting in good faith to agree on the proposed discovery plan, and for filing with the court within fourteen days after the conference a written report outlining the plan. The court may order

the parties or attorneys to attend the conference in person.

(3) Discovery plan

A discovery plan shall state the parties' views and proposals on:

(a) What changes should be made in the timing, form, or requirement for disclosures under Civ.R. 26(B), including a statement of when initial disclosures were made or will be made;

(b) Agreed-upon deadlines for discovery and other items that may be included in a case schedule to be issued under Civ.R. 16, any proposed modifications to a schedule already issued under Civ.R. 16, and compliance with Sup.R. 5.21 and 5.22.

(c) The subjects on which discovery may be needed, when discovery should be completed, and whether discovery should be conducted in phases or be limited to or focused on particular issues;

(d) Any issues about disclosure, discovery, or preservation of electronically stored information, including the form or forms in which it should be produced;

(e) Disclosure and the exchange of documents obtained through public records requests;

(f) Any issues about claims of privilege or of protection as trial-preparation materials;

(g) What changes should be made in the limitations on discovery imposed under these rules or by local rule, and what other limitations should be imposed;

(h) Any other orders that the court should issue under Civ.R. 26(C) or under Civ.R. 16(B) and (C); and any modifications required or to be requested under any scheduling order issued under Civ.R. 16.

Effective Date: July 1, 1970
Amended: July 1, 1994; July 1, 2008; July 1, 2012; July 1, 2020; July 1, 2021; July 1, 2022; July 1, 2023

Staff Note (July 1, 2008 Amendment)

Several provisions of the rule are amended to clarify that discovery of electronically stored information is permitted.

Civ.R. 26(A), (B)(1) and (B)(3) include explicit references to discovery of electronically stored information, a type of discovery that was arguably covered in the broad definition of discoverable materials previously articulated in the rule.

Civ.R. 26(B)(4) is new language that tempers the virtually unlimited discovery traditionally authorized by Rule 26(B)(1) by providing that, as is the case with all discovery, a party is not required to produce electronically stored information if production is too burdensome or expensive compared to the potential value of the discovery. These provisions also provide guidance to trial courts for resolving disputes over claims of excessive burdensomeness and expense. The last sentence of this section reiterates the power that trial judges inherently possess to regulate discovery of electronically stored information, including allocating costs and other details related to production of electronically stored information.

Existing Rule 26(B)(4) is renumbered as 26(B)(5) but no other changes are made.

Civ.R. 26(B)(6)(a) and (b) apply to all discovery not just electronically stored information. Rule 26(B)(6)(a) establishes procedures parties must follow when withholding documents (including electronically stored information) based on privilege.

Civ.R. 26(B)(6)(b) provides a mechanism for a party to retrieve inadvertently produced documents from an opponent. This is often called a "clawback" provision. A similar provision is included in the federal rules and the rules of other states that have modified their civil rules to accommodate e-discovery. It applies to all materials produced by a party, not just electronically stored information.

The rule directs a party that has inadvertently provided privileged documents to an opponent to notify the opponent. Once notification is received, the recipient must "return, sequester, or destroy" the inadvertently proceeded information and not use the information in any way. A procedure is also provided for the court to resolve the claim of privilege relating to the materials. The amendments to Rule 26(B)(6)(b) do not conflict with the new Ohio Rule Prof. Conduct 4.4(b) requirement that an attorney who "knows or reasonably should know that the document was inadvertently sent" must "promptly notify the sender." Rather, the two rules work in concert: Rule 26(B)(6)(b) is triggered when actual notification is received from the sender that the material was inadvertently sent, and Ohio Rule Prof. Conduct 4.4(b) is animated when the recipient realizes that the material provided by an opponent is likely privileged.

Staff Note (July 1, 2012 Amendment)

Civ.R. 26(B)(5) is amended to clarify the scope of expert discovery and align Ohio practice with the 2010 amendments to the Federal Rules of Civil Procedure relating to a party's ability to obtain discovery from expert witnesses who are expected to be called at trial. The amendment provides work product protection for draft reports and communications between attorneys and testifying experts, except for three categories of communications: communications that relate to compensation for the expert's study or testimony; communications containing facts or data that the party's attorney provided and that the expert considered in forming the opinions to be expressed; and communications containing any assumptions that the party's attorney provided and that the expert relied upon in forming the opinions to be expressed.

Staff Note (July 1, 2020 Amendment)

Civ.R. 26 has been amended to bring the Ohio rule closer to the federal rule in many respects.

Rule 26(B)(1)

Civ.R. 26(B)(1) incorporates nearly identical language as the federal rule in Fed. R. Civ. P. 26(b)(1), as amended in 2015. Civ.R. 26(B)(1) now includes language bearing on proportionality, which contemplates greater judicial involvement in the discovery process and thus acknowledges the reality that it cannot always operate on a self-regulating basis. The scope of available information, including the increase and pervasiveness of electronically stored information, has greatly increased both the potential cost of wide- ranging discovery and the potential for discovery to be used as an instrument for delay or oppression. The present amendment reflects the need for continuing and close

judicial involvement in the cases that do not yield readily to the ideal of effective party management. It is expected that discovery will be effectively managed by the parties in many cases. But there will be important occasions for judicial management, both when the parties are legitimately unable to resolve important differences and when the parties fall short of effective, cooperative management on their own.

This change does not place on the party seeking discovery the burden of addressing all proportionality considerations. Nor is the change intended to permit the opposing party to refuse discovery simply by making a boilerplate objection that it is not proportional. The parties and the court have a collective responsibility to consider the proportionality of all discovery and consider it in resolving discovery disputes.

The parties may begin discovery without a full appreciation of the factors that bear on proportionality. A party requesting discovery, for example, may have little information about the burden or expense of responding. A party requested to provide discovery may have little information about the importance of the discovery in resolving the issues as understood by the requesting party. Many of these uncertainties should be addressed and reduced in the parties' Civ.R. 26(F) conference and in scheduling and pretrial conferences with the court. But if the parties continue to disagree, the discovery dispute could be brought before the court. A party claiming undue burden or expense ordinarily has far better information — perhaps the only information — with respect to that part of the determination. A party claiming that a request is important to resolve the issues should be able to explain the ways in which the underlying information bears on the issues as that party understands them. The court's responsibility, using all the information provided by the parties, is to consider these and all the other factors in reaching a case-specific determination of the appropriate scope of discovery.

With regard to the parties' relative access to relevant information, some cases involve what often is called "information asymmetry." One party — often an individual plaintiff — may have very little discoverable information. The other party may have vast amounts of information, including information that can be readily retrieved and information that is more difficult to retrieve. In practice these circumstances often mean that the burden of responding to discovery lies heavier on the party who has more information, and properly so.

The former provision for discovery of relevant but inadmissible information that appears "reasonably calculated to lead to the discovery of admissible evidence" is also deleted. It is replaced by the direct statement that "Information within this scope of discovery need not be admissible in evidence to be discoverable." Discovery of nonprivileged information not admissible in evidence remains available so long as it is otherwise within the scope of discovery.

Rule 26(B)(3)

This provision has been added to include a requirement that parties, in most cases, exchange initial disclosures without awaiting discovery requests. The language of Civ.R. 26(B)(3) closely follows the federal rule. The purpose of the initial disclosure obligation is to accelerate the exchange of information about the case, consistent with Civ.R. 1 and 26(B)(1).

Rule 26(B)(5)

This subsection is revised to preserve the limitation on production of electronically stored information (“ESI”) if it is from a source not reasonably accessible due to undue burden or cost. The court may still order production upon a showing of good cause. The amended rule eliminates the prior factors to be considered when determining if good cause exists and relies instead on the general concepts of proportionality contained in Rule 26.

Rule 26(B)(6)

Civ.R. 26(B)(6) has been added to clarify that courts have authority to modify the frequency and extent of discovery, including consideration that bear on proportionality to Civ.R. 26(B)(1). This language in Civ.R. 26(B)(6) is similar to the language in Fed. R. Civ. P. 26(b)(2)(A) and (C).

Rule 26(B)(7)

The Ohio Civil Rules had not previously required experts to provide a written report. The Local Rules of some counties required a written report while many others did not. Interrogatories directed to the subject matter on which an expert may testify have in practice shown to be an insufficient means to ascertain an opposing expert's opinions and the grounds upon which they are based. The absence of a written report frequently puts counsel in the position of having to bear the substantial time and expense of a deposition in order to learn the opinions of an opposing party's expert. Requiring a written report from experts setting forth all opinions and the basis and reasons for such opinions may, in many cases, obviate the need for a deposition, and will lessen the time and significant expense associated with expert discovery. So will permitting the deposition of experts only after the mutual exchange of expert reports. Further expense can be lessened by permitting healthcare providers to testify as an expert as to matters addressed in medical records, without the necessity of writing a separate medical report, if such records are timely provided to opposing counsel. Subsection (B)(7)(h) is the same as Fed. R. Civ. P. 26(b)(4)(D) and protects facts and opinions held by an expert who is not expected to be called as a witness at trial.

Rule 26(F)

The changes in the proposed rules are best highlighted and understood in contrast to the Federal Rules. The differences between proposed Ohio's Civ.R. 26(F) and Fed. Civ.R. 26(F) are as follows:

1. Civ.R. 26(F)(1) – The Ohio Rule reads, "Except those matters excepted under Civ.R. 1(C)[…][.]" The Federal Rule reads, "Except in a proceeding exempted from initial disclosure under Rule 26(a)(1)(B)[…][.]"

2. Civ.R. 26(F)(1) – The Ohio Rule states that "attorneys and unrepresented parties shall confer as soon as practicable[…][.]" The Federal Rule states that "the parties must confer as soon as practicable[…][.]"

3. Civ.R. 26(F)(1) – The Ohio Rule reads, at the end, "21 days before a scheduling conference is to be held." The intent with this language of the proposed Ohio Rule is to simplify the setting of the scheduling conference and to give the court greater flexibility in setting that conference. The Federal Rule reads, at the end, "21 days before a scheduling conference is held or a scheduling order is due under Rule 16(b)."

4. Civ.R. 26(F)(2) – The Ohio Rule reads, at the end of the second to last sentence, "and for filing with the court[…][.]" The Federal Rule reads, at the end of the second of the second to last sentence, "and for submitting with the court[…][.]"

5. Civ.R. 26(F)(3) – The Ohio Rule uses the word "shall" and the Federal Rule uses the word "must."

6. Civ.R. 26(F)(3)(e) – The Ohio Rule addresses public records disclosure as part of the discovery plan whereas the Federal Rule does not.

7. Civ.R. 26(F)(3)(f) – The Ohio Rule ends with "of protection as trial-preparation materials[…][.]" The Federal Rule (Fed. Civ.R. 26(F)(3)(D)) ends with "as trial-preparation materials,

including – if the parties agree on a procedure to assert these claims after production – whether to ask the court to include their agreement in an order under Federal Rule of Evidence 502[…][.]"

8. Civ.R. 26(F)(3)(b) and (i) – these subsections are not included in Fed. Civ.R. 26(F)(3).

9. Civ.R. 26(F)(4) – This subsection was removed from the proposed Ohio Rules, but it is included in the Federal Rules.

10. This amendment introduces to Ohio's civil rules the concept of an early, mandatory conference among the attorneys and any unrepresented party, and requires the filing of a written report outlining the results of that conference. This amendment also requires that the discovery plan, to which counsel and the parties agree, be in compliance with the time limitations of Sup.R. 39 and 42.

Staff Note (July 1, 2023 Amendment)

Civ.R. 26(B)(8) requires assertions of privilege or trial-preparation protection be made clearly, so that the party seeking discovery understands the basis for withholding material and, if appropriate, may contest the claim. Often this entails preparation of a privilege log, but that may prove burdensome and expensive. Proportionality as set out in Civ.R. 26(B)(1) applies to all scope of discovery issues including the format used to assert privilege or work-product protection in a log or by other appropriate means.

RULE 27. Perpetuation of Testimony--Depositions Before Action or Pending Appeal.

(A) Before action

(1) Petition

A person who desires to perpetuate his own testimony or the testimony of another person regarding any matter that may be cognizable in any court may file a petition in the court of common pleas in the county of the residence of any expected adverse party. The petitioner shall verify that he believes the facts stated in the petition are true. The petition shall be entitled in the name of the petitioner and shall show:

(a) That the petitioner or his personal representatives, heirs, beneficiaries, successors, or assigns may be parties to an action or proceeding cognizable in a court but is presently unable to bring or defend it;

(b) The subject matter of the expected action or proceeding and his interest therein (if the validity or construction of any written instrument connected with the subject matter of the deposition may be called in question a copy shall be attached to the petition);

(c) The facts which he desires to establish by the proposed testimony and his reasons for desiring to perpetuate it;

(d) The names or, if the names are unknown, a description of the persons he expects will be adverse parties and their addresses so far as known;

(e) The names and addresses of the persons to be examined and the subject matter of the testimony which he expects to elicit from each.

The petition shall then ask for an order authorizing the petitioner to take the depositions of the persons to be examined named in the petition, for the purpose of perpetuating their testimony.

(2) Notice and service

The petitioner shall thereafter serve a notice upon each person named in the petition as an expected adverse party, together with a copy of the petition, stating that the petitioner will apply to the court, at a time and place named therein, for the order described in the petition. At least twenty-eight days before the date of hearing, unless the court upon application and showing of extraordinary circumstances prescribes a hearing on shorter notice, the notice shall be served either within or outside of this state by a method provided in Rule 4 through Rule 4.6 for service of summons, or in any other manner affording actual notice, as directed by order of

the court. But if it appears to the court that an expected adverse party cannot be given actual notice, the court shall appoint a competent attorney to cross-examine the deponent; such attorney shall be allowed reasonable fees therefor which shall be taxed as costs. If any expected adverse party is a minor or incompetent the provisions of Rule 17(B) apply.

(3) Order and examination

If the court is satisfied that the allowance of the petition may prevent a failure or delay of justice, and that the petitioner is unable to bring or defend the contemplated action, the court shall order the testimony perpetuated, designating the deponents, the subject matter of the examination, when, where, and before whom their deposition shall be taken, and whether orally or upon written questions. The depositions may then be taken in accordance with these rules; and the court may make orders of the character provided for by Rule 34, Rule 35 and Rule 37. For the purpose of applying these rules to depositions for perpetuating testimony, each reference therein to the court in which the action is pending shall be deemed to refer to the court in which the petition for such deposition was filed.

(4) Use of deposition

Subject to the same limitations and objections as though the deponent were testifying at the trial in person, and to the provisions of Rule 26 and Rule 32(A) a deposition taken in accordance with this rule may be used as evidence in any action subsequently brought in any court, where the deposition is that of a party to the action, or where the issue is such that an interested party in the proceedings in which the deposition was taken had the right and opportunity for cross-examination with an interest and motive similar to that which the adverse party has in the action in which the deposition is offered. But, except where the deposition is that of a party to the action and is offered against the party, the deposition may not be used as evidence unless the deponent is unavailable as a witness at the trial.

(B) Pending appeal

If an appeal has been taken from a judgment of any court, a party who desires to perpetuate testimony may make a motion in the court where the action was tried, for leave to take depositions upon the same notice and service thereof as provided in (A)(2) of this rule. The motion shall show the names and addresses of the persons to be examined, the subject matter of the testimony which he expects to elicit from each, and the reasons for perpetuating their testimony. If the court is satisfied that the motion is proper to avoid a failure or delay of justice, it may make an order allowing the deposition to be taken and may make orders of the character provided for by Rule 34, Rule 35, and Rule 37. The depositions may be taken and used in the same manner and under the same conditions as are prescribed for depositions in Rule 26 and Rule 32(A).

(C) Perpetuation by actions

This rule does not limit the inherent power of a court to entertain an action to perpetuate testimony.

(D) Filing of depositions

Depositions taken under this rule shall be filed with the court in which the petition is filed or the motion is made.

(E) Costs of deposition

The party taking any deposition under this rule shall pay the costs thereof and of all proceedings hereunder, unless otherwise ordered by the court.

(F) Depositions taken in other states

A deposition taken under similar procedure of another jurisdiction is admissible in this state to the same extent as a deposition taken under this rule.

(G) Construction of rule

This rule shall be so construed as to effectuate the general purpose to make uniform the law of those states which have similar rules or statutes.

Effective Date: July 1, 1970
Amended: July 1, 1972

RULE 28. Persons Before Whom Depositions May be Taken.

(A) Depositions within state

Depositions may be taken in this state before: a person authorized to administer any oath by the laws of this state, a person appointed by the court in which the action is pending, or a person agreed upon by written stipulation of all the parties.

(B) Depositions outside state

Depositions may be taken outside this state before: a person authorized to administer oaths in the place where the deposition is taken, a person appointed by the court in which the action is pending, a person agreed upon by written stipulation of all the parties, or, in any foreign country, by any consular officer of the United States within the consular district. Depositions may also be taken of witnesses located outside this state via remote means before a person authorized to administer any oath by the laws of Ohio.

(C) Disqualification for interest

Unless the parties agree otherwise as provided in Civ.R. 29, depositions shall not be taken before a person who:

(1) Is a relative or employee of or attorney for any of the parties, or

(2) Is a relative or employee of an attorney for any of the parties, or

(3) Is financially interested in the action.

(D) Prohibited contracts

(1) Any blanket contract for private court reporting services, not related to a particular case or reporting incident, shall be prohibited between a private court reporter or any other person with whom a private court reporter has a principal and agency relationship, and any attorney, party to an action, party having a financial interest in an action, or any entity providing the services of a shorthand reporter.

(2) “Blanket contract” means a contract under which a court reporter, court recorder, or court reporting firm agrees to perform all court reporting or court recording services for a client for two or more cases at a rate of compensation fixed in the contract.

(3) Negotiating or bidding reasonable fees, equal to all parties, on a case-by-case basis is not prohibited.

(4) Division (D) of this rule does not apply to the courts or the administrative tribunals of this state.

Effective Date: July 1, 1970
Amended: July 1, 2001; July 1, 2022

Staff Note (July 1, 2001 Amendment)

Civil Rule 28 Persons before whom depositions may be taken
Civil Rule 28(D) Prohibited contracts

The amendment effective July 1, 2001 added division (D), Prohibited contracts. This rule was amended in response to communications from members of the bench and bar indicating that certain types of long-term financial arrangements between court reporters, court reporting firms, or other firms and litigants or other entities have given rise to concerns about the appearance of or potential for differential treatment of parties to an action. The appearance of impartiality and the existence of impartiality are no less important for those officers who take depositions than for judicial officers and other persons whose responsibilities are integral to the administration of justice.

The general prohibition of division (D) does not apply to situations where lower fees may be negotiated, provided the fees are the same for all parties and are negotiated on a case-by-case basis [division (D)(3)]. Also, the prohibition does not extend to governmental entities, which may be required by law to obtain court reporting services on a long-term basis through competitive bidding. See, e.g., sections 125.05(B) and 125.07 of the Revised Code.

The prohibition in division (D), like the pre-existing prohibitions in division (C), is enforceable by the court in which the underlying action is pending. Enforceability is implicitly recognized by Civ.R. 32(D)(2), which requires reasonable diligence of a party in raising a disqualification issue. See *Berwald v. Ford Motor Co.*, 1982 WL 5337, No. 44064 (8th Dist. Ct. App., Cuyahoga, May 6, 1982) (objection held waived); J. McCormac, Ohio Civil Rules Practice, section 10.37 at 268 (2d ed. 1992) (noting that "[c]onceivably, this objection could be made at trial if it were not discovered until that time that the officer taking the deposition was disqualified for interest under Civil Rule 28(C) and there had been no previous waiver or stipulation"). Trial courts also have extensive inherent power to control discovery. See, e.g., *State ex rel. Abner v. Elliott*, 85 Ohio St.3d 11, 16 (1999); *State ex rel. Grandview Hosp. & Med. Ctr.*, 51 Ohio St. 3d 94, 95 (1990) (citing Staff Note to Civ.R. 26(C) and Civ.R. 37); *State ex rel. Pfeiffer v. Common Pleas Ct. of Lorain Cty.*, 13 Ohio St. 2d 133, 136-37 (1968) (noting "the inherent power of courts to do all things necessary to the administration of justice and to protect its own powers and processes and the rights of those who invoke its processes" which "inheres in the constitutional grant of judicial power to the courts").

Pursuant to the effective date provisions of Civ.R. 86(Y), Civ.R. 28(D) will apply only to (1) depositions taken in actions brought after July 1, 2001, and (2) in actions pending on July 1, 2001, to depositions taken on and after July 1, 2001.

In division (C), grammatical and structural revisions were made. No substantive amendment to division (C) was intended.

RULE 29. Stipulations Regarding Discovery Procedure.

Unless the court orders otherwise, the parties may by written stipulation (1) provide that depositions may be taken before any person, at any time or place, upon any notice, and in any manner and when so taken may be used like other depositions; and (2) modify the procedures provided by these rules for other methods of discovery.

Effective Date: July 1, 1970

RULE 30. Depositions Upon Oral Examination.

(A) When depositions may be taken

After commencement of the action, any party may take the testimony of any person, including a party, by deposition upon oral examination. The attendance of a witness deponent may be compelled by the use of subpoena as provided by Civ.R. 45. The attendance of a party deponent may be compelled by the use of notice of examination as provided by division (B) of this rule. The deposition of a person confined in prison may be taken only by leave of court on such terms as the court prescribes.

(B) Notice of examination; general requirements; nonstenographic recording; production of documents and things; deposition of organization; deposition by telephone or remote presence

(1) A party desiring to take the deposition of any person upon oral examination shall give reasonable notice in writing to every other party to the action. The notice shall state the time and place for taking the deposition and the name and address of each person to be examined, if known, and, if the name is not known, a general description sufficient to identify the person or the particular class or group to which the person belongs. If a subpoena duces tecum is to be served on the person to be examined, a designation of the materials to be produced shall be attached to or included in the notice.

(2) If any party shows that when the party was served with notice the party was unable, through the exercise of diligence, to obtain counsel to represent the party at the taking of the deposition, the deposition may not be used against the party.

(3) If a party taking a deposition wishes to have the testimony recorded by other than stenographic means, the notice shall specify the manner of recording, preserving, and filing the deposition. The court may require stenographic taking or make any other order to ensure that the recorded testimony will be accurate and trustworthy. With prior notice to the deponent and other parties, any party may designate another method for recording the testimony in addition to that specified in the original notice. That party bears the expense of the additional record or transcript unless the court orders otherwise.

(4) The notice to a party deponent may be accompanied by a request made in compliance with Civ.R. 34 for the production of documents and tangible things at the taking of the deposition.

(5) In its notice or subpoena, a party may name as the deponent a public or private corporation, a partnership, an association, a limited liability entity, a governmental agency, or other entity and shall describe with reasonable particularity the matters for examination. The named organization shall designate one or more officers, directors, or managing agents, or designate other persons who consent to testify on

its behalf; and it may set out the matters on which each person designated will testify. Before or promptly after the notice or subpoena is served, the serving party and the organization shall confer in good faith about the matters for examination. A subpoena shall advise a nonparty organization of its duty to confer with the serving party and to designate each person who will testify. The persons designated shall testify about information known or reasonably available to the organization. Division (B)(5) does not preclude a deposition by any other procedure allowed by these rules.

(6) The parties may stipulate or the court may upon motion order that a deposition be taken by telephone or with one or more participants in a remote presence. For purposes of this rule, Civ.R. 28, and Civ.R. 45(C), a deposition taken by telephone or with participants in remote presence is considered to be taken in the jurisdiction in which the case is pending.

(C) Examination and cross-examination; record of examination; oath; objections; written questions

(1) Examination and cross-examination

Each party at the deposition may examine the deponent without regard to which party served notice or called the deposition. In all other respects the examination and cross-examination of a deponent may proceed as they would at trial under the Ohio Rules of Evidence, except Evid.R. 103 and Evid.R. 615. After putting the deponent under oath or affirmation, the officer shall record the testimony by the method designated under Civ.R. 30(B)(3). The testimony shall be recorded by the officer personally or by a person acting in the presence and under the direction of the officer.

(2) Objections

An objection made at the time of the examination whether to evidence, a party's conduct, to the officer's qualifications, to the manner of taking the deposition, or to any other aspect of the deposition shall be noted on the record, but the examination still proceeds, the testimony taken subject to any objection. An objection shall be stated concisely in a nonargumentative and nonsuggestive manner. A person may instruct a deponent not to answer only when necessary to preserve a privilege, to enforce a limitation ordered by a court, or to present a motion under Civ.R. 30(D).

(3) Participating through written questions

Instead of participating in the oral examination, a party may serve written questions in a sealed envelope on the party noticing the deposition, who must deliver them to the officer. The officer must ask the deponent those questions and record the answers verbatim.

(D) Duration; motion to terminate or limit examinations

(1) Duration

Unless otherwise stipulated or ordered by the court, a deposition is limited to one day of seven hours. The court shall allow additional time consistent with Civ.R. 26(B)(6)(a) and (b) if needed to fairly examine the deponent or if the deponent, another person, or any other circumstance impedes or delays the examination.

(2) Motion to terminate or limit examinations

At any time during the taking of the deposition, on motion of any party or of the deponent and upon a showing that the examination is being conducted in bad faith or in such manner as unreasonably to annoy, embarrass, or oppress the deponent or party, the court in which the action is pending may order the officer conducting the examination to cease forthwith from taking the deposition, or may limit the scope and manner of the taking of the deposition as provided in Civ.R. 26(C). If the order made terminates the examination, it shall be resumed thereafter only upon the order of the court in which the action is pending. Upon demand of the objecting party or deponent, the taking of the deposition shall be suspended for the time necessary to make a motion for an order. The provisions of Civ.R. 37 apply to the award of expenses incurred in relation to the motion.

(E) Submission to witness; changes; signing

When the testimony is fully transcribed, the deposition shall be submitted to the witness for examination and shall be read to or by the witness, unless examination and reading are waived by the witness and by the parties. Any changes in form or substance that the witness desires to make shall be entered upon the deposition by the officer with a statement of the reasons given by the witness for making them. The deposition shall then be signed by the witness by hand or by electronic signature, unless the parties by stipulation waive the signing or the witness is ill, cannot be found, or refuses to sign. The witness shall have thirty days from submission of the deposition to the witness to review and sign the deposition. If the deposition is taken within thirty days of a trial or hearing, the witness shall have seven days from submission of the deposition to the witness to review and sign the deposition. If the trial or hearing is scheduled to commence less than seven days before the deposition is submitted to the witness, the court may establish a deadline for the witness to review and sign the deposition. If the deposition is not signed by the witness during the period prescribed in this division, the officer shall sign it and state on the record the fact of the waiver or of the illness or absence of the witness or the fact of the refusal to sign together with the reason, if any, given therefor; and the deposition may then be used as fully as though signed, unless on a motion to suppress the court holds that the reasons given for the refusal to sign require rejection of the deposition in whole or in part.

(F) Certification and filing by officer; exhibits; copies; notice of filing

(1)

(a) Upon request of any party or order of the court, the officer shall transcribe the deposition. Provided the officer has retained an archival-quality copy of the officer's notes, the officer shall have no duty to retain paper notes of the deposition testimony. The officer shall certify on the transcribed deposition that the witness was fully sworn or affirmed by the officer and that the transcribed deposition is a true record of the testimony given by the witness. If any of the parties request or the court orders, the officer shall seal the transcribed deposition in an envelope endorsed with the title of the action and marked "Deposition of (here insert name of witness)" and, upon payment of the officer's fees, promptly shall file it with the court in which the action is pending or send it by United States certified or express mail or commercial carrier service to the clerk of the court for filing.

(b) Unless objection is made to their production for inspection during the examination of the witness, documents and things shall be marked for identification and annexed to and returned with the deposition. The materials may be inspected and copied by any party, except that the person producing the materials may substitute copies to be marked for identification, if the person affords to all parties fair opportunity to verify the copies by comparison with the originals. If the person producing the materials requests their return, the officer shall mark them, give each party an opportunity to inspect and copy them, and return them to the person producing them, and the materials may then be used in the same manner as if annexed to and returned with the deposition.

(2) Upon payment, the officer shall furnish a copy of the deposition to any party or to the deponent.

(3) The party requesting the filing of the deposition shall forthwith give notice of its filing to all other parties.

(4) As used in division (F) of this rule, "archival-quality copy" means any format of a permanent or enduring nature, including digital, magnetic, optical, or other medium, that allows an officer to transcribe the deposition.

(G) Failure to attend or to serve subpoena; expenses

(1) If the party giving the notice of the taking of a deposition fails to attend and proceed with the deposition and another party attends in person or by attorney pursuant to the notice, the court may order the party giving the notice to pay to the other party the amount of the reasonable expenses incurred by the other party and the other party's attorney in so attending, including reasonable attorney's fees.

(2) If the party giving the notice of the taking of a deposition of a witness fails to serve a subpoena upon the witness and the witness because of the failure does not attend, and another party attends in person or by attorney because the other party expects the deposition of that witness to be taken, the court may order the party giving the notice to pay to the other party the amount of the reasonable expenses incurred by the other party and the other party's attorney in so attending, including reasonable attorney's fees.

Effective Date: July 1, 1970
Amended: July 1, 1976; July 1, 1985; July 1, 1992; July 1, 1994; July 1, 1997; July 1, 2006; July 1, 2012; July 1, 2015; July 1, 2017; July 1, 2023; July 1, 2024

Staff Note (July 1, 1997 Amendment)

Rule 30(F) Certification and filing by officer; exhibits; copies; notice of filing

The 1997 amendment added the second sentence to division (F)(1). The amendment responds to a concern frequently expressed by individuals charged with taking or keeping notes of depositions, namely, what duty there is (if at all) to retain such notes. Present practice in Ohio on this matter appears to vary widely, and space and expense concerns come into play if such notes are kept in perpetuity. The amendment permits the officer to discard notes of a deposition, five years after it has taken place (whether or not the deposition has been transcribed), as long as the officer retains an archival quality copy of the notes. Archival quality would include notes maintained in magnetic, optical, or other equivalent medium. The original notes must be retained for at least five years, to provide a backup source should the archival-quality copy in any particular case not produce a usable deposition. It is anticipated that any such instances should be rare; however, in the unlikely event that such problems arise, most requests to transcribe depositions would take place within about five years of the original taking of the deposition. By that point, presumably, in most cases the litigation that gave rise to the deposition will have come to an end, as would the need for a transcribed copy of the deposition. For those few instances when a transcribed deposition is needed more than five years later, under the amendment the original notes or an archival-quality copy thereof will still be available.

Prior to the 1997 amendment, service under this rule was permitted only by certified mail. It appears that service by express mail, i.e. as that sort of mail is delivered by the United States Postal Service, can always be obtained return receipt requested, and thus could accomplish the purpose of notification equally well as certified mail. Therefore, the amendment to division (F)(1) provides for this additional option for service.

Other amendments to this rule are nonsubstantive grammatical or stylistic changes.

Staff Note (July 1, 2006 Amendment)

The 2006 amendments contain two changes pertaining to the time period for reviewing and signing depositions and the retention of deposition notes by the court reporter who transcribed the deposition.

Rule 30(E) Submission to witness; changes; signing

Civ.R. 30(E) is amended to allow a witness thirty days to review and sign a deposition. The former rule allowed the witness only seven days to review and sign a deposition, and the Committee recognized that a careful review of a deposition in that period of time was sometimes practically or logistically difficult. When a deposition is taken close to trial, however, a quick turn-around may be necessary. Consequently, division (E) is amended to expand to thirty days the period in which a witness has to review and sign a deposition. Exceptions are provided for cases where the deposition is taken within thirty days of trial or

hearing, in which case the seven-day rule still applies, or less than seven days of trial or hearing, in which case the trial judge may establish a different deadline. This amendment brings the Ohio rule closer to the Federal Rules of Civil Procedure, which give a witness thirty days to review and sign a deposition.

Rule 30(F) Certification and filing by officer; exhibits; copies; notice of filing

The 2006 amendment added division (F)(4). The amendment responds to a concern expressed by individuals charged with taking or keeping notes of depositions in light of changes in technology and the fact that most present-day court reporting machines no longer use paper but record and retain deposition testimony via electronic means. The amendment clarifies that "archival-quality copy" means any format of a permanent or enduring nature that will allow an officer to transcribe the deposition. In light of this definition, division (F)(1)(a) was revised to delete language that required the retention of paper notes of deposition testimony for a minimum of five years following the deposition.

Staff Note (July 1, 2015 Amendment)

Rule 30(B)(3)

This amendment is modeled on Fed.R.Civ.P. 30(b)(3)(B) and permits a party other than the one noticing the deposition, at its own expense, after notice to the deponent and parties, to arrange for an additional method of recording the testimony, unless the court orders otherwise.

Rule 30(B)(6)

This amendment is modeled on Fed.R.Civ.P. 30(b)(4) and allows the parties to stipulate that a deposition may be taken by other remote means, such as over the Internet or using a satellite, rather than limiting the means of taking to the telephone.

Staff Note (July 1, 2017 Amendment)

Civ.R. 30(C) Examination and cross-examination; objections

The 2017 amendments adopt the 2007 stylistic changes to Fed.R.Civ.P. 30(c), including a nonsubstantive substitution of "deponent" for "witness." Deponents include both parties and non-parties. See Civ.R. 30(A).

The amendments provide that the Rules of Evidence shall apply at a deposition, except Evid.R. 103 and Evid.R. 615. The Federal Rules first included this provision in 1993. With respect to the exception of Evid.R. 615, the Notes of the Federal Advisory Committee included the following comments which are approved and re-stated in this Staff Note:

"[T]he revision addresses a recurring problem as to whether other potential deponents can attend a deposition. Courts have disagreed, some holding that witnesses should be excluded through invocation of Rule 615 of the evidence rules, and others holding that witnesses may attend unless excluded by an order under [Rule 26(c)]. The revision provides that other witnesses are not automatically excluded from a deposition simply by the request of a party. Exclusion, however, can be ordered under [Rule 26(c)] when appropriate; and, if exclusion is ordered, consideration should be given as to whether the excluded witnesses likewise should be precluded from reading, or being otherwise informed about, the testimony given in the earlier depositions. The revision addresses only the matter of attendance by potential deponents, and does not attempt to resolve issues concerning attendance by others, such as members of the public or press.

In adopting the 2007 federal stylistic changes, the amendments include provisions of the federal rule addressing the manner of making objections and the circumstances under which an instruction not to answer a question may be given. These additional provisions are consistent with the guidelines entitled: *Professionalism Dos and Don'ts: Depositions*, first published by the Ohio Supreme Court's Commission on Professionalism in 2012.

The amendments also add an introductory sentence to Civ.R. 30(C), which specifies that each party at the deposition may examine the deponent without regard to which party served notice or called the deposition. Although this introductory sentence is not found in the current federal rule, the provision is consistent with federal practice. See, *Powell v. Time Warner Cable, Inc*., Case No. 2:09-CV-00600 (S.D.Ohio Nov. 2, 2010) (order partially granting motion to compel); *Smith v. Logansport Community School*, 139 F.R.D. 637, 642 (N.D.Ind 1991).

Staff Note (July 1, 2023 Amendment)

Division (B)(5) is amended to reflect the 2020 update to Fed.R.Civ.P. 30(b)(6).

Division (B)(6) is amended to allow depositions where one or more participants are in "remote presence" as defined in new Civ.R. 1.1(E). It clarifies that for witnesses in Ohio being deposed for an Ohio case the deposition is considered taken in the jurisdiction in which the case is pending, so that any motion for a protective order, or otherwise arising from the deposition is addressed by the Ohio court hearing the underlying case. If an out-of-state court has been used to subpoena an out-of-state witness, or an Ohio witness is subpoenaed in Ohio for an out-of-state case, the Uniform Interstate Depositions and Discovery Act (R.C. 2319.09) must be consulted.

RULE 31. Depositions of Witnesses Upon Written Questions.

(A) Serving questions; notice

After commencement of the action, any party may take the testimony of any person, including a party, by deposition upon written questions. The attendance of witnesses may be compelled by the use of subpoena as provided by Rule 45. The deposition of a person confined in prison may be taken only by leave of court on such terms as the court prescribes.

A party desiring to take a deposition upon written questions shall serve them upon every other party with a notice stating (1) the name and address of the person who is to answer them, if known, and if the name is not known, a general description sufficient to identify him or the particular class or group to which he belongs, and (2) the name or descriptive title and address of the officer before whom the deposition is to be taken. A deposition upon written questions may be taken of a public or private corporation or a partnership or association in accordance with the provisions of Rule 30(B)(5).

Within twenty-one days after the notice and written questions are served, a party may serve cross questions upon all other parties. Within fourteen days after being served with cross questions, a party may serve redirect questions upon all other parties. Within fourteen days after being served with redirect questions, a party may serve recross questions upon all other parties. The court may for cause shown enlarge or shorten the time.

(B) Officer to take responses and prepare record

A copy of the notice and copies of all questions served shall be delivered by the party taking the deposition to the officer designated in the notice, who shall proceed promptly, in the manner provided by Rule 30(C), (E), and (F), to take the testimony of the witness in response to the questions and to prepare, certify, and file, mail, or deliver the deposition by electronic means, attaching thereto the copy of the notice and the questions received by the officer.

(C) Notice of filing

The party requesting the filing of the deposition shall forthwith give notice of its filing to all other parties.

Effective Date: July 1, 1970
Amended: July 1, 2022

RULE 32. Use of Depositions in Court Proceedings.

(A) Use of depositions

Every deposition intended to be presented as evidence must be filed at least one day before the day of trial or hearing unless for good cause shown the court permits a later filing.

At the trial or upon the hearing of a motion or an interlocutory proceeding, any part or all of a deposition, so far as admissible under the rules of evidence applied as though the witness were then present and testifying, may be used against any party who was present or represented at the taking of the deposition or who had reasonable notice thereof, in accordance with any one of the following provisions:

(1) Any deposition may be used by any party for the purpose of contradicting or impeaching the testimony of deponent as a witness.

(2) The deposition of a party or of anyone who at the time of taking the deposition was an officer, director, or managing agent, or a person designated under Rule 30(B)(5) or Rule 31(A) to testify on behalf of a public or private corporation, partnership or association which is a party may be used by an adverse party for any purpose.

(3) The deposition of a witness, whether or not a party, may be used by any party for any purpose if the court finds: (a) that the witness is dead; or (b) that the witness is beyond the subpoena power of the court in which the action is pending or resides outside of the county in which the action is pending unless it appears that the absence of the witness was procured by the party offering the deposition; or (c) that the witness is unable to attend or testify because of age, sickness, infirmity, or imprisonment; or (d) that the party offering the deposition has been unable to procure the attendance of the witness by subpoena; or (e) that the witness is an attending physician or medical expert, although residing within the county in which the action is heard; or (f) that the oral examination of a witness is not required; or (g) upon application and notice, that such exceptional circumstances exist as to make it desirable, in the interest of justice and with due regard to the importance of presenting the testimony of witnesses orally in open court, to allow the deposition to be used.

(4) If only part of a deposition is offered in evidence by a party, an adverse party may require him to introduce all of it which is relevant to the part introduced, and any party may introduce any other parts.

Substitution of parties pursuant to Rule 25 does not affect the right to use depositions previously taken. When another action involving the same subject matter is or has been brought between the same parties or their representatives or successors in interest, all

depositions lawfully taken in the one action may be used in the other as if originally taken therefor.

(B) Objections to admissibility

Subject to the provisions of subdivision (D)(3) of this rule, objection may be made at the trial or hearing to receiving in evidence any deposition or part thereof for any reason which would require the exclusion of the evidence if the witness were then present and testifying. Upon the motion of a party, or upon its own initiative, the court shall decide such objections before the deposition is read in evidence.

(C) Effect of taking or using depositions

A party does not make a person his own witness for any purpose by taking his deposition. The introduction in evidence of the deposition or any part thereof for any purpose other than that of contradicting or impeaching the deponent makes the deponent the witness of the party introducing the deposition, but this shall not apply to the use by an adverse party of a deposition as described in subdivision (A)(2) of this rule. The use of subdivision (A)(3)(e) of this rule does not preclude any party from calling such a witness to appear personally at the trial nor does it preclude the taking and use of any deposition otherwise provided by law. At the trial or hearing any party may rebut any relevant evidence contained in a deposition whether introduced by him or by any other party.

(D) Effect of errors and irregularities in depositions

(1) As to notice

All errors and irregularities in the notice for taking a deposition are waived unless written objection stating the grounds therefor, is promptly served upon the party giving the notice.

(2) As to disqualification of officer

Objection to taking a deposition because of disqualification of the officer before whom it is to be taken is waived unless made before the taking of the deposition begins or as soon thereafter as the disqualification becomes known or could be discovered with reasonable diligence.

(3) As to taking of deposition

(a) Objections to the competency of a witness or to the competency, relevancy, or materiality of testimony are not waived by failure to make them before or during the taking of the deposition, unless the ground of the objection is one which might have been obviated or removed if presented at that time.

(b) Errors and irregularities occurring at the oral examination in the manner of taking the deposition, in the form of the questions or answers, in the oath or affirmation, or in the conduct of parties and errors of any kind which might be obviated, removed, or cured if promptly presented, are waived unless reasonable objection thereto is made at the taking of the deposition.

(c) Objections to the form of written questions submitted under Rule 31 are waived unless served in writing upon the party propounding them within the time allowed for serving the succeeding cross or other questions and within seven days after service of the last questions authorized.

(4) As to completion and return of deposition

Errors and irregularities in the manner in which the testimony is transcribed or the deposition is prepared, signed, certified, sealed, indorsed, transmitted, filed, or otherwise dealt with by the officer under Rule 30 and Rule 31 are waived unless a motion to suppress the deposition or some part thereof is made with reasonable promptness after such defect is, or with due diligence might have been, ascertained.

Effective Date: July 1, 1970
Amended: July 1, 1972

RULE 33. Interrogatories to Parties.

(A) Availability; procedures for use

Any party, without leave of court, may serve upon any other party up to forty written interrogatories to be answered by the party served. Whenever feasible, the party serving the interrogatories shall serve them pursuant to Civ.R. 5(B)(2)(f) or (B)(3) on a shareable medium and in an editable format. If the party being served is unrepresented by counsel, the serving party also shall provide a paper copy of the interrogatories to the unrepresented party. A party who is unable to serve the interrogatories electronically may serve them by other means permitted under Civ.R. 5(B)(2). A party shall not propound more than forty interrogatories to any other party without leave of court. Upon motion, and for good cause shown, the court may reduce or extend the number of interrogatories that a party may serve upon another party. For purposes of this rule, any subpart propounded under an interrogatory shall be considered a separate interrogatory.

(1) If the party served is a public or private corporation or a partnership or association, the organization shall choose one or more of its proper employees, officers, or agents to answer the interrogatories, and the employee, officer, or agent shall furnish information as is known or available to the organization.

(2) Interrogatories, without leave of court, may be served upon the plaintiff after commencement of the action and upon any other party after service of the summons and complaint upon the party.

(3) Each interrogatory shall be answered separately and fully in writing under oath, unless it is objected to, in which event the reasons for objection shall be stated in lieu of an answer. The party upon whom the interrogatories have been served shall quote each interrogatory immediately preceding the corresponding answer or objection. When the number of interrogatories exceeds forty without leave of court, the party upon whom the interrogatories have been served need only answer or object to the first forty interrogatories. The answers are to be signed by the person making them, and the objections signed by the attorney making them. The party upon whom the interrogatories have been served shall serve a copy of the answers and objections within a period designated by the party submitting the interrogatories, not less than twenty-eight days after the service of the interrogatories or within such shorter or longer time as the court may allow.

(B) Scope and use at trial

Interrogatories may relate to any matters that can be inquired into under Civ.R. 26(B), and the answers may be used to the extent permitted by the rules of evidence.

The party calling for such examination shall not thereby be concluded but may rebut it by evidence.

An interrogatory otherwise proper is not objectionable merely because an answer to the interrogatory involves an opinion, contention, or legal conclusion, but the court may order that such an interrogatory be answered at a later time, or after designated discovery has been completed, or at a pretrial conference.

(C) Option to produce business records

Where the answer to an interrogatory may be derived or ascertained from the business records, including electronically stored information, of the party upon whom the interrogatory has been served or from an examination, audit, or inspection of the business records, or from a compilation, abstract, or summary based on the business records, and the burden of deriving or ascertaining the answer is substantially the same for the party serving the interrogatory as for the party served, it is a sufficient answer to the interrogatory to specify the records from which the answer may be derived or ascertained and to afford to the party serving the interrogatory reasonable opportunity to examine, audit, or inspect the records and to make copies of the records or compilations, abstracts, or summaries from the records.

Effective Date: July 1, 1970
Amended: July 1, 1972; July 1, 1989; July 1, 1999; July 1, 2004; July 1, 2008; July 1, 2009; July 1, 2012; July 1, 2014; July 1, 2017; July 1, 2019; July 1, 2023

Staff Note (July 1, 1999 Amendment)

Rule 33(A) Availability, procedures for use

The 1999 amendment was to clarify that any party may file up to forty interrogatories without leave of court. Several nonsubstantive grammatical changes also were made.

Rule 33(B) Scope and use at trial

The 1999 amendment made grammatical changes only; no substantive change was made.

Rule 33(C) Option to produce business records

The 1999 amendment made grammatical changes only; no substantive change was made.

Staff Note (July 1, 2004 Amendment)

Rule 33(A) Availability; procedures for use

The 2004 amendment added two provisions governing the service of and response to interrogatories. New language was added to the fourth paragraph of division (A) that requires a responding party to quote the interrogatory immediately preceding the party's answer or objection. This provision ensures that the court and parties are not required to consult two documents or different parts of the same document in order to review the full text of an interrogatory and the corresponding answer or objection. The provision is similar to the second sentence of S.D. Ohio Civ. R. 26.1.

To facilitate the responding party's obligation to include the interrogatories and answers or objections in the same document, the first paragraph of division (A) was modified to require the party submitting interrogatories to provide the responding party with both a printed and an electronic copy of the interrogatories. The electronic version must be provided in a format that will enable the responding party to readily include the interrogatories and corresponding answers and objections in the same document without having to retype each interrogatory. A party who is unable to provide an electronic copy of interrogatories may seek leave of court to be relieved of the requirement.

Corresponding amendments were made to Civ.R. 36(A) relative to requests for admission.

Rule 33(D) Form of answers and objections to interrogatories

The 2004 amendment deleted language that required a party submitting interrogatories to allow sufficient space, not less than one inch, following each interrogatory in which the answering party could type an answer or objection. New language was added to division (A) governing the service of and response to interrogatories.

Staff Note (July 1, 2008 Amendment)

The text of Civ.R. 33(A) is broken into three subparts. This is intended as a stylistic change only to make the material more accessible.

Amendments to Civ.R. 33(C) clarify that the responding party's option to produce business records in which the information sought in interrogatories may be found includes the option of producing electronically stored information.

Staff Note (July 1, 2009 Amendment)

Recognizing that computer word processors have replaced the typewriter, Rule 33 was amended in 2004 to delete the former "minimum one-inch space" requirement in favor of a requirement that the party propounding interrogatories provide the responding party with an electronic copy of the interrogatories for use in preparing a new computer-generated document containing both the questions and the answers. The 2004 amendment continued to require that the printed copy be served, and only required that the electronic copy be "provided" to the party served. The amendment further permitted the electronic copy to be provided by means other than those described in Civ.R. 5(B) for service, specifically including "by electronic mail." Finally, the amendment permitted the court to relieve a party "who is unable to provide an electronic copy" of the duty to do so.

The 2004 amendment did not specify a consequence for the failure to provide an electronic copy. Because the time designated in the interrogatories for responding runs from service, and only the printed copy is served, the amendment left uncertain the obligations and appropriate remedy for a party served with a printed copy of interrogatories, but not provided with an electronic copy. The 2009 amendment specifies the consequence and appropriate remedy for this situation.

First, the amendment specifies that the electronic copy must be "reasonably useable for word processing" to enable the responding party to transcribe the responses. Next, the amendment confirms that the period for responding, which is designated by the propounding party and cannot be less than twenty-eight days, shall run from the day of service of the printed copy, and that the failure to provide an electronic copy does not alter the response period. However, if before the designated period has expired, the responding party requests that the period be enlarged pursuant to Rule 6(B) because the propounding party has not provided an electronic copy, that reason shall constitute good cause for granting the requested extension, and the court's order may require that an electronic copy be provided.

The amendment strikes a balance between the respective duties of the parties when a provision which merely makes it easier to transcribe interrogatory answers is not followed. It enforces the duty of the

party propounding interrogatories to provide an electronic copy unless otherwise relieved of that obligation by the court. At the same it time makes it clear that a responding party served with a printed copy of interrogatories cannot rely on the failure to receive an electronic copy as reason to do nothing and simply disregard the response time. A Civ.R. 6(B) request for enlargement of the period is an appropriate remedy for a responding party in this situation, and the amendment merely provides guidance in that regard. The rule states that the failure to receive an electronic copy constitutes good cause under Civ.R. 6(B). The amendment also confirms the court's discretion to relieve a party of the duty to provide an electronic copy when unable to do so, for example, when compliance would be difficult for a *pro se* party.

Similar amendments were made to Civ.R. 36, addressing the failure to provide an electronic copy of requests for admission.

Staff Note (July 1, 2012 Amendment)

The introductory paragraph of Civ.R. 33(A) and the provisions of Civ.R. 33(A)(3) are amended to eliminate difficulties raised by the 2004 amendment to Civ.R. 33(A) that requires a party serving interrogatories to "provide" an electronic copy to the served party. This amendment is enabled by the 2012 amendment to Civ.R. 5(B) which permits documents after the original complaint to be served by electronic means.

Civ.R. 5(A) requires that copies of all documents in an action be "served" on the parties. When the Civ.R. 33 requirement for an electronic copy was established in 2004, there was no provision for "service" by electronic means and it was deemed impractical to require that an electronic copy be "served" by mailing a computer disk or otherwise delivering it by one of the other methods permitted under the existing Civ.R. 5(B). Thus the 2004 amendment to Civ.R. 33 provided that a printed copy must be "served" (by one of the methods listed under Civ.R. 5(B)), and that an electronic copy also must be "'provided' on computer disk, by electronic mail, or by other means agreed to by the parties." That requirement was problematic not only because of the required dual format but also in determining a party's recourse when a paper copy was served but an electronic copy was not provided – a problem addressed by the 2009 amendment to Civ.R. 33.

The 2012 amendment simply requires that an electronic copy be served, which can be accomplished electronically under the 2012 amendment to Civ.R. 5(B), or by any other method provided under Civ.R. 5(B). Although service of a paper copy is no longer necessary, it is not prohibited and would be appropriate, for example, when a party who is unable to provide an electronic copy is relieved of that requirement by the court.

Similar amendments have been made to Civ.R. 36 relating to requests for admission.

Staff Note (July 1, 2014 Amendments)

Rule 33(A)(3) is amended to correct an oversight in the final publication of the 2012 amendments to the rule. Those prior amendments intended that interrogatories be served by electronic means making separate service of a printed copy unnecessary except for unusual circumstances. The final publication of the 2012 amendment inadvertently retained language from the prior rule stating that the designated time for responses runs from service of "a printed copy of" the interrogatories. The quoted words were not intended to be included and are stricken. A similar correction is made to Civ.R. 36 with respect to requests for admission.

Staff Note (July 1, 2017 Amendment)

Civ.R. 33(A)(2) Service of interrogatories

The rule is amended to permit service of interrogatories on parties other than the plaintiff only after service of the summons and complaint upon that party and to disallow service of interrogatories with service of the summons and complaint.

Staff Note (July 1, 2019 Amendment)

Division (A)

Recognizing the advancements in technology that have occurred since the 2004 amendment to the rule, the amendment to Division (A) changes the description of the type of electronic copy that shall be served from a copy that is “reasonably useable for word processing and provided on computer disk” to a copy “on a shareable medium and in an editable format.”

RULE 34. Producing Documents, Electronically Stored Information, and Tangible Things, or Entering Onto Land, For Inspection and Other Purposes.

(A) Scope

Subject to the scope of discovery provisions of Civ.R. 26(B), any party may serve on any other party a request to produce and permit the party making the request, or someone acting on the requesting party's behalf (1) to inspect and copy any designated documents or electronically stored information, including writings, drawings, graphs, charts, photographs, sound recordings, images, and other data or data compilations stored in any medium from which information can be obtained that are in the possession, custody, or control of the party upon whom the request is served; (2) to inspect and copy, test, or sample any tangible things that are in the possession, custody, or control of the party upon whom the request is served; (3) to enter upon designated land or other property in the possession or control of the party upon whom the request is served for the purpose of inspection and measuring, surveying, photographing, testing, or sampling the property or any designated object or operation on the property.

(B) Procedure

Without leave of court, the request may be served upon the plaintiff after commencement of the action and upon any other party after service of the summons and complaint upon that party. The request shall set forth the items to be inspected either by individual item or by category and describe each item and category with reasonable particularity. The request shall specify a reasonable time, place, and manner of making the inspection and performing the related acts. The request may specify the form or forms in which electronically stored information is to be produced, but may not require the production of the same information in more than one form. The party serving the request shall serve an electronic copy of the request on a shareable medium and in an editable format by electronic mail, or by other means agreed to by the parties. A party who is unable to provide an electronic copy of the requests may seek leave of court to be relieved of this requirement.

(1) The party upon whom the request is served shall serve a written response within a period designated in the request that is not less than twenty-eight days after the service of the request or within a shorter or longer time as the court may allow. With respect to each item or category, the response shall state that inspection and related activities will be permitted as requested, unless it is objected to, including an objection to the requested form or forms for producing electronically stored information, in which event the reasons for objection shall be stated. If objection is made to part of an item or category, the part shall be specified. If objection is made to the requested form or forms for producing electronically stored information, or if no form was specified in the request, the responding party must state the form or forms it intends to use. The party submitting the request may move for an order under Civ.R. 37 with respect to any objection to or other failure to

respond to the request or any part of the request, or any failure to permit inspection as requested.

(2) A party who produces documents for inspection shall, at its option, produce them as they are kept in the usual course of business or organized and labeled to correspond with the categories in the request.

(3) If a request does not specify the form or forms for producing electronically stored information, a responding party may produce the information in a form or forms in which the information is ordinarily maintained if that form is reasonably useable, or in any form that is reasonably useable. Unless ordered by the court or agreed to by the parties, a party need not produce the same electronically stored information in more than one form.

(C) Persons not parties

Subject to the scope of discovery provisions of Civ.R. 26(B) and 45(F), a person not a party to the action may be compelled to produce documents, electronically stored information or tangible things or to submit to an inspection as provided in Civ.R. 45.

(D) Prior to filing of action

(1) Subject to the scope of discovery provisions of Civ.R. 26(B) and 45(F), a person who claims to have a potential cause of action may file a petition to obtain discovery as provided in this rule. Prior to filing a petition for discovery, the person seeking discovery shall make reasonable efforts to obtain voluntarily the information from the person from whom the discovery is sought. The petition shall be captioned in the name of the person seeking discovery and be filed in the court of common pleas in the county in which the person from whom the discovery is sought resides, the person's principal place of business is located, or the potential action may be filed. The petition shall include all of the following:

(a) A statement of the subject matter of the petitioner's potential cause of action and the petitioner's interest in the potential cause of action;

(b) A statement of the efforts made by the petitioner to obtain voluntarily the information from the person from whom the discovery is sought;

(c) A statement or description of the information sought to be discovered with reasonable particularity;

(d) The names and addresses, if known, of any person the petitioner expects will be an adverse party in the potential action;

(e) A request that the court issue an order authorizing the petitioner to obtain the discovery.

(2) The petition shall be served upon the person from whom discovery is sought and, if known, any person the petitioner expects will be an adverse party in the potential action, by one of the methods provided in these rules for service of summons.

(3) The court shall issue an order authorizing the petitioner to obtain the requested discovery if the court finds all of the following:

(a) The discovery is necessary to ascertain the identity of a potential adverse party;

(b) The petitioner is otherwise unable to bring the contemplated action;

(c) The petitioner made reasonable efforts to obtain voluntarily the information from the person from whom the discovery is sought.

Effective Date: July 1, 1970
Amended: July 1, 1993; July 1, 1994; July 1, 2005; July 1, 2008; July 1, 2017; July 1, 2019; July 1, 2021

Staff Note (July 1, 2005 Amendment)

Rule 34(C) Persons not parties

Civ.R. 34(C) is amended to move a reference to notice of issuance of a subpoena directed to a nonparty to Civ.R. 45(A)(3). The amendments to Civ.R. 34 and 45 place all provisions requiring notice of issuance of most types of subpoena directed to nonparties appear in Civ.R. 45(A)(3) rather than being split between Civ.R. 34(C) and Civ.R. 45(A)(3). The prior arrangement made it easy to overlook the notice provisions of Civ.R. 34(C). See, e.g., *Neftzer v. Neftzer*, 140 Ohio App.3d 618, 621 (2000).

Staff Note (July 1, 2008 Amendment)

The title of this rule is changed to reflect its coverage of electronically stored information discovery.

The amendment to Civ.R. 34(A) clarifies that discovery of electronically stored information is expressly authorized and regulated by this rule.

Amendments to the first paragraph of Civ.R. 34(B) allow the requesting party to specify the form of forms in which electronically stored information should be produced. For example, the party propounding discovery seeking electronically stored information could request that a party's internal memorandums on a particular subject be produced in Word™ format, while financial records be provided in an Excel™ spreadsheet format or other commonly used format for financial information. This provision also specifies that the requesting party cannot demand that the respondent provide the same information in more than one electronic format. If a party believes that the form or forms specified by an opponent is unduly burdensome or expensive, the party can object to the discovery under Rule 34(B)(1) and then negotiate a different, mutually acceptable form with the opponent or seek relief from the court under Rule 26(B)(4).

The remaining text of existing Civ.R. 34(B) is broken into subparts (1) and (2). This is solely a stylistic change intended to make the material more accessible.

Civ.R. 34(B)(1) requires the party responding to a request to specifically articulate its objection to the form of production of electronically stored information that the opponent has requested. It also requires a responding party to identify the form in which electronically stored information will be produced if the requesting party has not specified the format.

Civ.R. 34(B)(3) applies when a party does not specify the form in which electronically stored information should be produced; in that situation the responding party has the option of producing the materials in the form in which the information is ordinarily maintained or another form provided that the form produced is reasonable. This section also clarifies that the respondent only has to provide electronically stored information in one format unless the court orders or the parties agree to a different arrangement. Civ.R. 34(B)(3) is added to allow production of electronically stored information in more than one format if agreed to by the parties or ordered by the court.

Civ.R. 34(C) clarifies that discovery of electronically stored information from nonparties is governed by Rule 45.

Staff Note (July 1, 2017 Amendment)

Civ.R. 34(B) Service of requests for production

The rule is amended to permit service of requests for production on parties other than the plaintiff only after service of the summons and complaint upon that party and to disallow service of requests for production with service of the summons and complaint.

Staff Note (July 1, 2019 Amendment)

Division (B)

Division (B) of the rule is amended to include a requirement that the party serving this form of discovery requests include an electronic copy in a word-processing format. This requirement is already found in Civ.R. 33(A) and Civ.R. 36(A) for interrogatories and requests for admissions, respectively. Its inclusion here recognizes the reality that practitioners typically respond to this form of discovery requests in writing in addition to any accompanying responsive materials.

RULE 35. Physical and Mental Examination of Persons.

(A) Order for examination

When the mental or physical condition (including the blood group) of a party, or of a person in the custody or under the legal control of a party, is in controversy, the court in which the action is pending may order the party to submit himself to a physical or mental examination or to produce for such examination the person in the party's custody or legal control. The order may be made only on motion for good cause shown and upon notice to the person to be examined and to all parties and shall specify the time, place, manner, conditions, and scope of the examination and the person or persons by whom it is to be made.

(B) Examiner's report

(1) If requested by the party against whom an order is made under Rule 35(A) or the person examined, the party causing the examination to be made shall deliver to such party or person a copy of the detailed written report submitted by the examiner to the party causing the examination to be made. The report shall set out the examiner's findings, including results of all tests made, diagnoses and conclusions, together with like reports of all earlier examinations of the same condition. After delivery, the party causing the examination shall be entitled upon request to receive from the party against whom the order is made a like report of any examination, previously or, thereafter made, of the same condition, unless, in the case of a report of examination of a person not a party, the party shows that he is unable to obtain it. The court on motion may make an order against a party to require delivery of a report on such terms as are just. If an examiner fails or refuses to make a report, the court on motion may order, at the expense of the party causing the examination, the taking of the deposition of the examiner if his testimony is to be offered at trial.

(2) By requesting and obtaining a report of the examination so ordered or by taking the deposition of the examiner, the party examined waives any privilege he may have in that action or any other involving the same controversy, regarding the testimony of every other person who has examined or may thereafter examine him in respect of the same mental or physical condition.

(3) This subdivision, 35(B), applies to examinations made by agreement of the parties, unless the agreement expressly provides otherwise.

Effective Date: July 1, 1970

RULE 36. Requests for Admission.

(A) Availability; procedures for use

A party may serve upon any other party a written request for the admission, for purposes of the pending action only, of the truth of any matters within the scope of Civ.R. 26(B) set forth in the request, that relate to statements or opinions of fact or of the application of law to fact, including the genuineness of any documents described in the request. Copies of documents shall be served with the request unless they have been or are otherwise furnished or made available for inspection and copying. The request may, without leave of court, be served upon the plaintiff after commencement of the action and upon any other party after service of the summons and complaint upon that party. Whenever feasible, the party serving the request for admission shall serve the request pursuant to Civ.R. 5(B)(2)(f) or (B)(3)on a shareable medium and in an editable format. If the party being served is unrepresented by counsel, the serving party also shall provide a paper copy of the request to the unrepresented party. A party who is unable to serve a request for admission electronically may serve the request by other means permitted under Civ.R. 5(B)(2).

(1) Each matter of which an admission is requested shall be separately set forth. The party to whom the requests for admissions have been directed shall quote each request for admission immediately preceding the corresponding answer or objection. The matter is admitted unless, within a period designated in the request, not less than twenty-eight days after service of the request or within such shorter or longer time as the court may allow, the party to whom the request is directed serves upon the party requesting the admission a written answer or objection addressed to the matter, signed by the party or by the party's attorney.

(2) If objection is made, the reasons therefor shall be stated. The answer shall specifically deny the matter or set forth in detail the reasons why the answering party cannot truthfully admit or deny the matter. A denial shall fairly meet the substance of the requested admission, and when good faith requires that a party qualify his or her answer, or deny only a part of the matter of which an admission is requested, the party shall specify so much of it as is true and qualify or deny the remainder. An answering party may not give lack of information or knowledge as a reason for failure to admit or deny unless the party states that the party has made reasonable inquiry and that the information known or readily obtainable by the party is insufficient to enable the party to admit or deny. A party who considers that a matter of which an admission has been requested presents a genuine issue for trial may not, on that ground alone, object to the request; the party may, subject to the provisions of Civ.R. 37(C), deny the matter or set forth reasons why the party cannot admit or deny it.

(3) The party who has requested the admissions may move for an order with respect to the answers or objections. Unless the court determines that an

objection is justified, it shall order that an answer be served. If the court determines that an answer does not comply with the requirements of this rule, it may order either that the matter is admitted or that an amended answer be served. The court may, in lieu of these orders, determine that final disposition of the request be made at a pretrial conference or at a designated time prior to trial. The provisions of Civ.R. 37(A)(5) apply to the award of expenses incurred in relation to the motion.

(B) Effect of admission

Any matter admitted under this rule is conclusively established unless the court on motion permits withdrawal or amendment of the admission. Subject to the provisions of Civ.R. 16 governing modification of a pretrial order, the court may permit withdrawal or amendment when the presentation of the merits of the action will be subserved thereby and the party who obtained the admission fails to satisfy the court that withdrawal or amendment will prejudice the party in maintaining his action or defense on the merits. Any admission made by a party under this rule is for the purpose of the pending action only and is not an admission by the party for any other purpose nor may it be used against the party in any other proceeding.

(C) Document containing request for admission

If a party includes a request for admission in a document containing any other form of discovery, the party shall include a caption on the document that indicates the document contains a request for admission. A party is not required to respond to requests for admission that are not made in compliance with this division.

Effective Date: July 1, 1970
Amended: July 1, 1972; July 1, 1976; July 1, 2004; July 1, 2005; July 1, 2008; July 1. 2009; July 1, 2012; July 1, 2014; July 1, 2017; July 1, 2019; July 1, 2023

Staff Note (July 1, 2004 Amendment)

Rule 36(A) Availability; procedures for use

The 2004 amendment added two provisions governing the service of and response to requests for admissions. New language was added to the second paragraph of division (A) that requires a responding party to quote the request for admission immediately preceding the party's answer or objection. This provision ensures that the court and parties are not required to consult two documents or different parts of the same document in order to review the full text of a request for admission and the corresponding answer or objection. The provision is similar to the second sentence of S.D. Ohio Civ.R. 26.1.

To facilitate the responding party's obligation to include the request for admission and answer or objection in the same document, the first paragraph of division (A) was modified to require the party submitting requests for admissions to provide the responding party with both a printed and an electronic copy of the requests for admissions. The electronic version must be provided in a format that will enable the responding party to readily include the requests for admissions and corresponding answers and objections in the same document without having to retype each request for admission. A party who is unable to provide an electronic copy of requests for admission may seek leave of court to be relieved of the requirement.

Corresponding amendments were made to Civ.R. 33(A) relative to interrogatories.

Rule 36(C) Form of answers and objections to requests for admissions

The 2004 amendment deleted language that required a party submitting requests for admissions to allow sufficient space, not less than one inch, following each request for admission, in which the answering party could type an answer or objection. New language was added to division (A) governing the service of and response to requests for admissions.

Staff Note (July 1, 2005 Amendment)

Rule 36(C) Document containing request for admission

Civ.R. 36 is amended to require that a party include a specific caption on any document that includes one or more requests for admission. The amended rule recognizes that, unlike Civ.R. 33 (written interrogatories) and Civ.R. 34 (requests for production), Civ.R. 36 imposes a virtually self-executing sanction, *i.e.*, admission by default, on a party that fails timely to respond. See generally *Cleveland Trust Co. v. Willis*, 20 Ohio St.3d 66 (1985).

The Rules Advisory Committee is aware that parties intermix requests for admission with Civ.R. 33 interrogatories and Civ.R. 34 requests for production. See, e.g., *Seecharan v. Macy*, 1999 WL 980579, No. 75130 (8th Dist. Ct. App., Cuyahoga, 10-28-99) (no abuse of discretion to deny motion to deem matters admitted; "the trial court refused to countenance the obscuring of requests for admissions in the midst of other discovery requests"). The Committee believes that although there often are good reasons for combining requests for admission with other discovery requests, the nature of some discovery documents can cause requests for admission to be overlooked and result in inadvertent admissions by default. The amendment is intended to minimize this risk by requiring the propounding party to include, in the caption of the document, a clear notice that the document contains requests for admission. A party is not required to respond to requests for admission that are not made in compliance with division (C).

Staff Note (July 1, 2008 Amendment)

The text of Civ.R. 36(A) is broken into three subparts. This is intended as a stylistic change only to make the material more accessible.

Staff Note (July 1, 2009 Amendment)

Recognizing that computer word processors have replaced the typewriter, Rule 36 was amended in 2004 to delete the former "minimum one-inch space" requirement in favor of a requirement that the party requesting admissions provide the responding party with an electronic copy of the request for use in preparing a new computer-generated document containing both the requests and the responses. The 2004 amendment continued to require that the printed copy be served, and only required that the electronic copy be "provided" to the party served. The amendment further permitted the electronic copy to be provided by means other than those described in Civ.R. 5(B) for service, specifically including "by electronic mail." Finally, the amendment permitted the court to relieve a party "who is unable to provide an electronic copy" of the duty to do so.

The 2004 amendment did not specify a consequence for the failure to provide an electronic copy. Because the time designated in the request for responding runs from service, and only the printed copy is served, the amendment left uncertain the obligations and appropriate remedy for a party served with a printed copy of requests for admission, but not provided with an electronic copy. The 2009 amendment specifies the consequence and appropriate remedy for this situation.

The amendment confirms that the period for responding, which is designated by the requesting party and cannot be less than twenty-eight days, shall run from the day of service of the printed copy, and that the failure to provide an electronic copy does not alter the response period. However, if before the designated period has expired, the responding party requests that the period be enlarged pursuant to Rule 6(B) because the requesting party has not provided an electronic copy, that reason shall constitute good cause for granting the requested extension, and the court's order may require that an electronic copy be provided.

The amendment strikes a balance between the respective duties of the parties when a provision which merely makes it easier to transcribe the responses to a request for admission is not followed. It enforces the duty of the party requesting admissions to provide an electronic copy unless otherwise relieved of that obligation by the court. At the same it time makes it clear that a responding party served with a printed copy of a request for admissions cannot rely on the failure to receive an electronic copy as reason to do nothing and simply disregard the response time. A Civ.R. 6(B) request for enlargement of the period is an appropriate remedy for a responding party in this situation, and the amendment merely provides guidance in that regard. The rule states that the failure to receive an electronic copy constitutes good cause under Civ.R. 6(B). The amendment also confirms the court's discretion to relieve a party of the duty to provide an electronic copy when unable to do so, for example, when compliance would be difficult for a *pro se* party.

Similar amendments were made to Civ.R. 33, addressing the failure to provide an electronic copy of interrogatories.

Staff Note (July 1, 2012 Amendment)

The introductory paragraph of Civ.R. 36(A) and the provisions of Civ.R. 36(A)(1) are amended to eliminate difficulties raised by the 2004 amendment to Civ.R. 36(A) that requires a party serving requests for admission to "provide" an electronic copy to the served party. This amendment is enabled by the 2012 amendment to Civ.R. 5(B) which permits documents after the original complaint to be served by electronic means.

Civ.R. 5(A) requires that copies of all documents in an action be "served" on the parties. When the Civ.R. 36 requirement for an electronic copy was established in 2004, there was no provision for "service" by electronic means and it was deemed impractical to require that an electronic copy be "served" by mailing a computer disk or otherwise delivering it by one of the other methods permitted under the existing Civ.R. 5(B). Thus the 2004 amendment to Civ.R. 36 provided that a printed copy must be "served" (by one of the methods listed under Civ.R. 5(B)), and that an electronic copy also must be "'provided' on computer disk, by electronic mail, or by other means agreed to by the parties." That requirement was problematic not only because of the required dual format but also in determining a party's recourse when a paper copy was served but an electronic copy was not provided – a problem addressed by the 2009 amendment to Civ.R. 36.

The 2012 amendment simply requires that an electronic copy be served, which can be accomplished electronically under the 2012 amendments to Civ.R. 5(B), or by any other method provided under Civ.R. 5(B). Although service of a paper copy is no longer necessary, it is not prohibited and would be appropriate, for example, when a party who is unable to provide an electronic copy is relieved of that requirement by the court.

Similar amendments have been made to Civ.R. 33 relating to interrogatories.

Staff Note (July 1, 2014 Amendment)

Rule 36(A)(1) is amended to correct an oversight in the final publication of the 2012 amendments to the rule. Those prior amendments intended that requests for admission be served by electronic means making separate service of a printed copy unnecessary except for unusual circumstances. The final

publication of the 2012 amendment inadvertently retained language from the prior rule stating that the designated time for responses runs from service of "a printed copy of" the requests. The quoted words were not intended to be included and are stricken. A similar correction is made to Civ.R. 33 with respect to interrogatories.

Staff Note (July 1, 2017 Amendment)

Civ.R. 36(A) Requests for admission

The rule is amended to permit service of requests for admission on parties other than the plaintiff only after service of the summons and complaint upon that party and to disallow service of requests for admission with service of the summons and complaint

Staff Note (July 1, 2019 Amendment)

Division (A)

Recognizing the advancements in technology that have occurred since the 2004 amendment to the rule, the amendment also changes the description of the type of electronic copy that shall be served from a copy that is "reasonably useable for word processing and provided on computer disk" to a copy "on a shareable medium and in an editable format."

RULE 37. Failure to Make Discovery, Disclosures, or Participate in Discovery-Related Obligations; Sanctions.

(A) Motion for an order compelling discovery

(1) In general

On notice to other parties and all affected persons, a party may move for an order compelling discovery. The motion shall include a certification that the movant has in good faith conferred or attempted to confer with the person or party failing to make discovery in an effort to obtain it without court action.

(2) Appropriate court

A motion for an order to a party or a deponent shall be made to the court where the action is pending.

(3) Specific motions

(a) To compel a discovery response

A party seeking discovery may move for an order compelling an answer, designation, production, or inspection. This motion may be made if:

(i) A deponent fails to answer a question asked under Civ.R. 30 or Civ.R. 31;

(ii) A corporation or other entity fails to make a designation under Civ.R. 30(B)(5) or Civ.R. 31(A);

(iii) A party fails to answer an interrogatory submitted under Civ.R. 33;

(iv) A party fails to respond that inspection will be permitted—or fails to permit inspection—as requested under Civ.R. 34.

(b) Related to a deposition

When taking an oral deposition, the party asking a question may complete or adjourn the examination before moving for an order.

(4) Evasive or incomplete answer or response

For purposes of division (A) of this rule, an evasive or incomplete answer or response shall be treated as a failure to answer or respond.

(5) Payment of expenses; protective orders

(a) If the motion is granted

If the motion is granted, the court shall, after giving an opportunity to be heard, require the party or deponent whose conduct necessitated the motion, the party or attorney advising that conduct, or both to pay the movant's reasonable expenses incurred in making the motion, including attorney's fees. But the court shall not order this payment if:

(i) The movant filed the motion before attempting in good faith to obtain the discovery without court action;

(ii) The opposing party's response or objection was substantially justified; or

(iii) Other circumstances make an award of expenses unjust.

(b) If the motion is denied

If the motion is denied, the court may issue any protective order authorized under Civ.R. 26(C) and shall, after giving an opportunity to be heard, require the movant, the attorney filing the motion, or both to pay the party or deponent who opposed the motion its reasonable expenses incurred in opposing the motion, including attorney's fees. But the court shall not order this payment if the motion was substantially justified or other circumstances make an award of expenses unjust.

(c) If the motion is granted in part and denied in part

If the motion is granted in part and denied in part, the court may issue any protective order authorized under Civ.R. 26(C) and may, after giving an opportunity to be heard, apportion reasonable expenses for the motion.

(B) Failure to comply with order; sanctions

(1) For not obeying a discovery order

If a party or a party's officer, director, or managing agent or a witness designated under Civ.R. 30(B)(5) or Civ.R. 31(A) fails to obey an order to provide or permit discovery, including an order made under Civ.R. 35 or Civ.R. 37(A), the court may issue further just orders. They may include the following:

(a) Directing that the matters embraced in the order or other designated facts shall be taken as established for purposes of the action as the prevailing party claims;

(b) Prohibiting the disobedient party from supporting or opposing designated claims or defenses, or from introducing designated matters in evidence;

(c) Striking pleadings in whole or in part;

(d) Staying further proceedings until the order is obeyed dismissing;

(e) Dismissing the action or proceeding in whole or in part;

(f) Rendering a default judgment against the disobedient party; or

(g) Treating as contempt of court the failure to obey any order~~s~~ except an order to submit to a physical or mental examination;

(2) For not producing a person for examination

If a party fails to comply with an order under Civ.R. 35(A) requiring it to produce another person for examination, the court may issue any of the orders listed in Civ.R. 37(B)(1), unless the disobedient party shows that it cannot produce the other person.

(3) Payment of expenses

Instead of or in addition to the orders above, the court shall order the disobedient party, the attorney advising that party, or both to pay the reasonable expenses, including attorney's fees, caused by the failure, unless the failure was substantially justified or other circumstances make an award of expenses unjust.

(C) Sanctions for failure to disclose, to participate in a Civ.R. 26(F) or Civ.R. 30(B)(5) conference, to supplement an earlier response, or to admit

(1) Failure to disclose or supplement

If a party fails to provide information or identify a witness in a timely manner as required by Civ.R. 26(A) or (E), the party is not allowed to use that information or witness to supply evidence on a motion, at a hearing, or at a trial, unless the failure was substantially justified or is harmless. In addition to or instead of this sanction, the court, on motion and after giving an opportunity to be heard, may do any of the following:

(a) Order payment of the reasonable expenses, including attorney's fees, caused by the failure;

(b) Inform the jury of the party's failure;

(c) Impose other appropriate sanctions, including any of the orders listed in Civ.R. 37(B)(1)(a) through (g).

(2) Failure to participate

If a party fails to participate in a conference or in drafting a discovery plan required by Civ.R. 26(F), or a party fails to confer in good faith as required by Civ.R. 30(B)(5), the court, on motion and after giving an opportunity to be heard, may do either of the following:

(a) Order payment of the reasonable expenses, including attorney's fees, caused by the failure;

(b) Impose other appropriate sanctions on a party or the party's counsel including any of the orders listed in Civ.R. 37(B)(1)(a) through (g).

(3) Failure to admit

If a party fails to admit what is requested under Civ.R. 36, and if the requesting party later proves a document to be genuine or the matter true, the requesting party may move that the party who failed to admit pay the reasonable expenses, including attorney's fees, incurred in making that proof. The court shall so order unless any of the following circumstances apply:

(a) The request was held objectionable under Civ.R. 36(A);

(b) The admission sought was of no substantial importance;

(c) The party failing to admit had a reasonable ground to believe that it might prevail on the matter;

(d) There was other good reason for the failure to admit.

(D) Party's failure to attend its own deposition, serve answers to interrogatories, or respond to a request for inspection

(1) In general

(a) Motion; grounds for sanctions

The court may, on motion, order sanctions if:

(i) A party or a party's officer, director, or a managing agent or a person designated under Civ.R. 30(B)(5) or Civ.R. 31(A) fails, after being served with a proper notice, to appear for that person's deposition; or

(ii) A party, after being properly served with interrogatories under Civ.R. 33 or a request for inspection under Civ.R. 34, fails to serve its answers, objections, or written response.

(b) Certification

A motion for sanctions for failing to answer or respond shall include a certification that the movant has in good faith conferred or attempted to confer with the party failing to act in an effort to obtain the answer or response without court action.

(2) Unacceptable excuse for failing to act

A failure described in Civ.R. 37(D)(1)(a) is not excused on the ground that the discovery sought was objectionable, unless the party failing to act has a pending motion for a protective order under Civ.R. 26(C).

(3) Types of sanctions

Sanctions may include any of the orders listed in Civ.R. 37(B)(1)(a) through (f). Instead of or in addition to these sanctions, the court shall require the party failing to act, the attorney advising that party, or both to pay the reasonable expenses, including attorney's fees, caused by the failure, unless the failure was substantially justified or other circumstances make an award of expenses unjust.

(E) Failure to preserve electronically stored information

If electronically stored information that should have been preserved in the anticipation or conduct of litigation is lost because a party failed to take reasonable steps to preserve it, and it cannot be restored or replaced through additional discovery, the court:

(1) Upon finding prejudice to another party from loss of the information, may order measures no greater than necessary to cure the prejudice; or

(2) Only upon finding that the party acted with the intent to deprive another party of the information’s use in the litigation may:

(a) Presume that the lost information was unfavorable to the party;

(b) Instruct the jury that it may or must presume the information was unfavorable to the party; or

(c) Dismiss the action or enter a default judgment.

Effective Date: July 1, 1970
Amended: July 1, 1994; July 1, 2008; July 1, 2016; July 1, 2021; July 1, 2023

Staff Note (July 1, 2008 Amendment)

Civ.R. 37(F) provides factors for judges to consider when a party seeks sanctions against an opponent who has lost potentially relevant electronically stored information. This rule does not attempt to address the larger question of when the duty to preserve electronically stored information is triggered. That matter is addressed by case law and is generally left to the discretion of the trial judge.

Staff Note (July 1, 2016 Amendment)

The rule is amended to adopt the 2007 stylistic changes to Fed.R.Civ.P. 37. In adopting those federal stylistic changes, the amendments also add provisions of the Federal rule that make the following substantive changes to existing Civ.R. 37:

1. Including within the scope of amended Civ.R. 37(A)(3), "a corporation or other entity fails to make a designation under Civ.R. 30(B)(5) or Civ.R. 31(A)";

2. Adding to the exceptions to amended Civ.R. 37(A)(5), "the movant filed the motion before attempting in good faith to obtain the discovery without court action";

3. Adding to the remedies available under amended Civ.R. 37(A)(5)(b) and Civ.R. 37(A)(5)(c), "the court may issue any protective order authorized under Rule 26(C)"; and

4. Adding amended Civ.R. 37(C)(1) addressing failure to supplement an earlier response.

The 2016 amendments to the Ohio rule do not incorporate the 2015 changes made to Fed.R.Civ.P. 37.

TITLE VI. TRIALS.

RULE 38. Jury Trial of Right.

(A) Right preserved

The right to trial by jury shall be preserved to the parties inviolate.

(B) Demand

Any party may demand a trial by jury on any issue triable of right by a jury by serving upon the other parties a demand therefor at any time after the commencement of the action and not later than fourteen days after the service of the last pleading directed to such issue. Such demand shall be in writing and may be indorsed upon a pleading of the party. If the demand is indorsed upon a pleading the caption of the pleading shall state "jury demand endorsed hereon." In an action for appropriation of a right of way brought by a corporation pursuant to Article XIII, Section 5, of the Ohio Constitution, the jury shall be composed of twelve members unless the demand specifies a lesser number; and in the event of timely demand by more than one party in such action the jury shall be composed of the greater number not to exceed twelve. In all other civil actions the jury shall be composed of eight members unless the demand specifies a lesser number; and in the event of timely demand by more than one party in such actions the jury shall be composed of the greater number not to exceed eight.

(C) Specification of issues

In his demand a party may specify the issues which he wishes so tried; otherwise he shall be deemed to have demanded trial by jury for all the issues so triable. If he has demanded trial by jury for only some of the issues, any other party within fourteen days after service of the demand or such lesser time as the court may order, may serve a demand for trial by jury of any other or all of the issues of fact in the action.

(D) Waiver

The failure of a party to serve a demand as required by this rule and to file it as required by Rule 5(D) constitutes a waiver by him of trial by jury. A demand for trial by jury made as herein provided may not be withdrawn without the consent of the parties.

Effective Date: July 1, 1970
Amended: July 1, 1972; July 1, 1976

RULE 39. Trial by Jury or by the Court.

(A) By jury

When trial by jury has been demanded as provided in Rule 38, the action shall be designated upon the docket as a jury action. The trial of all issues so demanded shall be by jury, unless (1) the parties or their attorneys of record, by written stipulation filed with the court or by an oral stipulation made in open court and entered in the record, consent to trial by the court sitting without a jury or (2) the court upon motion or of its own initiative finds that a right of trial by jury of some or all of those issues does not exist. The failure of a party or his attorney of record either to answer or appear for trial constitutes a waiver of trial by jury by such party and authorizes submission of all issues to the court.

(B) By the court

(1) Issues not demanded for trial by jury as provided in Civ.R. 38 shall be tried by the court; but, notwithstanding the failure of a party to demand a jury in an action in which such a demand might have been made of right, the court in its discretion upon motion may order a trial by a jury of any or all issues.

(2) No later than the deadline set in a case scheduling order or thirty days before a scheduled trial, a party may request that a trial to the court be conducted using live two-way video and audio conference technology. The requesting party shall indicate in the request whether any special accommodations are anticipated or required.

(3) Upon a party's request under division (B)(2) of this rule, the court may, in its discretion, conduct the trial using live two-way video and audio conference technology. In deciding on the party's request, the court shall consider the views of the parties, the anticipated probative value of the evidence, difficulty and expense of presenting witnesses by physical presence versus remote presence, convenience and efficiency for the parties to the case, and the nature and complexity of the issues to be tried. No trial shall be conducted remotely over the objection of a party to the case unless one of the parties is restricted in physical appearance due to one of the following circumstances, or for other good cause shown:

(a) Active duty in the United States military;

(b) Incarceration;

(c) Medical restrictions;

(d) Significant travel distance from court.

(C) Advisory jury and trial by consent

In all actions not triable of right by a jury (1) the court upon motion or on its own initiative may try any issue with an advisory jury or (2) the court, with the consent of both parties, may order a trial of any issue with a jury, whose verdict has the same effect as if trial by jury had been a matter of right.

Effective Date: July 1, 1970
Amended: July 1, 1971; July 1, 2023

Staff Note (July 1, 2023 Amendment)

A nonexclusive list of factors that courts and litigants may consider in regard to remote trials or hearings includes (1) the age and any disabilities or special needs of a witness that may affect the taking of testimony; (2) whether language translation will be required; (3) procedures available for handling exhibits or demonstrations; (4) arrangements for making and ruling on objections or for sidebar conferences within or outside the hearing of a witness appearing by remote presence; (5) limitations upon persons who may be present in the location where the witness testifies, assuring identification of all such persons prior to the testimony; and (6) whether any technological issues involving the video display or recording of the trial or hearing via remote presence may affect the ability to create a clear record of all testimony.

RULE 40. Pre-Recorded Testimony.

All of the testimony and such other evidence as may be appropriate may be presented at a trial by video recording, subject to the provisions of the Rules of Superintendence.

Effective Date: July 1, 1972
Amended: July 1, 2013

Staff Note (July 1, 2013 Amendment)

Rule 40 is amended to reflect that modern technology now encompasses digital video recording. The amendment is intended to clarify that presentation by video, analog or digital, is permissible provided that the recording complies with the provisions of the Rules of Superintendence for the Courts of Ohio.

RULE 41. Dismissal of Actions.

(A) Voluntary dismissal: effect thereof

(1) By plaintiff; by stipulation

Subject to the provisions of Civ.R. 23(E), Civ.R. 23.1, and Civ.R. 66, a plaintiff, without order of court, may dismiss all claims asserted by that plaintiff against a defendant by doing either of the following:

(a) Filing a notice of dismissal at any time before the commencement of trial unless a counterclaim which cannot remain pending for independent adjudication by the court has been served by that defendant;

(b) Filing a stipulation of dismissal signed by all parties who have appeared in the action.

Unless otherwise stated in the notice of dismissal or stipulation, the dismissal is without prejudice, except that a notice of dismissal operates as an adjudication upon the merits of any claim that the plaintiff has once dismissed in any court.

(2) By order of court

Except as provided in division (A)(1) of this rule, a claim shall not be dismissed at the plaintiff's instance except upon order of the court and upon such terms and conditions as the court deems proper. If a counterclaim has been pleaded by a defendant prior to the service upon that defendant of the plaintiff's motion to dismiss, a claim shall not be dismissed against the defendant's objection unless the counterclaim can remain pending for independent adjudication by the court. Unless otherwise specified in the order, a dismissal under division (A)(2) of this rule is without prejudice.

(B) Involuntary dismissal: effect thereof

(1) Failure to prosecute

Where the plaintiff fails to prosecute, or comply with these rules or any court order, the court upon motion of a defendant or on its own motion may, after notice to the plaintiff's counsel, dismiss an action or claim.

(2) Dismissal; non-jury action

After the plaintiff, in an action tried by the court without a jury, has completed the presentation of the plaintiff’s evidence, the defendant, without waiving the right to offer evidence in the event the motion is not granted, may move for a dismissal on

the ground that upon the facts and the law the plaintiff has shown no right to relief. The court as trier of the facts may then determine them and render judgment against the plaintiff or may decline to render any judgment until the close of all the evidence. If the court renders judgment on the merits against the plaintiff, the court shall make findings as provided in Civ.R. 52 if requested to do so by any party.

(3) Adjudication on the merits; exception

A dismissal under division (B) of this rule and any dismissal not provided for in this rule, except as provided in division (B)(4) of this rule, operates as an adjudication upon the merits unless the court, in its order for dismissal, otherwise specifies.

(4) Failure other than on the merits

A dismissal for either of the following reasons shall operate as a failure otherwise than on the merits:

(a) Lack of jurisdiction over the person or the subject matter;

(b) Failure to join a party under Civ.R. 19 or Civ.R. 19.1.

(C) Dismissal of counterclaim, cross-claim, or third-party claim

The provisions of this rule apply to the dismissal of any counterclaim, cross-claim, or third-party claim. A voluntary dismissal by the claimant alone pursuant to division (A)(1) of this rule shall be made before the commencement of trial.

(D) Costs of previously dismissed action

If a plaintiff who has once dismissed a claim in any court commences an action based upon or including the same claim against the same defendant, the court may make such order for the payment of costs of the claim previously dismissed as it may deem proper and may stay the proceedings in the action until the plaintiff has complied with the order.

Effective Date: July 1, 1970
Amended: July 1, 1971; July 1, 1972; July 1, 2001

Staff Note (July 1, 2001 Amendment)

Civil Rule 41 Dismissal of Actions

This rule was amended (1) to reflect more precisely its interpretation by the Supreme Court in *Denham v. City of New Carlisle*, 86 Ohio St. 3d 594 (1999); (2) to conform Civ.R. 41(D) with Civ.R. 41(A) as amended; and (3) to reflect that Civ.R. 23.1 provides that a shareholder derivative action "shall not be dismissed or compromised without the approval of the court."

In divisions (B) and (C), masculine references were changed to gender-neutral language, the style used for rule references was changed, and other grammatical changes were made. No substantive amendment to divisions (B) and (C) was intended.

RULE 42. Consolidation; Separate Trials.

(A) Consolidation

(1) Generally

If actions before the court involve a common question of law or fact, the court may:

(a) Join for hearing or trial any or all matters at issue in the actions;

(b) Consolidate the actions; or

(c) Issue any other orders to avoid unnecessary cost or delay.

(2) Asbestos, silicosis, or mixed dust disease actions

In tort actions involving an asbestos claim, a silicosis claim, or a mixed dust disease claim, the court may consolidate pending actions for case management purposes. For purposes of trial, the court may consolidate pending actions only with the consent of all parties. Absent the consent of all parties, the court may consolidate, for purposes of trial, only those pending actions relating to the same exposed person and members of the exposed person's household.

(3) As used in division (A)(2) of this rule:

(a) "Asbestos claim" has the same meaning as in R.C. 2307.91;

(b) "Silicosis claim" and "mixed dust disease claim" have the same meaning as in R.C. 2307.84;

(c) In reference to an asbestos claim, "tort action" has the same meaning as in R.C. 2307.91;

(d) In reference to a silicosis claim or a mixed dust disease claim, "tort action" has the same meaning as in R.C. 2307.84.

(B) Separate trials

For convenience, to avoid prejudice, or to expedite or economize, the court may order a separate trial of one or more separate issues, claims, cross-claims, counterclaims, or third-party claims. When ordering a separate trial, the court shall preserve any right to a jury trial.

Effective Date: July 1, 1970
Amended: July 1, 2005; July 1, 2015

Staff Note (July 1, 2005 Amendment)

Civ.R. 42 is amended in response to requests from the General Assembly contained in Section 3 of Am. Sub. H.B. 342 of the 125th General Assembly, effective September 1, 2004, and Section 4 of Am. Sub. H.B. 292 of the 125th General Assembly, effective September 2, 2004. These acts contain provisions governing tort claims that allege exposure and injury by persons exposed to asbestos, silica, or mixed dust. Each act includes a request that the Supreme Court amend the Rules of Civil Procedure "to specify procedures for venue and consolidation" of asbestosis, silicosis, and mixed dust disease claims.

Rule 42(A) Consolidation

Civ.R. 42(A)(2) provides that a trial court must have the consent of the parties before consolidating actions for trial that involve an asbestos claim, a silicosis claim, or a mixed dust disease claim. Absent the consent of the parties, the court may consolidate for trial only those claims that involve the same exposed person and members of the exposed person's household. The rule expressly permits the consolidation of pending actions for case management purposes. Division (A)(3) incorporates the statutory definitions of "asbestos claim," "silicosis claim," "mixed dust disease claim," and "tort action" for purposes of Civ.R. 42(A)(2).

Staff Note (July 1, 2015 Amendment)

Stylistic Changes

The rule is amended to conform the provisions of Civ.R. 42(A)(1) and Civ.R. 42(B) to the 2007 stylistic changes to Federal Rule 42. The amendments are nonsubstantive. Rule 42(A)(2), not found in the federal rule, remains unchanged.

Rule 42(B) R.C. 2315.21(B)(1) Bifurcation

R.C. 2315.21(B)(1) requires a two-stage bifurcation of the trial upon the motion of any party in a tort action that is tried to a jury and in which a plaintiff makes a claim for compensatory damages and a claim for punitive or exemplary damages. In *Havel v. Villa St. Joseph,* 131 Ohio St.3d 235, 2012-Ohio-552, the Ohio Supreme Court held that the statute creates a substantive right and, therefore, takes precedence over the discretion conferred by Civ.R. 42(B) to grant or deny bifurcation. In cases governed by R.C. 2315.21(B), upon the motion of any party the trial court must grant the two-stage bifurcation required by the statute.

RULE 43. Taking Testimony.

(A) In open court

At trial or hearing, the witnesses' testimony shall be taken in open court unless a statute, the Rules of Evidence, these rules, or other rules adopted by the Supreme Court provide otherwise. For good cause and with appropriate safeguards, the court may permit testimony in open court by remote presence.

(B) Notice

A request to present testimony remotely shall be discussed among counsel and unrepresented parties and filed with the court no later than the deadline set in the case scheduling order or thirty days before the trial or hearing, unless for good cause the court permits later notice.

(C) Evidence on a motion

When a motion relies on facts outside the record, the court may hear the matter on affidavits or may hear it wholly or partly on oral testimony or on depositions.

(D) Oath or Affirmation

(1) The oath or affirmation of the witness may be administered in a manner that allows the person authorized to administer it to verify the identity of the witness at the time it is administered.

(2) Every witness testifying remotely, including those outside this state, in a trial or other proceeding in open court in Ohio must affirm on the record that the witness has submitted to the jurisdiction of the Ohio court for the purpose of enforcement of his or her oath or affirmation, including any consideration of perjury charges arising from such testimony.

Effective Date: July 1, 2015; July 1, 2023

Staff Note (July 1, 2015 Amendment)

The July 1, 2015 amendment adopts a new rule – Civ.R. 43 – heretofore designated within the Ohio rules as "Reserved". The new rule is modeled on Fed.R.Civ.P. 43. Division (A) recognizes the availability of modern electronic transmission facilities by specifically authorizing live open court testimony from a location outside the courtroom. Consistent with Fed.R.Civ.P. 43(c) division (B) provides that a court may, in its discretion, consider facts presented by affidavit in deciding a motion.

Staff Note (July 1, 2023 Amendment)

The July 1, 2023, staff note for Civ.R. 39 suggests factors sensibly discussed when considering remote proceedings using this rule.

The new division (D)(2) is added to explicitly provide "long-arm" jurisdiction over a witness testifying in open court remotely, whether from inside or outside Ohio. Some means is needed to handle perjury or more common issues, such as a witness who refuses to answer a proper question. This new division explicitly gives the presiding judicial officer the same authority with a virtual witness as is available when a witness testifies in person in the court. The court, counsel, and pro se litigants should be mindful of two practical concerns when using virtual witnesses: first, it may be appropriate not only to require the witness to affirm on the record that the witness understands he or she has submitted to the authority of the Ohio court, but also to require the witness to display a driver's license or other photographic identification if he or she is not known or recognizable to those in the court; and second, counsel or pro se litigants should inform witnesses of these requirements ahead of the remote testimony to prevent misunderstanding by the witness, delay of the proceedings, or possible exclusion of the witness.

RULE 44. Proof of Official Record.

(A) Authentication

(1) Domestic

An official record, or an entry therein, kept within a state or within the United States or within a territory or other jurisdiction of the United States, when admissible for any purpose, may be evidenced by an official publication thereof or by a copy attested by the officer having the legal custody of the record, or by his deputy, and accompanied by a certificate that such officer has the custody. The certificate may be made by a judge of a court of record in which the record is kept or may be made by any public officer having a seal of office and having official duties in the political subdivision in which the record is kept, authenticated by the seal of his office.

(2) Foreign

A foreign official record, or an entry therein, when admissible for any purpose, may be evidenced by an official publication thereof; or a copy thereof, attested by a person authorized to make the attestation, and accompanied by a final certification as to the genuineness of the signature and official position (a) of the attesting person or (b) of any foreign official whose certificate of genuineness of signature and official position relates to the attestation or is in a chain of certificates of genuineness of signature and official position relating to the attestation. A final certification may be made by a secretary of embassy or legation, consul general, consul, vice consul, or consular agent of the United States, or a diplomatic or consular official of the foreign country assigned or accredited to the United States. If reasonable opportunity has been given to all parties to investigate the authenticity and accuracy of the documents, the court may, for good cause shown, (a) admit an attested copy without final certification or (b) permit the foreign official record to be evidenced by an attested summary with or without a final certification.

(B) Lack of record

A written statement that after diligent search no record or entry of a specified tenor is found to exist in the records designated by the statement, authenticated as provided in subdivision (A)(1) of this rule in the case of a domestic record, or complying with the requirements of subdivision (A)(2) of this rule for a summary in the case of a foreign record, is admissible as evidence that the records contain no such record or entry.

(C) Other proof

This rule does not prevent the proof of official records or of entry or lack of entry therein by any other method authorized by law.

Effective Date: July 1, 1970

RULE 44.1. Judicial Notice of Certain Law; Determination of Foreign Law.

(A) Judicial notice of certain law

(1) Judicial notice shall be taken of the rules of the supreme court of this state and of the decisional, constitutional, and public statutory law of this state.

(2) A party who intends to rely on a municipal ordinance, a local rule of court, or an administrative regulation within this state shall give notice in his pleading or other reasonable written notice. The court in taking judicial notice of a municipal ordinance, a local rule of court, or an administrative regulation within this state may inform itself in such manner as it deems proper, and may call upon counsel to aid in obtaining such information. The court's determination shall be treated as a ruling on a question of law and shall be made by the court and not the jury. A court may, however, take judicial notice of its own rules or of a municipal ordinance within the territorial jurisdiction of the court without advance notice in the pleading of a party or other written notice.

(3) A party who intends to rely on the decisional, constitutional, public statutory law, rules of court, municipal ordinances, or administrative regulations of any other state, territory, and jurisdiction of the United States shall give notice in his pleading or other reasonable notice. The court in taking judicial notice of the decisional, constitutional, public statutory law, rules of court, municipal ordinances, or administrative regulations of any other state, territory, and jurisdiction of the United States may inform itself in such manner as it deems proper, and may call upon counsel to aid in obtaining such information. The court's determination shall be treated as a ruling on a question of law, and shall be made by the court and not the jury.

(B) Determination of foreign law

A party who intends to rely on the law of a foreign country shall give notice in his pleadings or other reasonable written notice. The court in determining the law of a foreign country may consider any relevant material or source, including testimony, whether or not submitted by a party. The court's determination shall be treated as a ruling on a question of law and shall be made by the court and not the jury.

Effective Date: July 1, 1970

RULE 45. Subpoena.

(A) Form; issuance; notice

(1) Every subpoena shall do all of the following:

(a) State the name of the court from which it is issued, the title of the action, and the case number;

(b) Command each person to whom it is directed, at a time and place specified in the subpoena, to do at least one of the following:

(i) Attend and give testimony at a trial or hearing at any place within this state;

(ii) Attend and give testimony at a deposition in the county where the deponent resides or is employed or transacts business in person, or at such other convenient place as is fixed by an order of court;

(iii) Produce documents, electronically stored information, or tangible things at a trial, hearing, or deposition;

(iv) Produce and permit inspection and copying of any designated documents or electronically stored information that are in the possession, custody, or control of the person;

(v) Produce and permit inspection and copying, testing, or sampling of any tangible things that are in the possession, custody, or control of the person;

(vi) Permit entry upon designated land or other property that is in the possession or control of the person for the purposes described in Civ.R. 34(A)(3).

(c) Set forth the text of divisions (C) and (D) of this rule.

A command to produce and permit inspection may be joined with a command to attend and give testimony, or may be issued separately. A subpoena may specify the form or forms in which electronically stored information is to be produced, but may not require the production of the same information in more than one form.

A subpoena may not be used to obtain the attendance of a party or the production of documents by a party in discovery. Rather, a party's attendance at a deposition

may be obtained only by notice under Civ.R. 30, and documents or electronically stored information may be obtained from a party in discovery only pursuant to Civ.R. 34.

(2) The clerk shall issue a subpoena, signed, but otherwise in blank, to a party requesting it, who shall complete it before service. An attorney who has filed an appearance on behalf of a party in an action may also sign and issue a subpoena on behalf of the court in which the action is pending.

(3) A party on whose behalf a subpoena is issued under division (A)(1)(b)(ii), (iii), (iv), (v), or (vi) of this rule shall serve prompt written notice, including a copy of the subpoena, on all other parties as provided in Civ.R. 5. If the subpoena is modified, the party on whose behalf the subpoena is issued shall give prompt written notice of the modification, including a copy of the subpoena as modified, to all other parties.

(B) Service

A subpoena may be served by a sheriff, bailiff, coroner, clerk of court, constable, or a deputy of any, by an attorney at law, or by any other person designated by court order under Civ.R.4.1(E). Service of a subpoena upon a person named therein shall be made by delivering a copy of the subpoena to the person, by reading it to him or her in person, by leaving it at the person's usual place of residence, or by placing a sealed envelope containing the subpoena in the United States mail as certified or express mail return receipt requested with instructions to the delivering postal authority to show to whom delivered, date of delivery and address where delivered, and by tendering to the person upon demand the fees for one day's attendance and the mileage allowed by law. The person responsible for serving the subpoena shall file a return of the subpoena with the clerk. When the subpoena is served by mail delivery, the person filing the return shall attach the signed receipt to the return. If the witness being subpoenaed resides outside the county in which the court is located, the fees for one day's attendance and mileage shall be tendered without demand. The return may be forwarded through the postal service or otherwise.

(C) Protection of persons subject to subpoenas

(1) A party or an attorney responsible for the issuance and service of a subpoena shall take reasonable steps to avoid imposing undue burden or expense on a person subject to that subpoena.

(2) A person commanded to produce under divisions (A)(1)(b), (iii), (iv), (v), or (vi) of this rule need not appear in person at the place of production or inspection unless commanded to attend and give testimony at a deposition, hearing, or trial.

(3) Subject to division (D)(2) of this rule, a person commanded to produce under divisions (A)(1)(b), (iii), (iv), (v), or (vi) of this rule may, within fourteen days after service of the subpoena or before the time specified for compliance if such time is

less than fourteen days after service, serve upon the party or attorney designated in the subpoena written objections to production. If objection is made, the party serving the subpoena shall not be entitled to production except pursuant to an order of the court by which the subpoena was issued. If objection has been made, the party serving the subpoena, upon notice to the person commanded to produce, may move at any time for an order to compel the production. An order to compel production shall protect any person who is not a party or an officer of a party from significant expense resulting from the production commanded.

(4) On timely motion, the court from which the subpoena was issued shall quash or modify the subpoena, or order appearance or production only under specified conditions, if the subpoena does any of the following:

(a) Fails to allow reasonable time to comply;

(b) Requires disclosure of privileged or otherwise protected matter and no exception or waiver applies;

(c) Requires disclosure of a fact known or opinion held by an expert not retained or specially employed by any party in anticipation of litigation or preparation for trial as described by Civ.R. 26(B)(7)(h), if the fact or opinion does not describe specific events or occurrences in dispute and results from study by that expert that was not made at the request of any party;

(d) Subjects a person to undue burden.

(5) Before filing a motion pursuant to division (C)(4)(d) of this rule, a person resisting discovery under this rule shall attempt to resolve any claim of undue burden through discussions with the issuing attorney or unrepresented party. A motion filed pursuant to division (C)(4)(d) of this rule shall be supported by an affidavit of the subpoenaed person or a certificate of that person's attorney of the efforts made to resolve any claim of undue burden.

(6) If a motion is made under division (C)(4)(c) or (C)(4)(d) of this rule, the court shall quash or modify the subpoena unless the party in whose behalf the subpoena is issued shows a substantial need for the testimony or material that cannot be otherwise met without undue hardship and assures that the person to whom the subpoena is addressed will be reasonably compensated.

(D) Duties in responding to subpoena

(1) A person responding to a subpoena to produce documents shall, at the person's option, produce them as they are kept in the usual course of business or organized and labeled to correspond with the categories in the subpoena. A person producing documents or electronically stored information pursuant to a subpoena for them

shall permit their inspection and copying by all parties present at the time and place set in the subpoena for inspection and copying.

(2) If a request does not specify the form or forms for producing electronically stored information, a person responding to a subpoena may produce the information in a form or forms in which the information is ordinarily maintained if that form is reasonably useable, or in any form that is reasonably useable. Unless ordered by the court or agreed to by the person subpoenaed, a person responding to a subpoena need not produce the same electronically stored information in more than one form.

(3) A person need not provide discovery of electronically stored information when the production imposes undue burden or expense. On motion to compel discovery or for a protective order, the person from whom electronically stored information is sought must show that the information is not reasonably accessible because of undue burden or expense. If a showing of undue burden or expense is made, the court may nonetheless order production of electronically stored information if the requesting party shows good cause. The court shall consider the factors in Civ.R. 26(B)(6)(b) when determining if good cause exists. In ordering production of electronically stored information, the court may specify the format, extent, timing, allocation of expenses and other conditions for the discovery of the electronically stored information.

(4) When information subject to a subpoena is withheld on a claim that it is privileged or subject to protection as trial preparation materials, the claim shall be made expressly and shall be supported by a description of the nature of the documents, communications, or things not produced that is sufficient to enable the demanding party to contest the claim.

(5) If information is produced in response to a subpoena that is subject to a claim of privilege or of protection as trial-preparation material, the person making the claim may notify any party that received the information of the claim and the basis for it. After being notified, a receiving party must promptly return, sequester, or destroy the specified information and any copies within the party's possession, custody or control. A party may not use or disclose the information until the claim is resolved. A receiving party may promptly present the information to the court under seal for a determination of the claim of privilege or of protection as trial-preparation material. If the receiving party disclosed the information before being notified, it must take reasonable steps to retrieve it. The person who produced the information must preserve the information until the claim is resolved.

(E) Sanctions

Failure by any person without adequate excuse to obey a subpoena served upon that person may be deemed a contempt of the court from which the subpoena issued. A subpoenaed person or that person's attorney who frivolously resists discovery under this rule may be required by the court to pay the reasonable expenses, including reasonable attorney's fees,

of the party seeking the discovery. The court from which a subpoena was issued may impose upon a party or attorney in breach of the duty imposed by division (C)(1) of this rule an appropriate sanction, which may include, but is not limited to, lost earnings and reasonable attorney's fees.

(F) Privileges

Nothing in this rule shall be construed to authorize a party to obtain information protected by any privilege recognized by law, or to authorize any person to disclose such information.

Effective Date: July 1, 1970
Amended: July 1, 1971; July 1, 1972; July 1, 1993; July 1, 1994; July 1, 2005; July 1, 2008; July 1, 2012; July 1, 2014; July 1, 2023; July 1, 2024

Staff Note (July 1, 2005 Amendment)

Rule 45(A) Form; Issuance; Notice

Civ.R. 45(A)(3) is amended so that provisions requiring notice of issuance of most types of subpoena directed to nonparties appear in Civ.R. 45(A)(3) rather than being split between Civ.R. 45(A)(3) and Civ.R. 34(C). Civ.R. 34(C) is concurrently amended to eliminate any reference to notice of issuance of a subpoena directed to a nonparty. The prior arrangement made it easy to overlook the notice provisions of Civ.R. 34(C). See, e.g., *Neftzer v. Neftzer*, 140 Ohio App.3d 618, 621 (2000).

The amendment adds a new first sentence to Civ.R. 45(A)(3) to require service as provided in Civ.R. 5 on all other parties of prompt written notice of any subpoena issued under Civ.R. 45(A)(1)(b)(ii), (iii), (iv), or (v). Unlike former Civ.R. 34(C), amended Civ.R. 45(a)(3) requires that notice include a copy of the subpoena.

Notice of the taking of a deposition upon oral examination, whether of a party or nonparty, is required by Civ.R. 30(B)(1) and service of questions for a deposition upon written questions, whether of a party or nonparty, is required by Civ.R. 31(B). See, e.g., *Standring v. Xerox Corp.*, 1992 WL 90726 at *3-4, No. 60426 (8th Dist. Ct. App., Cuyahoga, 4-30-92). Subpoenas issued under Civ.R. 45(A)(1)(b)(i) for trial or hearing are excluded from the notice requirement of amended Civ.R. 45(A)(3) to permit a trial court to decide, pursuant to local rule, customary practice, or otherwise, whether to require prior disclosure by parties of the identity of witnesses to be called during a trial or hearing.

The notice requirement of amended Civ.R. 45(A)(3), like its counterpart in Rule 45(b)(1), Federal Rules of Civil Procedure, is intended "to afford other parties an opportunity to object to the production or inspection, or to serve a demand for additional documents or things." Advisory Committee's Note to 1991 Amendments to the Federal Rules of Civil Procedure; see, e.g., *Spencer v. Steinman*, 179 F.R.D. 484, 488 (E.D. Pa. 1998).

The title of Civ.R. 45(A) is amended to call attention to the fact that it deals with notice of issuance of subpoenas as well as with the form and issuance of subpoenas.

Staff Note (July 1, 2008 Amendment)

Rule 45 allows discovery to be obtained from nonparties in a manner that closely parallels Rule 34 discovery of parties. Civ.R. 45(A) and 45(D)(2) clarify that a party may use subpoenas to obtain electronically stored information from nonparties. It allows the party issuing the subpoena to specify the form or forms of production for electronically stored information while prohibiting the requesting party from demanding that the subpoenaed person provide the same information in more than one electronic format.

For example, the party issuing the subpoena may request that a party's internal memorandums on a particular subject be produced in a Word™ file, while financial records be provided in an Excel™ spreadsheet format or other format commonly used for financial matters.

Civ.R. 45(B) is amended in light of court decisions holding that service of a subpoena by a mail carrier was not authorized under the prior language of the Rule. Consistent with Civ.R. 4.1(A) relating to service of process for a complaint and summons, the amendment allows a person, otherwise authorized by the Rule to perform service of a subpoena, to do so by means of United States certified or United States express mail.

Civ.R. 45(D)(2) parallels Rule 34(B) and applies when a party serving the subpoena does not specify the form in which electronically stored information should be produced; in that situation the person subpoenaed has the option of producing the materials in the form in which the information is ordinarily maintained or another form provided that the form produced is reasonable. This section also clarifies that the respondent only has to provide electronically stored information in one format unless the court orders or the parties agree to a different arrangement.

Staff Note (July 1, 2012 Amendment)

Rule 45 is amended to return language from Civ.R. 45 (D)(2) before the 1993 amendments. Under the 2012 amendment a deponent no longer may be compelled by subpoena to appear for a deposition anywhere in the state, but only in the county where the deponent resides or is employed or transacts business in person, or at such other convenient place as is fixed by an order of court. A person may still be compelled to appear for trial or hearing at any place within the state.

Staff Note (July 1, 2014 Amendment)

Rule 45(C)(3)(c) is amended to account for the 2008 renumbering of Civ.R. 26(B) which changed the section of that rule addressing experts from Civ.R. 26(B)(4) to Civ.R. 26(B)(5).

Staff Note (July 1, 2023 Amendment)

The amendments to divisions (C)(3)(c) and (D)(3) of this rule make cross-reference changes necessitated by prior amendments to Civ.R. 26(B).

RULE 46. Exceptions Unnecessary.

An exception at any stage or step of the case or matter is unnecessary to lay a foundation for review whenever a matter has been called to the attention of the court by objection, motion, or otherwise and the court has ruled thereon.

Effective Date: July 1, 1970
Amended: July 1, 1975

RULE 47. Jurors.

(A) Brief introduction of case

To assist prospective jurors in understanding the general nature of the case, the court, in consultation with the parties, may give jurors a brief introduction to the case. The brief introduction may include a general description of the legal claims and defenses of the parties.

(B) Examination of prospective jurors

Any person called as a prospective juror for the trial of any cause shall be examined under oath or upon affirmation as to the prospective juror's qualifications. The court may permit the parties or their attorneys to conduct the examination of the prospective jurors or may itself conduct the examination. In the latter event, the court shall permit the parties or their attorneys to supplement the examination by further inquiry. Nothing in this rule shall limit the court's discretion to allow the examination of all prospective jurors in the array or, in the alternative, to permit individual examination of each prospective juror seated on a panel, prior to any challenges for cause or peremptory challenges.

(C) Challenges to prospective jurors

In addition to challenges for cause provided by law, each party peremptorily may challenge three prospective jurors. If the interests of multiple litigants are essentially the same, "each party" shall mean "each side."

Peremptory challenges shall be exercised alternately, with the first challenge exercised by the plaintiff. The failure of a party to exercise a peremptory challenge constitutes a waiver of that challenge, but does not constitute a waiver of any subsequent challenge. However, if all parties or sides, alternately and in sequence, fail to exercise a peremptory challenge, the joint failure constitutes a waiver of all peremptory challenges.

A prospective juror peremptorily challenged by either party shall be excused.

Nothing in this rule shall limit the court's discretion to allow challenges to be made outside the hearing of prospective jurors.

(D) Alternate jurors

(1) Selection; powers

The court may direct that no more than four jurors in addition to the regular jury be called and impaneled to sit as alternate jurors. Alternate jurors in the order in which they are called shall replace jurors who, prior to the time the jury retires to consider its verdict, become or are found to be unable or disqualified to perform their duties. Alternate jurors shall be drawn in the same manner, shall have the same

qualifications, shall be subject to the same examination and challenges, shall take the same oath, and shall have the same functions, powers, facilities, and privileges as the regular jurors. Each party is entitled to one peremptory challenge in addition to those otherwise allowed by law if one or two alternate jurors are to be impaneled, and two peremptory challenges if three or four alternate jurors are to be impaneled. The additional peremptory challenges may be used against an alternate juror.

(2) Retention; discharge

The court may retain alternate jurors after the jury retires. The court must ensure that a retained alternate does not discuss the case with anyone until that alternate replaces a juror or is discharged. If an alternate replaces a juror after deliberations have begun, the court must instruct the jury to begin its deliberations anew. If the court does not retain alternate jurors after the jury retires and instead discharges the alternate jurors, the alternate jurors cannot be recalled as jurors.

(E) Taking of notes by jurors

The court, after providing appropriate cautionary instructions, may permit jurors who wish to do so to take notes during a trial. If the court permits the taking of notes, notes taken by a juror may be carried into deliberations by that juror. The court shall require that all juror notes be collected and destroyed promptly after the jury renders a verdict.

(F) Juror questions to witnesses

The court may permit jurors to propose questions for the court to ask of the witnesses. If the court permits jurors to propose questions, the court shall use procedures that minimize the risk of prejudice, including all of the following:

(1) Require jurors to propose any questions to the court in writing;

(2) Retain a copy of each proposed question for the record;

(3) Instruct the jurors that they shall not display or discuss a proposed question with other jurors;

(4) Before reading a question to a witness, provide counsel with an opportunity to object to each question on the record and outside the hearing of the jury;

(5) Read the question, either as proposed or rephrased, to the witness;

(6) Permit counsel to reexamine the witness regarding a matter addressed by a juror question;

(7) If a question proposed by a juror is not asked, instruct the jurors that they should not draw any adverse inference from the court's refusal to ask any question proposed by a juror.

Effective Date: July 1, 1970
Amended: July 1, 1971; July 1, 1972; July 1, 1975; July 1, 2005; July 1, 2006; July 1, 2009; July 1, 2012; July 1, 2019

Staff Note (July 1, 2005 Amendment)

Civ.R. 47 is amended to reflect four recommendations of the Task Force on Jury Service. See *Report and Recommendations of the Supreme Court of Ohio Task Force on Jury Service* (February 2004).

Rule 47(A) Preliminary statement of case

A new Civ.R. 47(A) is added to permit the trial judge, prior to jury selection, to provide a brief introduction to the case to persons called as prospective jurors. See *Report and Recommendations*, *supra*, at 1 (recommending "a brief statement of the case by the court or counsel prior to the beginning of voir dire" and inclusion of "the legal claims and defenses of the parties' in the list of instructions the court may give at the commencement of trial"). The Rules Advisory Committee shares the views of the Task Force that the preliminary statement may "help the jury selection process run smoothly" and "increase the satisfaction of jurors." *Report and Recommendations*, *supra*, at 9. The preliminary statement is intended to help prospective jurors to understand why certain questions are asked during voir dire, recognize personal bias, and give candid responses to questions during voir dire.

The Committee recognizes that there may be instances in which the brief introduction is unnecessary; thus the rule vests discretion with the trial judge as to whether an introduction will be provided in a particular case. The rule also requires the trial judge to consult with the parties as to whether to provide the introduction and the content of the introduction. The consultation is required in recognition that the parties can aid the trial judge in determining whether a statement is necessary, developing the content of the statement, and ascertaining the claims and defenses the parties will put forth during trial.

Former divisions (A), (B), and (C) of Civ.R. 47 are relettered as divisions (B), (C), and (D), respectively.

Rule 47(C) Challenges to prospective jurors

New Civ.R. 47(C) (formerly Civ.R. 47(B)) is amended to make two related principles regarding peremptory challenges more clear. One principle is that failure of a party to exercise a given peremptory challenge waives that challenge but does not waive any other peremptory challenges to which the party may otherwise be entitled. As the 1972 Staff Notes to Civ.R. 47 explained:

> Thus, assume that plaintiff waives [plaintiff's] first opportunity to exercise a peremptory challenge. Defendant exercises [defendant's] first peremptory challenge. If plaintiff, in turn, now exercises a peremptory challenge, the challenge will be [plaintiff's] second challenge because [plaintiff] has waived [plaintiff's] first challenge.

The other principle is that consecutive passes by all parties or sides waives all remaining peremptory challenges. As the 1972 Staff Notes likewise pointed out, "a double pass' ends the procedure even though peremptory challenges might remain." The Task Force concluded that, contrary to the language and intent of former Civ.R. 47(B), "often courts and attorneys will assume that once a peremptory challenge is waived all remaining peremptory challenges are waived." *Report and Recommendations*, *supra*, at 22. The amended language is designed to deter the incorrect assumption perceived by the Task Force.

Rule 47(E) Taking of notes by jurors

A new Civ.R. 47(E) is added to explicitly authorize trial courts, after providing appropriate cautionary instructions, to permit jurors who wish to do so to take notes during trial and to take notes into deliberations. The Rules Advisory Committee agrees with the Task Force that allowing jurors to take notes potentially promotes the fact-finding process and aids juror comprehension and recollection.

The reference in sentence one of new division (E) to "appropriate cautionary instructions" reflects the apparent requirements of *State v. Waddell*, 75 Ohio St.3d 163 (1996), which held that "[a] trial court has the discretion to permit or prohibit note-taking by jurors," *Waddell*, 75 Ohio St.3d at 163 (syl. 1), and explained that "[i]f a trial court determines that a particular case warrants note-taking, the court can, *sua sponte*, furnish jurors with materials for taking notes and instruct the jurors that they are permitted to take notes during the trial." *Id.* at 170. The *Waddell* opinion appears to condition the permitting of note-taking on the giving of instructions to jurors that (1) "they are not required to take notes;" *id.* (syl. 2), (2) "their notes are to be confidential;" (3) "note-taking should not divert their attention from hearing the evidence in the case;" (4) "a juror who has not taken notes should not be influenced by those jurors who decided to take notes;" and (5) "notes taken by jurors are to be used solely as memory aids and should not be allowed to take precedence over their independent memory of facts." *Id.* (syl. 3); see also *State v. Blackburn*, 1996 WL 570869 at *3 and n.1, No. 93 CA 10 (5th Dist. Ct. App., Fairfield, 9-26-96) (finding no plain error in the trial court's decision to permit juror note-taking despite lack of instruction on items (3) through (5) but noting that "in the future, it would be better practice for trial courts to instruct and caution the jury as suggested by the Ohio Supreme Court in *Waddell*"); *cf.* 1 Ohio Jury Instructions 2.52, § 1 ("Note-taking Prohibited") and § 2 ("Note-taking Permitted") (2002). The Task Force noted that many of the judges who participated in the pilot project that it sponsored "instructed jurors to make notes only when there was a break in the testimony (e.g., while judge and attorneys are busy at sidebar)." *Report and Recommendations*, *supra*, at 14.

Sentence two of new division (E) explicitly authorizes a practice perhaps only implicitly approved in *Waddell*, i.e., the carrying into deliberations by a juror of any notes taken pursuant to permission of the court. See Markus, *Trial Handbook for Ohio Lawyers* § 37:6 (2003) (citing *Waddell* for the proposition that "[w]hen the court permits the jurors to take notes during the trial, it may allow the jurors to retain those notes during their deliberations").

The requirement of sentence three of new division (E) that the court require that all juror notes be collected and destroyed promptly after verdict reflects in part the *Waddell* prescription that "notes are to be confidential." *See also State v. Williams*, 80 Ohio App.3d 648, 654 (1992) (cited with apparent approval by the Court in *Waddell* and rejecting the argument that notes taken by jurors should have been preserved for review rather than destroyed).

Rule 47(F) Juror questions to witnesses

A new Civ.R. 47(F) is added to set forth a procedure to be followed if the trial court permits jurors to propose questions to be asked of witnesses during trial. See *Report and Recommendations*, *supra*, at 15-16 and *State v. Fisher* 99 Ohio St.3d 127, 2003-Ohio-2761. The rule incorporates the holding of the Supreme Court in *State v. Fisher, supra*, by stating that the practice of allowing jurors to propose questions to witnesses is discretionary with the trial judge, and codifies procedures that have been sanctioned by the Supreme Court. See *State v. Fisher* 99 Ohio St.3d at 135. In addition to the procedures outlined in *Fisher*, the rule provides that the court must retain a copy of all written questions proposed by the jury for the record and that the court may rephrase any question proposed by the jury before posing it to a witness. These added procedures ensure the existence of a proper record, should an issue regarding juror questions be raised on appeal, and recognize that a question proposed by a juror may need to be rephrased for clarity, to address an objection from a party, or for some other reason appropriate under the circumstances.

The amendments to Civ.R. 47 also include nonsubstantive changes that include gender-neutral language and uniform usage of the term "prospective juror."

Staff Note (July 1, 2006 Amendment)

Civ.R. 47 is amended to recognize the existence of alternative methods of jury selection and expressly permit the use of these methods in Ohio courts. The amendments are consistent with recommendations contained in the February 2004 *Report and Recommendations of the Supreme Court of Ohio Task Force on Jury Service*, at pp. 10-11.

The Task Force identified two primary methods of jury selection and encouraged the use of a selection process that is efficient and enhances juror satisfaction. The Rules Advisory Committee learned that some judges and lawyers believe that the pre-2006 version of Civ.R. 47 precluded the use of a selection method, commonly referred to as the "struck" method, whereby prospective jurors are examined as a group and then the trial judge and attorneys meet privately to challenge jurors for cause and exercise peremptory challenges. Two amendments to Civ.R. 47 are added to expressly permit alternative selection methods.

Rule 47(B) Examination of prospective jurors

The last sentence of Civ.R. 47(B) is added to expressly permit the examination of prospective jurors in an array.

Rule 47(C) Challenges to prospective jury

The last sentence of Civ.R. 47(C) is added to expressly afford the trial court the discretion to allow the exercise of challenges for cause and peremptory challenges outside the hearing of the jury.

Staff Note (July 1, 2009 Amendment)

Prior to 2006, Civ.R. 47 appeared to require judges to empanel a prospective jury and examine each one individually, a process referred to as the "strike and replace" method. In 2006, Civ.R. 47(B) was amended with the intent to clarify that examination of prospective jurors in an array (sometimes referred to as the "struck" method of juror examination) was also permitted. Civ.R. 47(C), however, which was not changed in 2006, retained language that arguably applied apply only to examination of jurors seated on a panel. The 2009 amendments add language to Civ.R. 47(B) and delete language from Civ.R. 47(C) to further clarify that prospective jurors may be examined either in the array or after being seated on a panel.

Staff Note (July 1, 2012 Amendment)

Civ.R. 47(D) is amended to parallel Crim.R. 24 (C) (1), the alternate juror rule for non-capital cases. The difference between the two rules is that six alternates are permitted under the criminal rule.

Staff Note (July 1, 2019 Amendment)

Division (D)

The amendment divides the prior, undivided Division (D) into two parts.

The language of the existing rule addressing the selection and powers of alternate jurors, including the language relating to the procedure for selecting alternate jurors and the use of peremptory challenges in the selection of alternate jurors, is moved, unchanged, to Division (D)(1).

Division (D)(2) retains the language of the existing rule permitting the court, in its discretion, to retain alternate jurors when the jury retires to deliberate, but also adds a provision addressing a situation not addressed by the existing rule — the recalling of alternate jurors who are discharged after the jury retires to deliberate. The amendment specifically prohibits the court from recalling discharged alternate jurors.

Retention. A retained alternate juror has not been discharged. A retained (i.e. not "discharged") alternate juror continues to be subject to the court's instructions and admonitions, and thus may not discuss the case with anyone "until that alternate replaces a juror or is discharged." The rule does not address whether a "retained" alternate juror may be free to leave — a matter left to the court's discretion — but good practice suggests that the court ensure that a retained alternate juror remain readily available to appear before the court to replace an alternate juror if necessary.

Discharge. "Discharge" occurs when the court does not retain, but instead "discharges" an alternate juror. A discharged (i.e. not "retained") alternate juror cannot be recalled as a juror.

RULE 48. Juries: Majority Verdict; Stipulation of Number of Jurors.

In all civil actions, a jury shall render a verdict upon the concurrence of three-fourths or more of their number. The verdict shall be in writing and signed by each of the jurors concurring therein. All jurors shall then return to court where the judge shall cause the verdict to be read and inquiry made to determine if the verdict is that of three-fourths or more of the jurors. Upon request of either party, the jury shall be polled by asking each juror if the verdict is that of the juror; if more than one-fourth of the jurors answer in the negative, or if the verdict in substance is defective, the jurors must be sent out again for further deliberation. If three-fourths or more of the jurors answer affirmatively, the verdict is complete and the jury shall be discharged from the case. If the verdict is defective in form only, with the assent of the jurors and before their discharge, the court may correct it.

The parties may stipulate that the jury shall consist of any number less than the maximum number provided by Rule 38(B). For the purpose of rendering a verdict, whenever three-fourths of the jury does not consist of an integral number, the next higher number shall be construed to represent three-fourths of the jury. For juries with less than four members, the verdict must be unanimous.

Effective Date: July 1, 1970
Amended: July 1, 1971; July 1, 1972

RULE 49. Verdicts; Interrogatories.

(A) General verdict

A general verdict, by which the jury finds generally in favor of the prevailing party, shall be used.

(B) General verdict accompanied by answer to interrogatories

The court shall submit written interrogatories to the jury, together with appropriate forms for a general verdict, upon request of any party prior to the commencement of argument. Counsel shall submit the proposed interrogatories to the court and to opposing counsel at such time. The court shall inform counsel of its proposed action upon the requests prior to their arguments to the jury, but the interrogatories shall be submitted to the jury in the form that the court approves. The interrogatories may be directed to one or more determinative issues whether issues of fact or mixed issues of fact and law.

The court shall give such explanation or instruction as may be necessary to enable the jury both to make answers to the interrogatories and to render a general verdict, and the court shall direct the jury both to make written answers and to render a general verdict.

When the general verdict and the answers are consistent, the appropriate judgment upon the verdict and answers shall be entered pursuant to Rule 58. When one or more of the answers is inconsistent with the general verdict, judgment may be entered pursuant to Rule 58 in accordance with the answers, notwithstanding the general verdict, or the court may return the jury for further consideration of its answers and verdict or may order a new trial.

(C) Special verdicts abolished

Special verdicts shall not be used.

Effective Date: July 1, 1970
Amended: July 1, 1980

RULE 50. Motion for a Directed Verdict, for Judgment, or for Judgment Notwithstanding the Verdict or in Lieu of Verdict.

(A) Motion for directed verdict

(1) When made

A motion for a directed verdict may be made on the opening statement of the opponent, at the close of the opponent's evidence or at the close of all the evidence.

(2) When not granted

A party who moves for a directed verdict at the close of the evidence offered by an opponent may offer evidence in the event that the motion is not granted, without having reserved the right so to do and to the same extent as if the motion had not been made. A motion for a directed verdict which is not granted is not a waiver of trial by jury even though all parties to the action have moved for directed verdicts.

(3) Grounds

A motion for a directed verdict shall state the specific grounds therefor.

(4) When granted on the evidence

When a motion for a directed verdict has been properly made, and the trial court, after construing the evidence most strongly in favor of the party against whom the motion is directed, finds that upon any determinative issue reasonable minds could come to but one conclusion upon the evidence submitted and that conclusion is adverse to such party, the court shall sustain the motion and direct a verdict for the moving party as to that issue.

(5) Jury assent unnecessary

The order of the court granting a motion for a directed verdict is effective without any assent of the jury.

(B) Post-trial motion for judgment or for judgment notwithstanding the verdict or in lieu of verdict

(1) Whether or not a motion to direct a verdict has been made or overruled, a party may serve a motion to have the verdict and any judgment entered thereon set aside and to have judgment entered in accordance with the party's motion. Such a motion shall be served within twenty-eight days of the entry of judgment or, if the clerk has not completed service of the notice of judgment within the three-day period described in Civ.R. 58(B), within twenty-eight days of the date when the clerk actually completes service. If a verdict was not returned, a party may serve a motion

for judgment in accordance with the party's motion within twenty-eight days of the jury's discharge. A motion for a new trial may be joined with either motion, or a new trial may be requested in the alternative.

(2) Unless otherwise provided by local rule or by order of the court, arguments in response to the motion shall be served within fourteen days of service of the motion, and a movant's reply may be served within seven days of service of the response to the motion.

(3) If a verdict was returned, the court may allow the judgment to stand or may reopen the judgment. If the judgment is reopened, the court shall either order a new trial or direct the entry of judgment, but no judgment shall be rendered by the court on the ground that the verdict is against the weight of the evidence. If no verdict was returned the court may direct the entry of judgment or may order a new trial.

(C) Conditional rulings on motion for judgment notwithstanding verdict

(1) If the motion for judgment notwithstanding the verdict, provided for in division (B) of this rule, is granted, the court shall also rule on the motion for a new trial, if any, by determining whether it should be granted if the judgment is thereafter vacated or reversed. If the motion for a new trial is thus conditionally granted, the order thereon does not affect the finality of the judgment. In case the motion for a new trial has been conditionally granted and the judgment is reversed on appeal, the new trial shall proceed unless the appellate court has otherwise ordered. In case the motion for a new trial has been conditionally denied, the appellee on appeal may assert error in that denial; and if the judgment is reversed on appeal, subsequent proceedings shall be in accordance with the order of the appellate court.

(2) The party whose verdict has been set aside on motion for judgment notwithstanding the verdict may serve a motion for a new trial pursuant to Civ.R. 59 not later than twenty-eight days after entry of the judgment notwithstanding the verdict.

(D) Denial of motion for judgment notwithstanding verdict

If the motion for judgment notwithstanding the verdict is denied, the party who prevailed on that motion may, as appellee, assert grounds entitling him to a new trial in the event the appellate court concludes that the trial court erred in denying the motion for judgment notwithstanding the verdict. If the appellate court reverses the judgment, nothing in this rule precludes it from determining that the appellee is entitled to a new trial, or from directing the trial court to determine whether a new trial shall be granted.

(E) Statement of basis of decision

When in a jury trial a court directs a verdict or grants judgment without or contrary to the verdict of the jury, the court shall state the basis for its decision in writing prior to or

simultaneous with the entry of judgment. Such statement may be dictated into the record or included in the entry of judgment.

Effective Date: July 1, 1970
Amended: July 1, 2013; July 1, 2015; July 1, 2018

Staff Note (July 1, 2013 Amendment)

Rule 50(B) is amended to extend the time for filing a motion for judgment notwithstanding the verdict to 28 days after entry of judgment, or within 28 days after the jury has been discharged if a verdict was not returned. These changes are modeled on the 2009 amendments to Fed.R.Civ.P. 50(b) and are made for the same reasons that prompted the amendments to the federal rule.

Staff Note (July 1, 2015 Amendment)

Consistent with the provisions of Civ.R. 59(B) addressing motions for new trial, Civ.R. 50(B) is amended to make clear that the motion must be served within the required time. The time for filing the motion is governed by Civ.R. 5(D).

Consistent with a similar amendment to Civ.R. 6(B), the provisions of Civ.R. 50(B) are also amended to specify, in the absence of a local rule or court order providing a time for responding to a motion for judgment notwithstanding the verdict, a fallback time of fourteen days after service of the motion within which to serve responsive arguments. In the absence of a local rule or court order addressing replies, the amendment also permits the movant to serve reply arguments within seven days after service of the adverse party's response. The time for filing responsive arguments and replies is governed by Civ.R. 5(D), again in the absence of a local rule or order of the court specifying a different time for filing.

Staff Note (July 1, 2018 Amendment)

Division (B) Post-trial motion for judgment or for judgment in lieu of verdict

The amendment provides that if the clerk fails to serve the parties with notice of a judgment in the three-day period contemplated by Civ.R. 58(B), the time to serve a post-trial motion for judgment in favor of the movant does not begin to run until after the clerk does so. The purpose of the amendment is to avoid the harsh result that otherwise can occur if a would-be movant does not receive notice of the judgment. *See*, *e.g.*, *Wing v. Haaff*, 1st Dist. Hamilton No. C-160257, 2016-Ohio-8258. This amendment brings the timing of post-trial motions under Civ.R. 50 in line with the timing of a notice of appeal in civil cases under App.R. 4(A)(3).

RULE 51. Instructions to the Jury; Objection.

(A) Instructions; error; record

At the close of the evidence or at such earlier time during the trial as the court reasonably directs, any party may file written requests that the court instruct the jury on the law as set forth in the requests. Copies shall be furnished to all other parties at the time of making the requests. The court shall inform counsel of its proposed action on the requests prior to counsel's arguments to the jury and shall give the jury complete instructions after the arguments are completed. The court also may give some or all of its instructions to the jury prior to counsel's arguments. The court shall reduce its final instructions to writing or make an audio, electronic, or other recording of those instructions, provide at least one written copy or recording of those instructions to the jury for use during deliberations, and preserve those instructions for the record.

On appeal, a party may not assign as error the giving or the failure to give any instruction unless the party objects before the jury retires to consider its verdict, stating specifically the matter objected to and the grounds of the objection. Opportunity shall be given to make the objection out of the hearing of the jury.

(B) Cautionary instructions

At the commencement and during the course of the trial, the court may give the jury cautionary and other instructions of law relating to trial procedure, credibility and weight of the evidence, and the duty and function of the jury and may acquaint the jury generally with the nature of the case.

Effective Date: July 1, 1970
Amended: July 1, 1972; July 1, 1975; July 1, 1992; July 1, 2005

Staff Note (July 1, 2005 Amendment)

Rule 51(A) Instructions; error; record

Civ.R. 51 is amended to reflect a recommendation of the Task Force on Jury Service. See *Report and Recommendations of the Supreme Court of Ohio Task Force on Jury Service* at 1 and 12-13 (February 2004). The amendment mandates practices that trial courts have frequently chosen to adopt in particular civil actions: (1) reducing final jury instructions to writing or making an audio, electronic, or other recording of those instructions; (2) providing at least one written copy or recording of those instructions to the jury for use during deliberations; and (3) preserving those instructions for the record.

R.C. 2315.01(G) provides that (1) "[a]ny charge shall be reduced to writing by the court if either party, before the argument to the jury is commenced, requests it;" (2) "[a]ll written charges and instructions shall be taken by the jurors in their retirement;" and (3) "[a]ll written charges and instructions ... shall remain on file with the papers of the case." The Modern Courts Amendment, art. IV, § 5(B), of the Ohio Constitution, provides that "[a]ll laws in conflict with [valid Civil Rules] shall be of no further force or effect after such rules have taken effect." Some aspects of R.C. 2315.01 appear to have survived promulgation of the Civil Rules. *Phung v. Waste Mgt., Inc.*, 71 Ohio St.3d 408, 410 (1994) (R.C. 2315.01(C)); *State v. Jenkins*, 15 Ohio St.3d 164, 214 and n.43 (1984) (R.C. 2315.01(C), 2315.01(F)). However, to the extent that any of the provisions of R.C. 2315.01(G) quoted above are interpreted as conflicting with amended Civ.R. 51, the rule

presumably supersedes the code section by virtue of art. IV, § 5(B). *See generally* 1 Klein and Darling, *Baldwin's Ohio Practice, Civil Practice* § 1:96 (2d ed. 2004) and Harper and Solimine, 4 *Anderson's Ohio Civil Practice* § 147.01 (1996); *cf. Kinzer v. Wilson*, 1986 WL 8182 at *2, No. 1247 (4th Dist. Ct. App., Ross, 7-22-86) ("appellants admit that R.C. 2315.01(G) has been superseded by Civ.R. 51;" "The staff note of 7-1-72 under Civ.R. 51 clearly states that Civ.R. 51(A) supersedes R.C. 2315.01(G)"); *Cole v. Bollinger*, 1983 WL 6936 at *3-4, No C.A. WD-83-26 (6th Dist. Ct. App., Wood, 9-2-83).

The practices mandated by the amendment are intended to increase juror comprehension of jury instructions, reduce juror questions of the court during deliberations, and help juries structure their deliberations. The Task Force recommended that "each individual juror be given a copy of written instructions but, in the event of budgetary constraints, one copy of written instructions be provided to the jury to use during the deliberation process." *Report and Recommendations*, *supra*, at 13.

RULE 52. Findings by the Court.

When questions of fact are tried by the court without a jury, judgment may be general for the prevailing party unless one of the parties in writing requests otherwise before the entry of judgment pursuant to Civ.R. 58, or not later than seven days after the party filing the request has been given notice of the court's announcement of its decision, whichever is later, in which case, the court shall state in writing the findings of fact found separately from the conclusions of law.

When a request for findings of fact and conclusions of law is made, the court, in its discretion, may require any or all of the parties to submit proposed findings of fact and conclusions of law; however, only those findings of fact and conclusions of law made by the court shall form part of the record.

Findings of fact and conclusions of law required by this rule and by Civ.R. 41(B)(2) and Civ.R. 23(G)(3) are unnecessary upon all other motions including those pursuant to Civ.R. 12, Civ.R. 55 and Civ.R. 56.

An opinion or memorandum of decision filed in the action prior to judgment entry and containing findings of fact and conclusions of law stated separately shall be sufficient to satisfy the requirements of this rule and Civ.R. 41(B)(2).

Effective Date: July 1, 1970
Amended: July 1, 1971; July 1, 1989; July 1, 2015

Staff Note (July 1, 2015 Amendment)

The rule is amended to (1) replace “conclusions of fact” with “findings of fact” in the first paragraph of the rule and (2) include a reference to the findings of fact and conclusions of law required by Civ.R. 23(G)(3).

RULE 53. Magistrates.

(A) Appointment

A court of record may appoint one or more magistrates who shall have been engaged in the practice of law for at least four years and be in good standing with the Supreme Court of Ohio at the time of appointment. A magistrate appointed under this rule may also serve as a magistrate under Crim.R. 19 or as a traffic magistrate.

(B) Compensation

The compensation of magistrates shall be fixed by the court, and no part of the compensation shall be taxed as costs under Civ.R. 54(D).

(C) Authority

(1) Scope

To assist courts of record and pursuant to reference under Civ.R. 53(D)(1), magistrates are authorized, subject to the terms of the relevant reference, to do any of the following:

(a) Determine any motion in any case;

(b) Conduct the trial of any case that will not be tried to a jury;

(c) Upon unanimous written consent of the parties, preside over the trial of any case that will be tried to a jury;

(d) Conduct proceedings upon application for the issuance of a temporary protection order as authorized by law;

(e) Exercise any other authority specifically vested in magistrates by statute and consistent with this rule.

(2) Jury trials before magistrates

Notwithstanding any other provision of these rules, in jury trials presided over by magistrates, the factual findings of the jury shall be conclusive as in any trial before a judge. All motions presented following the unanimous written consent of the parties, including those under Civ.R. 26, 37, 50, 51, 56, 59, 60, and 62, shall be heard and decided by the magistrate. No objections shall be entertained to the factual findings of a jury, or to the motion or legal rulings made by the magistrate except on appeal to the appropriate appellate court after entry of a final judgment or final appealable order. The trial judge to whom the matter was originally assigned before the parties consented to trial before a magistrate shall enter

judgment consistent with the magistrate's journalized entry pursuant to Civ.R. 58, but shall not otherwise review the magistrate's rulings or a jury's factual findings in a jury trial before a magistrate.

(3) Regulation of proceedings

In performing the responsibilities described in Civ.R. 53(C)(1), magistrates are authorized, subject to the terms of the relevant reference, to regulate all proceedings as if by the court and to do everything necessary for the efficient performance of those responsibilities, including but not limited to, the following:

(a) Issuing subpoenas for the attendance of witnesses and the production of evidence;

(b) Ruling upon the admissibility of evidence;

(c) Putting witnesses under oath and examining them;

(d) Calling the parties to the action and examining them under oath;

(e) When necessary to obtain the presence of an alleged contemnor in cases involving direct or indirect contempt of court, issuing an attachment for the alleged contemnor and setting the type, amount, and any conditions of bail pursuant to Crim.R. 46;

(f) Imposing, subject to Civ.R. 53(D)(8), appropriate sanctions for civil or criminal contempt committed in the presence of the magistrate.

(D) Proceedings in Matters Referred to Magistrates

(1) Reference by court of record

(a) Purpose and method

A court of record may, for one or more of the purposes described in Civ.R. 53(C)(1), refer a particular case or matter or a category of cases or matters to a magistrate by a specific or general order of reference or by rule.

(b) Limitation

A court of record may limit a reference by specifying or limiting the magistrate's powers, including but not limited to, directing the magistrate to determine only particular issues, directing the magistrate to perform particular responsibilities, directing the magistrate to receive and report evidence only, fixing the time and place for beginning and closing any

hearings, or fixing the time for filing any magistrate's decision on the matter or matters referred.

(2) Magistrate's order; motion to set aside magistrate's order

(a) Magistrate's order

(i) Nature of order

Subject to the terms of the relevant reference, a magistrate may enter orders without judicial approval if necessary to regulate the proceedings and if not dispositive of a claim or defense of a party.

(ii) Form, filing, and service of magistrate's order

A magistrate's order shall be in writing, identified as a magistrate's order in the caption, signed by the magistrate, filed with the clerk, and served by the clerk on all parties or their attorneys.

(b) Motion to set aside magistrate's order

Any party may file a motion with the court to set aside a magistrate's order. The motion shall state the moving party's reasons with particularity and shall be filed not later than ten days after the magistrate's order is filed. The pendency of a motion to set aside does not stay the effectiveness of the magistrate's order, though the magistrate or the court may by order stay the effectiveness of a magistrate's order.

(3) Magistrate's decision; objections to magistrate's decision

(a) Magistrate's decision

(i) When required

Subject to the terms of the relevant reference, a magistrate shall prepare a magistrate's decision respecting any matter referred under Civ.R. 53(D)(1).

(ii) Findings of fact and conclusions of law

Subject to the terms of the relevant reference, a magistrate's decision may be general unless findings of fact and conclusions of law are timely requested by a party or otherwise required by law. A request for findings of fact and conclusions of law shall be made before the entry of a magistrate's decision or within seven days after the filing of a magistrate's decision. If a request for findings of fact

and conclusions of law is timely made, the magistrate may require any or all of the parties to submit proposed findings of fact and conclusions of law.

(iii) Form; filing, and service of magistrate's decision

A magistrate's decision shall be in writing, identified as a magistrate's decision in the caption, signed by the magistrate, filed with the clerk, and served by the clerk on all parties or their attorneys no later than three days after the decision is filed. A magistrate's decision shall indicate conspicuously that a party shall not assign as error on appeal the court's adoption of any factual finding or legal conclusion, whether or not specifically designated as a finding of fact or conclusion of law under Civ.R. 53(D)(3)(a)(ii), unless the party timely and specifically objects to that factual finding or legal conclusion as required by Civ.R. 53(D)(3)(b).

(b) Objections to magistrate's decision

(i) Time for filing

A party may file written objections to a magistrate's decision within fourteen days of the filing of the decision, whether or not the court has adopted the decision during that fourteen-day period as permitted by Civ.R. 53(D)(4)(e)(i). If any party timely files objections, any other party may also file objections not later than ten days after the first objections are filed. If a party makes a timely request for findings of fact and conclusions of law, the time for filing objections begins to run when the magistrate files a decision that includes findings of fact and conclusions of law.

(ii) Specificity of objection

An objection to a magistrate's decision shall be specific and state with particularity all grounds for objection.

(iii) Objection to magistrate's factual finding; transcript or affidavit

An objection to a factual finding, whether or not specifically designated as a finding of fact under Civ.R. 53(D)(3)(a)(ii), shall be supported by a transcript of all the evidence submitted to the magistrate relevant to that finding or an affidavit of that evidence if a transcript is not available. With leave of court, alternative technology or manner of reviewing the relevant evidence may be considered. The objecting party shall file the transcript or affidavit with the court within thirty days after filing objections unless the

court extends the time in writing for preparation of the transcript or other good cause. If a party files timely objections prior to the date on which a transcript is prepared, the party may seek leave of court to supplement the objections.

(iv) Waiver of right to assign adoption by court as error on appeal

Except for a claim of plain error, a party shall not assign as error on appeal the court's adoption of any factual finding or legal conclusion, whether or not specifically designated as a finding of fact or conclusion of law under Civ.R. 53(D)(3)(a)(ii), unless the party has objected to that finding or conclusion as required by Civ.R. 53(D)(3)(b).

(4) Action of court on magistrate's decision and on any objections to magistrate's decision; entry of judgment or interim order by court

(a) Action of court required

A magistrate's decision is not effective unless adopted by the court.

(b) Action on magistrate's decision

Whether or not objections are timely filed, a court may adopt or reject a magistrate's decision in whole or in part, with or without modification. A court may hear a previously-referred matter, take additional evidence, or return a matter to a magistrate.

(c) If no objections are filed

If no timely objections are filed, the court may adopt a magistrate's decision, unless it determines that there is an error of law or other defect evident on the face of the magistrate's decision.

(d) Action on objections

If one or more objections to a magistrate's decision are timely filed, the court shall rule on those objections. In ruling on objections, the court shall undertake an independent review as to the objected matters to ascertain that the magistrate has properly determined the factual issues and appropriately applied the law. Before so ruling, the court may hear additional evidence but may refuse to do so unless the objecting party demonstrates that the party could not, with reasonable diligence, have produced that evidence for consideration by the magistrate.

(e) Entry of judgment or interim order by court

A court that adopts, rejects, or modifies a magistrate's decision shall also enter a judgment or interim order.

(i) Judgment

The court may enter a judgment either during the fourteen days permitted by Civ.R. 53(D)(3)(b)(i) for the filing of objections to a magistrate's decision or after the fourteen days have expired. If the court enters a judgment during the fourteen days permitted by Civ.R. 53(D)(3)(b)(i) for the filing of objections, the timely filing of objections to the magistrate's decision shall operate as an automatic stay of execution of the judgment until the court disposes of those objections and vacates, modifies, or adheres to the judgment previously entered.

(ii) Interim order

The court may enter an interim order on the basis of a magistrate's decision without waiting for or ruling on timely objections by the parties where immediate relief is justified. The timely filing of objections does not stay the execution of an interim order, but an interim order shall not extend more than twenty-eight days from the date of entry, subject to extension by the court in increments of twenty-eight additional days for good cause shown. An interim order shall comply with Civ.R. 54(A), be journalized pursuant to Civ.R. 58(A), and be served pursuant to Civ.R. 58(B).

(5) Extension of time

For good cause shown, the court shall allow a reasonable extension of time for a party to file a motion to set aside a magistrate's order or file objections to a magistrate's decision. "Good cause" includes, but is not limited to, a failure by the clerk to timely serve the party seeking the extension with the magistrate's order or decision.

(6) Disqualification of a magistrate

Disqualification of a magistrate for bias or other cause is within the discretion of the court and may be sought by motion filed with the court.

(7) Recording of proceedings before a magistrate

Except as otherwise provided by law, all proceedings before a magistrate shall be recorded in accordance with procedures established by the court.

(8) Contempt in the presence of a magistrate

(a) Contempt order

Contempt sanctions under Civ.R. 53(C)(3)(f) may be imposed only by a written order that recites the facts and certifies that the magistrate saw or heard the conduct constituting contempt.

(b) Filing and provision of copies of contempt order

A contempt order shall be filed and copies provided forthwith by the clerk to the appropriate judge of the court and to the subject of the order.

(c) Review of contempt order by court; bail

The subject of a contempt order may by motion obtain immediate review by a judge. A judge or the magistrate entering the contempt order may set bail pending judicial review of the order.

Effective Date: July 1, 1970
Amended: July 1, 1975; July 1, 1985; July 1, 1992; July 1, 1993; July 1, 1995; July 1, 1996; July 1, 1998; July 1, 2003; July 1, 2006; July 1, 2011; July 1, 2020; July 1, 2023

Staff Note (July 1, 1995 Amendment)

Rule 53(A) Appointment

Changes the title of "referee" to "magistrate" and makes clear that the same person may exercise magisterial authority under the Civil and Criminal Rules. By limiting the power of appointment to courts of record, the rule eliminates any authority implicit in the prior rule for appointment of referees by mayor's courts.

Rule 53(B) Compensation

Eliminates the prior authority to tax the compensation of a referee appointed on an interim basis as part of court costs. The Supreme Court Rules Advisory Committee is of the opinion that the salaries of judicial officers should be borne by the taxpayers generally, rather than by the parties to cases.

Rule 53(C) Reference and Powers

(C)(1) Order of Reference. This division replaces language previously found in Rule 53(A). It makes clear that magistrates have authority to act only on matters referred to them by a judge in an order of reference, but permits that order of reference to be categorical or specific to a particular case or motion in a case. Rule 53(C)(1)(a)(iii) codifies in part the result in *Hartt v. Munobe* (1993), 67 Ohio St. 3d 3, but requires that consent to a magistrate's presiding at a jury trial must be written. Division (C)(1)(c) largely

tracks prior language, which makes it clear that a particular judge in a given order of reference may limit the powers generally provided in this rule for magistrates.

(C)(2) General Powers. Only stylistic changes are made, except that the provision for recording proceedings before magistrates is moved to Rule 53(D) and changed. (See Staff Note for Rule 53(D) below)

(C)(3) Power to Enter Orders. Division (C)(3)(a) clarifies the authority of magistrates to enter orders that are effective without being approved by a judge. It codifies existing practice in some courts in the state. Division (C)(3)(b) provides that any party may move to set the order aside, but the order remains effective unless a stay is granted.

(C)(3)(b) Contempt in the Magistrate's Presence. This division codifies the inherent power of magistrates, as judicial officers, to deal with contempt of court which occurs in their actual presence. The core purpose of the contempt power is to permit courts to deal with disruptions of proceedings and to maintain order. This power is as much needed in proceedings before magistrates as before other judicial officers. The rule follows Fed. R. Crim. P. 42 in requiring that the magistrate certify in writing what he or she perceived that constitutes contempt. The clerk is to provide an immediate copy of any magistrate contempt order to an appropriate judge so that there can be prompt judicial review of any contempt order.

(C)(3)(d) Other Orders. The General Assembly has recognized the existence of the referee system and from time to time conferred authority directly on referees, particularly in juvenile matters. This rule is necessary to prevent any inference of intent to override those statutes by adoption of this revised rule.

(C)(3)(e) Form of Magistrate's Orders. This division clarifies the form in which magistrate's orders are to be prepared so that they will be easily identified as such by parties and on the dockets.

Rule 53(D) Proceedings

Prior language largely drawn from Federal Civil Rule 53 relative to special masters and largely applicable to situations where special masters were appointed for individual cases and were not court employees is eliminated. To prevent any implication that proceedings before magistrates are to follow any different procedure from other civil proceedings, division (D)(1) is added. Division (D)(2) requires that proceedings before magistrates be recorded by whatever method a particular court deems appropriate. The rule is not meant to limit courts to particular recording means, but to emphasize that, as judicial officers of courts of record, magistrates should conduct proceedings before them on the record.

Rule 53(E) Decisions in Referred Matters

New division (E) entirely replaces the prior language which required preparation of reports by referees. Experience throughout the state demonstrated that often the report writing requirement substantially slowed the decision of cases without adding anything of value to the decision-making process. The new rule preserves the authority of judges to require reports by so specifying in orders of reference. In the absence of such a requirement, however, magistrates will now prepare a magistrate's decision [division (E)(1)]. If a party desires that the magistrate's decision embody the detail characteristic of a referee's report, the party may make a request for findings of fact and conclusions of law under Civ.R. 52, either before or after the magistrate's decision is filed [division (E)(2)]. The fourteen-day time period for objections is preserved and it begins to run only when a magistrate's decision embodying findings and conclusions is filed, if they have been appropriately requested [division(E)(3)(a)].

Division (E)(3)(b) prescribes the form of objections and requires that they be specific; a general objection is insufficient to preserve an issue for judicial consideration. The rule permits the parties to tailor the objection process by providing that a magistrate's findings of fact will be final. The rule reinforces the finality of trial court proceedings by providing that failure to object constitutes a waiver on appeal of a matter which could have been raised by objection. Compare *United States v. Walters*, 638 F.2d 947 (6th Cir. 1981); *Thomas v. Arn*, 474 U.S. 140(1985).

Division (E)(4) prescribes the procedure to be followed by the court with respect to a magistrate's decision. Proposed decisions are effective only when adopted by the court. However, a magistrate's decision to which no objection is made may be adopted unless there is apparent error; the judge is no longer required to conduct an independent review and make a determination himself or herself. The last sentence of division (E)(4)(b), paralleling Civ.R. 59, permits a court to refuse to hear new evidence on objections unless the evidence would not have been obtained in time to present it to the magistrate.

Division (E)(4)(c) conforms existing law on interim orders to the new style of "magistrate's decision" as opposed to reports. No substantive change is intended.

Staff Note (July 1, 1996 Amendment)

Rule 53(E) Decisions in referred matters

The 1996 amendment corrected the first sentence of division (E)(2), which erroneously stated that a magistrate's decision was to include "proposed" findings of fact and conclusions of law. The amendment deleted the word "proposed". The amendment is technical only and no substantive change is intended.

Staff Note (July 1, 1998 Amendment)

Rule 53(A) Appointment

The 1998 amendment to this division changed "traffic referee" to "traffic magistrate" to conform to the 1996 amendment of Rule 14 of the Ohio Traffic Rules. No substantive change is intended.

Rule 53(C) Reference and powers

The 1998 amendment to division (C)(3)(a) was to change cross-references to Civ.R. 75 necessitated by 1998 amendments to that rule. Division (C)(3)(d) was amended to change "referee" to "magistrate" to conform to the 1996 amendment of Rule 14 of the Ohio Traffic Rules. No substantive change is intended.

Rule 53(E) Decisions in referred matters

The 1998 amendment was to division (E)(4)(b) of this rule. The amendment was made because some trial judges apparently had avoided ruling upon objections to magistrates' reports since the previous rule appeared to require only "consideration" of the objections. The amendment should clarify that the judge is to rule upon, not just consider, any objections.

An identical amendment was made to division (E)(4)(b) of Juv.R. 40, also effective July 1, 1998.

Staff Note (July 1, 2003 Amendment)

Rule 53 Magistrates

Rule 53(E) Decisions in referred matters

The amendment to this rule is identical to an amendment to Juv.R. 40(E), also effective July 1, 2003.

It was suggested to the Rules Advisory Committee that the waiver rule prescribed by sentence four of former Civ.R. 53(E)(3)(b) [now division (E)(3)(d)] sometimes surprised counsel and *pro se* litigants because they did not expect to be required to object to a finding of fact or conclusion of law in a magistrate's decision in order to assign its adoption by the trial court as error on appeal. A review of relevant appellate decisions seemed to confirm that suggestion.

It was further suggested that counsel or a *pro se* litigant was particularly likely to be surprised by the waiver rule of sentence four of former Civ.R. 53(E)(3)(b) if a trial court, as authorized by sentence two of Civ.R. 53(E)(4)(a), adopted a magistrate's decision prior to expiration of the fourteen days permitted for the filing of objections. See, e.g., *Riolo v. Navin*, 2002 WL 502408, 2002-Ohio-1551 (8th Dist. Ct. App., 4-19-2002).

Since 1995, the potential for surprise posed by the waiver rule may have been exacerbated by the fact that, under the original version of Civ.R. 53, a party did not, by failing to file an objection, waive the right to assign as error on appeal the adoption by a trial court of a finding of fact or conclusion of law of a referee. *Normandy Place Associates v. Beyer*, 2 Ohio St.3d 102, 103 (1982) (syl. 1). As of July 1, 1985, sentence one of Civ.R. 53(E)(6) was amended to read "[a] party may not assign as error the court's adoption of a referee's *finding of fact* unless an objection to that finding is contained in that party's written objections to the referee's report" (emphasis added). See *State ex rel. Donah v. Windham Exempted Village Sch. Dist. Bd. of Ed.*, 69 Ohio St.3d 114, 118 (1994)(confirming that the waiver rule of sentence one of the 1985 version of Civ.R. 53 applied only to findings of fact by a magistrate). The present waiver rule, which applies to both findings of fact and conclusions of law, took effect July 1, 1995, and represents a complete reversal of the no waiver position of the original Civ.R. 53. See *State ex rel. Booher v. Honda of America Mfg., Inc.*, 88 Ohio St.3d 52 (2000)(confirming that the waiver rule now applies to conclusions of law as well as to findings of fact by a magistrate).

The amendment thus makes three changes in Civ.R. 53(E), none of which are intended to modify the substantive scope or effect of the waiver rule contained in sentence four of former Civ.R. 53(E)(3)(b) [now division (E)(3)(d)]. First, the amendment retains, but breaks into three appropriately-titled subdivisions, the four sentences which comprised former Civ.R. 53(E)(3)(b). Sentences two and three of former Civ.R. 53(E)(3)(b) are included in a new subdivision (c) entitled "Objections to magistrate's findings of fact." Sentence four of former Civ.R. 53(E)(3)(b), which prescribes the waiver rule, is a new subdivision (d) entitled "Waiver of right to assign adoption by court as error on appeal."

Second, new language is inserted at the beginning of Civ.R. 53(E)(3)(a) to make it more evident that a party may properly file timely objections to a magistrate's decision even if the trial court has previously adopted that decision as permitted by Civ.R. 53(E)(4)(c).

Third, the amendment adds a new sentence to Civ.R. 53(E)(2), which sentence requires that a magistrate who files a decision which includes findings of fact and conclusions of law also provide a conspicuous warning that timely and specific objection as required by Civ.R. 53(E)(3) is necessary to assign as error on appeal adoption by the trial court of any finding of fact or conclusion of law. It is ordinarily assumed that rule language that prescribes a procedural requirement (see, e.g., sentence six of Civ.R. 51(A), which is analogous to the waiver rule of Civ.R. 53(E)(3)) constitutes sufficient notice to counsel and to *pro se* litigants of that requirement. The Committee nonetheless concluded that the additional provision requiring that a magistrate's decision which includes findings of fact and conclusions of law call attention of counsel and *pro se* litigants to the waiver rule is justified because, as noted above, the original version of Civ.R. 53 imposed no waiver at all and even the 1985 version imposed waiver only as to findings of fact by referees.

Staff Note (July 1, 2006 Amendment)

Civ.R. 53 has been reorganized in an effort to make it more helpful to bench and bar and reflective of developments since the rule was last substantially revised effective July 1, 1995. The relatively-few significant changes included in the reorganization are noted below.

Rule 53(A) Appointment

Civ.R. 53(A) is taken verbatim from sentence one of former Civ.R. 53(A). Sup.R. 19 requires that all municipal courts having more than two judges appoint one or more magistrates to hear specified matters. See also Crim.R. 19 and Traf.R. 14.

Rule 53(B) Compensation

Civ.R. 53(B) refers to Civ.R. 54(D) so as to more clearly harmonize Civ.R. 53 with statutory provisions that authorize courts to collect funds from litigants generally and to use the collected funds for purposes that include employment of magistrates. See, *e.g.,* R.C. 1901.26(B)(1), 1907.24(B)(1), 2303.201(E)(1), and 2501.16(B).

Rule 53(C) Authority

Civ.R. 53(C) is drawn largely from former Civ.R. 53(C)(1) and (2) and reflects the admonition of the Supreme Court that "a [magistrate's] oversight of an issue or issues, or even an entire trial, is not a *substitute* for the judicial functions but only an *aid* to them." *Hartt v. Munobe* (1993), 67 Ohio St.3d 3, 6, 615 N.E.2d 617 (emphases added). Civ.R. 53(C)(1)(d) is added to parallel Crim.R. 19(C)(1)(g) and recognize that magistrates have authority to conduct temporary protection order proceedings in accordance with law. Consistent with the admonition in *Hartt*, however, any temporary protection order issued as a result of such proceedings must be signed by a judge.

Rule 53(D) Proceedings in Matters Referred to Magistrates

Civ.R. 53(D)(1) through (4) treat each of the steps that potentially occur if a magistrate participates: (1) reference to a magistrate; (2) magistrate's orders and motions to set aside magistrate's orders; (3) magistrate's decisions and objections to magistrate's decisions; and (4) action of the court on magistrate's decisions and on any objections to magistrate's decisions and entry of judgment or interim order by the court. Civ.R. 53(D)(5) through (8) deal with good cause extensions of time, disqualification of a magistrate, recording of proceedings before a magistrate, and contempt in the presence of a magistrate.

Reference by court of record

Civ.R. 53(D)(1), unlike former Civ.R. 53(C)(1)(b), specifically authorizes reference of types of matters by rule as well as by a specific or general order of reference. In so doing, it recognizes existing practice in some courts. See, e.g., Loc. R. 99.02, Franklin Cty. Ct. of Common Pleas; Loc. R. 23(B), Hamilton Cty. Ct. of Common Pleas; *State ex rel. Nalls v. Russo,* 96 Ohio St.3d 410, 412-13, 2002-Ohio-4907 at ¶¶ 20-24, 775 N.E.2d 522; *Davis v. Reed* (Aug. 31, 2000), 8th Dist. App. No. 76712, 2000 WL 1231462 at *2 (citing *White v. White* (1977), 50 Ohio App.2d 263, 266-268, 362 N.E.2d 1013), and *Partridge v. Partridge* (Aug. 27, 1999), 2nd Dist. App. No. 98 CA 38, 1999 WL 945046 at *2, (treating a local rule of the Greene Cty. Ct. of Common Pleas, Dom. Rel. Div., as a standing order of reference).

Magistrate's order; motion to set aside magistrate's order

Civ.R. 53(D)(2)(a)(i) generally authorizes a magistrate to enter orders without judicial approval if necessary to regulate the proceedings and, adapting language from Crim.R. 19(B)(5)(a), if "not dispositive of a claim or defense of a party." The new language removes the arguably limiting title of former Civ.R. 53(C)(3)(a) ["Pretrial orders"] and is intended to more accurately reflect proper and existing practice. This language is not intended to narrow the power of a magistrate to enter pretrial orders without judicial approval on matters related to (1) pretrial management under Civ.R. 16; (2) discovery conducted pursuant to Civ.R. 26-37; (3) temporary orders issued pursuant to Civ.R. 75(N); (4) temporary restraining order governing marital property under Civ.R. 75(I) (2); or (5) any other orders necessary to the regulation of proceedings before a magistrate. All temporary protection orders, however, including orders issued to avoid bodily harm pursuant to Civ.R. 75(I)(2), must be signed by a judge and comply fully with the procedures set forth in R.C. 3113.31 and related sections. Civ.R. 53(D)(2)(b) replaces language in former Civ.R. 53(C)(3)(b), which purported to authorize "[a]ny person" to "appeal to the court" from any order of a magistrate "by filing a motion to set the order aside." The new language refers to the appropriate challenge to a magistrate's order as solely a "motion to set aside" the order. Civ.R. 53(D)(2)(b) likewise limits the authorization to file a motion to "any *party*," though an occasional nonparty may be entitled to file a motion to set aside a magistrate's order. Sentence two of Civ.R. 53(D)(2)(b) changes the trigger for the ten days permitted to

file a motion to set aside a magistrate's order from entry of the order to filing of the order, as the latter date is definite and more easily available to counsel.

Magistrate's decision; objections to magistrate's decision

Civ.R. 53(D)(3) prescribes procedures for preparation of a magistrate's decision and for any objections to a magistrate's decision.

Civ.R. 53(D)(3)(a)(ii), unlike former Civ.R. 53(E)(2), adapts language from Civ.R. 52 rather than simply referring to Civ.R. 52. The change is intended to make clear that, e.g., a request for findings of fact and conclusions of law in a referred matter should be directed to the magistrate rather than to the court. Civ.R. 53(D)(3)(a)(ii) explicitly authorizes a magistrate's decision, subject to the terms of the relevant reference, to be general absent a timely request for findings of fact and conclusions of law or a provision of law that provides otherwise. Occasional decisions under former Civ.R. 53 said as much. See, *e.g.*, *In re Chapman* (Apr. 21, 1997), 12th Dist. App. No. CA96-07-127, 1997 WL 194879 at *2; *Burke v. Brown*, 4th Dist. App. No. 01CA731, 2002-Ohio-6164 at ¶ 21; and *Rush v. Schlagetter* (Apr. 15, 1997), 4th Dist. App. No. 96CA2215, 1997 WL 193169 at *3. For a table of sections of the Ohio Revised Code that purport to make findings of fact by judicial officers mandatory in specified circumstances, see 2 Klein-Darling, Ohio Civil Practice § 52-4, 2002 Pocket Part at 136 (West Group 1997).

Civ.R. 53(D)(3)(a)(iii) now requires that the magistrate's decision be served on the parties or their attorneys no later than three days after the decision was filed. The former rule contained no specific time requirement. The provision further requires that a magistrate's decision include a conspicuous warning of the waiver rule prescribed by amended Civ.R. 53(D)(3)(b)(iv). The latter rule now provides that a party shall not assign as error on appeal a court's adoption of any factual finding or legal conclusion of a magistrate, whether or not specifically designated as a finding of fact or conclusion of law under Civ.R. 53(D)(3)(a)(ii), unless that party has objected to that finding or conclusion as required by Civ.R. 53(D)(3)(b). While the prior waiver rule, prescribed by former Civ.R. 53(E)(3)(b) (effective July 1, 1995) and former Civ.R. 53(E)(3)(d) (effective July 1, 2003), arguably applied only to findings of fact or conclusions of law specifically designated as such, the amended waiver rule applies to any factual finding or legal conclusion in a magistrate's decision and the required warning is broadened accordingly.

Civ.R. 53(D)(3)(b)(i) retains the fourteen-day time for filing written objections to a magistrate's decision. While the rule continues to authorize filing of objections by a "party," it has been held that a non-party attorney can properly object to a magistrate's decision imposing sanctions on the attorney. *All Climate Heating & Cooling, Inc. v. Zee Properties, Inc.* (May 17, 2001), 10th Dist. App. No. 00AP-1141, 2001 WL 521408 at *3.

Sentence one of Civ.R. 53(D)(3)(b)(iii) requires that an objection to a factual finding in a magistrate's decision, whether or not specifically designated as a finding of fact under Civ.R. 53(D)(3)(a)(ii), be supported by a transcript of all the evidence submitted to the magistrate relevant to that fact or by an affidavit of that evidence if a transcript is not available. The Supreme Court has prescribed the consequences on appeal of failure to supply the requisite transcript or affidavit as follows: (1) "appellate review of the court's findings is limited to whether the trial court abused its discretion in adopting the [magistrate's decision]" and (2) "the appellate court is precluded from considering the transcript of the hearing submitted with the appellate record." *State ex rel. Duncan v. Chippewa Twp. Trustees* (1995), 73 Ohio St.3d 728, 730, 654 N.E.2d 1254.

Sentence two of Civ.R. 53(D)(3)(b)(iii) adds a new requirement, adapted from Loc. R. 99.05, Franklin Cty. Ct. of Common Pleas, that the requisite transcript or affidavit be filed within thirty days after filing objections unless the court extends the time in writing for preparation of the transcript or other good cause. The last sentence of Civ.R. 53(D)(3)(b)(iii) allows an objecting party to seek leave of court to supplement previously filed objections where the additional objections become apparent after a transcript has been prepared.

Civ.R. 53(D)(3)(b)(iv), as noted above, expands the "waiver rule" prescribed by former Civ.R. 53(E)(3)(b) (effective July 1, 1995) and former Civ.R. 53(E)(3)(d) (effective July 1, 2003) to include any factual finding or legal conclusion in a magistrate's decision, whether or not specifically designated as a finding of fact or conclusion of law under Civ.R. 53(D)(3)(a)(ii). The Rules Advisory Committee was unable to discern a principled reason to apply different requirements to, e.g., a factual finding depending on whether or not that finding is specifically designated as a finding of fact under Civ.R. 53(D)(3)(a)(ii). An exception to the "waiver rule" exists for plain error, which cannot be waived based on a party's failure to object to a magistrate's decision.

Action of court on magistrate's decision and on any objections to magistrate's decision; entry of judgment or interim order by the court

Civ.R. 53(D)(4)(a), like sentence one of former Civ.R. 53(E)(4)(a), confirms that a magistrate's decision is not effective unless adopted by the court.

Civ.R. 53(D)(4)(b) provides that a court may properly choose among a wide range of options in response to a magistrate's decision, whether or not objections are timely filed. See, *e.g.*, *Johnson v. Brown* 2nd Dist. App. No. 2002 CA 76, 2003-Ohio-1257 at ¶ 12 (apparently concluding that former Civ.R. 53(E)(4)(b) permitted the trial court to modify an aspect of the magistrate's decision to which no objection had been made).

Civ.R. 53(D)(4)(c) provides that if no timely objections are filed, the court may adopt a magistrate's decision unless the court determines that there is an error of law or other defect evident on the face of the decision. A similar result was reached under sentence two of former Civ.R. 53(E)(4)(a). See, *e.g.*, *Perrine v. Perrine*, 9th Dist. App. No. 20923, 2002-Ohio-4351 at ¶ 9; *City of Ravenna Police Dept. v. Sicuro* (Apr. 30, 2002), 11th Dist. App. No. 2001-P-0037; and *In re Weingart* (Jan. 17, 2002), 8th Dist. App. No. 79489, 2002 WL 68204 at *4. The language of Civ.R. 53(D)(4)(c) has been modified in an attempt to make clear that the obligation of the court does not extend to any "error of law" whatever but is limited to errors of law that are evident on the face of the decision. To the extent that decisions such as *In re Kelley*, 11th Dist. App. No. 2002-A-0088, 2003-Ohio-194 at ¶ 8 suggest otherwise, they are rejected. The "evident on the face" standard does not require that the court conduct an independent analysis of the magistrate's decision. The amended rule does not speak to the effect, if any, on the waiver rule prescribed by amended Civ.R. 53(D)(3)(b)(iv) of the "evident on the face" requirement. At least two courts have explicitly held that the "evident on the face" standard generates an exception to the waiver rule. *Dean-Kitts v. Dean*, 2nd Dist. App. No. 2002CA18, 2002-Ohio-5590 at ¶ 13 and *Hennessy v. Hennessy* (Mar. 24, 2000), 6th Dist. App. No. L-99-1170, 2000 WL 299450 at *1. Other decisions have indicated that the standard may generate an exception to the waiver rule. *Ohlin v. Ohlin* (Nov. 12, 1999), 11th Dist. App. No. 98-PA-87, 1999 WL 1580977 at *2; *Group One Realty, Inc. v. Dixie Intl. Co.* (1998), 125 Ohio App.3d 767, 769, 709 N.E.2d 589; *In re Williams* (Feb. 25, 1997), 10th Dist. App. No. 96APF06-778, 1997 WL 84659 at *1. However, the Supreme Court applied the waiver rule three times without so much as referring to the "evident on the face" standard as a possible exception. *State ex rel. Wilson v. Industrial Common.* (2003), 100 Ohio St. 3d 23, 24, 2003-Ohio-4832 at ¶ 4, 795 N.E.2d 662; *State ex rel. Abate v. Industrial Comm'n.* (2002), 96 Ohio St.3d 343, 2002-Ohio-4796, 774 N.E.2d 1212; *State ex rel. Booher v. Honda of America Mfg. Co., Inc.* (2000), 88 Ohio St.3d 52, 2000-Ohio-269, 723 N.E.2d 571.

As noted above, even if no timely objection is made, a court may, pursuant to Civ.R. 53(D)(4)(b), properly choose a course of action other than adopting a magistrate's decision even if there is no error of law or other defect evident on the face of the magistrate's decision.

Sentence one of Civ.R. 53(D)(4)(d), like sentence one of former Civ.R. 53(E)(4)(b), requires that the court rule on timely objections. Sentence two of Civ.R. 53(D)(4)(d) requires that, if timely objection is made to a magistrate's decision, the court give greater scrutiny than if no objections are made. The "independent review as to the objected matters" standard that applies if timely objection is made should be distinguished from the lesser scrutiny permitted if no objections to a magistrate's decision are timely filed, the latter standard having been first adopted by former Civ.R. 53(E)(4)(a), effective July 1, 1995, and retained by new Civ.R. 53(D)(4)(c), discussed above.

The "independent review as to the objected matters" standard is intended to exclude the more limited appellate standards of review and codify the practice approved by most courts of appeals. The Second District Court of Appeals has most clearly and consistently endorsed and explained that standard. *See, e.g., Crosby v. McWilliam*, 2nd Dist. App. No. 19856, 2003-Ohio-6063; *Quick v. Kwiatkowski* (Aug. 3, 2001), 2nd Dist. App. No. 18620, 2001 WL 871406 (acknowledging that "Magistrates truly do the 'heavy lifting' on which we all depend"); *Knauer v. Keener* (2001), 143 Ohio App.3d 789, 758 N.E.2d 1234. Other district courts of appeal have followed suit. *Reese v. Reese*, 3rd Dist. App. No. 14-03-42, 2004-Ohio-1395; *Palenshus v. Smile Dental Group, Inc.*, 3rd Dist. App. No. 3-02-46, 2003-Ohio-3095,; *Huffer v. Chafin*, 5th Dist. App. No. 01 CA 74, 2002-Ohio-356; *Rhoads v. Arthur* (June 30, 1999), 5th Dist. App. No. 98CAF10050, 1999 WL 547574; *Barker v. Barker* (May 4, 2001), 6th Dist. App. No. L-00-1346, 2001 WL 477267; *In re Day*, 7th Dist. App. No. 01 BA 28, 2003-Ohio-1215; *State ex rel. Ricart Auto. Personnel, Inc. v. Industrial Comm'n. of Ohio*, 10th Dist. App. No. 03AP-246, 2003-Ohio-7030; *Holland v. Holland* (Jan. 20, 1998), 10th Dist. App. No. 97APF08-974, 1998 WL 30179; *In re Gibbs* (Mar. 13, 1998), 11th Dist. App. No. 97-L-067, 1998 WL 257317.

Only one court of appeals appears consistently and knowingly to have taken a different approach. *Lowery v. Keystone Bd. of Ed.* (May 9, 2001), 9th Dist. App. No. 99CA007407, 2001 WL 490017; *Weber v. Weber* (June 30, 1999), 9th Dist. App. No. 2846-M, 1999 WL 459359; *Meadows v. Meadows* (Feb. 11, 1998), 9th Dist. App. No. 18382, 1998 WL 78686; *Rogers v. Rogers* (Dec. 17, 1997), 9th Dist. App. No. 18280, 1997 WL 795820.

The Rules Advisory Committee believes that the view adopted by the majority of courts of appeals is correct and that no change was made by the 1995 amendments to Civ.R. 53 in the review required of a trial judge upon the filing of timely objections to a magistrate's decision.

The phrase "as to the objected matters" permits a court to choose to limit its independent review to those matters raised by proper objections. If a court need apply only the "defect evident on the face" standard if no objections are filed at all, then, if one or more objections *are* filed, a court logically need apply the more stringent independent review only to those aspects of the magistrate's decision that are challenged by that objection or those objections.

Sentence three of Civ.R. 53(D)(4)(d) provides that, before ruling on objections, a court may hear additional evidence and that it may refuse to hear additional evidence unless the objecting party demonstrates that the party could not, with reasonable diligence, have produced that evidence for consideration by the magistrate.

Civ.R. 53(D)(4)(e) requires that a court that adopts, rejects, or modifies a magistrate's decision also enter a judgment or interim order. Civ.R. 53 (D)(4)(e)(i) permits the court to enter a judgment during the fourteen days permitted for the filing of objections to a magistrate's decision but provides that the timely filing of objections operates as an automatic stay of execution of the judgment until the court disposes of those objections and vacates, modifies, or adheres to the judgment previously entered. Civ.R. 53(D)(4)(e)(ii) permits the court, if immediate relief is justified, to enter an interim order based on the magistrate's decision without waiting for or ruling on timely objections. The timely filing of objections does not stay such an interim order, but the order may not properly extend more than twenty-eight days from the date of entry, subject to extension by the court in increments of twenty-eight additional days for good cause shown. New sentence three of Civ.R. 53(D)(4)(e)(ii) provides that an interim order shall comply with Civ.R. 54(A), be journalized pursuant to Civ.R. 58(A), and be served pursuant to Civ.R. 58(B). See *Hall v. Darr,* 6th Dist. App. No. OT-03-001, 2003-Ohio-1035.

Extension of time

Civ.R. 53(D)(5) is new and requires the court, for good cause shown, to provide an objecting party with a reasonable extension of time to file a motion to set aside a magistrate's order or file objections to a magistrate's decision. "Good cause" would include the failure of a party to receive timely service of the magistrate's order or decision.

Disqualification of a magistrate

Civ.R. 53(D)(6) has no counterpart in former Civ.R. 53. The statutory procedures for affidavits of disqualification apply to judges rather than magistrates. Rev. Code §§ 2101.39, 2501.13, 2701.03, 2701.131; *In re Disqualification of Light* (1988), 36 Ohio St.3d 604, 522 N.E.2d 458. The new provision is based on the observation of the Chief Justice of the Supreme Court that "[t]he removal of a magistrate is within the discretion of the judge who referred the matter to the magistrate and should be brought by a motion filed with the trial court." *In re Disqualification of Wilson* (1996), 77 Ohio St. 3d 1250, 1251, 674 N.E.2d 260; see also *Mascorro v. Mascorro* (June 9, 2000), 2nd Dist. App. No. 17945, 2000 WL 731751 at *3 (citing *In re Disqualification of Wilson)*; *Reece v. Reece* (June 22, 1994), 2nd Dist. App. No. 93-CA-45, 1994 WL 286282 at *2 ("Appointment of a referee is no different from any other process in which the trial court exercises discretion it is granted by statute or rule. * * * If the defect concerns possible bias or prejudice on the part of the referee, that may be brought to the attention of the court by motion."); *Moton v. Ford Motor Credit Co.*, 5th Dist. App. No. 01CA74, 2002-Ohio-2857, appeal not allowed (2002), 95 Ohio St.3d 1422, 2002-Ohio-1734, 766 N.E.2d 163, reconsideration denied (2002), 95 Ohio St.3d 1476, 2002-Ohio-244, 768 N.E.2d 1183; *Walser v. Dominion Homes, Inc.* (June 11, 2001), 5th Dist. App. No. 00-CA-G-11-035, 2001 WL 704408 at *5; *Unger v. Unger* (Dec. 29, 2000), 12th Dist. App. No. CA2000-04-009, 2000 WL 1902196 at *2 (citing *In re Disqualification of Wilson*, *supra)*; *Jordan v. Jordan* (Nov. 15, 1996), 4th Dist. App. No. 1427, 1990 WL 178162 at *5 ("Although referees are not judges and arguably, are not bound by Canon 3(C)(1) of the Code of Judicial Conduct, it would appear axiomatic that a party should be able to petition the court to have a referee removed from the case if the referee is unable to render a fair and impartial decision."); *In re Reiner* (1991), 74 Ohio App.3d 213, 220, 598 N.E.2d 768 ("where a referee affirmatively states that he is biased on the matter before him, it is an abuse of the court's discretion to fail to recuse the referee"). Particularly because "a [magistrate's] oversight of an issue or issues, or even an entire trial, is not a *substitute* for the judicial functions but only an *aid* to them," *Hartt v. Munobe* (1993), 67 Ohio St.3d 3, 6, 1993-Ohio-177, 615 N.E.2d 617 (emphases added), Civ.R. 53(D)(6) contemplates that disqualification on a ground other than bias may sometimes be appropriate.

Recording of proceedings before a magistrate

Civ.R. 53(D)(7), generally requiring recording of proceedings before a magistrate, is taken verbatim from former Civ.R. 53(D)(2).

Contempt in the presence of a magistrate

Civ.R. 53(D)(8) is adapted from sentences two, three, and four of former Civ.R. 53(C)(3)(c). Civ.R. 53(D)(8)(b), unlike its predecessor, explicitly requires that the clerk provide a copy of a contempt order to the subject of the order.

Staff Note (July 1, 2012 Amendment)

Rule 65.1(F), effective July 1, 2012, relates to the reference to a magistrate of civil protection order proceedings under R.C. 3113.31, R.C. 2151.34, and R.C. 2903.214. Rule 65.1(A) states that the provisions of the rule shall be interpreted and applied in a manner consistent with the intent and purposes of the protection order statutes, and supersede and make inapplicable in those proceedings the provisions of any other rules to the extent that their application is inconsistent with Civ.R. 65.1. Provisions of Civ.R. 65.1(F) which affect Civ.R. 53 include:

> Civ.R. 65.1(F)(2)(b)(ii): A magistrate's denial or granting of an ex parte protection order without judicial approval does not constitute a magistrate's order or a magistrate's decision under Civ.R. 53(D)(2) or (3) and is not subject to the requirements of those rules.
> Civ.R. 65.1(F)(2)(b)(iii): The court's approval and signing of a magistrate's denial or granting of an ex parte protection order does not constitute a judgment or interim order under Civ.R. 53(D)(4)(e) and is not subject to the requirements of that rule;
> Civ.R. 65.1(F)(3)(b): A magistrate's denial or granting of a protection order after a full hearing does not constitute a magistrate's order or a magistrate's decision under Civ.R. 53(D)(2) or (3) and Is

not subject to the requirements of those rules; Civ.R. 65.1(F)(3)(c)(iv): A court's adoption, modification, or rejection of a magistrate's denial or granting of a protection order after a full hearing does not constitute a judgment or interim order under Civ.R. 53(D)(4)(e) and is not subject to the requirements of that rule.

The adoption of Civ.R. 65.1(F) also nullifies comments in the 2006 Staff Note to Civ.R. 53(D)(2)(a)(i) relating to the entry of temporary protection orders under R.C. 3113.31.

The listing above is not exclusive or comprehensive. Additional provisions of Civ.R. 53 relating to such matters as the authority and responsibilities of a magistrate are also affected by Civ.R. 65.1(F). As indicated in the Staff Notes to Rule 65.1, the rule was adopted to provide a set of provisions uniquely applicable to civil protection order proceedings and to provide the court with the discretion to suspend the application in such proceedings of any other rules to the extent that their application interferes with the statutory process or are inconsistent with its purposes.

Staff Note (July 1, 2020 Amendment)

Division (C)(2)

A major improvement to federal practice in the last half century was the authorization given magistrate judges to conduct civil jury trials. F.R.C.P. 73. Following the lead of the federal courts, Ohio magistrates also now conduct civil jury trials with written consent of all parties as authorized by Civ.R. 53(C)(1)(c). Yet, as demonstrated in *Gilson v. American Institute of Alternative Medicine*, 10th Dist. Case No. 15AP-548, 2016-Ohio-1324, ¶¶ 28-29, 103, Ohio procedure remains cumbersome after jury trials conducted by magistrates, and may require the trial court to unnecessarily review factual findings of the jury and certain interlocutory rulings of a magistrate. This is unnecessarily time consuming and costly.

The amendment adds a new Division (C)(2) and renumbers the existing Division (C)(2) as Division (C)(3). New Civ.R. 53(C)(2) streamlines the procedure following jury trials conducted by magistrates upon unanimous consent of the parties, although still requiring the entry of judgment by the trial court. Factual findings of the jury and the magistrate's interlocutory rulings preceding the entry of judgment, are no longer required to undergo a cumbersome and expensive procedure for which essentially the first line of appeal has been to the trial court, rather than directly to a court of appeals.

Staff Note (July 1, 2023 Amendment)

The amendment to division (D)(8)(a) of this rule makes a cross-reference change necessitated by prior amendments to the rule.

TITLE VII. JUDGMENT.

RULE 54. Judgments; Costs.

(A) Definition; form

"Judgment" as used in these rules means a written entry ordering or declining to order a form of relief, signed by a judge, and journalized on the docket of the court.

(B) Judgment upon multiple claims or involving multiple parties

When more than one claim for relief is presented in an action whether as a claim, counterclaim, cross-claim, or third-party claim, and whether arising out of the same or separate transactions, or when multiple parties are involved, the court may enter final judgment as to one or more but fewer than all of the claims or parties only upon an express determination that there is no just reason for delay. In the absence of a determination that there is no just reason for delay, any order or other form of decision, however designated, which adjudicates fewer than all the claims or the rights and liabilities of fewer than all the parties, shall not terminate the action as to any of the claims or parties, and the order or other form of decision is subject to revision at any time before the entry of judgment adjudicating all the claims and the rights and liabilities of all the parties.

(C) Demand for judgment

A judgment by default shall not be different in kind from or exceed in amount that prayed for in the demand for judgment. Except as to a party against whom a judgment is entered by default, every final judgment shall grant the relief to which the party in whose favor it is rendered is entitled, even if the party has not demanded the relief in the pleadings.

(D) Costs

Except when express provision therefor is made either in a statute or in these rules, costs shall be allowed to the prevailing party unless the court otherwise directs.

(E) Attorney Fees

Whenever a provision of these rules authorizes a court to award attorney fees, including attorney fees described in the provision as "caused" or "incurred," the court may award the reasonable value of the services performed by the attorney, whether or not the party represented by that attorney actually paid or is obligated to pay the attorney for such services performed.

Effective Date: July 1, 1970
Amended: July 1, 1989; July 1, 1992; July 1, 1994; July 1, 1996; July 1, 2016; July 1, 2019

Staff Note (July 1, 1996 Amendment)

Rule 54(A) Definition; form

The amendment changed the rule's reference from "report of a referee" to "magistrate's decision" in division (A) in order to harmonize the rule with the language adopted in the 1995 amendments to Civ.R. 53. The amendment is technical only and no substantive change is intended.

Staff Note (July 1, 2016 Amendment)

A new division (E) is added to address awards of attorney fees. The purpose of the new division is to supersede any application of the decision in *State ex rel. Citizens for Open, Responsive & Accountable Govt. v. Register*, 116 Ohio St.3d 88, 2007–Ohio–5542 to an award of attorney fees under the rules by specifying that when any provision of the rules authorizes an award of attorney fees, the court may award the reasonable value of the services performed by the attorney, whether or not the party actually paid or is obligated to pay the attorney for such services. The heading of the rule is also amended to indicate that, in addition to "Judgments" and "Cost," the rule now also addresses the separate subject of "Attorney Fees."

Staff Note (July 1, 2019 Amendment)

Division (A)

The amendment to division (A) deletes the circular reference to the final-order statute, which often could not be reconciled with how the term "judgment" is used in the civil rules or with evolving final-order jurisprudence. Not every judgment constitutes a final order, and some judgments are final under statutes other than R.C. 2505.02. The amendment now places the finality analysis squarely on the apposite statutes, where it rightly belongs.

The amendment also deletes the last sentence of the rule, which unnecessarily circumscribed the contents of a judgment. The original purpose of this language appears, at least in part, to be to distinguish between decisions (which "announce[] what the judgment will be") and judgments (which "unequivocally order[] the relief"). *See*, *e.g.*, *Downard v. Gilliland*, 4th Dist. Jackson No. 10CA2, 2011-Ohio-1783, ¶ 11, citing *St. Vincent Charity Hosp. v. Mintz*, 33 Ohio St.3d 121, 123, 515 N.E.2d 917 (1987). The amendment now specifies that a judgment must order or decline to order a form of relief; what a judgment includes beyond that requirement should be left in the discretion of the issuing court.

RULE 55. Default.

(A) Entry of judgment

When a party against whom a judgment for affirmative relief is sought has failed to plead or otherwise defend as provided by these rules, the party entitled to a judgment by default shall apply in writing or orally to the court therefor; but no judgment by default shall be entered against a minor or an incompetent person unless represented in the action by a guardian or other such representative who has appeared therein. If the party against whom judgment by default is sought has appeared in the action, he (or, if appearing by representative, his representative) shall be served with written notice of the application for judgment at least seven days prior to the hearing on such application. If, in order to enable the court to enter judgment or to carry it into effect, it is necessary to take an account or to determine the amount of damages or to establish the truth of any averment by evidence or to make an investigation of any other matter, the court may conduct such hearings or order such references as it deems necessary and proper and shall when applicable accord a right of trial by jury to the parties.

(B) Setting aside default judgment

If a judgment by default has been entered, the court may set it aside in accordance with Rule 60(B).

(C) Plaintiffs, counterclaimants, cross-claimants

The provisions of this rule apply whether the party entitled to the judgment by default is a plaintiff, a third-party plaintiff or a party who has pleaded a cross-claim or counterclaim. In all cases a judgment by default is subject to the limitations of Rule 54(C).

(D) Judgment against this state

No judgment by default shall be entered against this state, a political subdivision, or officer in his representative capacity or agency of either unless the claimant establishes his claim or right to relief by evidence satisfactory to the court.

Effective Date: July 1, 1970
Amended: July 1, 1971

RULE 56. Summary Judgment.

(A) For party seeking affirmative relief

A party seeking to recover upon a claim, counterclaim, or cross-claim or to obtain a declaratory judgment may move with or without supporting affidavits for a summary judgment in the party's favor as to all or any part of the claim, counterclaim, cross-claim, or declaratory judgment action. A party may move for summary judgment at any time after the expiration of the time permitted under these rules for a responsive motion or pleading by the adverse party, or after service of a motion for summary judgment by the adverse party. If the action has been set for pretrial or trial, a motion for summary judgment may be made only with leave of court.

(B) For defending party

A party against whom a claim, counterclaim, or cross-claim is asserted or a declaratory judgment is sought may, at any time, move with or without supporting affidavits for a summary judgment in the party's favor as to all or any part of the claim, counterclaim, cross-claim, or declaratory judgment action. If the action has been set for pretrial or trial, a motion for summary judgment may be made only with leave of court.

(C) Motion and proceedings

The motion together with all affidavits and other materials in support shall be served in accordance with Civ.R. 5. Responsive arguments, together with all affidavits and other materials in opposition, and a movant's reply arguments may be served as provided by Civ.R. 6(C). Summary judgment shall be rendered forthwith if the pleadings, depositions, answers to interrogatories, written admissions, affidavits, transcripts of evidence, and written stipulations of fact, if any, timely filed in the action, show that there is no genuine issue as to any material fact and that the moving party is entitled to judgment as a matter of law. No evidence or stipulation may be considered except as stated in this rule. A summary judgment shall not be rendered unless it appears from the evidence or stipulation, and only from the evidence or stipulation, that reasonable minds can come to but one conclusion and that conclusion is adverse to the party against whom the motion for summary judgment is made, that party being entitled to have the evidence or stipulation construed most strongly in the party's favor. A summary judgment, interlocutory in character, may be rendered on the issue of liability alone although there is a genuine issue as to the amount of damages.

(D) Case not fully adjudicated upon motion

If on motion under this rule summary judgment is not rendered upon the whole case or for all the relief asked and a trial is necessary, the court in deciding the motion, shall examine the evidence or stipulation properly before it, and shall if practicable, ascertain what material facts exist without controversy and what material facts are actually and in good faith controverted. The court shall thereupon make an order on its journal specifying the

facts that are without controversy, including the extent to which the amount of damages or other relief is not in controversy, and directing such further proceedings in the action as are just. Upon the trial of the action the facts so specified shall be deemed established, and the trial shall be conducted accordingly.

(E) Form of affidavits; further testimony; defense required

Supporting and opposing affidavits shall be made on personal knowledge, shall set forth such facts as would be admissible in evidence, and shall show affirmatively that the affiant is competent to testify to the matters stated in the affidavit. Sworn or certified copies of all papers or parts of papers referred to in an affidavit shall be attached to or served with the affidavit. The court may permit affidavits to be supplemented or opposed by depositions or by further affidavits. When a motion for summary judgment is made and supported as provided in this rule, an adverse party may not rest upon the mere allegations or denials of the party's pleadings, but the party's response, by affidavit or as otherwise provided in this rule, must set forth specific facts showing that there is a genuine issue for trial. If the party does not so respond, summary judgment, if appropriate, shall be entered against the party.

(F) When affidavits unavailable

Should it appear from the affidavits of a party opposing the motion for summary judgment that the party cannot for sufficient reasons stated present by affidavit facts essential to justify the party's opposition, the court may refuse the application for judgment or may order a continuance to permit affidavits to be obtained or discovery to be had or may make such other order as is just.

(G) Affidavits made in bad faith

Should it appear to the satisfaction of the court at any time that any of the affidavits presented pursuant to this rule are presented in bad faith or solely for the purpose of delay, the court shall forthwith order the party employing them to pay to the other party the amount of the reasonable expenses which the filing of the affidavits caused the other party to incur, including reasonable attorney's fees, and any offending party or attorney may be adjudged guilty of contempt.

Effective Date: July 1, 1970
Amended: July 1, 1976; July 1, 1997; July 1, 1999; July 1, 2015; July 1, 2019

Staff Note (July 1, 1997 Amendment)

Rule 56(A) For party seeking affirmative relief

The 1997 amendment to division (A) divided the previous first sentence into two separate sentences for clarity and ease of reading, and replaced a masculine reference with gender-neutral language. The amendment is grammatical only and no substantive change is intended.

Rule 56(B) For defending party

The 1997 amendment to division (B) added a comma after the "may" in the first sentence and replaced a masculine reference with gender-neutral language. The amendment is grammatical only and no substantive change is intended.

Rule 56(C) Motion and proceedings thereon

The 1997 amendment to division (C) changed the word "pleading" to "pleadings" and replaced a masculine reference with gender-neutral language. The amendment is grammatical only and no substantive change is intended.

Rule 56(E) Form of affidavits; further testimony; defense required

The 1997 amendment to division (E) replaced several masculine references with gender-neutral language. The amendment is grammatical only and no substantive change is intended.

Rule 56(F) When affidavits unavailable

The 1997 amendment to division (F) replaced several masculine references with gender-neutral language. The amendment is grammatical only and no substantive change is intended.

Rule 56(G) Affidavits made in bad faith

The 1997 amendment to division (G) replaced a masculine reference with gender-neutral language. The amendment is grammatical only and no substantive change is intended.

Staff Note (July 1, 1999 Amendment)

Rule 56(C) Motion and proceedings thereon

The prior rule provided that "transcripts of evidence in the pending case" was one of the items that could be considered in deciding a motion for summary judgment. The 1999 amendment deleted "in the pending case" so that transcripts of evidence from another case can be filed and considered in deciding the motion.

Staff Note (July 1, 2015 Amendment)

Consistent with a similar amendment to Civ.R. 6(C), the amendment to Civ.R. 56(C) deletes the reference in the prior rule to "the time fixed for hearing." The amendment also specifies, in the absence of a local rule or court order specifying a time for responding to a motion for summary judgment, a fallback time of twenty-eight days after service of the motion within which to serve responsive arguments and opposing affidavits. In the absence of a local rule or court order addressing replies, the amendment also permits the movant to serve reply arguments within fourteen days after service of the adverse party's response. The time for filing the motion, responses, and replies is governed by Civ.R. 5(D), again in the absence of a local rule or court order specifying a different time for filing. The rule applies only in the absence of a local rule or court order providing times for briefing motions, whether or not the rule or order specifically addresses summary judgment motions, and does not supersede or affect the application of local rules or orders addressing briefing on motions.

Staff Note (July 1, 2019 Amendment)

Division (C)

Recognizing that provisions of Civ.R.6(C) govern the requirements for service of responses to motions for summary judgment and for service of a movant's reply to such responses, the amendment to Civ.R. 56(C) eliminates the prior provisions addressing those matters.

Division (C) is also amended to specify that the materials in support of a motion for summary judgment shall be served when the motion is served.

RULE 57. Declaratory Judgments.

The procedure for obtaining a declaratory judgment pursuant to Chapter 2721 of the Revised Code shall be in accordance with these rules. The existence of another adequate remedy does not preclude a judgment for declaratory relief in cases where it is appropriate. The court may advance on the trial list the hearing of an action for a declaratory judgment.

Effective Date: July 1, 1970; July 1, 2023

RULE 58. Entry of Judgment.

(A) Preparation; entry; effect; approval

(1) Subject to the provisions of Rule 54(B), the court must promptly prepare—or ask one or more of the parties' attorneys to prepare—a judgment entry when (i) a jury returns a general verdict, (ii) the court announces a decision, or (iii) the court grants or denies relief. If a proposed judgment entry is not prepared and presented to the court by counsel, the entry must be prepared by the court. The judgment entry must be filed and journalized within 30 days of the verdict, decision, or determination, absent good cause. A judgment is effective only when entered by the clerk upon the journal.

(2) Approval of a judgment entry by counsel or a party indicates that the entry correctly sets forth the verdict, decision, or determination of the court and does not waive any objection or assignment of error for appeal.

(B) Notice of filing

When the court signs a judgment, the court shall endorse thereon a direction to the clerk to serve upon all parties not in default for failure to appear notice of the judgment and its date of entry upon the journal. Within three days of entering the judgment upon the journal, the clerk shall serve the parties in a manner prescribed by Civ.R. 5(B) and note the service in the appearance docket. Upon serving the notice and notation of the service in the appearance docket, the service is complete. The failure of the clerk to serve notice does not affect the validity of the judgment or the running of the time for appeal except as provided in App.R. 4(A).

(C) Costs

Entry of the judgment shall not be delayed for the taxing of costs.

Effective Date: July 1, 1970
Amended: July 1, 1971; July 1, 1989; July 1, 2012; July 1, 2026

Staff Note (July 1, 2012 Amendment)

Division (A) has been subdivided in order to add Civ.R. 58(A)(2) which is a restatement of Rule 7(B) of the Rules of Superintendence for the Courts of Ohio. The provision is more appropriately included within the civil rules governing the conduct of actions.

The July 1, 1997 Commentary to Sup.R. 7 stated in pertinent part:

[T]he rule was added in 1995 and is intended to address the decision of the Eighth District Court of Appeals in *Paletta v. Paletta* (1990), 68 Ohio App.3d 507. In *Paletta*, the court of appeals held that the appellant waived any objection to the judgment of the trial court when his attorney signed a proposed judgment entry and failed to file objections as required by local rule of court, notwithstanding the attorney's assertion that he did not intend to approve the entry but only to acknowledge its receipt. The 1995 amendment indicates that a party's approval of a proposed judgment entry only reflects agreement that the

entry correctly sets forth the decision of the court and does not constitute a waiver of any error or objection for purposes of appeal.

Staff Note (July 1, 2026 Amendment)

The amendment incorporated language from former Sup.R. 7. The court need not wait 30 days before journalizing the judgment entry.

RULE 59. New Trials.

(A) Grounds for new trial

A new trial may be granted to all or any of the parties and on all or part of the issues upon any of the following grounds:

(1) Irregularity in the proceedings of the court, jury, magistrate, or prevailing party, or any order of the court or magistrate, or abuse of discretion, by which an aggrieved party was prevented from having a fair trial;

(2) Misconduct of the jury or prevailing party;

(3) Accident or surprise which ordinary prudence could not have guarded against;

(4) Excessive or inadequate damages, appearing to have been given under the influence of passion or prejudice;

(5) Error in the amount of recovery, whether too large or too small, when the action is upon a contract or for the injury or detention of property;

(6) The judgment is not sustained by the weight of the evidence; however, only one new trial may be granted on the weight of the evidence in the same case;

(7) The judgment is contrary to law;

(8) Newly discovered evidence, material for the party applying, which with reasonable diligence he could not have discovered and produced at trial;

(9) Error of law occurring at the trial and brought to the attention of the trial court by the party making the application.

In addition to the above grounds, a new trial may also be granted in the sound discretion of the court for good cause shown.

When a new trial is granted, the court shall specify in writing the grounds upon which such new trial is granted.

On a motion for a new trial in an action tried without a jury, the court may open the judgment if one has been entered, take additional testimony, amend findings of fact and conclusions of law or make new findings and conclusions, and enter a new judgment.

(B) Time for certain post-trial motions, responsive briefs, and replies

Except as otherwise provided by statute, a motion for a new trial, remitter, additur, prejudgment interest, or attorney's fees must be served within twenty-eight days of the entry of judgment or, if the clerk has not completed service of the notice of judgment within the three-day period described in Civ.R. 58(B), within twenty-eight days of the date when the clerk actually completes service. Unless otherwise provided by local rule or by order of the court, briefs in response to the motion shall be served within fourteen days of service of the motion, and a movant's reply may be served within seven days of service of the response to the motion.

(C) Time for serving affidavits

When a motion for a new trial is based upon affidavits they shall be served with the motion. The opposing party has fourteen days after such service within which to serve opposing affidavits, which period may be extended for an additional period not exceeding twenty-one days either by the court for good cause shown or by the parties by written stipulation. The court may permit supplemental and reply affidavits.

(D) On initiative of court

Not later than twenty-eight days after entry of judgment the court of its own initiative may order a new trial for any reason for which it might have granted a new trial on motion of a party.

The court may also grant a motion for a new trial, timely served by a party, for a reason not stated in the party's motion. In such case the court shall give the parties notice and an opportunity to be heard on the matter. The court shall specify the grounds for new trial in the order.

Effective Date: July 1, 1970
Amended: July 1, 1996; July 1, 2013; July 1, 2015; July 1, 2018

Staff Note (July 1, 1996 Amendment)

Rule 59(A) Grounds

The amendment changed the rule's reference from "referee" to "magistrate" in division (A)(1) in order to harmonize the rule with the language adopted in the 1995 amendments to Civ.R. 53. The amendment is technical only and no substantive change is intended.

Staff Note (July 1, 2013 Amendment)

Rule 59(B) is amended to extend the time for serving a motion for new trial to 28 days after the entry of the judgment. This change is modeled on the 2009 amendment to Fed.R.Civ.P. 59(b) and is made for the same reasons that prompted the amendment to the federal rule.

Staff Note (July 1, 2015 Amendment)

Consistent with a similar amendment to Civ.R. 6(B), the amendment to Civ.R. 59(B) specifies, in the absence of a local rule or court order specifying a time for responding to a motion for new trial, a fallback time of fourteen days after service of the motion within which to serve responsive arguments. In the absence of a local rule or court order addressing replies, the amendment also permits the movant to serve reply arguments within seven days after service of the adverse party's response. The time for filing responsive arguments and replies is governed by Civ.R. 5(D), again in the absence of a local rule or order of the court specifying a different time for filing.

Staff Note (July 1, 2018 Amendment)

Division (B) Time for Certain Post-Trial Motions, Responsive Briefs, and Replies

The amendment makes two substantive changes.

First, it provides that if the clerk fails to serve the parties with notice of a judgment in the three-day period contemplated by Civ.R. 58(B), the time to serve a post-trial motion for judgment in favor of the movant does not begin to run until after the clerk does so. The purpose of the amendment is to avoid the harsh result that otherwise can occur if a would-be movant does not receive notice of the judgment. *See*, *e.g.*, *Wing v. Haaff*, 1st Dist. Hamilton No. C-160257, 2016- Ohio-8258. This amendment brings the timing of post-trial motions under Civ.R. 59 in line with the timing of a notice of appeal in civil cases under App.R. 4(A)(3).

Second, the amendment provides that other types of post-trial motions (for remittitur, additur, prejudgment interest, and attorney fees) are subject to the same timing requirements as motions for a new trial unless a statute (e.g., R.C. 2323.51) provides a different time period. The rule change abrogates case law that provided shorter deadlines for some of these motions. See, e.g., Cotterman v. Cleveland Elec. Illuminating Co., 34 Ohio St.3d 48, 517 N.E.2d 536 (1987), paragraph one of the syllabus (motion for prejudgment interest due 14 days after judgment).

RULE 60. Relief From Judgment or Order.

(A) Clerical mistakes

Clerical mistakes in judgments, orders or other parts of the record and errors therein arising from oversight or omission may be corrected by the court at any time on its own initiative or on the motion of any party and after such notice, if any, as the court orders. During the pendency of an appeal, such mistakes may be so corrected before the appeal is docketed in the appellate court, and thereafter while the appeal is pending may be so corrected with leave of the appellate court.

(B) Mistakes; inadvertence; excusable neglect; newly discovered evidence; fraud; etc.

On motion and upon such terms as are just, the court may relieve a party or his legal representative from a final judgment, order or proceeding for the following reasons:

(1) Mistake, inadvertence, surprise or excusable neglect;

(2) Newly discovered evidence which by due diligence could not have been discovered in time to move for a new trial under Rule 59(B);

(3) Fraud (whether heretofore denominated intrinsic or extrinsic), misrepresentation or other misconduct of an adverse party;

(4) The judgment has been satisfied, released or discharged, or a prior judgment upon which it is based has been reversed or otherwise vacated, or it is no longer equitable that the judgment should have prospective application; or

(5) Any other reason justifying relief from the judgment.

The motion shall be made within a reasonable time, and for reasons (1), (2) and (3) not more than one year after the judgment, order or proceeding was entered or taken. A motion under this subdivision (B) does not affect the finality of a judgment or suspend its operation.

The procedure for obtaining any relief from a judgment shall be by motion as prescribed in these rules.

Effective Date: July 1, 1970

RULE 61. Harmless Error.

No error in either the admission or the exclusion of evidence and no error or defect in any ruling or order or in anything done or omitted by the court or by any of the parties is ground for granting a new trial or for setting aside a verdict or for vacating, modifying or otherwise disturbing a judgment or order, unless refusal to take such action appears to the court inconsistent with substantial justice. The court at every stage of the proceeding must disregard any error or defect in the proceeding which does not affect the substantial rights of the parties.

Effective Date: July 1, 1970

RULE 62. Stay of Proceedings to Enforce a Judgment.

(A) Stay on motion after judgment

In its discretion and on such conditions for the security of the adverse party as are proper, the court may, upon motion made any time after judgment, stay the execution of that judgment or stay any proceedings to enforce the judgment until the time for moving for a new trial under Civ.R. 59, moving for relief from a judgment or order under Civ.R. 60, moving for judgment notwithstanding the verdict under Civ.R. 50, or filing a notice of appeal, and during the pendency of any motion under Civ.R. 50, Civ.R. 59, or Civ.R. 60.

(B) Stay upon appeal

When an appeal is taken the appellant may obtain a stay of execution of a judgment or any proceedings to enforce a judgment by giving an adequate supersedeas bond. The bond may be given at or after the time of filing the notice of appeal. The stay is effective when the supersedeas bond is approved by the court.

(C) Stay in favor of the government

When an appeal is taken by this state or political subdivision, or administrative agency of either, or by any officer thereof acting in his representative capacity and the operation or enforcement of the judgment is stayed, no bond, obligation or other security shall be required from the appellant.

(D) Power of appellate court not limited

The provisions in this rule do not limit any power of an appellate court or of a judge or justice thereof to stay proceedings during the pendency of an appeal or to suspend, modify, restore, or grant an injunction during the pendency of an appeal or to make any order appropriate to preserve the status quo or the effectiveness of the judgment subsequently to be entered.

(E) Stay of judgment as to multiple claims or multiple parties

When a court has ordered a final judgment under the conditions stated in Rule 54(B), the court may stay enforcement of that judgment until the entering of a subsequent judgment or judgments and may prescribe such conditions as are necessary to secure the benefit thereof to the party in whose favor the judgment is entered.

Effective Date: July 1, 1970
Amended: July 1, 2017

Staff Note (July 1, 2017 Amendment)

Civ.R. 62(A) Stay on motion after judgment

The rule is amended to allow a party to move to stay execution of judgment, or any proceedings to enforce the judgment, at any time after entry of judgment, including before any relief under Civ.R. 50, 59, or 60 is sought or an appeal is filed, as well as during the pendency of any motion seeking relief under Civ.R. 50, 59, or 60.

RULE 63. Disability of a Judge.

(A) During trial

If for any reason the judge before whom a jury trial has commenced is unable to proceed with the trial, another judge designated by the administrative judge, or in the case of a single-judge division by the chief justice of the supreme court, may proceed with and finish the trial upon certifying in the record that he has familiarized himself with the record of the trial; but if such other judge is satisfied that he cannot adequately familiarize himself with the record, he may in his discretion grant a new trial.

(B) If for any reason the judge before whom an action has been tried is unable to perform the duties to be performed by the court after a verdict is returned or findings of fact and conclusions of law are filed, another judge designated by the administrative judge, or in the case of a single-judge division by the Chief Justice of the Supreme Court, may perform those duties; but if such other judge is satisfied that he cannot perform those duties, he may in his discretion grant a new trial.

Effective Date: July 1, 1970
Amended: July 1, 1972; July 1, 1973; July 1, 1994

TITLE VIII. PROVISIONAL AND FINAL REMEDIES.

RULE 64. Seizure of Person or Property.

At the commencement of and during the course of an action, all remedies providing for seizure of person or property for the purpose of securing satisfaction of the judgment ultimately to be entered in the action are available under the circumstances and in the manner provided by law. The remedies thus available include arrest, attachment, garnishment, replevin, sequestration, and other corresponding or equivalent remedies, however designated and regardless of whether the remedy is ancillary to an action or must be obtained by independent action.

Effective Date: July 1, 1970

RULE 65. Injunctions.

(A) Temporary restraining order; notice; hearing; duration

A temporary restraining order may be granted without written or oral notice to the adverse party or his attorney only if (1) it clearly appears from specific facts shown by affidavit or by the verified complaint that immediate and irreparable injury, loss or damage will result to the applicant before the adverse party or his attorney can be heard in opposition, and (2) the applicant's attorney certifies to the court in writing the efforts, if any, which have been made to give notice and the reasons supporting his claim that notice should not be required. The verification of such affidavit or verified complaint shall be upon the affiant's own knowledge, information or belief; and so far as upon information and belief, shall state that he believes this information to be true. Every temporary restraining order granted without notice shall be filed forthwith in the clerk's office; shall define the injury and state why it is irreparable and why the order was granted without notice; and shall expire by its terms within such time after entry, not to exceed fourteen days, as the court fixes, unless within the time so fixed the order, for good cause shown, is extended for one like period or unless the party against whom the order is directed consents that it may be extended for a longer period. The reasons for the extension shall be set forth in the order of extension. In case a temporary restraining order is granted without notice, the motion for a preliminary injunction shall be set down for hearing at the earliest possible time and takes precedence over all matters except older matters of the same character. When the motion comes on for hearing the party who obtained the temporary restraining order shall proceed with the application for a preliminary injunction and, if he does not do so, the court shall dissolve the temporary restraining order. On two days' notice to the party who obtained the temporary restraining order without notice or on such shorter notice to that party as the court may prescribe, the adverse party may appear and move its dissolution or modification, and in that event the court shall proceed to hear and determine such motion as expeditiously as the ends of justice require.

(B) Preliminary injunction

(1) Notice

No preliminary injunction shall be issued without reasonable notice to the adverse party. The application for preliminary injunction may be included in the complaint or may be made by motion.

(2) Consolidation of hearing with trial on merits

Before or after the commencement of the hearing of an application for a preliminary injunction, the court may order the trial of the action on the merits to be advanced and consolidated with the hearing of the application. Even when this consolidation is not ordered, any evidence received upon an application for a preliminary injunction which would be admissible upon the trial on the merits becomes part of the record on the trial and need not be repeated upon the trial. This subdivision

(B)(2) shall be so construed and applied as to save to the parties any rights they may have to trial by jury.

(C) Security

No temporary restraining order or preliminary injunction is operative until the party obtaining it gives a bond executed by sufficient surety, approved by the clerk of the court granting the order or injunction, in an amount fixed by the court or judge allowing it, to secure to the party enjoined the damages he may sustain, if it is finally decided that the order or injunction should not have been granted.

The party obtaining the order or injunction may deposit, in lieu of such bond, with the clerk of the court granting the order or injunction, currency, cashier's check, certified check or negotiable government bonds in the amount fixed by the court.

Before judgment, upon reasonable notice to the party who obtained an injunction, a party enjoined may move the court for additional security. If the original security is found to be insufficient, the court may vacate the injunction unless, in reasonable time, sufficient security is provided.

No security shall be required of this state or political subdivision, or agency of either, or of any officer thereof acting in his representative capacity.

A surety upon a bond or undertaking under this rule submits himself to the jurisdiction of the court and irrevocably appoints the clerk of the court as his agent upon whom any papers affecting his liability on the bond or undertaking may be served. His liability as well as the liability of the party obtaining the order or injunction may be enforced by the court without jury on motion without the necessity for an independent action. The motion and such notice of the motion as the court prescribes may be served on the clerk of the court who shall forthwith mail copies to the persons giving the security if their addresses are known.

(D) Form and scope of restraining order or injunction

Every order granting an injunction and every restraining order shall set forth the reasons for its issuance; shall be specific in terms; shall describe in reasonable detail, and not by reference to the complaint or other document, the act or acts sought to be restrained; and is binding upon the parties to the action, their officers, agents, servants, employees, attorneys and those persons in active concert or participation with them who receive actual notice of the order whether by personal service or otherwise.

(E) Service of temporary restraining orders and injunctions

Restraining orders which are granted ex parte shall be served in the manner provided for service of process under Rule 4 through Rule 4.3 and Rule 4.6; or in manner directed by order of the court. If the restraining order is granted upon a pleading or motion

accompanying a pleading the order may be served with the process and pleading. When service is made pursuant to Rule 4 through Rule 4.3 and Rule 4.6 the sheriff or the person designated by order of the court shall forthwith make his return.

Restraining orders or injunctions which are granted with notice may be served in the manner provided under Rule 4 through Rule 4.3 and Rule 4.6, in the manner provided in Rule 5 or in the manner designated by order of the court. When service is made pursuant to Rule 4 through Rule 4.3 and Rule 4.6 the sheriff or the person designated by order of the court shall forthwith make his return.

Effective Date: July 1, 1970

RULE 65.1. Civil Protection Orders.

(A) Applicability; construction; other rules

The provisions of this rule apply to special statutory proceedings under R.C. 3113.31, R.C. 2151.34, and R.C. 2903.214 providing for domestic violence, dating violence, stalking, and sexually oriented offense civil protection orders, shall be interpreted and applied in a manner consistent with the intent and purposes of those protection order statutes, and supersede and make inapplicable in such proceedings the provisions of any other rules of civil procedure to the extent that such application is inconsistent with the provisions of this rule.

(B) Definitions

Any terms used in this rule which are also specifically defined in R.C. 3113.31, R.C. 2151.34, and R.C. 2903.214 shall have the same definition in applying the provisions of this rule in those special statutory proceedings.

(C) Service

(1) Service by clerk

The clerk shall cause service to be made of a copy of the petition, and all other documents required by the applicable protection order statute to be served on the Respondent and, if applicable, on the parent, guardian, or legal custodian of the Respondent.

(2) Initial service

Initial service, and service of any ex parte protection order that is entered, shall be made in accordance with the provisions for personal service of process within the state under Civ.R. 4.1(B) or outside the state under Civ.R. 4.3(B)(2). Upon failure of such personal service, or in addition to such personal service, service may be made in accordance with any applicable provision of Civ.R. 4 through Civ. R 4.6.

(3) Subsequent service

After service has been made in accordance with division (C)(2) of this rule, any additional service required to be made during the course of the proceedings on Respondent and, if applicable, on the parent, guardian, or legal custodian of Respondent, shall be made in accordance with the provisions of Civ.R. 5(B).

(4) Modification; contempt; renewal; termination

(a) Service of a motion for modification, contempt, renewal, or termination of a civil protection order issued after a full hearing or an approved consent

agreement shall be made in the manner provided for service of process under Civ.R. 4 through Civ.R. 4.6.

(b) After service has been made in accordance with division (C)(4)(a) of this rule, any additional service required to be made on the Respondent and, if applicable, on the parent, guardian, or legal custodian of the Respondent, shall be made in accordance with provisions of Civ.R. 5(B).

(5) Confidentiality

Upon request of the Petitioner, any method of service provided by Civ.R. 4 through 4.6 or by Civ.R. 5(B) may be limited or modified by the court to protect the confidentiality of the Petitioner's address in making service under this division.

(D) Discovery order

Discovery may be had only upon the entry of an order containing all of the following to the extent applicable:

(1) The time and place of the discovery;

(2) The identities of the persons permitted to be present, which shall include any victim advocate; and

(3) Such terms and conditions deemed by the court to be necessary to assure the safety of the Petitioner, including if applicable, maintaining the confidentiality of the Petitioner's address and other contact information.

(E) Appointed counsel for minor at full hearing

In a special statutory proceeding under R.C. 2151.34, the court, in its discretion, may determine if the Respondent is entitled to court-appointed counsel at the full hearing.

(F) Proceedings in matters referred to magistrates

(1) Reference by court

A court may refer the proceedings under these special statutory proceedings to a magistrate.

(2) Ex parte proceedings

The following shall apply when these special statutory proceedings are referred to a magistrate for determination of a petitioner's request for an ex parte protection order:

(a) Authority

The magistrate shall conduct the ex parte hearing and, upon conclusion of the hearing, deny or grant an ex parte protection order.

(b) Nature of order

(i) A magistrate's denial or granting of an ex parte protection order does not require judicial approval, shall otherwise comply with the statutory requirements relating to an ex parte protection order, shall be effective when signed by the magistrate and filed with the clerk, and shall have the same effect as an ex parte protection order entered by the court without reference to a magistrate.

(ii) A magistrate's denial or granting of an ex parte protection order without judicial approval under this division does not constitute a magistrate's order or a magistrate's decision under Civ.R. 53(D)(2) or (3) and is not subject to the requirements of those rules.

(iii) The court's approval and signing of a magistrate's denial or granting of an ex parte protection order entered under this division does not constitute a judgment or interim order under Civ.R. 53(D)(4)(e) and is not subject to the requirements of that rule.

(3) Full hearing proceedings

The following shall apply when these special statutory proceedings are referred to a magistrate for full hearing and determination:

(a) Authority

The magistrate shall conduct the full hearing and, upon conclusion of the hearing, deny or grant a protection order.

(b) Nature of order

A magistrate's denial or granting of a protection order after full hearing under this division does not constitute a magistrate's order or a magistrate's decision under Civ.R. 53(D)(2) or (3) and is not subject to the requirements of those rules.

(c) Court adoption; modification; rejection

(i) A magistrate's denial or granting of a protection order after a full hearing shall comply with the statutory requirements relating to such orders and is not effective unless adopted by the court.

(ii) When a magistrate has denied or granted a protection order after a full hearing, the court may adopt the magistrate's denial or granting of the protection order upon review of the order and a determination that there is no error of law or other defect evident on the face of the order.

(iii) Upon review of a magistrate's denial or granting of a protection order after a full hearing, the court may modify or reject the magistrate's order.

(iv) A court's adoption, modification, or rejection of a magistrate's denial or granting of a protection order after a full hearing under this division does not constitute a judgment or interim order under Civ.R. 53(D)(4)(e) and is not subject to the requirements of that rule.

(v) A court's adoption, modification, or rejection of a magistrate's denial or granting of a protection order after a full hearing shall be effective when signed by the court and filed with the clerk.

(d) Objections

(i) A party may file written objections to a court's adoption, modification, or rejection of a magistrate's denial or granting of a protection order after a full hearing, or any terms of such an order, within fourteen days of the court's filing of the order. If any party timely files objections, any other party may also file objections not later than ten days after the first objections are filed.

(ii) The timely filing of objections under this division shall not stay the execution of the order.

(iii) A party filing objections under this division has the burden of showing that an error of law or other defect is evident on the face of the order, or that the credible evidence of record is insufficient to support the granting or denial of the protection order, or that the magistrate abused the

magistrate's discretion in including or failing to include specific terms in the protection order.

(iv) Objections based upon evidence of record shall be supported by a transcript of all the evidence submitted to the magistrate or an affidavit of that evidence if a transcript is not available. With leave of court, alternative technology or manner of reviewing the relevant evidence may be considered. The objecting party shall file the transcript or affidavit with the court within thirty days after filing objections unless the court extends the time in writing for preparation of the transcript or other good cause. If a party files timely objections prior to the date on which a transcript is prepared, the party may seek leave of court to supplement the objections.

(e) Motions for modification, contempt, renewal, or termination of civil protection orders. When a motion for modification, contempt, renewal, or termination of a civil protection order is referred to a magistrate for determination, the provisions of this division (F)(3) of this rule relating to full hearing proceedings shall apply unless such provisions would by their nature be clearly inapplicable.

(G) Final order; objections prior to appeal; stay of appeal

Notwithstanding the provisions of any other rule, an order entered by the court under division (F)(3)(c) or division (F)(3)(e) of this rule is a final, appealable order. However, a party must timely file objections to such an order under division (F)(3)(d) of this rule prior to filing an appeal, and the timely filing of such objections shall stay the running of the time for appeal until the filing of the court's ruling on the objections.

(H) Protection Order Notice to National Crime Information Center ("NCIC") Database

Upon a court's issuance, modification, or termination of an ex parte or full hearing protection Order or approval or termination of a consent agreement civil protection order, the court shall do both of the following:

(1) Follow the instructions in Form 28 (formerly 10-B) Instructions for Completing a Protection Order Notice to NCIC and thoroughly and accurately complete a Form 27 (formerly 10-A): Protection Order Notice to NCIC, or a form substantially similar thereto, to facilitate the correct entry of the order or agreement into the NCIC database; and

(2) Send a completed Form 27 (formerly 10-A): Protection Order Notice to NCIC, or a form substantially similar thereto, and a copy of the order or agreement to the local law enforcement agency for entry of the order or

agreement into the NCIC Protection Order database National Crime Information Center Protection Order File and to facilitate nationwide enforcement of the order or agreement.

(I) Dismissal of petitions for protection orders

Notwithstanding Civ.R. 41, any dismissal of a petition for domestic violence, dating violence, stalking, or sexually oriented offense civil protection order by a court or party, other than a denial on the merits, shall not operate as an adjudication of the merits or a bar to a subsequent filing of the petition.

(J) Notification of Existence of a Protection Orders

(1) A judge or magistrate who pursuant to statute provides notice to a respondent or defendant about the existence of a protection order issued against said respondent or defendant by another court shall use Form 9 (formerly 10-D): Notice to Respondent or Defendant About Existence of Protection Order, or a form substantially similar thereto, to document the notification. The Court shall then send the form to the clerk of court. The form shall be returned to the clerk of court that issued the protection order as soon as possible, but no later than three business days from the date the notice was provided to the respondent or defendant.

(2) A court that issued a protection order shall accept a Form 9 (formerly 10-D): Notice to Respondent or Defendant About Existence of Protection Order, or a form substantially similar thereto, from a judge, magistrate, or law enforcement officer who provided the respondent notice about the existence of the protection order pursuant to statute. The form shall be docketed and maintained in the protection order case file.

(K) Public Access Exception

Direct access, as defined in Sup.R. 11.09, is permitted subject to any restrictions imposed by the Constitution, Revised Code, or the Rules of Superintendence. Any record in a protection order case that is likely to reveal the identity or location of a petitioner or another protected person shall not be available through Sup.R. 11.09 through 11.16.

Effective Date: July 1, 2012
Amended: July 1, 2016; July 1, 2023; July 1, 2025; July 1, 2026

Staff Note (July 1, 2012 Amendment)

The special statutory proceedings established by R.C. 3113.31, R.C. 2151.34, and R.C. 2903.214 provide regulations and requirements for the entry of civil protection orders against adults and juveniles for the protection of victims of domestic violence, stalking, and sexually oriented offenses. Each of those statutes provides that the proceedings, which customarily proceed pro se, "shall be conducted in accordance with the Rules of Civil Procedure." Rule 65.1 is adopted to provide a set of provisions uniquely applicable to those statutory proceedings because application of the existing rules, particularly with respect

to service, discovery, and reference to magistrates, interferes with the statutory process and is inconsistent with its purposes.

Division (A) Applicability; construction; other rules

Division (A) provides that the rule applies to protection order proceedings under the three specified statutes, and specifies that the provisions of the rule are to be interpreted and applied consistently with the intent and purpose of those statutes and supersede any inconsistent Rules of Civil Procedure.

Division (B) Definitions

The statutes contain defined terms. Division (B) incorporates those definitions in construing any of the same terms included in the rule.

Division (C) Service

The statutes each provide for obtaining an ex parte protection order, followed by service on the Respondent of the petition, any ex parte order that has been entered, and notice of the date scheduled for the full hearing.

Division (C) provides that it is the responsibility of the clerk to cause service to be made of all documents required to be served on the Respondent. Initial service, and service of any ex parte order that is entered, is to be made in the same manner as personal service of process. In addition to personal service, or upon failure of that service, service may be made by other methods of service of process. The relevant statutes require that a Respondent be served with a protection order on the same day the order is entered, and therefore, an initial attempt by personal service is necessary. Although other methods of service are permitted in the event of failure of personal service, until the Respondent has actual notice of a protection order, the order could not be enforced against that Respondent, nor could the Respondent be prosecuted for violations occurring prior to such actual notice.

Once initial service has been made, further service during the course of the proceedings is to be made in accordance with Civ.R. 5(B).

Division (D) Discovery

The statutes do not address discovery. Division (D) provides for discovery only upon a court order containing accommodations and protections deemed necessary for the protection of the Petitioner.

Division (D)(1) states that discovery shall be completed prior to the date set for the full hearing. Since the statutes provide for a relatively short period of time between the entry of an ex parte order and the date of the full hearing, there may not be sufficient time for meaningful discovery in such cases, and a statutory request for a continuance of the full hearing would be appropriate.

Division (E) Appointed counsel for minor at full hearing

The entry of a protection order against a minor is addressed by R.C. 2151.34. That statute provides that “the court, in its discretion, may determine if the respondent is entitled to court-appointed counsel at the full hearing.” Division (E) restates that provision.

Division (F) Proceedings in matters referred to magistrates

The statutes provide expedited processes for obtaining an ex parte protection order and for obtaining a protection order after a full hearing. When the proceedings are referred to a magistrate, several of the provisions of Civ.R. 53 are incompatible with those processes, particularly with respect to temporary magistrate “orders” to regulate the proceedings, independent review by the court of magistrate “decisions” rendered after hearing, and the filing and consideration of objections to those magistrate “decisions.”

Divisions (F)(2)(b)(ii) and (F)(3)(b) exempt these protection order proceedings from the Civ.R. 53 requirements for magistrate temporary "orders" to regulate the proceedings and magistrate "decisions" rendered after hearing. Divisions (F)(2)(b)(iii) and (F)(3)(c)(iv) exempt the proceedings from the requirements applicable to orders entered by the court after referral to magistrates.

Division (F)(2)(b)(1) provides that a magistrate may enter an ex parte protection order without judicial approval, and that the ex parte order is effective when signed by the magistrate and filed with the clerk.

Division (F)(3)(c) provides that a magistrate's ruling after a full hearing is not effective until adopted by the court, permits adoption upon a determination that "there is no error of law or other defect evident on the face of the order," and also permits the court to modify or reject the magistrate's ruling. Adoption, modification, or rejection is effective when signed by the court and filed with the clerk.

Division (F)(3)(d)(i) is intended to encourage the parties, as an alternative to immediate appeal, to allow the trial court to review a court's adoption, modification, or rejection of a magistrate's protection order ruling based on the record, by filing objections in the trial court. Pursuant to division (F)(3)(d)(ii) the filing of objections does not stay execution of the protection order (but pursuant to division (G) the filing of objections does stay the time for appeal). Division (F)(3)(d)(iii) provides that the objecting party has the burden of showing either "that an error of law or other defect is evident on the face of the order, or that the credible evidence of record is insufficient to support the granting or denial of the protection order or that the magistrate abused the magistrate's discretion in including or failing to include specific terms in the protection order.

Division G Final order; stay of appeal

Each statute provides that the granting or denial of a protection order, other than an ex parte order, is a final appealable order. Consistent with that provision, division (G) states that such rulings are final and appealable, notwithstanding the provisions of any other rule, such as Civ.R. 60(B). However, division (G) also provides that the timely filing of objections to the court's adoption or modification of a magistrate's protection order ruling stays the running of the time for appeal until the filing of the court's ruling on the objections.

Staff Note (July 1, 2016 Amendment)

Division (C) Service

It is well-established that all proceedings under R.C. 3113.31, R.C. 2151.34, and R.C. 2903.214 must follow the Rules of Civil Procedure. See, e.g., *State v. Smith*, 136 Ohio St. 3d 1, 2013-Ohio-1698 at ¶21. Accordingly, division (C) of this rule provides clear direction regarding the methods of service in civil protection order proceedings. Division (C)(2) of this rule directs the clerk of court to cause the first attempt at initial service in these proceedings, including service of a copy of the petition and an ex parte order, by personal service of process. This method of service provides the respondent expeditious notice consistent with the urgent nature of these proceedings. Notwithstanding, division (C)(2) of this rule also recognizes, only upon failure of personal service, the other methods of service of process in the Rules of Civil Procedure, i.e., Civ.R. 4 through 4.6, provide similar reliable form of notice for the initial service.

The plain language of division (C)(3) of this rule indicates that subsequent service in civil protection order proceedings after the petition and ex parte order has been served, including service of a protection order entered after full hearing, must follow Civ.R. 5(B). In following the authority of Civ.R. 5(B), division (C)(3) of this rule fosters consistency regarding service subsequent to the original complaint, provides a clear direction and discretion regarding the methods of service appropriate for subsequent service in civil protection order proceedings under Civ.R. 5(B), and ensures the Respondent receives reliable notice of full

hearing civil protection orders. Additionally, Civ.R. 5(B)(3) requires a proof of service record be created, which includes the date and specific manner by which the service was made under Civ.R. 5(B)(2).

Consistent with R.C. 3113.31, R.C. 2151.34, and R.C. 2903.214, division (C)(4)(a) of this rule recognizes that the statutory urgency of adjudicating a civil protection order petition is not part of a motion for renewal, contempt, modification, or termination of a full hearing civil protection order or an approved consent agreement. Accordingly, an initial attempt by personal service is not required and any of the methods of service under Civ.R. 4 through Civ.R. 4.6 is appropriate for such a motion.

Division (C)(4)(b) aligns with division (C)(3) of this rule and clarifies that subsequent service in proceedings for renewal, contempt, modification, or termination of a full hearing civil protection order or an approved consent agreement is to be made in accordance with Civ.R. 5(B).

Division (F) Proceedings in matters referred to magistrates

A new division (F)(3)(e) of this rule is also added to address issues discussed in *Schneider v. Razek*, 2015-Ohio-410 (8th Dist.) relating to proceedings on motions for renewal, contempt, modification, or termination of civil protection orders.

Division (G) Final order; objections prior to appeal; stay of appeal

Division (G) of this rule is amended to require that a party must file objections prior to filing an appeal from a trial court's otherwise appealable adoption, modification, or rejection of a magistrate's ruling. This amendment is grounded on two key principles. First, it promotes the fair administration of justice, including affording the trial court an opportunity to review the transcript and address any insufficiency of evidence or abuse of discretion that would render the order or a term of the order unjust. Second, it creates a more robust record upon which the appeal may proceed.

Staff Note (July 1, 2026 Amendment)

(Language Transferred Commentary April 15, 2021 from Sup.R. 10)

Form 9 (formerly Form 10-D) was adopted, effective April 15, 2021, to implement R.C. 2919.27(D). Section 3 of Sub. S.B. 7 of the 132nd General Assembly states as follows:

> The amendments made [to R.C. 2919.27(D)] are intended to supersede the holding of the Ohio Supreme Court in State v. Smith, 136 Ohio St.3d 1, so that unperfected service of a protection order or consent agreement does not preclude a prosecution for a violation of [a protection order or consent agreement].

Proof of notice of the existence of a protection order is not evidence of service nor does it establish that service has been perfected. Service of civil protection order must be in accordance to Rules of Civil Procedure. Smith, 136 Ohio St.3d 1, 2013-Ohio-1698 at ¶21.

(Commission Staff Note)

18 USC 2265(d)(3) limits internet publication of protection order information. The federal statute provides that a State "… shall not make available publicly on the Internet any information regarding the registration, filing of a petition for, or issuance of a protection order, restraining order or injunction, restraining order, or injunction … if such publication would be likely to publicly reveal the identity or location of the party protected under such order. A State … may share court-generated and law enforcement-generated information contained in secure, governmental registries for protection order enforcement purposes."

Rule 65.2. Civil Protection Order Forms.

(A) Distribution of Packets

(1) Civil Protection Order Against an Adult Packet

The division of the Court of Common Pleas with jurisdiction over domestic violence civil protection order proceedings shall distribute upon request a forms packet for use in domestic violence civil protection order proceedings under R.C. 3113.31. The forms packet shall include, at a minimum, forms and instructions that are substantially similar to the following:

(a) Form 1 (formerly 10.01-A): General Information About Domestic Violence Protection Orders;

(b) Form 3 (formerly 10.01-C): Information About Filing A Domestic Violence Or Dating Violence Civil Protection Order Petition;

(c) Form 4 (formerly 10.01-D): Petition for Domestic Violence Civil Protection Order (R.C. 3113.31);

(d) Form 5 (formerly 10.01-F): Information for Parenting Proceeding Affidavit;

(e) Form 6 (formerly 10.01-H): Domestic Violence Civil Protection Order (CPO) Ex Parte (R.C. 3113.31); and

(f) Form 2 (formerly 10-C): Warning Concerning the Attached Protection Order or Consent Agreement.

(2) Dating Violence Protection Order Packet

The division of the Court of Common Pleas with jurisdiction over dating violence civil protection order proceedings shall distribute upon request a forms packet for use in dating violence protection order proceedings pursuant to R.C. 3113.31. The packet shall include, at a minimum, forms that are substantially similar to the following:

(a) Form 3 (formerly 10.01-C): Information About Filing A Domestic Violence Or Dating Violence Civil Protection Order Petition;

(b) Form 13 (formerly 10.01-P): Petition for Dating Violence Civil Protection Order;

(c) Form 14 (formerly 10.01-Q): Dating Violence Civil Protection Order (DTCPO) Ex Parte; and

(d) Form 2 (formerly 10-C): Warning Concerning the Attached Protection Order or Consent Agreement.

(3) Civil Stalking and Civil Sexually Oriented Offense Protection Order Packet

The division of the Court of Common Pleas with jurisdiction over civil stalking and civil sexually oriented offense protection order proceedings shall distribute upon request a forms packet for use in civil stalking protection order or civil sexually oriented offense protection order proceedings pursuant to R.C. 2903.214. The packet shall include, at a minimum, forms and instructions that are substantially similar to the following:

(a) Form 23 (formerly 10.03-G): Instructions for Obtaining Civil Stalking Protection Order or Civil Sexually Oriented Offense Protection Order (SSOOPO);

(b) Form 24 (formerly 10.03-D): Petition for Civil Stalking Protection Order or Sexually Oriented Offense Protection Order (SSOOPO) (R.C. 2903.214); and

(c) Form 25 (formerly 10.03-E): Civil Stalking Protection Order or Civil Sexually Oriented Offense Protection Order (SSOOPO) Ex Parte (R.C. 2903.14).

(4) Civil Protection Order Against a Minor Packet

The division of a court of common pleas that has jurisdiction to issue a civil protection order against a minor pursuant to R.C. 2151.34 and 3113.31 shall distribute, upon request, a forms packet for use in juvenile civil protection order proceedings against a juvenile respondent pursuant to R.C. 2151.34 and 3113.31. The packet shall include, at a minimum, forms that are substantially similar to the following:

(a) Form 18 (formerly 10.05-A): Information About Filing A Juvenile Civil Protection Order Or A Juvenile Domestic Violence Civil Protection Order Petition; and

(b) Form 19 (formerly 10.05-B): Petition For Juvenile Civil Protection Order or Juvenile Domestic Violence Civil Protection Order (R.C. 2151.34 and 3113.31); and

(c) Form 2 (formerly 10-C): Warning Concerning the Attached Protection Order or Consent Agreement.

(B) Use of Protection Order Forms and Protection Order Warning

(1) Domestic Violence Civil Protection Order and Consent Agreement Against an Adult

(a) In every case in which a court issues an ex parte or full hearing civil protection order or approves a consent agreement against an adult pursuant to R.C. 3113.31, the court shall use the applicable forms that are substantially similar to Form 6 (formerly 10.01-H): Domestic Violence Civil Protection Order (CPO) Ex Parte (R.C. 3113.31), Form 7 (formerly 10.01-I): Domestic Violence Civil Protection Order (CPO) Full Hearing (R.C. 3113.31); or Form 8 (formerly 10.01-J): Consent Agreement and Domestic Violence Civil Protection Order (R.C. 3113.31) and include a cover sheet that is substantially similar to Form 2: Warning Concerning the Attached Protection Order or Consent Agreement.

(b) In every case in which the court modifies the terms of a full hearing civil protection order or a consent agreement pursuant to R.C. 3113.31, it shall use the applicable forms that are substantially similar to Form 10 (formerly 10.01-L): Judgment Entry on Motion to Modify/Terminate Domestic Violence or Dating Violence Civil Protection Order or Consent Agreement and Form 11 (formerly 10.01-M): Modified Domestic Violence Civil Protection Order and include a cover sheet that is substantially similar to Form 2 (formerly 10-C): Warning Concerning the Attached Protection Order or Consent Agreement.

(2) Dating Violence Protection Orders

(a) In every case in which a court issues an ex parte or full hearing dating violence protection order or approves a consent agreement pursuant to R.C. 3113.31, the court shall use the applicable forms that are substantially similar to Form 14 (formerly 10.01-Q): Dating Violence Civil Protection Order (DTCPO) Ex Parte, Form 15 (formerly 10.01-R): Dating Violence Civil Protection Order (DTCPO) Full Hearing, or Form 16 (formerly 10.01-S): Consent Agreement and Dating Violence Civil Protection Order and include a cover sheet that is substantially similar to Form 2 Warning Concerning the Attached Protection Order or Consent Agreement.

(b) In every case in which the court modifies the terms of a dating violence protection order or a consent agreement pursuant to statute, it shall use the applicable forms that are substantially similar to Form 10 (formerly 10.01-L): Judgment Entry on Motion to Modify/Terminate Domestic Violence or Dating Violence Civil Protection Order or Consent Agreement and Form 17 (formerly 10.01-T): Modified Dating Violence Civil Protection Order and include a cover sheet that is substantially similar to Form 2 (formerly 10-

C): Warning Concerning the Attached Protection Order or Consent Agreement.

(3) Civil Stalking Protection Order or Civil Sexually Oriented Offense Protection Orders

In every case in which a court issues an ex parte or full hearing civil stalking protection order or a civil sexually oriented offense protection order pursuant to R.C. 2903.214, it shall use the applicable form that is substantially similar to Form 25 (formerly 10.03-E): Civil Stalking Protection Order or Civil Sexually Oriented Offense Protection Order (SSOOPO) Ex Parte (R.C. 2903.14) or Form 26 (formerly 10.03-F): Civil Stalking Protection Order or Civil Sexually Oriented Offense Protection Order (SSOOPO) Full Hearing (R.C. 2903.14) and include a cover sheet that is substantially similar to Form 2 (formerly 10-C): Warning Concerning the Attached Protection Order or Consent Agreement.

(4) Civil Protection Order Against a Minor

In every case in which a court issues an ex parte or full hearing civil protection order against a minor pursuant to R.C. 2151.34, it shall use the applicable form that is substantially similar to Form 20 (formerly 10.05-C): Juvenile Civil Protection Order Or Juvenile Domestic Violence Civil Protection Order Ex Parte (R.C. 2151.34 Or 3113.31) or Form 21 (formerly 10.05-D): Juvenile Civil Protection Order Full Hearing (R.C. 2151.34) and include a cover sheet that is substantially similar to Form 2 (formerly 10-C): Warning Concerning the Attached Protection Order or Consent Agreement.

(5) Domestic Civil Protection Order Against a Minor

In every case in which a court issues an ex parte or full hearing civil protection order against a minor pursuant to R.C. 3113.31, it shall use the applicable form that is substantially similar to Form 20 (formerly 10.05-C): Juvenile Civil Protection Order Or Juvenile Domestic Violence Civil Protection Order Ex Parte (R.C. 2151.34 Or 3113.31) or Form 22 (formerly 10.05-E): Juvenile Domestic Violence Civil Protection Order And Consent Agreement Protection Order and include a cover sheet that is substantially similar to Form 2 (formerly 10-C): Warning Concerning the Attached Protection Order or Consent Agreement.

(6) Notice of Deadly Weapons Surrender

In every case in which a court orders the respondent to surrender deadly weapons, including firearms and ammunition, into the protective custody of law enforcement, the court shall enter into the docket a form that is substantially similar to Form 31 (formerly 10-F): Notice of Receipt when the same is received from law enforcement.

(7) Wireless Service Transfer Order

In every case in which a court orders the transfer of wireless service as a term of an ex parte or full hearing civil protection order, it shall complete a form that is substantially similar to Form 29 (formerly 10-E): Wireless Service Transfer Order in Domestic Violence Civil Protection Order.

Effective Date: July 1, 2026

Staff Note (July 1, 2026 Amendment)

(Transferred Commentary January 1, 1998, from Sup.R. 10.01)

On December 9, 1994, Am.Sub.H.B. No. 335 became effective, which made significant changes to Ohio's domestic violence laws. Section 4 of Am.Sub.H.B. 335 states as follows:

> The General Assembly hereby requests the Supreme Court, in consultation with the Department of Human Services, to prescribe a form that is to be filed by a petitioner seeking a civil protection order under section 3113.31 of the Revised Code and that makes reference to all the forms of relief that a court is authorized to grant under division (E) of section 3113.31 of the Revised Code, as amended by this act, contains space for the petitioner to request any of those forms of relief, and includes instructions for completing the form so that a petitioner may file the form without the assistance of an attorney.

The Supreme Court, in consultation with its Domestic Violence Task Force, developed forms in response to the General Assembly's request in Am.Sub.H.B. No. 335.

During its eighteen months of study, the Supreme Court's Domestic Violence Task Force determined that due to the variety of protection order forms used by Ohio courts, it can be difficult for law enforcement officers to recognize valid protection orders and understand the pertinent provisions of such orders. The Task Force also discovered that misconceptions exist in regard to the penalties for violating protection orders. Upon recommendation of the Task Force, the Court developed this rule and Forms 10.02-A and 10C to address these concerns.

(Commission Staff Note)

Civ.R. 65.2(B)(6) references Form 31, which requires notification to be provided to the court by law enforcement when a person surrenders to law enforcement a deadly weapon or ammunition pursuant to a court's protection order. The term "deadly weapon" is defined in R.C. 2923.11(A) to include "any instrument, device, or thing capable of inflicting death, and designed or specially adapted for use as a weapon, or possessed, carried, or used as a weapon." This includes firearms, see e.g. R.C. 2923.11(B)-(G). This comports with 18 U.S. Code § 922(g)(8), which prohibits the possession of "any firearm or ammunition" by a person who is subject to a protection order issued after a full hearing or by consent agreement.

RULE 66. Receivers.

An action wherein a receiver has been appointed shall not be dismissed except by order of the court. Receiverships shall be administered in the manner provided by law and as provided by rules of court.

Effective Date: July 1, 1970

RULE 67. [RESERVED].

RULE 68. Offer of Judgment.

An offer of judgment by any party, if refused by an opposite party, may not be filed with the court by the offering party for purposes of a proceeding to determine costs.

This rule shall not be construed as limiting voluntary offers of settlement made by any party.

Effective Date: July 1, 1970

RULE 69. Execution.

Process to enforce a judgment for the payment of money shall be a writ of execution, unless the court directs otherwise. The procedure on execution, in proceedings supplementary to and in aid of a judgment, and in proceedings on and in aid of execution shall be as provided by law. In aid of the judgment or execution, the judgment creditor or his successor in interest when that interest appears of record, may also obtain discovery from any person, including the judgment debtor, in the manner provided in these rules.

Effective Date: July 1, 1970

RULE 70. Judgment for Specific Acts; Vesting Title.

If a judgment directs a party to execute a conveyance of land, to transfer title or possession of personal property, to deliver deeds or other documents, or to perform any other specific act, and the party fails to comply within the time specified, the court may, where necessary, direct the act to be done at the cost of the disobedient party by some other person appointed by the court, and the act when so done has like effect as if done by the party. On application of the party entitled to performance, the clerk shall issue a writ of attachment against the property of the disobedient party to compel obedience to the judgment. The court may also in proper cases adjudge the party in contempt. If real or personal property is within this state, the court in lieu of directing a conveyance thereof may enter a judgment divesting the title of any party and vesting it in others, and such judgment has the effect of a conveyance executed in due form of law. When any order or judgment is for the delivery of possession, the party in whose favor it is entered is entitled to a writ of execution upon application to the clerk.

Effective Date: July 1, 1970

RULE 71. Process in Behalf of and Against Persons Not Parties.

When an order is made in favor of a person who is not a party to the action, he may enforce obedience to the order by the same process as if he were a party; and, when obedience to an order may be lawfully enforced against a person who is not a party, he is liable to the same process for enforcing obedience to the order as if he were a party.

Effective Date: July 1, 1970

RULE 72. [RESERVED].

TITLE IX. PROBATE, JUVENILE, AND DOMESTIC RELATIONS PROCEEDINGS.

RULE 73. Probate Division of the Court of Common Pleas.

(A) Applicability

(1) Rules 73 to 73.29 apply only to proceedings in the probate division of the court of common pleas.

(2) To the extent of any conflict, Rules 73 to 73.29 take precedence over any other provision of the Rules of Civil Procedure. Otherwise, the Rules of Civil Procedure apply except to the extent that by their nature they would be clearly inapplicable.

(B) Venue

Civ.R. 3(C) shall not apply to proceedings in the probate division of the court of common pleas, which shall be venued as provided by law. Proceedings under Chapters 2101. through 2131. of the Revised Code, which may be venued in the general division or the probate division of the court of common pleas, shall be venued in the probate division of the appropriate court of common pleas.

Proceedings that are improperly venued shall be transferred to a proper venue provided by law and division (B) of this rule, and the court may assess costs, including reasonable attorney fees, to the time of transfer against the party who commenced the action in an improper venue.

(C) Service of summons

Civ.R. 4 through 4.6 shall apply in any proceeding in the probate division of the court of common pleas requiring service of summons.

(D) Service and filing of pleadings and papers subsequent to original pleading

In proceedings requiring service of summons, Civ.R. 5 shall apply to the service and filing of pleadings and papers subsequent to the original pleading.

(E) Service of notice

In any proceeding where any type of notice other than service of summons is required by law or deemed necessary by the court, and the statute providing for notice neither directs nor authorizes the court to direct the manner of its service, notice shall be given in writing and may be served by or on behalf of any interested party without court intervention by one of the following methods:

(1) By delivering a copy to the person to be served;

(2) By leaving a copy at the usual place of residence of the person to be served;

(3) By United States certified or express mail return receipt requested, or by a commercial carrier service utilizing any form of delivery requiring a signed receipt, addressed to the person to be served at the person's usual place of residence with instructions to the delivering postal employee or to the carrier to show to whom delivered, date of delivery, and address where delivered, provided that the certified or express mail envelope or return of the commercial carrier is not returned showing failure of delivery;

(4) By United States ordinary mail after a returned United States certified or express mail envelope or return of the commercial carrier shows that it was refused;

(5) By United States ordinary mail after a United States certified or express mail or commercial carrier envelope is returned with an endorsement stating that it was unclaimed or a similar endorsement indicating the item was unclaimed, provided that the United States ordinary mail envelope is not returned by the postal authorities showing failure of delivery;

(6) By publication once each week for three consecutive weeks in some newspaper of general circulation in the county when the name, usual place of residence, or existence of the person to be served is unknown and cannot with reasonable diligence be ascertained; provided that before publication may be utilized, the person giving notice shall file an affidavit which states that the name, usual place of residence, or existence of the person to be served is unknown and cannot with reasonable diligence be ascertained;

(7) By other method as the court may direct.

Civ.R. 4.2 shall apply in determining who may be served and how particular persons or entities must be served.

(F) Proof of service of notice; when service of notice complete

When service is made through the court, proof of service of notice shall be in the same manner as proof of service of summons.

When service is made without court intervention, proof of service of notice shall be made by affidavit. When service is made by United States certified or express mail or by commercial carrier service, the return receipt which shows delivery shall be attached to the affidavit. When service is made by United States ordinary mail, the prior returned certified or express mail or commercial carrier envelope which shows that the mail was refused or unclaimed shall be attached to the affidavit.

Service of notice by United States ordinary mail shall be complete when the fact of mailing is entered of record except as stated in division (E)(5) of this rule. Service by publication shall be complete at the date of the last publication.

(G) Waiver of service of notice

Civ.R. 4(D) shall apply in determining who may waive service of notice.

(H) Forms used in probate practice

Forms used in proceedings in the probate division of the courts of common pleas shall be those prescribed in Civ.R. 73.2. Forms not prescribed in such rule may be used as permitted in that rule.

Blank forms reproduced for use in probate practice for any filing to which the rule applicable to specifications for printing probate forms of the Rules of Superintendence applies shall conform to the specifications set forth in Civ.R. 73.3.

No pleading, application, acknowledgment, certification, account, report, statement, allegation, or other matter filed in the probate division of the courts of common pleas shall be required to be executed under oath, and it is sufficient if it is made upon the signature alone of the person making it.

(I) Notice of Filing of Judgments

Civ.R. 58(B) shall apply to all judgments entered in the probate division of the court of common pleas in any action or proceeding in which any party other than a plaintiff, applicant, or movant has filed a responsive pleading or exceptions. Notice of the judgment shall be given to each plaintiff, applicant, or movant, to each party filing a responsive pleading or exceptions, and to other parties as the court directs.

(J) Filing with the court defined

The filing of documents with the court, as required by these rules, shall be made by filing them with the probate judge as the *ex officio* clerk of the court. A court may provide, by local rules adopted pursuant to the Rules of Superintendence, for the filing of documents by electronic means. If the court adopts such local rules, they shall include all of the following:

(1) Any signature on electronically transmitted documents shall be considered that of the attorney or party it purports to be for all purposes. If it is established that the documents were transmitted without authority, the court shall order the filing stricken.

(2) A provision shall specify the days and hours during which electronically transmitted documents will be received by the court, and a provision shall specify when documents received electronically will be considered to have been filed.

(3) Any document filed electronically that requires a filing fee may be rejected by the clerk of court unless the filer has complied with the mechanism established by the court for the payment of filing fees.

Effective Date: July 1, 1970
Amended: July 1, 1971; July 1, 1975; July 1, 1977; July 1, 1980; July 1, 1996; July 1, 1997; July 1, 2001; July 1, 2012; July 1, 2023; July 1, 2026

Staff Note (July 1, 1996 Amendment)

Rule 73(I) Notice of Filing of Judgments

In 1989, Civ.R. 58 was amended to, among other things, make clear that a clerk of courts shall serve signed judgments upon parties. After that amendment, there apparently has been some confusion as to the effect of that amendment upon probate proceedings. The amendment to division (I) makes clear that Civ.R. 58(B) does apply to probate proceedings, in the manner indicated.

Staff Note (July 1, 1997 Amendment)

Rule 73 Probate division of the court of common pleas

Prior to the 1997 amendment, service of process under this rule was permitted only by certified mail. It appears that service of process by express mail, i.e. as that sort of mail is delivered by the United States Postal Service, can always be obtained return receipt requested, and thus could accomplish the purpose of notification equally well as certified mail. Therefore, the amendment provides for this additional option for service.

Division (H) was amended to delete the specific reference to Rule 16 of the Rules of Superintendence for Courts of Common Pleas, and instead a generic reference is made to the applicable rule. This amendment was made because the rules of superintendence were being revised and renumbered in 1997, and the rule number that will apply to probate forms was not known at the time of this amendment.

Other amendments to this rule are nonsubstantive grammatical or stylistic changes.

Staff Note (July 1, 2001 Amendment)

Civil Rule 73 Probate Division of the Court of Common Pleas

The amendments to this rule were part of a group of amendments that were submitted by the Ohio Courts Digital Signatures Task Force to establish minimum standards for the use of information systems, electronic signatures, and electronic filing. The substantive amendment to this rule was the addition of division (J). Comparable amendments were made to Civil Rule 5, Criminal Rule 12, Juvenile Rule 8, and Appellate Rule 13.

As part of this electronic filing and signature project, the following rules were amended effective July 1, 2001: Civil Rules 5, 11, and 73; Criminal Rule 12; Juvenile Rule 8; and Appellate Rules 13 and 18. In addition, Rule 26 of the Rules of Superintendence for Courts of Ohio was amended and Rule of

Superintendence 27 was added to complement the rules of procedure. Superintendence Rule 27 establishes a process by which minimum standards for information technology are promulgated, and requires that courts submit any local rule involving the use of information technology to a technology standards committee designated by the Supreme Court for approval.

Staff Note (July 1, 2012 Amendment)

Divisions (E) and (F) are amended so that they are consistent with the 2012 amendments to Civ.R. 4.1 relating to service of process by commercial carrier service and Civ.R. 4.6 relating to returns of service showing “refused” or “unclaimed” when service of process is attempted by U.S. certified or express mail or by commercial carrier service.

RULE 73.1. Definitions.

In Rules 73.1 to 73.29 "case" means any of the following when filed in the probate division of the court of common pleas:

(A) A civil complaint, petition, or administrative appeal;

(B) A decedent's estate; a testamentary, inter vivos or wrongful death trust; a guardianship, conservatorship or request for emergency orders pursuant to division (B)(3) of 2111.02 of the Revised Code; an adoption or name change. Each beneficiary of a wrongful death trust, each ward or conservatee, each adoptee and each individual requesting a change of name in those proceedings with multiple interested parties, shall be considered a separate "case."

(C) Any other proceeding for which a case number is assigned including but not limited to the following: tax filings, filings of wills for probate or record, real estate transfers, and filings of foreign records where an estate is not opened; release from administration; minor's settlements; birth corrections; delayed birth registrations; mental retardation or tuberculosis commitments; petition for protective services; petition to compel HIV testing; an application to appoint a guardian, trustee, protector, or conservator of a mentally retarded or developmentally disabled person; acknowledgment of paternity; a petition for release of adoption information; powers of attorney including those for health care; declarations concerning life-sustaining treatment; proceedings to designate heir; applications to disinter or to oppose disinterment; and voluntary assignment for the benefit of creditors.

Effective Date: July 1, 2026

RULE 73.10. Wills.

(A) Before an application is made to admit the will to probate, to appoint an estate fiduciary, or to relieve an estate from administration, each applicant or the applicant's attorney shall examine the index of wills deposited pursuant to section 2107.07 of the Revised Code. Wills deposited pursuant to section 2107.07 of the Revised Code previous to the will offered for probate shall be filed in the estate proceedings for record purposes only.

(B) Fiduciaries appointed to administer testate estates shall file a Certificate of Service of Notice of Probate of Will (Standard Probate Form 2.4) within two months of their appointment or be subject to removal proceedings. If required by the court, proof of service shall consist of either waivers of notice of the probate of will or signed receipt as provided under Civil Rule 73(E)(3), or if necessary, under Civil Rule 73(E)(4) and (5). A waiver of notice may not be signed by any minor, or on behalf of a minor sixteen or seventeen years of age. See Civil Rule 4.2.

Effective Date: July 1, 2026

RULE 73.11. Application for Letters of Authority to Administer Estate and Notice of Appointment.

(A) Notice of an application for appointment of administrator shall be served at least seven days prior to the date set for hearing. If there is no known surviving spouse or next of kin resident of the state, the notice shall be served upon persons designated by the court.

(B) The administrator shall give notice of the appointment within seven days after the appointment to all persons entitled to inherit, including persons entitled to an allowance for support, unless those persons have been provided notice of the hearing on the appointment or have waived notice.

(C) The probate court shall serve as provided by Civil Rule 73(E)(3) the spousal citation and summary of rights required by R.C. 2106.02 to the surviving spouse within 7 days of the initial appointment of the administrator or executor, unless a different time is established by local court rule.

Effective Date: July 1, 2026

RULE 73.12. Appraisers.

(A) Without special application to the court, a fiduciary may allow to the appraiser as compensation for services a reasonable amount agreed upon between the fiduciary and the appraiser, provided the compensation does not exceed the amount allowed by local court rule. If no local court rule exists, the compensation shall be subject to court approval.

(B) If, by reason of the special and unusual character of the property to be appraised, the fiduciary is of the opinion that the appraisal requires the services of persons qualified in the evaluation of that property, a qualified appraiser may be appointed and allowed compensation as provided in division (A) of this rule.

Effective Date: July 1, 2026

RULE 73.13. Claims Against Estate.

(A) When a claim has been filed with the court pursuant to section 2117.06 of the Revised Code, the fiduciary shall file a copy of any rejection of the claim with the court.

(B) If the court requires a hearing on claims or the fiduciary requests a hearing on claims or insolvency, the fiduciary shall file a schedule of all claims against the estate with the court. The schedule of claims shall be filed with the fiduciary's application for hearing or within ten days after the court notifies the fiduciary of a court-initiated hearing.

Effective Date: July 1, 2026

RULE 73.14. Application to Sell Personal Property.

An application to sell personal property shall include an adequate description of the property. Except for good cause shown, an order of sale shall not be granted prior to the filing of the inventory.

Effective Date: July 1, 2026

RULE 73.15. Accounts.

(A) The vouchers or other proofs required by section 2109.302 and 2109.303 of the Revised Code and receipts filed or exhibited pursuant to section 2109.32(B)(1)(b) of the Revised Code, shall be referenced to the account by number, letter, or date.

(B) If land has been sold during the accounting period, the account shall show the gross amount of the proceeds and include a copy of the closing statement itemizing all of the disbursements.

(C) Receipts for distributive shares signed by persons holding power of attorney may be accepted, provided the power of attorney is recorded in the county in which the estate is being administered and a copy of the recorded power is attached to the account.

(D) Exhibiting assets.

(1) The court may require that all assets be exhibited at the time of filing a partial account.

(2) Cash balances may be verified by exhibiting a financial institution statement, passbook, or a current letter from the financial institution in which the funds are deposited certifying the amount of funds on deposit to the credit of the fiduciary. Assets held in a safe deposit box of a fiduciary or by a surety company on fiduciary's bond may be exhibited by filing a current inventory of the assets. The inventory shall be certified by the manager of the safe deposit box department of the financial institution leasing the safe deposit box or by a qualified officer of the surety company if the assets are held by a surety. If the assets are held by a bank, trust company, brokerage firm, or other financial institution, exhibition may be made by proper certification as to the assets so held. For good cause shown, the court may designate a deputy clerk of the court to make an examination of the assets located in the county, not physically exhibited to the court or may appoint a commissioner for that purpose if the assets are located outside the county. The commissioner appointed shall make a written report of findings to the court.

(E) A final or distributive account shall not be approved until all court costs have been paid.

Effective Date: July 1, 2026

RULE 73.16. Land Sales – R.C. Chapter 2127.

(A) In all land sale proceedings, the plaintiff, prior to the issuance of an order finding the sale necessary, shall file with the court evidence of title showing the record condition of the title to the premises described in the complaint and prepared by a title company licensed by the state of Ohio, an attorney's certificate, or other evidence of title satisfactory to the court. Evidence of title shall be to a date subsequent to the date on which the complaint was filed.

(B) The plaintiff shall give notice of the time and place of sale by regular mail at least three weeks prior to the date of a public sale to all defendants at their last known addresses. Prior to the public sale, the plaintiff shall file a certificate stating that the required notice was given to the defendants and the sale was advertised pursuant to section 2127.32 of the Revised Code.

(C) In all private land sale proceedings by civil action, the judgment entry confirming sale, ordering issuance of deed, and ordering distribution shall show the gross amount of the proceeds and include a copy of the proposed closing statement itemizing all of the proposed disbursements.

(D) The court may appoint a disinterested person, answerable to the court, who shall investigate the circumstances surrounding the proposed transaction, view the property, ascertain whether the proposed sale is justified and report findings in writing. The report shall be a part of the record. The compensation for the person performing these services shall be fixed by the court, according to the circumstances of each case, and shall be taxed as costs.

Effective Date: July 1, 2026

RULE 73.17. Estates of Minors of Not More Than Twenty-Five Thousand Dollars.

(A) Each application relating to a minor shall be submitted by the parent or parents or by the person having custody of the minor and shall be captioned in the name of the minor.

(B) Each application shall indicate the amount of money or property to which the minor is entitled and to whom such money or property shall be paid or delivered. Unless the court otherwise orders, if no guardian has been appointed for either the receipt of an estate of a minor or the receipt of a settlement for injury to a minor, the attorney representing the interests of the minor shall prepare an entry that orders all of the following:

(1) The deposit of the funds in a financial institution in the name of the minor;

(2) Impounding the principal and interest;

(3) Releasing the funds only upon an order of the court or to the minor at the age of majority.

(C) The entry shall be presented at the time the entry dispensing with appointment of a guardian or approving settlement is approved. The attorney shall be responsible for depositing the funds and for providing the financial institution with a copy of the entry. The attorney shall obtain a Verification of Receipt and Deposit (Standard Probate Form 22.3) from the financial institution and file the form with the court within seven days from the issuance of the entry.

Effective Date: July 1, 2026

RULE 73.18. Settlement of Injury Claims of Minors.

(A) An application for settlement of a minor's claim shall be brought by the guardian of the estate. If there is no guardian appointed and the court dispenses with the need for a guardian, the application shall be brought by the parents of the child or the parent or other individual having custody of the child. The noncustodial parent or parents shall be entitled to seven days notice of the application to settle the minor's claim which notice may be waived. The application shall be captioned in the name of the minor.

(B) The application shall be accompanied by a current statement of an examining physician in respect to the injuries sustained, the extent of recovery, and the permanency of any injuries. The application shall state what additional consideration, if any, is being paid to persons other than the minor as a result of the incident causing the injury to the minor. The application shall state what arrangement, if any, has been made with respect to counsel fees. Counsel fees shall be subject to approval by the court.

(C) The injured minor and the applicant shall be present at the hearing.

Effective Date: July 1, 2026

RULE 73.19. Settlement of Claims of or Against Adult Wards.

(A) An application for settlement of a claim in favor of or against an adult ward shall be brought by the guardian of the estate. Notice of the hearing on the application shall be given to all persons who are interested parties to the proposed settlement, as determined by the court. The court may authorize or direct the guardian of the ward's estate to compromise and settle claims as the court considers to be in the best interest of the ward. The court may dispense with notice of hearing.

(B) The application for settlement of an injury claim shall be accompanied by a current statement of an examining physician describing the injuries sustained, the extent of recovery from those injuries, and permanency of any injuries. The application shall state what additional consideration, if any, is being paid to persons other than the ward as a result of the incident causing the injury to the ward. The application shall state what arrangement, if any, has been made with respect to counsel fees. Counsel fees shall be subject to approval by the court.

Effective Date: July 1, 2026

RULE 73.2. Standard Probate Forms.

(A) Applicability. This rule prescribes the format, content, and use of standard forms for designated applications, pleadings, waivers, notices, entries, and other filings in certain proceedings in the probate division of the courts of common pleas.

Where a standard form has not been prescribed by this rule, the form used shall be that required by the Civil Rules, or prescribed or permitted by the probate division of the court of common pleas in which it is being filed.

(B) Modification of standard forms; pleadings and filings prepared for particular cases.

(1) A printed, blank standard form may be modified by deletion or interlineation to meet the circumstances of a particular case or proceeding, if the modification can be accomplished neatly and conveniently. No court shall require the modification of a standard form as a routine matter. If any allegation, statement, data, information, pleading, or filing is required by an appropriate local rule of court and a standard form does not make provision therefor, it shall be provided in a separate or supplemental filing.

(2) Even though a standard form is prescribed, an original instrument may be prepared for filing. Any such instrument shall be typed on eight and one-half by eleven inch paper. The caption prescribed in Civ.R. 73.3 shall be used, and the instrument shall follow the format prescribed for the standard forms. Any such instrument may modify the language of the standard form, omit inapplicable matter required by the standard form, and add matter not included in the standard form to the extent required by the circumstances of the particular case or proceeding.

(C) Standard probate forms. The standard forms prescribed for use in the probate division of the courts of common pleas are the Standard Probate Forms as approved and published by the Supreme Court of Ohio.

Effective Date: July 1, 2026

RULE 73.20. Settlement of Wrongful Death and Survival Claims.

(A) An application to approve settlement and Distribution of Wrongful Death and Survival Claims (Standard Probate Form 14.0) shall contain a statement of facts, including the amount to be allocated to the settlement of the claim and the amount, if any, to be allocated to the settlement of the survival claim. The application shall include the proposed distribution of the net proceeds allocated to the wrongful death claim.

(B) The fiduciary shall give written notice of the hearing and a copy of the application to all interested persons who have not waived notice of the hearing. Notwithstanding the waivers and consents of the interested persons, the court shall retain jurisdiction over the settlement, allocation, and distribution of the claims.

(C) The application shall state what arrangements, if any, have been made with respect to counsel fees. Counsel fees shall be subject to approval by the court.

Effective Date: July 1, 2026

RULE 73.21. Counsel Fees.

(A) Attorney fees in all matters shall be governed by Rule 1.5 of the Ohio Rules of Professional Conduct.

(B) Attorney fees for the administration of estates shall not be paid until the final account is prepared for filing unless otherwise approved by the court upon application and for good cause shown.

(C) Attorney fees may be allowed if there is a written application that sets forth the amount requested and will be awarded only after proper hearing, unless otherwise modified by local rule.

(D) The court may set a hearing on any application for allowance of attorney fees regardless of the fact that the required consents of the beneficiaries have been given.

(E) Except for good cause shown, attorney fees shall not be allowed to attorneys representing fiduciaries who are delinquent in filing the accounts required by section 2109.30 of the Revised Code.

(F) If a hearing is scheduled on an application for the allowance of attorney fees, notice shall be given to all parties affected by the payment of fees, unless otherwise ordered by the court.

(G) An application shall be filed for the allowance of counsel fees for services rendered to a guardian, trustee, or other fiduciary. The application may be filed by the fiduciary or attorney. The application shall set forth a statement of the services rendered and the amount claimed in conformity with division (A) of this rule.

(H) There shall be no minimum or maximum fees that automatically will be approved by the court.

(I) Prior to a fiduciary entering into a contingent fee contract with an attorney for services, an application for authority to enter into the fee contract shall be filed with the court, unless otherwise ordered by local court rule. The contingent fee on the amount obtained shall be subject to approval by the court.

Effective Date: July 1, 2026

RULE 73.22. Executor's and Administrator's Commissions.

(A) Additional compensation for extraordinary services may be allowed upon an application setting forth an itemized statement of the services rendered and the amount of compensation requested. The court may require the application to be set for hearing with notice given to interested persons in accordance with Civil Rule 73(E).

(B) The court may deny or reduce commissions if there is a delinquency in the filing of an inventory or an account, or if, after hearing, the court finds that the executor or administrator has not faithfully discharged the duties of the office.

(C) The commissions of co-executors or co-administrators in the aggregate shall not exceed the commissions that would have been allowed to one executor or administrator acting alone, except where the instrument under which the co-executors serve provides otherwise.

(D) Where counsel fees have been awarded for services to the estate that normally would have been performed by the executor or administrator, the executor or administrator commission, except for good cause shown, shall be reduced by the amount awarded to counsel for those services.

Effective Date: July 1, 2026

RULE 73.23. Guardian's Compensation.

(A) Setting of compensation

Guardian's compensation shall be set by local rule.

(B) Itemization of expenses

A guardian shall itemize all expenses relative to the guardianship of the ward and shall not charge fees or costs in excess of those approved by the probate division of a court of common pleas.

(C) Additional compensation

Additional compensation for extraordinary services, reimbursement for expenses incurred and compensation of a guardian of a person only may be allowed upon an application setting forth an itemized statement of the services rendered and expenses incurred and the amount for which compensation is applied. The probate division of a court of common pleas may require the application to be set for hearing with notice given to interested persons in accordance with Civ.R. 73(E).

(D) Co-guardians

The compensation of co-guardians in the aggregate shall not exceed the compensation that would have been allowed to one guardian acting alone.

(E) Denial or reduction of compensation

The probate division of a court of common pleas may deny or reduce compensation if there is a delinquency in the filing of an inventory or account, or after hearing, the court finds the guardian has not faithfully discharged the duties of the office.

Effective Date: July 1, 2026

RULE 73.24. Trustee's Compensation.

(A) Trustee's compensation shall be set by local rule.

(B) Additional compensation for extraordinary services may be allowed upon application setting forth an itemized statement of the services rendered and the amount of compensation requested. The court may require that the application be set for hearing with notice given to interested parties in accordance with Civil Rule 73(E).

(C) The compensation of co-trustees in the aggregate shall not exceed the compensation that would have been allowed to one trustee acting alone, except where the instrument under which the co-trustees are acting provides otherwise.

(D) Except for good cause shown, neither compensation for a trustee nor fees to counsel representing the trustee shall be allowed while the trustee is delinquent in the filing of an account.

(E) The court may deny or reduce compensation if there is a delinquency in the filing of an inventory or account, or after hearing, the court finds the trustee has not faithfully discharged other duties of the office.

Effective Date: July 1, 2026

RULE 73.25. Local Rules.

Local rules of the court shall be numbered to correspond with the numbering of these rules and shall incorporate the number of the rule it is intended to supplement. For example, a local rule that supplements Rule 73.12 shall be designated Local Rule 73.12.

Effective Date: July 1, 2026

RULE 73.26. Exception to the Rules.

Upon application, and for good cause shown, the probate division of the court of common pleas may grant exception to Rules 73 to 73.29.

Effective Date: July 1, 2026

RULE 73.27. Compliance.

Failure to comply with these rules may result in sanctions as the court may direct.

Effective Date: July 1, 2026

RULE 73.28. Probate Division of the Court of Common Pleas -- Case Management in Decedent's Estates, Guardianship, and Trusts.

(A) Each fiduciary shall adhere to the statutory or court-ordered time period for filing the inventory, account, and, if applicable, guardian's report. The citation process set forth in section 2109.31 of the Revised Code shall be utilized to ensure compliance. The attorney of record and the fiduciary shall be subject to the citation process. The court may modify or deny fiduciary commissions or attorney fees, or both, to enforce adherence to the filing time periods.

(B)

(1) If a decedent's estate must remain open more than six months pursuant to R.C. 2109.301(B)(1), the fiduciary shall file an application to extend administration (Standard Probate Form 13.8).

(2) An application to extend the time for filing an inventory, account, or guardian's report, shall not be granted unless the fiduciary has signed the application.

(C) The fiduciary and the attorney shall prepare, sign, and file a written status report with the court in all decedent's estates that remain open after a period of thirteen months from the date of the appointment of the fiduciary and annually thereafter. At the court's discretion, the fiduciary and the attorney shall appear for a status review.

(D) The court may issue a citation to the attorney of record for a fiduciary who is delinquent in the filing of an inventory, account, or guardian's report to show cause why the attorney should not be barred from being appointed in any new proceeding before the court or serving as attorney of record in any new estate, guardianship, or trust until all of the delinquent pleadings are filed.

(E) Upon filing of the exceptions to an inventory or to an account, the exceptor shall cause the exceptions to be set for a pretrial within thirty days. The attorneys and their clients, or individuals if not represented by an attorney, shall appear at the pretrial. The trial shall be set as soon as practical after pretrial. The court may dispense with the pretrial and proceed directly to trial.

Effective Date: July 1, 2026

RULE 73.29. Dispute Resolution.

The probate division of a court of common pleas or a family court exercising probate jurisdiction may encourage the use of alternative dispute resolution in any matter the court deems appropriate. A judge is authorized to facilitate the use of voluntary alternative dispute resolution processes by taking any one or more of the following actions in disputes brought to the attention of the court:

(A) Suggesting that the parties engage in settlement negotiations and appropriately participate in such negotiations;

(B) Informing the parties about eldercaring coordination, if available, and, upon agreement of the parties, entering an appropriate order either referring the dispute to eldercaring coordination or implementing the result of the eldercaring coordination process. As used in this rule, "eldercaring coordination" means a dispute resolution process modeled after the concept of parenting coordination for high-conflict families regarding the care and safety of elders.

(C) Referring the parties to mediation consistent with Sup.R. 6.05 and a local rule governing mediation, if any;

(D) Informing the parties about the availability of early neutral evaluation programs, including those offered by local bar associations, and, upon agreement of the parties, entering an appropriate order doing any of the following:

(1) Referring the dispute to early neutral evaluation;

(2) Staying the proceedings in the litigation for up to sixty days pending completion of the early neutral evaluation process;

(3) Implementing the result of the early neutral evaluation process.

(E) Upon request of the parties to the litigation, evidenced by a written certification of agreement from all parties, entering such orders to refer the dispute to any other alternative dispute resolution method as the judge deems to be consistent with the interest of justice.

Effective Date: July 1, 2026

RULE 73.3. Specifications for Printing Probate Forms.

(A) Applicability

(1) The specifications in this rule govern the reproduction of blank forms intended for, or used in, the administration of decedents' estates, guardianships, minor settlements, disinterment, change of name, release of medical and billing records, wrongful death, and adoptions in this state, including:

(a) Standard forms prescribed in Rule 73.2;

(b) Commercially prepared blank forms, including standard and nonstandard forms, designed for use in any aspect of the administration of decedents' estates, guardianships, and adoptions;

(c) Blank forms prescribed by local rule of court for use in situations for which no standard form is prescribed.

(2) This rule does not apply to any of the following:

(a) Any pleading, application, entry, waiver, notice, or other filing that is prepared ad hoc for use in a particular case or proceeding, or that is not reproduced in any manner for use as a blank form;

(b) Any routing slip, memorandum index, cost bill, or other form designed solely for internal administrative or clerical use;

(c) Forms intended for use in matters other than the administration of decedents' estates, guardianships, or adoptions;

(d) Estate tax returns, reports, and other forms prescribed by the Department of Taxation.

(B) Size of forms

All forms filed, including those filed by electronic means, shall be on pages not exceeding eight and one-half by eleven inches, without backing or cover.

(C) Margins

Right and left margins shall be approximately one-half to three-quarters of one inch, and shall be justified. The top margin shall be approximately seven-eighths to one and one-eighth inches, measured from the top edge of the paper to the top of the first line of the caption. The distance between the bottom of the repeat of the main heading at the foot of the first page shall be as required by division (K) of this rule.

(D) Font

(1) All type shall be sans serif. Bold face type shall be used only as required or permitted by division (D)(2) of this rule. Italics shall not be used. Except as provided in division (D)(3) of this rule, all type shall be upper and lower case.

(2) Bold face type shall be used for the main heading immediately following the caption, and for the form number and repeat of the main heading at the foot of the first page. In addition bold face type may be used for:

(a) The caption;

(b) Subheadings;

(c) Directions enclosed in brackets;

(d) Instructions or identification under a blank line, indicating what is to be inserted in the line or identifying the office or status of a signer;

(e) Column headings;

(f) Any matter not covered in division (D)(2)(a) to (e) of this rule, for which the use of bold face type is expressly indicated on a standard form in Rule 73.2.

(3) The following shall be printed in all capital letters:

(a) The first two lines of the caption;

(b) The main heading immediately following the caption;

(c) All subheadings;

(d) The form number and repeat of the main heading at the foot of the first page;

(e) Any matter not covered in division (D)(3)(a) to (d) of this rule, for which the use of all capital letters is expressly indicated on a standard form in Rule 73.2.

(E) Type sizes

(1) The following type sizes shall be used:

(a) Main headings immediately following the caption shall use sixteen-point or larger type;

(b) The first line of the caption, and all subheadings, shall use not smaller than twelve-point nor larger than sixteen-point type;

(c) The last two lines of the caption, the body, and the form number and repeat of the main heading at the foot of the first page, shall use not smaller than eight-point nor larger than twelve-point type;

(d) Instructions or identification under a blank line, indicating what is to be inserted in the line or identifying the office or status of a signer, shall use not larger than eight-point type.

(2) Whatever type size is used with the limitations of division (E)(1) of this rule:

(a) The first line of the caption and all subheadings shall use type at least two points smaller than the main heading immediately following the caption;

(b) The last two lines of the caption, the body, and the form number and repeat of the main heading at the foot of the first page, shall use type at least two points smaller than the subheadings;

(c) Instructions or identification under a blank line, indicating what is to be inserted in the line or identifying the office or status of a signer, shall use type at least two points smaller than the body.

(F) Vertical spacing

(1) The vertical spacing on all forms shall be in units of one pica, to conform to standard typewriter vertical spacing.

(2) In order to permit optimum placement and promote visual appeal, the main heading and any subheading may be moved up or down within the available area without regard to the vertical spacing of the rest of the form, provided the rest of the form from head to foot maintains vertical spacing in units of one pica.

(G) Centering

The first line of the caption, the main heading, any explanatory information supplementing the main heading and appearing directly below it, subheadings, and the form number and repeat of the main heading at the foot of the first page of a form, shall be centered.

(H) Blank lines; length; vertical spacing in series

(1) Blanks to be filled in shall be indicated by a printed solid line. Wherever possible, such lines shall be of sufficient length to accommodate comfortably all characters

included in any word, phrase, name, date, or other information that might reasonably be expected to be placed in the blank. Spaces and punctuation shall be included in counting characters. It shall be assumed that six pica will accommodate ten characters in calculating the length of a line.

(2) Wherever possible, blank lines shall be a minimum length of:

(a) Eight pica, when the name of a county is to be inserted;

(b) Eighteen pica, when a date is to be inserted;

(c) Twenty pica, when a name or signature is to be inserted;

(d) Eight pica, not counting the dollar sign, when a dollar amount is to be inserted.

(3) One, or two or more blank lines may be used for the insertion of an address. Wherever possible, such lines shall be a minimum length of:

(a) Forty pica when a single line is used;

(b) Twenty pica per line when two or more lines are used.

(4) When a series of signature lines, lines for tabulating particular information, or other blank lines in vertical series are called for in a form, then except where expressly indicated on a standard form in Rule 73.2, the vertical spacing between lines shall be two pica. This spacing shall be maintained without regard to instructions or identification printed below a line.

(I) Boxes to be checked

(1) Where a form calls for a "check" or "X" to be inserted, a box shall be used for the purpose. The box shall precede the information to which it refers.

(2) When a series of "checks" or "X's" are called for in the same sentence or paragraph, each box and the information to which it refers shall be set apart visually from the preceding and following information in the same sentence or paragraph. Any device that provides visual separation and minimizes possible confusion may be used, including without limitation space-hyphen-space or a double or triple space, as in the following example:

"[check one of the following] - [ ]Decedent's will has been admitted to probate in this court - [ ]To applicant's knowledge decedent did not leave a will."

(J) Caption

(1) Except as provided in division (J)(3) of this rule, the following captions shall be used, respectively, on all forms for the administration of decedents' estates, guardianships, and adoptions:

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____ DECEASED

CASE NO. _____;

PROBATE COURT OF _____ COUNTY, OHIO

GUARDIANSHIP OF _____

CASE NO. _____;

PROBATE COURT OF _____ COUNTY, OHIO

ADOPTION OF _____
(Name after adoption)

CASE NO. .

(2) The first line of the caption shall be centered. The second and third lines shall begin at the left margin and end at the right margin. The vertical space between the first and second lines may be two or three pica. The vertical space between the second and third lines shall be two pica.

(3) The following variations from the caption prescribed in division (J)(1) and (2) of this rule are permitted:

(a) The blank line in the first line of the caption may be replaced by the imprinted name of a particular county.

(b) The caption may be expanded to include the address of a particular court, using type of any suitable size. In such case, the blank lines intended for the court's address in the body of any form and introductory material for the address such as, "the court is located at _____," shall be omitted.

(c) In Standard Decedents' Estates Form 5.5, and in any other decedents' estates form dealing with two or more estates, the last two lines of the caption shall be omitted.

(K) Form number and repeat of main heading

(1) The main heading of a form, which appears immediately below the caption on the first page of a form, shall be repeated at the foot of the first page. If the form is a standard form, the repeat of the main heading shall be preceded on the same line by the form number.

(2) The form number and repeat of the main heading shall be centered, and located not higher than three-eighths inch above the bottom edge of the form.

(L) Printing front and back

When a standard probate form consists of more than one page, each page shall contain the case number in the upper portion of the page.

(M) Standard forms to govern; variations

(1) Matters not specifically covered in this rule are governed by the standard forms prescribed in Rule 73.2. Overall, the format of all printed blank forms, whether standard or nonstandard, shall conform substantially to the standard forms. Except as provided in division (M)(2) of this rule, no additions to, deletions from, or changes in the form, content, or language of the standard forms are permitted when printing blank standard forms.

(2) The following variations from the standard forms in Rule 73.2 are permitted:

(a) In any form calling for a court's address, the blank lines intended for the insertion of such information may be replaced by the imprinted information itself. If the court's address is imprinted in the caption, the blank lines in the body of the form for the address and introductory material for the address shall be omitted as provided in division (J)(3) of this rule.

(b) The name as well as the title of the probate judge may be imprinted below a judge's signature line on any form.

(c) In any form calling for the attorney's typed or printed name, address, telephone number, and attorney identification number, the blank lines intended for the insertion of that information may be replaced by the imprinted information itself. The signature line for the attorney shall be retained.

(d) In Standard Decedents' Estates Form 4.2, the portion of the form below the date line and principal's signature line, and above the repeat at the foot of the page, may be replaced by the imprinted name

and address of a corporate surety, identified in some appropriate manner as the surety on the particular bond, and including a signature line for the attorney in fact. The last paragraph of the body of the form, relating to justification of personal sureties, shall be omitted.

(e) When standard forms are generated by computer, they shall conform to all specifications for standard forms stated in this rule. A court may accept for filing nonstandard computer generated forms for the receipts and disbursements attached to a standard account form or the schedule of assets attached to a standard inventory and appraisal form.

(f) All forms may include suitable coding for optical or magnetic scanning, or similar system designed to aid docketing, indexing, cost accounting, or other administrative or clerical activities.

(g) On all forms, the publisher may add its name, logotype, or other suitable identification. The size, style, and placement shall be such as not to detract from, interfere with, or overpower any part of the form.

(h) Wherever a form contains "20__" or "200__", a blank line shall be substituted to accommodate the correct year.

Effective Date: July 1, 2026

RULE 73.4. Hours of the Court.

Each court shall establish hours for the transaction of business.

Effective Date: July 1, 2026

RULE 73.5. Conduct in the Court.

(A) Proper decorum in the court is necessary to the administration of the court's function. Any conduct that interferes or tends to interfere with the proper administration of the court's business is prohibited.

(B) No audio or visual transmission or recording device, other than a device used by a court reporter making a record in a proceeding, or the making or taking of pictures shall be permitted without the express consent of the court in advance and pursuant to Rule 11.00 of the Rules of Superintendence for the Courts of Ohio.

Effective Date: July 1, 2026

RULE 73.6. Examination of Probate Records.

(A) Records shall not be removed from the court, except when approved by the judge. Violation of this rule may result in the issuance of a citation for contempt.

(B) Copies of records may be obtained at a cost per page as authorized by the judge.

(C) Adoption, mental illness, minor settlements, and mental retardation proceedings are confidential. Records of those proceedings, and other records that are confidential by statute, may be accessed as authorized by the judge.

(D) A citation for contempt of court may be issued against anyone who divulges or receives information from confidential records without authorization of the judge.

Effective Date: July 1, 2026

RULE 73.7. Continuances.

(A) Motions for continuance shall be submitted in writing with the proper caption and case number.

(B) Except on motion of the court, no continuance shall be granted in the absence of proof of reasonable notice to, or consent by, the adverse party or the party's counsel. Failure to object to the continuance within a reasonable time after receiving notice shall be considered consent to the continuance.

(C) A proposed entry shall be filed with a motion for continuance, leaving the time and date blank for the court to set a new date.

Effective Date: July 1, 2026

RULE 73.8. Filings and Judgment Entries.

(A) All filings, except wills, shall be on eight and one-half by eleven inch paper, without backings, of stock that can be microfilmed.

(B) All filings shall contain the name, address, telephone number, e-mail address, and attorney registration number of the individual counsel representing the fiduciary and, in the absence of counsel, the name, address, and telephone number of the fiduciary. Any filing not containing the above requirements may be refused.

(C) Failure of the fiduciary to notify the court of the fiduciary's current address shall be grounds for removal. Not less than ten days written notice of the hearing to remove shall be given to the fiduciary by regular mail at the last address contained in the case file or by other method of service as the court may direct.

(D) Filings containing partially or wholly illegible signatures of counsel, parties or officers administering oaths may be refused, or, if filed, may be stricken, unless the typewritten or printed name of the person whose signature is purported to appear is clearly indicated on the filing.

(E) All pleadings, motions, or other filings are to be typed or printed in ink and correctly captioned.

(F) Unless the court otherwise directs, counsel for the party in whose favor a judgment is rendered, shall prepare the proposed judgment entry and submit the original to the court with a copy to counsel for the opposing party. The proposed judgment entry shall be submitted within seven days after the judgment is rendered. Counsel for the opposing party shall have seven days to object to the court. If the party in whose favor a judgment is rendered fails to comply with this division, the matter may be dismissed or the court may prepare and file the appropriate entry.

(G) When a pleading, motion, judgment entry or other filing consists of more than one page, each page shall contain the case number in the upper portion of the page.

Effective Date: July 1, 2026

RULE 73.9. Deposit for Court Costs.

(A) Deposits in the amount set forth in a local rule shall be required upon the filing of any action or proceeding and additional deposits may be required.

(B) The deposit may be applied as filings occur.

Effective Date: July 1, 2026

RULE 74. [RESERVED].

[Former Rule 74, adopted effective July 1, 1970 and amended effective July 1, 1971 and July 1, 1972, was repealed effective July 1, 1977.]

RULE 75. Divorce, Annulment, and Legal Separation Actions.

(A) Applicability

The Rules of Civil Procedure shall apply in actions for divorce, annulment, legal separation, and related proceedings, with the modifications or exceptions set forth in this rule.

(B) Joinder of parties

Civ.R. 14, 19, 19.1, and 24 shall not apply in divorce, annulment, or legal separation actions, however:

(1) A person or corporation having possession of, control of, or claiming an interest in property, whether real, personal, or mixed, out of which a party seeks a division of marital property, a distributive award, or an award of spousal support or other support, may be made a party defendant;

(2) When it is essential to protect the interests of a child, the court may join the child of the parties as a party defendant and appoint a guardian ad litem and legal counsel, if necessary, for the child and tax the costs;

(3) The court may make any person or agency claiming to have an interest in or rights to a child by rule or statute, including but not limited to R.C. 3109.04 and R.C. 3109.051, a party defendant;

(4) When child support is ordered, the court, on its own motion or that of an interested person, after notice to the party ordered to pay child support and to his or her employer, may make the employer a party defendant.

(C) Trial by court or magistrate

In proceedings under this rule there shall be no right to trial by jury. All issues may be heard either by the court or by a magistrate as the court on the request of any party or on its own motion, may direct. Civ.R. 53 shall apply to all cases or issues directed to be heard by a magistrate.

(D) Investigation

On the filing of a complaint for divorce, annulment, or legal separation, where minor children are involved, or on the filing of a motion for the modification of a decree allocating parental rights and responsibilities for the care of children, the court may cause an investigation to be made as to the character, family relations, past conduct, earning ability, and financial worth of the parties to the action. The report of the investigation shall be made available to either party or their counsel of record upon written request not less than seven days before trial. The report shall be signed by the investigator and the investigator

shall be subject to cross-examination by either party concerning the contents of the report. The court may tax as costs all or any part of the expenses for each investigation.

(E) Subpoena where custody involved

In any case involving the allocation of parental rights and responsibilities for the care of children, the court, on its own motion, may cite a party to the action from any point within the state to appear in court and testify.

(F) Judgment

The provisions of Civ.R. 55 shall not apply in actions for divorce, annulment, legal separation, or civil protection orders. For purposes of Civ.R. 54(B), the court shall not enter final judgment as to a claim for divorce, dissolution of marriage, annulment, or legal separation unless one of the following applies:

(1) The judgment also divides the property of the parties, determines the appropriateness of an order of spousal support, and, where applicable, either allocates parental rights and responsibilities, including payment of child support, between the parties or orders shared parenting of minor children;

(2) Issues of property division, spousal support, and allocation of parental rights and responsibilities or shared parenting have been finally determined in orders, previously entered by the court, that are incorporated into the judgment;

(3) The court includes in the judgment the express determination required by Civ.R. 54(B) and a final determination that either of the following applies:

(a) The court lacks jurisdiction to determine such issues;

(b) In a legal separation action, the division of the property of the parties would be inappropriate at that time.

(G) Civil protection order

A claim for a civil protection order based upon an allegation of domestic violence shall be a separate claim from a claim for divorce, dissolution of marriage, annulment, or legal separation.

(H) Relief pending appeal

A motion to modify, pending appeal, either a decree allocating parental rights and responsibilities for the care of children, a spousal or other support order, shall be made to the trial court in the first instance, whether made before or after a notice of appeal is filed. The trial court may grant relief upon terms as to bond or otherwise as it considers proper

for the security of the rights of the adverse party and in the best interests of the children involved. Civ.R. 62(B) does not apply to orders allocating parental rights and responsibilities for the care of children or a spousal or other support order. An order entered upon motion under this rule may be vacated or modified by the appellate court. The appellate court has authority to enter like orders pending appeal, but an application to the appellate court for relief shall disclose what has occurred in the trial court regarding the relief.

(I) Temporary restraining orders

(1) Restraining order: exclusion

The provisions of Civ.R. 65(A) shall not apply in divorce, annulment, or legal separation actions.

(2) Restraining order: grounds, procedure

When it is made to appear to the court by affidavit of a party sworn to absolutely that a party is about to dispose of or encumber property, or any part thereof of property, so as to defeat another party in obtaining an equitable division of marital property, a distributive award, or spousal or other support, or that a party to the action or a child of any party is about to suffer physical abuse, annoyance, or bodily injury by the other party, the court may allow a temporary restraining order, with or without bond, to prevent that action. A temporary restraining order may be issued without notice and shall remain in force during the pendency of the action unless the court or magistrate otherwise orders.

(J) Continuing jurisdiction

The continuing jurisdiction of the court shall be invoked by motion filed in the original action, notice of which shall be served in the manner provided for the service of process under Civ.R. 4 to 4.6. When the continuing jurisdiction of the court is invoked pursuant to this division, the discovery procedures set forth in Civ.R. 26 to 37 shall apply.

(K) Hearing

No action for divorce, annulment, or legal separation may be heard and decided until the expiration of forty-two days after the service of process or twenty-eight days after the last publication of notice of the complaint, and no action for divorce, annulment, or legal separation shall be heard and decided earlier than twenty-eight days after the service of a counterclaim, which under this rule may be designated a cross-complaint, unless the plaintiff files a written waiver of the twenty-eight day period.

(L) Notice of trial

In all cases where there is no counsel of record for the adverse party, the court shall give the adverse party notice of the trial upon the merits. The notice shall be made by regular mail to the party's last known address, and shall be mailed at least seven days prior to the commencement of trial.

(M) Testimony

Judgment for divorce, annulment, or legal separation shall not be granted upon the testimony or admission of a party not supported by other credible evidence. No admission shall be received that the court has reason to believe was obtained by fraud, connivance, coercion, or other improper means. The parties, notwithstanding their marital relations, shall be competent to testify in the proceeding to the same extent as other witnesses.

(N) Temporary orders of spousal support, child support, and custody

(1) When requested in the complaint, answer, or counterclaim, or by motion served with the pleading, upon satisfactory proof by affidavit duly filed with the clerk of the court, the court or magistrate, without oral hearing and for good cause shown, may grant a temporary order regarding spousal support to either of the parties for the party's sustenance and expenses during the suit and may make a temporary order regarding the support, maintenance, and allocation of parental rights and responsibilities for the care of children of the marriage, whether natural or adopted, during the pendency of the action for divorce, annulment, or legal separation.

(2) Counter affidavits may be filed by the other party within fourteen days from the service of the complaint, answer, counterclaim, or motion, all affidavits to be used by the court or magistrate in making a temporary spousal support order, child support order, and order allocating parental rights and responsibilities for the care of children. Upon request, in writing, after any temporary spousal support, child support, or order allocating parental rights and responsibilities for the care of children is journalized, the court shall grant the party so requesting an oral hearing within twenty-eight days to modify the temporary order. A request for oral hearing shall not suspend or delay the commencement of spousal support or other support payments previously ordered or change the allocation of parental rights and responsibilities until the order is modified by journal entry after the oral hearing.

(O) Delay of decree

When a party who is entitled to a decree of divorce or annulment is ordered to pay spousal support or child support for a child not in his or her custody, or to deliver a child to the party to whom parental rights and responsibilities for the care of the child are allocated, the court may delay entering a decree for divorce or annulment until the party, to the satisfaction of the court, secures the payment of the spousal support or the child support

for the child, or delivers custody of the child to the party to whom parental rights and responsibilities are allocated.

(P) Dismissal of domestic relations actions

Notwithstanding Civ.R. 41, any dismissal of a divorce, dissolution, annulment, or legal separation action by a court or party, other than a denial on the merits, shall not operate as an adjudication of the merits or a bar to a subsequent filing of the action.

Effective Date: July 1, 1970
Amended: July 1, 1971; July 1, 1972; July 1, 1977; July 1, 1978; July 1, 1991; July 1, 1996; July 1, 1997; July 1, 1998; July 1, 2001; July 1, 2014; July 1, 2018; July 1, 2023

Staff Note (July 1, 1996 Amendment)

Rule 75 Divorce, Annulment, and Legal Separation Actions

The amendment changed the rule's reference from "referee" to "magistrate" in divisions (C), (H)(2), and (M) in order to harmonize the rule with the language adopted in the 1995 amendments to Civ.R. 53. Also, in divisions (B), (C), (F), (H)(1), and (I) the style used for citations to other rules was amended. The amendment is technical only and no substantive change is intended.

Staff Note (July 1, 1997 Amendment)

Rule 75(G) Relief pending appeal

The amendment clarifies the procedure to be followed when parental rights, spousal support, and similar issues are sought to be modified while an appeal is pending. The rule prior to the amendment was unclear on which court or courts had authority to entertain motions to modify such orders, leading to a split of authority among Ohio courts. Compare *Rahm v. Rahm* (1974), 39 Ohio App.2d 74, 315 N.E. 2d 495 (trial court could only grant such relief prior to the filing of an appeal) with *Buckles v. Buckles* (1988), 46 Ohio App.3d 118, 546 N.E.2d 950 (declines to follow *Rahm*, holds that trial court retains jurisdiction to grant relief pending appeal as long as the exercise of that jurisdiction did not interfere with appellate review).

The amendment follows the *Buckles* case by requiring a motion to modify to be made in the first instance to the trial court, with that court's decision subject to review and modification, if appropriate, in the appellate court. The trial court is the most appropriate forum to consider such a motion in the first instance, given that the trial judge is already familiar with the issues, and the likelihood that further factual presentations and inquiry will be necessary for the court to dispose of the motion.

Staff Note (July 1, 1998 Amendment)

Rule 75(F) Judgment

Division (F) was amended to require that the final judgment in a domestic relations case include all relevant claims except the domestic violence protection order: divorce, property settlement, and parental rights and responsibilities. The amendment was suggested by the Ohio State Bar Association Family Law Committee and the Ohio Gender Fairness Task Force. The amendment also changed the title of this division from "Default." Division (G) was added and the remainder of the divisions were relettered accordingly.

Staff Note (July 1, 2001 Amendment)

Civil Rule 75(B) Joinder of parties

Civ.R. 75(B) provides that Civ.R. 14 (third-party practice), Civ.R. 19 (joinder of parties needed for just adjudication), Civ.R. 19.1 (compulsory joinder), and Civ.R. 24 (intervention) are generally inapplicable in divorce, annulment, or legal separation actions. Division (1) of Rule 75(B), however, permits a corporation or person to be made a party defendant to such an action if that corporation or person has possession or control of or claims an interest in property out of which another seeks an award. Civ.R. 75(B)(1) thus permits the court to protect both the person seeking an award and the corporation or person who has possession or control of or claims an interest in property. See *Huener v. Huener*, 110 Ohio App. 3d 322, 327, 674 N.E. 2d 389, 393 (1996) (trial court abused its discretion by attempting to divest parents of party of legal title to property without joining them as parties; purpose of Civ.R. 75(B)(1) joinder "is to allow individuals to join whose interests need to be protected").

Division (B)(1) was amended effective July 1, 2001 to track more precisely the language of R.C. 3105.171, which provides for division of marital property and, in appropriate circumstances, a distributive award, and R.C. 3105.18, which provides for spousal support. The amendment is intended to make clear that the joinder of a corporation or person is proper whether a division of marital property, a distributive award, or an award of spousal support is the underlying issue. The reference to "other support" is retained in order to avoid foreclosing the use of Civ.R. 75(B)(1) when, e.g., child support is the underlying issue.

Rule 75(I) Temporary restraining orders

Civ.R. 75(I)(1) provides that Civ.R. 65(A), which prescribes general conditions for the issuance of a temporary restraining order, is inapplicable to divorce, annulment, or legal separation actions. Civ.R. 75(I)(2), however, permits a court to issue a temporary restraining order in such an action without notice, which order may remain in effect during the pendency of the action, so as to protect a party from action by another party who is about to dispose of or encumber property so as to defeat the other party in obtaining a fair award. See *Addy v. Addy*, 97 Ohio App. 3d 204, 210, 646 N.E. 2d 513, 517 (1994) ("Rule 75(H) [now 75(I)] is intended to protect the interests of the parties and preserve the authority of the court to make meaningful final orders for support"); see also Civ.R. 53(C)(3) (power of magistrate to enter orders; Civ.R. 75(I) incorporated by reference).

Civ.R. 75(I)(2) was amended effective July 1, 2001 to track more precisely the language of R.C. 3105.171, which provides for division of marital property and, in appropriate circumstances, a distributive award, and R.C. 3105.18, which provides for spousal support. Though courts appear properly to have rejected an overly-literal reading of Civ.R. 75(I)(2), see *Sherban v. Sherban*, 1985 WL 4710, Nos. CA-6688, CA-6695, CA-6696, and CA-6683 (5th Dist. Ct. App., Stark, 12-23-85) (restraining order under Civ.R. 75(H) [now 75(I)] proper in support of division of property), the amendment is intended to make clear that a temporary restraining order may properly be entered if necessary to prevent a party from defeating another party's right to an equitable division of marital property, a distributive award, or an award of spousal support. The reference to "other support" is retained in order to avoid foreclosing the use of Civ.R. 75(I)(2) to prevent a party from defeating the right of another party to, e.g., child support.

Staff Note (July 1, 2014 Amendment)

The rule is amended by inserting a new Civ.R. 75(B)(3) and renumbering the following provision. The new provision expressly grants courts the authority and discretion to join persons or agencies claiming to have an interest in or rights with respect to a child. This would include agencies such as child support enforcement and children services boards. This would also include third parties seeking the designation of residential parent or being granted parenting time rights.

Staff Note (July 1, 2018 Amendment)

Division (N) Temporary orders

Reflecting contemporary terminology, the former term “pendente lite” is replaced with the term “temporary.”

RULE 76. [RESERVED].

[Former Rule 76, adopted effective July 1, 1970 and amended effective July 1, 1971, was repealed effective July 1, 1972.]

RULE 77 TO 80. [RESERVED].

RULE 81. References to Ohio Revised Code.

A reference in these Rules to a section of the Revised Code shall mean the section as amended from time to time including the enactment of additional sections the numbers of which are subsequent to the section referred to in the rules.

Effective Date: July 1, 1970

TITLE X. GENERAL PROVISIONS.

RULE 82. Jurisdiction Unaffected.

These rules shall not be construed to extend or limit the jurisdiction of the courts of this state.

Effective Date: July 1, 1970

RULE 83. Rule of Court.

(A) A court may adopt local rules of practice which shall not be inconsistent with these rules or with other rules promulgated by the Supreme Court and shall file its local rules of practice with the Clerk of the Supreme Court.

(B) Local rules of practice shall be adopted only after the court gives appropriate notice and an opportunity for comment. If a court determines that there is an immediate need for a rule, it may adopt the rule without prior notice and opportunity for comment, but promptly shall afford notice and opportunity for comment.

Effective Date: July 1, 1970
Amended: July 1, 1994; July 1, 2000

Staff Note (July 1, 2000 Amendment)

Rule 83 Local Rules of Practice

The title of Civ.R. 83 and the text of division (A) were amended to more accurately reflect the intent of the original Civ.R. 83, which was to (1) restate the rule-making power of local courts as granted by sentence five of Section 5(B), Art. IV, Ohio Constitution and (2) require that rules adopted by local courts be filed with the Supreme Court. Civ.R. 83 was previously entitled Rule of Court. Although the previous rule did not reflect that intent as accurately as it might have, courts had generally accorded it treatment consistent with that intent. See 2 J. Klein & S. Darling, *Baldwin's Ohio Practice: Civil Practice,* Section 83-1 through 83-4 at 786-92 (West Group 1997).

The amendment was intended to (1) remove any doubt about the intent of the rule, (2) serve as a reminder that local rules of practice must be consistent with the Civil Rules and with other rules promulgated by the Supreme Court, and (3) make Civ.R. 83(A) more clearly consistent with Sup.R. 5(A).

Division (B) was amended in technical respects only; no substantive change was intended.

RULE 84. Forms.

The forms contained in the Appendix of Forms which the Supreme Court from time to time may approve are sufficient under these rules and shall be accepted for filing by courts of this state. Forms adopted by local courts that are substantially similar to the forms in the Appendix of Forms may also be accepted for filing. The forms in the Appendix of Forms are intended to indicate the simplicity and brevity of statement which these rules contemplate.

Effective Date: July 1, 1970
Amended: July 1, 2011

Staff Note (July 1, 2011 Amendment)

Civil Rule 84 is amended to indicate that forms contained in the Appendix of Forms provide a "safe haven" for litigants. The forms must be accepted by local courts as sufficient under the rules. Local courts may continue, however, to adopt local forms which can also be accepted for filing. The amendment is intended to make it easier for pro se litigants and practitioners to access courts and justice by allowing for standardized forms in certain proceedings.

RULE 85. Title.

These rules shall be known as the Ohio Rules of Civil Procedure and may be cited as "Civil Rules" or "Civ.R. _."

Effective Date: July 1, 1970
Amended: July 1, 1971

RULE 86. Effective Date.

(A) Original rules

The Ohio Rules of Civil Procedure originally took effect July 1, 1970, pursuant to Article IV, Section 5 of the Ohio Constitution. Some rules have been amended in succeeding years, again pursuant to the Constitution.

(B) Effective date of amendments

Amendments to these rules filed hereafter by the Supreme Court with the General Assembly pursuant to Article IV, Section 5 of the Ohio Constitution, and not thereafter the subject of a concurrent resolution of disapproval, shall take effect on the following first day of July. They shall govern all proceedings in actions brought after they take effect and also all further proceedings in actions then pending, except to the extent that their application in a particular action pending when the amendments take effect would not be feasible or would work injustice, in which event the former procedure applies.

APPENDIX OF FORMS

The forms which follow are intended for illustration only. They are limited in number inasmuch as no attempt is made to furnish a manual of forms. The forms are expressly declared by Rule 84 to be sufficient under the rules. Departures from the forms shall not void papers which are otherwise sufficient, and the forms may be varied when necessary to meet the facts of a particular case. Where appropriate, the forms assume that the action was brought in the Court of Common Pleas, Franklin County, Ohio.

General Civil Forms	Forms 1-20
Domestic Relations Forms	Forms 1-32
Civil Protection Order Forms	Forms 1-31
Probate Forms	Forms 1-45

GENERAL CIVIL FORMS

FORM 1 Caption and Summons

FORM 2 Complaint on a Promissory Note

FORM 2A Complaint on a Promissory Note (Reason for Omission on Copy Stated)

FORM 3 Complaint on an Account

FORM 4 Complaint for Goods Sold and Delivered

FORM 5 Complaint for Money Lent

FORM 6 Complaint for Money Paid by Mistake

FORM 7 Complaint for Money Had and Received

FORM 8 Complaint for Negligence

FORM 9 Complaint for Negligence Where Plaintiff Is Unable to Determine Definitely Whether the Person Responsible Is C.D. or E.F. or Whether Both Are Responsible and Where His Evidence May Justify a Finding of Willfulness or of Recklessness or of Negligence

FORM 10 Complaint for Conversion

FORM 11 Complaint for Specific Performance of Contract to Convey Land

FORM 12 Complaint on Claim for Debt and to Set Aside Fraudulent Conveyance Under Rule 18(B)

FORM 13 Complaint for Interpleader and Declaratory Relief

FORM 14 Motion to Dismiss, Presenting Defenses of Failure to State of Claim, of Lack of Service of Process, and Lack of Jurisdiction Under Rule 12(B)

FORM 15 Answer Presenting Defenses Under Rule 12(B)

FORM 16 Summons Against Third-Party Defendant

FORM 16A Complaint Against Third-Party Defendant

FORM 17 Motion to Intervene as a Defendant Under Rule 24

FORM 18 Judgment on Jury Verdict

FORM 19 Judgment on Decision by the Court

FORM 20 Civil Fee Waiver Affidavit and Order

DOMESTIC RELATIONS FORMS

FORM 1 Affidavit of Basic Information, Income, and Expenses

FORM 2 Affidavit of Property and Debt

FORM 3 Parenting Proceeding Affidavit

FORM 4 Health Insurance Affidavit

FORM 5 Motion and Affidavit or Counter Affidavit for Temporary Orders Without Oral Hearing

FORM 6 Complaint for Divorce Without Children

FORM 7 Complaint for Divorce With Children

FORM 8 Counterclaim for Divorce Without Children

FORM 9 Counterclaim for Divorce With Children

FORM 10 Answer to Complaint for Divorce Without Children

FORM 11 Answer to Complaint for Divorce With Children

FORM 12 Reply to Counterclaim for Divorce Without Children

FORM 13 Reply to Counterclaim for Divorce With Children

FORM 14 Judgment Entry - Decree of Divorce Without Children

FORM 15 Judgment Entry - Decree of Divorce With Children

FORM 16 Judgment Entry Converting Interest in Real Estate

FORM 17 Petition for Dissolution of Marriage and Waiver of Service of Summons

FORM 18 Judgment Entry - Decree of Dissolution of Marriage

FORM 19 Separation Agreement

FORM 20 Shared Parenting Plan

FORM 21 Parenting Plan

FORM 22 Parenting Judgment Entry

FORM 23 Complaint for Parentage, Allocation of Parental Rights and Responsibilities and Parenting Time

FORM 24 Motion for Contempt, Affidavit, and Instructions for Service

FORM 25 Show Cause Order and Notice

FORM 26 Motion for Change of Parenting Time (Companionship and Visitation)

FORM 27 Motion for Change of Parental Rights and Responsibilities (Custody)

FORM 28 Motion for Change of Child Support, Medical Support, Tax Exemption, or Other Child-related Expenses

FORM 29 Explanation of Health Care Bills

FORM 30 Waiver of Service of Summons

FORM 31 Request for Service

FORM 32 Motion to Intervene

CIVIL PROTECTION ORDER FORMS

FORM 1 General Information About Domestic Violence Protection Orders

FORM 2 Warning Concerning the Attached Protection Order or Consent Agreement

FORM 3 Information About Filing a Domestic Violence or Dating Violence Civil Protection Order Petition

FORM 4 Petition for Domestic Violence Civil Protection Order (R.C. 3113.31)

FORM 5 Information for Parenting Proceeding Affidavit

FORM 6 Domestic Violence Civil Protection Order (CPO) Ex Parte (R.C. 3113.31)

FORM 7 Domestic Violence Civil Protection Order (CPO) Full Hearing (R.C. 3113.31)

FORM 8 Consent Agreement and Domestic Violence Civil Protection Order (R.C. 3113.31)

FORM 9 Notice to Respondent or Defendant About Existence of Protection Order

FORM 10 Judgment Entry on Motion to Modify/Terminate Civil Protection Order or Consent Agreement

FORM 11 Modified Domestic Violence Civil Protection Order

FORM 12 Motion for Contempt of a Domestic Violence or Dating Violence Civil Protection Order

FORM 13 Petition for Dating Violence Civil Protection Order

FORM 14 Dating Violence Civil Protection Order (DTCPO) Ex Parte

FORM 15 Dating Violence Civil Protection Order (DTCPO) Full Hearing

FORM 16 Consent Agreement and Dating Violence Civil Protection Order

FORM 17 Modified Dating Violence Civil Protection Order

FORM 18 Information About Filing a Juvenile Civil Protection Order or a Juvenile Domestic Violence Civil Protection Order Petition

FORM 19 Petition for Juvenile Civil Protection Order and Juvenile Domestic Violence Protection Order (R.C. 2151.34 and 3113.31)

FORM 20 Juvenile Civil Protection Order or Juvenile Domestic Violence Civil Protection Order Ex Parte (R.C. 2151.34 or 3113.31)

FORM 21 Juvenile Civil Protection Order Full Hearing (R.C. 2151.34)

FORM 22 Juvenile Domestic Violence Civil Protection Order and Consent Agreement Protection Order

FORM 23 Instructions for Obtaining Civil Stalking Protection Order or Civil Sexually Oriented Offense Protection Order (SSOOPO)

FORM 24 Petition for Civil Stalking Protection Order or Civil Sexually Oriented Offense Protection Order (SSOOPO) (R.C. 2903.214)

FORM 25 Civil Stalking Protection Order or Civil Sexually Oriented Offense Protection Order (SSOOPO) Ex Parte (R.C. 2903.214)

FORM 26 Civil Stalking Protection Order or Civil Sexually Oriented Offense Protection Order (SSOOPO) Full Hearing (R.C. 2903.214)

FORM 27 Protection Order Notice to NCIC

FORM 28 Instructions for Completing a Protection Order Notice to NCIC

FORM 29 Wireless Service Transfer Order in Domestic Violence Civil Protection Order

FORM 30 Motion to Modify or Terminate Domestic Violence Protection Order or Consent Agreement

FORM 31 Notice of Receipt

PROBATE FORMS

FORM 1.0 Surviving Spouse, Children, Next of Kin, Legatees, and Devisees

FORM 2.0 Application to Probate Will

FORM 2.1 Waiver of Notice of Probate of Will

FORM 2.2 Notice of Probate of Will

FORM 2.3 Entry Admitting Will to Probate

FORM 2.4 Certificate of Service of Notice of Probate of Will

FORM 3.0 Appointment of Appraiser

FORM 4.0 Application for Authority to Administer Estate

FORM 4.1 Supplemental Application for Ancillary Administration

FORM 4.2 Fiduciary's Bond

FORM 4.3 Waiver of Right to Administer

FORM 4.4 Notice and Citation of Hearing on Appointment of Fiduciary

FORM 4.5 Entry Appointing Fiduciary; Letter of Authority

FORM 5.0 Application to Relieve Estate From Administration

FORM 5.1 Assets and Liabilities of Estate to be Relieved from Administration

FORM 5.2 Waiver of Notice of Application to Relieve Estate from Administration

FORM 5.3 Notice of Application to Relieve Estate from Administration

FORM 5.4 Publication of Notice

FORM 5.5 Publication of Notice Proof of Publication

FORM 5.6 Entry Relieving Estate from Administration

FORM 5.10 Summary Release From Administration

FORM 5.11 Entry Granting Summary Release From Administration

FORM 6.0 Inventory and Appraisal

FORM 6.1 Schedule of Assets

FORM 6.2 Waiver of Notice of Hearing on Inventory

FORM 6.3 Notice of Hearing on Inventory

FORM 7.0 Certification of Notice to Administrator of Medicaid Estate Recovery Program

FORM 7.0(A) Notice to Administrator of Medicaid Estate Recovery

FORM 7.1 Application for Family Allowance

FORM 7.2 Application for Apportionment of Family Allowance

FORM 8.0 Citation to Surviving Spouse to Exercise Elective Rights

FORM 8.1 Election of Surviving Spouse to Take Under Will

FORM 8.2 Election of Surviving Spouse to Take Against Will

FORM 8.3 Summary of General Rights of Surviving Spouse

FORM 8.4 Certificate of Service and Notice of Citation to Surviving Spouse to Exercise Elective Rights

FORM 8.5 Return for Certificate of Service of Citation to Surviving Spouse to Exercise Elective Rights

FORM 8.6 Waiver of Service to Surviving Spouse of the Citation to Elect

FORM 9.0 Application to Sell Personal Property

FORM 9.1 Entry Authorizing Sale of Personal Property

FORM 9.2 Notice of Sale of Personal Property

FORM 10.0 Application to Distribute in Kind

FORM 10.1 Entry Approving Distribution in Kind

FORM 10.2 Notice of Hearing on Application to Distribute in Kind

FORM 11.0 Consent to Power to Sell Real Estate

FORM 12.0 Application for Certificate of Transfer

FORM 12.1 Certificate of Transfer

FORM 13.0 Fiduciary's Account

FORM 13.1 Receipts and Disbursements

FORM 13.2 Assets Remaining in Fiduciary's Hands

FORM 13.3 Entry Approving and Settling Account

FORM 13.4 Waiver of Partial Account

FORM 13.5 Notice of Hearing on Account

FORM 13.6 Certificate of Termination

FORM 13.7 Waiver of Notice of Hearing on Account

FORM 13.8 Application to Extend Administration

FORM 13.9 Certificate of Service of Account to Heirs or Beneficiaries

FORM 13.10 Notice to Extend Administration

FORM 13.11 Application to Disburse Attorney Decedent's Trust Account(s)

FORM 13.12 Notice of Will Location

FORM 14.0 Application to Approve Settlement and Distribution of Wrongful Death and Survival Claims

FORM 14.1 Waiver and Consent Wrongful Death and Survival Claims

FORM 14.2 Entry Approving Settlement and Distribution of Wrongful Death and Survival Claims

FORM 14.3 Report of Distribution of Wrongful Death and Survival Claims

FORM 15.0 Next of Kin of Proposed Ward

FORM 15.01 Judgment Entry Setting Hearing on Application for Appointment of Guardian

FORM 15.1 Waiver of Notice and Consent

FORM 15.2 Fiduciary's Acceptance - Guardian

FORM 15.3 Guardian's Bond

FORM 15.4 Letters of Guardianship

FORM 15.5 Guardian's Inventory

FORM 15.6 Application to Release Funds to Guardian

FORM 15.7 Application for Authority to Expend Funds

FORM 15.8 Guardian's Account

FORM 15.9 Oath of Guardian

FORM 16.0 Application for Appointment of Guardian of Minor

FORM 16.1 Affidavit

FORM 16.2 Selection of Guardian by Minor over Fourteen Years of Age

FORM 16.3 Notice of Hearing for Appointment of Guardian of Minor (To Minor Over Age 14)

FORM 16.4 Notice of Hearing on Application for Appointment Guardian of Minor to Parent, Known Next of Kin and Person Having Custody

FORM 16.5 Judgment Entry Appointment of Guardian of Minor

FORM 17.0 Application for Appointment of Guardian (an Alleged Incompetent)

FORM 17.1 Statement of Expert Evaluation

FORM 17.1A Supplement for Emergency Guardianship of Person

FORM 17.3 Notice to Prospective Ward of Application and Hearing

FORM 17.4 Notice of Hearing for Appointment of Guardian of Alleged Incompetent Person

FORM 17.5 Judgment Entry Appointment of Guardian for Incompetent Person

FORM 17.7 Guardian's Report

FORM 17.8 Court Investigator's Report on Proposed Guardianship

FORM 17.10 Service of Notice Information for Adult Guardianship

FORM 18.0 Petition for Adoption of Minor

FORM 18.1 Judgment Entry Setting Hearing and Ordering Notice

FORM 18.2 Notice of Hearing on Petition for Adoption

FORM 18.3 Consent to Adoption

FORM 18.4 Judgment Entry Finding Consent Not Required

FORM 18.5 Interlocutory Order of Adoption

FORM 18.6 Final Decree of Adoption (After Interlocutory Order)

FORM 18.7 Final Decree of Adoption (Without Interlocutory Order)

FORM 18.8 Adoption Certificate for Parents

FORM 18.9 Petitioner's Account

FORM 19.0 Petition for Adoption of Adult

FORM 19.1 Final Order of Adoption of Adult

FORM 19.2 Petition to Recognize Foreign Adoption

FORM 19.3 Order for Ohio Birth Record for Foreign Born Child

FORM 19.4 Notice to the Child Support Enforcement Agency

FORM 20.1 Affidavit of Mental Illness

FORM 20.2 Certificate of Examination

FORM 20.3 Affidavit of Refusal of Doctor's Evaluation

FORM 20.4 Order Referring Affidavit for Screening

FORM 20.5 Temporary Order of Detention

FORM 20.6 Order to Convey

FORM 20.7 Order Transferring Jurisdiction

FORM 20.8 Notice to Respondent of Initial Hearing

FORM 20.9 Notice of Hearing

FORM 20.10 Order Appointing Counsel

FORM 20.11 Motion to Appoint Independent Expert

FORM 20.12 Order Appointing Independent Expert

FORM 21.0 Application for Change of Name of Adult

FORM 21.01 Affidavit in Support of Application for Change of Name of Adult

FORM 21.02 Affidavit in Support of Application for Change of Name of Minor

FORM 21.03 Judgment Entry Setting Hearing and Ordering Notice

FORM 21.07 Affidavit in Support of Application to Conform Legal Name of Adult

FORM 21.09 Affidavit in Support of Application to Conform Legal Name of Minor

FORM 21.1 Judgment Entry - Change of Name of Adult

FORM 21.2 Application for Change of Name of Minor

FORM 21.3 Judgment Entry - Change of Name of Minor

FORM 21.4 Consent to Change of Name

FORM 21.5 Notice of Hearing on Change of Name

FORM 21.6 Application to Waive Publication Requirement and Seal File

FORM 21.6A Application to Waive Publication and Seal File

FORM 21.6B Application to Waive Publication and Seal File

FORM 21.7 Application to Conform Legal Name of Adult

FORM 21.8 Judgment Entry Conforming Legal Name of Adult

FORM 21.9 Application to Conform Legal Name of Minor

FORM 21.10 Judgment Entry Conforming Legal Name of Minor

FORM 21.11 Judgment Entry Setting Hearing and Ordering Notice

FORM 21.12 Notice of Hearing on Conforming Legal Name

FORM 21.13 Consent to Name Conformity

FORM 21.14 Release for Criminal Background Check

FORM 22.0 Application to Settle a Minor's Claim and Entry Setting Hearing

FORM 22.1 Waiver and Consent to Settle Minor's Claim

FORM 22.2 Entry Approving Settlement of a Minor's Claim

FORM 22.3 Verification of Receipt and Deposit

FORM 22.4 Report of Distribution and Entry Minor's Claim

FORM 22.5 Application to Settle a Claim of an Adult Ward

FORM 22.6 Entry Approving Settlement of a Claim of an Adult Ward

FORM 22.7 Report of Distribution and Entry

FORM 23.0 Petition for Protective Services

FORM 23.1 Notice of Petition for Court Ordered Protective Services

FORM 23.2 Petition for Emergency Protective Services

FORM 23.3 Notice of Petition for Court Ordered Protective Services on an Emergency Basis

FORM 23.4 Petition for Temporary Restraining Order to Prevent Interference With Investigation of Reported Abuse of an Adult

FORM 23.6 Petition for Temporary Restraining Order to Prevent Interference With the Provision of Protective Services to an Adult

FORM 23.7 Notice of Hearing on Petition for Temporary Restraining Order to Prevent Interference With the Provision of Services

FORM 24.0 Representation of Insolvency

FORM 24.1 Judgment Entry Setting Hearing and Ordering Notice

FORM 24.2 Notice of Hearing on Representation of Insolvency and Schedule of Claims

FORM 24.3 Verification of Service Notice of Hearing on Representation of Insolvency and Schedule of Claims

FORM 24.4 Schedule of Claims

FORM 24.5 Continuation Schedule of Claims

FORM 24.6 Judgment Entry of Insolvency

FORM 25.0 Application for Order to Disinter Remains

FORM 25.1 Judgment Entry Setting Hearing on Application for Disinterment

FORM 25.2 Notice of Hearing on Application for Disinterment

FORM 25.3 Affidavit of Service of Notice on Hearing on Application for Disinterment

FORM 25.4 Verification of Reinterment

FORM 25.5 Waiver of Notice of Application to Disinter Remains

FORM 25.6 Order to Disinter Remains

FORM 26.0 Petition for Involuntary Treatment for Alcohol and Other Drug Abuse

FORM 26.1 Certificate of Physician

FORM 26.2 Affidavit of Refusal of Examination

FORM 26.3 Statement of Treatment

FORM 26.4 Notice of Hearing on Petition

FORM 26.5 Notice to Respondent and Order to Appear for Examinations and Hearing

FORM 26.6 Notice to Respondent and Emergency Order to Report to Hospital

FORM 26.7 Respondent's Rights

FORM 26.8 Affidavit of Indigency

FORM 26.9 Entry Appointing Counsel

FORM 26.10 Probable Cause Hearing Decision and Entry

FORM 26.11 Entry Setting Hearing & Ordering Notice

FORM 26.12 Summons

FORM 26.13 Order to Transport

FORM 26.14 Order

FORM 27.0 Notice to Guardian-Submission of Comments or Complaints

FORM 27.1 Notice to Guardian and Maker of Comments or Complaints-Disposition of Comments or Complaints

FORM 27.2 Notification of Compliance with Guardian Education Requirements

FORM 27.3 Notice of/Application for Change of Address

FORM 27.4 Entry on Application to Change Address of the Ward

FORM 27.5 Annual Registration Guardian with Ten or More Wards

FORM 27.6 Annual Fee Schedule

FORM 27.7 Annual Guardianship Plan-Person

FORM 27.8 Annual Guardianship Plan-Estate

FORM 27.9 Application to Terminate Guardianship

FORM 27.10 Notification of Guardian's Receipt of Fees Other Than Through Guardianship

FORM 27.11 Notification of Ward's Important Legal Papers

FORM 27.12 Guardian Receipt

FORM 28.0 Motion by Guardian or Real Estate Sale by Consent

FORM 28.1 Consent to Power to sell Real Estate-Guardianship

FORM 29.0 Application to Release Medical Records and Medical Billing Records

FORM 29.1 Entry Authorizing Release of Medical Records and Medical Billing Records

FORM 29.2 Report on Receipt of Medical Records and Medical Billing Records

FORM 29.3 Notice of Application to Release Medical Records and Medical Billing Records

FORM 29.4 Waiver of Notice/Consent

FORM 30.0 Birth Certificate Correction

FORM 45(D) Confidential Disclosure of Personal Identifiers

FORM 1. CAPTION AND SUMMONS

COURT OF COMMON PLEAS
_____ COUNTY, OHIO

_____	)	Case No. _____
[Street Address]	)	Judge _____
[City, State Zip]	)	
Plaintiff	)	
v.	)	SUMMONS
_____	)	
[Street Address]	)	
[City, State Zip]	)	
Defendant	)	

To the following named defendant(s):

Name:	Address:
_____	_____
_____	_____
_____	_____

You have been named as a defendant in this Court. The Plaintiff(s) has filed a lawsuit against you. A copy of the Complaint is attached. The Plaintiff's attorney and that attorney's address are: _____
_____
_____

You must deliver to the Plaintiff's attorney (or the Plaintiff if not represented by an attorney) a written Answer to the Complaint within 28 days; Civil Rule 5 explains the ways that you may deliver the Answer (http://www.supremecourt.ohio.gov/LegalResources/Rules/civil/CivilProcedure.pdf). You must then file a copy of the Answer with this Court within three days after you serve it on the Plaintiff(s). If you fail to serve and file an Answer, the Court may enter judgment against you for the relief requested in the Complaint.

You may wish to hire an attorney to represent you. Because this is a civil suit, the Court cannot appoint an attorney for you. If you need help to find a lawyer, contact a local bar association and request assistance.

Date: _____ Clerk: _____

Note

The caption above designates the particular paper as a "SUMMONS." The particular pleading or paper should contain an appropriate designation, thus: "COMPLAINT," "ANSWER," etc. A more specific designation in a caption is also appropriate, thus: "MOTION TO INTERVENE AS A DEFENDANT."

* *

***Multilingual notice:

You have been named as a defendant in this Court. You must file an answer within 28 days; if you fail to answer, the Court may enter judgment against you for the relief stated in the Complaint. Seek assistance from both an interpreter and an attorney. Your inability to understand, write, or speak English will not be a defense to possible judgment against you.

1. Spanish (US)

***Aviso multilingüe:

Este Tribunal lo ha declarado como acusado. Debe presentar una respuesta en un plazo de 28 días. Si no contesta en dicho plazo, el Tribunal podrá dictar sentencia en su contra por el amparo que se detalla en la demanda. Solicite la ayuda de un intérprete y de un abogado. Su incapacidad para comprender, escribir o hablar inglés no se considerará como defensa ante una posible sentencia en su contra.

2. Somali

***Ogeysiis luqadda badan ah:

Waxaa laguu magacaabay sida eedeysane gudaha Maxkamadan. Waa in aad ku soo gudbisaa jawaab 28 maalmood gudahood; haddii aad ku guuldareysto jawaabta, Maxkamada laga yaabo in ay gasho xukun adiga kaa soo horjeedo ee ka nasashada lagu sheegay Cabashada. Raadi caawinta ka timid labadaba turjubaanka iyo qareenka. Karti la’aantaada aad ku fahmo, ku qoro, ama ku hadasho Af Ingiriisiga ma noqon doonto difaacida xukunkaaga suuralka ah ee adiga kugu lidka ah.

3. Russian

***Уведомление на разных языках:

Вы были названы в качестве ответчика в данном суде. Вы должны предоставить ответ в течение 28 дней; если Ваш ответ не будет получен, суд может вынести решение против Вас и удовлетворить содержащиеся в жалобе требования. Воспользуйтесь услугами переводчика и адвоката. Тот факт, что Вы не понимаете английскую речь и не можете читать и писать по-английски, не является препятствием для возможного вынесения судебного решения против Вас.

4. Arabic

***ملاحظة متعددة اللغات:

لقد تم اعتبارك مدعى عليه في هذه المحكمة. يجب أن تقدم ردًا خلال 28 يومًا؛ وإذا لم تقم بالرد، فقد تصدر المحكمة حكمًا ضدك بالتعويض المنصوص عليه في هذه الشكوى القضائية. اطلب المساعدة من مترجم فوري ومحامٍ. فلن تُعد عدم قدرتك على فهم اللغة الإنجليزية أو كتابتها أو تحدثها دفاعًا لك أمام الحكم المحتمل ضدك.

5. Chinese (Simplified)

*** 多語版本通知:

您在本法庭已被列为被告。您必须于 28 日内递交答辩状；如果没有递交答辩状，法庭会针对诉状中声明的补救措施对您作出不利判决。请向口译人员和律师寻求帮助。您无法理解、书写或说英语的情况不能作为对您可能作出不利判决的辩护理由。

INSTRUCTIONS FOR PERSONAL OR RESIDENCE SERVICE

To:_____

You are instructed to make personal--residence [cross out one] service upon defendant(s) _____
(name)
at _____
(address for service if different from body of summons).
_____

Special instructions for server:_____
_____
_____

* *

RETURN OF SERVICE OF SUMMONS
(PERSONAL)

Fees	
Service	$_____
Mileage	$_____
Copy	$_____
Docket	$_____
Return	$_____
Total	$_____

I received this summons on _____, 20____, at _____ o'clock, __.m., and made personal service of it upon _____by locating him -- them (cross out one) and tendering a copy of the summons and accompanying documents, on _____, 20 ___.

_____
Sheriff -- Bailiff -- Process Server
By _____
Deputy

* *

RETURN OF SERVICE OF SUMMONS
(RESIDENCE)

Fees	
Service	$_____
Mileage	$_____
Copy	$_____
Docket	$_____
Return	$_____
Total	$_____

I received this summons on _____, 20____, at _____ o'clock, __.m., and made residence service of it upon _____by leaving it at his -- their (cross out one) usual place of residence with _____, a person of suitable age and discretion then residing therein, a copy of the summons, a copy of the complaint and accompanying documents, on _____, 20 ___.

_____
Sheriff -- Bailiff -- Process Server
By _____
Deputy

* *

FORM 2. COMPLAINT ON A PROMISSORY NOTE

COURT OF COMMON PLEAS
FRANKLIN COUNTY, OHIO

A.B., Plaintiff (address)	))	
v.	)	No._____
C.D., Defendant (address)	))	COMPLAINT

1. Defendant on or about _____, 20____, executed and delivered to plaintiff a promissory note, a copy of which is hereto attached as Exhibit A.

2. Defendant owes to plaintiff the amount of said note and interest.

Wherefore plaintiff demands judgment against defendant for the sum of _____dollars, interest, and costs.

_____
(Attorney for Plaintiff)
_____
(Address)
_____

Note

1. The pleader should follow the form above if he has possession of a copy of the note. The pleader should attach a copy of the note to the pleading. See Rule 10(D).

2. Under the rules free joinder of claims is permitted. See Rule 8(E) and Rule 18. Consequently the claims set forth in each and all of the following forms may be joined with this complaint or with each other. Ordinarily each claim should be stated in a separate division of the complaint, and the divisions should be designated as counts successively numbered (i.e., COUNT ONE, COUNT TWO, etc.). See Rule 10(B). In particular the rules permit alternative and inconsistent pleading. See Rule 8(E)(2).

3. The attorney must sign the pleading. See Rule 11. The pleading need not be verified. See Rule 11.

[Effective: July 1, 1970.]

FORM 2A. COMPLAINT ON A PROMISSORY NOTE (REASON FOR OMISSION OF COPY STATED)

1. Defendant on or about_____, 20____, executed and delivered to plaintiff a promissory note

[in the following words and figures: (here set out the note verbatim)]

or

[whereby defendant promised to pay plaintiff or order on_____, 20 _____, the sum of _____ dollars with interest thereon at the rate of _____ percent per annum].

2. Plaintiff is unable to attach a copy of the said note because (here set out the reason for failure to attach the note).

3. Defendant owes to plaintiff the amount of said note and interest.

Wherefore (etc. as in Form 2).

Note

1. The pleader states why, under Rule 10(D), he is unable to attach a copy of the note.

2. If pleader can set forth the note verbatim from information at hand, he may do so.

3. Or pleader may plead the legal effect of the note, he being unable to attach a copy of the note.

4. This type form may be used in other situations whenever pleader is required to attach a copy of an instrument, but a copy of the instrument is not available to him.

[Effective: July 1, 1970.]

FORM 3. COMPLAINT ON AN ACCOUNT

Defendant owes plaintiff _____ dollars according to the account hereto annexed as Exhibit A.

Wherefore (etc. as in Form 2).

[Effective: July 1, 1970.]

FORM 4. COMPLAINT FOR GOODS SOLD AND DELIVERED

Defendant owes plaintiff _____ dollars for goods sold and delivered by plaintiff to defendant between_____, 20_____, and_____, 20_____.

Wherefore (etc. as in Form 2).

Note

This form may be used where the action is for an agreed price or for the reasonable value of the goods.

[Effective: July 1, 1970.]

FORM 5. COMPLAINT FOR MONEY LENT

Defendant owes plaintiff _____ dollars for money lent by plaintiff to defendant on_____, 20____.

Wherefore (etc. as in Form 2).

[Effective: July 1, 1970.]

FORM 6. COMPLAINT FOR MONEY PAID BY MISTAKE

Defendant owes plaintiff _____ dollars for money paid by plaintiff to defendant by mistake on_____, 20____, under the following circumstances: [here state the circumstances with particularity--see Rule 9(B)].

Wherefore (etc. as in Form 2).

[Effective: July 1, 1970.]

FORM 7. COMPLAINT FOR MONEY HAD AND RECEIVED

Defendant owes plaintiff _____ dollars for money had and received from one G.H. on_____, 20_____, to be paid by defendant to plaintiff.

Wherefore (etc. as in Form 2).

[Effective: July 1, 1970.]

FORM 8. COMPLAINT FOR NEGLIGENCE

1. On_____, 20_____, in a public highway called _____Street in_____, Ohio, defendant negligently drove a motor vehicle against plaintiff who was then crossing said highway.

2. As a result plaintiff was thrown down and had his leg broken and was otherwise injured, was prevented from transacting his business, suffered great pain of body and mind, and incurred expenses for medical attention and hospitalization in the sum of one thousand dollars.

Wherefore plaintiff demands judgment against defendant in the sum of _____ dollars and costs.

Note

Since contributory negligence is an affirmative defense, the complaint need contain no allegation of due care of plaintiff.

[Effective: July 1, 1970.]

FORM 9. COMPLAINT FOR NEGLIGENCE WHERE PLAINTIFF IS UNABLE TO DETERMINE DEFINITELY WHETHER THE PERSON RESPONSIBLE IS C.D. OR E.F. OR WHETHER BOTH ARE RESPONSIBLE AND WHERE HIS EVIDENCE MAY JUSTIFY A FINDING OF WILFULNESS OR OF RECKLESSNESS OR OF NEGLIGENCE

A.B., Plaintiff (address)	))	No. _____
v.	)	
C.D. and E.F., Defendants (addresses)	))	COMPLAINT

1. On ____, 19_, in a public highway called _____Street in ____, Ohio, defendant C.D. or defendant E.F., or both defendants C.D. and E.F. wilfully or recklessly or negligently drove or caused to be driven a motor vehicle against plaintiff who was then crossing said highway.

2. As a result plaintiff was thrown down and had his leg broken and was otherwise injured, was prevented from transacting his business, suffered great pain of body and mind, and incurred expenses for medical attention and hospitalization in the sum of one thousand dollars.

Wherefore plaintiff demands judgment against C.D. or against E.F. or against both in the sum of _____ dollars and costs.

[Effective: July 1, 1970.]

FORM 10. COMPLAINT FOR CONVERSION

On or about ____, 19_, defendant converted to his own use ten bonds of the ____ Company (here insert brief identification as by number and issue) of the value of _____dollars, the property of plaintiff.

Wherefore plaintiff demands judgment against defendant in the sum of ___ dollars, interest, and costs.

[Effective: July 1, 1970.]

FORM 11. COMPLAINT FOR SPECIFIC PERFORMANCE OF CONTRACT TO CONVEY LAND

1. On our about ____, 19_, plaintiff and defendant entered into an agreement in writing a copy of which is hereto annexed as Exhibit A.

2. In accord with the provisions of said agreement plaintiff tendered to defendant the purchase price and requested a conveyance of the land, but defendant refused to accept the tender and refused to make the conveyance.

3. Plaintiff now offers to pay the purchase price.

Wherefore plaintiff demands (1) that defendant be required specifically to perform said agreement, (2) damages in the sum of one thousand dollars, and (3) that if specific performance is not granted plaintiff have judgment against defendant in the sum of ____ dollars.

Note

The demand for relief seeks specific performance as well as ancillary damages resulting from the delay. In addition the demand for relief seeks damages in a certain sum if the court finds it impossible to grant specific performance as where, in the interim, defendant has conveyed the property to a purchaser for value without notice.

[Effective: July 1, 1970.]

FORM 12. COMPLAINT ON CLAIM FOR DEBT AND TO SET ASIDE FRAUDULENT CONVEYANCE UNDER RULE 18(B)

A.B., Plaintiff (address)	))	No. _____
v.	)	
C.D. and E.F., Defendants (addresses)	))	COMPLAINT

1. Defendant C.D. on or about ____ executed and delivered to plaintiff a promissory note, a copy of which is hereto annexed as Exhibit A.

2. Defendant C.D. owes to plaintiff the amount of said note and interest.

3. Defendant C.D. on or about ___ conveyed all his property, real and personal [or specify and describe] to defendant E.F. for the purpose of defrauding plaintiff and hindering and delaying the collection of the indebtedness evidenced by the note above referred to.

Wherefore plaintiff demands:

(1) That plaintiff have judgment against defendant C.D. for ____ dollars and interest; (2) that the aforesaid conveyance to defendant E.F. be declared void and the judgment herein be declared a lien on said property; (3) that plaintiff have judgment against the defendants for costs.

[Effective: July 1, 1970.]

FORM 13. COMPLAINT FOR INTERPLEADER AND DECLARATORY RELIEF

1. On or about ___, 19_, plaintiff issued to G.H. a policy of life insurance, a copy of which is attached as Exhibit A, whereby plaintiff promised to pay to K.L. as beneficiary the sum of ____ dollars upon the death of G.H. The policy required the payment by G.H. of a stipulated premium on ____, 19_, and annually thereafter as a condition precedent to its continuance in force.

2. No part of the premium due ____, 19_, was ever paid and the policy ceased to have any force or effect on ____, 19_.

3. Thereafter, on _____, 19_, G.H. and K.L. died as the result of a collision between a locomotive and the automobile in which G.H. and K.L. were riding.

4. Defendant C.D. is the duly appointed and acting executor of the will of G.H.; defendant E.F. is the duly appointed and acting executor of the will of K.L.; defendant X.Y. claims to have been duly designated as beneficiary of said policy in place of K.L.

5. Each of defendants, C.D., E.F., and X.Y. is claiming that the abovementioned policy was in full force and effect at the time of the death of G.H.; each of them is claiming to be the only person entitled to receive payment of the amount of the policy and has made demand for payment thereof.

6. By reason of these conflicting claims of the defendants, plaintiff is in great doubt as to which defendant is entitled to be paid the amount of the policy, if it was in force at the death of G.H.

Wherefore plaintiff demands that the court adjudge:

(1) That none of the defendants is entitled to recover from plaintiff the amount of said policy or any part thereof.

(2) That each of the defendants be restrained from instituting any action against plaintiff for the recovery of the amount of said policy or any part thereof.

(3) That, if the court shall determine that said policy was in force at the death of G.H., the defendants be required to interplead and settle between themselves their rights to the money due under said policy, and that plaintiff be discharged from all liability in the premises except to the person whom the court shall adjudge entitled to the amount of said policy.

(4) That plaintiff recover its costs.

[Effective: July 1, 1970.]

FORM 14. MOTION TO DISMISS, PRESENTING DEFENSES OF FAILURE TO STATE A CLAIM, OF LACK OF SERVICE OF PROCESS, AND OF LACK OF JURISDICTION UNDER RULE 12(B)

COURT OF COMMON PLEAS
FRANKLIN COUNTY, OHIO

A.B., Plaintiff (address)	))	No. _____
v.	)	
C.D. Corporation, Defendant (address)	))	MOTION TO DISMISS

The defendant moves the court as follows:

1. To dismiss the action because the complaint fails to state a claim against defendant upon which relief can be granted.

2. To dismiss the action or in lieu thereof to quash the return of service of summons on the grounds (a) that the defendant is a corporation organized under the laws of Delaware and was not and is not subject to service of process within this state, and (b) that the defendant has not been properly served with process in this action, all of which more clearly appears in the affidavits of M.N. and X.Y. hereto attached as Exhibit A and Exhibit B, respectively.

3. To dismiss the action on the ground that the court lacks jurisdiction because [here state the reasons why the court lacks jurisdiction].

_____
(Attorney for Defendant)

_____
(Address)

_____

SERVICE OF COPY

A copy hereof was served upon X.Y., attorney for plaintiff, by mailing it to him on June 1, 19 [or set forth other method of service upon X.Y.].

_____
(Attorney for Defendant)

Note

1. The form gives various examples of defenses which may be raised by motion under Rule 12(B).

2. Whether the motion should be accompanied by a notice of hearing on the motion or whether the motion should be accompanied by a memorandum brief depends upon the rules of a particular local court. See Rule 7(B) and the rules of the local court regarding motion practice.

3. All papers after the original pleading required to be served upon an opposite party shall have endorsed thereon, when filed with the court, a statement setting forth the date and method of service. See Rule 5.

[Effective: July 1, 1970; amended effective July 1, 1971.]

FORM 15. ANSWER PRESENTING DEFENSES UNDER RULE 12(B)

A.B., Plaintiff (address)	))	No. _____
v.	)	
C.D. and E.F., Defendants (addresses)	))	ANSWER, COUNTERCLAIM, AND CROSS-CLAIM

FIRST DEFENSE

The complaint fails to state a claim against defendant C.D. upon which relief can be granted.

SECOND DEFENSE

If defendant C.D. is indebted to plaintiff for the goods mentioned in the complaint, he is indebted to him jointly with G.H. G.H. is alive, is a resident of this state, is subject to the jurisdiction of this court and can be made a party but has not been made one.

THIRD DEFENSE

Defendant C.D. admits the allegation contained in paragraphs 1 and 4 of the complaint; alleges that he is without knowledge or information sufficient to form a belief as to the truth of the allegations contained in paragraph 2 of the complaint; and denies each and every other allegation contained in the complaint.

FOURTH DEFENSE

The right of action set forth in the complaint did not accrue within ____ years next before the commencement of this action.

COUNTERCLAIM

[Here set forth any claim as a counterclaim in the manner in which a claim is pleaded in a complaint.]

CROSS-CLAIM AGAINST DEFENDANT M.N.

[Here set forth the claim constituting a cross-claim against defendant M.N. in the manner in which a claim is pleaded in a complaint.]

_____
(Attorney for Defendant, C.D.)

_____
(Address)
_____

(Service of Copy as in Form 14)

Note

1. The above form contains examples of certain defenses provided for in Rule 12(B). The first defense challenges the legal sufficiency of the complaint. It is a substitute for a motion to dismiss; that is, under former practice the issue raised by the first defense would have been raised by demurrer, and under present practice the same issue might have been raised by motion at the option of the defendant. See Rule 12(B).

2. The second defense embodies the old plea in abatement. The decision thereon, however, may, for example, well provide under Rule 19(A) or Rule 21 for the citing in of the party rather than an abatement of the action.

3. The third defense is an answer on the merits.

4. The fourth defense is one of the affirmative defenses provided for in Rule 8(C).

5. The answer also includes a counterclaim and a cross-claim. See Rule 12(B).

[Effective: July 1, 1970.]

FORM 16. SUMMONS AGAINST THIRD-PARTY DEFENDANT

COURT OF COMMON PLEAS
FRANKLIN COUNTY, OHIO

A.B., Plaintiff	)	
(address)	)	
v.	)	
C.D., Defendant and Third-Party Plaintiff	)	No. _____
(address)	)	SUMMONS
v.	)	
E.F., Third-Party Defendant	)	
(address)	)	

To the above-named Third-Party Defendant:

You are hereby summoned and required to serve upon _____, plaintiff's attorney whose address is ____ and upon ____, who is attorney for C.D., defendant and third-party plaintiff, and whose address is ____, an answer to the third-party complaint which is herewith served upon you within twenty-eight days after the service of this summons upon you exclusive of the day of service. If you fail to do so, judgment by default will be taken against you for the relief demanded in the third-party complaint. There is also served upon you herewith a copy of the complaint of the plaintiff which you may but are not required to answer. Your answer to the third-party complaint and your answer to the plaintiff's complaint must also be filed with the court.

_____
(Clerk of Court)
By _____ Deputy Clerk

Dated _____

Note

It may be necessary, depending upon when the third-party complaint is served, to seek leave of court by motion to bring in a third-party defendant. See Rule 14(A).

[Effective: July 1, 1970.]

FORM 16A. COMPLAINT AGAINST THIRD-PARTY DEFENDANT

COURT OF COMMON PLEAS
FRANKLIN COUNTY, OHIO

A.B., Plaintiff	)	
(address)	)	
v.	)	
C.D., Defendant and Third-Party Plaintiff	)	No. _____
(address)	)	THIRD-PARTY COMPLAINT
v.	)	
E.F., Third-Party Defendant	)	
(address)	)	

1. Plaintiff A.B. has filed against defendant C.D. a complaint, a copy of which is hereto attached as Exhibit A.

2. [Here state the grounds upon which C.D. is entitled to recover from E.F., all or part of what A.B. may recover from C.D. The statement should be framed as in an original complaint.]

Wherefore C.D. demands judgment against third-party defendant E.F. for all sums [make appropriate change where C.D. is entitled to only partial recovery over against E.F.] that may be adjudged against defendant C.D. in favor of plaintiff A.B.

_____
(Attorney for C.D.,
Third-Party Plaintiff)

_____
(Address)

_____

Note

It is necessary to comply with Rule 5 regarding service of third-party papers on plaintiff.

[Effective: July 1, 1970.]

FORM 17. MOTION TO INTERVENE AS A DEFENDANT UNDER RULE 24

COURT OF COMMON PLEAS
FRANKLIN COUNTY, OHIO

A.B., Plaintiff	)	
(address)	)	No. ___
v.	)	
C.D., Defendant	)	MOTION TO INTERVENE
(address)	)	AS A DEFENDANT
E.F., Applicant for Intervention	)	
(address)	)	

E.F. moves for leave to intervene as a defendant in this action in order to assert the defenses set forth in his proposed answer, of which a copy is hereto attached, on the ground that [here insert the appropriate grounds of intervention].

_____
(Attorney for E.F.,
Applicant for Intervention)

_____
(Address)

(Adopted eff. 7-1-70)

Note (Amended Effective July 1, 1999)

It is necessary that a motion to intervene be accompanied by a pleading as required in Civ.R. 24(C). It is also necessary to comply with Civ.R. 5 regarding service of the motion on the parties to the action.

FORM 18. JUDGMENT ON JURY VERDICT

COURT OF COMMON PLEAS
FRANKLIN COUNTY OHIO

A.B., Plaintiff	)	
(address)	)	No. _____
v.	)	
C.D., Defendant	)	JUDGMENT
(address)	)	

This action came on for trial before the Court and a jury, and the issues having been duly tried and the jury having duly rendered its verdict,

It is ordered and adjudged [that the plaintiff A.B. recover of the defendant C.D. the sum of ___, with interest thereon at the rate of ___ percent as provided by law, and his costs of action.]

[that the plaintiff take nothing, that the action be dismissed on the merits, and that the defendant C.D. recover of the plaintiff A.B. his costs of action.]

Dated at ___, Ohio, this ___ day of ___ , 19_

_____
Judge, Court of Common Pleas

Journalized this ___ day of ___, 19_

_____
Clerk of Court

By _____ Deputy Clerk

Note

This form is illustrative of the judgment to be entered upon the general verdict of a jury. It deals with the cases where there is a general jury verdict awarding the plaintiff money damages or finding for the defendant, but is adaptable to other situations of jury verdict.

[Effective: July 1, 1970.]

FORM 19. JUDGMENT ON DECISION BY THE COURT

COURT OF COMMON PLEAS
FRANKLIN COUNTY, OHIO

A.B., Plaintiff	)	
(address)	)	No. _____
v.	)	
C.D., Defendant	)	JUDGMENT
(address)	)	

This action came on for [trial] [hearing] before the Court, and the issues having been duly [tried] [heard] and a decision having been duly rendered,

It is ordered and adjudged [that the plaintiff A.B. recover of the defendant C.D. the sum of ___, with interest thereon at the rate of ___ percent as provided by law, and his costs of action.]

[that the plaintiff take nothing, that the action be dismissed on the merits, and that the defendant C.D. recover of the plaintiff A.B. his costs of action.]

Dated at ___, Ohio, this ___ day of ___, 19_

_____
Judge, Court of Common Pleas

Journalized this ___ day of ___, 19_

_____
Clerk of Court

By _____ Deputy Clerk

Note

This form is illustrative of the judgment to be entered upon a decision of the court. It deals with the cases of decisions by the court awarding a party only money damages or costs, but is adaptable to other decisions by the court.

[Effective: July 1, 1970.]

FORM 20. CIVIL FEE WAIVER AFFIDAVIT AND ORDER

IN _____

_____

	)	CASE NO.
	)	
Plaintiff,	)	JUDGE
	)	
vs.	)	
	)	**FINANCIAL DISCLOSURE / FEE-**
	)	**WAIVER AFFIDAVIT**
Defendant.	)	**AND ORDER**

Pursuant to R.C. 2323.311, the below-named Applicant requests that the Court determine that the Applicant is an indigent litigant and be granted a waiver of the prepayment of costs or fees in the above captioned matter. The Applicant submits the following information in support of said request.

Personal Information	
Applicant's First Name	Applicant's Last Name
Applicant's Date of Birth	Last 4 Digits of Applicant's SSN
Applicant's Address	

Other Persons Living in Your Household			
First Name	Last Name	Is this person a child under 18?	Relationship (Spouse or Child)
		☐ Yes ☐ No	
		☐ Yes ☐ No	
		☐ Yes ☐ No	

Public Benefits

I receive the following public benefits and my gross income, including the cash benefits marked below, does not exceed **187.5%** of the federal poverty guidelines.

Place an "X" next to any benefits you receive.

Ohio Works First[1]: ___ SSI[2]: ___ Medicaid[3]: ___ Veterans Pension Benefit[4]: ___ SNAP / Food Stamps[5]: ___

Monthly Income

I am **NOT** able to access my spouse's income ☐

	Applicant	Spouse (If Living in Household)	Total Monthly Income

Gross Monthly Employment Income, including Self-Employment Income (Before Taxes)	**$**	**$**	**$**
Unemployment, Worker's Compensation, Spousal Support (If Receiving)	**$**	**$**	**$**
		TOTAL MONTHLY INCOME	**$**

Liquid Assets	
Type of Asset	**Estimated Value**
Cash on Hand	**$**
Available Cash in Checking, Savings, Money Market Accounts	**$**
Stocks, Bonds, CDs	**$**
Other Liquid Assets	**$**
Total Liquid Assets	**$**

Monthly Expenses

Column A			**Column B**	
Type of Expense	**Amount**		**Type of Expense**	**Amount**
Rent / Mortgage / Property Tax / Insurance	**$**		Insurance (Medical, Dental, Auto, etc.)	**$**
Food / Paper Products/Cleaning Products/Toiletries	**$**		Child or Spousal Support that You Pay	**$**
Utilities (Heat, Gas, Electric, Water / Sewer, Trash)	**$**		Medical / Dental Expenses or Associated Costs of Caring for a Sick or Disabled Family Member	**$**
Transportation / Gas	**$**		Credit Card, Other Loans	**$**
Phone	**$**		Taxes Withheld or Owed	**$**
Child Care	**$**		Other (e.g. garnishments)	**$**
Total Column A Expenses	**$**		**Total Column B Expenses**	**$**
TOTAL MONTHLY EXPENSES (Column A + Column B)				

I, _____, hereby certify that the information I have provided on
(Print Name)
this financial disclosure form is true to the best of my knowledge and that I am unable to prepay the costs or fees in this case.

_____
Signature

NOTARY PUBLIC:
Sworn to before me and signed in my presence this _____ day of _____, 20_____, in _____ County, Ohio.

_____
Notary Public (Signature)

_____
Notary Public (Printed)
My Commission expires:_____

If available, an individual duly authorized to administer this oath at the Clerk of Court's Office will do so at no cost to the Applicant.

ORDER

☐ Upon the request of the Applicant and the Court's review, the Court finds that the Applicant IS an indigent litigant and **GRANTS** a waiver of the prepayment of costs or fees in this matter. Pursuant to R.C. 2323.311(B)(3), upon the filing of a civil action or proceeding and the affidavit of indigency under division (B)(1) of this section, the clerk of the court shall accept the action, motion, or proceeding for filing.

☐ Upon the request of the Applicant and the Court's review, the Court finds that the Applicant is NOT an indigent litigant and **DENIES** a waiver of the prepayment of costs or fees in this matter. Applicant is granted thirty (30) days from the issuance of this Order to make the required advance deposit or security. Failure to do so within the time allotted may result in dismissal of the applicant's filing.

IT IS SO ORDERED

_____ _____

Judge / Magistrate Date

[Effective: April 15, 2020; amended effective April 15, 2022; July 1, 2023.]

APPENDIX

R.C. 2323.311(B)

(4) A judge or magistrate of the court shall review the affidavit of indigency as filed pursuant to division (B)(2) of this section and shall approve or deny the applicant's application to qualify as an indigent litigant. The judge or magistrate shall approve the application if the applicant's gross income does not exceed one hundred eighty-seven and five-tenths per cent of the federal poverty guidelines as determined by the United States department of health and human services for the state of Ohio and the applicant's monthly expenses are equal to or in excess of the applicant's liquid assets as specified in division (C)(2) of section 120-1-03 of the Administrative Code, as amended, or a substantially similar provision. If the application is approved, the clerk shall waive the advance deposit or security and the court shall proceed with the civil action or proceeding. If the application is denied, the clerk shall retain the filing of the action or proceeding, and the court shall issue an order granting the applicant whose application is denied thirty days to make the required advance deposit or security, prior to any dismissal or other action on the filing of the civil action or proceeding.

(6) Nothing in this section shall prevent a court from approving or affirming an application to qualify as an indigent litigant for an applicant whose gross income exceeds one hundred eighty-seven and five-tenths per cent of the federal poverty guidelines as determined by the United States department of health and human services for the state of Ohio, or whose liquid assets equal or exceed the applicant's monthly expenses as specified in division (C)(2) of section 120-1-03 of the Administrative Code, as amended, or a substantially similar provision.

---

[1]Ohio Works First Income Limit: 50% FPL (R.C. 5107.10(D)(1)(a))
[2]SSI Income Limit: cannot have countable income that exceeds the Federal Benefit Rate (FBR). 2019 FBR: $771 monthly for single disabled individual; $1157 monthly for disabled couple (20 CFR 416.1100)
[3]Medicaid Income Limit:
Modified Adjusted Gross Income (MAGI):138% FPL (OAC 5160:1-4-01; 42 USC 1396a(a)(10)(A)(i)(VIII))
Aged, Blind or Disabled: $791 for single person; $1177 for disabled couple
[4]Veterans Pension Benefit Income Limit: $13,535 annually / $1,127 monthly for a single person; $17,724 annually / $1,477 monthly for a veteran with one dependent
[5]Supplemental Nutrition Assistance Program (SNAP) Income Limit: 130% FPL for assistance groups with nondisabled/nonelderly member; 165% FPL for elderly and disabled assistance groups (OAC 5101:4-4-11; Food Assistance Change Transmittal No. 61)

IN THE COURT OF COMMON PLEAS
_____ DIVISION
_____ COUNTY, OHIO

_____
Plaintiff/Petitioner 1

vs./and

_____
Defendant/Petitioner 2

Case No. _____

Judge_____

Magistrate _____

Instructions: Check local court rules to determine when this form must be filed. This affidavit is used to make complete disclosure of income, expenses, and money owed. It is used to determine child and spousal support. Do not leave any category blank. For each item, if none, put "NONE." If you do not know exact figures for any item, give your best estimate, and put "EST." **If you need more space, add additional pages.**

AFFIDAVIT OF BASIC INFORMATION, INCOME, AND EXPENSES

Affidavit of _____
(Print Name)

Date of marriage_____Date of separation _____

SECTION I – BASIC INFORMATION

Plaintiff/Petitioner 1	Defendant/Petitioner 2
Date of Birth _____	Date of Birth _____
Last 4 Digits of Social Security # XXX-XX-_____	Last 4 Digits of Social Security # XXX-XX-_____
Phone Number_____	Phone Number_____
Email Address_____	Email Address_____
Is an interpreter needed? ☐ Yes or ☐ No If yes, explain: _____	Is an interpreter needed? ☐ Yes or ☐ No If yes, explain: _____
Health: ☐ Good ☐ Fair ☐ Poor If health is not good, please explain:	Health: ☐ Good ☐ Fair ☐ Poor If health is not good, please explain:

Education: (*Check highest level achieved*) ☐ Grade School ☐ High School ☐ Associate ☐ Bachelor's ☐ Post Graduate	Education: (*Check highest level achieved*) ☐ Grade School ☐ High School ☐ Associate ☐ Bachelor's ☐ Post Graduate
Other Technical Certifications: Active Member of the U.S. Military ☐ Yes ☐ No	Other Technical Certifications: Active Member of the U.S. Military ☐ Yes ☐ No

SECTION II – INCOME

	Plaintiff/Petitioner 1	**Defendant/Petitioner 2**
Employed	☐ Yes ☐ No	☐ Yes ☐ No
Date of Employment	_____	_____
Name of Employer	_____	_____
Payroll Address	_____	_____
Payroll City, State, Zip	_____	_____
Scheduled Paychecks Per Year	☐ 12 ☐ 24 ☐ 26 ☐ 52	☐ 12 ☐ 24 ☐ 26 ☐ 52

A. YEARLY INCOME, OVERTIME, COMMISSIONS, AND BONUSES FOR PAST THREE YEARS

	Plaintiff/Petitioner 1		Year	**Defendant/Petitioner 2**
Base yearly income	$_____	3 years ago —	20__	$ _____
	$_____	2 years ago —	20__	$ _____
	$_____	Last year —	20__	$ _____
Yearly overtime, commissions, and/or bonuses	$_____	3 years ago —	20__	$_____
	$_____	2 years ago —	20__	$_____
	$_____	Last year —	20__	$_____

B. COMPUTATION OF CURRENT INCOME

	Plaintiff/Petitioner 1	**Defendant/Petitioner 2**
Base Yearly Income	$_____	$_____
Average yearly overtime, commissions, and/or bonuses over last 3 years (from part A)	$_____	$_____

Unemployment Compensation	$_____	$_____
Disability Benefits		
Workers' Compensation	$_____	$_____
Social Security	$_____	$_____
Other: _____	$_____	$_____
Retirement Benefits		
Social Security	$_____	$_____
Other: _____	$_____	$_____
Spousal Support Received	$_____	$_____
Interest and dividend income (*source*) _____	$_____	$_____
Other income (*type and source*) _____	$_____	$_____
TOTAL YEARLY INCOME	$_____	$_____
Supplemental Security Income (SSI) and/or public assistance	$_____	$_____
Social Security or Veteran's benefits received for child(ren) ☐ Based on parent's disability ☐ Based on child's disability	$_____	$_____
Child support you receive from a child support enforcement agency or court order for minor and/or dependent child(ren) not of the marriage or relationship	$_____	$_____

SECTION III – CHILDREN AND HOUSEHOLD RESIDENTS

Minor and/or dependent child(ren) who is/are adopted or born from this marriage or relationship:

Name	Date of birth	Living with

In addition to the above child(ren):
Plaintiff/Petitioner 1 has_____other minor biological or adopted child(ren).
Defendant/Petitioner 2 has_____other minor biological or adopted child(ren).
There is/are_____adult(s) in your household.

SECTION IV – EXPENSES

List monthly expenses below for your present household.

A. MONTHLY HOUSING EXPENSES

Rent or first mortgage (including taxes and insurance)	$_____
Second mortgage/equity line of credit	$_____
Real estate taxes (if not included above)	$_____
Renter or homeowner's insurance (if not included above)	$_____
Homeowner or condominium association fee	$_____
Utilities	
° Electric	$_____
° Gas, fuel oil, propane	$_____
° Water and sewer	$_____
° Telephone and/or cell phone	$_____
° Trash collection	$_____
° Cable/satellite television	$_____
° Internet service	$_____
Cleaning	$_____
Lawn service and/or snow removal	$_____
Other: _____	$_____
_____	$_____
TOTAL MONTHLY:	**$**_____

B. OTHER MONTHLY LIVING EXPENSES

Food	
° Groceries (including food, paper, cleaning products, toiletries, and other)	$_____
° Restaurant	$_____
Transportation	
° Vehicle loan, lease	$_____
° Vehicle maintenance	$_____
° Gasoline	$_____

° Parking, public transportation $_____

Clothing

° Clothes (other than child(ren)'s) $_____

° Dry cleaning and laundry $_____

Personal grooming

° Hair and nail care $_____

° Other: _____ $_____

Other: _____ $_____

TOTAL MONTHLY: $_____

C. MONTHLY MINOR CHILD-RELATED EXPENSES
(for child(ren) of the marriage or relationship)

Work and/or education-related child care $_____

Other child care $_____

Extraordinary parenting time travel cost $_____

School tuition $_____

School lunches $_____

School supplies $_____

Extracurricular activities and lessons $_____

Clothing $_____

Child(ren)'s allowances $_____

Special and extraordinary needs of child(ren) (not included elsewhere) $_____

Other: _____ $_____

TOTAL MONTHLY: $_____

D. MONTHLY INSURANCE PREMIUMS

Life $_____

Auto $_____

Health $_____

Disability $_____

Other: _____ $_____

TOTAL MONTHLY: $_____

E. MONTHLY WORK AND EDUCATION EXPENSES FOR SELF

Mandatory work expenses (union dues, uniforms, or other)	$_____
Additional income taxes paid (not deducted from wages)	$_____
Tuition	$_____
Books, fees, and other	$_____
College loan	$_____
Other: _____	$_____
_____	$_____
TOTAL MONTHLY:	**$**_____

F. MONTHLY HEALTH CARE EXPENSES
(not covered by insurance)

Physicians	$_____
Dentists and orthodontists	$_____
Optometrists and opticians	$_____
Prescriptions	$_____
Other: _____	$_____
TOTAL MONTHLY:	**$**_____

G. MISCELLANEOUS MONTHLY EXPENSES

Extraordinary obligations for other minor/handicapped child(ren) [for child(ren) who were not born of this marriage or relationship and were not adopted by these parties]	$_____
Child support for child(ren) who were not born of this marriage or relationship and were not adopted by these parties	$_____
Expenses paid for adult child(ren) or other dependent(s)	$_____
Spousal support paid to former spouse(s)	$_____
Subscriptions and books	$_____
Charitable contributions	$_____
Memberships (associations and clubs)	$_____
Travel and vacations	$_____
Pets	$_____
Gifts	$_____
Attorney fees	$_____

Other: _____ $_____

_____ $_____

TOTAL MONTHLY: $_____

H. MONTHLY INSTALLMENT PAYMENTS INCLUDING BANKRUPTCY PAYMENTS

(*Do not repeat expenses already listed.*)
Examples: car, credit card, rent-to-own, or cash advance payments

To whom paid	Purpose	Balance due	Monthly payment
			$
			$
			$
			$
			$
			$
			$
			$
			$
			$
			$
			$
		TOTAL MONTHLY:	**$**

GRAND TOTAL MONTHLY EXPENSES (Sum of A through H): $_____

OATH OR AFFIRMATION

(*Do not sign until Notary Public is present*)

I, (print name)_____, swear or affirm that I have read this Affidavit and, to the best of my knowledge and belief, the facts and information stated in this Affidavit are true, accurate, and complete. I understand that if I do not tell the truth, I may be subject to penalties for perjury.

_____

Your Signature

STATE OF _____)

) SS

COUNTY OF _____)

Sworn to or affirmed before me by_____this_____day of_____,_____.

_____

Signature of Notary Public

_____

Printed Name of Notary Public

Commission Expiration Date: _____

(Affix seal here)

IN THE COURT OF COMMON PLEAS
_____ DIVISION
_____ COUNTY, OHIO

_____
Plaintiff/Petitioner 1

vs./and

_____
Defendant/Petitioner 2

Case No. _____

Judge _____

Magistrate _____

Instructions: Check local court rules to determine when this form must be filed. List ALL OF YOUR PROPERTY AND DEBTS, THE PROPERTY AND DEBTS OF YOUR SPOUSE, AND ANY JOINT PROPERTY OR DEBTS. You must provide the most recent value for each asset and balance owed for each debt. Do not leave any category blank. For each item, if none, put "NONE." If you do not know exact figures for any item, give your best estimate, and put "EST." **If more space is needed, add additional pages.**

AFFIDAVIT OF PROPERTY AND DEBT

Affidavit of _____
(Print Name)

I. REAL ESTATE INTERESTS

	Address	Present Fair Market Value	Titled To	Mortgage Balance	Equity
1.	_____	$_____	_____	$_____	$_____
2.	_____	$_____	_____	$_____	$_____

TOTAL SECTION I: REAL ESTATE INTERESTS: $_____

II. OTHER ASSETS

	Category	Description	Titled To	Value
	A. Vehicles and Other Certificate of Title Property	(Include model and year of automobiles, trucks, motorcycles, boats, motors, motor homes, trailers, ATVs, snowmobiles, jet skis, etc.)		
1.	_____	_____	_____	$ _____
2.	_____	_____	_____	$ _____

	Category	Description	Titled To	Value
3.	_____	_____	_____	$ _____
4.	_____	_____	_____	$ _____
5.	_____	_____	_____	$ _____
6.	_____	_____	_____	$ _____

B. Financial Accounts (Include checking, savings, CDs, POD accounts, money market accounts, etc.)

1.	_____	_____	_____	$ _____
2.	_____	_____	_____	$ _____
3.	_____	_____	_____	$ _____
4.	_____	_____	_____	$ _____

C. Pensions & Retirement Plans (Include profit-sharing, IRAs, 401(k) plans, etc. Describe each type of plan)

1.	_____	_____	_____	$ _____
2.	_____	_____	_____	$ _____
3.	_____	_____	_____	$ _____
4.	_____	_____	_____	$ _____

D. Publicly Held Stocks, Bonds, Securities & Mutual Funds (Name of company and number of shares)

1.	_____	_____	_____	$ _____
2.	_____	_____	_____	$ _____
3.	_____	_____	_____	$ _____
4.	_____	_____	_____	$ _____

Category	Description	Titled To	Value
E. Closely Held Stocks & Other Business Interests and Name of Company	(Type of ownership and number of shares)		
1. _____	_____	_____	$ _____
2. _____	_____	_____	$ _____
F. Life Insurance (Company Name and Term or Whole Life)	(Insured Life)		Cash Value and Loan Balance, if any
1. _____	_____	_____	$ _____
2. _____	_____	_____	$ _____
3. _____	_____	_____	$ _____
4. _____	_____	_____	$ _____
G. Furniture & Household Goods, Furnishings, and Appliances			
1. _____	_____	_____	$ _____
2. _____	_____	_____	$ _____
3. _____	_____	_____	$ _____
4. _____	_____	_____	$ _____
H. Safe Deposit Box (Give location and contents)			
1. _____	_____	_____	$ _____
2. _____	_____	_____	$ _____
3. _____	_____	_____	$ _____
4. _____	_____	_____	$ _____
I. All Other Assets Not Listed Above (including jewelry, art, tools, firearms, and other collectibles)	(If necessary, attach additional pages)		
1. _____	_____	_____	$ _____
2. _____	_____	_____	$ _____

TOTAL SECTION II: OTHER ASSETS: $ _____

III. SEPARATE PROPERTY CLAIMS
Separate property includes, but is not limited to, property owned before marriage and gifts or inheritances to only one spouse.

	Description		Why do you claim this as separate property?	Present Fair Market Value
1.	_____	_____	_____	$ _____
2.	_____	_____	_____	$ _____
3.	_____	_____	_____	$ _____
4.	_____	_____	_____	$ _____

TOTAL SECTION III: SEPARATE PROPERTY CLAIMS: $ _____

IV. DEBT

List ALL OF YOUR DEBTS, your spouse's debts, and any joint debts. Do not leave any category blank. For each item, if none, put "NONE." If you don't know exact figures for any item, give your best estimate, and put "EST." **If more space is needed to explain, please attach an additional page with the explanation and identify which question you are answering.**

	Type	Name of Creditor	Name on Account	Total Debt Due	Monthly Payment
	A. Secured Debt (Mortgages, Car, etc.)				
1.	_____	_____	_____	$_____	$_____
2.	_____	_____	_____	$_____	$_____
3.	_____	_____	_____	$_____	$_____
4.	_____	_____	_____	$_____	$_____
5.	_____	_____	_____	$_____	$_____
	B. Unsecured Debt (Credit cards, medical bills, other debts)				
1.	_____	_____	_____	$_____	$_____
2.	_____	_____	_____	$_____	$_____
3.	_____	_____	_____	$_____	$_____

	Type	Name of Creditor	Name on Account	Total Debt Due	Monthly Payment
4.	_____	_____	_____	$_____	$_____
5.	_____	_____	_____	$_____	$_____

TOTAL SECTION IV: DEBT: $ _____

V. BANKRUPTCY

	Filed by	Date of Filing	Date of Discharge or Relief from Stay	Type of Case (Ch. 7, 11, 12, 13)	Current Monthly Payments
1.	_____	_____	_____	$_____	$_____
2.	_____	_____	_____	$_____	$_____

TOTAL SECTION V: BANKRUPTCY: $ _____

OATH OR AFFIRMATION

(Do not sign until Notary Public is present)

I, (print name)_____, swear or affirm that I have read this Affidavit and, to the best of my knowledge and belief, the facts and information stated in this Affidavit are true, accurate, and complete. I understand that if I do not tell the truth, I may be subject to penalties for perjury.

_____
Your Signature

STATE OF _____)
) SS
COUNTY OF _____)

Sworn to or affirmed before me by_____this_____day of_____,_____.

_____
Signature of Notary Public

_____
Printed Name of Notary Public

(Affix seal here)

Commission Expiration Date: _____

IN THE COURT OF COMMON PLEAS
_____ DIVISION
_____ COUNTY, OHIO

_____ Case No. _____
Plaintiff/Petitioner 1

Judge _____

vs./and

Magistrate _____

_____
Defendant/Petitioner 2/Respondent

Instructions: Check local court rules to determine when this form must be filed. By law, this affidavit must be filed and served with any Complaint, Petition or Motion regarding the allocation of parental rights and responsibilities, parenting time, custody, or visitation. Each party has a continuing duty while this case is pending to inform the Court of any parenting proceeding concerning the child(ren) in any other court in this or any other state. **If more space is needed, add additional pages.**

PARENTING PROCEEDING AFFIDAVIT (R.C. 3127.23(A))

Affidavit of _____
(Print Name)

ONLY CHECK THE FOLLOWING BOX IF YOU BELIEVE THAT THE HEALTH, SAFETY, OR LIBERTY OF YOURSELF OR YOUR CHILD(REN) WOULD BE JEOPARDIZED BY THE DISCLOSURE OF YOUR ADDRESS OR IDENTIFYING INFORMATION. YOU ACKNOWLEDGE THAT THE COURT MAY CONDUCT A HEARING REGARDING THE BASIS FOR YOUR REQUEST.

☐ Pursuant to R.C. 3127.23(D), I allege that my health, safety, or liberty or that of my child(ren) would be jeopardized by the disclosure of identifying information to my spouse or the public. Therefore, I request that my address be placed under seal. I have marked the corresponding box next to each address I am requesting to be sealed.

1. (Number): _____ Minor child(ren) is/are subject to this case as follows:

Insert the information requested below for all minor or dependent children of the parties. You must list the residences for all places where the children have lived for the last **FIVE** years.

a. Child's name _____		**Place of birth** _____	**Date of birth** _____	**Sex** ☐ **M** ☐ **F**
Date of residence	Address Confidential	Person child lived with (name and address)		Relationship
_____ to present	☐	_____ _____		_____
_____ to _____	☐	_____ _____		_____

_____ to _____	☐	_____ _____	_____
_____ to _____	☐	_____ _____	_____

b. Child's name _____	**Place of birth** _____	**Date of birth** _____	**Sex** ☐ **M** ☐ **F**

☐ Check this box if the information below is the same as in Section 1(a). Skip to the next question.

Date of residence	Address Confidential	Person child lived with (name and address)	Relationship
_____ to present	☐	_____ _____	_____
_____ to _____	☐	_____ _____	_____
_____ to _____	☐	_____ _____	_____
_____ to _____	☐	_____ _____	_____

c. Child's name _____	**Place of birth** _____	**Date of birth** _____	**Sex** ☐ **M** ☐ **F**

☐ Check this box if the information below is the same as in Section 1(a). Skip to the next question.

Date of residence	Address Confidential	Person child lived with (name and address)	Relationship
_____ to present	☐	_____ _____	_____
_____ to _____	☐	_____ _____	_____
_____ to _____	☐	_____ _____	_____
_____ to _____	☐	_____ _____	_____

d. Additional children are listed on Attachment 1(d). (Provide requested information for additional children on an attachment labeled 1(d).)

2. Participation in custody case(s): (*Check only one box*)

☐ I **HAVE NOT** participated as a party, witness, or in any capacity in any other case, in this or any other state, concerning the custody of or visitation (parenting time), with any child subject to this case.

☐ I **HAVE** participated as a party, witness, or in any capacity in any other case, in this or any other state, concerning the custody of or visitation (parenting time), with any child subject to this case.

Explain: _____

_____

a. Name of each child: _____

b. Type of case: _____

c. Court and State: _____

d. Date and court order or judgment (if any): _____

3. Information about custody case(s): **(*Check only one box*)**

☐ I **HAVE NO INFORMATION** of any cases that could affect the current case, including any cases relating to custody; domestic violence or protection orders; dependency, neglect, or abuse allegations; or adoptions concerning any child subject to this case.

☐ I **HAVE THE FOLLOWING INFORMATION** concerning cases that could affect the current case, including any cases relating to custody; domestic violence or protection orders; dependency, neglect, or abuse allegations; or adoptions concerning a child subject to this case, other than listed in Paragraph 2.

Explain: _____

_____

a. Name of each child: _____

b. Type of case: _____

c. Court and State: _____

d. Date and court order or judgment (if any): _____

4. Information about criminal convictions:

List all of the criminal convictions, including guilty pleas, for you and the members of your household for the following offenses: any criminal offense involving acts that resulted in a child being abused or neglected; any domestic violence offense that is a violation of R.C. 2919.25; any sexually oriented offense as defined in R.C. 2950.01; and any offense involving a victim who was a family or household member at the time of the offense and caused physical harm to the victim during the commission of the offense.

NAME	CASE NUMBER	COURT/COUNTY/STATE	CHARGE

5. Persons not a party to this case: (*Check only one box*)

☐ I **DO NOT KNOW OF ANY PERSON** not a party to this case who has physical custody or claims to have custody or visitation rights with respect to any child subject to this case.

☐ I **KNOW THAT THE FOLLOWING NAMED PERSON(S)** not a party to this case has/have physical custody or claim(s) to have custody or visitation rights with respect to any child subject to this case.

a. Name/Address of Person: _____
☐ has physical custody ☐ claims custody rights ☐ claims visitation rights
Name of each child: _____

b. Name/Address of Person: _____
☐ has physical custody ☐ claims custody rights ☐ claims visitation rights
Name of each child: _____

c. Name/Address of Person: _____
☐ has physical custody ☐ claims custody rights ☐ claims visitation rights
Name of each child: _____

6. **I understand that I have a continuing duty to advise this Court of any custody, visitation, parenting time, divorce, dissolution of marriage, separation, neglect, abuse, dependency, guardianship, parentage, termination of parental rights, or protection order from domestic violence case concerning the children about whom information is obtained during this case.**

OATH OR AFFIRMATION
(*Do not sign until Notary Public is present*)

I, (print name)_____, swear or affirm that I have read this Affidavit and, to the best of my knowledge and belief, the facts and information stated in this Affidavit are true, accurate, and complete. I understand that if I do not tell the truth, I may be subject to penalties for perjury.

_____
Your Signature

STATE OF _____)
) SS
COUNTY OF _____)

Sworn to or affirmed before me by _____this _____day of _____,_____.

_____
Signature of Notary Public

_____
Printed Name of Notary Public

Commission Expiration Date: _____

(Affix seal here)

IN THE COURT OF COMMON PLEAS

_____ **DIVISION**

_____ **COUNTY, OHIO**

_____
Plaintiff/Petitioner 1

vs./and

_____
Defendant/Petitioner 2

Case No. _____

Judge _____

Magistrate _____

Instructions: Check local court rules to determine when this form must be filed. This affidavit is used to disclose health insurance coverage that is available for children of the relationship. It is also used to determine child support. **If more space is needed, add additional pages.**

HEALTH INSURANCE AFFIDAVIT

Affidavit of _____
(Print Name)

	Plaintiff/Petitioner 1		**Defendant/Petitioner 2**	
Is/are your child(ren) currently enrolled in a government-provided program (i.e. Healthy Start/ Medicaid)?	☐ Yes	☐ No	☐ Yes	☐ No
Is/are your child(ren) enrolled in an individual (non-group or COBRA) health insurance plan?	☐ Yes	☐ No	☐ Yes	☐ No
Is/are your child(ren) enrolled in a plan found through the exchange/Affordable HealthCare Marketplace?	☐ Yes	☐ No	☐ Yes	☐ No
Is/are your child(ren) enrolled in a health insurance plan through a group (employer or other organization)?	☐ Yes	☐ No	☐ Yes	☐ No
If your child(ren) is/are not enrolled, does/do he/she/they have health insurance available through a group (employer or other organization)?	☐ Yes	☐ No	☐ Yes	☐ No
Does the available insurance cover primary care services within 30 miles of the children's home?	☐ Yes	☐ No	☐ Yes	☐ No
Under the available insurance, what is the annual premium you pay for family coverage?	$ _____		$ _____	
Name of group (employer or organization) that provides health insurance	_____		_____	
Address	_____		_____	
	_____		_____	
Phone Number	_____		_____	

OATH OR AFFIRMATION

(Do not sign until Notary Public is present)

I, (print name)_____, swear or affirm that I have read this Affidavit and, to the best of my knowledge and belief, the facts and information stated in this Affidavit are true, accurate, and complete. I understand that if I do not tell the truth, I may be subject to penalties for perjury.

_____
Your Signature

STATE OF _____)
) SS
COUNTY OF _____)

Sworn to or affirmed before me by _____this _____day of _____,_____.

_____
Signature of Notary Public

_____
Printed Name of Notary Public

Commission Expiration Date: _____

(Affix seal here)

IN THE COURT OF COMMON PLEAS
_____ DIVISION
_____ COUNTY, OHIO

_____ Case No. _____
Plaintiff

Judge _____

vs.

Magistrate _____

_____
Defendant

WARNING: This form is not a substitute for the benefit of the advice of legal counsel. It is highly recommended that you consult an attorney.
Instructions: Check local court rules to determine when this form must be filed. This form is used to request temporary orders in your divorce or legal separation case. After a party serves a Motion and Affidavit, the other party has 14 days to file a Counter Affidavit and serve it on the party who filed the Motion. The Court may require additional forms to accompany this document. You must check the requirements of the county in which you file. **If more space is needed, add additional pages.**

MOTION AND AFFIDAVIT OR COUNTER AFFIDAVIT
FOR TEMPORARY ORDERS
WITHOUT ORAL HEARING

Check one box below to show whether you are filing a (A) Motion and Affidavit or (B) Counter Affidavit.

☐ **(A) Motion and Affidavit**

_____ (name), the Movant, files this Motion and Affidavit under Civ.R. 75(N) and/or under R.C. 3109.043 to request the temporary orders checked here.

Check only those that apply.

_____ Residential parenting rights (custody)
_____ Parenting time (companionship or visitation)
_____ Child support
_____ Spousal support (if married)
_____ Payment of debts and/or expenses
_____ Other: _____

THE OTHER PARTY HAS FOURTEEN (14) DAYS FROM THE DATE ON WHICH THIS MOTION IS SERVED TO FILE A COUNTER AFFIDAVIT AND SERVE IT UPON THE PARTY WHO FILED THE MOTION. (*See below*)

☐ **(B) Counter Affidavit**

Movant files this Counter Affidavit in response to a Motion and Affidavit.

Complete the following information, whether filing Motion and Affidavit or Counter Affidavit. (*Check all that apply)*

1. ☐ The parties are living separately.
Date of separation is _____.

☐ The parties are living together.

☐ The parties have no minor children. (*Skip to number 6*)

☐ The parties have (a) minor child(ren) who was/were born from or adopted during this relationship. (*List child(ren) here*)

Name	Date of birth	Living with

☐ In addition to the above child(ren),

Movant has _____ other biological or adopted minor child(ren).

Other party has _____ other biological or adopted minor child(ren).

There is/are _____ adult(s) in Movant's household.

2. Movant's child(ren) attend(s) school in:

☐ _____ public school district

☐ Other: (*Explain*) _____

☐ All children do not attend school in the same district. (*Explain*)

_____

_____

3. ☐ Movant requests to be named the temporary residential parent and/or legal custodian of the child(ren): (*Specify child(ren) if request is not for all child(ren)*)

_____

_____

☐ Movant does not object to the other parent or party being named the temporary residential parent and/or legal custodian of the child(ren): (*Specify child(ren) if request is not for all child(ren)*)

_____

_____

4. ☐ Movant has reached an agreement regarding parenting time (companionship or visitation) with the other parent or party as follows:

_____

_____

_____

☐ Movant wishes to exercise the following parenting time (companionship or visitation):

_____

_____

_____

☐ Movant wishes for the other parent or party to exercise the following parenting time (companionship or visitation):

_____

_____

_____

☐ Movant requests that the other parent or party's parenting time (companionship or visitation) be supervised: (*Explain the reason for request*.)

_____

_____

_____

Name of an appropriate supervisor _____

5. ☐ A Court or agency has made a child support order concerning the child(ren).

Name of Court/Agency _____

Date of Order _____

SETS No. _____

6. Movant requests the Court to order the other parent or party to pay:

☐ $_____ child support per month

☐ $_____ spousal support per month (only if married)

☐ $_____ attorney fees, expert fees, Court costs

☐ The following debts and/or expenses:

_____

_____

7. ☐ Movant requests the Court order the following other relief:

_____

_____

_____

_____

8. ☐ Movant is willing to attend mediation.

☐ Movant is not willing to attend mediation.

9. ☐ Movant requests the following Court services. (*See local rules of Court for available services.)*

_____

_____

State specific reasons why Court services are required.

_____

_____

_____
Attorney or Self Represented Party Signature

_____
Printed Name

_____
Address

_____
City, State, Zip

_____
Phone Number

_____
Fax Number

_____
E-mail

_____
Supreme Court Reg No. (if any)

OATH OR AFFIRMATION
(*Do not sign until Notary Public is present*)

I, (print name)_____, swear or affirm that I have read this Affidavit and, to the best of my knowledge and belief, the facts and information stated in this Affidavit are true, accurate, and complete. I understand that if I do not tell the truth, I may be subject to penalties for perjury.

_____
Signature

STATE OF _____)
) SS
COUNTY OF _____)

Sworn to or affirmed before me by _____this _____day of _____, _____.

_____
Signature of Notary Public

_____
Printed Name of Notary Public

Commission Expiration Date:_____

(Affix seal here)

NOTICE OF HEARING

(*Check with local Court to obtain a hearing date and time and for scheduling procedure*)

You are hereby given notice that this Motion for Temporary Orders will come before the Court for consideration on Affidavits only, without oral testimony, before Judge/Magistrate _____, at _____ a.m./p.m. on _____, 20_____.

CERTIFICATE OF SERVICE

(*Check the boxes that apply*)

I delivered a copy of the: ☐ Motion and Affidavit or ☐ Counter Affidavit

On: (Date) _____ , 20 _____

To: (Print name of other party's attorney or, if there is no attorney, print name of the party)

_____

At: (Print address or fax number) _____

_____

By:

- ☐ As instructed in the Request for Service (Uniform Domestic Relations Form 31/Uniform Juvenile Form 10) filed with the Clerk of Courts
- ☐ Regular U.S. Mail
- ☐ Fax
- ☐ Hand Delivery
- ☐ Other: _____

_____

Signature

IN THE COURT OF COMMON PLEAS
_____ DIVISION
_____ COUNTY, OHIO

_____ Case No. _____
Name

_____ Judge _____
Street Address

_____ Magistrate _____
City, State and Zip Code

Plaintiff

vs.

_____
Name

_____
Street Address

_____
City, State and Zip Code

Defendant

WARNING: This form is not a substitute for the benefit of the advice of legal counsel. It is highly recommended that you consult an attorney.

Instructions: This form is used to request a divorce if you and your spouse do not have (a) minor child(ren), adult child(ren) attending high school, or child(ren) with disabilities. Check to determine if you meet the residency requirement to file in this county. A Request for Service (Uniform Domestic Relations Form 31/Uniform Juvenile Form 10) must be filed with this form. The Court may require additional forms to accompany this document. You must check the requirements of the county in which you file. **YOU MUST UPDATE THE CLERK OF COURTS IF ANY OF THE ABOVE CONTACT INFORMATION CHANGES.**

COMPLAINT FOR DIVORCE WITHOUT CHILDREN

Now comes Plaintiff and states as follows:

1. Plaintiff has been a resident of the State of Ohio for at least six (6) months immediately before filing this Complaint.

2. ☐ Plaintiff has been a resident of _____ County for at least ninety (90) days immediately before filing this Complaint; OR
   ☐ Defendant resides in _____ County where this Complaint is filed.

3. Plaintiff and Defendant were married on _____ (date of marriage) in _____ (city or county, and state).

4. ☐ Neither party is pregnant OR ☐ a party is pregnant.

5. Any child(ren) born from or adopted during this marriage or relationship, is/are now adults and none are mentally or physically disabled and incapable of supporting or maintaining themselves.

6. Military Service:
   ☐ Neither Plaintiff nor Defendant is an active-duty servicemember of the United States military.
   ☐ Plaintiff and/or ☐ Defendant is an active-duty servicemember of the United States military.

7. Plaintiff is entitled to a divorce from Defendant based upon the following grounds: (*check all that apply*)
   ☐ Plaintiff and Defendant are incompatible.
   ☐ Plaintiff and Defendant have lived separate and apart without cohabitation and without interruption for one (1) year.
   ☐ Plaintiff or Defendant had a Husband or Wife living at the time of the marriage.
   ☐ Defendant has been willfully absent for one (1) year.
   ☐ Defendant is guilty of adultery.
   ☐ Defendant is guilty of extreme cruelty.
   ☐ Defendant is guilty of fraudulent contract.
   ☐ Defendant is guilty of gross neglect of duty.
   ☐ Defendant is guilty of habitual drunkenness.
   ☐ Defendant is imprisoned in a state or federal correctional institution at the time of filing this Complaint.
   ☐ Defendant procured a divorce outside this state by virtue of which Defendant has been released from the obligations of the marriage, while those obligations remain binding on Plaintiff.

8. Plaintiff and Defendant are owners of real estate and/or personal property.

Plaintiff requests that a divorce be granted from Defendant. Plaintiff further requests that the Court determine an equitable division of property and debts and order the following: (*check all that apply*)

☐ Defendant pay spousal support;
☐ Plaintiff be restored to the former name of: _____;
☐ Defendant pay Plaintiff's attorney fees;
☐ Defendant pay the Court costs of the proceeding;

and any further relief deemed proper.

_____
Attorney or Self Represented Party Signature

_____
Printed Name

_____
Address

_____
City, State, Zip

_____
Phone Number

_____
Fax Number

_____
E-mail

_____
Supreme Court Reg No. (if any)

IN THE COURT OF COMMON PLEAS
_____ DIVISION
_____ COUNTY, OHIO

_____ Case No. _____
Name

_____ Judge _____
Street Address

_____ Magistrate _____
City, State and Zip Code

Plaintiff

vs.

_____
Name

_____
Street Address

_____
City, State and Zip Code

Defendant

WARNING: This form is not a substitute for the benefit of the advice of legal counsel. It is highly recommended that you consult an attorney.

Instructions: This form is used to request a divorce if you and your spouse have (a) minor child(ren), adult child(ren) attending high school, or child(ren) with disabilities, and/or a party is pregnant. Check to determine if you meet the residency requirement to file in this county. A Request for Service (Uniform Domestic Relations Form 31/Juvenile Form 10) and a Parenting Proceeding Affidavit (Uniform Domestic Relations Form - Affidavit 3) must be filed with this form. The Court may require additional forms to accompany this document. You must check the requirements of the county in which you file. **YOU MUST UPDATE THE CLERK OF COURTS IF ANY OF THE ABOVE CONTACT INFORMATION CHANGES.**

COMPLAINT FOR DIVORCE WITH CHILDREN

Now comes Plaintiff and states as follows:

1. Plaintiff has been a resident of the State of Ohio for at least six (6) months immediately before filing this Complaint.

2. ☐ Plaintiff has been a resident of _____ County for at least ninety (90) days immediately before filing this Complaint; OR
   ☐ The Defendant resides in _____ County where this Complaint is filed.

3. Plaintiff and Defendant were married on _____ (date of marriage) in _____(city or county, and state).

4. ☐ Neither party is pregnant OR ☐ a party is pregnant.

5. *Check all that apply*: (If more space is needed, add additional pages)

☐ The following child(ren) was/were born of the parties' relationship prior to the marriage:

Name of Child	**Date of Birth**

☐ The following child(ren) was/were born from or adopted during this marriage:

Name of Child	**Date of Birth**

☐ The following child(ren) was/were born from or adopted during this marriage or relationship and is/are mentally or physically disabled and will be incapable of supporting or maintaining themselves:

Name of Child	**Date of Birth**

☐ The following child(ren) is/are subject to an existing order of parenting or support of another Court or agency:

Name of Child	**Date of Birth**	**Name of Court or Agency**

☐ One party is not the parent of the following child(ren) who was/were born during the marriage:

Name of Child	**Date of Birth**

6. Military Service:

☐ Neither Plaintiff nor Defendant is an active-duty servicemember of the United States military.
☐ Plaintiff and/or ☐ Defendant is an active-duty servicemember of the United States military.

7. Plaintiff is entitled to a divorce from Defendant based upon the following grounds: (*check all that apply*)
   - ☐ Plaintiff and Defendant are incompatible.
   - ☐ Plaintiff and Defendant have lived separate and apart without cohabitation and without interruption for one (1) year.
   - ☐ Plaintiff or Defendant had a Husband or Wife living at the time of the marriage.
   - ☐ Defendant has been willfully absent for one (1) year.
   - ☐ Defendant is guilty of adultery.
   - ☐ Defendant is guilty of extreme cruelty.
   - ☐ Defendant is guilty of fraudulent contract.
   - ☐ Defendant is guilty of gross neglect of duty.
   - ☐ Defendant is guilty of habitual drunkenness.
   - ☐ Defendant is imprisoned in a state or federal correctional institution at the time of filing this Complaint.
   - ☐ Defendant procured a divorce outside this state by virtue of which Defendant has been released from the obligations of the marriage, while those obligations remain binding on Plaintiff.

8. Plaintiff and Defendant are owners of real estate and/or personal property.

Plaintiff requests that a divorce be granted from Defendant. Plaintiff further requests that the Court determine an equitable division of property and debts and order the following: (*check all that apply*)

- ☐ Plaintiff be designated the residential parent and legal custodian of the following minor child(ren): _____;
- ☐ Defendant be designated the residential parent and legal custodian of the following minor child(ren): _____;
- ☐ the non-residential parent be granted specific parenting time;
- ☐ Plaintiff and Defendant be granted shared parenting of the following minor child(ren): _____ pursuant to a Shared Parenting Plan (Uniform Domestic Relations Form 20), which Plaintiff will prepare and file with the Court;
- ☐ Defendant pay child support, cash medical support, and health care expenses;
- ☐ Defendant pay spousal support;
- ☐ Plaintiff be restored to the former name of _____;
- ☐ Defendant pay Plaintiff's attorney fees;
- ☐ Defendant pay the Court costs of the proceeding;

and any further relief deemed proper.

_____
Attorney or Self Represented Party Signature

_____
Printed Name

_____
Address

_____
City, State, Zip

_____
Phone Number

_____
Fax Number

_____
E-mail

_____
Supreme Court Reg No. (if any)

IN THE COURT OF COMMON PLEAS
_____ DIVISION
_____ COUNTY, OHIO

_____ Case No. _____
Name

_____ Judge _____
Street Address

_____ Magistrate _____
City, State and Zip Code

Plaintiff

vs.

_____
Name

_____
Street Address

_____
City, State and Zip Code

Defendant

WARNING: This form is not a substitute for the benefit of the advice of legal counsel. It is highly recommended that you consult an attorney.

Instructions: After a Complaint has been filed, this form is used by a Defendant to request a divorce if you and your spouse do not have (a) minor child(ren), adult child(ren) attending high school, or child(ren) with disabilities. A Request for Service (Uniform Domestic Relations Form 31/Juvenile Form 10) must be filed with this form. The Court may require additional forms to accompany this document. You must check the requirements of the county in which you file. **YOU MUST UPDATE THE CLERK OF COURTS IF ANY OF THE ABOVE CONTACT INFORMATION CHANGES.**

COUNTERCLAIM FOR DIVORCE WITHOUT CHILDREN

Now comes Defendant and states as follows:

1. Plaintiff filed a Complaint for Divorce or a Complaint for Legal Separation.

2. Plaintiff alleged proper jurisdiction and venue.

3. Plaintiff and Defendant were married on _____ (date of marriage) in _____ (city or county, and state).

4. ☐ Neither party is pregnant OR ☐ a party is pregnant.

5. Any child(ren) born from or adopted during this marriage or relationship is/are are now adults and none are mentally or physically disabled and incapable of supporting or maintaining themselves.

6. Military Service:
   ☐ Neither Plaintiff nor Defendant is an active-duty servicemember of the United States military.
   ☐ Plaintiff and/or ☐ Defendant is an active-duty servicemember of the United States military.

7. Defendant is entitled to a divorce from Plaintiff based upon the following grounds: (*check all that apply*)
   ☐ Plaintiff and Defendant are incompatible.
   ☐ Plaintiff and Defendant have lived separate and apart without cohabitation and without interruption for one (1) year.
   ☐ Plaintiff or Defendant had a Husband or Wife living at the time of the marriage.
   ☐ Plaintiff has been willfully absent for one (1) year.
   ☐ Plaintiff is guilty of adultery.
   ☐ Plaintiff is guilty of extreme cruelty.
   ☐ Plaintiff is guilty of fraudulent contract.
   ☐ Plaintiff is guilty of gross neglect of duty.
   ☐ Plaintiff is guilty of habitual drunkenness.
   ☐ Plaintiff is imprisoned in a state or federal correctional institution at the time of filing the Complaint.
   ☐ Plaintiff procured a divorce outside this state by virtue of which Plaintiff has been released from the obligations of the marriage, while those obligations remain binding on Defendant.

8. Plaintiff and Defendant are owners of real estate and/or personal property.

Defendant requests that a divorce be granted from Plaintiff. Defendant further requests that the Court determine an equitable division of property and debts and order the following: (*check all that apply*)

☐ Plaintiff pay spousal support;
☐ Defendant be restored to the former name of _____;
☐ Plaintiff pay Defendant's attorney fees;
☐ Plaintiff pay the court costs of the proceeding;

and any further relief deemed proper.

_____
Attorney or Self Represented Party Signature

_____
Printed Name

_____
Address

_____
City, State, Zip

_____
Phone Number

_____
Fax Number

_____
E-mail

_____
Supreme Court Reg No. (if any)

CERTIFICATE OF SERVICE
(*Check the boxes that apply*)

Defendant delivered a copy of the Counterclaim for Divorce without Children.

On: (Date) _____ , 20 _____

To: (Print name of other party's attorney or, if there is no attorney, print name of the party)

_____

At: (Print address or fax number) _____

_____

By:
- ☐ As instructed in the Request for Service (Uniform Domestic Relations Form 31/Juvenile Form 10) filed with the Clerk of Courts
- ☐ Regular U.S. Mail
- ☐ Fax
- ☐ Hand Delivery
- ☐ Other: _____

_____
Signature

IN THE COURT OF COMMON PLEAS
_____ DIVISION
_____ COUNTY, OHIO

_____ Case No. _____
Name

_____ Judge _____
Street Address

_____ Magistrate _____
City, State and Zip Code

Plaintiff

vs.

_____
Name

_____
Street Address

_____
City, State and Zip Code

Defendant

WARNING: This form is not a substitute for the benefit of the advice of legal counsel. It is highly recommended that you consult an attorney.

Instructions: After a Complaint has been filed, this form is used by a Defendant to request a divorce if you and your spouse have (a) minor child(ren), adult child(ren) attending high school, or child(ren) with disabilities, and/or a party is pregnant. A Request for Service (Uniform Domestic Relations Form 31/Juvenile Form 10) and a Parenting Proceeding Affidavit (Uniform Domestic Relations Form - Affidavit 3) must be filed with this form. The Court may require additional forms to accompany this document. You must check the requirements of the county in which you file. **YOU MUST UPDATE THE CLERK OF COURTS IF ANY OF THE ABOVE CONTACT INFORMATION CHANGES.**

COUNTERCLAIM FOR DIVORCE WITH CHILDREN

Now comes Defendant and states as follows:

1. Plaintiff filed a Complaint for Divorce or a Complaint for Legal Separation.

2. Plaintiff alleged proper jurisdiction and venue.

3. Plaintiff and Defendant were married on _____ (date of marriage) in _____ (city or county, and state).

4. ☐ Neither party is pregnant OR ☐ a party is pregnant.

5. *Check all that apply*: (If more space is needed, add additional pages)

☐ The following child(ren) was/were born of the parties' relationship prior to the marriage:

Name of Child	**Date of Birth**

☐ The following child(ren) was/were born from or adopted during this marriage:

Name of Child	**Date of Birth**

☐ The following child(ren) was/were born from or adopted during this marriage or relationship and is/are mentally or physically disabled and will be incapable of supporting or maintaining themselves:

Name of Child	**Date of Birth**

☐ The following child(ren) is/are subject to an existing order of parenting or support of another Court or agency:

Name of Child	**Date of Birth**	**Name of Court or Agency**

☐ One party is not the parent of the following child(ren) who was/were born during the marriage:

Name of Child	**Date of Birth**

6. Military Service:

☐ Neither Plaintiff nor Defendant is an active-duty servicemember of the United States military.
☐ Plaintiff and/or ☐ Defendant is an active-duty servicemember of the United States military.

7. Defendant is entitled to a divorce from Plaintiff based upon the following grounds: (*check all that apply*)
   - ☐ Plaintiff and Defendant are incompatible.
   - ☐ Plaintiff and Defendant have lived separate and apart without cohabitation and without interruption for one (1) year.
   - ☐ Plaintiff or Defendant had a Husband or Wife living at the time of the marriage.
   - ☐ Plaintiff has been willfully absent for one (1) year.
   - ☐ Plaintiff is guilty of adultery.
   - ☐ Plaintiff is guilty of extreme cruelty.
   - ☐ Plaintiff is guilty of fraudulent contract.
   - ☐ Plaintiff is guilty of gross neglect of duty.
   - ☐ Plaintiff is guilty of habitual drunkenness.
   - ☐ Plaintiff is imprisoned in a state or federal correctional institution at the time of filing the Complaint.
   - ☐ Plaintiff procured a divorce outside this state by virtue of which Plaintiff has been released from the obligations of the marriage, while those obligations remain binding on Defendant.

8. Plaintiff and Defendant are owners of real estate and/or personal property.

Defendant requests that a divorce be granted from Plaintiff. Defendant further requests that the Court determine an equitable division of property and debts and order the following: (*check all that apply*)

- ☐ Plaintiff be designated the residential parent and legal custodian of the following minor child(ren):
  _____;
- ☐ Defendant be designated the residential parent and legal custodian of the following minor child(ren):
  _____;
- ☐ the non-residential parent be granted specific parenting time;
- ☐ Plaintiff and Defendant be granted shared parenting of the following minor child(ren):
  _____
  pursuant to a Shared Parenting Plan (Uniform Domestic Relations Form 20), which Defendant will prepare and file with the Court;
- ☐ Plaintiff pay child support, cash medical support, and health care expenses;
- ☐ Plaintiff pay spousal support;
- ☐ Defendant be restored to the former name of _____;
- ☐ Plaintiff pay Defendant's attorney fees;
- ☐ Plaintiff pay the court costs of the proceeding;

and any further relief deemed proper.

Attorney or Self Represented Party Signature

Printed Name

Address

City, State, Zip

Phone Number

Fax Number

E-mail

Supreme Court Reg No. (if any)

CERTIFICATE OF SERVICE
(*Check the boxes that apply*)

Defendant delivered a copy of the Counterclaim for Divorce with Children.

On: (Date) _____ , 20 _____

To: (Print name of other party's attorney or, if there is no attorney, print name of the party)

_____

At: (Print address or fax number) _____

_____

By:
- ☐ As instructed in the Request for Service (Uniform Domestic Relations Form 31/Juvenile Form 10) filed with the Clerk of Courts
- ☐ Regular U.S. Mail
- ☐ Fax
- ☐ Hand Delivery
- ☐ Other: _____

_____
Signature

IN THE COURT OF COMMON PLEAS
_____ DIVISION
_____ COUNTY, OHIO

_____ Case No. _____
Name

_____ Judge _____
Street Address

_____ Magistrate _____
City, State and Zip Code

Plaintiff

vs.

_____
Name

_____
Street Address

_____
City, State and Zip Code

Defendant

WARNING: This form is not a substitute for the benefit of the advice of legal counsel. It is highly recommended that you consult an attorney.

Instructions: This form is used in response to a filing of a Complaint for Divorce without Children, and allows you to agree with or dispute the statements made in the Complaint for Divorce without Children. The Court may require additional forms to accompany this document. You must check the requirements of the county in which you file. **YOU MUST UPDATE THE CLERK OF COURTS IF ANY OF THE ABOVE CONTACT INFORMATION CHANGES.**

ANSWER TO COMPLAINT FOR DIVORCE WITHOUT CHILDREN

In Answer to Plaintiff's Complaint for Divorce, Defendant states as follows:

ADMIT	DENY		
☐	☐	1.	Plaintiff has been a resident of the State of Ohio for at least six (6) months immediately before filing the Complaint.
☐	☐	2.	Plaintiff has been a resident of the County stated in the Complaint for at least ninety (90) days immediately before filing the Complaint; OR
☐	☐		Defendant resides in the County where the Complaint was filed.

ADMIT	DENY		
☐	☐	3.	The date of Plaintiff and Defendant's marriage stated in the Complaint.
☐	☐		The place of Plaintiff and Defendant's marriage stated in the Complaint.
☐	☐	4.	Neither party is pregnant.
☐	☐		A party is pregnant.
☐	☐	5.	Any child(ren) born from or adopted during this marriage or relationship is/are now adults and none are mentally or physically disabled and incapable of supporting or maintaining themselves.
☐	☐	6.	Plaintiff is an active-duty servicemember of the United States military.
☐	☐		Defendant is an active-duty servicemember of the United States military.
		7.	Defendant further admits or denies the following grounds for divorce:
☐	☐		Plaintiff and Defendant are incompatible.
☐	☐		Plaintiff and Defendant have lived separate and apart without cohabitation and without interruption for one (1) year.
☐	☐		Plaintiff or Defendant had a Husband or Wife living at the time of the marriage.
☐	☐		Defendant has been willfully absent for one (1) year.
☐	☐		Defendant is guilty of adultery.
☐	☐		Defendant is guilty of extreme cruelty.
☐	☐		Defendant is guilty of fraudulent contract.
☐	☐		Defendant is guilty of gross neglect of duty.
☐	☐		Defendant is guilty of habitual drunkenness.
☐	☐		Defendant is imprisoned in a state or federal correctional institution at the time of filing the Complaint.
☐	☐		Defendant procured a divorce outside this state by virtue of which Defendant has been released from the obligations of the marriage, while those obligations remain binding on Plaintiff.
☐	☐	8.	Plaintiff and Defendant are owners of real estate and/or personal property.
		9.	Defendant denies any allegations not specifically admitted.

Defendant requests: (*select one*)

☐ the Complaint for Divorce be dismissed OR

☐ a divorce be granted

and any further relief deemed proper.

_____
Attorney or Self Represented Party Signature

_____
Printed Name

_____
Address

_____
City, State, Zip

_____
Phone Number

_____
Fax Number

_____
E-mail

_____
Supreme Court Reg No. (if any)

CERTIFICATE OF SERVICE

(*Check the boxes that apply*)

Defendant delivered a copy of the Answer to Complaint for Divorce without Children

On: (Date) _____ , 20 ____

To: (Print name of other party's attorney or, if there is no attorney, print name of the party.)

_____

At: (Print address or fax number) _____

_____

By: ☐ As instructed in the Request for Service (Uniform Domestic Relations Form 31/Uniform Juvenile Form 10) filed with the Clerk of Courts

☐ Regular U.S. Mail

☐ Fax

☐ Hand Delivery

☐ Other: _____

_____
Signature

IN THE COURT OF COMMON PLEAS
_____ DIVISION
_____ COUNTY, OHIO

_____ Case No. _____
Name

_____ Judge _____
Street Address

_____ Magistrate _____
City, State and Zip Code

Plaintiff

vs.

_____
Name

_____
Street Address

_____
City, State and Zip Code

Defendant

WARNING: This form is not a substitute for the benefit of the advice of legal counsel. It is highly recommended that you consult an attorney.

Instructions: This form is used in response to a filing of a Complaint for Divorce with Children, and allows you to agree with or dispute the statements made in the Complaint for Divorce with Children. The Court may require additional forms to accompany this document. You must check the requirements of the county in which you file. **YOU MUST UPDATE THE CLERK OF COURTS IF ANY OF THE ABOVE CONTACT INFORMATION CHANGES.**

ANSWER TO COMPLAINT FOR DIVORCE WITH CHILDREN

In Answer to Plaintiff's Complaint for Divorce, Defendant states as follows:

ADMIT	DENY		
☐	☐	1.	Plaintiff has been a resident of the State of Ohio for at least six (6) months immediately before filing the Complaint.
☐	☐	2.	Plaintiff has been a resident of the County stated in the Complaint for at least ninety (90) days immediately before filing the Complaint; OR
☐	☐		Defendant resides in the County where the Complaint was filed.

ADMIT	DENY		
☐	☐	3.	The date of Plaintiff and Defendant's marriage stated in the Complaint.
☐	☐		The place of Plaintiff and Defendant's marriage stated in the Complaint.
☐	☐	4.	Neither party is pregnant.
☐	☐		A party is pregnant.
☐	☐	5.	The child(ren) stated in the Complaint was/were born of the relationship prior to the marriage.
☐	☐		The child(ren) stated in the Complaint was/were born from or adopted during this marriage.
☐	☐		The child(ren) stated in the Complaint was/were born from or adopted during this marriage or relationship and is/are mentally or physically disabled and will be incapable of supporting or maintaining themselves.
☐	☐		The child(ren) stated in the Complaint is/are subject to an existing order of parenting or support of another Court or agency.
☐	☐		One party is not the parent of the child(ren) stated in the Complaint who was/were born during the marriage.
☐	☐	6.	Plaintiff is an active-duty servicemember of the United States military.
☐	☐		Defendant is an active-duty servicemember of the United States military.
		7.	Defendant further admits or denies the following grounds for divorce:
☐	☐		Plaintiff and Defendant are incompatible.
☐	☐		Plaintiff and Defendant have lived separate and apart without cohabitation and without interruption for one (1) year.
☐	☐		Plaintiff or Defendant had a Husband or Wife living at the time of the marriage.
☐	☐		Defendant has been willfully absent for one (1) year.
☐	☐		Defendant is guilty of adultery.
☐	☐		Defendant is guilty of extreme cruelty.
☐	☐		Defendant is guilty of fraudulent contract.
☐	☐		Defendant is guilty of gross neglect of duty.
☐	☐		Defendant is guilty of habitual drunkenness.
☐	☐		Defendant is imprisoned in a state or federal correctional institution at the time of filing the Complaint.
☐	☐		Defendant procured a divorce outside this state by virtue of which Defendant has been released from the obligations of the marriage, while those obligations remain binding on Plaintiff.
☐	☐	8.	Plaintiff and Defendant are owners of real estate and/or personal property.
		9.	Defendant denies any allegations not specifically admitted.

Defendant requests: (*select one*)

☐ the Complaint for Divorce be dismissed OR

☐ a divorce be granted

and any further relief deemed proper.

_____
Attorney or Self Represented Party Signature

_____
Printed Name

_____
Address

_____
City, State, Zip

_____
Phone Number

_____
Fax Number

_____
E-mail

_____
Supreme Court Reg No. (if any)

CERTIFICATE OF SERVICE
(*Check the boxes that apply*)

Defendant delivered a copy of the Answer to Complaint for Divorce with Children.

On: (Date) _____ , 20 _____

To: (Print name of other party's attorney or, if there is no attorney, print name of the party)

_____

At: (Print address or fax number) _____

_____

By:
- ☐ As instructed in the Request for Service (Uniform Domestic Relations Form 31/Juvenile Form 10) filed with the Clerk of Courts
- ☐ Regular U.S. Mail
- ☐ Fax
- ☐ Hand Delivery
- ☐ Other: _____

_____
Signature

IN THE COURT OF COMMON PLEAS
_____ DIVISION
_____ COUNTY, OHIO

_____ Case No. _____
Name

_____ Judge _____
Street Address

_____ Magistrate _____
City, State and Zip Code

Plaintiff

vs.

_____
Name

_____
Street Address

_____
City, State and Zip Code

Defendant

WARNING: This form is not a substitute for the benefit of the advice of legal counsel. It is highly recommended that you consult an attorney.

Instructions: This form is used in response to a filing of a Counterclaim for Divorce without Children, and allows you to agree with or dispute the statements made in the Counterclaim for Divorce without Children. The Court may require additional forms to accompany this document. You must check the requirements of the county in which you file. **YOU MUST UPDATE THE CLERK OF COURTS IF ANY OF THE ABOVE CONTACT INFORMATION CHANGES.**

REPLY TO COUNTERCLAIM FOR DIVORCE WITHOUT CHILDREN

In Reply to Defendant's Counterclaim for Divorce, Plaintiff states as follows:

1. Plaintiff filed a Complaint for Divorce or a Complaint for Legal Separation

2. Plaintiff alleged proper jurisdiction and venue.

ADMIT	DENY	
☐	☐	3. The date of Plaintiff and Defendant's marriage stated in the Counterclaim.
☐	☐	The place of Plaintiff and Defendant's marriage stated in the Counterclaim.

ADMIT	DENY		
☐	☐	4.	Neither party is pregnant.
☐	☐		A party is pregnant.
☐	☐	5.	Any child(ren) born from or adopted during this marriage or relationship is/are now adults and none are mentally or physically disabled and incapable of supporting or maintaining themselves.
☐	☐	6.	Plaintiff is an active-duty servicemember of the United States military.
☐	☐		Defendant is an active-duty servicemember of the United States military.
		7.	Plaintiff further admits or denies the following grounds for divorce:
☐	☐		Plaintiff and Defendant are incompatible.
☐	☐		Plaintiff and Defendant have lived separate and apart without cohabitation and without interruption for one (1) year.
☐	☐		Plaintiff or Defendant had a Husband or Wife living at the time of the marriage.
☐	☐		Plaintiff has been willfully absent for one (1) year.
☐	☐		Plaintiff is guilty of adultery.
☐	☐		Plaintiff is guilty of extreme cruelty.
☐	☐		Plaintiff is guilty of fraudulent contract.
☐	☐		Plaintiff is guilty of gross neglect of duty.
☐	☐		Plaintiff is guilty of habitual drunkenness.
☐	☐		Plaintiff is imprisoned in a state or federal correctional institution at the time of the filing the Complaint.
☐	☐		Plaintiff procured a divorce outside this state by virtue of which Plaintiff has been released from the obligations of the marriage, while those obligations remain binding on Defendant.
☐	☐	8.	Plaintiff and Defendant are owners of real estate and/or personal property.
		9.	Plaintiff denies any allegations not specifically admitted.

The Plaintiff requests:

☐ the Counterclaim for Divorce be dismissed OR

☐ a divorce be granted

and any further relief deemed proper.

_____
Attorney or Self Represented Party Signature

_____
Printed Name

_____
Address

_____
City, State, Zip

_____
Phone Number

_____
Fax Number

_____
E-mail

_____
Supreme Court Reg No. (if any)

CERTIFICATE OF SERVICE
(*Check the boxes that apply*)

Plaintiff delivered a copy of the Reply to Counterclaim for Divorce without Children.

On: (Date) _____ , 20 _____

To: (Print name of other party's attorney or, if there is no attorney, print name of the party)

_____

At: (Print address or fax number) _____

_____

By:

☐ As instructed in the Request for Service (Uniform Domestic Relations Form 31/Juvenile Form 10) filed with the Clerk of Courts

☐ Regular U.S. Mail

☐ Fax

☐ Hand Delivery

☐ Other: _____

_____
Signature

IN THE COURT OF COMMON PLEAS
_____ DIVISION
_____ COUNTY, OHIO

_____ Case No. _____
Name

_____ Judge _____
Street Address

_____ Magistrate _____
City, State and Zip Code

Plaintiff

vs.

_____
Name

_____
Street Address

_____
City, State and Zip Code

Defendant

WARNING: This form is not a substitute for the benefit of the advice of legal counsel. It is highly recommended that you consult an attorney.

Instructions: This form is used in response to a filing of a Counterclaim for Divorce with Children, and allows you to agree with or dispute the statements made in the Counterclaim for Divorce with Children. The Court may require additional forms to accompany this document. You must check the requirements of the county in which you file. **YOU MUST UPDATE THE CLERK OF COURTS IF ANY OF THE ABOVE CONTACT INFORMATION CHANGES.**

REPLY TO COUNTERCLAIM FOR DIVORCE WITH CHILDREN

In Reply to Defendant's Counterclaim for Divorce, Plaintiff states as follows:

1. Plaintiff filed a Complaint for Divorce or a Complaint for Legal Separation.

2. Plaintiff alleged proper jurisdiction and venue.

ADMIT	DENY		
☐	☐	3.	The date of Plaintiff and Defendant's marriage stated in the Counterclaim.
☐	☐		The place of Plaintiff and Defendant's marriage stated in the Counterclaim.
☐	☐	4.	Neither party is pregnant.
☐	☐		A party is pregnant.
☐	☐	5.	The child(ren) stated in the Counterclaim was/were born of the relationship prior to the marriage.
☐	☐		The child(ren) stated in the Counterclaim was/were born from or adopted during this marriage.
☐	☐		The child(ren) stated in the Counterclaim was/were born from or adopted during this marriage or relationship and is/are mentally or physically disabled and will be incapable of supporting or maintaining themselves.
☐	☐		The child(ren) stated in the Counterclaim is/are subject to an existing order of parenting or support of another Court or agency.
☐	☐		One party is not the parent of the child(ren) stated in the Counterclaim who was/were born during the marriage.
☐	☐	6.	Plaintiff is an active-duty servicemember of the United States military.
☐	☐		Defendant is an active-duty servicemember of the United States military.
		7.	Plaintiff further admits or denies the following grounds for divorce:
☐	☐		Plaintiff and Defendant are incompatible.
☐	☐		Plaintiff and Defendant have lived separate and apart without cohabitation and without interruption for one (1) year.
☐	☐		Plaintiff or Defendant had a Husband or Wife living at the time of the marriage.
☐	☐		Plaintiff has been willfully absent for one (1) year.
☐	☐		Plaintiff is guilty of adultery.
☐	☐		Plaintiff is guilty of extreme cruelty.
☐	☐		Plaintiff is guilty of fraudulent contract.
☐	☐		Plaintiff is guilty of gross neglect of duty.
☐	☐		Plaintiff is guilty of habitual drunkenness.
☐	☐		Plaintiff is imprisoned in a state or federal correctional institution at the time of the filing the Complaint.
☐	☐		Plaintiff procured a divorce outside this state by virtue of which Plaintiff has been released from the obligations of the marriage, while those obligations remain binding on Defendant.
☐	☐	8.	Plaintiff and Defendant are owners of real estate and/or personal property.
		9.	Plaintiff denies any allegations not specifically admitted.

Plaintiff requests:

- ☐ the Counterclaim for Divorce be dismissed OR
- ☐ a divorce be granted

and any further relief deemed proper.

_____
Attorney or Self Represented Party Signature

_____
Printed Name

_____
Address

_____
City, State, Zip

_____
Phone Number

_____
Fax Number

_____
E-mail

_____
Supreme Court Reg No. (if any)

CERTIFICATE OF SERVICE
(*Check the boxes that apply*)

Plaintiff delivered a copy of the Reply to Counterclaim for Divorce with Children.

On: (Date) _____ , 20 _____

To: (Print name of other party's attorney or, if there is no attorney, print name of the party)

_____

At: (Print address or fax number) _____

_____

By:
- ☐ As instructed in the Request for Service (Uniform Domestic Relations Form 31/Juvenile Form 10) filed with the Clerk of Courts
- ☐ Regular U.S. Mail
- ☐ Fax
- ☐ Hand Delivery
- ☐ Other: _____

_____
Signature

IN THE COURT OF COMMON PLEAS
_____ DIVISION
_____ COUNTY, OHIO

_____ Case No. _____
Name

_____ Judge _____
Street Address

_____ Magistrate _____
City, State and Zip Code

Plaintiff

vs.

_____
Name

_____
Street Address

_____
City, State and Zip Code

Defendant

JUDGMENT ENTRY – DECREE OF DIVORCE WITHOUT CHILDREN

This matter came on for final hearing on _____before ☐ Judge ☐ Magistrate _____ upon Plaintiff's Complaint for Divorce without Children filed on _____ and/or Defendant's Counterclaim filed on_____ and upon the following: _____.

FINDINGS

Upon a review of the record, testimony, and evidence presented, the Court makes the following findings:

A. Check all that apply:

- ☐ Defendant was properly served with Summons, a copy of the Complaint, and both parties received Notice of Hearing.
- ☐ Defendant filed a Waiver of Service.
- ☐ Defendant filed an Answer to Plaintiff's Complaint.
- ☐ Defendant failed to file an Answer to Plaintiff's Complaint or plead, despite being properly served with Summons, a copy of the Complaint.

☐ Defendant filed a Counterclaim.
☐ Plaintiff filed a Reply to Defendant's Counterclaim.
☐ Plaintiff failed to file a Reply to Defendant's Counterclaim.

B. ☐ Plaintiff was present at the Hearing.
☐ _____ appeared as counsel for Plaintiff.
☐ Plaintiff failed to appear.
☐ Defendant was present at the Hearing.
☐ _____ appeared as counsel for Defendant.
☐ Defendant failed to appear.

C. Plaintiff was a resident of the State of Ohio for at least six (6) months immediately before the Complaint and/or Counterclaim was/were filed.

D. At the time the Complaint and/or Counterclaim was/were filed:
☐ Plaintiff was a resident of this county for at least ninety (90) days immediately before the filing.
☐ Defendant was a resident of this county.
☐ Venue is proper based upon: _____

E. This Court has jurisdiction and venue is proper to determine all of the issues raised by the pleadings and motions.

F. Plaintiff and Defendant were married on _____(date of marriage) in _____(city or county, and state).

G. The termination of marriage is ☐ the date of Final Hearing or ☐ the date specified:

_____

H. Children:
☐ Neither party is pregnant OR ☐ a party is pregnant.

Any child(ren) born from or adopted during this marriage or relationship, is/are now adults and none are mentally or physically disabled and incapable of supporting or maintaining themselves.

I. Military Service:
☐ Neither Plaintiff nor Defendant is an active-duty servicemember of the United States military.
☐ Plaintiff and/or ☐ Defendant is an active-duty servicemember of the United States military; however, active-duty service did not impact the member's ability to prosecute or defend this action.

J. The divorce should be granted on the following ground(s):
☐ Plaintiff and Defendant are incompatible.
☐ Plaintiff and Defendant have lived separate and apart without cohabitation and without interruption for one (1) year.
☐ Plaintiff or ☐ Defendant had a Husband or Wife living at the time of the marriage.
☐ Plaintiff or ☐ Defendant has been willfully absent for one (1) year.

☐ Plaintiff or ☐ Defendant is guilty of adultery.
☐ Plaintiff or ☐ Defendant is guilty of extreme cruelty.
☐ Plaintiff or ☐ Defendant is guilty of fraudulent contract.
☐ Plaintiff or ☐ Defendant is guilty of gross neglect of duty.
☐ Plaintiff or ☐ Defendant is guilty of habitual drunkenness.
☐ Plaintiff or ☐ Defendant was imprisoned in a state or federal correctional institution at the time the Complaint was filed.
☐ Plaintiff or ☐ Defendant procured a divorce outside this state by virtue of which ☐ Plaintiff or ☐ Defendant has been released from the obligations of the marriage, while those obligations remain binding on ☐ Plaintiff or ☐ Defendant.

K. ☐ Plaintiff and/or ☐ Defendant through testimony or affidavit made full and complete disclosure of all marital property, separate property, and any other assets, debts, income, and expenses.

L. The Court finds that:

☐ the parties presented the Court with a written Separation Agreement or read a settlement of all issues into the record. The written Separation Agreement is attached hereto as Exhibit A. The Court finds the agreement to be a fair and equitable division of property and debts and an appropriate resolution of all issues, knowingly and voluntarily entered into by the parties.

☐ a Magistrate's Decision was filed on: _____.
- ☐ no objections having been filed, the Court accepts the Magistrate's findings of fact and adopts the recommendations, making them the order of the Court.
- ☐ the Court ruled upon all objections to the Magistrate's Decision by a separate Judgment Entry.

☐ the parties did not present the Court with a written Separation Agreement or read a settlement of all issues into the record. Based upon the evidence presented by the parties who appeared, the Court makes the findings set forth herein upon which it makes a fair and equitable division of property and debts and an appropriate resolution of all issues of the parties.

The parties have the following separate assets:

Party	Asset	Value

The parties have the following separate debts:

Party	Debt	Balance

The parties have the following marital assets:

Asset	Value

The parties have the following marital debts:

Debt	Balance

The Court makes the following findings regarding the spousal support factors set forth in R.C. 3105.18:

M. The Court finds that Plaintiff incurred attorney fees and litigation expenses in the amount of $_____ and Defendant incurred attorney fees and litigation expenses in the amount of $_____. It is equitable that: *(select one)*

☐ Each party pay his or her attorney fees and litigation expenses, if any.

☐ Plaintiff pay all or part of Defendant's attorney fees and litigation expenses as follows:

☐ Defendant pay all or part of Plaintiff's attorney fees and litigation expenses as follows:

N. The Court further finds that:

JUDGMENT

Based upon the findings set forth above, it is, therefore, **ORDERED, ADJUDGED and DECREED** that:

FIRST: DIVORCE GRANTED

☐ Plaintiff ☐ Defendant is/are granted a divorce on the grounds set forth above. Both parties are released from the obligations of their marriage except for those obligations listed below or as set forth in the attached ☐ Separation Agreement ☐ Magistrate's Decision which is incorporated in this Judgment Entry as if fully rewritten and/or ☐ as is set forth herein.

SECOND: PROPERTY

The parties' property shall be divided as follows:

A. Plaintiff is awarded the following separate property:

B. Defendant is awarded the following separate property:

C. Each party is awarded all of the household goods, furniture, furnishings, and other personal property currently in their respective possession, free and clear of any claim of the other party, except as specifically set forth in Sections D, E, and F below.

D. Plaintiff is awarded the following real estate and items of personal property, free and clear from all claims of Defendant:

E. Defendant is awarded the following real estate and items of personal property, free and clear from all claims of Plaintiff:

F. Other orders regarding property:

G. The parties shall take all necessary steps to transfer legal title and possession of property and take appropriate actions to implement and effectuate the division of retirement accounts within thirty (30) days of this Judgment Entry. The Court reserves jurisdiction over the completion, filing, qualification and/or approval of any document necessary to transfer assets.

H. Other orders regarding transfers:

THIRD: DEBT

The parties' debts shall be divided as follows:

A. Plaintiff shall pay the following debts and hold Defendant harmless from all claims:

B. Defendant shall pay the following debts and hold Plaintiff harmless from all claims:

C. Bankruptcy

The Court has continuing jurisdiction to determine whether a debt assigned to a party qualifies as an exception to discharge in bankruptcy according to federal law.

D. Neither party shall incur liabilities against the other party in the future.

FOURTH: SPOUSAL SUPPORT

A. Spousal Support Not Awarded

☐ Neither Plaintiff nor Defendant shall pay spousal support to the other, subject to any jurisdiction reserved in Section E below.

B. Spousal Support Awarded

☐ Plaintiff ☐ Defendant shall pay spousal support to ☐ Plaintiff ☐ Defendant in the amount of $_____ per month commencing on _____. Spousal support shall continue ☐ for a period of _____ months OR ☐ until further order of this Court.

C. Method of Payment of Spousal Support

☐ Spousal support payments shall be made directly to ☐ Plaintiff ☐ Defendant.

☐ Spousal support payments, plus two percent (2%) processing charge, shall be made to the Ohio Child Support Payment Central, P. O. Box 182372, Columbus, Ohio 43218-2372, as administered through the _____ County Child Support Enforcement Agency by: ☐ income withholding or ☐ other _____.

D. Termination of Spousal Support

Spousal support shall terminate earlier than the above stated date upon Plaintiff's or Defendant's death or in the event of the following:

☐ The cohabitation of the person receiving support in a relationship comparable to marriage.

☐ The remarriage of the person receiving support.

☐ Other: (*specify*) _____

E. Reservation of Jurisdiction

Under all circumstances, the Court shall retain jurisdiction over the issue of spousal support to hear and determine a Motion for Relief from Judgment pursuant to Civ.R. 60(B).

On other matters involving spousal support: (*check all that apply*)

☐ The Court shall retain jurisdiction to modify the amount of the spousal support order.

☐ The Court shall NOT retain jurisdiction to modify the amount of the spousal support order.

☐ The Court shall retain jurisdiction to modify the duration of the spousal support order.

☐ The Court shall NOT retain jurisdiction to modify the duration of the spousal support order.

☐ The Court shall retain jurisdiction to establish or modify the amount and/or duration of spousal support in the event either party files bankruptcy.

F. Other orders regarding spousal support: _____

_____

_____

G. Arrearage or Overpayment

☐ Any temporary spousal support arrearage or overpayment shall survive this Judgment Entry.

☐ Any temporary spousal support arrearage or overpayment shall not survive this Judgment Entry.

☐ Other:_____

FIFTH: NAME

☐ _____ is restored to the former name of _____

SIXTH: OTHER ORDERS

_____

_____

_____

SEVENTH: TEMPORARY ORDERS

All temporary orders in this case are terminated.

EIGHTH: PAYMENT OF ATTORNEY FEES AND LITIGATION EXPENSES (*select one*)

☐ Each party shall pay his/her own attorney fees and litigation expenses, if any.

☐ Plaintiff shall pay _____ of attorney fees and litigation expenses incurred by Defendant. The same shall be paid as follows: _____

_____

☐ Defendant shall pay _____ of attorney fees and litigation expenses incurred by Plaintiff. The same shall be paid as follows: _____

_____

NINTH: COURT COSTS

Court costs are:

☐ Taxed to the deposit. Court costs due above the deposit shall be paid as follows:

_____

☐ Other: (*specify*) _____

TENTH: CLERK OF COURTS

The Clerk of Courts shall provide:

☐ a certified copy to: _____

☐ a file stamped copy to: _____

_____
JUDGE

_____	_____
Plaintiff Signature	Defendant Signature
_____	_____
Printed Name	Printed Name
_____	_____
Plaintiff's Attorney Signature	Defendant's Attorney Signature
_____	_____
Printed Name	Printed Name
_____	_____
Supreme Court Reg No.	Supreme Court Reg No.

NOTICE. This is a final appealable order. The Clerk is directed to serve upon all parties notice of this Judgment Entry and its date of entry upon the journal in accordance with Civ.R. 5(B), in the manner provided in Civ.R. 58(B).

IN THE COURT OF COMMON PLEAS
_____ DIVISION
_____ COUNTY, OHIO

_____ Case No. _____
Name

_____ Judge _____
Street Address

_____ Magistrate _____
City, State and Zip Code

Plaintiff

vs.

_____
Name

_____
Street Address

_____
City, State and Zip Code

Defendant

JUDGMENT ENTRY – DECREE OF DIVORCE WITH CHILDREN

This matter came on for final hearing on _____before ☐ Judge ☐ Magistrate _____ upon Plaintiff's Complaint for Divorce with Children filed on_____ and/or Defendant's Counterclaim filed on_____ and upon the following: _____.

FINDINGS

Upon a review of the record, testimony, and evidence presented, the Court makes the following findings:

A. Check all that apply:

- ☐ Defendant was properly served with Summons, a copy of the Complaint, and both parties received Notice of Hearing.
- ☐ Defendant filed a Waiver of Service.
- ☐ Defendant filed an Answer to Plaintiff's Complaint.
- ☐ Defendant failed to file an Answer to Plaintiff's Complaint or plead, despite being properly served with Summons and a copy of the Complaint.

☐ Defendant filed a Counterclaim.
☐ Plaintiff filed a Reply to Defendant's Counterclaim.
☐ Plaintiff failed to file a Reply to Defendant's Counterclaim.

B. ☐ Plaintiff was present at the Hearing.
☐ _____ appeared as counsel for Plaintiff.
☐ Plaintiff failed to appear.
☐ Defendant was present at the Hearing.
☐ _____appeared as counsel for Defendant.
☐ Defendant failed to appear.

C. Plaintiff was a resident of the State of Ohio for at least six (6) months immediately before the Complaint and/or Counterclaim was/were filed.

D. At the time the Complaint and/or Counterclaim was/were filed:
☐ Plaintiff was a resident of this county for at least ninety (90) days immediately before the filing.
☐ Defendant was a resident of this county.
☐ Venue is proper based upon: _____

E. This Court has jurisdiction and venue is proper to determine all of the issues raised by the pleadings and motions.

F. Plaintiff and Defendant were married on _____(date of marriage) in _____(city or county, and state).

G. The termination of marriage is ☐ the date of Final Hearing or ☐ the date specified:

_____

H. Children:
☐ Neither party is pregnant OR ☐ a party is pregnant.

☐ The following child(ren) was/were born of the parties' relationship prior to the marriage:

Name of Child	**Date of Birth**

☐ The following child(ren) was/were born from or adopted during this marriage:

Name of Child	**Date of Birth**

☐ The following child(ren) was/were born from or adopted during this marriage or relationship and is/are mentally or physically disabled and will be incapable of supporting or maintaining themselves:

Name of Child	Date of Birth

☐ The following child(ren) is/are subject to an existing order of parenting or support of another Court or agency:

Name of Child	Date of Birth	Name of Court or Agency

☐ One party is not the parent of the following child(ren) who was/were born during the marriage:

Name of Child	Date of Birth

I. Military Service:

☐ Neither Plaintiff nor Defendant is an active-duty servicemember of the United States military.

☐ Plaintiff and/or ☐ Defendant is an active-duty servicemember of the United States military; however, active-duty service did not impact the member's ability to prosecute or defend this action.

J. The divorce should be granted on the following ground(s):

☐ Plaintiff and Defendant are incompatible.

☐ Plaintiff and Defendant have lived separate and apart without cohabitation and without interruption for one (1) year.

☐ Plaintiff or ☐ Defendant had a Husband or Wife living at the time of the marriage.

☐ Plaintiff or ☐ Defendant has been willfully absent for one (1) year.

☐ Plaintiff or ☐ Defendant is guilty of adultery.

☐ Plaintiff or ☐ Defendant is guilty of extreme cruelty.

☐ Plaintiff or ☐ Defendant is guilty of fraudulent contract.

☐ Plaintiff or ☐ Defendant is guilty of gross neglect of duty.

☐ Plaintiff or ☐ Defendant is guilty of habitual drunkenness.

☐ Plaintiff or ☐ Defendant was imprisoned in a state or federal correctional institution at the time the Complaint was filed.

☐ Plaintiff or ☐ Defendant procured a divorce outside this state by virtue of which ☐ Plaintiff or ☐ Defendant has been released from the obligations of the marriage, while those obligations remain binding on ☐ Plaintiff or ☐ Defendant.

K. ☐ Plaintiff and/or ☐ Defendant through testimony or affidavit made full and complete disclosure of all marital property, separate property, and any other assets, debts, income, and expenses.

L. The Court finds that:

☐ the parties presented the Court with a written Separation Agreement or read a settlement of all issues into the record. The written Separation Agreement is attached hereto as Exhibit A. The Court finds the agreement to be a fair and equitable division of property and debts and an appropriate resolution of all issues, knowingly and voluntarily entered into by the parties.

☐ the parties presented the Court with a written Shared Parenting Plan or Parenting Plan, or read a settlement of all issues involving their parental rights and responsibilities into the record. The ☐Shared Parenting Plan ☐ Parenting Plan is attached hereto as Exhibit B. The Court finds that the agreed allocation of parental rights and responsibilities is in the minor child(ren)'s best interest and that the parties entered into it knowingly and voluntarily.

☐ a Magistrate's Decision was filed on: _____.

- ☐ no objections having been filed, the Court accepts the Magistrate's findings of fact and adopts the recommendations, making them the order of the Court.
- ☐ the Court ruled upon all objections to the Magistrate's Decision by a separate Judgment Entry.

☐ the parties did not present the Court with a written Separation Agreement or read a settlement of all issues into the record. Based upon the evidence presented by the parties who appeared, the Court makes the findings set forth herein upon which it makes a fair and equitable division of property and debts and an appropriate resolution of all issues of the parties.

The parties have the following separate assets:

Party	Asset	Value

The parties have the following separate debts:

Party	Debt	Balance

The parties have the following marital assets:

Asset	Value

The parties have the following marital debts:

Debt	Balance

The Court makes the following findings regarding the spousal support factors set forth in R.C. 3105.18:

☐ The parties did not present the Court with a written Shared Parenting Plan or Parenting Plan or read a settlement of their parental rights into the record. Based upon the evidence presented by the parties who appeared, the Court makes the following findings relating to the factors set forth in R.C. 3109.04 and/or 3109.051 upon which it allocates the parties' parental rights and responsibilities in the child(ren)'s best interest:

M. The Court finds that Plaintiff incurred attorney fees and litigation expenses in the amount of $_____ and Defendant incurred attorney fees and litigation expenses in the amount of $_____. It is equitable that: (*select one*)

☐ Each party pay his or her attorney fees and litigation expenses, if any.

☐ Plaintiff pay all or part of Defendant's attorney fees and litigation expenses as follows:

☐ Defendant pay all or part of Plaintiff's attorney fees and litigation expenses as follows:

N. The Court further finds that: _____

_____

_____

_____

JUDGMENT

Based upon the findings set forth above, it is, therefore, **ORDERED, ADJUDGED and DECREED** that:

FIRST: DIVORCE GRANTED

☐ Plaintiff ☐ Defendant is/are granted a divorce on the grounds set forth above. Both parties are released from the obligations of their marriage except for those obligations listed below or as set forth in the attached ☐ Separation Agreement ☐ Shared Parenting Plan ☐ Parenting Plan ☐ Magistrate's Decision which is incorporated in this Judgment Entry as if fully rewritten and/or ☐ as is set forth herein.

SECOND: PROPERTY

The parties' property shall be divided as follows:

A. Plaintiff is awarded the following separate property:

_____

_____

_____

_____

B. Defendant is awarded the following separate property:

_____

_____

_____

_____

C. Each party is awarded all of the household goods, furniture, furnishings, and other personal property currently in their respective possession, free and clear of any claim of the other party, except as specifically set forth in Sections D, E, and F below.

D. Plaintiff is awarded the following real estate and items of personal property, free and clear from all claims of Defendant:

_____

_____

_____

_____

E. Defendant is awarded the following real estate and items of personal property, free and clear from all claims of Plaintiff:

_____

_____

F. Other orders regarding property: _____

G. The parties shall take all necessary steps to transfer legal title and possession of property and take appropriate actions to implement and effectuate the division of retirement accounts within thirty (30) days of this Judgment Entry. The Court reserves jurisdiction over the completion, filing, qualification and/or approval of any document necessary to transfer assets.

H. Other orders regarding transfers: _____

THIRD: DEBT

The parties' debts shall be divided as follows:

A. Plaintiff shall pay the following debts and hold Defendant harmless from all claims:

B. Defendant shall pay the following debts and hold Plaintiff harmless from all claims:

C. Bankruptcy

The Court has continuing jurisdiction to determine whether a debt assigned to a party qualifies as an exception to discharge in bankruptcy according to federal law.

D. Neither party shall incur liabilities against the other party in the future.

FOURTH: SPOUSAL SUPPORT

A. Spousal Support Not Awarded

☐ Neither Plaintiff nor Defendant shall pay spousal support to the other, subject to any jurisdiction reserved in Section E below.

B. Spousal Support Awarded

☐ Plaintiff ☐ Defendant shall pay spousal support to ☐ Plaintiff ☐ Defendant in the amount of $_____ per month commencing on _____. Spousal support shall continue ☐ for a period of _____ months OR ☐ until further order of this Court.

C. Method of Payment of Spousal Support:

☐ Spousal support payments shall be made directly to ☐ Plaintiff ☐ Defendant.

☐ Spousal support payments, plus two percent (2%) processing charge, shall be made to the Ohio Child Support Payment Central, P. O. Box 182372, Columbus, Ohio 43218-2372, as administered through the _____ County Child Support Enforcement Agency by: ☐ income withholding or ☐ other _____.

D. Termination of Spousal Support

Spousal support shall terminate earlier than the above stated date upon Plaintiff's or Defendant's death or in the event of the following:

☐ The cohabitation of the person receiving support in a relationship comparable to marriage.

☐ The remarriage of the person receiving support.

☐ Other: (*specify*) _____

E. Reservation of Jurisdiction

Under all circumstances, the Court shall retain jurisdiction over the issue of spousal support to hear and determine a Motion for Relief from Judgment pursuant to Civ.R. 60(B).

On other matters involving spousal support: (*check all that apply*)

☐ The Court shall retain jurisdiction to modify the amount of the spousal support order.

☐ The Court shall NOT retain jurisdiction to modify the amount of the spousal support order.

☐ The Court shall retain jurisdiction to modify the duration of the spousal support order.

☐ The Court shall NOT retain jurisdiction to modify the duration of the spousal support order.

☐ The Court shall retain jurisdiction to establish or modify the amount and/or duration of spousal support in the event either party files bankruptcy.

F. Other orders regarding spousal support:

_____

_____

G. Arrearage or Overpayment

☐ Any temporary spousal support arrearage or overpayment shall survive this Judgment Entry.

☐ Any temporary spousal support arrearage or overpayment shall not survive this Judgment Entry.

☐ Other: _____

FIFTH: NAME

☐ _____ is restored to the former name of _____

SIXTH: ALLOCATION OF PARENTAL RIGHTS AND RESPONSIBILITIES
(No Shared Parenting Plan or Parenting Plan)

A. Parental rights and responsibilities shall be allocated as follows:

☐ Plaintiff is designated as the residential parent and legal custodian of the following minor child(ren):

_____
_____
_____
_____

☐ Defendant is designated as the residential parent and legal custodian of the following minor child(ren):

_____
_____
_____
_____

☐ Each party shall have parenting time with the minor child(ren) who is/are not residing with him/her according to ☐ the parenting time schedule attached hereto and made a part hereof or ☐ other:

_____
_____
_____
_____

☐ Subject to the Court's continuing jurisdiction, ☐ Plaintiff ☐ Defendant shall not have parenting time with the child(ren) for the following reasons:

_____
_____
_____
_____

B. Relocation Notice
Pursuant to R.C. 3109.051(G):

If the residential parent intends to move to a residence other than the residence specified in the Court Order, the parent shall file a notice of intent to relocate with this Court. Except as provided in R.C. 3109.051(G)(2), (3), and (4), the Court shall send a copy of the notice to the parent who is not the residential parent. Upon receipt of the notice, the Court, on its own motion or the motion of the parent who is not the residential parent, may schedule a hearing with notice to both parents to determine whether it is in the best interest of the child(ren) to revise the parenting time schedule for the child(ren).

The obligation under this notice applies to both parents in a Shared Parenting Plan.

☐ The non-residential parent shall inform the Court and other parent in writing of changes in address and telephone, including cellular telephone number, unless otherwise provided by Court Order.

☐ The residential parent shall inform the Court and other parent in writing of changes in address and telephone, including cellular telephone number, unless otherwise provided by Court Order.

The relocation notice must be filed with the Court that granted the divorce and allocated parental rights and responsibilities (*print name and address of Court*):

_____

_____

Other orders: _____

_____

_____

C. Records Access Notice
Pursuant to R.C. 3109.051(H) and 3319.321(B)(5)(a):

Subject to R.C. 3125.16 and 3319.321(F), the non-residential parent is entitled access to any record related to the child(ren) to which the residential parent is legally provided access under the same terms and conditions as the residential parent, unless otherwise restricted. Any keeper of a record who knowingly fails to comply with permitting record access is in contempt of Court.

Restrictions or limitations:

☐ None

☐ Restrictions or limitations to non-residential parent regarding records access are as follows:

_____

_____

_____

D. Day Care Access Notice
Pursuant to R.C. 3109.051(I):

In accordance with R.C. 5104.039, the non-residential parent is entitled access to any day care center that is or will be attended by the child(ren) with whom parenting time is granted to the same extent that the residential parent is granted access to the center, unless otherwise restricted.

Restrictions or limitations:

☐ None

☐ Restrictions or limitations to non-residential parent regarding day care access are as follows:

_____

_____

_____

E. School Activities Access Notice
Pursuant to R.C. 3109.051(J):

Subject to R.C. 3319.321(F), the non-residential parent is entitled access to any student activity related to the child(ren) to which the residential parent is legally provided access under the same terms and conditions as the residential parent, unless otherwise restricted. Any school employee or official who knowingly fails to comply with permitting school activities access is in contempt of Court.

Restrictions or limitations:

☐ None

☐ Restrictions or limitations to non-residential parent regarding school activities access are as follows:

_____

_____

_____

SEVENTH: CHILD SUPPORT

As required by law, a completed Child Support Worksheet is attached to this document.

The Order for child support and cash medical support is effective _____, 20_____.

For purposes of this order:

☐ Plaintiff ☐ Defendant is the child support obligor (*pays support*).

☐ Plaintiff ☐ Defendant is the child support obligee (*receives support*).

The following information is provided in accordance with R.C.3121.30:

SUPPORT OBLIGOR (pays support):

Name (First, MI, Last): _____

Social Security Number: xxx-xx-_____(fill in last four digits)

Date of Birth: _____

SUPPORT OBLIGEE (receives support):

Name (First, MI, Last): _____

Social Security Number: xxx-xx-_____(fill in last four digits)

Date of Birth: _____

A. Guideline Child Support Amount
The **guideline** child support obligation, as determined by the Child Support Worksheet, is $_____ per child, per month for _____ (number) child(ren), for a total of $_____ per month. (*Line 24 Sole/Shared Parenting Child Support Computation Worksheet* or *Line 25 Split Parenting Child Support Computation Worksheet*)

B. Overnight Parenting Time Adjustment

☐ The child support obligor does not have Court ordered parenting time which is equal to or exceeds ninety (90) overnights.

☐ The child support obligor has Court ordered parenting time which is equal to or exceeds ninety (90) overnights. The above computation reflects an automatic ten percent (10%) adjustment in the guideline child support obligation.

C. Overnight Parenting Time Deviation

☐ Pursuant to R.C. 3119.231, there is extended Court ordered parenting time which:

☐ exceeds ninety (90) overnights but is *not* more than 146 overnights (_____ overnights).

☐ A deviation is *not* granted.

☐ The annual obligation would be unjust and inappropriate and, therefore, not in the best interest of the minor child(ren). A deviation *is* granted for the following reasons:

_____

_____

_____

– OR –

☐ is equal to or exceeds 147 overnights (_____ overnights).

A deviation is ☐ granted ☐ *not* granted for the following reasons:

_____

_____

D. Other Deviation Factors *(if applicable)*

☐ Pursuant to R.C. 3119.22, 3119.23 and/or 3119.24, the annual obligation would be unjust and inappropriate and, therefore, not in the best interest of the minor child(ren) for the following reason(s):

(Check all that apply)

☐ Special and unusual needs of the child(ren), including needs arising from the physical or psychological condition of the child(ren)

_____

_____

☐ Other Court ordered payments

_____

_____

☐ Extended parenting time or extraordinary costs associated with parenting time, including extraordinary travel expenses when exchanging the child(ren) for parenting time

_____

_____

☐ Financial resources and the earning ability of the child(ren)

☐ Relative financial resources, including the disparity in income between parties or households, other assets, and the needs of each parent

☐ Obligee's income, if the obligee's annual income is equal to or less than one hundred percent (100%) of the federal poverty level

☐ Benefits that either parent receives from remarriage or sharing living expenses with another person

☐ Amount of federal, state, and local taxes actually paid or estimated to be paid by a parent or both parents

☐ Significant in-kind contributions from a parent, including, but not limited to, direct payment for lessons, sports equipment, schooling, or clothing

☐ Extraordinary work-related expenses incurred by either parent

☐ Standard of living and circumstances of each parent and the standard of living the child(ren) would have enjoyed had the marriage continued or had the parents been married

☐ Educational opportunities that would have been available to the child(ren) had the circumstances requiring a child support order not arisen

☐ The responsibility of each parent for the support of others, including support of (a) child(ren) with disabilities who are not subject to the support order

☐ Post-secondary educational expenses paid for by a parent for the parent's own child(ren), regardless of whether the child(ren) is/are emancipated

_____

_____

☐ Costs incurred or reasonably anticipated to be incurred by the parents in compliance with Court ordered reunification efforts in child abuse, neglect, or dependency cases

_____

_____

☐ Extraordinary child care costs required for the child(ren) that exceed the maximum state-wide average cost estimate as described in R.C. 3119.05(P)(1)(d), including extraordinary costs associated with caring for (a) child(ren) with specialized physical, psychological, or educational needs

_____

_____

☐ Any other relevant factor: (*specify*)

_____

_____

☐ Extraordinary circumstances associated with shared parenting: (*Only if Shared Parenting is ordered - check all that apply*)

- ☐ Ability of each parent to maintain adequate housing for the child(ren)
- ☐ Each parent's expenses, including child care expenses, school tuition, medical expenses, dental expenses, and other relevant expenses
- ☐ Any other relevant circumstances: (*specify*)

  _____

E. Monthly Child Support Obligation

The child support obligor (pays support) shall pay child support in the amount of $_____ per child, per month for _____ (number) child(ren), for a total of $_____ per month, plus two percent (2%) processing charge. (*If there is no child support deviation, Line 24 Sole/Shared Child Support Computation Worksheet, or Line 25 Split Parenting Child Support Computation Worksheet. If there is a deviation in child support, Line 26 Sole/Shared Child Support Computation Worksheet, or Line 27 Split Parenting Child Support Computation Worksheet*.)

F. Arrearage or Overpayment

- ☐ Child support arrearage or overpayment for the minor child(ren) payable either by administrative order, temporary or final order **shall** survive and continue as an enforceable obligation until paid in full.
- ☐ Child support arrearage or overpayment for the minor child(ren) payable either by administrative order, temporary or final order **shall not** survive and continue as an enforceable obligation until paid in full, except those arrearages assigned to and due to the Department of Job and Family Services.

G. Method to Secure Support Payment(s)

All support under this Order shall be withheld or deducted from the income or assets of the support obligor pursuant to a withholding or deduction notice or appropriate Order issued in accordance with R.C. Chapters 3119, 3121, 3123, and 3125 or a withdrawal directive issued pursuant to R.C. 3123.24 to 3123.38 and shall be forwarded to the obligee in accordance with R.C. Chapters 3119, 3121, 3123, and 3125.

The support obligor shall immediately notify the _____ County Child Support Enforcement Agency, in writing, of any change in employment (including self-employment), receipt of additional income/monies or termination of benefits. The support obligor shall include a description of the nature of the employment and the name, business address, and telephone number of any employer.

The specific withholding or deduction requirements to be used to collect the support shall be set forth and determined by reference to the notices that are sent out by the Child Support Enforcement Agency in accordance with R.C. 3121.03 and shall be determined without the need for any amendment to the support order. Those notices, plus the notices provided by the Child Support Enforcement Agency that require the child support obligor to notify the Child Support Enforcement Agency of any change in his/her employment status or of any other change in the status of his/her assets, are final and enforceable by the court. Each withholding notice shall be for the current child support, current cash medical support, any arrearage payment, and processing charges.

All support shall be paid through Ohio Child Support Payment Central (OCSPC), P.O. Box 182372, Columbus, Ohio 43218-2372. Checks or money orders shall be made payable to "OCSPC". All payments shall include the following: Obligor's name, Social Security Number, SETS case number, and Domestic Relations Court case number. **If there is to be a withholding/deduction order, the support obligor shall make payments directly to OCSPC until the income source/financial institution begins withholding/deducting in the appropriate amount.**

Pursuant to R.C. 3121.45, any payment of money by the child support obligor to the child support obligee that is not made through OCSPC or the Child Support Enforcement Agency administering the support order shall not be considered a payment under the support order and, unless the payment is made to discharge an obligation other than support, shall be deemed a gift.

Payments shall be made in the manner ordered by the Court. If payments are to be made other than on a monthly basis, the required monthly administration by the _____ County Child Support Enforcement Agency does not affect the frequency or the amount of the support payments to be made under the order.

(Check one of the following three boxes)

☐ The support obligor receives income from an income source.

A withholding or deduction notice shall issue to:

INCOME SOURCE: _____

ADDRESS: _____

_____

– OR –

☐ The support obligor has nonexempt funds on deposit in an account at a financial institution.

A withholding or deduction notice shall issue to:

FINANCIAL INSTITUTION: _____

ADDRESS: _____

_____

If withholding from a financial account, the support obligor shall immediately notify the _____ County Child Support Enforcement Agency of the number and description of the account from which support shall be deducted, and the name, branch, business address, and routing number of the financial institution if not set forth above.

The support obligor shall immediately notify the _____ County Child Support Enforcement Agency of any change in the status of an account from which support is being deducted or the opening of a new account with any financial institution.

– OR –

☐ The support obligor has no attachable income source at this time.

The support obligor shall immediately notify the _____ County Child Support Enforcement Agency, in writing, if the support obligor begins to receive income from a payor. The notice shall include a description of the nature of any new employment, and the name, business address, and telephone number of any new employer.

☐ The support obligor shall seek employment, if able to engage in employment. Obligor's employment search must include registration with Ohio Means Jobs at https://jobseeker.ohiomeansjobs.monster.com. Obligor shall immediately notify the _____ County Child Support Enforcement Agency, in writing, upon commencement or change of employment (including self-employment), receipt of additional income/monies, obtaining ownership of asset of value of $500.00 or more, receipt or termination of benefits, or the opening of an account at a financial institution. The support obligor shall include a description of the nature of the employment and the name, business address, and telephone number of any employer. The support obligor shall immediately notify the _____ County Child Support Enforcement Agency of any change in the status of an account from which support is being deducted or the opening of a new account with any financial institution.

H. Duration and Termination of Support & Required Notices

The duty of child support and cash medical support for each child shall continue until further order of Court or until the above-named child reaches age eighteen (18) unless one of the following circumstances applies:

- The child is mentally or physically disabled and is incapable of supporting or maintaining himself, herself or themselves.
- The parents have agreed to continue child support beyond the date it would otherwise terminate.
- The child continuously attends a recognized and accredited high school on a full-time basis so long as the child has not, as yet, reached the age of nineteen (19) years old. Under this circumstance, child support will end at the time the child graduates or ceases to attend a recognized and accredited high school on a full-time basis or when the child reaches the age of nineteen (19), whichever occurs first.

The child support and cash medical support order will remain in effect during seasonal vacation periods until the order terminates.

☐ The parties have agreed that the child support and cash medical support obligation will extend beyond the time when it would otherwise end. The terms and conditions of that agreement are as follows:

_____

_____

_____

_____

☐ The parties have (a) child(ren) who is/are mentally or physically disabled and incapable of supporting or maintaining himself, herself or themselves, and child support and cash medical support will extend beyond the time when it would otherwise end. The name of the child(ren) and the nature of the mental or physical disability(ies) is/are as follows:

_____

_____

_____

The residential parent and legal custodian of the child(ren) shall immediately notify, and the child support obligor may notify, the _____ County Child Support Enforcement Agency of any reason for which the child support order should terminate, including, but not limited to, the child's death, marriage, emancipation (age 18 or high school completion/termination), enlistment in the Armed Services, deportation, or change of legal custody. A willful failure to notify the _____ County Child Support Enforcement Agency may be contempt of Court.

EACH PARTY TO THIS SUPPORT ORDER MUST NOTIFY THE CHILD SUPPORT ENFORCEMENT AGENCY IN WRITING OF HIS OR HER CURRENT MAILING ADDRESS, CURRENT RESIDENCE ADDRESS, CURRENT RESIDENCE TELEPHONE NUMBER, CURRENT DRIVER'S LICENSE NUMBER, AND OF ANY CHANGES IN THAT INFORMATION. EACH PARTY MUST NOTIFY THE AGENCY OF ALL CHANGES UNTIL FURTHER NOTICE FROM THE COURT OR AGENCY, WHICHEVER ISSUED THE SUPPORT ORDER.

IF YOU ARE THE OBLIGOR UNDER A CHILD SUPPORT ORDER AND YOU FAIL TO MAKE THE REQUIRED NOTIFICATIONS, YOU MAY BE FINED UP TO $50 FOR A FIRST OFFENSE, $100 FOR A SECOND OFFENSE, AND $500 FOR EACH SUBSEQUENT OFFENSE. IF YOU ARE AN OBLIGOR OR OBLIGEE UNDER ANY SUPPORT ORDER ISSUED BY A COURT AND YOU WILLFULLY FAIL TO GIVE THE REQUIRED NOTICES, YOU MAY BE FOUND IN CONTEMPT OF COURT AND BE SUBJECTED TO FINES UP TO $1,000 AND IMPRISONMENT FOR NOT MORE THAN 90 DAYS.

IF YOU ARE AN OBLIGOR OR OBLIGEE AND YOU FAIL TO GIVE THE REQUIRED NOTICES TO THE CHILD SUPPORT ENFORCEMENT AGENCY, YOU MAY NOT RECEIVE NOTICE OF THE CHANGES AND REQUESTS TO CHANGE THE CHILD SUPPORT AMOUNT, HEALTH CARE PROVISIONS, REDIRECTION OR TERMINATION OF THE CHILD SUPPORT ORDER. IF YOU ARE AN OBLIGOR AND YOU FAIL TO GIVE THE REQUIRED NOTICES, YOU MAY NOT RECEIVE NOTICE OF THE FOLLOWING ENFORCEMENT ACTIONS AGAINST YOU: IMPOSITION OF LIENS AGAINST YOUR PROPERTY; LOSS OF YOUR PROFESSIONAL OR OCCUPATIONAL LICENSE, DRIVER'S LICENSE, OR RECREATIONAL LICENSE; WITHHOLDING FROM YOUR INCOME; ACCESS RESTRICTION AND DEDUCTION FROM YOUR ACCOUNTS IN FINANCIAL INSTITUTIONS; AND ANY OTHER ACTION PERMITTED BY LAW TO OBTAIN MONEY FROM YOU TO SATISFY YOUR SUPPORT OBLIGATION.

EIGHTH: HEALTH INSURANCE COVERAGE

A. ☐ Private Health Insurance Coverage IS NOT available for the minor child(ren).

Neither parent has accessible private health insurance coverage available at a reasonable cost to cover the minor child(ren) at the time of the issuance of this order.

The child support obligee shall obtain health care coverage (private health insurance coverage or public health care plan) for the child(ren) not later than thirty (30) days after it becomes available at a reasonable cost, and shall inform the _____ County Child Support Enforcement Agency when health care coverage for the child(ren) has been obtained.

If private health insurance coverage becomes available to the child support obligor at a reasonable cost, the child support obligor shall inform the _____ County Child Support Enforcement Agency and may seek a modification of health care coverage from the Court with respect to a Court child support order, or from the agency with respect to an administrative support order.

B. ☐ Private Health Insurance Coverage IS available for the minor child(ren).

☐ Plaintiff has private health insurance coverage for the minor child(ren);
☐ Defendant has private health insurance coverage for the minor child(ren); or
☐ Both parents have private health insurance coverage available for the minor child(ren).

1. Accessibility of Private Health Insurance Coverage.

The available private health insurance coverage for the minor child(ren) is accessible because:

(*Check one of the following three boxes)*

☐ Primary care services are within thirty (30) miles of the child(ren)'s residence.
☐ The Court permits primary care services farther than thirty (30) miles of the child(ren)'s residence because residents in the geographic area customarily travel farther distances.
☐ Primary care services are accessible by public transportation because public transportation is the child support obligee's only source of transportation.

2. Reasonableness of Cost of Private Health Insurance Coverage.

Pursuant to R.C. 3119.29(F), for purposes of determining reasonable cost, the total cost of private health insurance coverage to the person required to provide private health insurance coverage for the child(ren) subject to the child support order does not exceed an amount equal to five percent (5%) of the annual income of that person.

(*Check one of the following two sections*)

☐ The total cost of private health insurance coverage available to ☐ Plaintiff and/or ☐ Defendant **does not exceed** that parent's Health Insurance Maximum. (*Line 8 Child Support Computation Worksheet*)

– OR –

☐ The total cost of private health insurance coverage available to ☐ Plaintiff and/or ☐ Defendant **exceeds** that parent's Health Insurance Maximum. (*Line 8 Child Support Computation Worksheet*)

(Check one of the three sections below)

☐ Both parents agree that ☐Plaintiff ☐Defendant or ☐Both parents shall obtain or maintain private health insurance coverage, the cost of which exceeds the Health Insurance Maximum for that parent.

– OR –

☐ Plaintiff ☐Defendant has requested to obtain or maintain private health insurance coverage, the cost of which exceeds the Health Insurance Maximum for that parent.

– OR –

☐ It is in the best interest of the child(ren) for ☐Plaintiff ☐Defendant to obtain or maintain private health insurance coverage for the child(ren) even though the total cost of private health insurance coverage exceeds that parent's Health Insurance Maximum. The cost of private health insurance coverage will not impose an undue financial burden because:

_____

_____

3. Person Required to Provide Private Health Insurance Coverage.

☐ Plaintiff ☐ Defendant ☐ Both parents shall provide private health insurance coverage for the child(ren) until further order of Court for the following reasons:

(Check one of the following six boxes)

☐ The child support obligee is rebuttably presumed to be the appropriate parent to provide private health insurance coverage for the child(ren).

☐ The child support obligor already has private health insurance coverage for the child(ren) that is reasonable in cost.

☐ The child support obligor already has private health insurance coverage in place for the child(ren) that is not reasonable in cost, but the child support obligor wishes to be named the private health insurance obligor and provide coverage.

☐ The child support obligor can obtain private health insurance coverage for the child(ren) that is reasonable in cost through an employer or other source.

☐ The child support obligee is a non-parent individual or agency that has no duty to provide medical support.

☐ Both parents wish to provide and already have private health insurance coverage in place or have private health insurance coverage available for the child(ren).

If both parents are providing private health insurance coverage for the minor child(ren), ☐ Plaintiff's ☐Defendant's private health insurance coverage plan shall be considered the primary private health insurance coverage plan for the child(ren).

Should private health insurance coverage be cancelled for any reason, the parent ordered to maintain private health insurance coverage shall immediately notify the other parent of the cancellation.

C. Health Care Coverage Requirements

Within thirty (30) days after the issuance of this support order, the person required to provide health care coverage for the child(ren) must provide to the other parent or to the child support obligee information regarding the benefits, limitations, and exclusions of the coverage, copies of any forms necessary to receive reimbursement, payment or other benefits under the coverage, and a copy of any necessary proof of coverage.

Within thirty (30) days after the issuance of this order, the person required to provide health care coverage for the child(ren) shall provide to the Child Support Enforcement Agency documentation that verifies health care coverage is being provided as ordered.

The individual who is designated to be reimbursed for health care expenses for the child(ren) is:

Name: _____

Address: _____

_____

The person required to provide health care coverage for the child(ren) shall designate the child(ren) as covered dependent(s) under any health care coverage policy, contract, or plan.

Pursuant to R.C. 3119.32(E), the employer of the person required to provide health care coverage for the child(ren) is required to release to the other parent, any person subject to an order issued under R.C. 3109.19, or the Child Support Enforcement Agency, on written request, any necessary information on the health care coverage, including the name and address of the health plan administrator and any policy, contract, or plan number, and to otherwise comply with R.C. 3119.32 and any order or notice issued under R.C. 3119.32.

Pursuant to R.C. 3119.32(G), if the person required to obtain health care coverage for the child(ren) subject to this child support order obtains new employment, the agency shall comply with the requirements of R.C. 3119.34, which may result in the issuance of a notice requiring the new employer to take whatever action is necessary to enroll the children in private health care insurance coverage provided by the new employer, when insurance is not being provided by any other source.

NINTH: CASH MEDICAL SUPPORT & CHILDREN'S HEALTH CARE EXPENSES

A. Liability for Child(ren)'s Health Care Expenses

Pursuant to R.C. 3119.30(A), both parents are liable for the health care expenses of the child(ren) who is/are not covered by private health insurance coverage.

Cash medical support is an amount paid in a child support order toward the ordinary health care expenses incurred during a calendar year. Ordinary health care expenses include copayments and deductibles, and uninsured health-related costs.

Extraordinary health care expenses are any uninsured health care expenses incurred for a child during a calendar year that exceed the total cash medical support amount owed by the parents during that year.

Each party shall have access to all health care records of the child(ren) as provided by law, or as otherwise limited in this document.

The term "health care expense" or "health care records" shall include, but not be limited to, medical, dental, orthodontic, optical, pharmaceutical, surgical, hospital, major medical, psychological, psychiatric,

outpatient, doctor, therapy, counseling, prosthetic, and/or all other expenses/records including preventative health expenses/records related to the treatment of the human body and mind.

The parent who receives a health care bill, and/or an Explanation of Benefits (EOB), or who incurs a health care expense, shall provide the other parent the original or a copy of the bill, and/or EOB, if available, within (thirty) 30 days of the date on the bill or EOB, or a receipt, absent extraordinary circumstances. The other parent shall reimburse the parent incurring the expenses or pay directly to the health care provider, that parent's percentage share of the bill as shown in Section D below.

B. Guideline Cash Medical Support Obligation

The parents' combined **annual** cash medical support obligation, as determined by the applicable worksheet, is $_____. (*Line 23a Child Support Computation Worksheet)*

The Obligor's (pays support) guideline **annual** cash medical support obligation is $_____. (*Line 23b Child Support Computation Worksheet*)

The Obligee's (receives support) guideline **annua**l cash medical support obligation is $_____. (*Line 23b Child Support Computation Worksheet*) The Obligee's cash medical support obligation is not subject to collection by the Child Support Enforcement Agency.

C. Deviation in Cash Medical Support (*if applicable*)

Pursuant to R.C. 3119.22, 3119.23 and/or 3119.24, the annual guideline cash medical support obligation would be unjust and inappropriate and, therefore, not in the best interest of the minor child(ren) for the following reason(s):

☐ The same reasons referenced in this document regarding the child support deviation.

– OR –

☐ _____

_____

_____

D. Cash Medical Support Obligation and Division of Child(ren)'s Health Care Expenses

(Check one of the following two boxes)

☐ The cash medical support obligation is not deviated.

Obligor shall pay cash medical support in the amount of $_____ per child, per month, for _____ (number) child(ren) for a total of $_____, per month, plus two percent (2%) processing charge through the Child Support Enforcement Agency. (*Line 27 Sole/Shared Parenting Child Support Computation Worksheet*, or *Line 29 Split Parenting Child Support Computation Worksheet*)

Plaintiff shall pay _____% and Defendant shall pay _____% of the health care expenses incurred for a child during a calendar year that exceed $_____, the parents' total combined

annual cash medical support obligation, as determined by the applicable worksheet. (*Line 23a Child Support Computation Worksheet*)

– OR –

☐ The cash medical support obligation is deviated.

Obligor shall pay cash medical support in the amount of $_____ per child, per month, for ____(number) child(ren) for a total of $_____, per month, plus two percent (2%) processing charge through the Child Support Enforcement Agency. (*Line 29 Sole/Shared Parenting Child Support Computation Worksheet*, or *Line 31 Split Parenting Child Support Computation Worksheet*)

Obligee's cash medical support obligation is deviated to $_____ per month. (*Line 29, Sole/Shared Parenting Child Support Computation Worksheet* or *Line 31 Split Parenting Child Support Computation Worksheet*) Obligee's cash medical support obligation is not subject to collection by the Child Support Enforcement Agency.

Plaintiff shall pay _____% and the Defendant shall pay _____% of the health care expenses incurred for a child during a calendar year that exceed $_____, the parents' total combined annual deviated cash medical support obligation, as determined by the applicable worksheet. (*Line 29* amounts added together and multiplied by twelve *Sole/Shared Child Support Computation Worksheet*, *Line 31* amounts added together and multiplied by twelve *Split Parenting Child Support Computation Worksheet*)

TENTH: TAX DEPENDENCY (The award of a tax dependency exemption may affect the ability to secure health insurance through the Marketplace.)

A. ☐ Plaintiff shall be entitled to claim the following minor child(ren) as (a) dependent(s) for all tax purposes for ☐ even-numbered tax years ☐ odd-numbered tax years ☐ all eligible tax years, so long as substantially current in any child support required to be paid as of December 31 of the tax year in question: _____.

☐ Defendant shall be entitled to claim the following minor child(ren) as (a) dependent(s) for all tax purposes for ☐ even-numbered tax years ☐ odd-numbered tax years ☐ all eligible tax years, so long as substantially current in any child support required to be paid as of December 31 of the tax year in question:_____.

B. ☐ Other orders regarding tax exemptions: (*specify*)

_____

_____

If a non-residential parent is entitled to claim the child(ren), the residential parent is required to execute and deliver Internal Revenue Service Form 8332, or its successor, together with any other required forms as set out in section 152 of the Internal Revenue Code, as amended, on or before February 15th of the year following the tax year in question, to allow the non-residential parent to claim the minor child(ren).

ELEVENTH: OTHER ORDERS

_____

_____

TWELFTH: TEMPORARY ORDERS

All temporary orders in this case are terminated.

THIRTEENTH: PAYMENT OF ATTORNEY FEES AND LITIGATION EXPENSES (*select one*)

☐ Each party shall pay his/her own attorney fees and litigation expenses, if any.

☐ Plaintiff shall pay _____ of attorney fees and litigation expenses incurred by Defendant. The same shall be paid as follows: _____

☐ Defendant shall pay _____ of attorney fees and litigation expenses incurred by Plaintiff. The same shall be paid as follows: _____

FOURTEENTH: COURT COSTS

Court costs are: (*select one*)

☐ Taxed to the deposit. Court costs due above the deposit shall be paid as follows:

_____

☐ Other (*specify*): _____

FIFTEENTH: CLERK OF COURTS

The Clerk of Courts shall provide:

☐ a certified copy to: _____

☐ a file stamped copy to: Child Support Enforcement Agency

_____

_____

JUDGE

_____	_____
Plaintiff Signature	Defendant Signature
_____	_____
Printed Name	Printed Name
_____	_____
Plaintiff's Attorney Signature	Defendant's Attorney Signature
_____	_____
Printed Name	Printed Name
_____	_____
Supreme Court Reg No.	Supreme Court Reg No.

NOTICE. This is a final appealable order. The Clerk is directed to serve upon all parties notice of this Judgment Entry and its date of entry upon the journal in accordance with Civ.R. 5(B), in the manner provided in Civ.R. 58(B).

IN THE COURT OF COMMON PLEAS
_____ DIVISION
_____ COUNTY, OHIO

_____ Case No. _____
Name

_____ Judge _____
Street Address

_____ Magistrate _____
City, State and Zip Code

Plaintiff/Petitioner 1

vs./and

_____
Name

_____
Street Address

_____
City, State and Zip Code

Defendant/Petitioner 2

JUDGMENT ENTRY CONVERTING INTEREST IN REAL ESTATE

The parties' marriage was terminated in a Judgment Entry filed on _____. Pursuant to said Judgment Entry, it is ORDERED that _____ is divested of all rights, title, and interest in the real estate as set forth in the legal description, including deed reference and Permanent Parcel Number, attached hereto as Exhibit A and made a part hereof.

It is further ORDERED that _____is vested with all rights, title, and interest of the real estate described in Exhibit A attached hereto and made a part hereof. The Auditor and Recorder of_____ County are ORDERED to accept this Judgment Entry as transfer of such interest and reflect the same on their books and records. The filing of this Judgment Entry with the Recorder and Auditor shall effectuate the conveyance of the real estate interest.

Court costs shall be:

☐ Taxed to the deposit. Court costs due above the deposit shall be paid as follows: _____

_____

☐ Other: (*specify*) _____

_____
JUDGE

IN THE COURT OF COMMON PLEAS
_____ DIVISION
_____ COUNTY, OHIO

_____ Case No. _____
Name

_____ Judge _____
Street Address

_____ Magistrate _____
City, State and Zip Code

Petitioner 1

and

_____
Name

_____
Street Address

_____
City, State and Zip Code

Petitioner 2

WARNING: This form is not a substitute for the benefit of the advice of legal counsel. It is highly recommended that you consult an attorney.

Instructions: This form is used to request ending the marriage when the parties have agreed on all aspects of the termination, including the division of real estate, personal property, debts, spousal support, and, if there is/are (a) child(ren), allocation of parental rights and responsibilities (custody), parenting time (companionship and visitation) and child support. A Separation Agreement (Uniform Domestic Relations Form 19) must be filed with this Petition. If there is/are child(ren), a Parenting Proceeding Affidavit (Uniform Domestic Relations Form 3) and either a Shared Parenting Plan (Uniform Domestic Relations Form 20) or a Parenting Plan (Uniform Domestic Relations Form 21) must be filed with this Petition. The Court may require additional forms to accompany this document. You must check the requirements of the county in which you file. **YOU MUST UPDATE THE CLERK OF COURTS IF ANY OF THE ABOVE CONTACT INFORMATION CHANGES.**

PETITION FOR DISSOLUTION OF MARRIAGE AND WAIVER OF SERVICE OF SUMMONS
☐ WITH CHILDREN ☐ WITHOUT CHILDREN

Now come Petitioners and state as follows:

1. ☐ Petitioner 1 ☐ Petitioner 2 ☐ Both parties has/have been (a) resident(s) of the State of Ohio for at least six (6) months immediately before the filing of this Petition.

2. Petitioners consent to venue.

3. Petitioners were married on _____ (date of marriage) in _____ (city or county, and state).

4. ☐ Neither party is pregnant OR ☐ a party is pregnant.

5. *Check all that apply*: (If more space is needed, add additional pages)

☐ There is/are no minor child(ren) born from or adopted during this marriage or relationship.

☐ The following child(ren) was/were born of the parties' relationship prior to the marriage:

Name of Child	**Date of Birth**

☐ The following child(ren) was/were born from or adopted during this marriage:

Name of Child	**Date of Birth**

☐ The following child(ren) was/were born from or adopted during this marriage or relationship and is/are mentally or physically disabled and will be incapable of supporting or maintaining themselves:

Name of Child	**Date of Birth**

☐ The following child(ren) is/are subject to an existing order of parenting or support of another Court or agency:

Name of Child	**Date of Birth**	**Name of Court or Agency**

☐ One party is not the parent of the following child(ren) who was/were born during the marriage:

Name of Child	**Date of Birth**

6. Military Service:

☐ Neither Petitioner 1 nor Petitioner 2 is an active-duty servicemember of the United States military.
☐ Petitioner 1 and/or ☐ Petitioner 2 is an active-duty servicemember of the United States military.

7. Petitioners entered into a Separation Agreement which is attached and incorporated herein as if fully written.

8. If Petitioners have (a) minor child(ren): (*select one*)
   ☐ Petitioners agreed to a Shared Parenting Plan which is attached and incorporated herein as if fully written.
   ☐ Petitioners agreed to a Parenting Plan which is attached and incorporated herein as if fully written.

9. Petitioners are both over eighteen (18) years of age, are not under any disability, and waive all rights to receive Summons for the dissolution action through the Clerk of Courts.

10. ☐ _____, requests to be restored to the former name of _____ .

Petitioners request that the Court dissolve their marriage and issue a Judgment Entry-Decree of Dissolution of Marriage adopting the terms of the Separation Agreement and the Shared Parenting Plan or Parenting Plan, if there is/are (a) child(ren).

_____ Petitioner 1 Signature	_____ Petitioner 2 Signature
_____ Printed Name	_____ Printed Name
_____ Address	_____ Address
_____ City, State, Zip	_____ City, State, Zip
_____ Phone Number	_____ Phone Number
_____ Fax Number	_____ Fax Number
_____ E-mail	_____ E-mail
_____ Petitioner 1 Attorney Signature	_____ Petitioner 2 Attorney Signature
_____ Printed Name	_____ Printed Name
_____ Address	_____ Address
_____ City, State, Zip	_____ City, State, Zip
_____ Phone Number	_____ Phone Number
_____ Fax Number	_____ Fax Number
_____ E-mail	_____ E-mail
_____ Supreme Court Reg No.	_____ Supreme Court Reg No.

IN THE COURT OF COMMON PLEAS
_____ DIVISION
_____ COUNTY, OHIO

_____ Case No. _____
Name

_____ Judge _____
Street Address

_____ Magistrate _____
City, State and Zip Code

Petitioner 1

and

_____
Name

_____
Street Address

_____
City, State and Zip Code

Petitioner 2

JUDGMENT ENTRY – DECREE OF DISSOLUTION OF MARRIAGE
☐ WITH CHILDREN ☐ WITHOUT CHILDREN

This matter came on for hearing on_____ before ☐ Judge ☐ Magistrate _____, upon the Petition for Dissolution of Marriage filed on _____.

Petitioner 1 was present and ☐ was ☐ was not represented by counsel_____.
Petitioner 2 was present and ☐ was ☐ was not represented by counsel_____.

FINDINGS

1. ☐ Petitioner 1 ☐ Petitioner 2 ☐ Both parties was/were (a) resident(s) of the State of Ohio for at least six (6) months immediately before the filing of the Petition.

2. Both parties consented to venue.

3. ☐ Not less than thirty (30) days nor more than ninety (90) days have elapsed after the filing of the Petition.
   ☐ The parties successfully completed a collaborative family law process and not more than ninety (90) days have elapsed since the filing of the Petition.

4. The parties were married on _____ (date of marriage) in _____ (city or county, and state).

5. ☐ Neither party is pregnant OR ☐ a party is pregnant.

6. ☐ There is/are no minor child(ren) born from or adopted during this marriage or relationship.

☐ The following child(ren) was/were born of the parties' relationship prior to the marriage:

Name of Child	Date of Birth

☐ The following child(ren) was/were born from or adopted during this marriage:

Name of Child	Date of Birth

☐ The following child(ren) was/were born from or adopted during this marriage or relationship and is/are mentally or physically disabled and will be incapable of supporting or maintaining themselves:

Name of Child	Date of Birth

☐ The following child(ren) is/are subject to an existing order of parenting or support of another Court:

Name of Child	Date of Birth

☐ One party is not the parent of the following child(ren) who was/were born during the marriage:

Name of Child	Date of Birth

7. Military Service:

☐ Neither Petitioner 1 nor Petitioner 2 is an active-duty servicemember of the United States military.
☐ Petitioner 1 and/or ☐ Petitioner 2 is an active-duty servicemember of the United States military; however, active-duty service did not impact the member's ability to prosecute or defend this action.

8. Upon examination under oath, the parties acknowledged that they voluntarily entered into a Separation Agreement which was attached to the Petition, ☐ as modified on _____, and is attached hereto as Exhibit A. Petitioners are satisfied with the terms of the Agreement, fully understand same and believe it is a fair and equitable division of their assets and debts. Petitioners desire the Court to approve and adopt the Agreement.

9. Upon examination under oath, the parties acknowledged that they voluntarily entered into a ☐ Shared Parenting Plan OR ☐ Parenting Plan which was attached to the Petition, ☐ as modified on _____, and is attached hereto as Exhibit B. Petitioners are satisfied with the terms of the Plan, fully understand same and believe it to be in the best interest of their child(ren). Petitioners desire the Court to approve and adopt the Plan.

10. _____ requests to be restored to the former name of_____.

11. Petitioners desire to have the marriage dissolved.

JUDGMENT

Based upon the findings set forth above, it is, therefore, **ORDERED, ADJUDGED and DECREED**:

FIRST: DISSOLUTION GRANTED

The dissolution of marriage is granted.

The Court approves the:

☐ Separation Agreement OR ☐ Amended Separation Agreement
☐ Shared Parenting Plan OR ☐ Amended Shared Parenting Plan
☐ Parenting Plan OR ☐ Amended Parenting Plan

as submitted and releases the parties from the obligations of their marriage except as set forth in the attached Agreement and ☐ Plan which is/are incorporated in this Judgment Entry – Decree of Dissolution of Marriage as if fully rewritten.

The parties shall fulfill each and every obligation imposed by the Agreement and ☐ Plan as submitted and modified, if applicable. This Judgment Entry – Decree of Dissolution shall constitute a Parenting Decree under R.C. 3109.04(D).

SECOND: NAME

☐ _____ is restored to the former name of _____.

THIRD: OTHER

☐ _____

_____

_____

_____

FOURTH: COURT COSTS

Court costs are:

☐ Taxed to the deposit. Court costs due above the deposit shall be paid as follows:

☐ Other: (*specify*) _____

FIFTH: CLERK OF COURTS

The Clerk of Courts shall provide:

☐ a certified copy to: _____

☐ a file stamped copy to: Child Support Enforcement Agency, if there are children

_____

_____
JUDGE

_____	_____
Petitioner 1 Signature	Petitioner 2 Signature
_____	_____
Printed Name	Printed Name
_____	_____
Petitioner 1's Attorney Signature	Petitioner 2's Attorney Signature
_____	_____
Printed Name	Printed Name
_____	_____
Supreme Court Reg No.	Supreme Court Reg No.

The Clerk is directed to serve upon all parties notice of this Judgment Entry and its date of entry upon the journal in accordance with Civ.R. 5(B), in the manner provided in Civ.R. 58(B).

IN THE COURT OF COMMON PLEAS
_____ DIVISION
_____ COUNTY, OHIO

_____ Case No. _____
Name

_____ Judge _____
Street Address

_____ Magistrate _____
City, State and Zip Code

Plaintiff/Petitioner 1

vs./and

_____
Name

_____
Street Address

_____
City, State and Zip Code

Defendant/Petitioner 2

WARNING: This form is not a substitute for the benefit of the advice of legal counsel. It is highly recommended that you consult an attorney.

Instructions: This form is used to present an agreement to the Court regarding spousal support, the division of personal property, real estate, and debts resulting from the termination of marriage. If the parties have any minor child(ren) or child(ren) with disabilities, a Shared Parenting Plan (Uniform Domestic Relations Form 20) or Parenting Plan (Uniform Domestic Relations Form 21) must be attached. The Court may require additional forms to accompany this document. You must check the requirements of the county in which you file. **YOU MUST UPDATE THE CLERK OF COURTS IF ANY OF THE ABOVE CONTACT INFORMATION CHANGES.**

SEPARATION AGREEMENT

The parties, _____ and _____, state as follows:

1. The parties were married on _____(date of marriage) in _____(city or county, and state).

2. The parties request that the termination of marriage be ☐ the date of the final hearing or ☐ the date specified: _____.

3. The parties intend to live separate and apart.

4. Each party completed (a) financial disclosure affidavit(s) which fully and accurately lists and values all marital property, separate property, and any other assets, debts, income, and expenses.

5. Each party acknowledges that he/she reviewed the other party's completed financial disclosure affidavit(s).

6. Each party's financial disclosure affidavit(s) shall be filed in the Court's Family File pursuant to Sup.R. 44(C)(2)(h) no later than the date upon which this Agreement is filed.

7. Neither party has knowledge of any other property or debts of any kind in which either party has an interest.

8. Each party had the opportunity to value and verify all marital property, separate property, and debts.

9. A party's willful failure to disclose may result in the Court awarding the other party three (3) times the value of the property, assets, income, or expenses that were not disclosed.

10. This Agreement addresses spousal support, property, and debt division.

11. This Agreement is the complete agreement of the parties.

12. There are no other representations, agreements, statements, or prior writings that shall have any effect on this Agreement.

13. Each party fully understands this Agreement and has knowingly and voluntarily signed this Agreement.

14. No change to the terms of this Agreement shall be valid unless in writing and knowingly and voluntarily signed by both parties and incorporated into a Court order.

The parties agree as follows:

FIRST: SEPARATION
The parties shall live separate and apart. Neither party shall interfere with the activities, personal life, or privacy of the other, harass the other, or engage in any conduct calculated to restrain, embarrass, injure, or hinder the other in any way.

SECOND: PROPERTY
Marital property is defined in R.C. 3105.171. Generally, marital property is property acquired during the marriage which is owned by either or both spouses and property in which either spouse has an interest.

Separate property is defined in R.C. 3105.171. Generally, separate property is property that was inherited, acquired by one spouse prior to the date of marriage, acquired after a decree of legal separation under R.C. 3107.17, excluded by a valid antenuptial agreement, received as compensation for personal injury, (except for loss of marital earnings and compensation for expenses paid from marital assets), or any gift of property that was given to only one (1) spouse.

A. Real Estate: (*select one*)

Real estate includes, but is not limited to, land, mortgaged properties, buildings, fixtures attached to buildings, attached structures (for example, garage, in-ground pool), condominiums, time shares, mobile homes officially converted to real estate, natural condition stakes (for example, gas, oil, mineral rights, existing soil, including trees and landscape), and remainder rights in real estate.

1. ☐ Neither party has any ownership interest in any real estate.

2. ☐ One or both of the parties has/have an interest in real estate and agree to distribute the interest(s) as follows:

Address or Parcel Number of Property	Party

3. A legal description of the property (found in the property's deed) should be attached.

4. Each party shall pay and hold the other harmless from any debt, including mortgages, real estate taxes and assessments, and other liens owing on real estate received unless otherwise stated in this Agreement.

5. Other arrangements regarding real estate, including, but not limited to, refinancing or sale:

_____

_____

_____

If the real estate is not in the name of the party to whom it is distributed, the parties shall transfer the property to the proper party no later than thirty (30) days after filing the Final Judgment Entry unless otherwise provided in this Agreement.

B. Titled Vehicles: (*select one*)

Titled vehicles include, but are not limited to, boats, trailers, automobiles, motorcycles, trucks, mobile homes not officially converted to real estate, golf carts, motor scooters, sport utility vehicles (SUV), recreational vehicles (RV), and all purpose vehicles (APV). Provide vehicle year, make, model, and vehicle identification or serial number (VIN/SN) for all titled vehicle(s).

1. ☐ Neither party has any ownership interest in any titled vehicle(s).

2. ☐ Plaintiff/Petitioner 1 shall receive the following titled vehicle(s) free and clear of any claim of Defendant/Petitioner 2:

Year	Make	Model	VIN/SN

3. ☐ Defendant/Petitioner 2 shall receive the following titled vehicle(s) free and clear of any claim of Plaintiff/Petitioner 1

Year	Make	Model	VIN/SN

4. Each party shall pay and hold the other harmless from any debt owing on the titled vehicle(s) received unless otherwise stated in this Agreement.

5. Other arrangements regarding titled vehicles, including, but not limited to, refinancing or sale:

_____

_____

_____

If any vehicle's title is not in the name of the party to whom it is distributed, the current title holder shall transfer that title to the proper party no later than thirty (30) days after filing the Final Judgment Entry unless otherwise provided in this Agreement. If title cannot be transferred immediately to the party to whom the vehicle is distributed, the party holding the title shall make the following arrangements to obtain and pay for license plates, registration, and insurance:

_____

_____

_____

_____

C. Household Goods and Personal Property: (*select one*)

Household goods and personal property include, but are not limited to, pets, appliances, electronics, tools, air conditioner window units, doghouses, lawn mowers, above-ground pools, safety deposit boxes, jewelry, furniture, firearms, silverware, collections, china, and books.

1. ☐ The parties divided all of their household goods and personal property. Each party shall retain all household goods and personal property in his/her possession. The parties are satisfied with the division.

2. ☐ The parties divided all of their household goods and personal property. Each party shall retain all household goods and personal property in his/her possession, except as follows:

Plaintiff/Petitioner 1 shall receive:

_____

_____

_____

_____

Defendant/Petitioner 2 shall receive:

_____

_____

_____

_____

3. Delivery or pick-up of household goods and personal property shall be as follows:

_____

_____

_____

_____

4. Each party shall pay and hold the other harmless from any debt owing on the household goods and personal property he/she receives unless otherwise stated in this Agreement.

5. Other arrangements regarding household goods and personal property:

_____

_____

_____

D. Financial Accounts: (*select one*)

Financial accounts include, but are not limited to, checking, savings, certificates of deposit, money market accounts, medical or health savings accounts, education or college saving plans (for example, 529 Plan), and trusts.

1. ☐ Neither party has any ownership interest in any financial accounts.

2. ☐ Plaintiff/Petitioner 1 shall receive the following:

Institution	Current Name(s) on Account	Type of Account
_____	_____	☐ checking ☐ saving ☐ other: _____
_____	_____	☐ checking ☐ saving ☐ other: _____
_____	_____	☐ checking ☐ saving ☐ other: _____

3. ☐ Defendant/Petitioner 2 shall receive the following:

Institution	Current Name(s) on Account	Type of Account
		☐ checking ☐ saving ☐ other:
		☐ checking ☐ saving ☐ other:
		☐ checking ☐ saving ☐ other:

4. Each party shall pay and hold the other harmless from any debt owing on the financial accounts he/she receives unless otherwise stated in this Agreement.

5. Other arrangements regarding financial accounts:

If any financial account is not held in the name of the party to whom it is distributed, the parties shall transfer the financial account to the proper party no later than thirty (30) days after filing the Final Judgment Entry unless otherwise provided in this Agreement.

E. Stocks, Bonds, Securities, and Mutual Funds: (*select one*)

1. ☐ Neither party has an interest in any stocks, bonds, securities, or mutual funds.

2. ☐ Plaintiff/Petitioner 1 shall receive the following:

Institution	Current Name(s) on Account	Quantity and Description

3. ☐ Defendant/Petitioner 2 shall receive the following:

Institution	Current Name(s) on Account	Quantity and Description

4. Each party shall pay and hold the other harmless from any debt owing on the stocks, bonds, securities, or mutual funds he/she receives unless otherwise stated in this Agreement.

5. Other arrangements regarding the stocks, bonds, securities, or mutual funds:

_____

_____

_____

If any stock, bond, security, or mutual fund is not in the name of the party to whom it is distributed, the parties shall transfer the stock, bond, security, or mutual fund to the proper party no later than thirty (30) days after filing the Final Judgment Entry unless otherwise provided in this Agreement.

F. Business Interests: (*select one*)

1. ☐ Neither party has any interest in any business.

2. ☐ Plaintiff/Petitioner 1 shall receive the following:

Name of Business	**Ownership Interest**
_____	_____
_____	_____

3. ☐ Defendant/Petitioner 2 shall receive the following:

Name of Business	**Ownership Interest**
_____	_____
_____	_____

4. Each party shall pay and hold the other harmless from any debt owing on the business interests he/she receives unless otherwise stated in this Agreement.

5. Other arrangements regarding business interests:

_____

_____

_____

If any business is not in the name of the party to whom it is distributed, the parties shall transfer the business to the proper party no later than thirty (30) days after filing the Final Judgment Entry unless otherwise provided in this Agreement.

G. Pension, Profit Sharing, IRA, 401(k), Deferred Compensation, and Other Retirement Plans: (*select one*)

1. ☐ Neither party has any interest in any pension, profit sharing, IRA, 401(k), deferred compensation, or other retirement plans.

2. ☐ Plaintiff/Petitioner 1 shall receive the following:

Institution	Name(s) on Plan	Amount/Share

3. ☐ Defendant/Petitioner 2 shall receive the following:

Institution	Name(s) on Plan	Amount/Share

4. Each party shall pay and hold the other harmless from any debt owing on any pension, profit sharing, IRA, 401(k), deferred compensation, or other retirement plans he/she receives unless otherwise stated in this Agreement.

5. Other arrangements regarding pension, profit sharing, IRA, 401(k), deferred compensation, or other retirement plans:

_____

_____

_____

The parties shall arrange the transfer of any distributed interest in any pension, profit sharing, IRA, 401(k), deferred compensation, or other retirement plans to the proper party no later than thirty (30) days after filing the Final Judgment Entry unless otherwise provided in this Agreement.

A Qualified Domestic Relations Order (QDRO), Division of Property Order (DOPO), or other required Order may be necessary to divide some of these assets. The QDRO, DOPO, or other required Order shall be prepared by: _____ and submitted to the Court within ninety (90) days after the final hearing. Expenses of preparation, approval, and filing shall be paid as follows:

_____

_____

The parties acknowledge that failure to file a QDRO, DOPO, or other required Order to effectuate the distribution of an interest in a pension, profit sharing, IRA, 401(k), deferred compensation, or other retirement plan may detrimentally affect the distribution of the retirement interest(s) and may result in further legal proceedings. The Court shall retain jurisdiction to effectuate the intended distribution of retirement interests and to issue, interpret, and enforce the terms of documents of transfer.

H. Life Insurance Policies: (*select one*)

1. ☐ Neither party has any interest in any life insurance policy(ies) with a cash value.

2. ☐ Plaintiff/Petitioner 1 shall receive the following policy(ies):

_____

_____

_____

_____

3. ☐ Defendant/Petitioner 2 shall receive the following policy(ies):

_____

_____

_____

_____

4. Each party shall pay and hold the other harmless from any debt owing on the life insurance policy(ies) he/she receives unless otherwise stated in this Agreement.

5. Other arrangements regarding life insurance policy(ies):

_____

_____

_____

If any life insurance policy is not in the name of the party to whom it is distributed, the parties shall transfer the life insurance policy to the proper party no later than thirty (30) days after filing the Final Judgment Entry unless otherwise provided in this Agreement.

I. Other Property: (*select one*)

1. ☐ Neither party has any other property.

2. ☐ Other property owned by one or both of the parties shall be distributed as follows:

Description of Property	**Party**

3. Each party shall pay and hold the other harmless from any debt owing on the property he/she receives unless otherwise stated in this Agreement.

4. Other arrangements regarding the property above:

_____

_____

_____

If the property listed above is not in the possession or titled in the name of the party to whom it is distributed, the parties shall transfer the property to the proper party no later than thirty (30) days after filing the Final Judgment Entry unless otherwise provided in this Agreement.

THIRD: DEBTS (*select all that apply*)

1. ☐ Neither party owes any debt(s) which are not paid in full each month, including, but not limited to, credit cards, medical bills, student loans, tax obligations, and 401(k) or insurance loans.

2. ☐ Plaintiff/Petitioner 1 shall pay the following debt(s):

Creditor	Balance	Current Name on Account

3. ☐ Defendant/Petitioner 2 shall pay the following debt(s):

Creditor	Balance	Current Name on Account

4. Each party shall pay and hold the other harmless from the above listed debt unless otherwise stated in this Agreement

5. Other arrangements regarding debt(s), including refinancing:

_____

_____

_____

6. The Court has continuing jurisdiction to determine whether a debt assigned to a party qualifies as an exception to discharge in bankruptcy.

7. Neither party shall incur liabilities in the name of the other party in the future.

FOURTH: SPOUSAL SUPPORT

A. No Spousal Support Obligation

☐ Neither Plaintiff/Petitioner 1 nor Defendant/Petitioner 2 shall pay spousal support to the other, subject to any jurisdiction reserved in Section E below.

B. Spousal Support Obligation

☐ Plaintiff/Petitioner 1 ☐ Defendant/Petitioner 2 shall pay spousal support to ☐ Plaintiff/Petitioner 1 ☐ Defendant/Petitioner 2 in the amount of $_____ per month commencing on _____. Spousal support shall continue ☐ for a period of _____ months OR ☐ until further order of this Court.

C. Method of Payment of Spousal Support:

☐ Spousal support payments shall be made directly to ☐ Plaintiff/Petitioner 1 ☐ Defendant/Petitioner 2.

(Direct payment can only be made if there are no minor child(ren) and in accordance with R.C. 3121.441.)

☐ Spousal support payments, plus two percent (2%) processing charge, shall be made to the Ohio Child Support Payment Central, P. O. Box 182372, Columbus, Ohio 43218-2372, as administered through the _____ County Child Support Enforcement Agency by: ☐ income withholding or ☐ other _____.

D. Termination of Spousal Support

Spousal support shall terminate earlier than the above stated date upon Plaintiff/Petitioner 1's or Defendant/Petitioner 2's death or in the event of the following: **(*check all that apply*)**

☐ The cohabitation of the person receiving support in a relationship comparable to marriage.

☐ The remarriage of the person receiving support.

☐ Other: (*specify*) _____

E. Reservation of Jurisdiction

Under all circumstances, the Court shall retain jurisdiction over the issue of spousal support to hear and determine a Motion for Relief from Judgment pursuant to Civ.R. 60(B).

On other matters involving spousal support: (*check all that apply*)

☐ The Court shall retain jurisdiction to establish or modify the amount and/or duration of spousal support in the event either party files bankruptcy.

☐ The Court shall NOT retain jurisdiction to establish or modify the amount and/or duration of spousal support in the event either party files bankruptcy.

☐ The Court shall retain jurisdiction to modify the amount of the spousal support order.

☐ The Court shall NOT retain jurisdiction to modify the amount of the spousal support order.
☐ The Court shall retain jurisdiction to modify the duration of the spousal support order.
☐ The Court shall NOT retain jurisdiction to modify the duration of the spousal support order**.**

F. Other orders regarding spousal support: (*specify*) _____

_____

G. Arrearage or Overpayment

☐ Any temporary spousal support arrearage or overpayment shall survive the Judgment Entry.
☐ Any temporary spousal support arrearage or overpayment shall not survive the Judgment Entry.
☐ Other: _____

FIFTH: NAME

☐ _____ shall be restored to the former name of _____

SIXTH: ALLOCATION OF PARENTAL RIGHTS AND RESPONSIBILITIES, PARENTING TIME, CHILD SUPPORT, AND HEALTH CARE

☐ The parties do not have (a) child(ren) subject to the jurisdiction of the Court.
☐ The parties have (a) child(ren) subject to the jurisdiction of the Court, and a
  ☐ Parenting Plan is attached
  ☐ Shared Parenting Plan is attached.

SEVENTH: OTHER

The parties agree to the following additional matters: _____

_____

_____

_____

EIGHTH: NON-USE OF OTHER'S CREDIT

Neither party shall incur any debt or obligation upon the credit of the other or in their joint names. If a party incurs such debt or obligation that party shall repay, indemnify, and hold the other harmless as to any such debt or obligation. All joint credit card accounts shall be immediately cancelled. All joint credit cards shall be immediately destroyed.

NINTH: INCORPORATION INTO JUDGMENT ENTRY

If one or both of the parties institute or have instituted proceedings for dissolution, divorce, or separation, this Agreement shall be presented to the Court with the request that it be adjudicated to be fair, just, and proper, and incorporated into a Judgment Entry.

TENTH: PERFORMANCE OF NECESSARY ACTS

Upon execution and approval of this Agreement by the Court, each party shall deliver to the other party, or permit the other party to take possession of all items of property to which each is entitled under the terms of this Agreement, and shall make all periodic payments required under the terms of this Agreement.

ELEVENTH: SEVERABILITY
If any provision of this Agreement is held to be invalid or unenforceable, all other provisions shall continue in full force and effect.

TWELFTH: APPLICABLE LAW
All of the provisions of this Agreement shall be construed and enforced in accordance with the laws of the State of Ohio.

THIRTEENTH: MUTUAL RELEASE
Except as otherwise provided, the parties release and forever discharge each other from any and all actions, suits, debts, claims, demands, and obligations whatsoever, both in law and in equity, which either of them ever had, now has, or may have or assert against the other upon or by reason of any matter or cause to the date of the execution of this Agreement.

Each party waives all rights of inheritance and the right to share in the estate of the other, and waives all rights which would otherwise be available as a surviving spouse, except payments or rights included in this Agreement.

_____	_____
Plaintiff/Petitioner 1 Signature	Defendant/Petitioner 2 Signature
_____	_____
Printed Name	Printed Name
_____	_____
Date	Date

ACKNOWLEDGMENT

STATE OF OHIO)
) SS
COUNTY OF _____)

Before me, a Notary Public, personally appeared _____, Plaintiff/Petitioner 1, who acknowledged that Plaintiff/Petitioner 1 has signed the Separation Agreement, that Plaintiff/Petitioner 1 understands the Separation Agreement, and that Plaintiff/Petitioner 1 is aware of the consequences of signing the Separation Agreement.

The foregoing Separation Agreement was acknowledged before me this _____ (date) by _____ (Plaintiff/Petitioner 1). No oath or affirmation was administered to the signer with regard to this notarial act.

_____
Signature of Notary Public

_____
Printed Name of Notary Public

Commission Expiration Date: _____

(Affix seal here)

STATE OF OHIO)
) **SS**
COUNTY OF _____)

Before me, a Notary Public, personally appeared _____, Defendant/Petitioner 2, who acknowledged that Defendant/Petitioner 2 has signed the Separation Agreement, that Defendant/Petitioner 2 understands the Separation Agreement, and that Defendant/Petitioner 2 is aware of the consequences of signing the Separation Agreement.

The foregoing Separation Agreement was acknowledged before me this _____ (date) by _____ (Defendant/Petitioner 2). No oath or affirmation was administered to the signer with regard to this notarial act.

_____
Signature of Notary Public

_____
Printed Name of Notary Public

Commission Expiration Date: _____

(Affix seal here)

IN THE COURT OF COMMON PLEAS

_____ **DIVISION**

_____ **COUNTY, OHIO**

IN THE MATTER OF:

_____

A Minor

_____ Case No. _____

Name

_____ Judge _____

Street Address

_____ Magistrate _____

City, State and Zip Code

Plaintiff/Petitioner 1

vs./and

_____

Name

_____

Street Address

_____

City, State and Zip Code

Defendant/Petitioner 2

WARNING: This form is not a substitute for the benefit of the advice of legal counsel. It is highly recommended that you consult an attorney.

Instructions: The Parenting Time Schedule must be attached to this Plan. Parents are urged to consult the Planning for Parenting Time Guide: Ohio's Guide for Parents Living Apart and Domestic Violence & Allocation of Parental Rights and Responsibilities available at www.supremecourt.ohio.gov.

SHARED PARENTING PLAN

The parents, _____, "Plaintiff/Petitioner 1", and _____, Defendant/Petitioner 2", have _____ (number) child(ren) from the marriage or relationship. Of the child(ren), _____ (number) is/are emancipated adult(s) and not under any disability. The following _____ (number) child(ren) are minor child(ren) and/or mentally or physically disabled child(ren) incapable of supporting or maintaining themselves:

Name of Child	Date of Birth
_____	_____
_____	_____
_____	_____
_____	_____

The parents agree to the care, parenting, and control of their child(ren) as provided in this Shared Parenting Plan.

FIRST: PARENTS' RIGHTS

Unless otherwise stated herein, the parents shall have:

A. The right to participate in major decisions concerning the child(ren)'s health, social situation, morals, welfare, education, and economic environment.

B. The right to reasonable telephone contact with the child(ren) when they are with the other parent.

C. The right to participate in the selection of doctors, psychologists, psychiatrists, hospitals, and other health care providers for the child(ren).

D. The right to authorize medical, surgical, hospital, dental, institutional, psychological, and psychiatric care for the child(ren) and obtain a second opinion regarding medical conditions or treatment.

E. The right to be notified in case of an injury to or illness of the child(ren).

F. The right to be present with the child(ren) at medical, dental, and other health-related examinations and treatments, including, but not limited to, psychological and psychiatric care.

G. The right to inspect and receive the child(ren)'s medical and dental records and the right to consult with any treating physician, dentist, and/or other health care provider, including, but not limited to, psychologists and psychiatrists.

H. The right to consult with school officials concerning the child(ren)'s welfare and educational status, and the right to inspect and receive the child(ren)'s student records to the extent permitted by law.

I. The right to receive copies of all school reports, calendars of school events, notices of parent-teacher conferences, and school programs.

J. The right to attend and participate in parent-teacher conferences, school trips, school programs, and other school activities to which parents are invited.

K. The right to attend and participate with the child(ren) in athletic programs and other extracurricular activities.

L. The right to receive notice of the other parent's intention to relocate.

SECOND: ALLOCATION OF PARENTAL RIGHTS AND RESPONSIBILITIES

A. General Responsibilities

Each parent shall take all measures necessary to foster respect and affection between the child(ren) and the other parent. Neither parent shall do anything that may estrange the child(ren) from the other parent, or impair the child(ren)'s high regard for the other parent.

B. The parents have shared parenting of the child(ren) as specified in this Plan. Each parent, regardless of where an individual child is residing at a particular point in time, as specified in this Plan, is the "residential parent," "the residential parent and legal custodian," or the "custodial parent" of that child.

C. Parenting Time Schedule

A parenting time schedule must be attached to this Plan.

The parents shall have parenting time with the child(ren) according to the attached parenting time schedule, which shows the times that the child(ren) shall be with each parent on weekdays, weekends, holidays and days of special meaning, and vacations.

The parties may voluntarily modify the parenting time schedule, if agreed; however, the Court cannot enforce any change in the parenting time schedule unless it is made an Order of the Court.

D. Transportation to School and Parenting Time
Absent other agreement of the parties included in the attached parenting time schedule, each parent shall be responsible for providing transportation for the child(ren) at the beginning of the parent's parenting time period. Each parent shall be responsible for providing transportation for the child(ren) to and from school during that parent's parenting time period.

☐ Other agreement regarding transportation to school and parenting time:

_____

_____

_____

E. School Placement
The designation of a particular parent as the residential parent for the purposes of determining the school placement of the child(ren) does not affect the designation of each parent as the "residential parent," "residential parent and legal custodian," or the "custodial parent of the child(ren)".

Plaintiff/Petitioner 1 shall be designated as the residential parent for school placement purposes of the following child(ren):

_____

Defendant/Petitioner 2 shall be designated as the residential parent for school placement purposes of the following child(ren):

_____

☐ Other agreement regarding school placement:

_____

_____

_____

F. Education Decisions Other than School Placement
Each parent shall consult with the other regarding any important education decisions affecting the child(ren). Important education decisions affecting the child(ren) shall be made by agreement of the parties. Each parent shall be reasonable in attempting to reach an agreement on such matters. In the event the parties cannot agree on education decisions other than school placement, the decision of:

☐ Plaintiff/Petitioner 1 shall be binding on the parents and the following child(ren):

_____

☐ Defendant/Petitioner 2 shall be binding on the parents and the following child(ren):

_____

G. Responsibility for Child Activities

1. Participation in Activities

The parents shall give careful consideration of the child(ren)'s best interest and the child(ren)'s wishes in scheduling activities. Neither parent will unreasonably withhold agreement to any particular activity. The parents shall be reasonable with respect to this provision and take into consideration the needs and interests of the child(ren) at all times. The scheduling of events, appointments, and activities shall not be done in a manner to cause undue inconvenience or harassment to the other parent. Both parents must understand that the child(ren) need(s) to be able to participate in regular activities without interference and with the support of both parents.

Absent other agreement by the parents, the child(ren) shall continue to participate in those extracurricular activities, school-related and other activities in which they are currently enrolled, uninterrupted.

☐ Other agreement regarding participation in current or new extracurricular, school-related or other activities:

_____

_____

_____

Each parent shall provide the other with notice of all extracurricular activities, school-related or otherwise, in which the child(ren) participates, schedules of all activities (handwritten if no formal schedule is provided by the activity) and the name of the activity leader (including address and telephone number if reasonably available).

2. Transportation to Activities

Absent other agreement by the parents, it is the responsibility of the parent in possession of the child(ren) to provide transportation to an activity.

☐ Other agreement regarding transportation:

_____

_____

_____

3. Payment of Expenses Related to Activities

Each parent shall notify the other about any and all expenses arising from the child's extracurricular, school-related, or other activities.

Absent other agreement of the parents, the parents shall divide the costs and expenses associated with their child(ren)'s participation in any extracurricular, school-related, or other activities as follows:

☐ Plaintiff/Petitioner 1 _____

☐ Defendant/Petitioner 2 _____

☐ Other agreement regarding the division of extracurricular, school-related, or other activity expenses:

_____

_____

The parent incurring an expense related to an extracurricular, school-related, or other activity shall forward a copy of the bill or invoice to the other parent as soon as practicable. Absent other agreement of the parents as stated herein, reimbursement or payment shall be made within thirty (30) days of receipt of the bill or invoice.

☐ Other agreement regarding reimbursement or payment of expenses:

H. Health Care Responsibilities

Each parent shall promptly notify the other parent if a child experiences a serious injury, has a serious or chronic illness, or receives treatment in an emergency room or hospital. Each parent shall notify the other parent of the emergency, the child's status, locale, and any other pertinent information as soon as practical, but in any event within twenty-four (24) hours. Each parent shall provide the other with the names and telephone numbers of all health care providers for the child(ren).

Each parent shall consult the other about the child(ren)'s health care needs and each shall immediately notify the other parent about all major non-emergency health care decisions before authorizing a course of treatment. Each parent has a right to know the necessity for treatment, proposed cost, and proposed payment schedule. Each parent may also secure an independent evaluation at that parent's expense to determine the necessity for treatment.

If the parties cannot agree regarding a course of treatment, ☐ Plaintiff's/Petitioner 1's ☐ Defendant's/Petitioner 2's **(*select one*)** decision shall control.

I. Current Address and Telephone Number

Plaintiff's/Petitioner 1's current home address and telephone number, including cellular telephone number:

Defendant's/Petitioner 2's current home address and telephone number, including cellular telephone number:

J. Relocation Notice

Pursuant to R.C. 3109.051(G):

If either parent intends to move to a residence other than the residence specified in the Court order, the parent shall file a notice of intent to relocate with this Court. Except as provided in R.C. 3109.051(G)(2), (3), and (4), the Court shall send a copy of the notice to the other parent. Upon receipt of the notice, the Court, on its own motion or the motion of either parent, may schedule a hearing with notice to both parents to determine whether it is in the best interest of the child(ren) to revise the parenting time schedule for the child(ren).

Each parent shall inform the Court and the other parent, in writing, of changes in address and telephone, including cellular telephone number, unless otherwise provided by Court order.

The relocation notice must be filed with the Court granting the allocation of parental rights and responsibilities: (*print name and address of Court*)

K. Records Access Notice
Pursuant to R.C. 3109.051(H) and 3319.321(B)(5)(a):

Subject to R.C. 3125.16 and 3319.321(F), both parents are entitled access to any record related to the child(ren), unless otherwise restricted. Any keeper of a record who knowingly fails to comply with permitting record access is in contempt of Court.

Restrictions or limitations:

☐ None

☐ Restrictions or limitations to records access are as follows:

_____

_____

L. Day Care Access Notice
Pursuant to R.C. 3109.051(I):

In accordance with R.C. 5104.039, both parents are entitled access to any day care center that is or will be attended by the child(ren) unless otherwise restricted.

Restrictions or limitations:

☐ None

☐ Restrictions or limitations to day care access are as follows:

_____

_____

M. School Activities Access Notice
Pursuant to R.C. 3109.051(J):

Subject to R.C. 3319.321(F), both parents are entitled access to any student activity related to the child(ren), unless otherwise restricted. Any school employee or official who knowingly fails to comply with permitting school activities access is in contempt of Court.

Restrictions or limitations:

☐ None

☐ Restrictions or limitations to school activities access are as follows:

_____

_____

THIRD: CHILD SUPPORT

As required by law, a completed Child Support Worksheet is attached to this document.

The Order for child support and cash medical support is effective _____, 20_____.

For purposes of this order:

☐ Plaintiff/Petitioner 1 ☐ Defendant/Petitioner 2 is the child support obligor (*pays support*).

☐ Plaintiff/Petitioner 1 ☐ Defendant/Petitioner 2 is the child support obligee (*receives support*).

The following information is provided in accordance with R.C. 3121.30:

SUPPORT OBLIGOR (pays support):

Name (First, MI, Last): _____
Social Security Number: xxx-xx-_____ (*fill in last four digits*)
Date of Birth: _____

SUPPORT OBLIGEE (receives support):

Name (First, MI, Last): _____
Social Security Number: xxx-xx-_____ (*fill in last four digits*)
Date of Birth: _____

A. Guideline Child Support Amount
The **guideline** child support obligation, as determined by the Child Support Worksheet, is $_____ per child, per month for _____ (number) child(ren), for a total of $_____ per month. (*Line 24 Sole/Shared Parenting Child Support Computation Worksheet* or *Line 25 Split Parenting Child Support Computation Worksheet*)

B. Overnight Parenting Time Adjustment
☐ The child support obligor does not have Court ordered parenting time which is equal to or exceeds ninety (90) overnights.
☐ The child support obligor has Court ordered parenting time which is equal to or exceeds ninety (90) overnights. The above computation reflects an automatic ten percent (10%) adjustment in the guideline child support obligation.

C. Overnight Parenting Time Deviation
☐ Pursuant to R.C. 3119.231, there is extended Court ordered parenting time which:

☐ exceeds ninety (90) overnights but is *not* more than 146 overnights (_____ overnights).

☐ A deviation is *not* granted.
☐ The annual obligation would be unjust and inappropriate and, therefore, not in the best interest of the minor child(ren). A deviation *is* granted for the following reasons:

_____
_____
_____

– OR –

☐ is equal to or exceeds 147 overnights (_____ overnights).

A deviation is ☐ granted ☐ *not* granted for the following reasons:

_____

D. Other Deviation Factors *(if applicable)*

☐ Pursuant to R.C. 3119.22, 3119.23 and/or 3119.24, the annual obligation would be unjust and inappropriate and, therefore, not in the best interest of the minor child(ren) for the following reason(s):

(Check all that apply)

☐ Special and unusual needs of the child(ren), including needs arising from the physical or psychological condition of the child(ren)

☐ Other Court ordered payments

☐ Extended parenting time or extraordinary costs associated with parenting time, including extraordinary travel expenses when exchanging the child(ren) for parenting time

☐ Financial resources and the earning ability of the child(ren)

☐ Relative financial resources, including the disparity in income between parties or households, other assets, and the needs of each parent

☐ Obligee's income, if the obligee's annual income is equal to or less than one hundred percent (100%) of the federal poverty level

☐ Benefits that either parent receives from remarriage or sharing living expenses with another person

☐ Amount of federal, state, and local taxes actually paid or estimated to be paid by a parent or both parents

☐ Significant in-kind contributions from a parent, including, but not limited to, direct payment for lessons, sports equipment, schooling, or clothing

☐ Extraordinary work-related expenses incurred by either parent

☐ Standard of living and circumstances of each parent and the standard of living the child(ren) would have enjoyed had the marriage continued or had the parents been married

☐ Educational opportunities that would have been available to the child(ren) had the circumstances requiring a child support order not arisen

☐ The responsibility of each parent for the support of others, including support of (a) child(ren) with disabilities who is/are not subject to the support order

☐ Post-secondary educational expenses paid for by a parent for the parent's own child(ren), regardless of whether the child(ren) is/are emancipated

☐ Costs incurred or reasonably anticipated to be incurred by the parents in compliance with Court ordered reunification efforts in child abuse, neglect, or dependency cases

☐ Extraordinary child care costs required for the child(ren) that exceed the maximum state-wide average cost estimate as described in R.C. 3119.05(P)(1)(d), including extraordinary costs associated with caring for (a) child(ren) with specialized physical, psychological, or educational needs

☐ Any other relevant factor: (*specify*)

☐ Extraordinary circumstances associated with shared parenting: (*Only if Shared Parenting is ordered - check all that apply*)

- ☐ Ability of each parent to maintain adequate housing for the child(ren)
- ☐ Each parent's expenses, including child care expenses, school tuition, medical expenses, dental expenses, and other relevant expenses
- ☐ Any other relevant circumstances: (*specify*)

E. Monthly Child Support Obligation

The child support obligor (pays support) shall pay child support in the amount of $_____ per child, per month for _____ (number) child(ren), for a total of $_____ per month, plus two percent (2%) processing charge. (*If there is no child support deviation, Line 24 Sole/Shared Child Support Computation Worksheet, or Line 25 Split Parenting Child Support Computation Worksheet. If there is a deviation in child support, Line 26 Sole/Shared Child Support Computation Worksheet, or Line 27 Split Parenting Child Support Computation Worksheet*.)

F. Arrearage or Overpayment

☐ Child support arrearage or overpayment for the minor child(ren) payable either by administrative order, temporary or final order **shall** survive and continue as an enforceable obligation until paid in full.

☐ Child support arrearage or overpayment for the minor child(ren) payable either by administrative order, temporary or final order **shall not** survive and continue as an enforceable obligation until paid in full, except the arrearage assigned to and due to the Department of Job and Family Services.

G. Method to Secure Support Payment(s)

All support under this Order shall be withheld or deducted from the income or assets of the support obligor pursuant to a withholding or deduction notice or appropriate Order issued in accordance with R.C. Chapters 3119, 3121, 3123, and 3125 or a withdrawal directive issued pursuant to R.C. 3123.24 to 3123.38 and shall be forwarded to the obligee in accordance with R.C. Chapters 3119, 3121, 3123, and 3125.

The support obligor shall immediately notify the _____ County Child Support Enforcement Agency, in writing, of any change in employment (including self-employment), receipt of additional income/monies or termination of benefits. The support obligor shall include a description of the nature of the employment and the name, business address and telephone number of any employer.

The specific withholding or deduction requirements to be used to collect the support shall be set forth and determined by reference to the notices that are sent out by the Child Support Enforcement Agency in accordance with R.C. 3121.03 and shall be determined without the need for any amendment to the support order. Those notices, plus the notices provided by the Child Support Enforcement Agency that require the child support obligor to notify the Child Support Enforcement Agency of any change in his/her employment status or of any other change in the status of his/her assets, are final and enforceable by the court. Each withholding notice shall be for the current child support, current cash medical support, any arrearage payment, and processing charges.

All support shall be paid through Ohio Child Support Payment Central (OCSPC), P.O. Box 182372, Columbus, Ohio 43218-2372. Checks or money orders shall be made payable to "OCSPC". All payments shall include the following: Obligor's name, Social Security Number, SETS case number and Domestic Relations Court case number. **If there is to be a withholding/deduction order, the support obligor shall make payments directly to OCSPC until the income source/financial institution begins withholding/deducting in the appropriate amount.**

Pursuant to R.C. 3121.45, any payment of money by the child support obligor to the child support obligee that is not made through Ohio Child Support Payment Central or the Child Support Enforcement Agency administering the support order shall not be considered a payment under the support order and, unless the payment is made to discharge an obligation other than support, shall be deemed a gift.

Payments shall be made in the manner ordered by the Court. If payments are to be made other than on a monthly basis, the required monthly administration by the _____ County Child Support Enforcement Agency does not affect the frequency or the amount of the support payments to be made under the order.

(Check one of the following three boxes)

☐ The support obligor receives income from an income source.

A withholding or deduction notice shall issue to:
INCOME SOURCE: _____
ADDRESS: _____
_____

– OR –

☐ The support obligor has nonexempt funds on deposit in an account at a financial institution.

A withholding or deduction notice shall issue to:
FINANCIAL INSTITUTION: _____
ADDRESS: _____
_____

If withholding from a financial account, the support obligor shall immediately notify the _____ County Child Support Enforcement Agency of the number and description of the account from which support shall be deducted, and the name, branch, business address and routing number of the financial institution if not set forth above.

The support obligor shall immediately notify the _____ County Child Support Enforcement Agency of any change in the status of an account from which support is being deducted or the opening of a new account with any financial institution.

– OR –

☐ The support obligor has no attachable income source at this time.

The support obligor shall immediately notify the _____ County Child Support Enforcement Agency, in writing, if the support obligor begins to receive income from a payor. The notice shall include a description of the nature of any new employment, and the name, business address and telephone number of any new employer.

☐ The support obligor shall seek employment, if able to engage in employment. Obligor's employment search must include registration with Ohio Means Jobs at https://jobseeker.ohiomeansjobs.monster.com. Obligor shall immediately notify the _____ County Child Support Enforcement Agency, in writing, upon commencement or change of employment (including self-employment), receipt of additional income/monies, obtaining ownership of asset of value of $500.00 or more, receipt or termination of benefits or the opening of an account at a financial institution. The support obligor shall include a description of the nature of the employment and the name, business address and telephone number of any employer. The support obligor shall immediately notify the _____ County Child Support Enforcement Agency of any change in the status of an account from which support is being deducted or the opening of a new account with any financial institution.

H. Duration and Termination of Support & Required Notices

The duty of child support and cash medical support for each child shall continue until further order of Court or until the above-named child reaches age eighteen (18) unless one of the following circumstances applies:

- The child is mentally or physically disabled and is incapable of supporting or maintaining himself, herself or themselves.
- The parents have agreed to continue child support beyond the date it would otherwise terminate.
- The child continuously attends a recognized and accredited high school on a full-time basis so long as the child has not, as yet, reached the age of nineteen (19) years old. Under this circumstance, child support will end at the time the child graduates or ceases to attend a recognized and accredited high school on a full-time basis or when the child reaches the age of nineteen (19), whichever occurs first.

The child support and cash medical support order will remain in effect during seasonal vacation periods until the order terminates.

☐ The parties have agreed that the child support and cash medical support obligation will extend beyond the time when it would otherwise end. The terms and conditions of that agreement are as follows:

_____

_____

_____

_____

☐ The parties have (a) child(ren) who is/are mentally or physically disabled and incapable of supporting or maintaining himself, herself or themselves, and child support and cash medical support will extend beyond the time when it would otherwise end. The name of the child(ren) and the nature of the mental or physical disability(ies) is/are as follows:

_____

_____

_____

_____

The residential parent and legal custodian of the child(ren) shall immediately notify, and the child support obligor may notify, the _____ County Child Support Enforcement Agency of any reason for which the child support order should terminate, including, but not limited to, the child's death, marriage, emancipation (age 18 or high school completion/termination), enlistment in the Armed Services, deportation, or change of legal custody. A willful failure to notify the _____ County Child Support Enforcement Agency may be contempt of Court.

EACH PARTY TO THIS SUPPORT ORDER MUST NOTIFY THE CHILD SUPPORT ENFORCEMENT AGENCY IN WRITING OF HIS OR HER CURRENT MAILING ADDRESS, CURRENT RESIDENCE ADDRESS, CURRENT RESIDENCE TELEPHONE NUMBER, CURRENT DRIVER'S LICENSE NUMBER, AND OF ANY CHANGES IN THAT INFORMATION. EACH PARTY MUST NOTIFY THE AGENCY OF ALL CHANGES UNTIL FURTHER NOTICE FROM THE COURT OR AGENCY, WHICHEVER ISSUED THE SUPPORT ORDER.

IF YOU ARE THE OBLIGOR UNDER A CHILD SUPPORT ORDER AND YOU FAIL TO MAKE THE REQUIRED NOTIFICATIONS, YOU MAY BE FINED UP TO $50 FOR A FIRST OFFENSE, $100 FOR A SECOND OFFENSE, AND $500 FOR EACH SUBSEQUENT OFFENSE.

IF YOU ARE AN OBLIGOR OR OBLIGEE UNDER ANY SUPPORT ORDER ISSUED BY A COURT AND YOU WILLFULLY FAIL TO GIVE THE REQUIRED NOTICES, YOU MAY BE FOUND IN CONTEMPT OF COURT AND BE SUBJECTED TO FINES UP TO $1,000 AND IMPRISONMENT FOR NOT MORE THAN 90 DAYS.

IF YOU ARE AN OBLIGOR OR OBLIGEE AND YOU FAIL TO GIVE THE REQUIRED NOTICES TO THE CHILD SUPPORT ENFORCEMENT AGENCY, YOU MAY NOT RECEIVE NOTICE OF THE CHANGES AND REQUESTS TO CHANGE THE CHILD SUPPORT AMOUNT, HEALTH CARE PROVISIONS, REDIRECTION, OR TERMINATION OF THE CHILD SUPPORT ORDER. IF YOU ARE AN OBLIGOR AND YOU FAIL TO GIVE THE REQUIRED NOTICES, YOU MAY NOT RECEIVE NOTICE OF THE FOLLOWING ENFORCEMENT ACTIONS AGAINST YOU: IMPOSITION OF LIENS AGAINST YOUR PROPERTY; LOSS OF YOUR PROFESSIONAL OR OCCUPATIONAL LICENSE, DRIVER'S LICENSE, OR RECREATIONAL LICENSE; WITHHOLDING FROM YOUR INCOME; ACCESS RESTRICTION AND DEDUCTION FROM YOUR ACCOUNTS IN FINANCIAL INSTITUTIONS; AND ANY OTHER ACTION PERMITTED BY LAW TO OBTAIN MONEY FROM YOU TO SATISFY YOUR SUPPORT OBLIGATION.

FOURTH: HEALTH INSURANCE COVERAGE.

A. ☐ Private Health Insurance Coverage IS NOT available for the minor child(ren).

Neither parent has accessible private health insurance coverage available at a reasonable cost to cover the minor child(ren) at the time of the issuance of this order.

The child support obligee shall obtain health care coverage (private health insurance coverage or public health care plan) for the child(ren) not later than thirty (30) days after it becomes available at a reasonable cost and shall inform the _____ County Child Support Enforcement Agency (CSEA) when health care coverage for the child(ren) has been obtained.

If private health insurance coverage becomes available to the child support obligor at a reasonable cost, the child support obligor shall inform the _____ County Child Support Enforcement Agency (CSEA) and may seek a modification of health care coverage from the Court with respect to a Court child support order, or from the agency with respect to an administrative support order.

B. ☐ Private Health Insurance Coverage IS available for the minor child(ren).

☐ Plaintiff/Petitioner 1 has private health insurance coverage for the minor child(ren);
☐ Defendant/Petitioner 2 has private health insurance coverage for the minor child(ren); or
☐ Both parents have private health insurance coverage available for the minor child(ren).

1. Accessibility of Private Health Insurance Coverage.

The available private health insurance coverage for the minor child(ren) is accessible because:

(*Check one of the following three boxes)*

☐ Primary care services are within thirty (30) miles of the child(ren)'s residence.
☐ The Court permits primary care services farther than thirty (30) miles of the child(ren)'s residence because residents in the geographic area customarily travel farther distances.
☐ Primary care services are accessible by public transportation because public transportation is the child support obligee's only source of transportation.

2. Reasonableness of Cost of Private Health Insurance Coverage.

Pursuant to R.C. 3119.29(F), for purposes of determining reasonable cost, the total cost of private health insurance coverage to the person required to provide private health insurance coverage for the child(ren) subject to the child support order does not exceed an amount equal to five percent of the annual income of that person.

(*Check one of the following two sections*)

☐ The total cost of private health insurance coverage available to ☐ Plaintiff/Petitioner 1 and/or ☐ Defendant/Petitioner 2 **does not exceed** that parent's Health Insurance Maximum. (*Line 8 Child Support Computation Worksheet*)

– OR –

☐ The total cost of private health insurance coverage available to ☐ Plaintiff/Petitioner 1 and/or ☐ Defendant/Petitioner 2 **exceeds** that parent's Health Insurance Maximum (*Line 8 Child Support Computation Worksheet*);

(Check one of the three sections below)

☐ Both parents agree that ☐Plaintiff/Petitioner 1 ☐Defendant/Petitioner 2 or ☐ Both parents shall obtain or maintain private health insurance coverage, the cost of which exceeds the Health Insurance Maximum for that parent.

– OR –

☐ Plaintiff/Petitioner 1 ☐Defendant/Petitioner 2 has requested to obtain or maintain private health insurance coverage, the cost of which exceeds the Health Insurance Maximum for that parent.

– OR –

☐ It is in the best interest of the child(ren) for ☐Plaintiff/Petitioner 1 ☐Defendant/Petitioner 2 to obtain or maintain private health insurance coverage for the child(ren) even though the total cost of private health insurance coverage exceeds that parent's Health Insurance Maximum. The cost of private health insurance coverage will not impose an undue financial burden because:

_____

3. Person Required to Provide Private Health Insurance Coverage.

☐Plaintiff/Petitioner 1 ☐ Defendant/Petitioner 2 ☐ Both parents shall provide private health insurance coverage for the child(ren) until further order of Court for the following reasons:

(Check one of the following six boxes)

☐ The child support obligee is rebuttably presumed to be the appropriate parent to provide private health insurance coverage for the child(ren).

☐ The child support obligor already has private health insurance coverage for the child(ren) that is reasonable in cost.

☐ The child support obligor already has private health insurance coverage in place for the child(ren) that is not reasonable in cost, but the child support obligor wishes to be named the private health insurance obligor and provide coverage.

☐ The child support obligor can obtain private health insurance coverage for the child(ren) that is reasonable in cost through an employer or other source.
☐ The child support obligee is a non-parent individual or agency that has no duty to provide medical support.
☐ Both parents wish to provide and already have private health insurance coverage in place or have private health insurance coverage available for the child(ren).

If both parents are providing private health insurance coverage for the minor child(ren), ☐Plaintiff's/Petitioner 1's ☐Defendant's/Petitioner 2's private health insurance coverage plan shall be considered the primary private health insurance coverage plan for the child(ren).

Should private health insurance coverage be cancelled for any reason, the parent ordered to maintain private health insurance coverage shall immediately notify the other parent of the cancellation.

C. Health Care Coverage Requirements

Within thirty (30) days after the issuance of this support order, the person required to provide health care coverage for the child(ren) must provide to the other parent or to the child support obligee information regarding the benefits, limitations, and exclusions of the coverage, copies of any forms necessary to receive reimbursement, payment or other benefits under the coverage, and a copy of any necessary proof of coverage.

Within thirty (30) days after the issuance of this order, the person required to provide health care coverage for the child(ren) shall provide to the Child Support Enforcement Agency documentation that verifies health care coverage is being provided as ordered.

The individual who is designated to be reimbursed for health care expenses for the child(ren) is:

Name: _____

Address: _____

_____

The person required to provide health care coverage for the child(ren) shall designate the child(ren) as covered dependent(s) under any health care coverage policy, contract, or plan.

Pursuant to R.C. 3119.32(E), the employer of the person required to provide health care coverage for the child(ren) is required to release to the other parent, any person subject to an order issued under R.C. 3109.19, or the Child Support Enforcement Agency, on written request, any necessary information on the health care coverage, including the name and address of the health plan administrator and any policy, contract, or plan number, and to otherwise comply with R.C. 3119.32 and any order or notice issued under R.C. 3119.32.

Pursuant to R.C. 3119.32(G), if the person required to obtain health care coverage for the child(ren) subject to this child support order obtains new employment, the agency shall comply with the requirements of R.C. 3119.34, which may result in the issuance of a notice requiring the new employer to take whatever action is necessary to enroll the children in private health care insurance coverage provided by the new employer, when insurance is not being provided by any other source.

FIFTH: CASH MEDICAL SUPPORT & CHILDREN'S HEALTH CARE EXPENSES

A. Liability for child(ren)'s Health Care Expenses

Pursuant to R.C. 3119.30(A), both parents are liable for the health care expenses of the child(ren) who is/are not covered by private health insurance coverage.

Cash medical support is an amount paid in a child support order toward the ordinary health care expenses incurred during a calendar year. Ordinary health care expenses include copayments and deductibles, and uninsured health-related costs.

Extraordinary health care expenses are any uninsured health care expenses incurred for a child during a calendar year that exceed the total cash medical support amount owed by the parents during that year.

Each party shall have access to all health care records of the child(ren) as provided by law, or as otherwise limited in this document.

The term "health care expense" or "health care records" shall include, but not be limited to, medical, dental, orthodontic, optical, pharmaceutical, surgical, hospital, major medical, psychological, psychiatric, outpatient, doctor, therapy, counseling, prosthetic, and/or all other expenses/records including preventative health expenses/records related to the treatment of the human body and mind.

The parent who receives a health care bill, and/or an Explanation of Benefits (EOB), or who incurs a health care expense, shall provide the other parent the original or a copy of the bill, and/or EOB, if available, within (thirty) 30 days of the date on the bill or EOB, or a receipt, absent extraordinary circumstances. The other parent shall reimburse the parent incurring the expenses or pay directly to the health care provider, that parent's percentage share of the bill as shown in Section D below.

B. Guideline Cash Medical Support Obligation

The parents' combined **annua**l cash medical support obligation, as determined by the applicable worksheet, is $_____. (*Line 23a Child Support Computation Worksheet)*

The Obligor's (pays support) guideline **annual** cash medical support obligation is $_____. (*Line 23b Child Support Computation Worksheet*)

The Obligee's (receives support) guideline **annua**l cash medical support obligation is $_____. (*Line 23b Child Support Computation Worksheet*) The Obligee's cash medical support obligation is not subject to collection by the Child Support Enforcement Agency.

C. Deviation in Cash Medical Support (if applicable)

Pursuant to R.C. 3119.22, 3119.23 and/or 3119.24, the annual guideline cash medical support obligation would be unjust and inappropriate and, therefore, not in the best interest of the minor child(ren) for the following reason(s):

☐ The same reasons referenced in this document regarding the child support deviation.

– OR –

☐ _____

_____

_____

D. Cash Medical Support Obligation and Division of Child(ren)'s Health Care Expenses

(Check one of the following two boxes)

☐ The cash medical support obligation is not deviated.

Obligor shall pay cash medical support in the amount of $_____ per child, per month, for _____ (number) child(ren) for a total of $_____, per month, plus two percent (2%) processing charge through the Child Support Enforcement Agency. (*Line 27 Sole/Shared Parenting Child Support Computation Worksheet*, or *Line 29 Split Parenting Child Support Computation Worksheet*)

Plaintiff/Petitioner 1 shall pay _____% and Defendant/Petitioner 2 shall pay _____% of the health care expenses incurred for a child during a calendar year that exceed $_____, the parents' total combined annual cash medical support obligation, as determined by the applicable worksheet. (*Line 23a Child Support Computation Worksheet*)

– OR –

☐ The cash medical support obligation is deviated.

Obligor shall pay cash medical support in the amount of $_____ per child, per month, for ____(number) child(ren) for a total of $_____, per month, plus two percent (2%) processing charge through the Child Support Enforcement Agency. (*Line 29 Sole/Shared Parenting Child Support Computation Worksheet*, or *Line 31 Split Parenting Child Support Computation Worksheet*)

Obligee's cash medical support obligation is deviated to $_____ per month. (*Line 29, Sole/Shared Parenting Child Support Computation Worksheet* or *Line 31 Split Parenting Child Support Computation Worksheet*) Obligee's cash medical support obligation is not subject to collection by the Child Support Enforcement Agency.

Plaintiff/Petitioner 1 shall pay _____% and the Defendant/Petitioner 2 shall pay _____% of the health care expenses incurred for a child during a calendar year that exceed $_____, the parents' total combined annual deviated cash medical support obligation, as determined by the applicable worksheet. (*Line 29* amounts added together and multiplied by twelve *Sole/Shared Child Support Computation Worksheet*, *Line 31* amounts added together and multiplied by twelve *Split Parenting Child Support Computation Worksheet*)

SIXTH: TAX DEPENDENCY

A. ☐ Plaintiff/Petitioner 1 shall be entitled to claim the following minor child(ren) as (a) dependent(s) for all tax purposes for ☐ even-numbered tax years ☐ odd-numbered tax years ☐ all eligible tax years, so long as Plaintiff/Petitioner 1 is substantially current in any child support Plaintiff/Petitioner 1 is required to pay as of December 31 of the tax year in question: _____

☐ Defendant/Petitioner 2 shall be entitled to claim the following minor child(ren) as (a) dependent(s) for all tax purposes for ☐ even-numbered tax years ☐ odd-numbered tax years ☐ all eligible tax years, so long as Defendant/Petitioner 2 is substantially current in any child support Defendant/Petitioner 2 is required to pay as of December 31 of the tax year in question:_____

B. ☐ Other orders regarding tax dependency: (*specify*)

_____

_____

If a parent who has a child less than half of the time is entitled to claim the child, the other parent shall execute and deliver Internal Revenue Service Form 8332, or its successor, together with any other required forms as set out in section 152 of the Internal Revenue Code, as amended, on or before February 15th of the year following the tax year in question.

SEVENTH: MODIFICATION

This Shared Parenting Plan may be modified by agreement of the parties or by the Court.

EIGHTH: OTHER

_____

_____

_____

Upon approval by the Court, this Shared Parenting Plan shall be incorporated in the Judgment Entry.

_____	_____
Plaintiff/Petitioner 1 Signature	Defendant/Petitioner 2 Signature
_____	_____
Printed Name	Printed Name
_____	_____
Plaintiff/Petitioner 1 Attorney Signature	Defendant/Petitioner 2 Attorney Signature
_____	_____
Printed Name	Printed Name
_____	_____
Supreme Court Reg No.	Supreme Court Reg No.

IN THE COURT OF COMMON PLEAS

_____ **DIVISION**

_____ **COUNTY, OHIO**

IN THE MATTER OF:

_____

A Minor

_____ Case No. _____

Name

_____ Judge _____

Street Address

_____ Magistrate _____

City, State and Zip Code

Plaintiff/Petitioner 1

vs./and

_____

Name

_____

Street Address

_____

City, State and Zip Code

Defendant/Petitioner 2

WARNING: This form is not a substitute for the benefit of the advice of legal counsel. It is highly recommended that you consult an attorney.

Instructions: The Parenting Time Schedule must be attached to this Plan. Parents are urged to consult the Planning for Parenting Time Guide: Ohio's Guide for Parents Living Apart and Domestic Violence & Allocation of Parental Rights and Responsibilities available at www.supremecourt.ohio.gov.

PARENTING PLAN

The parents, _____ "Plaintiff/Petitioner 1", and _____ "Defendant/Petitioner 2", have _____ (number) child(ren) from the marriage or relationship. Of the child(ren), _____ (number) is/are emancipated adult(s) and not under any disability. The following _____ (number) child(ren) are minor child(ren) and/or mentally or physically disabled child(ren) incapable of supporting or maintaining themselves:

Name of Child	Date of Birth

The parents agree to the care, parenting, and control of their child(ren) as provided in this Parenting Plan.

FIRST: PARENTS' RIGHTS

Unless otherwise stated herein, the parents shall have:

A. The right to reasonable telephone contact with the child(ren) when they are with the other parent.
B. The right to be notified in case of an injury to or illness of the minor child(ren).
C. The right to inspect and receive the minor child(ren)'s medical and dental records and the right to consult with any treating physician, dentist, and/or other health care provider, including, but not limited to, psychologists and psychiatrists.
D. The right to consult with school officials concerning the minor child(ren)'s welfare and educational status, and the right to inspect and receive the child(ren)'s student records to the extent permitted by law.
E. The right to receive copies of all school reports, calendars of school events, notices of parent-teacher conferences, and school programs.
F. The right to attend and participate in parent-teacher conferences, school trips, school programs, and other school activities to which parents are invited.
G. The right to attend and participate with the child(ren) in athletic programs and other extracurricular activities.

SECOND: ALLOCATION OF PARENTAL RIGHTS AND RESPONSIBILITIES

A. General Responsibilities
Each parent shall take all measures necessary to foster respect and affection between the child(ren) and the other parent. Neither parent shall do anything that may estrange the child(ren) from the other parent, or impair the child(ren)'s high regard for the other parent.

B. Residential Parent and Legal Custodian

☐ Plaintiff/Petitioner 1 shall be the residential parent and legal custodian of the following child(ren):

Name of Child	**Date of Birth**

☐ Defendant/Petitioner 2 shall be the residential parent and legal custodian of the following child(ren):

Name of Child	**Date of Birth**

C. Parenting Time Schedule
A parenting time schedule must be attached to this Plan.

The parents shall have parenting time with the child(ren) according to the attached parenting time schedule, which shows the times that the child(ren) shall be with each parent on weekdays, weekends, holidays and days of special meaning, and vacations.

The parties may voluntarily modify the parenting time schedule, if agreed; however, the Court cannot enforce any change in the parenting time schedule unless it is made an Order of the Court.

D. Transportation: (*select one*)
Absent other agreement of the parties included in the attached parenting time schedule, each parent shall be responsible for providing transportation for the child(ren) at the beginning of the parent's parenting time period. Each parent shall be responsible for providing transportation for the child(ren) to and from school during that parent's parenting time period.

☐ Other agreement regarding transportation to school and parenting time:

_____

_____

_____

E. Responsibility for Child Activities

1. Participation in Activities
The scheduling of events, appointments, and activities shall not be done in a manner to cause undue inconvenience or harassment to the other parent. Both parents must understand that the child(ren) need(s) to be able to participate in regular activities without interference and with the support of both parents.

Absent other agreement by the parents, the child(ren) shall continue to participate in those extracurricular activities, school-related and other activities in which they are currently enrolled, uninterrupted.

☐ Other agreement regarding participation in current or new extracurricular, school-related or other activities:

_____

_____

_____

Each parent shall provide the other with notice of all extracurricular activities, school-related or otherwise, in which the child(ren) participates, schedules of all activities (handwritten if no formal schedule is provided by the activity) and the name of the activity leader (including address and telephone number if reasonably available).

2. Transportation to Activities
Absent other agreement by the parents, it is the responsibility of the parent in possession of the child(ren) to provide transportation to an activity.

☐ Other agreement regarding transportation:

_____

_____

_____

3. Payment of Expenses Related to Activities
Each parent shall notify the other about any and all expenses arising from the child's extracurricular, school-related, or other activities.

Absent other agreement of the parents, the parents shall pay the costs and expenses associated with their child(ren)'s participation in any extracurricular, school-related, or other activities as follows:

☐ Plaintiff/Petitioner 1 _____
☐ Defendant/Petitioner 2 _____
☐ Other agreement regarding the payment of extracurricular, school-related, or other activity expenses:

_____

_____

The parent incurring an expense related to an extracurricular, school-related, or other activity shall forward a copy of the bill or invoice to the other parent as soon as practicable. Absent other agreement of the parents as stated herein, reimbursement or payment shall be made within thirty (30) days of receipt of the bill or invoice.

☐ Other agreement regarding reimbursement or payment of expenses:

_____

_____

_____

F. Health Care Responsibilities
Each parent shall promptly notify the other parent if a child experiences a serious injury, has a serious or chronic illness, or receives treatment in an emergency room or hospital. Each parent shall notify the other parent of the emergency, the child's status, locale, and any other pertinent information as soon as practical, but in any event within twenty-four (24) hours. Each parent shall provide the other with the names and telephone numbers of all health care providers for the child(ren).

☐ Other agreement regarding health care responsibilities:

_____

_____

_____

G. Current Address and Telephone Number
Plaintiff's/Petitioner 1's current home address and telephone number, including cellular telephone number:

_____

_____

Defendant's/Petitioner 2's current home address and telephone number, including cellular telephone number:

_____

_____

H. Relocation Notice
Pursuant to R.C. 3109.051(G):

If the residential parent intends to move to a residence other than the residence specified in the Court order, the parent shall file a notice of intent to relocate with this Court. Except as provided in R.C. 3109.051(G)(2), (3), and (4), the Court shall send a copy of the notice to the parent who is not the residential parent. Upon receipt of the notice, the Court, on its own motion or the motion of the parent who is not the residential parent, may schedule a hearing with notice to both parents to determine whether it is in the best interest of the child(ren) to revise the parenting time schedule for the child(ren).

☐ The non-residential parent shall inform the Court and the other parent, in writing, of changes in address and telephone, including cellular telephone number, unless otherwise provided by court order.

The relocation notice must be filed with the Court granting the allocation of parental rights and responsibilities: (*print name and address of the Court*)

_____

_____

I. Records Access Notice
Pursuant to R.C. 3109.051(H) and 3319.321(B)(5)(a):

Subject to R.C. 3125.16 and 3319.321(F), the parent who is not the residential parent is entitled access to any record that is related to the child(ren), and to which the residential parent is legally provided access under the same terms and conditions as the residential parent. Any keeper of a record who knowingly fails to comply with any record access order is in contempt of Court.

Restrictions or limitations:

☐ None

☐ Restrictions or limitations to non-residential parent regarding records access are as follows:

_____

_____

J. Day Care Access Notice
Pursuant to R.C. 3109.051(I):

In accordance with R.C. 5104.039, the parent who is not the residential parent is entitled access to any day care center that is or will be attended by the child(ren) with whom parenting time is granted, to the same extent that the residential parent is granted access to the center unless otherwise restricted.

Restrictions or limitations:

☐ None

☐ Restrictions or limitations to non-residential parent regarding day care access are as follows:

_____

_____

K. School Activities Access Notice
Pursuant to R.C. 3109.051(J):

Subject to R.C. 3319.321(F), the parent who is not the residential parent is entitled access to any student activity that is related to the child(ren) and to which the residential parent is legally provided access, under

the same terms and conditions as the residential parent unless otherwise restricted. Any school employee or official who knowingly fails to comply with this school activities access order is in contempt of Court.

Restrictions or limitations:

☐ None

☐ Restrictions or limitations to non-residential parent regarding school activities access are as follows:

_____

_____

_____

THIRD: CHILD SUPPORT

As required by law, a completed Child Support Worksheet is attached to this document.

The Order for child support and cash medical support is effective _____, 20_____.

For purposes of this order:

☐ Plaintiff/Petitioner 1 ☐ Defendant/Petitioner 2 is the child support obligor (*pays support*).

☐ Plaintiff/Petitioner 1 ☐ Defendant/Petitioner 2 is the child support obligee (*receives support*).

The following information is provided in accordance with R.C. 3121.30:

SUPPORT OBLIGOR (pays support):

Name (First, MI, Last): _____

Social Security Number: xxx-xx-_____ (fill in last four digits)

Date of Birth: _____

SUPPORT OBLIGEE (receives support):

Name (First, MI, Last): _____

Social Security Number: xxx-xx-_____ (fill in last four digits)

Date of Birth: _____

A. Guideline Child Support Amount

The **guideline** child support obligation, as determined by the Child Support Worksheet, is $_____ per child, per month for _____ (number) child(ren), for a total of $_____ per month. (*Line 24 Sole/Shared Parenting Child Support Computation Worksheet* or *Line 25 Split Parenting Child Support Computation Worksheet*)

B. Overnight Parenting Time Adjustment

☐ The child support obligor does not have Court ordered parenting time which is equal to or exceeds ninety (90) overnights.

☐ The child support obligor has Court ordered parenting time which is equal to or exceeds ninety (90) overnights. The above computation reflects an automatic ten percent (10%) adjustment in the guideline child support obligation.

C. Overnight Parenting Time Deviation

☐ Pursuant to R.C. 3119.231, there is extended Court ordered parenting time which:

☐ exceeds ninety (90) overnights but is *not* more than 146 overnights (_____ overnights).

☐ A deviation is *not* granted.

☐ The annual obligation would be unjust and inappropriate and, therefore, not in the best interest of the minor child(ren). A deviation *is* granted for the following reasons:

_____

_____

_____

– OR –

☐ is equal to or exceeds 147 overnights (_____ overnights).

A deviation is ☐ granted ☐ *not* granted for the following reasons:

_____

_____

D. Other Deviation Factors *(if applicable)*

☐ Pursuant to R.C. 3119.22, 3119.23 and/or 3119.24, the annual obligation would be unjust and inappropriate and, therefore, not in the best interest of the minor child(ren) for the following reason(s):

(Check all that apply)

☐ Special and unusual needs of the child(ren), including needs arising from the physical or psychological condition of the child(ren)

_____

_____

☐ Other Court ordered payments

_____

_____

☐ Extended parenting time or extraordinary costs associated with parenting time, including extraordinary travel expenses when exchanging the child(ren) for parenting time

_____

☐ Financial resources and the earning ability of the child(ren)

_____

_____

☐ Relative financial resources, including the disparity in income between parties or households, other assets, and the needs of each parent

_____

_____

☐ Obligee's income, if the obligee's annual income is equal to or less than one hundred percent (100%) of the federal poverty level

☐ Benefits that either parent receives from remarriage or sharing living expenses with another person

☐ Amount of federal, state, and local taxes actually paid or estimated to be paid by a parent or both parents

☐ Significant in-kind contributions from a parent, including, but not limited to, direct payment for lessons, sports equipment, schooling, or clothing

☐ Extraordinary work-related expenses incurred by either parent

☐ Standard of living and circumstances of each parent and the standard of living the child(ren) would have enjoyed had the marriage continued or had the parents been married

☐ Educational opportunities that would have been available to the child(ren) had the circumstances requiring a child support order not arisen

☐ The responsibility of each parent for the support of others, including support of (a) child(ren) with disabilities who is/are not subject to the support order

☐ Post-secondary educational expenses paid for by a parent for the parent's own child(ren), regardless of whether the child(ren) is/are emancipated

☐ Costs incurred or reasonably anticipated to be incurred by the parents in compliance with Court ordered reunification efforts in child abuse, neglect, or dependency cases

☐ Extraordinary child care costs required for the child(ren) that exceed the maximum state-wide average cost estimate as described in R.C. 3119.05(P)(1)(d), including extraordinary costs associated with caring for (a) child(ren) with specialized physical, psychological, or educational needs

_____

_____

☐ Any other relevant factor: (*specify*)

_____

_____

☐ Extraordinary circumstances associated with shared parenting: (*Only if Shared Parenting is ordered - check all that apply*)

- ☐ Ability of each parent to maintain adequate housing for the child(ren)
- ☐ Each parent's expenses, including child care expenses, school tuition, medical expenses, dental expenses, and other relevant expenses
- ☐ Any other relevant circumstances: (*specify*)

_____

E. Monthly Child Support Obligation

The child support obligor (pays support) shall pay child support in the amount of $_____ per child, per month for _____ (number) child(ren), for a total of $_____ per month, plus two percent (2%) processing charge. (*If there is no child support deviation, Line 24 Sole/Shared Child Support Computation Worksheet, or Line 25 Split Parenting Child Support Computation Worksheet. If there is a deviation in child support, Line 26 Sole/Shared Child Support Computation Worksheet, or Line 27 Split Parenting Child Support Computation Worksheet*.)

F. Arrearage or Overpayment

- ☐ Child support arrearage or overpayment for the minor child(ren) payable either by administrative order, temporary or final order **shall** survive and continue as an enforceable obligation until paid in full.
- ☐ Child support arrearage or overpayment for the minor child(ren) payable either by administrative order, temporary or final order **shall not** survive and continue as an enforceable obligation until paid in full, except those arrearages assigned to and due to the Department of Job and Family Services.

G. Method to Secure Support Payment(s)

All support under this Order shall be withheld or deducted from the income or assets of the support obligor pursuant to a withholding or deduction notice or appropriate Order issued in accordance with R.C. Chapters 3119, 3121, 3123, and 3125 or a withdrawal directive issued pursuant to R.C. 3123.24 to 3123.38 and shall be forwarded to the obligee in accordance with R.C. Chapters 3119, 3121, 3123, and 3125.

The support obligor shall immediately notify the _____ County Child Support Enforcement Agency, in writing, of any change in employment (including self-employment), receipt of additional income/monies or termination of benefits. The support obligor shall include a description of the nature of the employment and the name, business address and telephone number of any employer.

The specific withholding or deduction requirements to be used to collect the support shall be set forth and determined by reference to the notices that are sent out by the Child Support Enforcement Agency in accordance with R.C. 3121.03 and shall be determined without the need for any amendment to the support order. Those notices, plus the notices provided by the Child Support Enforcement Agency that require the child support obligor to notify the Child Support Enforcement Agency of any change in his/her employment status or of any other change in the status of his/her assets, are final and enforceable by the court. Each

withholding notice shall be for the current child support, current cash medical support, any arrearage payment, and processing charges.

All support shall be paid through Ohio Child Support Payment Central (OCSPC), P.O. Box 182372, Columbus, Ohio 43218-2372. Checks or money orders shall be made payable to "OCSPC". All payments shall include the following: Obligor's name, Social Security Number, SETS case number and Domestic Relations Court case number. **If there is to be a withholding/deduction order, the support obligor shall make payments directly to OCSPC until the income source/financial institution begins withholding/deducting in the appropriate amount.**

Pursuant to R.C. 3121.45, any payment of money by the child support obligor to the child support obligee that is not made through Ohio Child Support Payment Central or the Child Support Enforcement Agency administering the support order shall not be considered a payment under the support order and, unless the payment is made to discharge an obligation other than support, shall be deemed a gift.

Payments shall be made in the manner ordered by the Court. If payments are to be made other than on a monthly basis, the required monthly administration by the _____ County Child Support Enforcement Agency does not affect the frequency or the amount of the support payments to be made under the order.

(Check one of the following three boxes)

☐ The support obligor receives income from an income source.

A withholding or deduction notice shall issue to:

INCOME SOURCE: _____

ADDRESS: _____

_____

– OR –

☐ The support obligor has nonexempt funds on deposit in an account at a financial institution.

A withholding or deduction notice shall issue to:

FINANCIAL INSTITUTION: _____

ADDRESS: _____

_____

If withholding from a financial account, the support obligor shall immediately notify the _____ County Child Support Enforcement Agency of the number and description of the account from which support shall be deducted, and the name, branch, business address and routing number of the financial institution if not set forth above.

The support obligor shall immediately notify the _____ County Child Support Enforcement Agency of any change in the status of an account from which support is being deducted or the opening of a new account with any financial institution.

– OR –

☐ The support obligor has no attachable income source at this time.

The support obligor shall immediately notify the _____ County Child Support Enforcement Agency, in writing, if the support obligor begins to receive income from a payor. The notice shall include a description of the nature of any new employment, and the name, business address and telephone number of any new employer.

☐ The support obligor shall seek employment, if able to engage in employment. Obligor's employment search must include registration with Ohio Means Jobs at https://jobseeker.ohiomeansjobs.monster.com. Obligor shall immediately notify the _____ County Child Support Enforcement Agency, in writing, upon commencement or change of employment (including self-employment), receipt of additional income/monies, obtaining ownership of asset of value of $500.00 or more, receipt or termination of benefits or the opening of an account at a financial institution. The support obligor shall include a description of the nature of the employment and the name, business address and telephone number of any employer. The support obligor shall immediately notify the _____ County Child Support Enforcement Agency of any change in the status of an account from which support is being deducted or the opening of a new account with any financial institution.

H. Duration and Termination of Support & Required Notices

The duty of child support and cash medical support for each child shall continue until further order of Court or until the above-named child reaches age eighteen (18) unless one of the following circumstances applies:

- The child is mentally or physically disabled and is incapable of supporting or maintaining himself, herself or themselves.
- The parents have agreed to continue child support beyond the date it would otherwise terminate.
- The child continuously attends a recognized and accredited high school on a full-time basis so long as the child has not, as yet, reached the age of nineteen (19) years old. Under this circumstance, child support will end at the time the child graduates or ceases to attend a recognized and accredited high school on a full-time basis or when the child reaches the age of nineteen (19), whichever occurs first.

The child support and cash medical support order will remain in effect during seasonal vacation periods until the order terminates.

☐ The parties have agreed that the child support and cash medical support obligation will extend beyond the time when it would otherwise end. The terms and conditions of that agreement are as follows:

_____

_____

_____

_____

☐ The parties have (a) child(ren) who is/are mentally or physically disabled and incapable of supporting or maintaining himself, herself or themselves, and child support and cash medical support will extend beyond the time when it would otherwise end. The name of the child(ren) and the nature of the mental or physical disability(ies) is/are as follows:

_____

_____

_____

_____

The residential parent and legal custodian of the child(ren) shall immediately notify, and the child support obligor may notify, the _____ County Child Support Enforcement Agency of any reason

for which the child support order should terminate, including, but not limited to, the child's death, marriage, emancipation (age 18 or high school completion/termination), enlistment in the Armed Services, deportation, or change of legal custody. A willful failure to notify the _____ County Child Support Enforcement Agency may be contempt of Court.

EACH PARTY TO THIS SUPPORT ORDER MUST NOTIFY THE CHILD SUPPORT ENFORCEMENT AGENCY IN WRITING OF HIS OR HER CURRENT MAILING ADDRESS, CURRENT RESIDENCE ADDRESS, CURRENT RESIDENCE TELEPHONE NUMBER, CURRENT DRIVER'S LICENSE NUMBER, AND OF ANY CHANGES IN THAT INFORMATION. EACH PARTY MUST NOTIFY THE AGENCY OF ALL CHANGES UNTIL FURTHER NOTICE FROM THE COURT OR AGENCY, WHICHEVER ISSUED THE SUPPORT ORDER.

IF YOU ARE THE OBLIGOR UNDER A CHILD SUPPORT ORDER AND YOU FAIL TO MAKE THE REQUIRED NOTIFICATIONS, YOU MAY BE FINED UP TO $50 FOR A FIRST OFFENSE, $100 FOR A SECOND OFFENSE, AND $500 FOR EACH SUBSEQUENT OFFENSE. IF YOU ARE AN OBLIGOR OR OBLIGEE UNDER ANY SUPPORT ORDER ISSUED BY A COURT AND YOU WILLFULLY FAIL TO GIVE THE REQUIRED NOTICES, YOU MAY BE FOUND IN CONTEMPT OF COURT AND BE SUBJECTED TO FINES UP TO $1,000 AND IMPRISONMENT FOR NOT MORE THAN 90 DAYS.

IF YOU ARE AN OBLIGOR OR OBLIGEE AND YOU FAIL TO GIVE THE REQUIRED NOTICES TO THE CHILD SUPPORT ENFORCEMENT AGENCY, YOU MAY NOT RECEIVE NOTICE OF THE CHANGES AND REQUESTS TO CHANGE THE CHILD SUPPORT AMOUNT, HEALTH CARE PROVISIONS, REDIRECTION, OR TERMINATION OF THE CHILD SUPPORT ORDER. IF YOU ARE AN OBLIGOR AND YOU FAIL TO GIVE THE REQUIRED NOTICES, YOU MAY NOT RECEIVE NOTICE OF THE FOLLOWING ENFORCEMENT ACTIONS AGAINST YOU: IMPOSITION OF LIENS AGAINST YOUR PROPERTY; LOSS OF YOUR PROFESSIONAL OR OCCUPATIONAL LICENSE, DRIVER'S LICENSE, OR RECREATIONAL LICENSE; WITHHOLDING FROM YOUR INCOME; ACCESS RESTRICTION AND DEDUCTION FROM YOUR ACCOUNTS IN FINANCIAL INSTITUTIONS; AND ANY OTHER ACTION PERMITTED BY LAW TO OBTAIN MONEY FROM YOU TO SATISFY YOUR SUPPORT OBLIGATION.

FOURTH: HEALTH INSURANCE COVERAGE

A. ☐ Private Health Insurance Coverage IS NOT available for the minor child(ren).

Neither parent has accessible private health insurance coverage available at a reasonable cost to cover the minor child(ren) at the time of the issuance of this order.

The child support obligee shall obtain health care coverage (private health insurance coverage or public health care plan) for the child(ren) not later than thirty (30) days after it becomes available at a reasonable cost, and shall inform the _____ County Child Support Enforcement Agency (CSEA) when health care coverage for the child(ren) has been obtained.

If private health insurance coverage becomes available to the child support obligor at a reasonable cost, the child support obligor shall inform the _____ County Child Support Enforcement Agency (CSEA) and may seek a modification of health care coverage from the Court with respect to a Court child support order, or from the agency with respect to an administrative support order.

B. ☐ Private Health Insurance Coverage IS available for the minor child(ren).

- ☐ Plaintiff/Petitioner 1 has private health insurance coverage for the minor child(ren);
- ☐ Defendant/Petitioner 2 has private health insurance coverage for the minor child(ren); or
- ☐ Both parents have private health insurance coverage available for the minor child(ren).

1. Accessibility of Private Health Insurance Coverage.

The available private health insurance coverage for the minor child(ren) is accessible because:

(*Check one of the following three boxes)*

☐ Primary care services are within thirty (30) miles of the child(ren)'s residence.

☐ The Court permits primary care services farther than thirty (30) miles of the child(ren)'s residence because residents in the geographic area customarily travel farther distances.

☐ Primary care services are accessible by public transportation because public transportation is the child support obligee's only source of transportation.

2. Reasonableness of Cost of Private Health Insurance Coverage.

Pursuant to R.C. 3119.29(F), for purposes of determining reasonable cost, the total cost of private health insurance coverage to the person required to provide private health insurance coverage for the child(ren) subject to the child support order does not exceed an amount equal to five percent of the annual income of that person.

(*Check one of the following two sections*)

☐ The total cost of private health insurance coverage available to ☐ Plaintiff/Petitioner 1 and/or ☐ Defendant/Petitioner 2 **does not exceed** that parent's Health Insurance Maximum. (*Line 8 Child Support Computation Worksheet*)

– OR –

☐ The total cost of private health insurance coverage available to ☐ Plaintiff/Petitioner 1 and/or ☐ Defendant/Petitioner 2 **exceeds** that parent's Health Insurance Maximum (*Line 8 Child Support Computation Worksheet*);

(Check one of the three sections below)

☐ Both parents agree that ☐Plaintiff/Petitioner 1 ☐Defendant/Petitioner 2 or ☐Both parents shall obtain or maintain private health insurance coverage, the cost of which exceeds the Health Insurance Maximum for that parent.

– OR –

☐ Plaintiff/Petitioner 1 ☐Defendant/Petitioner 2 has requested to obtain or maintain private health insurance coverage, the cost of which exceeds the Health Insurance Maximum for that parent.

– OR –

☐ It is in the best interest of the child(ren) for ☐Plaintiff/Petitioner 1 ☐Defendant/Petitioner 2 to obtain or maintain private health insurance coverage for the child(ren) even though the total cost of private health insurance coverage exceeds that parent's Health Insurance Maximum. The cost of private health insurance coverage will not impose an undue financial burden because:

_____

_____

3. Person Required to Provide Private Health Insurance Coverage.

☐ Plaintiff/Petitioner 1 ☐ Defendant/Petitioner 2 ☐ Both parents shall provide private health insurance coverage for the child(ren) until further order of Court for the following reasons:

(Check one of the following six boxes)

☐ The child support obligee is rebuttably presumed to be the appropriate parent to provide private health insurance coverage for the child(ren).
☐ The child support obligor already has private health insurance coverage for the child(ren) that is reasonable in cost.
☐ The child support obligor already has private health insurance coverage in place for the child(ren) that is not reasonable in cost, but the child support obligor wishes to be named the private health insurance obligor and provide coverage.
☐ The child support obligor can obtain private health insurance coverage for the child(ren) that is reasonable in cost through an employer or other source.
☐ The child support obligee is a non-parent individual or agency that has no duty to provide medical support.
☐ Both parents wish to provide and already have private health insurance coverage in place or have private health insurance coverage available for the child(ren).

If both parents are providing private health insurance coverage for the minor child(ren), ☐Plaintiff's/Petitioner 1's ☐Defendant's/Petitioner 2's private health insurance coverage plan shall be considered the primary private health insurance coverage plan for the child(ren).

Should private health insurance coverage be cancelled for any reason, the parent ordered to maintain private health insurance coverage shall immediately notify the other parent of the cancellation.

C. Health Care Coverage Requirements

Within thirty (30) days after the issuance of this support order, the person required to provide health care coverage for the child(ren) must provide to the other parent or to the child support obligee information regarding the benefits, limitations, and exclusions of the coverage, copies of any forms necessary to receive reimbursement, payment or other benefits under the coverage, and a copy of any necessary proof of coverage.

Within thirty (30) days after the issuance of this order, the person required to provide health care coverage for the child(ren) shall provide to the Child Support Enforcement Agency documentation that verifies health care coverage is being provided as ordered.

The individual who is designated to be reimbursed for health care expenses for the child(ren) is:

Name: _____

Address: _____

_____

The person required to provide health care coverage for the child(ren) shall designate the child(ren) as covered dependent(s) under any health care coverage policy, contract, or plan.

Pursuant to R.C. 3119.32(E), the employer of the person required to provide health care coverage for the child(ren) is required to release to the other parent, any person subject to an order issued under R.C. 3109.19, or the Child Support Enforcement Agency, on written request, any necessary information on the health care coverage, including the name and address of the health plan administrator and any policy, contract, or plan number, and to otherwise comply with R.C. 3119.32 and any order or notice issued under R.C. 3119.32.

Pursuant to R.C. 3119.32(G), if the person required to obtain health care coverage for the child(ren) subject to this child support order obtains new employment, the agency shall comply with the requirements of R.C. 3119.34, which may result in the issuance of a notice requiring the new employer to take whatever action is necessary to enroll the children in private health care insurance coverage provided by the new employer, when insurance is not being provided by any other source.

FIFTH: CASH MEDICAL SUPPORT & CHILDREN'S HEALTH CARE EXPENSES

A. Liability for child(ren)'s Health Care Expenses

Pursuant to R.C. 3119.30(A), both parents are liable for the health care expenses of the child(ren) who is/are not covered by private health insurance coverage.

Cash medical support is an amount paid in a child support order toward the ordinary health care expenses incurred during a calendar year. Ordinary health care expenses include copayments and deductibles, and uninsured health-related costs.

Extraordinary health care expenses are any uninsured health care expenses incurred for a child during a calendar year that exceed the total cash medical support amount owed by the parents during that year.

Each party shall have access to all health care records of the child(ren) as provided by law, or as otherwise limited in this document.

The term "health care expense" or "health care records" shall include, but not be limited to, medical, dental, orthodontic, optical, pharmaceutical, surgical, hospital, major medical, psychological, psychiatric, outpatient, doctor, therapy, counseling, prosthetic, and/or all other expenses/records including preventative health expenses/records related to the treatment of the human body and mind.

The parent who receives a health care bill, and/or an Explanation of Benefits (EOB), or who incurs a health care expense, shall provide the other parent the original or a copy of the bill, and/or EOB, if available, within (thirty) 30 days of the date on the bill or EOB, or a receipt, absent extraordinary circumstances. The other parent shall reimburse the parent incurring the expenses or pay directly to the health care provider, that parent's percentage share of the bill as shown in Section D below.

B. Guideline Cash Medical Support Obligation

The parents' combined **annua**l cash medical support obligation, as determined by the applicable worksheet, is $_____. (*Line 23a Child Support Computation Worksheet)*

The Obligor's (pays support) guideline **annual** cash medical support obligation is $_____. (*Line 23b Child Support Computation Worksheet*)

The Obligee's (receives support) guideline **annua**l cash medical support obligation is $_____. (*Line 23b Child Support Computation Worksheet*) The Obligee's cash medical support obligation is not subject to collection by the Child Support Enforcement Agency.

C. Deviation in Cash Medical Support (if applicable)

Pursuant to R.C. 3119.22, 3119.23 and/or 3119.24, the annual guideline cash medical support obligation would be unjust and inappropriate and, therefore, not in the best interest of the minor child(ren) for the following reason(s):

☐ The same reasons referenced in this document regarding the child support deviation.

– OR –

☐ _____

_____

_____

D. Cash Medical Support Obligation and Division of Child(ren)'s Health Care Expenses

(Check one of the following two boxes)

☐ The cash medical support obligation is not deviated.

Obligor shall pay cash medical support in the amount of $_____ per child, per month, for _____ (number) child(ren) for a total of $_____, per month, plus two percent (2%) processing charge through the Child Support Enforcement Agency. (*Line 27 Sole/Shared Parenting Child Support Computation Worksheet*, or *Line 29 Split Parenting Child Support Computation Worksheet*)

Plaintiff/Petitioner 1 shall pay _____% and Defendant/Petitioner 2 shall pay _____% of the health care expenses incurred for a child during a calendar year that exceeds $_____, the parents' total combined annual cash medical support obligation, as determined by the applicable worksheet. (*Line 23a Child Support Computation Worksheet*)

– OR –

☐ The cash medical support obligation is deviated.

Obligor shall pay cash medical support in the amount of $_____ per child, per month, for ____(number) child(ren) for a total of $_____, per month, plus two percent (2%) processing charge through the Child Support Enforcement Agency. (*Line 29 Sole/Shared Parenting Child Support Computation Worksheet*, or *Line 31 Split Parenting Child Support Computation Worksheet*)

Obligee's cash medical support obligation is deviated to $_____ per month. (*Line 29, Sole/Shared Parenting Child Support Computation Worksheet* or *Line 31 Split Parenting Child Support Computation Worksheet*) Obligee's cash medical support obligation is not subject to collection by the Child Support Enforcement Agency.

Plaintiff/Petitioner 1 shall pay _____% and the Defendant/Petitioner 2 shall pay _____% of the health care expenses incurred for a child during a calendar year that exceeds $_____, the parents' total combined annual deviated cash medical support obligation, as determined by the applicable worksheet. (*Line 29* amounts added together and multiplied by twelve *Sole/Shared Child Support Computation Worksheet*, *Line 31* amounts added together and multiplied by twelve *Split Parenting Child Support Computation Worksheet*)

SIXTH: TAX EXEMPTIONS

A. ☐ Plaintiff/Petitioner 1 shall be entitled to claim the following minor child(ren) for all tax purposes for ☐ even-numbered tax years ☐ odd-numbered tax years ☐ all eligible tax years, so long as Plaintiff/Petitioner 1 is substantially current in any child support Plaintiff/Petitioner 1 is required to pay as of December 31 of the tax year in question:_____

☐ Defendant/Petitioner 2 shall be entitled to claim the following minor child(ren) for all tax purposes for ☐ even-numbered tax years ☐ odd-numbered tax years ☐ all eligible tax years, so long as Defendant/Petitioner 2 is substantially current in any child support Defendant/Petitioner 2 is required to pay as of December 31 of the tax year in question:_____

B. ☐ Other orders regarding tax exemptions: (*specify*)

_____

_____

If a non-residential parent is entitled to claim the child(ren), the residential parent is required to execute and deliver Internal Revenue Service Form 8332, or its successor, together with any other required forms as set out in section 152 of the Internal Revenue Code, as amended, on or before February 15th of the year following the tax year in question, to allow the non-residential parent to claim the minor child(ren).

SEVENTH: MODIFICATION

This Parenting Plan may be modified by agreement of the parties or by the Court.

EIGHTH: OTHER

_____

_____

Upon approval by the Court, this Parenting Plan shall be incorporated in the Judgment Entry.

_____	_____
Plaintiff/Petitioner 1 Signature	Defendant/Petitioner 2 Signature
_____	_____
Printed Name	Printed Name
_____	_____
Plaintiff/Petitioner 1 Attorney Signature	Defendant/Petitioner 2 Attorney Signature
_____	_____
Printed Name	Printed Name
_____	_____
Supreme Court Reg No.	Supreme Court Reg No.

IN THE COURT OF COMMON PLEAS

_____ DIVISION

_____ COUNTY, OHIO

IN THE MATTER OF:

_____
A Minor

_____ Case No. _____
Name

_____ Judge _____
Street Address

_____ Magistrate _____
City, State and Zip Code

Plaintiff/Petitioner 1

vs./and

_____
Name

_____
Street Address

_____
City, State and Zip Code

Defendant/Petitioner 2

PARENTING JUDGMENT ENTRY

This case came before the Court on _____ for an Order allocating parental rights and responsibilities for the care of the following child(ren):

Name of Child	Date of Birth
_____	_____
_____	_____
_____	_____
_____	_____

according to the attached ☐ Parenting Plan or ☐ Shared Parenting Plan.

The Court approves the Plan and incorporates it into this Judgment Entry as if fully rewritten herein. The parents shall abide by all of the terms and conditions of the Plan.

OTHER ORDERS

TEMPORARY ORDERS

All temporary orders in this case shall be terminated.

COURT COSTS

Court costs shall be: (*select one*)

☐ Taxed to the deposit. Court costs due above the deposit shall be paid as follows:

☐ Other: (*specify*)

CLERK OF COURTS

The Clerk of Courts shall provide:

☐ a certified copy to:

☐ a file stamped copy to: Child Support Enforcement Agency

JUDGE

Plaintiff/Petitioner 1 Signature

Printed Name

Plaintiff/Petitioner 1 Attorney Signature

Printed Name

Supreme Court Reg No.

Defendant/Petitioner 2 Signature

Printed Name

Defendant/Petitioner 2 Attorney Signature

Printed Name

Supreme Court Reg No.

NOTICE. This is a final appealable order. The Clerk is directed to serve upon all parties notice of this Judgment Entry and its date of entry upon the journal in accordance with Civ.R. 5(B), in the manner provided in Civ.R. 58(B).

IN THE COURT OF COMMON PLEAS

_____ **DIVISION**

_____ **COUNTY, OHIO**

IN THE MATTER OF:

_____

A Minor

_____ Case No. _____

Name

_____ Judge _____

Street Address

_____ Magistrate _____

City, State and Zip Code

Plaintiff

vs.

_____

Name

_____

Street Address

_____

City, State and Zip Code

Defendant

WARNING: This form is not a substitute for the benefit of the advice of legal counsel. It is highly recommended that you consult an attorney.

Instructions: This form is used to establish parentage of the child(ren), be designated as the residential parent, or obtain parenting time (companionship and visitation) with the child(ren). A Request for Service (Uniform Domestic Relations Form 31), a Parenting Proceeding Affidavit (Uniform Domestic Relations Form - Affidavit 3) and an Affidavit of Basic Information, Income and Expenses (Uniform Domestic Relations Form - Affidavit 1) must be filed with this Complaint. The Court may require additional forms to accompany this document. You must check the requirements of the county in which you file. **YOU MUST UPDATE THE CLERK OF COURTS IF ANY OF THE ABOVE CONTACT INFORMATION CHANGES.**

COMPLAINT FOR PARENTAGE, ALLOCATION OF PARENTAL RIGHTS AND RESPONSIBILITIES (CUSTODY), AND PARENTING TIME (COMPANIONSHIP AND VISITATION)

Now comes Plaintiff and states as follows:

1. Plaintiff is a parent of the following child(ren):

Name of Child	Date of Birth

2. Defendant, _____ (name) is a parent of the following child(ren):

Name of Child	Date of Birth

3. The child(ren) has/have resided in _____ County, Ohio since _____ (date).

4. A parent-child relationship has been established for the following child(ren):

Name of Child	Date of Birth	Established by
		☐ Acknowledgement of Paternity ☐ Administrative Order ☐ Court Order
		☐ Acknowledgement of Paternity ☐ Administrative Order ☐ Court Order
		☐ Acknowledgement of Paternity ☐ Administrative Order ☐ Court Order
		☐ Acknowledgement of Paternity ☐ Administrative Order ☐ Court Order

5. A parent-child relationship has not been established for the following child(ren):

Name of Child	Date of Birth

6. ☐ No Court has issued an order of parenting or support for the following child(ren):

Name of Child	Date of Birth

☐ The following child(ren) is/are subject to an existing order of parenting or support of another Court:

Name of Child	Date of Birth

7. Plaintiff requests that the Court: (*check all that apply*)

☐ Order genetic testing and determine the parent of the child(ren).

☐ Designate _____ (parent's name) as the parent of the child(ren) _____ _____(child(ren)'s name).

☐ Change the child(ren)'s name to _____. _____

☐ Correct the child(ren)'s birth certificate(s) to indicate the child(ren)'s parent.

☐ Adopt the proposed Shared Parenting Plan which is attached.

☐ Adopt the proposed Parenting Plan which is attached.

☐ Designate the residential parent and legal custodian of the child(ren).

☐ Order reasonable parenting time (companionship or visitation).

☐ Order child support, allocate the income tax dependency exemption, and determine who should provide health insurance coverage for the child(ren).

☐ Order the Ohio Department of Health to prepare (a) new birth certificate(s) for the child(ren).

☐ Other: (*specify*) _____

_____
Attorney or Self Represented Party Signature

_____
Printed Name

_____
Address

_____
City, State, Zip

_____
Phone Number

_____
Fax Number

_____
E-mail

_____
Supreme Court Reg No. (if any)

IN THE COURT OF COMMON PLEAS

_____ DIVISION

_____ COUNTY, OHIO

IN THE MATTER OF:

_____

A Minor

_____ Case No. _____

Name

_____ Judge _____

Street Address

_____ Magistrate _____

City, State and Zip Code

Plaintiff/Petitioner 1

vs./and

_____

Name

_____

Street Address

_____

City, State and Zip Code

Defendant/Petitioner 2/Respondent

WARNING: This form is not a substitute for the benefit of the advice of legal counsel. It is highly recommended that you consult an attorney.

Instructions: This form is used to request the enforcement of a Court order and hold the other party in contempt for violating the Court order. A proposed Show Cause Order and Notice (Uniform Domestic Relations Form 25/Uniform Juvenile Form 4) must be filed with this Motion. The Court may require additional forms to accompany this document. You must check the requirements of the county in which you file. **YOU MUST UPDATE THE CLERK OF COURTS IF ANY OF THE ABOVE CONTACT INFORMATION CHANGES.**

MOTION FOR CONTEMPT, AFFIDAVIT, AND INSTRUCTIONS FOR SERVICE

Now comes _____ (name), the Movant, and requests an order for _____ (other party's name) to appear and show cause why he/she should not be held in contempt for violating a Court order regarding the following: (*check all that apply*)

1. ☐ Interference with parenting time or other parenting orders filed on _____ (date), as follows:_____

_____

_____

2. ☐ Failure to pay child support as required by the order filed on _____ (date). The total arrearage owed is $_____ as reflected in the attached printout from the County Child Support Enforcement Agency.

3. ☐ Failure to pay spousal support as required by the order filed on_____ (date). The total arrearage owed is $_____ as reflected in the attached printout from the County Child Support Enforcement Agency, if spousal support is paid through the agency.

4. ☐ Failure to pay or reimburse health care expenses incurred for the minor child(ren) as required by the order filed on _____ (date). The total amount owed is $_____ as reflected in the attached Explanation of Health Care Bills (Uniform Domestic Relations Form 29/Uniform Juvenile Form 8).

5. ☐ Failure to comply with the Court's order(s) filed on _____ (date) regarding: (*check all that apply*)

   ☐ Transfer of real estate, as follows: _____

   _____

   ☐ Payment of debt, as follows: _____

   _____

   ☐ Refinance of debt, as follows: _____

   _____

   ☐ Distribution of personal property, as follows: _____

   _____

   ☐ Other: (*specify*) _____

   _____

Movant requests that the Court order the following: (*check all that apply*)

- ☐ Finding _____ (other party's name) in contempt of Court;
- ☐ Assessing reasonable attorney fees;
- ☐ Assessing Court costs of the proceedings;

and any further relief deemed proper.

_____
Attorney or Self Represented Party Signature

_____
Printed Name

_____
Address

_____
City, State, Zip

_____
Phone Number

_____
Fax Number

_____
E-mail

_____
Supreme Court Reg No. (if any)

OATH OR AFFIRMATION

(*Do not sign until Notary Public is present*)

I, _____ (name), swear or affirm that I have read this document and, to the best of my knowledge and belief, the facts and information stated in this document are true, accurate and complete. I understand that if I do not tell the truth, I may be subject to penalties for perjury.

_____
Signature

STATE OF _____)
) SS
COUNTY OF _____)

Sworn to or affirmed before me by _____this _____day of _____, _____.

_____
Signature of Notary Public

_____
Printed Name of Notary Public

Commission Expiration Date: _____

(Affix seal here)

INSTRUCTIONS TO THE CLERK

To the Clerk of Courts:

Please serve the Motion for Contempt, Affidavit, Show Cause Order and Notice and Instructions to the Clerk on the following party as I have indicated below:

_____ Plaintiff/Defendant/Petitioner/Respondent/Other Party by:

- ☐ Certified Mail, Return Receipt Requested
- ☐ Issuance to Sheriff of _____ County, Ohio for ☐ Personal or ☐ Residence service
- ☐ Other: (*specify*) _____

_____

Signature

IN THE COURT OF COMMON PLEAS

_____ DIVISION

_____ COUNTY, OHIO

IN THE MATTER OF:

_____
A Minor

_____ Case No. _____
Name

_____ Judge _____
Street Address

_____ Magistrate _____
City, State and Zip Code

Plaintiff/Petitioner 1

vs./and

_____
Name

_____
Street Address

_____
City, State and Zip Code

Defendant/Petitioner 2/Respondent

Instructions: This form is used to bring the other party to Court to defend his/her failure to follow the Court order. A Motion for Contempt, Affidavit, and Instructions for Service (Uniform Domestic Relations Form 24/Uniform Juvenile Form 3) must be filed with this order.

SHOW CAUSE ORDER AND NOTICE

TO: _____
PLAINTIFF/DEFENDANT/PETITIONER/RESPONDENT/OTHER PARTY

You are hereby ORDERED to appear and show cause why you should not be held in contempt for failure to obey the Court order as described in the Motion for Contempt.

NOTICE OF HEARING

(The Court will complete this part.)

You are ORDERED to appear in the _____ County Common Pleas Court _____ Division, in Courtroom _____ located at _____

_____

on _____ at _____ o'clock and show cause why you should not be held in contempt of this Court.

NOTICE

1. Failure to appear as ordered may result in the issuance of a bench warrant for an immediate arrest.

2. Failure to appear may result in an immediate income withholding or deduction.

3. You have the right to be represented by an attorney.

4. If you cannot afford an attorney, you must apply for a public defender or appointed counsel, as appropriate, within three business days after receipt of this show cause order.

5. A continuance may not be granted to obtain counsel if you have made no good faith effort to secure one.

6. If found guilty, you may be sentenced as follows:
   a. First offense – a fine of not more than $250.00 and/or a definite term of imprisonment of not more than thirty (30) days in jail or both.

   b. Second offense – a fine of not more than $500.00 and/or a definite term of imprisonment of not more than sixty (60) days in jail or both.

   c. Third offense – a fine of not more than $1,000.00 and/or a definite term of imprisonment of not more than ninety (90) days in jail or both.

7. The Court may grant you limited driving privileges under R.C. 4510.021 if your driver's license was suspended based on a notice issued by a child support enforcement agency because you are in default under a child support order or you have failed to comply with a subpoena or warrant issued by a court or agency with respect to a proceeding to enforce a child support order. You must request limited driving privileges and your request must be accompanied by a recent copy of your driver's abstract driving record from the registrar of motor vehicles.

_____

JUDGE/MAGISTRATE

IN THE COURT OF COMMON PLEAS

_____ DIVISION

_____ COUNTY, OHIO

IN THE MATTER OF:

_____

A Minor

_____ Case No. _____

Name

_____ Judge _____

Street Address

_____ Magistrate _____

City, State and Zip Code

Plaintiff/Petitioner 1

vs./and

_____

Name

_____

Street Address

_____

City, State and Zip Code

Defendant/Petitioner 2/Respondent

WARNING: This form is not a substitute for the benefit of the advice of legal counsel. It is highly recommended that you consult an attorney.

Instructions: This form is used to request a change in the parenting time (companionship and visitation) order. A Request for Service (Uniform Domestic Relations Form 31/Uniform Juvenile Form 10) and a Parenting Proceeding Affidavit (Uniform Domestic Relations Form – Affidavit 3) must be filed with this Motion. **YOU MUST UPDATE THE CLERK OF COURTS IF ANY OF THE ABOVE CONTACT INFORMATION CHANGES.**

MOTION FOR CHANGE OF PARENTING TIME (COMPANIONSHIP AND VISITATION)

Now comes _____ (name), the Movant, and requests a change in the existing parenting time (companionship and visitation) order filed on _____(date) regarding the following minor child(ren):

Name of Child	Date of Birth

Parental rights and responsibilities are currently allocated as follows:

Movant requests that the Court change the parenting time (companionship and visitation) order because:

Movant requests that the Court change the existing parenting time (companionship and visitation) order as follows:

Movant believes that the requested changes are in the child(ren)'s best interest.

Movant requests that the Court order the following: (*check all that apply*)

- ☐ Assessing reasonable attorney fees;
- ☐ Assessing Court costs of the proceedings;

and any further relief deemed proper.

Attorney or Self Represented Party Signature

Printed Name

Address

City, State, Zip

Phone Number

Fax Number

E-mail

Supreme Court Reg No. (if any)

IN THE COURT OF COMMON PLEAS

_____ **DIVISION**

_____ **COUNTY, OHIO**

IN THE MATTER OF:

_____
A Minor

_____ Case No. _____
Name

_____ Judge _____
Street Address

_____ Magistrate _____
City, State and Zip Code

Plaintiff/Petitioner 1

vs./and

_____
Name

_____
Street Address

_____
City, State and Zip Code

Defendant/Petitioner 2/Respondent

WARNING: This form is not a substitute for the benefit of the advice of legal counsel. It is highly recommended that you consult an attorney.

Instructions: This form is used to request a change in a Shared Parenting Plan, a Parenting Plan, or a change in the designation of the sole residential parent and legal custodian. A Request for Service (Uniform Domestic Relations Form 31/Uniform Juvenile Form 10) and a Parenting Proceeding Affidavit (Uniform Domestic Relations Form – Affidavit 3) must be filed with this Motion. **YOU MUST UPDATE THE CLERK OF COURTS IF ANY OF THE ABOVE CONTACT INFORMATION CHANGES.**

MOTION FOR CHANGE OF PARENTAL RIGHTS AND RESPONSIBILITIES (CUSTODY)

Now comes _____ (name), the Movant, and requests a change in the allocation of parental rights and responsibilities (custody) order filed on _____ (date) regarding the following minor child(ren):

Name of Child	Date of Birth

Parental rights and responsibilities are currently allocated as follows:

Since the Court issued the existing order, circumstances of the child(ren), residential parent, or legal custodian have changed as follows:

Movant requests that the Court change the existing order as follows:

Movant believes that the requested changes are in the child(ren)'s best interest.

Movant requests that the Court order the following: (*check all that apply*)

- ☐ Assessing reasonable attorney fees;
- ☐ Assessing Court costs of the proceedings;

and any further relief deemed proper.

Attorney or Self Represented Party Signature

Printed Name

Address

City, State, Zip

Phone Number

Fax Number

E-mail

Supreme Court Reg No. (if any)

IN THE COURT OF COMMON PLEAS

_____ **DIVISION**

_____ **COUNTY, OHIO**

IN THE MATTER OF:

_____

A Minor

_____ Case No. _____

Name

_____ Judge _____

Street Address

_____ Magistrate _____

City, State and Zip Code

Plaintiff/Petitioner 1

vs./and

_____

Name

_____

Street Address

_____

City, State and Zip Code

Defendant/Petitioner 2/Respondent

WARNING: This form is not a substitute for the benefit of the advice of legal counsel. It is highly recommended that you consult an attorney.

Instructions: This form is used to request a change in child support or child support-related matters. A Request for Service (Uniform Domestic Relations Form 31/Uniform Juvenile Form 10) and an Affidavit of Basic Information, Income, and Expenses (Uniform Domestic Relations Form–Affidavit 1) must be filed with this Motion. The Court may require additional forms to accompany this document. You must check the requirements of the county in which you file. **YOU MUST UPDATE THE CLERK OF COURTS IF ANY OF THE ABOVE CONTACT INFORMATION CHANGES.**

MOTION FOR CHANGE OF CHILD SUPPORT, MEDICAL SUPPORT, TAX EXEMPTION, OR OTHER CHILD-RELATED EXPENSES

Now comes _____ (name), the Movant, and requests a change in the obligation to provide support or the right to receive support for the minor child(ren) as follows: (*check all that apply*)

☐ The amount of child support or cash medical support.
☐ The person responsible for providing health insurance.
☐ The division of non-insured health care expenses.
☐ The person who can claim the child(ren) as dependents for tax purposes.
☐ Other child-related expenses.

Since the Court issued the existing Order, circumstances have changed as follows:

_____
_____
_____
_____

Movant requests that the Court change the existing order as follows:

_____
_____
_____
_____

Movant believes that the requested changes are in the child(ren)'s best interest.

Movant requests that the Court order the following: (*check all that apply*)
☐ Assessing reasonable attorney fees;
☐ Assessing Court costs of the proceedings;
and any further relief deemed proper.

_____
Attorney or Self Represented Party Signature

_____
Printed Name

_____
Address

_____
City, State, Zip

_____
Phone Number

_____
Fax Number

_____
E-mail

_____
Supreme Court Reg No. (if any)

Name of Child: _____ Case No. _____

Instructions: This form is used when you are claiming the other party has not paid health care bills. **Use a separate form for each child.** A Motion for Contempt and Affidavit (Uniform Domestic Relations Form 24/Uniform Juvenile Form 3) and a Show Cause Order and Notice to the Clerk (Uniform Domestic Relations Form 25/Uniform Juvenile Form 4) must be filed. You must bring copies of health care bills, Explanation of Benefits forms, and proof of payment to the hearing. Be prepared to indicate the amount owed to you, service providers, collection agencies, or other entities. **If more space is needed, add additional pages.** The Court may require additional forms to accompany this document. You must check the requirements of the county in which you file.

EXPLANATION OF HEALTH CARE BILLS

Date of Treatment	Name of Service Provider (e.g., Doctor, Dentist, Therapist, Hospital) & Services Provided	Total Bill	Date Bill Sent to Other Party	Amount Insurance Paid	Amount You Paid	Amount Paid by Other Party	Amount of Unpaid Bill	Amount Due from Other Party

Total Amount of Claim $ _____

_____ _____
Your Signature Date

IN THE COURT OF COMMON PLEAS

_____ **DIVISION**

_____ **COUNTY, OHIO**

IN THE MATTER OF:

_____
A Minor

_____ Case No. _____
Name

_____ Judge _____
Street Address

_____ Magistrate _____
City, State and Zip

Plaintiff/Petitioner 1

vs./and

_____
Name

_____
Street Address

_____
City, State and Zip Code

Defendant/Petitioner 2/Respondent

WARNING: This form is not a substitute for the benefit of the advice of legal counsel. It is highly recommended that you consult an attorney.

Instructions: This form is used when you want to waive the right to receive service of documents filed or to be filed by the other party. The Court may require additional forms to accompany this document. You must check the requirements of the county in which you file. **YOU MUST UPDATE THE CLERK OF COURTS IF ANY OF THE ABOVE CONTACT INFORMATION CHANGES.**

WAIVER OF SERVICE OF SUMMONS

Now comes _____ (name) and acknowledges that I am ☐ Plaintiff ☐ Defendant ☐ Petitioner ☐ Respondent (*select one*). I further acknowledge that I am over the age of eighteen (18), am not under disability, and that I received a copy of the following documents filed or to be filed by the other party: (*check all that apply*)

☐ Complaint for Divorce with Children

- ☐ Complaint for Divorce without Children
- ☐ Complaint for Parentage, Allocation of Parental Rights and Responsibilities
- ☐ Petition for Dissolution
- ☐ Motion and Affidavit or Counter Affidavit for Temporary Orders
- ☐ Motion for Change of Parental Rights and Responsibilities (Custody)
- ☐ Motion for Change of Parenting Time (Companionship and Visitation)
- ☐ Motion for Change of Child Support, Medical Support, Tax Exemption, or Other Child-Related Expenses
- ☐ Motion for Contempt and Affidavit
- ☐ Separation Agreement
- ☐ Parenting Plan
- ☐ Shared Parenting Plan
- ☐ Affidavit of Income and Expenses
- ☐ Affidavit of Property
- ☐ Parenting Proceeding Affidavit
- ☐ Health Insurance Affidavit
- ☐ Explanation of Health Care Bills
- ☐ Agreed Judgment Entry
- ☐ Other: (*specify*)

I waive service of said document(s) by the Clerk of Court.

_____
Self Represented Party Signature

_____
Printed Name

_____
Address

_____
City, State, Zip

_____
Phone Number

_____
Fax Number

_____
E-mail

IN THE COURT OF COMMON PLEAS

_____ **DIVISION**

_____ **COUNTY, OHIO**

IN THE MATTER OF:

_____
A Minor

_____ Case No. _____
Name

_____ Judge _____
Street Address

_____ Magistrate _____
City, State and Zip Code

Plaintiff/Petitioner 1

vs./and

_____
Name

_____
Street Address

_____
City, State and Zip Code

Defendant/Petitioner 2/Respondent

WARNING: This form is not a substitute for the benefit of the advice of legal counsel. It is highly recommended that you consult an attorney.

Instructions: This form is used when you want to request documents to be served on the other party. You must indicate the requested method of service by marking the appropriate box. The Court may require additional forms to accompany this document. You must check the requirements of the county in which you file. **YOU MUST UPDATE THE CLERK OF COURTS IF ANY OF THE ABOVE CONTACT INFORMATION CHANGES.**

REQUEST FOR SERVICE

TO THE CLERK OF COURT:

Please serve the following documents: (*check all that apply*)

☐ Complaint for Divorce with Children

- ☐ Complaint for Divorce without Children
- ☐ Complaint for Parentage, Allocation of Parental Rights and Responsibilities
- ☐ Petition for Dissolution
- ☐ Motion and Affidavit or Counter Affidavit for Temporary Orders
- ☐ Motion for Change of Parental Rights and Responsibilities (Custody)
- ☐ Motion for Change of Parenting Time (Companionship and Visitation)
- ☐ Motion for Change of Child Support, Medical Support, Tax Exemption, or Other Child-Related Expenses
- ☐ Motion for Contempt and Affidavit
- ☐ Separation Agreement
- ☐ Parenting Plan
- ☐ Shared Parenting Plan
- ☐ Affidavit of Income and Expenses
- ☐ Affidavit of Property
- ☐ Parenting Proceeding Affidavit
- ☐ Health Insurance Affidavit
- ☐ Explanation of Health Care Bills
- ☐ Agreed Judgment Entry
- ☐ Other: (*specify*) _____

Please serve the following parties with the above marked documents:

☐ Defendant/Petitioner 2/Respondent at

_____(address) by:

- ☐ Certified Mail, Return Receipt Requested
- ☐ Issuance to Sheriff of _____ County, Ohio for ☐ Personal or ☐ Residence service
- ☐ Other: (*specify*) _____

☐ Plaintiff/Petitioner 1 at

_____(address) by:

- ☐ Certified Mail, Return Receipt Requested
- ☐ Issuance to Sheriff of _____ County, Ohio for ☐ Personal or ☐ Residence service
- ☐ Other: (*specify*) _____

☐ _____County Child Support Enforcement Agency at

_____(address) by:

- ☐ Certified Mail, Return Receipt Requested
- ☐ Issuance to Sheriff of _____ County, Ohio for ☐ Personal or ☐ Residence service
- ☐ Other: (*specify*) _____

☐ Other _____ at

_____(address) by:

☐ Certified Mail, Return Receipt Requested

☐ Issuance to Sheriff of _____ County, Ohio for ☐ Personal or ☐ Residence service

☐ Other: (*specify*) _____

SPECIAL INSTRUCTIONS TO SHERIFF:

_____

_____

_____

_____
Attorney or Self Represented Party Signature

_____
Printed Name

_____
Address

_____
City, State, Zip

_____
Phone Number

_____
Fax Number

_____
E-mail

_____
Supreme Court Reg No. (if any)

General Information & Instructions: Motion to Intervene

These instructions are intended to be a general guide to help you complete and file these forms, serve them on the opposing parties, and get your request before the court. These do not guarantee that you will be successful in your motion but are to assist you in preparing your request.

A **Motion to Intervene** is a request to a court asking that you be joined as a party to a case. For example, parties to a case may be a child's mother, father, or legal custodian. This motion must be filed with the clerk's office of the court where the current (or closed) case is being heard.

When you file a motion, you must inform all parties of your request through the official court process. You must notify them with official court documents, including a copy of the signed Motion to Intervene. This is what it means to have them "served."

A **Request for Service** form (Supreme Court of Ohio Uniform Domestic Relations Form 31/Juvenile Form 10) is used to select how you want the parties to be served. You can find this form at www.supremecourt.ohio.gov or on your local court's website.

A **Certificate of Service** must be signed and filed with your Motion to Intervene. This shows that all the parties to the case have been informed of your request to the court.

What documents you will need:

- ☐ Motion to Intervene with Certificate of Service
- ☐ A separate (additional) pleading/document asking the court for the change you want, such as a change in custody or child support with a Request for Service

It is your responsibility to do the following:

- Provide accurate contact information for each party.
- Contact the Clerk of Court's Office if you do not know the case number or judge or magistrate's name.
- Check with your local court to see if there are additional requirements.

Next Steps

- Take your completed paperwork to the clerk's office of the appropriate court and ask if a hearing on your motion will be scheduled and how you will be notified of the date and time of your hearing.
- Pay the filing fee. If you cannot afford to pay the filing fee, you can use the **Affidavit of Indigency/Fee Waiver Affidavit and Order Form** (Supreme Court of Ohio Form 20). This form asks that you be allowed to file without paying a fee in advance. You may still be responsible for paying the fee at the end of the case. You can find this form at www.supremecourt.ohio.gov or on your local court's website.
- If your contact information changes, you must notify the court of these changes, or your motion could be dismissed.
- Contact the clerk's office before your hearing to make sure the parties received their paperwork. You will be required to provide a new address or choose a different method of service if the paperwork is undeliverable. If notice cannot be made and the party does not appear at the hearing, your motion could be dismissed.
- The Motion to Intervene must be granted before the court can consider any request for custody, visitation, companionship, child support, or other type of change.

The Court and Clerk of Court's staff cannot give legal advice. Contact a lawyer, legal aid office, or Ohio Legal Help at www.ohiolegalhelp.org if you have questions.

IN THE COURT OF COMMON PLEAS

_____ DIVISION

_____COUNTY, OHIO

IN THE MATTER OF:

_____

_____ Case No. _____

Name

_____

Address

_____

City, State, Zip

Plaintiff

vs.

_____

Name

_____

Address

_____

City, State, Zip

Defendant

vs.

_____

Your Name

_____

Your Address

_____

Your City, State, Zip

Intervenor

MOTION TO INTERVENE

This form is to request to become a party to a domestic relations or juvenile court case. A separate motion must be filed with this motion. If more space is needed, add additional pages.

1. My relationship with the child is (for example, grandparent, aunt, uncle, family friend, etc.)

   _____

2. I, _____, request to be added as a party to the case because:

_____

_____

_____

_____

_____

_____

_____

_____

3. I am requesting to be made a party to this case because I am seeking one of the following listed below. I understand I must file a separate motion for this request along with this motion to intervene.

   ☐ Legal Custody

   ☐ Temporary Custody

   ☐ Visitation/Companionship

   ☐ Child Support as a Caretaker

   ☐ Other _____

4. This motion is submitted by: ☐ Me as a self-represented litigant or ☐ Attorney.

_____

Signature

_____

Printed Name

_____

Attorney Registration Number if applicable

_____

Telephone Number

_____

Email Address

_____

Date

CERTIFICATE OF SERVICE

Service should be made to all parties in the case.
Attach an additional sheet if you are serving more than three parties.

I certify that a copy of this motion was sent to the following parties on the following date _____, 20_____.

_____
Party Name

_____
Address

_____
City, State, Zip

_____
Phone *(if known)*

_____
E-mail Address on File with the Court *(if known)*

This motion was sent by:
- ☐ Regular U.S. Mail
- ☐ E-mail (to the address on file with the court)
- ☐ Hand Delivery
- ☐ Fax
- ☐ Other _____

_____
Party Name

_____
Address

_____
City, State, Zip

_____
Phone *(if known)*

_____
E-mail Address on File with the Court *(if known)*

This motion was sent by:
- ☐ Regular U.S. Mail
- ☐ E-mail (to the address on file with the court)
- ☐ Hand Delivery
- ☐ Fax
- ☐ Other _____

_____
Party Name

_____
Address

_____
City, State, Zip

_____
Phone *(if known)*

_____
E-mail Address on File with the Court *(if known)*

This motion was sent by:
- ☐ Regular U.S. Mail
- ☐ E-mail (to the address on file with the court)
- ☐ Hand Delivery
- ☐ Fax
- ☐ Other _____

_____
Signature of Attorney or Self-Represented Litigant

CIVIL PROTECTION ORDER FORM 1/CRIMINAL PROTECTION ORDER FORM 1: GENERAL INFORMATION ABOUT DOMESTIC VIOLENCE PROTECTION ORDERS

DEFINITIONS YOU NEED TO KNOW

Domestic violence is when a family or household member uses physical violence, threats, intimidation, and/or emotional, sexual, and economic abuse to maintain power and control over the other person, usually within an intimate relationship. Domestic violence is most often a combination of psychological and physical actions; the physical results are just the most visible. Domestic violence is a pattern of conduct in which one intimate partner uses force or threats of force to control the other person.

State law has determined that some forms of abuse do not constitute criminal behavior or behavior requiring the Court's intervention. For example, psychological battering, economic abuse, or verbal harassment without evidence of threats or physical harm are not recognized by Ohio law as domestic violence that allows a petitioner to obtain a protection order or request that criminal charges be filed.

When a family or household member tries to cause you bodily harm by hitting, pushing, beating, or physically hurting you, that is domestic violence. When a family or household member makes you afraid that you will be harmed, that is domestic violence. When a family or household member stalks, commits sexually oriented offenses against you, or forces sexual relations on you, that is domestic violence. When a family or household member abuses your children, that is domestic violence.

IN A **CIVIL** DOMESTIC VIOLENCE CASE:

Petition for Domestic Violence Civil Protection Order ("CPO") is the document a domestic violence victim, the victim's parent, or an adult household member of the victim must file with the domestic relations court to obtain a civil protection order against an alleged offender.

Domestic Violence Civil Protection Order ("CPO") ***Ex Parte*** is an emergency order the Court issues in response to the Petition for a Civil Protection Order after an *ex parte* hearing. The *ex parte* hearing is described in this form on page 3.

Domestic Violence Civil Protection Order ("CPO") Full Hearing is the final order the Court issues after a full hearing. The full hearing is described in this form on page 3. The full hearing CPO replaces the e*x parte* CPO. Sometimes the final order issued by the Court is a **Consent Agreement and Domestic Violence Civil Protection Order**, Civil Protection Order Form 8, upon terms agreed to by the parties.

Petitioner is the person asking or "petitioning" the Court for protection. By filing the Petition for a CPO, YOU are the Petitioner.

Respondent is the alleged domestic violence offender. Petitioner seeks protection from the Respondent by filing for a CPO.

IN A **CRIMINAL** DOMESTIC VIOLENCE CASE:

Motion for a Criminal Domestic Violence Temporary Protection Order ("DVTPO") is the document that must be filed in a criminal case if a victim of domestic violence or victim of a sexually oriented offense wishes to obtain a protection order against an alleged offender, who is a family or household member.

The criminal case must allege the offender committed negligent assault, criminal damaging or endangering, criminal mischief, burglary, aggravated trespass, endangering children, any offense of violence, or any sexually oriented offense against a family or household member. The prosecutor has a form for this purpose.

Domestic Violence Temporary Protection Order ("DVTPO") is the order the Court issues in response to the Motion for Temporary Protection Order. The DVTPO requires the offender to stop abusing and to stay away from the victims named in the Motion for Temporary Protection Order. A DVTPO expires when the alleged offender's criminal case ends or when a new CPO is issued based on the same facts.

Alleged Victim is the person asking the Court for protection in the Motion for a DVTPO.

Defendant is the person the Motion for a DVTPO is filed against. The Defendant is the person accused of the crimes of negligent assault, criminal damaging or endangering, criminal mischief, burglary, aggravated trespass, endangering children, any sexually oriented offense, or any offense of violence against a family or household member.

FEES

You **cannot** be charged any costs or fees for filing, issuing, registering, modifying, enforcing, dismissing, withdrawing, serving, or obtaining a protection order.

DOMESTIC VIOLENCE CIVIL PROTECTION ORDERS (CPO)

What is a Domestic Violence Civil Protection Order ("CPO")?

A CPO is issued by a domestic relations court to protect a victim of domestic violence. A CPO is intended to prevent further domestic violence. It orders someone who has been abusive to do or not do certain things in the future. You may want to consider getting a CPO even if you have a DVTPO from a criminal court because a CPO lasts longer and provides more benefits – such as child custody and support orders. Domestic violence includes the commission of sexually oriented offenses.

Violating a CPO is a crime. If the Respondent violates the CPO, he or she may be arrested, jailed, and fined for disobeying the CPO. A CPO can remain in effect for up to 5 years. If the Respondent violates the CPO, you can call the police, go back to the domestic relations court to file a contempt charge, and go to the prosecutor's office to have the Respondent charged with the crime of violating the CPO.

Why get a Domestic Violence Civil Protection Order?

If you are a victim of domestic violence, a CPO may help you. Once domestic violence starts, the violence often happens more often and gets increasingly severe. A CPO may stop this cycle of violence because the Court orders the Respondent to stop hurting or threatening you and your family or household members. The Court can use a CPO to order the Respondent to stay away from you for up to five years. A CPO can give you time to "sort things out" and decide what you want to do next without having to be afraid all of the time. If your children have seen domestic violence, a CPO may give all of you a chance to get some help so that you and your children are safe.

Domestic violence is a crime. A CPO tells the Respondent you and the Court are serious about requiring the Respondent to stop his or her abusive behavior and not to hurt or threaten you again.

A CPO sets some "rules" that the Respondent must obey while the CPO is in effect. These rules may require the Respondent to pay child or spousal support; give up possession of a home or car; and/or obey the Court's orders about visitation.

A CPO issued by a domestic relations court may last longer than a DVTPO issued by a criminal court and can provide more kinds of help. You should know that if you get a CPO based upon the same facts as the DVTPO, the DVTPO from the criminal court will automatically end, even if the criminal case continues.

Who can get a Domestic Violence Civil Protection Order?

You can apply for a CPO if you are related to the Respondent by blood or marriage AND have lived with Respondent at any time; OR you are living with or have lived with the Respondent during the past five years; OR you used to be married to the Respondent; OR you have a child with the Respondent, whether or not you ever married or lived together.

You can also get a CPO for any member of your household.

You may be able to get a CPO if you have been dating the Respondent; if you share family or financial responsibilities with the Respondent; AND you have an intimate relationship with the Respondent.

Remember that a CPO has limits. If you suspect that the Respondent will not obey the terms of a CPO, contact your local domestic violence program or the Ohio Domestic Violence Network at 800-934-9840.

Do I need an attorney for me to obtain a Domestic Violence Civil Protection Order?

No, but you are often better off having legal representation in your CPO proceeding. Neither the Clerk of Court nor other Court employees can give you legal advice. Having an attorney represent you is especially helpful when your case involves contested custody and visitation and/or when an attorney represents the Respondent. If you cannot afford an attorney, contact your local legal aid office at 866-LAWOHIO (toll free), bar association, or Ohio State Legal Services (800-589-5888) for information on low cost or free legal representation.

Must there be a court hearing for me to obtain a Domestic Violence Civil Protection Order?

Yes. There are two hearings involved in a CPO case: the *ex parte* hearing and the full hearing.

***Ex Parte* Hearing:** At this hearing, only you are present. The Respondent is not present.

An *ex parte* hearing is held on the same day a Petition for Civil Protection Order is filed. If a Petition for a CPO is filed early enough in the day, an *ex parte* hearing is held that same day. At the *ex parte* hearing, you take an oath to tell the truth and a judge or magistrate hears your statement of what happened. If the judge or magistrate finds that the events you described meet the requirements of the law, the Court will issue an *Ex Parte* CPO and schedule a full hearing. If the Respondent is asked to vacate the home in which you live, there will be a full hearing within 7 business days. Otherwise, a full hearing will be set within 10 business days. The Court can hold a full hearing only after the Respondent has been served with the *Ex Parte* CPO. You may need to fill out forms for the Clerk of Court to cause service.

Full Hearing: The full hearing is the final hearing.

At this hearing, both you and the Respondent can testify. You must be present at the full hearing. You should bring any witnesses and other evidence to support your case. If the Court issues a Full Hearing CPO, it remains in force until the date indicated in the CPO, with 5 years being the maximum.

If the Respondent does not show up for the full hearing, you can still obtain a final CPO. However, if the Respondent is not served with the *Ex Parte* CPO before the full hearing, the Court postpones the full hearing until the Respondent is served. If the full hearing is postponed, the *Ex Parte* CPO remains in effect until the full hearing is held.

You may bring an advocate with you to the *ex parte* and full hearings for support. Some domestic violence shelters and victim assistance programs can provide advocates to go with you to these hearings. Contact your local domestic violence program or the Ohio Domestic Violence Network, 800-934-9840, for program and shelter information.

CRIMINAL DOMESTIC VIOLENCE TEMPORARY PROTECTION ORDERS (DVTPO)

Your local criminal court grants a DVTPO. You ask the Court for a DVTPO when a criminal complaint is filed alleging someone has committed domestic violence or a sexually oriented offense against you. The DVTPO orders someone who has abused you to do or stop doing certain things in the future. Violating a DVTPO is a crime. If the Defendant violates the DVTPO, the Defendant may be arrested, jailed, and fined for disobeying the DVTPO. Violating a DVTPO is also a reason for the Court to revoke the Defendant's bail. A DVTPO lasts only until the criminal case is ended or a CPO, based on the same facts, is issued by a domestic relations court.

RESOURCES

You can find information about Domestic Violence Civil Protection Orders in R.C. 3113.31 and information about Domestic Violence Temporary Protection Orders in R.C. 2919.26.

You may be able to find additional information about domestic violence at the following web sites:

Ohio Domestic Violence Network	www.odvn.org
Ohio Legal Help	www.ohiolegalhelp.org
National Resource Center on Domestic Violence	www.nrcdv.org
Supreme Court of Ohio – Domestic Violence Program	www.supremecourt.ohio.gov/domviol

PLEASE NOTE: Computer use can be monitored. It is impossible to completely clear all website footprints. If you are in danger, please use a safer computer that your abuser cannot access directly or remotely. For example, computers at a public library, internet café, domestic violence shelter, or community technology center, may be safer computers.

Case No._____

CIVIL PROTECTION ORDER FORM 2/CRIMINAL PROTECTION ORDER FORM 2: WARNING CONCERNING THE ATTACHED PROTECTION ORDER OR CONSENT AGREEMENT

Courts are required to notify defendants and respondents orally or in writing about potential domestic violence firearms prohibitions stemming from legal action. [R.C. 2151.34(F)(2), 2903.214(F)(2), 2919.26(G)(2), and 3113.31(F)(2)]

***NOTE**: Civil Rule 65.2 and Criminal Rule 19 require this Warning to be attached to the FRONT of all civil and criminal EX PARTE or FULL HEARING protection orders issued by the courts of the State of Ohio.*

WARNING TO RESPONDENT / DEFENDANT

Violating the attached Protection Order is a crime, punishable by incarceration, fine, or both and may cause the revocation of your bond or result in a contempt of court citation against you.

This Protection Order is enforceable in all counties in Ohio and 50 states, the District of Columbia, tribal lands, and U.S. territories pursuant to state law and the Violence Against Women Act, 18 U.S.C. 2265. Violating this Protection Order may subject you to state and federal charges and punishment.

Only the Court may change the terms of this Protection Order. The Petitioner/Alleged Victim/Protected Person cannot give you legal permission to change this Order. If you go near the Petitioner/Alleged Victim/ Protected Person, even with the person's permission, you may be arrested. Only the Court may change or end this Protection Order. Unless the Court changes or ends this Order, you may be arrested for violating this Protection Order. **YOU ACT AT YOUR OWN RISK IF YOU DISREGARD THIS WARNING**.

WARNING TO PETITIONER / ALLEGED VICTIM

You **cannot** change the terms of this Order by your words or actions. Only the Court may allow the Respondent/Defendant to contact you or return to your residence. This Protection Order **cannot** be changed by either party without obtaining a written court order.

NOTICE ABOUT FIREARMS AND OTHER DEADLY WEAPONS

As a result of this Protection Order or Consent Agreement, it may be a federal crime for you to possess or purchase a firearm, including a rifle, pistol, or revolver, or ammunition pursuant to 18 U.S.C. 922(g)(8) for the duration of this Order. If you have any questions whether the law makes it illegal for you to possess or purchase a firearm or ammunition, you should consult with a lawyer.

NOTICE ABOUT FIREARMS AND OTHER DEADLY WEAPONS (Con't)

This Protection Order may be subject to the exceptions pursuant to 18 U.S.C. 925(a)(1) **only** with respect to the official use of government-issued firearms or ammunition for the use of any department or agency of the United States, Ohio, or its political subdivision. This exception does not apply if the Defendant/ Respondent has been convicted of an offense of violence, for example, domestic violence, menacing by stalking, etc., against a family or household member.

NOTICE TO ALL LAW ENFORCEMENT AGENCIES AND OFFICERS

The attached Protection Order is enforceable in all counties in Ohio. Violation of this Protection Order is a crime under R.C.2919.27. Law enforcement officers with powers to arrest under R.C. 2935.03 for violations of the Ohio Revised Code must enforce the terms of this Protection Order as required by R.C. 2151.34, 2903.213, 2903.214, 2919.26, 2919.27, and 3113.31. If you have reasonable grounds to believe that the Respondent/Defendant has violated this Protection Order, it is the preferred course of action in Ohio under R.C. 2935.03 to arrest and detain the Respondent/Defendant until a warrant may be obtained. Federal and state law prohibits charging a fee for service of this Order to the Petitioner/Alleged Victim or protected parties.

CIVIL PROTECTION ORDER FORM 3:
INFORMATION ABOUT FILING A DOMESTIC VIOLENCE OR DATING VIOLENCE CIVIL PROTECTION ORDER PETITION

- If you have any questions about completing the Petition for a Domestic Violence Civil Protection Order (Civil Protection Order Form 4) or the Petition for Dating Violence Civil Protection Order (Civil Protection Order Form 13), contact the local victim assistance program, domestic violence program, or Ohio Domestic Violence Network at 800-934-9840.

- Neither the Clerk of Court's Office nor the local domestic violence program can give legal advice. If you need legal advice, talk to a lawyer. Only a lawyer can give you legal advice.

- There is NO FEE for filing the Petition.

- Once completed, take the Petition and other necessary documents to the Clerk of Court's Office.

- If you want an emergency order, also known as an *Ex Parte* Protection Order, check "want" in paragraph 2 of the Petition.

- The Court will consider your request for an *Ex Parte* Protection Order and may ask you questions.

- Regardless if an *Ex Parte* Protection Order was requested, granted, or denied, a full hearing will be scheduled.

- You must attend the full hearing. Your victim advocate may also be present at the hearing.

- On the day of the full hearing, be prepared to (1) tell the Court what happened, (2) bring with you any witnesses, evidence, and documentation to prove your case, and (3) ask Respondent questions.

- Respondent may be represented by a lawyer. You may represent yourself or ask for a continuance to obtain a lawyer. [R.C. 3113.31(D)(2)(a)(iii)]

- Respondent or Respondent's lawyer may present evidence and ask you questions.

- The Court cannot issue a protection order against you unless Respondent has filed a Petition.

DEFINITIONS	
Domestic Violence [R.C. 3113.31]	"Domestic violence" means the occurrence of one or more of the following acts against a family or household member or a person with whom Petitioner has a dating relationship: attempting to cause or recklessly causing bodily injury; placing another person by the threat of force in fear of imminent serious physical harm or committing menacing by stalking or aggravated trespass; committing any act with respect to a child that would result in the child being an abused child, as defined [by law]; or committing a sexually oriented offense.
Person with Whom Respondent Is or Was in a Dating Relationship [R.C. 3113.31(A)(9)]	An adult who, at the time of the conduct in question, is in a dating relationship with Respondent who also is an adult or who, within the twelve months preceding the conduct in question, has had a dating relationship with Respondent who also is an adult.

Dating Relationship [R.C. 3113.31(A)(8)]	A relationship between adults who have, or have had, a relationship of a romantic or intimate nature. "Dating relationship" does not include a casual acquaintanceship or ordinary fraternization in a business or social context.
Family or Household Member [R.C. 3113.31(A)(3)-(4)]	"Family or household member" means either of the following: (1) Any of the following who is residing with or has resided with Respondent, such as a spouse, a person living as a spouse, or a former spouse of Respondent; a parent, a foster parent, or a child of Respondent, or another person related by consanguinity or affinity (blood or marriage) to Respondent; a parent or a child of a spouse, person living as a spouse, or former spouse of Respondent, or another person related by consanguinity or affinity (blood or marriage) to a spouse, person living as a spouse, or former spouse of Respondent. (2) The natural parent of any child of whom Respondent is the other natural parent or is the putative other natural parent. “Person living as a spouse” means a person who is living or has lived with Respondent in a common law marital relationship, who otherwise is cohabiting with Respondent, or who otherwise has cohabited with Respondent within five years prior to the date of the alleged occurrence of the act in question.

IN THE _____ **COURT**

_____ **COUNTY, OHIO**

Petitioner	:	**Case No.** _____
	:	
Address (Safe mailing address)	:	**Judge/Magistrate** _____
City, State, Zip Code	:	
Date of Birth ____/____/____	:	**PETITION FOR DOMESTIC VIOLENCE CIVIL PROTECTION ORDER (R.C. 3113.31)**
v.	:	
	:	
Respondent	:	
Address (If home address unknown, put work address)	:	
City, State, Zip Code	:	
Date of Birth ____/____/____		☐ **Respondent is 18 years old or older**

IF YOU ARE ASKING FOR YOUR ADDRESS TO BE KEPT CONFIDENTIAL, PLEASE PUT A MAILING ADDRESS WHERE YOU CAN SAFELY RECEIVE MAIL. IF YOU ARE A PARTICIPANT IN THE SECRETARY OF STATE'S ADDRESS CONFIDENTIALITY PROGRAM, PLEASE USE THE P.O. BOX ADDRESS GIVEN TO YOU. THIS FORM IS A PUBLIC RECORD.

☐ 1. I need or witness needs a foreign language interpreter in _____ or an American Sign Language interpreter per Sup.R. 88.

☐ 2. I ☐ **want** ☐ **do not want** an ***ex parte*** **(emergency) protection order** per R.C. 3113.31. Petitioner further requests a full hearing trial be scheduled, even if the *ex parte* protection order is granted, denied, or not requested.

☐ 3. Who needs protection?
- ☐ Me
- ☐ My minor children
- ☐ A family or household member who is not a minor child
- ☐ Other _____

4. What is the domestic violence victim's relationship to Respondent?
- ☐ Spouse of Respondent
- ☐ Former spouse of Respondent
- ☐ Natural parent of Respondent's child
- ☐ Child of Respondent
- ☐ Parent of Respondent
- ☐ Foster Parent

☐ Other relative (by blood or marriage) of Respondent/ Petitioner who has lived with Respondent at any time

☐ Person "living as a spouse of Respondent" is defined as:
- now cohabiting;
- or cohabited within five years before the alleged act of domestic violence

5. I have listed below all family or household members who need protection, other than me or the person for whom I am filing the Petition. **(Leave blank if you are not including other family or household members.)**

NAME	DATE OF BIRTH	RELATIONSHIP TO PETITIONER	RELATIONSHIP TO RESPONDENT	THIS PERSON LIVES WITH PETITIONER
				☐ YES ☐ NO
				☐ YES ☐ NO
				☐ YES ☐ NO
				☐ YES ☐ NO

6. Petitioner requests a Domestic Violence Civil Protection Order.

   You **must** describe Respondent's threats or actions that made you request a protection order, including if children were present when the acts took place. When did it happen? (If you do not know exact dates, give approximate dates). Explain why you believe you or your family or household members are in danger. **If you need more space, attach an additional page.**

7. (Optional) You may describe, **if you want and know**, about any of the following items. Not describing these items in the Petition does not mean domestic violence did not happen. If you need more space, attach an additional page:
    - Respondent's history of domestic violence or other violent acts;
    - Respondent's history of violating court orders;
    - Respondent's mental health;
    - Respondent's threats to other persons;
    - Respondent's access to deadly weapons, firearms, and ammunition or use of deadly weapons and acts or threats of violence with deadly weapon;
    - Respondent's abuse alcohol or controlled substances (drugs);
    - Respondent's violence resulted in serious physical injury, forced sex, strangulation (or choking), abuse during pregnancy, abuse of the family's pet, and/or forced entry to gain access to Petitioner or Petitioner's family and household members;
    - Recent separation from Respondent or relationship was recently terminated;
    - Respondent's obsessive and controlling behaviors, including stalking, spying, following, and/or isolating you (Petitioner);
    - Respondent's threats to kill self or others.

8. Petitioner is in fear and in continuing danger.

9. Petitioner further requests that the Court grant relief under R.C. 3113.31 to protect Petitioner and/or the family or household members named in this Petition from domestic violence by granting a civil protection order that (check all boxes that apply):

    ☐ (a) Directs Respondent to not abuse Petitioner and the family or household members named in this Petition by harming, attempting to harm, threatening, following, stalking, harassing, forcing sexual relations upon them, or by committing sexually oriented offenses against them.

    ☐ (b) Directs Respondent to not enter, approach, or contact by any means the residence, school, business, and place of employment of Petitioner and the family or household members named in this Petition.

    ☐ (c) Directs Respondent to not approach or have contact by any means with Petitioner and the family or household members named in this Petition.

☐ (d) Directs Respondent to leave, not return to, or interfere with Petitioner's right to occupy the residence, including but not limited to cancelling any utilities or insurance or interrupting phone service, mail delivery, or the delivery of any other documents or items, and grants Petitioner exclusive possession of the following residence:

_____

_____

☐ (e) Allocates temporary parental rights and responsibilities for the care of the following minor children to Petitioner until further Order of the Court (include names and birth dates of the minor children):

_____

_____

☐ Petitioner has completed and attached the **Information for Parenting Proceeding Affidavit, Civil Protection Order Form 5** and it is incorporated herein.

☐ (f) Establishes or modifies parenting time with the following minor children and requires parenting time to be suspended or supervised or to occur under such conditions that the Court determines will ensure the safety of Petitioner and the minor children (include names and birth dates of the minor children):

_____

_____

☐ Petitioner has completed and attached the **Information for Parenting Proceeding Affidavit, Civil Protection Order Form 5** and it is incorporated herein.

☐ (g) Directs Respondent to provide financial support for Petitioner and the family or household members named in this Petition (Court may request additional information).

☐ (h) Directs Respondent to not remove, damage, hide, harm, or dispose of any property, companion animals, or pets owned or possessed by Petitioner.

☐ (i) Grants Petitioner permission to take Petitioner's companion animals or pets, as described below, away from the possession of Respondent:

_____

_____

☐ (j) Divides household and family personal property as follows:

_____

_____

☐ (k) Directs Respondent to permit Petitioner to have exclusive use of the following motor vehicle:

_____

_____

☐ (l) Directs Respondent to complete batterer counseling, substance abuse counseling, or other treatment or intervention as determined necessary by the Court.

☐ (m) Directs the wireless service provider to separate Petitioner's account from Respondent's account, per R.C. 3113.45 through 3113.459. Petitioner will assume all financial responsibility for any costs associated with the wireless service number and any costs for the device associated with the wireless service number.

Respondent's billing telephone number is: _____

Petitioner's contract information is on page 1 of this Petition. The wireless service numbers to be transferred to Petitioner which are used by Petitioner or the minor children in the care of Petitioner are: _____

_____

_____

☐ (n) Includes the following additional provisions:

_____

_____

10. Petitioner further requests that the Court issue no mutual protection orders or other orders against Petitioner unless all of the conditions of R.C. 3113.31(E)(4) are met.

11. Petitioner further requests that if Petitioner has a victim advocate, the Court permit the victim advocate to accompany Petitioner at all stages of these proceedings as required by R.C. 3113.31(M).

12. Petitioner further requests at the *ex parte* hearing or full hearing that the Court grant such other relief as the Court considers equitable and fair, including orders or directives to law enforcement.

13. Petitioner has listed court cases (including divorce, custody, visitation, paternity, child support, children service/CPS case, animal cruelty, sexually oriented offense, no contact order, and protection order) and other legal matters regarding Respondent that may relate to this case: (Attach additional pages, if necessary.)

CASE NAME	CASE NUMBER	COURT/COUNTY	TYPE OF CASE	RESULT OF CASE

The information above is true, complete, and accurate to the best of my knowledge. I understand that knowingly providing false information in this document may result in a contempt of court finding against me which could result in a jail sentence and fine, or criminal penalties under R.C. 2921.13.

_____ _____

SIGNATURE OF PETITIONER **DATE**

IF YOU DO NOT HAVE AN ATTORNEY, PLEASE LEAVE THE INFORMATION BELOW BLANK.

_____ _____

Signature of Attorney Attorney's Registration Number

_____ _____

Name of Attorney Attorney's Telephone

_____ _____

Attorney's Address Attorney's Fax

_____ _____

City, State, Zip Code Attorney's Email

IN THE COURT OF COMMON PLEAS

_____ **COUNTY, OHIO**

Petitioner	:	Case No. _____
v.	:	Judge/Magistrate _____
Respondent	:	

REQUEST FOR SERVICE

TO THE CLERK OF COURT:

Pursuant to Civ.R. 65.1(C)(2), please serve Respondent a copy of the Petition, *ex parte* protection order, if granted, and any other accompanying documents to the address below and as follows:

_____

☐ Personal service ☐ Certified Mail, Return Receipt Requested

☐ Other (specify) _____

☐ Other (address): _____

☐ Personal service ☐ Certified Mail, Return Receipt Requested

☐ Other (specify) _____

SPECIAL INSTRUCTIONS TO SHERIFF:

_____

_____

_____

_____

SIGNATURE OF ATTORNEY OR PETITIONER

RETURN OF SERVICE

Respondent was served on _____ .

_____ _____

Officer and Badge Number Law Enforcement Agency

_____

Date

CLERK'S CERTIFICATE OF MAILING

Service of Process was sent by _____ this _____ day of _____.

Attest: _____ Deputy Clerk

IN THE _____ **COURT**

_____ **COUNTY, OHIO**

_____ **Petitioner**	:	**Case No.** _____
	:	
	:	**Judge:** _____
v.		
	:	**INFORMATION FOR PARENTING PROCEEDING AFFIDAVIT (R.C. 3127.23)**
_____ **Respondent**	:	**Filed with Civil Protection Order Form 4: Petition for Domestic Violence Civil Protection Order (R.C. 3113.31)**

Use this form if you are requesting a parenting (custody or visitation) order in your Domestic Violence Civil Protection Order Petition (Civil Protection Order Form 4). If another court is already addressing or has addressed custody issues involving the children, custody and visitation issues may be handled in that case. By law, this form **must** be filed and served with the first pleading filed by each party in every parenting (custody or visitation) proceeding in this Court including a Petition for a Domestic Violence Civil Protection Order. **If you need more space, attach an additional page.**

I (full legal name) _____, state under oath or affirmation that these cases involve the custody of a child or children and the following statements are true:

1. ☐ Pursuant to R.C. 3127.23(D), I am requesting that the Court not disclose my current address or that of the children. My address is confidential and should be placed under seal because my health, safety, or liberty or that of the children would be jeopardized by the disclosure of the identifying information.

2. _____ **(number) Minor children are subject to this case as follows:**

(NOTE**:** Provide residence information for the last FIVE years.)

a. Child's Name:	**Date of Birth:**

Period of Residence		Address (Do not list your address if confidential)	Person with whom Child Lived and Relationship to Child
to present	☐ Address Confidential ☐ Secretary of State Address Confidentiality Program		
to	☐ Address Confidential ☐ Secretary of State Address Confidentiality Program		
to	☐ Address Confidential ☐ Secretary of State Address Confidentiality Program		
to	☐ Address Confidential ☐ Secretary of State Address Confidentiality Program		

b. Child's Name:	Date of Birth:

☐ Check this box if the information requested below is the same as above.

Period of Residence		Address (Do not list your address if confidential)	Person with whom Child Lived and Relationship to Child

to present	☐ Address Confidential ☐ Secretary of State Address Confidentiality Program		
to	☐ Address Confidential ☐ Secretary of State Address Confidentiality Program		
to	☐ Address Confidential ☐ Secretary of State Address Confidentiality Program		
to	☐ Address Confidential ☐ Secretary of State Address Confidentiality Program		

c. Child's Name:	**Date of Birth:**

☐ Check this box if the information requested below is the same as above.

Period of Residence		**Address (Do not list your address if confidential)**	**Person with whom Child Lived and Relationship to Child**
to present	☐ Address Confidential		
to	☐ Address Confidential ☐ Secretary of State Address Confidentiality Program		

to	☐ Address Confidential ☐ Secretary of State Address Confidentiality Program		
to	☐ Address Confidential ☐ Secretary of State Address Confidentiality Program		

d. List additional children on a page titled **Attachment 2(d)**. (Provide the following information for each additional child: name, date of birth, person with whom the child lived and child's relationship to the person, address, unless confidential, and dates when the child lived in that place with that person.)

3. **Participation in custody case(s): (check only one)**

☐ I **HAVE NOT** participated as a party, witness, or in any capacity in any other case, in this or any other state, concerning the custody of or visitation (parenting time) with any child subject to this case.

☐ I **HAVE** participated as a party, witness, or in any capacity in any other case, in this or any other state, concerning the custody of or visitation (parenting time) with any child subject to this case. Explain:

_____

_____

a. Name of each child _____
b. Type of case _____
c. Court and State _____
d. Date of court order or judgment (if any): _____

4. **Information about custody case(s): (check only one)**

☐ **I HAVE NO INFORMATION** of any cases that could affect the current case, any cases relating to custody, domestic violence or protection orders, dependency, neglect or abuse allegations, or adoptions concerning any child subject to this case.

☐ **I HAVE THE FOLLOWING INFORMATION** concerning cases that could affect the current case, including any cases relating to custody, domestic violence or protection orders, dependency, neglect or abuse allegations, or adoptions concerning any child subject to this case, other than listed in Paragraph 3. Explain:

_____

_____

a. Name of each child _____
b. Type of case _____

c. Court and State _____

d. Date of court order or judgment (if any): _____

5. List all of the criminal convictions including guilty pleas for you and the members of your household for the following offenses: any criminal offense involving acts that resulted in a child being abused or neglected; any offense that is a violation of R.C. 2919.25; any sexually oriented offense as defined in R.C. 2950.01; and any offense involving a victim who was a family or household member at the time of the offense and caused physical harm to the victim during the commission of the offense.

NAME	CASE NUMBER	COURT/STATE/ COUNTY	TYPE OF CASE	RESULT OF CASE

6. **Persons not a party to this case:**

☐ **I DO NOT KNOW OF ANY PERSON who is** not a party to this case and who has physical custody or claims to have custody or visitation rights with respect to any child subject to this case.

☐ **I KNOW THAT THE FOLLOWING NAMED PERSON(S)** not a party to this case has/have physical custody or claim(s) to have custody or visitation rights with respect to any child subject to this case:

a. Name and address of person _____
has ☐ physical custody ☐ claims custody rights ☐ claims visitation rights.
Name of each child _____

b. Name and address of person _____
☐ has physical custody ☐ claims custody rights ☐ claims visitation rights.
Name of each child _____

c. Name and address of person _____
has ☐ physical custody ☐ claims custody rights ☐ claims visitation rights.
Name of each child _____

7. **I have a continuing duty to inform this Court of any child custody, visitation, parenting time, divorce, dissolution of marriage, separation, neglect, abuse, dependency, guardianship, parentage, termination of parental rights, or domestic violence case concerning the children in this state or in any other state that could affect the current case.**

Case No._____

OATH OR AFFIRMATION

I swear or affirm that the answers above are true, complete, and accurate to the best of my knowledge. I understand that making false statements in this document may result in a contempt of court finding against me which could result in a jail sentence and fine, and may also subject me to criminal penalties for perjury under R.C. 2921.11.

DO NOT SIGN THE FORM UNLESS YOU ARE IN FRONT OF THE PERSON WHO WILL NOTARIZE THE PARENTING PROCEEDING AFFIDAVIT FOR YOU.

_____

Signature of Petitioner

Sworn to and subscribed before me on this _____ day of _____

_____

NOTARY PUBLIC

IN THE COURT OF COMMON PLEAS

_____ COUNTY, OHIO

Order of Protection

Per R.C. 3113.31(F)(3), this Order is indexed at

LAW ENFORCEMENT AGENCY WHERE INDEXED

( ) -

PHONE NUMBER

Case No.

Judge/Magistrate

State **OHIO**

DOMESTIC VIOLENCE CIVIL PROTECTION ORDER (CPO) *EX PARTE* (R.C. 3113.31)

PETITIONER:

First Middle Last

v.

PERSON(S) PROTECTED BY THIS ORDER:

Petitioner: DOB:

Petitioner's Family or Household Members:
(☐ Additional forms attached.)

DOB:

DOB:

DOB:

DOB:

RESPONDENT:

First Middle Last

Relationship to Petitioner:

Address where Respondent can be found:

RESPONDENT IDENTIFIERS

SEX	RACE	HGT	WGT
EYES	HAIR	DOB	
		/ /	
DRIVER'S LIC. NO.	EXP. DATE	STATE	

Distinguishing Features:

☐ **WARNING TO LAW ENFORCEMENT: RESPONDENT HAS FIREARMS ACCESS – PROCEED WITH CAUTION**

Violence Against Women Act, 18 U.S.C. 2265, Federal Full Faith & Credit Declaration: Registration of this Order is not required for enforcement.

THE COURT HEREBY FINDS:
That it has jurisdiction over the parties and subject matter, and Respondent will be provided with reasonable notice and opportunity to be heard within the time required by Ohio law. **Additional findings of this Order are set forth below.**

THE COURT HEREBY ORDERS:
That the above named Respondent be restrained from committing acts of abuse or threats of abuse against Petitioner and other protected persons named in this Order. Additional terms of this Order are set forth below.

The terms of this Order shall be effective until / / **UNLESS EXTENDED BY SEPARATE ENTRY.**

WARNING TO RESPONDENT: See the warning page attached to the front of this Order.

This proceeding came on for an *ex parte* hearing on _____/_____/_____ (Respondent not being present), upon the filing of a Petition by Petitioner for a Domestic Violence Civil Protection Order (DVCPO) against Respondent, pursuant to R.C. 3113.31. In accordance with R.C. 3113.31(D)(1), the Court held an *ex parte* hearing on the same day that the Petition was filed.

The Court finds that the protected persons herein are in immediate and present danger of domestic violence and for good cause shown, the following temporary orders are necessary to protect the persons named in this Order from domestic violence.

The Court also finds

_____

_____

_____

_____

_____

_____

_____

_____

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_____

_____

_____

☐ **Additional findings on a separate page are included and attached herein.**

RESPONDENT SHALL NOT ABUSE, harm, attempt to harm, threaten, follow, stalk, harass, force sexual relations upon, or commit sexually oriented offenses against the protected persons named in this Order. [NCIC 01 and 02]

ALL OF THE PROVISIONS CHECKED BELOW ALSO APPLY TO RESPONDENT

☐ **1. RESPONDENT SHALL IMMEDIATELY VACATE** the following residence:

_____

_____

☐ **2. EXCLUSIVE POSSESSION OF THE RESIDENCE** located at:

_____

_____

is granted to: _____. Respondent shall not interfere with the protected persons' right to occupy the residence including, but not limited to cancelling utilities or insurance or interrupting telecommunication (e.g., telephone, internet, or cable) services, mail delivery, or the delivery of any other documents or items. [NCIC 03]

☐ **3. RESPONDENT SHALL SURRENDER** all keys and garage door openers to the above residence within 24 hours of service of this Order to the law enforcement agency that serves Respondent with this Order or as follows:

_____

_____

☐ **4. RESPONDENT SHALL NOT ENTER** or interfere with the residence, school, business, place of employment, day care centers, or child care providers of the protected persons named in this Order, including the buildings, grounds, and parking lots at those locations. Respondent may not violate this Order **even with the permission of a protected person**. [NCIC 04]

☐ **5. RESPONDENT SHALL STAY AWAY FROM** ALL protected persons named in this Order, and not be present within 500 feet or _____ (distance) of any protected persons wherever those protected persons may be found, or any place Respondent knows or should know the protected persons are likely to be, **even with a protected person's permission**. If Respondent accidentally comes in contact with protected persons in any public or private place, Respondent must depart *immediately*. This order includes encounters on public and private roads, highways, and thoroughfares. [NCIC 04]

☐ **6. RESPONDENT SHALL NOT INITIATE OR HAVE ANY CONTACT** by any means with the protected persons named in this Order or with their residences, businesses, places of employment, schools, day care centers, or child care providers. Contact includes, but is not limited to, landline, cordless, cellular or digital telephone; text; instant messaging; fax; e-mail; voicemail; delivery service; social media; blogging; writings; electronic communications; posting a message; or communications by any other means directly or through another person.

Respondent may not violate this Order **even with the permission of a protected person**. [NCIC 05]

☐ **7. RESPONDENT SHALL NOT** use any form of electronic surveillance on protected persons.

☐ **8. RESPONDENT SHALL IMMEDIATELY SURRENDER POSSESSION OF ALL KEYS TO THE FOLLOWING MOTOR VEHICLE,** _____, to the law enforcement agency that served Respondent with the Order or as follows:

_____

_____

and Petitioner is granted exclusive use of this motor vehicle.

☐ **9. RESPONDENT SHALL NOT REMOVE, DAMAGE, HIDE, OR DISPOSE OF ANY PROPERTY** owned or possessed by the protected persons named in this Order. Personal property shall be apportioned as follows:

_____

_____

☐ **10. RESPONDENT SHALL NOT REMOVE, DAMAGE, HIDE, OR DISPOSE OF ANY COMPANION ANIMALS OR PETS** owned or possessed by the protected persons named in this Order.

☐ **11. PETITIONER IS AUTHORIZED TO REMOVE THE FOLLOWING COMPANION ANIMALS OR PETS** owned by Petitioner from the possession of Respondent:

_____

Exchange of the listed companion animals or pets shall take place as follows:

_____

_____

☐ **12. RESPONDENT SHALL NOT CAUSE OR ENCOURAGE ANY PERSON** to do any act prohibited by this Order.

☐ **13. RESPONDENT SHALL NOT POSSESS, USE, CARRY, OR OBTAIN ANY DEADLY WEAPON** at any time while the Order remains in effect in order to bring about a cessation of violence. Furthermore, Respondent may be subject to firearms and ammunition restrictions pursuant to 18 U.S.C. 922(g)(1) through (9), 18 U.S.C. 922(n), or R.C. 2923.13. [NCIC 07]

RESPONDENT IS EXCEPTED only for official use pursuant to 18 U.S.C. 925(a)(1), if no other firearms and ammunition prohibitions apply.

☐ **14. RESPONDENT SHALL TURN OVER ALL DEADLY WEAPONS** owned by Respondent or in Respondent's possession to the law enforcement agency that serves Respondent with this Order no later than _____ or as follows:

_____

_____

Any law enforcement agency is authorized to accept possession of deadly weapons pursuant to this paragraph and hold them in protective custody for the duration of this Order. [NCIC 07]

Law enforcement shall immediately notify the Court upon receiving Respondent's deadly weapons for protective custody as set forth in this Order.

Upon the expiration or termination of this Order and if a full hearing order is not issued or consent agreement approved, Respondent may reclaim any deadly weapons held in protective custody by law enforcement pursuant to this Order unless Respondent is otherwise disqualified as verified by a check of the NCIC protection order file.

☐ **15. RESPONDENT'S CONCEALED CARRY WEAPON LICENSE**, if any, is now subject to R.C. 2923.128.

☐**16. PETITIONER IS AN UNMARRIED FEMALE** who gave birth to _____ (a child) born on _____. As set forth in R.C. 3109.042, Petitioner is the sole residential parent or legal custodian of the child until a court of competent jurisdiction issues an order designating another person as the residential parent or legal custodian.

☐**17 PARENTAL RIGHTS AND RESPONSIBILITIES ARE TEMPORARILY ALLOCATED AS FOLLOWS:** [NCIC 09] _____

This Order applies to the following ☐child ☐children:

☐18. PARENTING TIME ORDERS DO NOT PERMIT RESPONDENT TO VIOLATE THE TERMS OF THIS ORDER.

☐ (A) Respondent's parenting time rights are suspended; or

☐ (B) As a limited exception to paragraphs 5 and 6, temporary parenting time rights are established as follows: [NCIC 06]

This Order applies to the following ☐child ☐children:

☐**19. LAW ENFORCEMENT AGENCIES**, including but not limited to, _____ are ordered to assist Petitioner in gaining physical custody of the ☐child ☐children, if necessary.

☐**20. RESPONDENT SHALL SUPPORT** the protected persons named in this Order as follows:

☐**21. RESPONDENT MAY PICK UP CLOTHING** and personal effects from the above residence only in the company of a uniformed law enforcement officer within seven or _____ days of the filing of this Order. Arrangements may be made by contacting:

☐**22. RESPONDENT SHALL NOT USE OR POSSESS** ☐ alcohol or ☐ illegal drugs.

☐**23. RESPONDENT SHALL NOT INTERFERE** with wireless service transfer, prevent the functionality of a device on the network, or incur further contractual or financial obligations related to the transferred numbers.

Wireless service rights to and billing responsibility for the wireless service number or numbers in use by Petitioner or any minor children in the care of Petitioner shall be transferred to Petitioner by separate order, Wireless Service Transfer Order in Domestic Violence Civil Protection Order (Civil Protection Order Form 29).

☐ **24. IT IS FURTHER ORDERED:** [NCIC 08]

_____

_____

_____

_____

_____

_____

25. ALL DISCOVERY SHALL STRICTLY COMPLY with Civ.R. 65.1(D).

26. THE CLERK OF COURT SHALL CAUSE A COPY OF THE PETITION, THIS ORDER, AND ANY OTHER ACCOMPANYING DOCUMENT to be served on Respondent as set forth in Civ.R. 65.1(C)(2). The Clerk of Court shall also provide copies of the Petition and certified copies of this Order to Petitioner upon request.

27. THIS ORDER DOES NOT EXPIRE because of a failure to serve notice of the full hearing upon Respondent before the date set for the full hearing or because the Court grants a continuance, as set forth in R.C. 3113.31(D)(2)(b).

28. THIS ORDER SURVIVES a divorce, dissolution of marriage, or legal separation. Any subsequent order from this Court, another domestic relations court, or juvenile court may modify paragraphs 16, 17, 18, and 19.

29. IT IS FURTHER ORDERED NO COSTS OR FEES SHALL BE ASSESSED AGAINST PETITIONER for filing, issuing, registering, modifying, enforcing, dismissing, withdrawing, serving, subpoenaing witnesses for, or obtaining a certified copy of this Order. This Order is granted without bond.

IT IS SO ORDERED.

_____

JUDGE/MAGISTRATE

NOTICE TO RESPONDENT

NO PERSON PROTECTED BY THIS ORDER CAN GIVE YOU LEGAL PERMISSION TO CHANGE OR VIOLATE THE TERMS OF THIS ORDER. IF YOU VIOLATE ANY TERM OF THIS ORDER EVEN WITH THE PROTECTED PERSON'S PERMISSION, YOU MAY BE HELD IN CONTEMPT OR ARRESTED. ONLY THE COURT CAN CHANGE THIS ORDER. YOU ACT AT YOUR OWN RISK IF YOU DISREGARD THIS WARNING.

A FULL HEARING on this Order, and on all other issues raised by the Petition, shall be held before Judge or Magistrate:

_____

on the _____ day of _____ , 20 _____

at _____ ☐a.m. ☐p.m. at the following location:

_____

_____

_____

_____

On the day of the Full Hearing, come prepared to (1) tell the Court what happened, (2) bring with you any witnesses, evidence, and documentation to prove your case, and (3) be aware that the other party or the party's attorney may ask you questions. If you do not have an attorney, you may ask for a brief continuance to obtain an attorney per R.C. 3113.31(D)(2)(a)(iii) or you may represent yourself.

Parties do not have to give discovery, answer questions, or give information to the other party or the other party's lawyer unless ordered by judge or magistrate (Civ.R. 65.1(D)(2)).

TO THE CLERK

A COPY OF PETITION, THIS ORDER, AND ANY OTHER ACCOMPANYING DOCUMENTS SHALL BE SERVED ON RESPONDENT PURSUANT TO CIV.R. 65.1(C)(2).
COPIES OF THIS ORDER AND OTHER ACCOMPANYING DOCUMENTS SHALL BE DELIVERED TO:

☐ Petitioner
☐ Petitioner's Attorney
☐ Law Enforcement Agency Where Petitioner Resides:

_____

☐ Sheriff's Office:

_____

☐ Law Enforcement Agency Where Petitioner Works:

_____

☐ CSEA
☐ Other: _____

IN THE COURT OF COMMON PLEAS

_____ COUNTY, OHIO

Order of Protection

Per R.C. 3113.31(F)(3), this Order is indexed at

LAW ENFORCEMENT AGENCY WHERE INDEXED

( ) -

PHONE NUMBER

Case No.

Judge

State **OHIO**

DOMESTIC VIOLENCE CIVIL PROTECTION ORDER (CPO) FULL HEARING (R.C. 3113.31)

☐ **WITH SUPPORT ORDER**

PETITIONER:

First Middle Last

v.

PERSON(S) PROTECTED BY THIS ORDER:

Petitioner _____ DOB: _____

Petitioner's Family or Household Members:
(☐Additional forms attached)

_____ DOB: _____

_____ DOB: _____

_____ DOB: _____

_____ DOB: _____

RESPONDENT:

First Middle Last

Relationship to Petitioner: _____

Address where Respondent can be found:

_____

_____

RESPONDENT IDENTIFIERS

SEX	RACE	HGT	WGT
EYES	HAIR	DOB	
		/ /	
DRIVER'S LIC. NO.	EXP. DATE	STATE	

Distinguishing Features: _____

☐ **WARNING TO LAW ENFORCEMENT: RESPONDENT HAS FIREARMS ACCESS – PROCEED WITH CAUTION**

Violence Against Women Act, 18 U.S.C. 2265, Federal Full Faith & Credit Declaration: Registration of this Order is not required for enforcement.

THE COURT HEREBY FINDS:

That it has jurisdiction over the parties and subject matter, and Respondent was provided with reasonable notice and opportunity to be heard within the time required by Ohio law. **Additional findings of this Order are set forth below.**

THE COURT HEREBY ORDERS:

That the above named Respondent be restrained from committing acts of abuse or threats of abuse against Petitioner and other protected persons named in this Order. Additional terms of this Order are set forth below.

The terms of this Order shall be effective until _____ / _____ / _____ **(DATE CERTAIN – 5 YEARS MAXIMUM)**

WARNING TO RESPONDENT: See the warning page attached to the front of this Order.

This proceeding came on for a hearing on _____/_____/_____ before the Court and the *Ex Parte* Order issued on _____/_____/_____. The following individuals were present:

The Court hereby makes the following findings of fact:

The Court finds that the protected persons herein are in immediate and present danger of domestic violence and for good cause shown, the following temporary orders are necessary to protect the persons named in this Order from domestic violence.

The Court also finds:

☐ **Additional findings on a separate page are included and attached herein.**

The Court further finds by a preponderance of the evidence that 1) Petitioner and Petitioner's family or household members are in danger and have been a victim of domestic violence as defined in R.C. 3113.31(A) committed by Respondent and 2) the following orders are equitable, fair, and necessary to protect the persons named in this Order from domestic violence.

RESPONDENT SHALL NOT ABUSE, harm, attempt to harm, threaten, follow, stalk, harass, force sexual relations upon, or commit sexually oriented offenses against the protected persons named in this Order. [NCIC 01 and 02]

ALL OF THE PROVISIONS CHECKED BELOW ALSO APPLY TO RESPONDENT

☐ **1. RESPONDENT SHALL IMMEDIATELY VACATE** the following residence:

_____

_____

☐ **2. EXCLUSIVE POSSESSION OF THE RESIDENCE** located at:

_____

_____

is granted to: _____. Respondent shall not interfere with the protected persons' right to occupy the residence including, but not limited to canceling utilities or insurance or interrupting telecommunication (e.g. telephone, internet, or cable) services, mail delivery, or the delivery of any other documents or items. [NCIC 03]

☐ **3. RESPONDENT SHALL SURRENDER** all keys and garage door openers to the above residence within 24 hours of service of this Order to the law enforcement agency that serves Respondent with this Order or as follows:

_____

_____

☐ **4. RESPONDENT SHALL NOT ENTER** or interfere with the residence, school, business, place of employment, day care centers, or child care providers of the protected persons named in this Order, including the buildings, grounds, and parking lots at those locations. Respondent may not violate this Order **even with the permission of a protected person**. [NCIC 04]

☐ **5. RESPONDENT SHALL STAY AWAY FROM ALL** protected persons named in this Order, and not be present within 500 feet or _____(distance) of any protected persons wherever those protected persons may be found, or any place Respondent knows or should know the protected persons are likely to be, **even with a protected person's permission**. If Respondent accidentally comes in contact with protected persons in any public or private place, Respondent must depart *immediately*. This Order includes encounters on public and private roads, highways, and thoroughfares. [NCIC 04]

☐ **6. RESPONDENT SHALL NOT INITIATE OR HAVE ANY CONTACT** by any means with the protected persons named in this Order or with their residences, businesses, places of employment, schools, day care centers, or child care providers. Contact includes, but is not limited to, landline, cordless, cellular or digital telephone; text; instant messaging; fax; e-mail; voicemail; delivery service; social media; blogging; writings; electronic communications; posting a message; or communications by any other means directly or through another person.

Respondent may not violate this Order **even with the permission of a protected person**. [NCIC 05]

☐ **7. RESPONDENT SHALL NOT** use any form of electronic surveillance on protected persons.

☐ **8. RESPONDENT SHALL IMMEDIATELY SURRENDER POSSESSION OF ALL KEYS TO THE FOLLOWING MOTOR VEHICLE:** _____
to the law enforcement agency that served Respondent with the Order or as follows:

_____

_____

and Petitioner is granted exclusive use of this motor vehicle.

☐ **9. RESPONDENT SHALL NOT REMOVE, DAMAGE, HIDE, OR DISPOSE OF ANY PROPERTY** owned or possessed by the protected persons named in this Order. Personal property shall be apportioned as follows:

_____

_____

☐ **10. RESPONDENT SHALL NOT REMOVE, DAMAGE, HIDE, OR DISPOSE OF ANY COMPANION ANIMALS OR PETS** owned or possessed by the protected persons named in this Order.

☐ **11. PETITIONER IS AUTHORIZED TO REMOVE THE FOLLOWING COMPANION ANIMALS OR PETS** owned by Petitioner from the possession of Respondent:

_____

Exchange of the listed companion animals or pets shall take place as follows:

_____

_____

☐ **12. RESPONDENT SHALL NOT CAUSE OR ENCOURAGE ANY PERSON** to do any act prohibited by this Order.

☐ **13. RESPONDENT SHALL NOT POSSESS, USE, CARRY, OR OBTAIN ANY DEADLY WEAPON, INCLUDING FIREARMS, AND AMMUNITION** at any time while this Order remains in effect in order to bring about a cessation of violence. Furthermore, Respondent may be subject to firearms and ammunition restrictions pursuant to 18 U.S.C. 922(g)(1) through (9), 18 U.S.C. 922(n), or R.C. 2923.13. [NCIC 07]

RESPONDENT IS EXCEPTED only for official use pursuant to 18 U.S.C. 925(a)(1), if no other firearms and ammunition prohibitions apply.

☐ **14. RESPONDENT SHALL TURN OVER ALL DEADLY WEAPONS, INCLUDING FIREARMS, AND AMMUNITION** owned by Respondent or in Respondent's possession to the law enforcement agency that serves Respondent with this Order no later than _____ or as follows:

_____

_____

Any law enforcement agency is authorized to accept possession of deadly weapons, including firearms, and ammunition pursuant to this paragraph and hold them in protective custody for the duration of this Order. [NCIC 07]

Law enforcement shall immediately notify the Court upon receiving Respondent's deadly weapons, including firearms, and ammunition into protective custody as set forth in this Order.

Upon the expiration or termination of this Order, Respondent may reclaim any deadly weapons, including firearms, and ammunition held in protective custody by law enforcement pursuant to this Order unless Respondent is otherwise disqualified as verified by a check of the NCIC protection order file.

15. RESPONDENT'S CONCEALED CARRY WEAPON LICENSE, if any, is now subject to R.C. 2923.128.

☐ **16. PETITIONER IS AN UNMARRIED FEMALE** who gave birth to _____ (a child) born on _____. As set forth in R.C. 3109.042, Petitioner is the sole residential parent or legal custodian of the child until a court of competent jurisdiction issues an order designating another person as the residential parent or legal custodian.

☐ **17. PARENTAL RIGHTS AND RESPONSIBILITIES ARE TEMPORARILY ALLOCATED AS FOLLOWS:** [NCIC 09]

_____

_____

_____

This Order applies to the following ☐child ☐children:

_____

_____

_____

☐ **18. PARENTING TIME ORDERS DO NOT PERMIT RESPONDENT TO VIOLATE THE TERMS OF THIS ORDER.**

☐ (A) Respondent's parenting time rights are suspended; or

☐ (B) As a limited exception to paragraphs 5 and 6, temporary parenting time rights are established as follows:
[NCIC 06]

_____

_____

This Order applies to the following ☐child ☐children:

_____

_____

☐ **19. LAW ENFORCEMENT AGENCIES**, including but not limited to, _____ are ordered to assist Petitioner in gaining physical custody of the ☐child ☐children, if necessary.

☐ **20. RESPONDENT SHALL SUPPORT** the protected persons named in this Order as follows:

_____

_____

☐ **21. RESPONDENT MAY PICK UP CLOTHING** and personal effects from the above residence only in the company of a uniformed law enforcement officer within seven or _____ days of the filing of this Order. Arrangements may be made by contacting:

_____

_____

☐ **22. RESPONDENT SHALL NOT USE OR POSSESS** ☐ alcohol or ☐ illegal drugs.

☐ **23. RESPONDENT SHALL COMPLETE THE FOLLOWING COUNSELING PROGRAM:**

_____

_____

Respondent shall contact this program within _____ days after receiving this Order and immediately arrange for an initial appointment. The counseling program is requested to provide the Court a written notice when Respondent attends the initial appointment, if Respondent fails to attend or is discharged, and when Respondent completes the program. Respondent is required to sign all necessary waivers to allow the Court to receive information from the counseling program.

☐ **24. RESPONDENT IS ORDERED TO APPEAR before Judge or Magistrate** _____

on _____/_____/_____ at _____ ☐ a.m. ☐ p.m. to review Respondent's compliance with the terms of this Order. RESPONDENT IS WARNED: If you fail to attend the counseling program you may be held in contempt of court or the Court may issue a warrant for your arrest.

☐ **25. RESPONDENT SHALL NOT INTERFERE** with wireless service transfer, prevent the functionality of a device on the network, or incur further contractual or financial obligations related to the transferred numbers.

Wireless service rights to and billing responsibility for the wireless service number or numbers in use by Petitioner or any minor children in the care of Petitioner shall be transferred to Petitioner by separate order, Wireless Service Transfer Order (Civil Protection Order Form 29).

☐ **26. IT IS FURTHER ORDERED:** [NCIC 08]

_____

_____

_____

_____

27. THE CLERK OF COURT SHALL CAUSE A COPY OF THIS ORDER to be served on Respondent as set forth in Civ.R. 5(B) and 65.1(C)(3). The Clerk of Court shall also provide certified copies of this Order to Petitioner upon request.

28. THIS ORDER SURVIVES a divorce, dissolution of marriage, or legal separation. Any subsequent order from this Court, another domestic relations court, or juvenile court may modify paragraphs 16, 17, 18, and 19.

29. IF THE FULL HEARING PROCEEDING WAS REFERRED TO A MAGISTRATE, the Court has reviewed the magistrate's granting of this Order and finds no error of law or other defect evident on the face of the Order as set forth in Civ.R. 65.1. Accordingly, the Court adopts the magistrate's granting of the Order.

30. IT IS FURTHER ORDERED NO COSTS OR FEES SHALL BE ASSESSED AGAINST PETITIONER for filing, issuing, registering, modifying, enforcing, dismissing, withdrawing, serving, subpoenaing witnesses for, or obtaining a certified copy of this Order. This Order is granted without bond.

31. THE COSTS OF THIS ACTION ARE ☐ assessed against Respondent ☐ waived.

IT IS SO ORDERED.

_____ _____

MAGISTRATE **JUDGE**

Case No._____

NOTICE TO RESPONDENT

NO PERSON PROTECTED BY THIS ORDER CAN GIVE YOU LEGAL PERMISSION TO CHANGE OR VIOLATE THE TERMS OF THIS ORDER. IF YOU VIOLATE ANY TERM OF THIS ORDER EVEN WITH THE PROTECTED PERSON'S PERMISSION, YOU MAY BE HELD IN CONTEMPT OR ARRESTED. ONLY THE COURT CAN CHANGE THIS ORDER. YOU ACT AT YOUR OWN RISK IF YOU DISREGARD THIS WARNING.

NOTICE OF FINAL APPEALABLE ORDER

Copies of this Order, which is a final appealable order, were served on or delivered to the parties indicated pursuant to Civ. R. 5(B) and 65.1(C)(3), including ordinary mail, on

_____ day of _____ , 20 _____

By: _____
CLERK OF COURT

TO THE CLERK:

A COPY OF THIS ORDER SHALL BE SERVED ON RESPONDENT PURSUANT TO CIV.R. 65.1(C)(3).

COPIES OF THIS ORDER SHALL BE DELIVERED ON:

- ☐ Petitioner
- ☐ Petitioner's Attorney
- ☐ Respondent's Attorney
- ☐ Counseling Program: _____
- ☐ Sheriff's Office: _____
- ☐ Law Enforcement Agency Where Petitioner Resides: _____
- ☐ Law Enforcement Agency Where Petitioner Works: _____
- ☐ CSEA
- ☐ Other: _____

IN THE COURT OF COMMON PLEAS

_____ COUNTY, OHIO

Order of Protection

Per R.C. 3113.31(F)(3), this Order is indexed at

LAW ENFORCEMENT AGENCY WHERE INDEXED

( ) -

PHONE NUMBER

Case No.

Judge _____

State **OHIO**

CONSENT AGREEMENT AND DOMESTIC VIOLENCE CIVIL PROTECTION ORDER (R.C. 3113.31)

☐ **WITH SUPPORT ORDER**

PETITIONER:

First Middle Last

v.

PERSON(S) PROTECTED BY THIS ORDER:

Petitioner: _____ DOB: _____

Petitioner's Family or Household Members:
(☐ Additional forms attached.)

_____ DOB: _____

_____ DOB: _____

_____ DOB: _____

_____ DOB: _____

RESPONDENT:

First Middle Last

Relationship to Petitioner: _____

Address where Respondent can be found:

_____

_____

RESPONDENT IDENTIFIERS

SEX	RACE	HGT	WGT

EYES	HAIR	DOB
		/ /

DRIVER'S LIC. NO.	EXP. DATE	STATE

Distinguishing Features: _____

☐ **WARNING TO LAW ENFORCEMENT: RESPONDENT HAS FIREARMS ACCESS – PROCEED WITH CAUTION**

Violence Against Women Act, 18 U.S.C. 2265, Federal Full Faith & Credit Declaration: Registration of this Order is not required for enforcement.

THE COURT HEREBY FINDS:

That it has jurisdiction over the parties and subject matter, and Respondent was provided with reasonable notice and opportunity to be heard within the time required by Ohio law. **Additional findings of this Order are set forth below.**

THE COURT HEREBY ORDERS:

That the above named Respondent be restrained from committing acts of abuse or threats of abuse against Petitioner and other protected persons named in this Order. Additional terms of this Order are set forth below.

The terms of this Order shall be effective until _____ / _____ / _____ **(DATE CERTAIN – 5 YEARS MAXIMUM)**

WARNING TO RESPONDENT: See the warning page attached to the front of this Order.

This proceeding came on for a hearing on _____/_____/_____ before the Court and the *Ex Parte* Order issued on _____/_____/_____ The following individuals were present:

_____

_____

The parties agree to waive their notice and hearing rights.

RESPONDENT SHALL NOT ABUSE, harm, attempt to harm, threaten, follow, stalk, harass, force sexual relations upon, or commit sexually oriented offenses against the protected persons named in this Order.
[NCIC 01 and 02]

The Court finds:

_____
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☐ **Additional findings on a separate page are included and attached herein.**

ALL OF THE PROVISIONS CHECKED BELOW ALSO APPLY TO RESPONDENT

☐ **1. RESPONDENT SHALL IMMEDIATELY VACATE** the following residence:

_____

_____

☐ **2. EXCLUSIVE POSSESSION OF THE RESIDENCE** located at:

_____

_____

is granted to: _____. Respondent shall not interfere with the protected persons' right to occupy the residence including, but not limited to canceling utilities or insurance or interrupting telecommunication (e.g., telephone, internet, or cable) services, mail delivery, or the delivery of any other documents or items. [NCIC 03]

☐ **3. RESPONDENT SHALL SURRENDER** all keys and garage door openers to the above residence within 24 hours of service of this Order to the law enforcement agency that serves Respondent with this Order or as follows:

_____

_____

_____

☐ **4. RESPONDENT SHALL NOT ENTER** or interfere with the residence, school, business, place of employment, day care centers, or child care providers of the protected persons named in this Order, including the buildings, grounds, and parking lots at those locations. Respondent may not violate this Order **even with the permission of a protected person**. [NCIC 04]

☐ **5. RESPONDENT SHALL STAY AWAY FROM PETITIONER** and all other protected persons named in this Order, and not be present within 500 feet or _____ (distance) of any protected persons wherever those protected persons may be found, or any place Respondent knows or should know the protected persons are likely to be, **even with a protected person's permission**. If Respondent accidentally comes in contact with protected persons in any public or private place, Respondent must depart *immediately*. This Order includes encounters on public and private roads, highways, and thoroughfares. [NCIC 04]

☐ **6. RESPONDENT SHALL NOT INITIATE OR HAVE ANY CONTACT** by any means with the protected persons named in this Order or with their residences, businesses, places of employment, schools, day care centers, or child care providers. Contact includes, but is not limited to, landline, cordless, cellular or digital telephone; text instant messaging; fax; e-mail; voicemail; delivery service; social media; blogging; writings; electronic communications; posting a message; or communications by any other means directly or through another person. Respondent may not violate this Order **even with the permission of a protected person**. [NCIC05]

☐ **7. RESPONDENT SHALL NOT** use any form of electronic surveillance on protected persons.

☐ **8. RESPONDENT SHALL IMMEDIATELY SURRENDER POSSESSION OF ALL KEYS TO THE FOLLOWING MOTOR VEHICLE:** _____ to the law enforcement agency that served Respondent with the Order or as follows:

_____

_____

and Petitioner is granted exclusive use of this motor vehicle.

☐ **9. RESPONDENT SHALL NOT REMOVE, DAMAGE, HIDE, OR DISPOSE OF ANY PROPERTY** owned or possessed by the protected persons named in this Order. Personal property shall be apportioned as follows:

_____

_____

_____

☐ **10. RESPONDENT SHALL NOT REMOVE, DAMAGE, HIDE, OR DISPOSE OF COMPANION ANIMALS OR PETS** owned or possessed by the protected persons named in this Order.

☐ **11. PETITIONER IS AUTHORIZED TO REMOVE THE FOLLOWING COMPANION ANIMALS OR PETS** owned by Petitioner, from the possession of Respondent:

_____

_____

Exchange of listed companion animals or pets shall take place as follows:

_____

☐ **12. RESPONDENT SHALL NOT CAUSE OR ENCOURAGE ANY PERSON** to do any act prohibited by this Order.

☐ **13. RESPONDENT SHALL NOT POSSESS, USE, CARRY, OR OBTAIN ANY DEADLY WEAPON, INCLUDING FIREARMS, AND AMMUNITION** at any time while this Order remains in effect in order to bring about a cessation of violence. Furthermore, Respondent may be subject to firearms and ammunition restrictions pursuant to 18 U.S.C. 922(g)(1) through (9), 18 U.S.C. 922(n), or R.C. 2923.13. [NCIC 07]

RESPONDENT IS EXCEPTED only for official use pursuant to 18 U.S.C. 925(a)(1), if no other firearms and ammunition prohibitions apply.

☐ **14. RESPONDENT SHALL TURN OVER ALL DEADLY WEAPONS, INCLUDING FIREARMS AMMUNITION** owned by Respondent or in Respondent's possession to the law enforcement agency that serves Respondent with this Order no later than _____ or as follows:

_____

Any law enforcement agency is authorized to accept possession of deadly weapons, including firearms, and ammunition pursuant to this paragraph and hold them in protective custody for the duration of this Order. [NCIC 07]

Law enforcement shall immediately notify the Court upon receiving Respondent's deadly weapons, including firearms, and ammunition into protective custody as set forth in this Order.

Upon the expiration or termination of this Order, Respondent may reclaim any deadly weapons, including firearms, and ammunition held in protective custody by law enforcement pursuant to this Order unless Respondent is otherwise disqualified as verified by a check of the NCIC protection order file.

☐ **15. RESPONDENT'S CONCEALED CARRY WEAPON LICENSE**, if any, is now subject to R.C. 2923.128.

☐ **16. PETITIONER IS AN UNMARRIED FEMALE** who gave birth to _____ (a child) born on _____. As set forth in R.C. 3109.042, Petitioner is the sole residential parent or legal custodian of the child until a court of competent jurisdiction issues an order designating another person as the residential parent or legal custodian.

☐ **17. PARENTAL RIGHTS AND RESPONSIBILITIES ARE TEMPORARILY ALLOCATED AS FOLLOWS:** [NCIC 09]

_____

_____

_____

This Order applies to the following ☐child ☐children:

_____

_____

☐ **18. PARENTING TIME ORDERS DO NOT PERMIT RESPONDENT TO VIOLATE THE TERMS OF THIS ORDER.**

☐ (A) Respondent's parenting time rights are suspended; or

☐ (B) As a limited exception to paragraphs 5 and 6, temporary parenting time rights are established as follows: [NCIC 06]

_____

_____

_____

This Order applies to the following ☐child ☐children:

_____

_____

☐ **19. LAW ENFORCEMENT AGENCIES**, including but not limited to, _____ are ordered to assist Petitioner in gaining physical custody of the ☐child ☐children, if necessary.

☐ **20. RESPONDENT SHALL SUPPORT** the protected persons named in this Order as follows:

_____

_____

_____

☐ **21. RESPONDENT MAY PICK UP CLOTHING** and personal effects from the above residence only in the company of a uniformed law enforcement officer within seven or _____ days of the filing of this Order. Arrangements may be made by contacting:

_____

_____

_____

☐ **22. RESPONDENT SHALL NOT USE OR POSSESS** ☐ alcohol or ☐ illegal drugs.

☐ **23. RESPONDENT SHALL NOT INTERFERE** with wireless service transfer, prevent the functionality of a device on the network, or incur further contractual or financial obligations related to the transferred numbers.

Wireless service rights to and billing responsibility for the wireless service number or numbers in use by Petitioner or any minor children in the care of Petitioner shall be transferred to Petitioner by separate order Wireless Service Transfer Order in Domestic Violence Protection Order (Civil Protection Order Form 29).

☐ **24. RESPONDENT SHALL COMPLETE THE FOLLOWING COUNSELING PROGRAM:**

_____

_____

Respondent shall contact this program within _____ days after receiving this Order and immediately arrange for an initial appointment. The counseling program is requested to provide the Court a written notice when Respondent attends the initial appointment, if Respondent fails to attend or is discharged, and when Respondent completes the program. Respondent is required to sign all necessary waivers to allow the Court to receive information from the counseling program.

☐ **25. RESPONDENT IS ORDERED TO APPEAR before Judge or Magistrate _____ on _____/_____/_____ at _____ ☐a.m. ☐p.m., to review Respondent's compliance with this counseling order. Respondent is warned: If you fail to attend the counseling program you may be held in contempt of court or the Court may issue a warrant for your arrest.**

☐ **26. IT IS FURTHER ORDERED**: [NCIC 08]

_____

_____

_____

_____

_____

27. THE CLERK OF COURT SHALL CAUSE A COPY OF THIS ORDER to be served on Respondent as set forth in Civ.R. 5(B) and 65.1(C)(3). The Clerk of Court shall also provide certified copies of this Order to Petitioner upon request.

28. THIS ORDER SURVIVES a divorce, dissolution of marriage, or legal separation. Any subsequent order from this Court, another domestic relations court, or juvenile court may modify paragraphs 16, 17, 18 and 19.

29. IF THE FULL HEARING PROCEEDING WAS REFERRED TO A MAGISTRATE, the Court has reviewed the magistrate's granting of this Order and finds no error of law or other defect evident on the face of the Order as set forth in Civ.R. 65.1. Accordingly, the Court adopts the magistrate's granting of the Order.

30. IT IS FURTHER ORDERED NO COSTS OR FEES SHALL BE ASSESSED AGAINST PETITIONER for filing, issuing, registering, modifying, enforcing, dismissing, withdrawing, serving, subpoenaing witnesses for, or obtaining a certified copy of this Order. This Order is granted without bond.

31. THE COSTS OF THIS ACTION ARE ☐ assessed against Respondent ☐ waived.

IT IS SO ORDERED.

_____ _____

MAGISTRATE **JUDGE**

Case No._____

NOTICE TO RESPONDENT

NO PERSON PROTECTED BY THIS ORDER CAN GIVE YOU LEGAL PERMISSION TO CHANGE OR VIOLATE THE TERMS OF THIS ORDER. IF YOU VIOLATE ANY TERMS OF THIS ORDER, EVEN WITH THE PROTECTED PERSON'S PERMISSION, YOU MAY BE HELD IN CONTEMPT OR ARRESTED. ONLY THE COURT CAN CHANGE THIS ORDER. YOU ACT AT YOUR OWN RISK IF YOU DISREGARD THIS WARNING.

I have read this Consent Agreement and Civil Protection Order and agree to its terms.

SIGNATURE OF PETITIONER

Address of Petitioner (Safe Mailing Address)

Signature of Attorney for Petitioner

Address of Attorney for Petitioner

I have read this Consent Agreement and Civil Protection Order and agree to its terms.

SIGNATURE OF RESPONDENT

Address of Respondent

Signature of Attorney for Respondent

Address of Attorney for Respondent

NOTICE OF FINAL APPEALABLE ORDER

Copies of this Order, which is a final appealable order, were served on or delivered to the parties indicated pursuant to Civ. R. 5(B) and 65.1(C)(3), including ordinary mail, on

_____ day of _____ , 20 _____

By: _____
CLERK OF COURT

***TO THE CLERK*:**

A COPY OF THIS ORDER SHALL BE SERVED ON RESPONDENT PURSUANT TO CIV.R. 65.1(C)(3).

COPIES OF THIS ORDER SHALL BE DELIVERED ON:

- ☐ Petitioner
- ☐ Petitioner's Attorney
- ☐ Respondent's Attorney
- ☐ Counseling Program: _____
- ☐ Sheriff's Office: _____
- ☐ Law Enforcement Agency Where Petitioner Resides: _____
- ☐ Law Enforcement Agency Where Petitioner Works: _____
- ☐ CSEA
- ☐ Other: _____

CIVIL PROTECTION ORDER FORM 9/CRIMINAL PROTECTION ORDER 9:
NOTICE TO RESPONDENT OR DEFENDANT ABOUT EXISTENCE OF PROTECTION ORDER

THIS NOTICE IS NOT A PROTECTION ORDER. Pursuant to R.C. 2919.27(D), I am orally notifying you that a Protection Order was issued against you on _____
by _____Court and assigned Case No. _____
for the safety and protection of the following parties: _____

_____

_____

Following are **some** of the terms in the Protection Order that may apply to you. You are advised that a violation of any of these terms may result in your arrest. You are also advised to read the Protection Order in its entirety, upon being served with it. This Notice is **not** the Protection Order issued against you.

- You are prohibited from abusing, harming, attempting to harm, threatening, following, harassing, stalking, forcing sexual relations upon, or committing sexually oriented offenses against the protected persons.
- The protected persons may have exclusive possession of the residence.
- You must stay away from the protected persons' residence, property, school, or place of employment.
- You are prohibited from initiating or contacting the protected persons through any means (including social media, email, text, telephone, or written communication) or through another person.
- You may have to report for electronic monitoring.
- Temporary custody of the children named in the Order may be granted to Petitioner. You must read the Protection Order to find out if the Court granted you any visitation rights.
- You may be prohibited from possessing or purchasing deadly weapons, including firearms, and ammunition.

Acknowledgement of Respondent or Defendant

I, _____, have been notified that a Protection Order has been issued against me and have also been notified of **some** of the terms and conditions in the Order that may apply to me. I further understand that the Protection Order is enforceable and any violation of the Order may result in my arrest.

_____ _____
Respondent/Defendant (signature) Date

Respondent's/Defendant's Address: _____

Telephone _____ Email _____

Certificate of Notice

☐ Respondent refused to sign acknowledgment.

I hereby certify that on _____ in _____County
I gave notice to Respondent or Defendant about the existence of the Protection Order.

_____	_____
Officer and Badge Number	Law Enforcement Agency
_____	_____
Judge/Magistrate	Court

This Notice shall be returned to the Clerk of Court of the court that issued the protection order for entry into the docket as soon as possible, but no later than three business days from the date the Notice was provided.

IN THE COURT OF COMMON PLEAS

_____ COUNTY, OHIO

Petitioner	:	Case No. _____
DOB: ____/____/____	:	Judge _____
	:	**JUDGMENT ENTRY ON MOTION TO MODIFY OR TERMINATE CIVIL PROTECTION ORDER OR CONSENT AGREEMENT (R.C. 3113.31)**
v.	:	
Respondent	:	
DOB: ____/____/____	:	

Upon the motion of ☐Petitioner ☐Respondent, this proceeding came on for a hearing on _____ before the Court to ☐modify ☐terminate the following Order:

☐ Domestic Violence Civil Protection Order granted on _____
☐ Dating Violence Civil Protection Order granted on _____
☐ Consent Agreement Domestic Violence Civil Protection Order approved on _____
☐ Consent Agreement Dating Violence Civil Protection Order approved on _____

☐ Petitioner was ☐present ☐not present, but had reasonable notice and opportunity to be heard.

☐ Respondent was ☐present ☐not present, but had reasonable notice and opportunity to be heard.

The Court has considered the following factors:

1. Petitioner ☐consents ☐does not consent to the ☐modification ☐termination of the Civil Protection Order or Consent Agreement.

2. Petitioner ☐continues to fear ☐does not fear Respondent.

3. The current nature of the relationship between Petitioner and Respondent is as follows:

   _____

   _____

4. Relative proximity of Petitioner's and Respondent's workplaces and residences.

5. Petitioner and Respondent ☐have ☐do not have minor children together.

6. Respondent has ☐complied ☐failed to comply with the terms and conditions of the original civil protection order or consent agreement.

7. Respondent ☐has ☐does not have a continuing involvement with ☐illegal drugs or ☐alcohol.

8. Respondent ☐has been ☐has not been convicted of or pleaded guilty to an offense of violence since the protection order was issued or the consent agreement was approved.

9. Other protection orders, consent agreements, restraining orders, or no contact orders ☐have been ☐have not been issued against Respondent pursuant to R.C. 3113.31 or 2919.26, any other provision of state law, or the laws of any other state.

10. Respondent ☐participated ☐has not participated in treatment, intervention program, or other counseling as set forth in the Court's order or approved agreement.

11. Respondent ☐completed ☐has not completed treatment, intervention program, or other counseling as set forth in the Court's order or approved agreement.

12. _____ (time) has elapsed since the protection order was issued or the consent agreement was approved.

13. The age and health of Respondent is as follows:

_____

_____

14. The last incident of abuse, threat of harm, or commission of a sexually oriented offense occurred on:

_____

_____

15. Other information considered concerning the safety and protection of Petitioner or other protected parties:

_____

_____

Based on all relevant factors, including those set forth in R.C. 3113.31(E)(8), the Court finds:

☐ **THE ORDER ISSUED ON** _____ **SHALL BE MODIFIED** per the ☐ Modified Domestic Violence Civil Protection Order (Civil Protection Order Form 11) ☐ Modified Dating Violence Civil Protection Order (Civil Protection Order Form 17).

_____

_____

_____

☐ **THE ORDER IS TERMINATED.** The civil protection order or consent agreement is no longer needed. Respondent may reclaim any deadly weapons held in protective custody by law enforcement pursuant to this Order unless Respondent is otherwise disqualified as verified by a check of the NCIC protection order file.

☐ **THE MOTION IS DENIED.** The civil protection order or consent agreement remains in full force and effect.

The Court has prepared a Protection Order Notice to NCIC (Civil Protection Order 27) to show the modification or early termination of the prior order or agreement.

IT IS FURTHER ORDERED NO COSTS OR FEES SHALL BE ASSESSED AGAINST PETITIONER for filing, issuing, registering, modifying, enforcing, dismissing, withdrawing, serving, subpoenaing witnesses for, or obtaining a certified copy of this Order. This Order is granted without bond.

THE COSTS OF THIS ACTION ARE ☐assessed against Respondent ☐waived.

IF THE FULL HEARING PROCEEDING WAS REFERRED TO A MAGISTRATE, the Court has reviewed the magistrate's granting or denial of the modification or termination of the Order and finds no error of law or other defect evident on the face of the Order as set forth in Civ.R. 65.1. Accordingly, the Court adopts the magistrate's granting or denial of the modification or termination of the Order.

IT IS SO ORDERED.

_____ _____

MAGISTRATE **JUDGE**

NOTICE OF FINAL APPEALABLE ORDER

Copies of this Order, which is a final appealable order, were served on or delivered to the parties indicated above pursuant to Civ.R. 5(B) and 65.1(C)(4), including ordinary mail, on

_____ day of _____ , 20 _____

By: _____
CLERK OF COURT

TO THE CLERK:

A COPY OF THIS ORDER SHALL BE SERVED ON RESPONDENT PURSUANT TO CIV.R. 65.1(C)(3).

COPIES OF THIS ORDER SHALL BE DELIVERED ON:

☐ Petitioner
☐ Petitioner's Attorney
☐ Respondent's Attorney
☐ Counseling Program: _____
☐ Law Enforcement Agency Where Petitioner Resides: _____
☐ Law Enforcement Agency Where Petitioner Works: _____
☐ Sheriff's Office _____
☐ CSEA
☐ Other: _____

IN THE COURT OF COMMON PLEAS

_____ COUNTY, OHIO

Order of Protection

Per R.C. 3113.31(F)(3), this Order is indexed at

LAW ENFORCEMENT AGENCY WHERE INDEXED

( ) -

PHONE NUMBER

Case No.

Judge _____

State **OHIO**

MODIFIED DOMESTIC VIOLENCE CIVIL PROTECTION ORDER (R.C. 3113.31)

PETITIONER:

First Middle Last

v.

PERSON(S) PROTECTED BY THIS ORDER:

Petitioner _____ DOB: _____

Petitioner's Family or Household Members:
(☐ Additional forms attached)

_____ DOB: _____

_____ DOB: _____

_____ DOB: _____

_____ DOB: _____

RESPONDENT:

First Middle Last

Relationship to Petitioner: _____

Address where Respondent can be found:

_____

_____

RESPONDENT IDENTIFIERS

SEX	RACE	HGT	WGT
EYES	**HAIR**	**DOB**	
		/ /	
DRIVER'S LIC. NO.	**EXP. DATE**	**STATE**	

Distinguishing Features: _____

☐ **WARNING TO LAW ENFORCEMENT: RESPONDENT HAS FIREARMS ACCESS – PROCEED WITH CAUTION**

Violence Against Women Act, 18 U.S.C. 2265, Federal Full Faith & Credit Declaration: Registration of this Order is not required for enforcement.

THE COURT HEREBY FINDS:

That it has jurisdiction over the parties and subject matter, and Respondent will be provided with reasonable notice and opportunity to be heard within the time required by Ohio law. **Additional findings of this Order are set forth below.**

THE COURT HEREBY ORDERS:

That the above named Respondent be restrained from committing acts of abuse or threats of abuse against Petitioner and other protected persons named in this Order. Additional terms of this Order are set forth below.

The terms of this Order shall be effective until _____/_____/_____ **(SHALL BE SAME EXPIRATION DATE AS IN CIVIL PROTECTION ORDER OR CONSENT AGREEMENT UNLESS EXTENDED BY SEPARATE ENTRY)**

WARNING TO RESPONDENT: See the warning page attached to the front of this Order.

This proceeding came on for a hearing on _____/_____/_____ . Based on the evidence presented and consideration of factors set forth in R.C. 31131.31(E)(8), the Court finds that the motion to modify the prior Domestic Violence Civil Protection Order issued on _____/_____/_____ is well taken.

RESPONDENT SHALL NOT ABUSE, harm, attempt to harm, threaten, follow, stalk, harass, force sexual relations upon, or commit sexually oriented offenses against the protected persons named in this Order. [NCIC 01 and 02]

The Court also finds

_____
_____
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☐ **Additional findings on a separate page are included and attached herein.**

☐ **1. RESPONDENT SHALL IMMEDIATELY VACATE** the following residence:

_____
_____

☐ **2. EXCLUSIVE POSSESSION OF THE RESIDENCE** located at:

_____

_____

is granted to: _____ . Respondent shall not interfere with the protected persons' right to occupy the residence including, but not limited to canceling utilities or insurance or interrupting telecommunication (e.g. telephone, internet, cable) services mail delivery, or the delivery of any other documents or items. [NCIC 03]

☐ **3. RESPONDENT SHALL SURRENDER** all keys and garage door openers to the above residence within 24 hours of service of this Order to the law enforcement agency that serves Respondent with this Order or as follows:

_____

_____

_____

☐ **4. RESPONDENT SHALL NOT ENTER** or interfere with the residence, school, business, place of employment, day care centers, or child care providers of the protected persons named in this Order, including the buildings, grounds, and parking lots at those locations. Respondent may not violate this Order **even with the permission of a protected person**. [NCIC 04]

☐ **5. RESPONDENT SHALL STAY AWAY FROM PETITIONER** and all other protected persons named in this Order, and not be present within 500 feet or _____ (distance) of any protected person wherever those protected persons may be found, or any place Respondent knows or should know the protected persons are likely to be, **even with a protected person's permission**. If Respondent accidentally comes in contact with protected persons in any public or private place, Respondent must depart *immediately*. This Order includes encounters on public and private roads, highways, and thoroughfares. [NCIC 04]

☐ **6. RESPONDENT SHALL NOT INITIATE OR HAVE ANY CONTACT** by any means with the protected persons named in this Order or with their residences, businesses, places of employment, schools, day care centers, or child care providers. Contact includes, but is not limited to, landline, cordless, cellular, or digital telephone; text; instant messaging; fax; e-mail; voicemail; delivery service; social media; blogging; writings; electronic communications; posting a message; or communications by any other means directly or through another person. Respondent may not violate this Order **even with the permission of a protected person**. [NCIC 05]

☐ **7. RESPONDENT SHALL NOT** use any form of electronic surveillance on protected persons.

☐ **8. RESPONDENT SHALL IMMEDIATELY SURRENDER POSSESSION OF ALL KEYS TO THE FOLLOWING MOTOR VEHICLE:** _____ to the law enforcement agency that served Respondent with this Order or as follows:

_____

_____

and Petitioner is granted exclusive use of this motor vehicle.

☐ **9. RESPONDENT SHALL NOT REMOVE, DAMAGE, HIDE, OR DISPOSE OF ANY PROPERTY** owned or possessed by the protected persons named in this Order. Personal property shall be apportioned as follows:

_____

_____

_____

☐**10. RESPONDENT SHALL NOT REMOVE, DAMAGE, HIDE, OR DISPOSE OF ANY COMPANION ANIMALS OR PETS** owned or possessed by the protected persons named in this Order.

☐**11. PETITIONER IS AUTHORIZED TO REMOVE THE FOLLOWING COMPANION ANIMALS OR PETS,** owned by Petitioner, from the possession of Respondent:

_____

_____

Exchange of the listed companion animals or pets shall take place as follows:

_____

_____

☐**12. RESPONDENT SHALL NOT CAUSE OR ENCOURAGE ANY PERSON** to do any act prohibited by this Order.

☐**13. RESPONDENT SHALL NOT POSSESS, USE, CARRY, OR OBTAIN ANY DEADLY WEAPON, INCLUDING FIREARMS, AND AMMUNITION** at any time while this Order remains in effect in order to bring about a cessation of violence. Furthermore, Respondent may be subject to firearms and ammunition restrictions pursuant to 18 U.S.C. 922(g)(1) through (9), 18 U.S.C. 922(n), or R.C. 2923.13. [NCIC 07]

RESPONDENT IS EXCEPTED only for official use pursuant to 18 U.S.C. 925(a)(1), if no other firearms and ammunition prohibition apply.

☐**14. RESPONDENT SHALL TURN OVER ALL DEADLY WEAPONS, INCLUDING FIREARMS AND** AMMUNITION**,** owned by respondent or in Respondent's possession to the law enforcement agency that serves Respondent with this Order no later than _____ or as follows:

_____

_____

_____

Any law enforcement agency is authorized to accept possession of deadly weapons, including firearms, and ammunition pursuant to this paragraph and hold them in protective custody for the duration of this Order. [NCIC 07]

Law enforcement shall immediately notify the Court upon receiving Respondent's deadly weapons, including firearms, and ammunition into protective custody as set forth in this Order.

Upon the expiration or termination of this Order, Respondent may reclaim any deadly weapons, including firearms, and ammunition held in protective custody by law enforcement pursuant to this Order, unless Respondent is otherwise disqualified as verified by a check of the NCIC protection order file.

☐**15. RESPONDENT'S CONCEALED CARRY WEAPON LICENSE**, if any, is now subject to R.C. 2923.128.

☐**16. PETITIONER IS AN UNMARRIED FEMALE** who gave birth to _____ (a child) born on _____ . As set forth in R.C. 3109.042, Petitioner is the sole residential parent or legal custodian of the child until a court of competent jurisdiction issues an order designating another person as the residential parent or legal custodian.

☐**17. PARENTAL RIGHTS AND RESPONSIBILITIES ARE TEMPORARILY ALLOCATED AS FOLLOWS:** [NCIC 09]

This Order applies to the following ☐child ☐children:

☐**18. PARENTING TIME ORDERS DO NOT PERMIT RESPONDENT TO VIOLATE THE TERMS OF THIS ORDER.**

☐ (A) Respondent's parenting time rights are suspended; or

☐ (B) As a limited exception to paragraphs 5 and 6, temporary parenting time rights are established as follows: [NCIC 06]

This Order applies to the following ☐child ☐children:

☐**19. LAW ENFORCEMENT AGENCIES**, including but not limited to, _____ are ordered to assist Petitioner in gaining physical custody of the ☐child ☐children, if necessary.

☐**20. RESPONDENT SHALL SUPPORT** the protected persons named in this Order as follows:

☐**21. RESPONDENT MAY PICK UP CLOTHING** and personal effects from the above residence only in the company of a uniformed law enforcement officer within seven or _____ days of the filing of this Order. Arrangements may be made by contacting:

☐**22. RESPONDENT SHALL NOT USE OR POSSESS** ☐alcohol or ☐illegal drugs.

☐**23. RESPONDENT SHALL COMPLETE THE FOLLOWING COUNSELING PROGRAM:**

Respondent shall contact this program within _____ days after receiving this Order and immediately arrange for an initial appointment. The counseling program is requested to provide the Court a written notice when Respondent attends the initial appointment, if the Respondent fails to attend or is discharged, and when Respondent completes the program. Respondent is required to sign all necessary waivers to allow the Court to receive information from the counseling program.

☐ **24. RESPONDENT IS ORDERED TO APPEAR before Judge or Magistrate _____ on _____/_____/_____ at _____ ☐a.m. ☐p.m. to review Respondent's compliance with this counseling order. Respondent is warned: If you fail to attend the counseling program you may be held in contempt of court, or the Court may issue a warrant for your arrest.**

☐ **25. RESPONDENT SHALL NOT INTERFERE** with wireless service transfer, prevent the functionality of a device on the network, or incur further contractual or financial obligations related to the transferred numbers.

Wireless service rights to and billing responsibility for the wireless service number or numbers in use by Petitioner or any minor children in the care of Petitioner shall be transferred to Petitioner by separate order, Wireless Service Transfer Order (Civil Protection Order 29).

26. IT IS FURTHER ORDERED: [NCIC 08]

_____

_____

_____

_____

_____

27. THE CLERK OF COURT SHALL CAUSE A COPY of this Order to be served on Respondent as set forth in Civ.R. 5(B) and 65.1(C)(4)(b). The Clerk of Court shall also provide certified copies of the Petition and this Order to Petitioner upon request.

28. THIS ORDER SURVIVES a divorce, dissolution of marriage, or legal separation. Any subsequent order from this Court, another domestic relations court, or juvenile court may modify paragraphs 16, 17, 18, and 19.

29. IF THE FULL HEARING PROCEEDING WAS REFERRED TO A MAGISTRATE, the Court has reviewed the magistrate's granting of this Order and finds no error of law or other defect evident on the face of the as set forth in Civ.R. 65.1. Accordingly, the Court adopts the magistrate's granting of the Order.

30. IT IS FURTHER ORDERED NO COSTS OR FEES SHALL BE ASSESSED AGAINST PETITIONER for filing, issuing, registering, modifying, enforcing, dismissing, withdrawing, serving, subpoenaing witnesses for, or obtaining a certified copy of this Order. This Order is granted without bond.

31. THE COSTS OF THIS ACTION ARE ☐assessed against Respondent ☐waived.

IT IS SO ORDERED.

_____ _____

MAGISTRATE **JUDGE**

NOTICE TO RESPONDENT

NO PERSON PROTECTED BY THIS ORDER CAN GIVE YOU LEGAL PERMISSION TO CHANGE OR VIOLATE THE TERMS OF THIS ORDER. IF YOU VIOLATE ANY TERMS OF THIS ORDER, EVEN WITH THE PROTECTED PERSON'S PERMISSION, YOU MAY BE HELD IN CONTEMPT OR ARRESTED. ONLY THE COURT CAN CHANGE THIS ORDER. YOU ACT AT YOUR OWN RISK IF YOU DISREGARD THIS WARNING.

NOTICE OF FINAL APPEALABLE ORDER

Copies of this Order, which is a final appealable order, were served or delivered on the parties indicated pursuant to Civ.R. 65.1(C)(4)(b), including ordinary mail, on

_____ day of _____ , 20 _____

By: _____
CLERK OF COURT

TO THE CLERK:

A COPY OF THIS ORDER SHALL BE SERVED ON RESPONDENT PURSUANT TO CIV.R. 65.1(C)(4).

COPIES OF THIS ORDER SHALL BE DELIVERED ON:

- ☐ Petitioner
- ☐ Petitioner's Attorney
- ☐ Respondent's Attorney
- ☐ Counseling Program: _____
- ☐ Sheriff's Office: _____
- ☐ Law Enforcement Agency Where Petitioner Resides: _____
- ☐ Law Enforcement Agency Where Petitioner Works: _____
- ☐ CSEA
- ☐ Other: _____

IN THE COURT OF COMMON PLEAS

_____ COUNTY, OHIO

Petitioner	:	Case No. _____
Address (Safe mailing address)	:	Judge/Magistrate _____
City, State, Zip Code	:	
v.	:	**MOTION FOR CONTEMPT OF A DOMESTIC VIOLENCE OR DATING VIOLENCE CIVIL PROTECTION ORDER (R.C. 3113.31)**
Respondent	:	
Address	:	
City, State, Zip Code	:	

IF YOU ARE ASKING FOR YOUR ADDRESS TO BE KEPT CONFIDENTIAL, PLEASE GIVE ANOTHER MAILING ADDRESS WHERE YOU CAN SAFELY RECEIVE MAIL. IF YOU ARE A PARTICIPANT IN THE SECRETARY OF STATE'S ADDRESS CONFIDENTIALITY PROGRAM, PLEASE USE THE P.O. BOX ADDRESS GIVEN TO YOU. THIS FORM IS A PUBLIC RECORD.

☐ Petitioner ☐ Respondent moves this Court to find _____ in contempt of court for violating one or more of the provisions of the ☐Domestic Violence Civil Protection Order ☐Dating Violence Civil Protection Order issued on ____/____/____ for the reasons below.

☐ 1. Respondent violated the Civil Protection Order by (check all that apply):

- ☐ Abusing me or another protected person
- ☐ Harming me or attempting to harm me or another protected person
- ☐ Threatening me or another protected person
- ☐ Following me or another protected person
- ☐ Stalking me or another protected person
- ☐ Harassing me or another protected person
- ☐ Forcing sexual relations upon _____ me or another protected person
- ☐ Committing a sexually oriented offense against me or another protected person

☐ 2. Respondent failed to vacate the residence at _____

☐ 3. Respondent interfered with my exclusive possession of the residence located at

_____

Furthermore, Respondent did the following (check all that apply):
☐ Cancelled utilities
☐ Cancelled insurance
☐ Interrupted telecommunication (telephone, internet, or cable) services
☐ Interrupted mail delivery
☐ Interrupted delivery of any other documents or items

☐ 4. Respondent failed to surrender keys or garage door openers to the residence for which the Civil Protection Order Grants Petitioner exclusive use.

☐ 5. Respondent entered or interfered with the residence, school, business, place of employment, day care center, or child care provider of the protected persons.

☐ 6. Respondent violated the stay away provision of the Civil Protection Order.

☐ 7. Respondent violated the no contact provision of the Civil Protection Order by (check all that apply):
☐ Posting photographs, videos, or other images of me or another protected person on social media
☐ Referring to me or another protected persons on social media
☐ Electronically surveilling me or another protected person

☐ 8. Respondent failed to surrender the keys to the motor vehicle for which the Civil Protection Order grants Petitioner exclusive use.

☐ 9. Respondent removed, damaged, hid, or disposed of personal property, companion animals, or pets in violation of the Civil Protection Order.

☐ 10. Respondent impeded Petitioner from removing Petitioner's companion animal or pet in violation of the Civil Protection Order.

☐ 11. Respondent caused or encouraged another person to do acts prohibited by the Civil Protection Order.

☐ 12. Respondent violated the Civil Protection Order by possessing, using, carrying, obtaining, or failing to turn over a deadly weapon, including firearms, and ammunition.

☐ 13. ☐Petitioner ☐Respondent violated the temporary allocation of parental rights and responsibilities (custody).

☐ 14. ☐Petitioner ☐Respondent violated the visitation order.

☐ 15. Respondent violated the child or spousal support provision in the Civil Protection Order.

☐ 16. Respondent used or possessed alcohol or illegal drugs in violation of the Civil Protection Order.

☐ 17. ☐Petitioner ☐Respondent failed to attend the ordered counseling program in violation of the Civil Protection Order.

☐ 18. Respondent interfered with the wireless service transfer, prevented the functionality of a device on the network, or incurred further contractual or financial obligations related to the wireless service transferred in violation of the Civil Protection Order.

☐ 19. Other violations of the Civil Protection Order or additional explanation **(if you need more space, attach an additional page)**:

_____

_____

_____

_____

_____

I swear or affirm that the answers above are true, complete, and accurate to the best of my knowledge. I understand that making false statements in this document may result in a contempt of court finding against me which could result in a jail sentence and fine, and may also subject me to criminal penalties for perjury under R.C. 2921.11.

_____

SIGNATURE OF PETITIONER/RESPONDENT DATE

IF YOU DO NOT HAVE AN ATTORNEY FOR THIS CASE, PLEASE LEAVE THIS INFORMATION BELOW BLANK

_____

Signature of Attorney for Petitioner

_____

Name

_____

Address

_____

Attorney Registration Number

_____

Telephone

Case No._____

IN THE COURT OF COMMON PLEAS

_____ **COUNTY, OHIO**

Petitioner	:	Case No. _____
v.	:	Judge/Magistrate _____
Respondent	:	

REQUEST FOR SERVICE

TO THE CLERK OF COURT:

Pursuant to Civ.R. 65.1(C)(4), please serve Respondent a copy of the Motion and any other accompanying documents to the address below and as follows:

_____

☐ Personal service ☐ Certified Mail, Return Receipt Requested

☐ Other (specify) _____

☐ Other (address): _____

☐ Personal service ☐ Certified Mail, Return Receipt Requested

☐ Other (specify) _____

SPECIAL INSTRUCTIONS TO SHERIFF:

_____

_____

_____

_____

SIGNATURE OF ATTORNEY OR PETITIONER

RETURN OF SERVICE

Respondent was served on _____ .

_____ _____

Officer and Badge Number Law Enforcement Agency

_____

Date

CLERK'S CERTIFICATE OF MAILING

Service of Process was sent by _____ this _____ day of _____ .

Attest: _____ Deputy Clerk

IN THE COURT OF COMMON PLEAS

_____ COUNTY, OHIO

Petitioner	:	**Case No.** _____
_____	:	**Judge/Magistrate** _____
Address (Safe mailing address)	:	
City, State, Zip Code	:	**PETITION FOR DATING VIOLENCE CIVIL PROTECTION ORDER (R.C. 3113.31)**
Date of Birth ____/____/____	:	
v.	:	
Respondent	:	
Address (If home address unknown, put work address)	:	
City, State, Zip Code	:	
Date of Birth ____/____/____		

CHECK ALL BOXES THAT APPLY. IF YOU ARE ASKING FOR YOUR ADDRESS TO BE KEPT CONFIDENTIAL, PLEASE PUT A MAILING ADDRESS WHERE YOU CAN SAFELY RECEIVE MAIL. IF YOU ARE A PARTICIPANT IN THE SECRETARY OF STATE'S ADDRESS CONFIDENTIALITY PROGRAM, PLEASE USE THE P.O. BOX ADDRESS GIVEN TO YOU. THIS FORM IS A PUBLIC RECORD.

☐ I need or a witness needs a foreign language interpreter in _____ or an American Sign Language interpreter per Sup.R. 9.10.

1. I ☐**want** ☐**do not want** an ***ex parte* (emergency) protection order** per R.C. 3113.31. Petitioner further requests a full hearing trial be scheduled, even if the *ex parte* protection order is granted, denied, or not requested.

2. I am filing the Petition because I am in fear of continuing danger. I was 18 years old or older when the violence took place, and I am or was in a dating relationship with Respondent within one year before the violence took place.

☐3. I have listed below all family or household members who need protection other than me **(Leave blank if you are not seeking protection for other family or household members.)**

NAME	DATE OF BIRTH	RELATIONSHIP TO PETITIONER

4. Respondent committed an act of violence against me.

5. Respondent was 18 years old or older when the violence took place.

6. I have or had a romantic or intimate relationship with the Respondent.

7. My relationship with Respondent was **neither** a casual acquaintance **nor** an ordinary business or social relationship.

8. You **must** describe the relationship with Respondent. You may include: (If you need more space, attach an additional page.)
   - Whether you developed a special bond beyond a casual acquaintanceship or an ordinary business or social relationship
   - Length of the relationship with Respondent
   - Nature and frequency of contact with Respondent, including whether you had an intimate relationship with Respondent and communications that would show the relationship with Respondent was more than a casual acquaintanceship or an ordinary business or social relationship
   - Expectations about the relationship with Respondent
   - Statements or conduct by Respondent or you that could show to the Court the depth of or commitment to the relationship
   - Any other reason or explanation to prove the dating relationship

9. You **must** describe Respondent's threats or actions that made you afraid. When did it happen (if you do not know exact dates, give approximate dates)? Explain why you believe you are in danger. **If you need more space, attach an additional page.**

10. You may want to describe, **if you want and know**, about any of the following. Not describing these items in the Petition does not mean dating violence did not happen. **If you need more space, attach an additional page.**

- Respondent's history of domestic violence or other violent acts
- Respondent's history of violating court orders
- Respondent's mental health
- Respondent's threats to other persons
- Respondent's access to deadly weapons, firearms, and ammunition or use of deadly weapons and acts or threats of violence with deadly weapon
- Respondent's abuse alcohol or controlled substances (drugs)
- Respondent's violence resulted in serious physical injury, forced sex, strangulation (or choking), abuse during pregnancy, abuse of the family's pet, and/or forced entry to gain access to Petitioner or Petitioner's family and household members
- Recent separation from Respondent or relationship was recently terminated
- Respondent's obsessive and controlling behaviors, including stalking, spying, following, and/or isolating you (Petitioner)
- Respondent's threats to kill self or others

11. Petitioner further requests that the Court grant relief under R.C. 3113.31 to protect Petitioner and/or the family or household members named in this Petition from domestic violence by granting a civil protection order that: (Check all boxes that apply.)

☐a. Directs Respondent to not abuse Petitioner and the family or household members named in this Petition by harming, attempting to harm, threatening, following, stalking, harassing, forcing sexual relations upon them, or by committing sexually oriented offenses against them.

☐b. Directs Respondent to not enter, approach, or contact by any means the residence, school, business, and place of employment of Petitioner and the family or household members named in this Petition.

☐c. Directs Respondent to not approach or have contact by any means with Petitioner and the family or household members named in this Petition.

☐d. Directs Respondent to not remove, damage, hide, harm, or dispose of any companion animals or pets owned or possessed by Petitioner.

☐e. Grants Petitioner permission to take Petitioner's pets or companion animals, as described below, away from the possession of Respondent:

_____

_____

_____

☐f. Directs Respondent to complete counseling, substance abuse counseling, or other treatment or intervention as determined necessary by the Court.

☐g. Directs the wireless service provider to separate Petitioner's account from Respondent's account, per R.C. 3113.45 to 3113.459. Petitioner will assume all financial responsibility for any costs associated with the wireless service number and any costs for the device associated with the wireless service number. The Respondent's billing telephone number is _____ .

Petitioner's contact information is on page 1 of this Petition. The wireless service numbers to be transferred to Petitioner which are used by Petitioner or the minor children in the care of Petitioner is:

_____

_____

☐h. Includes the following additional provisions:

_____

_____

12. Petitioner further requests that the Court issue no mutual protection orders or other orders against Petitioner unless all of the conditions of R.C. 3113.31(E)(4) are met.

13. Petitioner further requests that if Petitioner has a victim advocate, the Court permit the victim advocate to accompany Petitioner at all stages of these proceedings as required by R.C. 3113.31(M).

14. Petitioner further requests at the ex parte hearing or full hearing that the Court grant such other relief as the Court considers equitable and fair, including orders or directives to law enforcement.

15. Petitioner has listed court cases (including children service/CPS case, animal cruelty, sexually oriented offense, no contact order, and protection order) and other legal matters regarding Respondent which may relate to this case: (If you need more space, attach an additional page.)

CASE NAME	CASE NUMBER	COURT/COUNTY	TYPE OF CASE	RESULT OF CASE

I swear or affirm that the answers above are true, complete, and accurate to the best of my knowledge. I understand that making false statements in this document may result in a contempt of court finding against me, which could result in a jail sentence and fine, and may also subject me to criminal penalties for perjury under R.C. 2921.11.

SIGNATURE OF PETITIONER	**DATE**

IF YOU DO NOT HAVE AN ATTORNEY, PLEASE LEAVE THE INFORMATION BELOW BLANK.

Signature of Attorney	Attorney's Registration Number
Name of Attorney	Attorney's Telephone
Attorney's Address	Attorney's Fax
City, State, Zip Code	Attorney's Email

IN THE COURT OF COMMON PLEAS

_____ COUNTY, OHIO

Petitioner	:	Case No. _____
v.	:	Judge/Magistrate _____
Respondent	:	

REQUEST FOR SERVICE

TO THE CLERK OF COURT:
Pursuant to Civ.R. 65.1(C)(2), please serve Respondent a copy of the Petition, ex parte protection order, if granted, and any other accompanying documents to the address below and as follows:

_____

☐ Personal service ☐ Certified Mail, Return Receipt Requested
☐ Other (specify) _____

☐ Other (address): _____
☐ Personal Service ☐ Certified Mail, Return Receipt Requested
☐ Other (specify) _____

SPECIAL INSTRUCTIONS TO SHERIFF:

_____

_____

_____

_____
SIGNATURE OF ATTORNEY OR PETITIONER

RETURN OF SERVICE

Respondent was served on _____ .

_____ _____
Officer and Badge Number Law Enforcement Agency

_____
Date

CLERK'S CERTIFICATE OF MAILING

Service of Process was sent by _____ this _____ day of _____ .

Attest: _____ Deputy Clerk

IN THE COURT OF COMMON PLEAS

_____ COUNTY, OHIO

Order of Protection

Case No.

Per R.C. 3113.31(F)(3), this Order is indexed at

Judge/Magistrate _____

State **OHIO**

LAW ENFORCEMENT AGENCY WHERE INDEXED

( ) -

PHONE NUMBER

DATING VIOLENCE CIVIL PROTECTION ORDER (DTCPO) *EX PARTE* (R.C. 3113.31)

PETITIONER:

First Middle Last

v.

PERSON(S) PROTECTED BY THIS ORDER:

Petitioner: _____ DOB: _____

Petitioner's Family or Household Members:
(☐ Additional forms attached.)

_____ DOB: _____

_____ DOB: _____

_____ DOB: _____

_____ DOB: _____

RESPONDENT:

First Middle Last

RESPONDENT IDENTIFIERS

SEX	RACE	HGT	WGT
EYES	HAIR	DOB	
		/ /	
DRIVER'S LIC. NO.		EXP. DATE	STATE

Petitioner is or was in a dating relationship with Respondent within 12 months preceding the conduct resulting in this Order being requested.

Address where Respondent can be found:

_____

_____

Distinguishing features:

_____

☐ **WARNING TO LAW ENFORCEMENT: RESPONDENT HAS FIREARMS ACCESS – PROCEED WITH CAUTION**

Violence Against Women Act, 18 U.S.C. 2265, Federal Full Faith & Credit Declaration: Registration of this Order is not required for enforcement.

THE COURT HEREBY FINDS:

That it has jurisdiction over the parties and subject matter, and Respondent will be provided with reasonable notice and opportunity to be heard within the time required by Ohio law. **Additional findings of this Order are set forth below.**

THE COURT HEREBY ORDERS:

That the above named Respondent be restrained from committing acts of abuse or threats of abuse against Petitioner and other protected persons named in this Order. **Additional terms of this Order are set forth below.**

The terms of this Order shall be effective until _____ / _____ / _____ **UNLESS EXTENDED BY SEPARATE ENTRY.**

WARNING TO RESPONDENT: See the warning page attached to the front of this Order.

This proceeding came on for an *ex parte* hearing on _____/_____/_____ (Respondent not being present), upon the filing of a Petition by Petitioner for a Dating Violence Civil Protection Order (DTVCPO) against the Respondent, pursuant to R.C. 3113.31. In accordance with R.C. 3113.31(D)(1), the Court held an *ex parte* hearing on the same day that the Petition was filed.

The Court finds that the protected persons herein are in immediate and present danger of domestic violence and for good cause shown, the following temporary orders are necessary to protect the persons named in this Order from dating violence.

RESPONDENT SHALL NOT ABUSE, harm, attempt to harm, threaten, follow, stalk, harass, force sexual relations upon, or commit sexually oriented offenses against the protected persons named in this Order. [NCIC 01 and 02]

The Court also finds:

☐ **Additional findings on a separate page are included and attached herein.**

☐ **1.** **RESPONDENT SHALL NOT ENTER** or interfere with the residence, school, business, place of employment, day care centers, or child care providers of the protected persons named in this Order, including the buildings, grounds, and parking lots at those locations. Respondent may not violate this Order **even with the permission of a protected person**. [NCIC 04]

☐ **2.** **RESPONDENT SHALL STAY AWAY FROM** ALL protected persons named in this Order, and not be present within 500 feet or _____ (distance) of any protected person wherever persons are likely to be, **even with a protected person's permission**. If Respondent accidentally comes in contact with protected persons in any public or private place, Respondent must depart *immediately*. This Order includes encounters on public and private roads, highways, and thoroughfares. [NCIC 04]

☐ **3.** **RESPONDENT SHALL NOT INITIATE OR HAVE ANY CONTACT** by any means with the protected persons named in this Order or with their residences, businesses, places of employment, schools, day care centers, or child care providers. Contact includes, but is not limited to, landline, cordless, cellular or digital telephone; text; instant messaging; fax; e-mail; voicemail; delivery service; social media; blogging; writings; electronic communications; posting a message; or communications by any other means directly or through another person. Respondent may not violate this Order **even with the permission of a protected person**. [NCIC 05]

☐ **4.** **RESPONDENT SHALL NOT** use any form of electronic surveillance on protected persons.

☐ **5.** **RESPONDENT SHALL NOT REMOVE, DAMAGE, HIDE, OR DISPOSE OF ANY PROPERTY, COMPANION ANIMALS, OR PETS** owned or possessed by the protected persons named in this Order.

☐ **6.** **THE PETITIONER IS AUTHORIZED TO REMOVE THE FOLLOWING COMPANION ANIMALS OR PETS** owned by Petitioner, from the possession of Respondent:

_____

Exchange of the listed companion animals or pets shall take place as follows:

_____

_____

☐ **7.** **RESPONDENT SHALL NOT CAUSE OR ENCOURAGE ANY PERSON** to do any act prohibited by this Order.

☐ **8.** **RESPONDENT SHALL NOT POSSESS, USE, CARRY, OR OBTAIN ANY DEADLY WEAPON** at any time while the Order remains in effect in order to bring about a cessation of violence. Furthermore, Respondent may be subject to firearms and ammunition restrictions pursuant to 18 U.S.C. 922(g)(1) through (9), 18 U.S.C. 922(n), or R.C. 2923.13. [NCIC 07]

RESPONDENT IS EXCEPTED only for official use pursuant to 18 U.S.C. 925(a)(1), if no other firearms and ammunition prohibitions apply.

☐ **9.** **RESPONDENT SHALL TURN OVER ALL DEADLY WEAPONS** owned by Respondent or in Respondent's possession to the law enforcement agency that serves Respondent with this Order no later than _____ or as follows: _____

_____

_____

Any law enforcement agency is authorized to accept possession of deadly weapons pursuant to this paragraph and hold them in protective custody for the duration of this Order. [NCIC 07]

Law enforcement shall immediately notify the Court upon receiving Respondent's deadly weapons for protective custody as set forth in this Order.

Upon the expiration or termination of this Order and if a full hearing order is not issued or consent agreement approved, Respondent may reclaim any deadly weapons held in protective custody by law enforcement pursuant to this Order unless Respondent is otherwise disqualified as verified by a check of the NCIC protection order file.

10. RESPONDENT'S CONCEALED CARRY WEAPON LICENSE, if any, is not subject to R.C. 2923.128.

☐ **11. RESPONDENT SHALL NOT USE OR POSSESS** ☐ alcohol or ☐ illegal drugs.

☐ **12. RESPONDENT SHALL NOT INTERFERE** with wireless service transfer, prevent the functionality of a device on the network, or incur further contractual or financial obligations related to the transferred numbers.

Wireless service rights to and billing responsibility for the wireless service number or numbers in use by the Petitioner or any minor children in the care of the Petitioner shall be transferred to Petitioner by separate order, Wireless Service Transfer Order (Form 10-E).

☐ **13. IT IS FURTHER ORDERED:** [NCIC 08]

_____

_____

_____

_____

_____

14. ALL DISCOVERY SHALL STRICTLY COMPLY with Civ.R. 65.1(D).

15. THE CLERK OF COURT SHALL CAUSE A COPY OF THE PETITION, THIS ORDER, AND ANY OTHER ACCOMPANYING DOCUMENT to be served on the Respondent as set forth in Civ.R. 65.1(C)(2). The Clerk of Court shall also provide copies of the Petition and certified copies of this Order to Petitioner upon request.

16. THIS ORDER DOES NOT EXPIRE because of a failure to serve notice of the full hearing upon the Respondent before the date set for the full hearing or because the Court grants a continuance, as set forth in R.C. 3113.31(D)(2)(b).

17. IT IS FURTHER ORDERED THAT NO COSTS OR FEES SHALL BE ASSESSED AGAINST THE PETITIONER for filing, issuing, registering, modifying, enforcing, dismissing, withdrawing, serving this protection order, or subpoenaing witnesses or obtaining a certified copy of this protection order. This Order is granted without bond.

IT IS SO ORDERED.

_____

JUDGE/MAGISTRATE

NOTICE TO RESPONDENT

NO PERSON PROTECTED BY THIS ORDER CAN GIVE YOU LEGAL PERMISSION TO CHANGE OR VIOLATE THE TERMS OF THIS ORDER. IF YOU VIOLATE ANY TERM OF THIS ORDER EVEN WITH THE PROTECTED PERSON'S PERMISSION, YOU MAY BE HELD IN CONTEMPT OR ARRESTED. ONLY THE COURT CAN CHANGE THIS ORDER. YOU ACT AT YOUR OWN RISK IF YOU DISREGARD THIS WARNING.

A FULL HEARING on this Order, and on all other issues raised by the Petition, shall be held before Judge or Magistrate:

_____

on the _____ day of _____ , 20 _____

at _____ a.m./p.m. at the following location:

_____

_____

On the day of the Full Hearing, come prepared to (1) tell the Court what happened, (2) bring with you any witnesses, evidence, and documentation to prove your case, and (3) be aware that the other party or party's attorney may ask you questions. If you do not have an attorney, you may ask for a brief continuance to obtain an attorney per R.C. 3113.31(D)(2)(a)(iii) or you may represent yourself.

Parties do not have to give discovery, answer questions, or give information to the other party or the other party's lawyer unless ordered by judge or magistrate (Civ.R. 65.1(D)(2)).

TO THE CLERK:

A COPY OF PETITION, THIS ORDER, AND ANY OTHER ACCOMPANYING DOCUMENTS SHALL BE SERVED ON RESPONDENT PURSUANT TO CIV.R. 65.1(C)(2):

COPIES OF THIS ORDER AND ANY OTHER ACCOMPANYING DOCUMENTS SHALL BE DELIVERED TO:

- ☐ Petitioner
- ☐ Petitioner's Attorney
- ☐ Law Enforcement Agency Where Petitioner Resides:

_____

- ☐ Sheriff's Office: _____
- ☐ Law Enforcement Agency Where Petitioner Works:

_____

- ☐ Other: _____

IN THE COURT OF COMMON PLEAS

_____ COUNTY, OHIO

Order of Protection

Per R.C. 3113.31(F)(3), this Order is indexed at

LAW ENFORCEMENT AGENCY WHERE INDEXED

( ) -

PHONE NUMBER

Case No.

Judge

State **OHIO**

DATING VIOLENCE CIVIL PROTECTION ORDER (DTCPO) FULL HEARING (R.C. 3113.31)

PETITIONER:

First Middle Last

v.

RESPONDENT:

First Middle Last

PERSON(S) PROTECTED BY THIS ORDER:

Petitioner _____ DOB: _____

Petitioner's Family or Household Members:
(☐ Additional forms attached)

_____ DOB: _____

_____ DOB: _____

_____ DOB: _____

_____ DOB: _____

RESPONDENT IDENTIFIERS

SEX	RACE	HGT	WGT
EYES	HAIR	DOB	
		/ /	
DRIVER'S LIC. NO.		EXP. DATE	STATE

Petitioner is or was in a dating relationship with Respondent within 12 months preceding the conduct resulting in this Order being requested.

Address where Respondent can be found:

_____

_____

Distinguishing Features: _____

☐ **WARNING TO LAW ENFORCEMENT: RESPONDENT HAS FIREARMS ACCESS – PROCEED WITH CAUTION**

Violence Against Women Act, 18 U.S.C. 2265, Federal Full Faith & Credit Declaration: Registration of this Order is not required for enforcement.

THE COURT HEREBY FINDS:

That it has jurisdiction over the parties and subject matter, and Respondent was provided with reasonable notice and opportunity to be heard within the time required by Ohio law. **Additional findings of this Order are set forth below.**

THE COURT HEREBY ORDERS:

That the above named Respondent be restrained from committing acts of abuse or threats of abuse against Petitioner and other protected persons named in this Order. Additional terms of this Order are set forth below.

The terms of this Order shall be effective until ____/____/____ **(DATE CERTAIN – 5 YEARS MAXIMUM)**

WARNING TO RESPONDENT: See the warning page attached to the front of this Order.

This proceeding came on for a hearing on _____ before the Court and the *Ex Parte* Order issued on _____ . The following individuals were present:

_____

_____

The Court hereby makes the following findings of fact regarding the granting of the Order, including the facts upon which the Court concluded the existence of the dating relationship:

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

☐ **Additional findings on a separate page are included and attached herein.**

The Court further finds by a preponderance of the evidence that 1) Petitioner is or was in a dating relationship with Respondent, 2) Petitioner or Petitioner's family or household members are in danger and have been a victim as defined in R.C. 3113.31(A) committed by Respondent, and 3) the following orders are equitable, fair, and necessary to protect the persons named in this Order from dating violence.

RESPONDENT SHALL NOT ABUSE, harm, attempt to harm, threaten, follow, stalk, harass, force sexual relations upon, or commit sexually oriented offenses against the protected persons named in this Order. [NCIC 01 and 02]

ALL OF THE PROVISIONS CHECKED BELOW ALSO APPLY TO RESPONDENT

☐ **1. RESPONDENT SHALL NOT ENTER** or interfere with the residence, school, business, place of employment, day care centers, or child care providers of the protected persons named in this Order, including the buildings, grounds, and parking lots at those locations. Respondent may not violate this Order **even with the permission of a protected person**. [NCIC 04]

☐ **2. RESPONDENT SHALL STAY AWAY FROM ALL** protected persons named in this Order, and not be present within 500 feet or _____ (distance) of any protected persons wherever those protected persons may be found, or any place Respondent knows or should know the protected persons are likely to be, **even with a protected person's permission**. If Respondent accidentally comes in contact with protected persons in any public or private place, Respondent must depart *immediately*. This Order includes encounters on public and private roads, highways, and thoroughfares. [NCIC 04]

☐ **3. RESPONDENT SHALL NOT INITIATE OR HAVE ANY CONTACT** by any means with the protected persons named in this Order or with their residences, businesses, places of employment, schools, day care centers, or child care providers. Contact includes, but is not limited to, landline, cordless, cellular or digital telephone; text; instant messaging; fax; e-mail; voicemail; delivery service; social media; blogging; writings; electronic communications; posting a message; or communications by any other means directly or through another person.

Respondent may not violate this Order **even with the permission of a protected person**. [NCIC 05]

☐ **4. RESPONDENT SHALL NOT** use any form of electronic surveillance on protected persons.

☐ **5. RESPONDENT SHALL NOT REMOVE, DAMAGE, HIDE, OR DISPOSE OF ANY PROPERTY, COMPANION ANIMALS, OR PETS** owned or possessed by the protected persons named in this Order.

_____

☐ **6. PETITIONER IS AUTHORIZED TO REMOVE THE FOLLOWING COMPANION ANIMALS OR PETS** owned by Petitioner from the possession of Respondent:

_____

Exchange of the listed companion animals or pets shall take place as follows:

_____

_____

☐ **7. RESPONDENT SHALL NOT CAUSE OR ENCOURAGE ANY PERSON** to do any act prohibited by this Order.

☐ **8. RESPONDENT SHALL NOT POSSESS, USE, CARRY, OR OBTAIN ANY DEADLY WEAPON,** at any time while this Order remains in effect in order to bring about a cessation of violence. Furthermore, Respondent may be subject to firearms and ammunition restrictions pursuant to 18 U.S.C. 922(g)(1) through (9), 18 U.S.C. 922(n), or R.C. 2923.13. [NCIC 07]

RESPONDENT IS EXCEPTED only for official use pursuant to 18 U.S.C. 925(a)(1), if no other firearms and ammunition prohibitions apply.

☐ **9. RESPONDENT SHALL TURN OVER ALL DEADLY WEAPONS** owned by Respondent or in Respondent's possession to the law enforcement agency that serves Respondent with this Order no later than _____ or as follows:

_____

_____

Any law enforcement agency is authorized to accept possession of deadly weapons pursuant to this paragraph and hold them in protective custody for the duration of this Order. [NCIC 07]

Law enforcement shall immediately notify the Court upon receiving Respondent's deadly weapons for protective custody as set forth in this Order.

Upon the expiration or termination of this Order, Respondent may reclaim any deadly weapons held in protective custody by law enforcement pursuant to this Order unless Respondent is otherwise disqualified as verified by a check of the NCIC protection order file.

☐ **10. RESPONDENT'S CONCEALED CARRY WEAPON LICENSE,** if any, is now subject to R.C. 2923.128.

☐ **11. RESPONDENT SHALL NOT USE OR POSSESS** ☐ alcohol or ☐ illegal drugs.

☐ **12. RESPONDENT SHALL COMPLETE THE FOLLOWING COUNSELING PROGRAM:**

_____

_____

Respondent shall contact this program within _____ days after receiving this Order and immediately arrange for an initial appointment. The counseling program is requested to provide the Court a written notice when Respondent attends the initial appointment, if Respondent fails to attend or is discharged, and when Respondent completes the program. Respondent is required to sign all necessary waivers to allow the Court to receive information from the counseling program.

☐ **13. RESPONDENT IS ORDERED TO APPEAR before Judge or Magistrate _____ on _____/_____/_____ at _____ ☐ a.m. ☐ p.m. to review Respondent's compliance with the terms of this Order. RESPONDENT IS WARNED: If you fail to attend the counseling program, you may be held in contempt of court or the Court may issue a warrant for your arrest.**

☐ **14. RESPONDENT SHALL NOT INTERFERE** with wireless service transfer, prevent the functionality of a device on the network, or incur further contractual or financial obligations related to the transferred numbers.

Wireless service rights to and billing responsibility for the wireless service number or numbers in use by Petitioner or any minor children in the care of Petitioner shall be transferred to Petitioner by separate order, Wireless Service Transfer Order (Form 10-E).

☐ **15. IT IS FURTHER ORDERED:** [NCIC 08]

_____

_____

_____

_____

_____

16. THE CLERK OF COURT SHALL CAUSE A COPY OF THIS ORDER to be served on Respondent as set forth in Civ.R. 5(B) and 65.1(C)(3). The Clerk of Court shall also provide certified copies of this Order to Petitioner upon request.

17. IF THE FULL HEARING PROCEEDING WAS REFERRED TO A MAGISTRATE, the Court has reviewed the magistrate's granting of this Order and finds no error of law or other defect evident on the face of the Order as set forth in Civ.R. 65.1. Accordingly, the Court adopts the magistrate's granting of the Order.

18. **IT IS FURTHER ORDERED NO COSTS OR FEES SHALL BE ASSESSED AGAINST PETITIONER** for filing, issuing, registering, modifying, enforcing, dismissing, withdrawing, serving, subpoenaing witnesses for, or obtaining a certified copy of this Order. This Order is granted without bond.

19. **THE COSTS OF THIS ACTION ARE** ☐assessed against Respondent ☐waived.

IT IS SO ORDERED.

_____ _____

MAGISTRATE **JUDGE**

NOTICE TO RESPONDENT

NO PERSON PROTECTED BY THIS ORDER CAN GIVE YOU LEGAL PERMISSION TO CHANGE OR VIOLATE THE TERMS OF THIS ORDER. IF YOU VIOLATE ANY TERM OF THIS ORDER EVEN WITH THE PROTECTED PERSON'S PERMISSION, YOU MAY BE HELD IN CONTEMPT OR ARRESTED. ONLY THE COURT CAN CHANGE THIS ORDER. YOU ACT AT YOUR OWN RISK IF YOU DISREGARD THIS WARNING.

NOTICE OF FINAL APPEALABLE ORDER

Copies of this Order, which is a final appealable order, were served on or delivered to the parties indicated above pursuant to Civ.R. 5(B) and 65.1(C)(3), including ordinary mail, on

_____ day of _____ , 20 _____

By: _____
CLERK OF COURT

TO THE CLERK:

A COPY OF THIS ORDER SHALL BE SERVED ON RESPONDENT PURSUANT TO CIV.R. 65.1(C)(3).

COPIES OF THIS ORDER SHALL BE DELIVERED ON:

☐ Petitioner
☐ Petitioner's Attorney
☐ Respondent's Attorney
☐ Counseling Program: _____
☐ Sheriff's Office
_____
☐ Law Enforcement Agency Where Petitioner Resides:
_____
☐ Law Enforcement Agency Where Petitioner Works:
_____
☐ Other: _____

IN THE COURT OF COMMON PLEAS

_____ COUNTY, OHIO

Order of Protection

Per R.C. 3113.31(F)(3), this Order is indexed at

LAW ENFORCEMENT AGENCY WHERE INDEXED

( ) -

PHONE NUMBER

Case No.

Judge

State **OHIO**

CONSENT AGREEMENT AND DATING VIOLENCE CIVIL PROTECTION ORDER (R.C. 3113.31)

PETITIONER:

First Middle Last

v.

RESPONDENT:

First Middle Last

Petitioner is or was in a dating relationship with Respondent within 12 months preceding the conduct resulting in this Order being requested.

Address where Respondent can be found:

PERSON(S) PROTECTED BY THIS ORDER:

Petitioner _____ DOB: _____

Petitioner's Family or Household Members:
(☐ Additional forms attached)

_____ DOB: _____

_____ DOB: _____

_____ DOB: _____

_____ DOB: _____

RESPONDENT IDENTIFIERS

SEX	RACE	HGT	WGT
EYES	HAIR	DOB	
		/ /	
DRIVER'S LIC. NO.	EXP. DATE	STATE	

Distinguishing Features: _____

☐ **WARNING TO LAW ENFORCEMENT: RESPONDENT HAS FIREARMS ACCESS – PROCEED WITH CAUTION**

Violence Against Women Act, 18 U.S.C. 2265, Federal Full Faith & Credit Declaration: Registration of this Order is not required for enforcement.

THE COURT HEREBY FINDS:

That it has jurisdiction over the parties and subject matter, and Respondent was provided with reasonable notice and opportunity to be heard within the time required by Ohio law. **Additional findings of this Order are set forth below.**

THE COURT HEREBY ORDERS:

That the above named Respondent be restrained from committing acts of abuse or threats of abuse against Petitioner and other protected persons named in this Order. Additional terms of this Order are set forth below.

The terms of this Order shall be effective until _____ / _____ / _____ **(DATE CERTAIN – 5 YEARS MAXIMUM)**

WARNING TO RESPONDENT: See the warning page attached to the front of this Order.

This proceeding came on for a hearing on _____/_____/_____ before the Court and the *Ex Parte* Order issued on _____/_____/_____. The following individuals were present:

☐ The parties agree to waive their notice and hearing rights.

Petitioner is or was in a dating relationship with Respondent within 12 months preceding the conduct resulting in this Order being requested.

The Court also finds:

☐ **Additional findings on a separate page are included and attached herein.**

RESPONDENT SHALL NOT ABUSE, harm, attempt to harm, threaten, follow, stalk, harass, force sexual relations upon, or commit sexually oriented offenses against the protected persons named in this Order. [NCIC 01 and 02]

ALL OF THE PROVISIONS CHECKED BELOW ALSO APPLY TO RESPONDENT

☐ **1. RESPONDENT SHALL NOT ENTER** or interfere with the residence, school, business, place of employment, day care centers, or child care providers of the protected persons named in this Order, including the buildings, grounds, and parking lots at those locations. Respondent may not violate this Order **even with the permission of a protected person**. [NCIC 04]

☐ **2. RESPONDENT SHALL STAY AWAY FROM ALL** protected persons named in this Order, and not be present within 500 feet or _____ (distance) of any protected persons wherever those protected persons may be found, or any place Respondent knows or should know the protected persons are likely to be, **even with a protected person's permission**. If Respondent accidentally comes in contact with protected persons in any public or private place, Respondent must depart *immediately*. This Order includes encounters on public and private roads, highways, and thoroughfares. [NCIC 04]

☐ **3. RESPONDENT SHALL NOT INITIATE OR HAVE ANY CONTACT** by any means with the protected persons named in this Order or with their residences, businesses, places of employment, schools, day care centers, or child care providers. Contact includes, but is not limited to, landline, cordless, cellular or digital telephone; text; instant messaging; fax; e-mail; voicemail; delivery service; social media; blogging; writings; electronic communications; posting a message; or communications by any other means directly or through another person.

Respondent may not violate this Order **even with the permission of a protected person**. [NCIC 05]

☐ **4. RESPONDENT SHALL NOT** use any form of electronic surveillance on protected persons.

☐ **5. RESPONDENT SHALL NOT REMOVE, DAMAGE, HIDE, OR DISPOSE OF ANY PROPERTY, COMPANION ANIMALS, OR PETS** owned or possessed by the protected persons named in this Order.

☐ **6. PETITIONER IS AUTHORIZED TO REMOVE THE FOLLOWING COMPANION ANIMALS OR PETS** owned by Petitioner from the possession of Respondent:

_____

Exchange of the listed companion animals or pets shall take place as follows:

_____

_____

☐ **7. RESPONDENT SHALL NOT CAUSE OR ENCOURAGE ANY PERSON** to do any act prohibited by this Order.

☐ **8. RESPONDENT SHALL NOT POSSESS, USE, CARRY, OR OBTAIN ANY DEADLY WEAPON** at any time while this Order remains in effect in order to bring about a cessation of violence. Furthermore, Respondent may be subject to firearms and ammunition restrictions pursuant to 18 U.S.C. 922(g)(1) through (9), 18 U.S.C. 922(n), or R.C. 2923.13. [NCIC 07]

RESPONDENT IS EXCEPTED only for official use pursuant to 18 U.S.C. 925(a)(1), if no other firearms and ammunition prohibitions apply.

☐ **9. RESPONDENT SHALL TURN OVER ALL DEADLY WEAPONS** owned by Respondent or in Respondent's possession to the law enforcement agency that serves Respondent with this Order no later than _____ or as follows:

_____

_____

Any law enforcement agency is authorized to accept possession of deadly weapons pursuant to this paragraph and hold them in protective custody for the duration of this Order. [NCIC 07]

Law enforcement shall immediately notify the Court upon receiving Respondent's deadly weapons for protective custody as set forth in this Order.

Upon the expiration or termination of this Order, Respondent may reclaim any deadly weapons held in protective custody by law enforcement pursuant to this Order unless Respondent is otherwise disqualified as verified by a check of the NCIC protection order file.

☐ **10. RESPONDENT'S CONCEALED CARRY WEAPON LICENSE,** if any, is now subject to R.C 2923.128.

☐ **11. RESPONDENT SHALL NOT USE OR POSSESS** ☐ alcohol or ☐ illegal drugs.

☐ **12. RESPONDENT SHALL COMPLETE THE FOLLOWING COUNSELING PROGRAM:**

_____

Respondent shall contact this program within _____ days after receiving this Order and immediately arrange for an initial appointment. The counseling program is requested to provide the Court a written notice when Respondent attends the initial appointment, if Respondent fails to attend or is discharged, and when Respondent completes the program. Respondent is required to sign all necessary waivers to allow the Court to receive information from the counseling program.

☐ **13. RESPONDENT IS ORDERED TO APPEAR before Judge or Magistrate _____ on _____/_____/_____ at _____ ☐ a.m. ☐ p.m. to review Respondent's compliance with the terms of this Order. RESPONDENT IS WARNED: If you fail to attend the counseling program, you may be held in contempt of court or the Court may issue a warrant for your arrest.**

☐ **14. RESPONDENT SHALL NOT INTERFERE** with wireless service transfer, prevent the functionality of a device on the network, or incur further contractual or financial obligations related to the transferred numbers.

Wireless service rights to and billing responsibility for the wireless service number or numbers in use by Petitioner or any minor children in the care of Petitioner shall be transferred to Petitioner by separate order, Wireless Service Transfer Order (Form 10-E).

☐ **15. IT IS FURTHER ORDERED:** [NCIC 08]

_____

_____

_____

16. THE CLERK OF COURT SHALL CAUSE A COPY OF THIS ORDER to be served on Respondent as set forth in Civ.R. 5(B) and 65.1(C)(3). The Clerk of Court shall also provide certified copies of this Order to Petitioner upon request.

17. IF THE FULL HEARING PROCEEDING WAS REFERRED TO A MAGISTRATE, the Court has reviewed the magistrate's granting of this Order and finds no error of law or other defect evident on the face of the Order as set forth in Civ.R. 65.1. Accordingly, the Court adopts the magistrate's granting of the Order.

18. IT IS FURTHER ORDERED NO COSTS OR FEES SHALL BE ASSESSED AGAINST PETITIONER for filing, issuing, registering, modifying, enforcing, dismissing, withdrawing, serving, subpoenaing witnesses for, or obtaining a certified copy of this Order. This Order is granted without bond.

19. THE COSTS OF THIS ACTION ARE ☐ assessed against Respondent ☐ waived.

IT IS SO ORDERED.

_____ _____

MAGISTRATE **JUDGE**

Case No._____

NOTICE TO RESPONDENT

NO PERSON PROTECTED BY THIS ORDER CAN GIVE YOU LEGAL PERMISSION TO CHANGE OR VIOLATE THE TERMS OF THIS ORDER. IF YOU VIOLATE ANY TERM OF THIS ORDER EVEN WITH THE PROTECTED PERSON'S PERMISSION, YOU MAY BE HELD IN CONTEMPT OR ARRESTED. ONLY THE COURT CAN CHANGE THIS ORDER. YOU ACT AT YOUR OWN RISK IF YOU DISREGARD THIS WARNING.

I have read this Consent Agreement and Civil Protection Order and agree to its terms.

SIGNATURE OF PETITIONER

Address of Petitioner (Safe Mailing Address)

Signature of Attorney for Petitioner

Address of Attorney for Petitioner

I have read this Consent Agreement and Civil Protection Order and agree to its terms.

SIGNATURE OF RESPONDENT

Address of Respondent

Signature of Attorney for Respondent

Address of Attorney for Respondent

NOTICE OF FINAL APPEALABLE ORDER

Copies of this Order, which is a final appealable order, were served on or delivered to the parties indicated above pursuant to Civ.R. 5(B) and 65.1(C)(3), including ordinary mail, on

_____ day of _____ , 20 _____

By: _____
CLERK OF COURT

TO THE CLERK:

A COPY OF THIS ORDER SHALL BE SERVED ON RESPONDENT PURSUANT TO CIV.R. 65.1(C)(3).

COPIES OF THIS ORDER SHALL BE DELIVERED ON:

- ☐ Petitioner
- ☐ Petitioner's Attorney
- ☐ Respondent's Attorney
- ☐ Counseling Program: _____
- ☐ Sheriff's Office
- ☐ Law Enforcement Agency Where Petitioner Resides: _____
- ☐ Law Enforcement Agency Where Petitioner Works: _____
- ☐ Other: _____

IN THE COURT OF COMMON PLEAS

_____ COUNTY, OHIO

Order of Protection

Per R.C. 3113.31(F)(3), this Order is indexed at

LAW ENFORCEMENT AGENCY WHERE INDEXED

( ) -

PHONE NUMBER

Case No.

Judge _____

State **OHIO**

MODIFIED DATING VIOLENCE CIVIL PROTECTION ORDER (R.C. 3113.31)

PETITIONER:

First Middle Last

v.

RESPONDENT:

First Middle Last

PERSON(S) PROTECTED BY THIS ORDER:

Petitioner: _____ DOB: _____

Petitioner's Family or Household Members:
(☐ Additional forms attached)

_____ DOB: _____

_____ DOB: _____

_____ DOB: _____

_____ DOB: _____

RESPONDENT IDENTIFIERS

SEX	RACE	HGT	WGT
EYES	HAIR	DOB	
		/ /	
DRIVER'S LIC. NO.	EXP. DATE	STATE	

Petitioner is or was in a dating relationship with Respondent within 12 months preceding the conduct resulting in this Order being requested.

Address where Respondent can be found:

_____

_____

Distinguishing Features:

_____

_____

☐ **WARNING TO LAW ENFORCEMENT: RESPONDENT HAS FIREARMS ACCESS – PROCEED WITH CAUTION**

Violence Against Women Act, 18 U.S.C. 2265, Federal Full Faith & Credit Declaration: Registration of this Order is not required for enforcement.

THE COURT HEREBY FINDS:

That it has jurisdiction over the parties and subject matter, and Respondent will be provided with reasonable notice and opportunity to be heard within the time required by Ohio law. **Additional findings of this Order are set forth below.**

THE COURT HEREBY ORDERS:

That the above named Respondent be restrained from committing acts of abuse or threats of abuse against Petitioner and other protected persons named in this Order. Additional terms of this Order are set forth below.

The terms of this Order shall be effective until ____/____/____ (**SHALL BE SAME EXPIRATION DATE AS IN CIVIL PROTECTION ORDER OR CONSENT AGREEMENT UNLESS EXTENDED BY SEPARATE ENTRY**)

WARNING TO RESPONDENT: See the warning page attached to the front of this Order.

This proceeding came on for a hearing on _____/_____/_____ . Based on the evidence presented and consideration of factors set forth in R.C. 31131.31(E)(8), the Court finds that the motion to modify the prior Dating Violence Civil Protection Order issued on _____/_____/_____ is well taken.

The Court also finds:

☐ **Additional findings on a separate page are included and attached herein.**

RESPONDENT SHALL NOT ABUSE, harm, attempt to harm, threaten, follow, stalk, harass, force sexual relations upon, or commit sexually oriented offenses against the protected persons named in this Order. [NCIC 01 and 02]

ALL OF THE PROVISIONS CHECKED BELOW ALSO APPLY TO RESPONDENT

☐ **1. RESPONDENT SHALL NOT ENTER** or interfere with the residence, school, business, place of employment, day care centers, or child care providers of the protected persons named in this Order, including the buildings, grounds, and parking lots at those locations. Respondent may not violate this Order **even with the permission of a protected person**. [NCIC 04]

☐ **2. RESPONDENT SHALL STAY AWAY FROM PETITIONER** and all other protected persons named in this Order, and not be present within 500 feet or _____ (distance) of any protected person wherever those protected persons may be found, or any place Respondent knows or should know the protected persons are likely to be, **even with a protected person's permission**. If Respondent accidentally comes in contact with protected persons in any public or private place, Respondent must depart *immediately*. This Order includes encounters on public and private roads, highways, and thoroughfares. [NCIC 04]

☐ **3. RESPONDENT SHALL NOT INITIATE OR HAVE ANY CONTACT** by any means with the protected persons named in this Order or with their residences, businesses, places of employment, schools, day care centers, or child care providers. Contact includes, but is not limited to, landline, cordless, cellular, or digital telephone; text; instant messaging; fax; e-mail; voicemail; delivery service; social media; blogging; writings; electronic communications; posting a message; or communications by any other means directly or through another person. Respondent may not violate this Order **even with the permission of a protected person**. [NCIC 05]

☐ **4. RESPONDENT SHALL NOT** use any form of electronic surveillance on protected persons.

☐ **5. RESPONDENT SHALL NOT REMOVE, DAMAGE, HIDE, OR DISPOSE OF ANY PROPERTY, COMPANION ANIMALS, OR PETS** owned or possessed by the protected persons named in this Order.

☐ **6. PETITIONER IS AUTHORIZED TO REMOVE THE FOLLOWING COMPANION ANIMALS OR PETS,** owned by Petitioner, from the possession of Respondent:

_____

_____

Exchange of the listed companion animals or pets shall take place as follows:

_____

_____

☐ **7. RESPONDENT SHALL NOT CAUSE OR ENCOURAGE ANY PERSON** to do any act prohibited by this Order.

☐ **8. RESPONDENT SHALL NOT POSSESS, USE, CARRY, OR OBTAIN ANY DEADLY WEAPON,** at any time while this Order remains in effect in order to bring about a cessation of violence. Furthermore, Respondent may be subject to firearms and ammunition restrictions pursuant to 18 U.S.C. 922(g)(1) through (9), 18 U.S.C. 922(n), or R.C. 2923.13. [NCIC 07]

RESPONDENT IS EXCEPTED only for official use pursuant to 18 U.S.C. 925(a)(1), if no other firearms and ammunition prohibitions apply.

☐ **9. RESPONDENT SHALL TURN OVER ALL DEADLY WEAPONS** owned by Respondent or in Respondent's possession to the law enforcement agency that serves Respondent with this Order no later than _____ or as follows:

_____

Any law enforcement agency is authorized to accept possession of deadly weapons pursuant to this paragraph and hold them in protective custody for the duration of this Order. [NCIC 07]

Law enforcement shall immediately notify the Court upon receiving Respondent's deadly weapons for protective custody as set forth in this Order.

Upon the expiration or termination of this Order, Respondent may reclaim any deadly weapons held in protective custody by law enforcement pursuant to this Order unless Respondent is otherwise disqualified as verified by a check of the NCIC protection order file.

10. RESPONDENT'S CONCEALED CARRY WEAPON LICENSE, if any, is now subject to R.C. 2923.128.

☐ **11. RESPONDENT SHALL NOT USE OR POSSESS** ☐alcohol or ☐illegal drugs.

☐ **12. RESPONDENT SHALL COMPLETE THE FOLLOWING COUNSELING PROGRAM:**

_____

_____

Respondent shall contact this program within _____ days after receiving this Order and immediately arrange for an initial appointment. The counseling program is requested to provide the Court a written notice when Respondent attends the initial appointment, if the Respondent fails to attend or is discharged, and when Respondent completes the program. Respondent is required to sign all necessary waivers to allow the Court to receive information from the counseling program.

☐ **13. RESPONDENT IS ORDERED TO APPEAR before Judge or Magistrate _____ on _____/_____/_____ at _____ ☐a.m. ☐p.m. to review Respondent's compliance with this counseling order. Respondent is warned: If you fail to attend the counseling program you may be held in contempt or the Court may issue a warrant for your arrest.**

☐ **14. RESPONDENT SHALL NOT INTERFERE** with wireless service transfer, prevent the functionality of a device on the network, or incur further contractual or financial obligations related to the transferred numbers.

Wireless service rights to and billing responsibility for the wireless service number or numbers in use by Petitioner or any minor children in the care of Petitioner shall be transferred to Petitioner by separate order, Wireless Service Transfer Order (Form 10-E).

15. IT IS FURTHER ORDERED: [NCIC 08]

_____

_____

_____

16. THE CLERK OF COURT SHALL CAUSE A COPY of this Order to be served on Respondent as set forth in Civ.R. 5(B) and 65.1(C)(4)(b). The Clerk of Court shall also provide certified copies of the Petition and this Order to Petitioner upon request.

17. IF THE FULL HEARING PROCEEDING WAS REFERRED TO A MAGISTRATE, the Court has reviewed the magistrate's granting of this Order and finds no error of law or other defect evident on the face of the as set forth in Civ.R. 65.1 Order. Accordingly, the Court adopts the magistrate's granting of the Order.

18. **IT IS FURTHER ORDERED NO COSTS OR FEES SHALL BE ASSESSED AGAINST PETITIONER** for filing, issuing, registering, modifying, enforcing, dismissing, withdrawing, serving, subpoenaing witnesses for, or obtaining a certified copy of this Order. This Order is granted without bond.

19. **THE COSTS OF THIS ACTION ARE** ☐assessed against Respondent ☐waived.

IT IS SO ORDERED.

_____ _____

MAGISTRATE **JUDGE**

NOTICE TO RESPONDENT

NO PERSON PROTECTED BY THIS ORDER CAN GIVE YOU LEGAL PERMISSION TO CHANGE OR VIOLATE THE TERMS OF THIS ORDER. IF YOU VIOLATE ANY TERMS OF THIS ORDER, EVEN WITH THE PROTECTED PERSON'S PERMISSION, YOU MAY BE HELD IN CONTEMPT OR ARRESTED. ONLY THE COURT CAN CHANGE THIS ORDER. YOU ACT AT YOUR OWN RISK IF YOU DISREGARD THIS WARNING.

NOTICE OF FINAL APPEALABLE ORDER

Copies of this Order, which is a final appealable order, were served on or delivered to the parties indicated above pursuant to Civ.R. 65.1(C)(4)(b), including ordinary mail, on

_____ day of _____ , 20 _____

By: _____
CLERK OF COURT

TO THE CLERK:

A COPY OF THIS ORDER SHALL BE SERVED ON RESPONDENT PURSUANT TO CIV.R. 65.1(C)(4).

COPIES OF THIS ORDER SHALL BE DELIVERED ON:

☐ Petitioner
☐ Petitioner's Attorney
☐ Respondent's Attorney
☐ Counseling Program: _____
☐ Sheriff's Office
_____
☐ Law Enforcement Agency Where Petitioner Resides:
_____
☐ Law Enforcement Agency Where Petitioner Works:
_____
☐ Other: _____

CIVIL PROTECTION ORDER FORM 18:
INFORMATION ABOUT FILING A JUVENILE CIVIL PROTECTION ORDER OR A JUVENILE DOMESTIC VIOLENCE CIVIL PROTECTION ORDER PETITION

- If you have any questions about completing the Petition for a Juvenile Civil Protection Order or Domestic Violence Juvenile Civil Protection Order (Civil Protection Order Form 19), contact the local victim assistance program, domestic violence program, or Ohio Domestic Violence Network at 800-934-9840.
- Neither the Clerk of Court's Office nor the local domestic violence program can give legal advice. If you need legal advice, talk to a lawyer. Only a lawyer can give you legal advice.
- There is NO FEE for filing the Petition.
- Once completed, take the Petition and other necessary documents to the Clerk of Court's Office.
- If you want an emergency order, also known as an Ex Parte Protection Order, check "want" in paragraph 2 of the Petition.
- The Court will consider your request for an Ex Parte Protection Order and may ask you questions.
- Regardless if an Ex Parte Protection Order was requested, granted, or denied, a full hearing will be scheduled.
- You must attend the full hearing. Your victim advocate may also be present at the hearing.
- On the day of the full hearing, be prepared to (1) tell the Court what happened, (2) bring with you any witnesses, evidence, and documentation to prove your case, and (3) ask Respondent questions.
- Respondent may be represented by a private lawyer or a court-appointed lawyer. [R.C. 2151.34(O)] You may represent yourself or ask the Court for a continuance to obtain a lawyer. [R.C. 2151.34(D)(2)(a)(iii) or 3113.31(D)(2)(a)(iii)]
- Respondent or Respondent's lawyer may present evidence and may ask you questions.
- The Court cannot issue a protection order against you unless Respondent has filed a Petition.

DEFINITIONS

Aggravated Assault [R.C. 2903.12]	No person, while under the influence of sudden passion or in a sudden fit of rage, either of which is brought on by serious provocation occasioned by the victim that is reasonably sufficient to incite the person into using deadly force, shall knowingly cause serious physical harm to another or to another's unborn. No person, while under the influence of sudden passion or in a sudden fit of rage, either of which is brought on by serious provocation occasioned by the victim that is reasonably sufficient to incite the person into using deadly force, shall knowingly cause or attempt to cause physical harm to another or to another's unborn by means of a deadly weapon or dangerous ordnance, as defined in [the law].
Aggravated Menacing [R.C. 2903.21]	No person shall knowingly cause another to believe that the offender will cause serious physical harm to the person or property of the other person, the other person's unborn, or a member of the other person's immediate family.

Aggravated Trespass [R.C. 2911.211]	No person shall enter or remain on the land or premises of another with purpose to commit on that land or those premises a misdemeanor, the elements of which involve causing physical harm to another person or causing another person to believe that the offender will cause physical harm to the person.
Assault [R.C. 2903.13]	No person shall knowingly cause or attempt to cause physical harm to another or to another's unborn. No person shall recklessly cause serious physical harm to another or to another's unborn.
Domestic Violence [R.C. 3113.31]	"Domestic violence" means the occurrence of one or more of the following acts against a family or household member: attempting to cause or recklessly causing bodily injury; placing another person by the threat of force in fear of imminent serious physical harm or committing [menacing by stalking or aggravated trespass]; committing any act with respect to a child that would result in the child being an abused child, as defined [by law]; or committing a sexually oriented offense.
Family or Household Member [R.C. 3113.31(A)(3) through (4)]	"Family or household member" means any of the following: Any of the following who is residing with or has resided with Respondent, such as a spouse, a person living as a spouse, or a former spouse of Respondent; a parent, a foster parent, or a child of Respondent, or another person related by consanguinity or affinity (blood or marriage) to Respondent; a parent or a child of a spouse, person living as a spouse, or former spouse of Respondent, or another person related by consanguinity or affinity (blood or marriage) to a spouse, person living as a spouse, or former spouse of Respondent. The natural parent of any child of whom Respondent is the other natural parent or is the putative other natural parent. "Person living as a spouse" means a person who is living or has lived with Respondent in a common law marital relationship, who otherwise is cohabiting with Respondent, or who otherwise has cohabited with Respondent within five years prior to the date of the alleged occurrence of the act in question.
Felonious Assault [R.C. 2903.11]	No person shall knowingly cause serious physical harm to another or to another's unborn. [R.C. 2903.11(A)(1)] No person shall knowingly cause or attempt to cause physical harm to another or to another's unborn by means of a deadly weapon or dangerous ordnance. No person, with knowledge that the person has tested positive as a carrier of a virus that causes AIDS, shall knowingly do any of the following: (1) engage in sexual conduct with another person without disclosing that knowledge to the other person prior to engaging in the sexual conduct; (2) engage in sexual conduct with a person whom the offender knows or has reasonable cause to believe lacks the mental capacity to appreciate the significance of the knowledge that the offender has tested positive as a carrier of a virus that causes AIDS; or (3) engage in sexual conduct with a person under eighteen years of age who is not the spouse of the offender.
Menacing [R.C. 2903.22]	No person shall knowingly cause another to believe that the offender will cause physical harm to the person or property of the other person, the other person's unborn, or a member of the other person's immediate family.

Menacing by Stalking [R.C. 2903.211]	No person by engaging in a pattern of conduct shall knowingly cause another person to believe that the offender will cause physical harm to the other person or cause mental distress to the other person. No person, through the use of any electronic method of remotely transferring information, including, but not limited to, any computer, computer network, computer program, or computer system, shall post a message with purpose to urge or incite another to commit a violation [this law].
Pattern of Conduct [R.C. 2903.211(D)(1)]	Pattern of conduct means two or more actions or incidents closely related in time.
Mental Distress [R.C. 2903.211(D)(2)]	Mental distress means: (a) any mental illness or condition that involves some temporary substantial incapacity **OR** (b) any mental illness or condition that would normally require psychiatric treatment, psychological treatment, or other mental health services, regardless if psychiatric treatment, psychological treatment, or other mental health services was requested or received.
Sexually Oriented Offense [R.C. 2950.01]	Sexually oriented offenses are defined at R.C. 2950.01.

IN THE COURT OF COMMON PLEAS, _____ DIVISION
_____ COUNTY, OHIO

Petitioner	:	**Case No.** _____
Address (Safe mailing address)	:	**Judge/Magistrate** _____
City, State, Zip Code	:	
Date of Birth: ____/____/____	:	
v.	:	**PETITION FOR JUVENILE CIVIL PROTECTION ORDER OR JUVENILE DOMESTIC VIOLENCE CIVIL PROTECTION ORDER (R.C. 2151.34 and 3113.31)**
Respondent	:	
Address (If home address unknown, put the school or work address)	:	
City, State, Zip Code	:	
Date of Birth: ____/____/____		☐ **Respondent is under 18 years old**

IF YOU ARE ASKING FOR YOUR ADDRESS TO BE KEPT CONFIDENTIAL, PLEASE PUT A MAILING ADDRESS WHERE YOU CAN SAFELY RECEIVE MAIL. IF YOU ARE A PARTICIPANT IN THE SECRETARY OF STATE'S ADDRESS CONFIDENTIALITY PROGRAM, PLEASE USE THE P.O. BOX ADDRESS GIVEN TO YOU. THIS FORM IS A PUBLIC RECORD.

☐ 1. I need or a witness needs a foreign language interpreter in _____ or an American Sign Language interpreter per Sup.R. 9.10.

2. I ☐ **want** ☐ **do not want** an ***ex parte*** **(emergency) protection order** per R.C. 2151.34 or 3113.31. Petitioner further requests a full hearing trial even if the ex parte protection order is granted, denied, or not requested.

3. Who needs protection?
   - ☐ Me
   - ☐ My minor child
   - ☐ A family or household member, who is not a minor child
   - ☐ Other: _____

4. The relationship of Petitioner to Respondent is that of:
   - ☐ Parent or foster parent of Respondent
   - ☐ Respondent is the parent of my child
   - ☐ Relative by blood or marriage of Respondent or Petitioner and has lived with Respondent (please specify how you are related): _____
   - ☐ Petitioner is not related to Respondent (please specify how you know Respondent) _____

☐ 5. I have listed below all family or household members who need protection other than me or the person for whom I am filing the Petition **(Leave blank if you are not including other family or household members)**.

NAME (first, middle initial, and last)	DATE OF BIRTH	RELATIONSHIP TO PETITIONER
	/ /	
	/ /	
	/ /	
	/ /	

6. Petitioner is in fear and in continuing danger and requests the Court grant ☐ **Juvenile Civil Protection Order** or ☐ **Juvenile Domestic Violence Civil Protection Order**.

7. You **must** describe the threats or acts that made you or your family or household members afraid, include if children were present when the acts happened. When did it happen? (If you do not know exact dates, give approximate dates). Explain why you believe you or your family or household members are in danger. **If you need more space, attach an additional page.**

8. Petitioner has listed court cases (including custody, visitation, paternity, child support, children service case, pending criminal case or conviction for domestic violence, felonious assault, aggravated assault, assault, aggravated menacing, menacing by stalking, menacing, or aggravated trespass; no contact order; stay away order; or other protection order) and other legal matters regarding Respondent, which may relate to this case:

CASE NAME	CASE NUMBER	COURT/COUNTY	TYPE OF CASE	RESULT OF CASE

9. Petitioner requests the Court grant relief under R.C. 2151.34 or 3113.31. Check all that apply.

☐ a. Directs Respondent to not abuse Petitioner and the other persons named in this Petition by harming, attempting to harm, threatening, following, stalking, harassing, contacting, forcing sexual relations upon, or committing sexually oriented offenses against them.

☐ b. Directs Respondent to not enter or have limited access to the following places (include name and address, as applicable) where Petitioner and the persons named in this Petition may be found, including the buildings, grounds, and parking lots at these places.

Residence: _____

_____

_____

School: _____

_____

_____

Business or Place of Employment: _____

_____

_____

Other (specify): _____

_____

☐ c. Directs Respondent to not approach or have contact by any means with Petitioner and persons named in this Petition.

☐ d. Directs Respondent not to remove, damage, hide, or dispose of any property, companion animals, or pets owned by Petitioner.

☐ e. Grants Petitioner permission to take Petitioner's companion animals or pets, as described below, away from the possession of Respondent:

_____

_____

☐ f. Directs Respondent to not possess, use, carry, or obtain any deadly weapon, firearms, and ammunition.

☐ g. Directs Respondent to be electronically monitored because Respondent's conduct has put or puts the health, welfare, or safety of Petitioner and the persons named in this Petition at risk. Describe Respondent's conduct and how Respondent continues to present a danger to Petitioner and the persons named in this Petition. **If you need more space, attach an additional page.**

_____

_____

_____

_____

☐ h. Directs Respondent to complete batterer counseling, substance abuse counseling, or other counseling as determined necessary by the Court.

☐ i. Directs the wireless service provider to separate Petitioner's account from Respondent's account, per R.C. 3113.45 to 3113.459. Petitioner will assume all financial responsibility for any costs associated with the wireless service number and any costs for the device associated with the wireless service number.

Respondent's billing telephone number is: _____

Petitioner's contact information is on page 1 of this Petition. The wireless service numbers to be transferred to Petitioner which are used by Petitioner or the minor children in the care of Petitioner is:

_____

_____

☐ j. Includes the following additional provisions: _____

_____

10. Petitioner further requests that the Court grant such other relief as the Court considers equitable and fair.

I swear or affirm that the answers above are true, complete, and accurate to the best of my knowledge. I understand that making false statements in this document may result in a contempt of court finding against me which could result in a jail sentence and fine, and may also subject me to criminal penalties for perjury under R.C. 2921.11.

SIGNATURE OF PETITIONER	**DATE**
Name of Attorney (if applicable)	Attorney's Fax
Signature of Petitioner's Attorney	Attorney's Registration Number
Attorney's Address	Attorney's Telephone
City, State, Zip Code	Attorney's Email

Case No._____

IN THE COURT OF COMMON PLEAS

_____ **COUNTY, OHIO**

Petitioner	:	Case No. _____
v.	:	Judge/Magistrate _____
Respondent	:	

REQUEST FOR SERVICE

TO THE CLERK OF COURT:

Pursuant to Civ.R. 65.1(C)(2), please serve Respondent a copy of the Petition, *ex parte* protection order, if granted, and any other accompanying documents to the address below and as follows:

_____

_____

☐ Personal service ☐ Certified Mail, Return Receipt Requested

☐ Other (specify) _____

☐ Other (address): _____

☐ Personal Service ☐ Certified Mail, Return Receipt Requested

☐ Other (specify) _____

SPECIAL INSTRUCTIONS TO SHERIFF:

_____

_____

_____

_____

SIGNATURE OF ATTORNEY OR PETITIONER

RETURN OF SERVICE

Respondent was served on _____.

_____ _____

Officer and Badge Number Law Enforcement Agency

_____

Date

CLERK'S CERTIFICATE OF MAILING

Service of Process was sent by _____ this _____ day of _____.

Attest: _____ Deputy Clerk

IN THE COURT OF COMMON PLEAS, _____ DIVISION
_____ COUNTY, OHIO

Order of Protection

Per R.C. 2151.34(F)(3) or 3113.31(F)(3), this Order is indexed at

_____
LAW ENFORCEMENT AGENCY WHERE INDEXED

( ) -
PHONE NUMBER

Case No. _____

Judge/Magistrate _____

State **OHIO**

JUVENILE CIVIL PROTECTION ORDER OR JUVENILE DOMESTIC VIOLENCE CIVIL PROTECTION ORDER *EX PARTE* (R.C. 2151.34 or 3113.31)

PETITIONER:

First Middle Initial Last

v.

RESPONDENT:

First Middle Initial Last

Distinguishing Features: _____

PERSON(S) PROTECTED BY THIS ORDER:

Petitioner: _____ DOB: _____
Petitioner's Family or Household Members:
(☐ Additional forms attached)

_____ DOB: _____
_____ DOB: _____
_____ DOB: _____
_____ DOB: _____

RESPONDENT IDENTIFIERS

SEX	RACE	HGT	WGT
EYES	HAIR	DOB	
		/ /	
DRIVER'S LIC. NO		EXP. DATE	STATE

Violence Against Women Act, 18 U.S.C. 2265, Federal Full Faith & Credit Declaration: Registration of this Order is not required for enforcement.

THE COURT HEREBY FINDS:
That it has jurisdiction over the parties and subject matter, and Respondent will be provided with reasonable notice and opportunity to be heard within the time required by Ohio law. **Additional findings of this Order are set forth below.**

THE COURT HEREBY ORDERS:
That the above named Respondent be restrained from committing acts of abuse or threats of abuse against Petitioner and other protected persons named in this Order. Additional terms of this Order are set forth below.

Case No._____

UNLESS EXTENDED BY SEPARATE ENTRY OR UNTIL RESPONDENT ATTAINS 19 YEARS OF AGE

The terms of this Order shall be effective until _____ / _____ / _____

Respondent will attain 19 years of age on _____ / _____ / _____

WARNING TO RESPONDENT: See the warning page attached to the front of this Order.

This proceeding came for an *ex parte* hearing on _____ / _____ / _____ (Respondent not being present), upon the filing of a Petition by Petitioner for a juvenile civil protection order or juvenile domestic violence civil protection order against Respondent, pursuant to R.C. 2151.34 or 3113.31. The Court held an *ex parte* hearing in accordance with R.C. 2151.34(D)(1) or 3113.31(D)(1).

The Court finds that protected persons named herein are in immediate and present danger and for good cause shown, the following temporary orders are necessary to protect the persons named in this Order.

RESPONDENT SHALL NOT ABUSE, harm, attempt to harm, threaten, follow, stalk, harass, force sexual relations upon, or commit sexually oriented offenses against the protected persons named in this Order. [NCIC 01 and 02]

ALL OF THE PROVISIONS CHECKED BELOW ALSO APPLY TO RESPONDENT

☐ **1. RESPONDENT SHALL NOT ENTER** the places indicated in this Order, including the buildings, grounds, and parking lots at those locations, except as specifically provided. [NCIC 04]

☐ **Residence:**

_____

_____

☐ **School:**

_____

_____

_____

☐ **Business or Place of Employment:**

_____

_____

_____

☐ **Other:**

_____

_____

_____

☐ **RESPONDENT IS A MINOR AND WILL RESIDE** at the following address until the Court determines otherwise:

_____

_____

☐ **2. RESPONDENT SHALL STAY AWAY FROM** the protected persons named in this Order or as follows [NCIC 04]:

_____

_____

☐ **3. RESPONDENT IS ALLOWED CONTACT WITH** protected persons as follows:

_____

_____

☐ **4. RESPONDENT SHALL NOT REMOVE, DAMAGE, HIDE, OR DISPOSE OF ANY PROPERTY, COMPANION ANIMALS, OR PETS** owned or possessed by the protected persons named in this Order.

☐ **RESPONDENT MAY REMOVE THE FOLLOWING:**

_____

_____

_____

☐ **5. PETITIONER IS AUTHORIZED TO REMOVE THE FOLLOWING COMPANION ANIMALS OR PETS** owned by Petitioner from the possession of Respondent:

_____

_____

Exchange of the listed companion animals or pets shall take place as follows:

_____

_____

☐ **6. RESPONDENT SHALL NOT INITIATE OR HAVE ANY CONTACT** by any means with the protected persons named in this Order. Contact includes, but is not limited to, landline, cordless, or cellular telephone; text; instant messaging; fax; e-mail; voicemail; delivery service; social media; writings; blogging; electronic communications; posting a message; or communications by any other means regardless if directly or through another person, and as follows: [NCIC 05]

_____

_____

_____

_____

☐ **7. RESPONDENT SHALL NOT** use any form of electronic surveillance on protected persons.

☐ **8. RESPONDENT SHALL NOT CAUSE OR ENCOURAGE ANY OTHER PERSON** to do any act prohibited by this Order.

☐ **9. RESPONDENT SHALL NOT INTERFERE** with wireless service transfer, prevent the functionality of a device on the network, or incur further contractual or financial obligations related to the transferred numbers.

Wireless service rights to and billing responsibility for the wireless service number or numbers in use by Petitioner shall be transferred to Petitioner, pursuant to R.C. 3113.31(E)(1)(k), by separate order.

☐ **10. IT IS FURTHER ORDERED:** [NCIC 08]

_____

_____

_____

_____

_____

_____

_____

_____

11. ALL DISCOVERY SHALL STRICTLY COMPLY with Civ.R. 65.1(D).

12. THE CLERK OF COURT SHALL CAUSE A COPY OF THE PETITION, THIS ORDER, AND ANY OTHER ACCOMPANYING DOCUMENT to be served on Respondent and Respondent's parent, guardian, or legal custodian as set forth in Civ.R. 65.1(C)(2).

13. SUBJECT TO FURTHER ORDER OF THIS COURT, this Order and all records of the proceeding shall be sealed upon the happening of the earliest of the following: (1) Dismissal of this Petition; (2) Expiration of the Order, **or** (3) Respondent's 19th birthday.

14. RESPONDENT SHALL NOT POSSESS, USE, CARRY, OR OBTAIN ANY DEADLY WEAPON, INCLUDING FIREARMS, OR AMMUNITION at any time while this Order remains in effect for the safety and protection of the protected persons named in the Order.

Upon the expiration or termination of this Order and if a full hearing order is not issued or consent agreement approved, Respondent may reclaim any deadly weapons held in protective custody by law enforcement pursuant to this unless Respondent is otherwise disqualified as verified by a check of the NCIC protection order file.

15. IT IS FURTHER ORDERED NO COSTS OR FEES SHALL BE ASSESSED AGAINST PETITIONER for filing, issuing, registering, modifying, enforcing, dismissing, withdrawing, serving, subpoenaing witnesses for, or obtaining a certified copy of this Order. This Order is granted without bond.

16. THIS ORDER DOES NOT EXPIRE because of a failure to serve notice of the full hearing upon Respondent before the date set for the full hearing or because the Court grants a continuance, as set forth in R.C. 2151.34(D)(2)(b) and 3113.31(D)(2)(b).

17. RESPONDENT WILL ATTAIN 19 years of age on: _____ / _____ / _____.

IT IS SO ORDERED.

_____

JUDGE/MAGISTRATE

Case No._____

NOTICE TO RESPONDENT, PARENTS, GUARDIAN, OR LEGAL CUSTODIAN

NO PERSON PROTECTED BY THIS ORDER CAN GIVE YOU LEGAL PERMISSION TO CHANGE OR VIOLATE THE TERMS OF THIS ORDER. IF YOU VIOLATE ANY TERMS OF THIS ORDER EVEN WITH THE PROTECTED PERSON'S PERMISSION, YOU MAY BE HELD IN CONTEMPT OR ARRESTED. ONLY THE COURT CAN CHANGE THIS ORDER. YOU ACT AT YOUR OWN RISK IF YOU DISREGARD THIS WARNING.

A FULL HEARING on this Order, and all other issues raised by the Petition, shall be held before Judge/Magistrate _____

on _____/_____/_____

at ☐a.m. ☐p.m.at the following location:

On the day of the Full Hearing, come prepared to (1) tell the Court what happened, (2) bring with you any witnesses, evidence, and documentation to prove your case, and (3) be aware that the other party or party's attorney may ask you questions. If you do not have an attorney, you may ask for a brief continuance to obtain an attorney per R.C. 2151.34(D)(2)(a)(iii) or 3113.31(D)(2)(a)(iii). The Court may, at its discretion, appoint an attorney for the Respondent per R.C. 2151.34(O).

Parties do not have to give discovery, answer questions, or give information to the other party or the other party's lawyer unless ordered by judge or magistrate (Civ.R. 65.1(D)(2)).

TO THE CLERK

COPIES OF PETITION, THIS ORDER, AND ANY OTHER ACCOMPANYING DOCUMENTS SHALL BE SERVED ON PURSUANT TO CIV.R. 65.1(C)(2):

☐ Respondent
☐ Respondent's Parent 1: _____
☐ Respondent's Parent 2: _____
☐ Respondent's Guardian or Legal Custodian: _____

COPIES OF THIS ORDER SHALL BE DELIVERED TO:

☐ Petitioner
☐ Petitioner's Parent 1: _____
☐ Petitioner's Parent 2: _____
☐ Petitioner's Guardian or Legal Custodian: _____
☐ Petitioner's Guardian or Legal Custodian: _____
☐ Petitioner's Attorney: _____
☐ Law Enforcement Agency Where Petitioner Works: _____
☐ Sheriff's Office: _____
☐ Law Enforcement Agency Where School is Located: _____
☐ Other: _____

IN THE COURT OF COMMON PLEAS, _____ DIVISION
_____ COUNTY, OHIO

Order of Protection

Per R.C. 2151.34(F)(3), this Order is indexed at

_____
LAW ENFORCEMENT AGENCY WHERE INDEXED

( ) -
PHONE NUMBER

Case No.

Judge/Magistrate _____

State **OHIO**

JUVENILE CIVIL PROTECTION ORDER FULL HEARING (R.C. 2151.34)

PETITIONER:

First Middle Initial Last

v.

RESPONDENT:

First Middle Initial Last

Distinguishing Features: _____

PERSON(S) PROTECTED BY THIS ORDER:

Petitioner: _____ DOB: _____
Petitioner's Family or Household Members:
(☐ Additional forms attached)

_____ DOB: _____
_____ DOB: _____
_____ DOB: _____
_____ DOB: _____

RESPONDENT IDENTIFIERS

SEX	RACE	HGT	WGT
EYES	HAIR	DOB	
		/ /	
DRIVER'S LIC. NO		EXP. DATE	STATE

Violence Against Women Act, 18 U.S.C. 2265, Federal Full Faith & Credit Declaration: Registration of this Order is not required for enforcement.

THE COURT HEREBY FINDS:
That it has jurisdiction over the parties and subject matter, and Respondent will be provided with reasonable notice and opportunity to be heard within the time required by Ohio law. **Additional findings of this Order are set forth below.**

THE COURT HEREBY ORDERS:
That the above named Respondent be restrained from committing acts of abuse or threats of abuse against Petitioner and other protected persons named in this Order. Additional terms of this Order are set forth below.

Case No._____

DATE CERTAIN – NO LATER THAN RESPONDENT ATTAINS 19 YEARS OF AGE

The terms of this Order shall be effective until ____/____/____

Respondent will attain 19 years of age on ____/____/____

WARNING TO RESPONDENT: See the warning page attached to the front of this Order.

This proceeding came for a hearing on ____/____/____ before the Court and the Juvenile Civil Protection Order *Ex Parte* filed on ____/____/____ in accordance with R.C. 2151.34. The following individuals were present:

The Court hereby makes the following findings of facts:

☐ **Additional findings on a separate page are included and attached herein.**

☐ The Court finds by a preponderance of the evidence that 1) Petitioner and/or Petitioner's family or household members are in danger of being or have been harmed by Respondent as defined in R.C. 2903.11, 2903.12, 2903.13, 2903.21, 2903.211, 2903.22, 2911.211, and 2950.01; and 2) the following orders are equitable, fair, and necessary to protect the persons named in this Order from offenses of violence.

☐ Pursuant to R.C. 2151.34(E)(1)(b), the Court finds by clear and convincing evidence that 1) Petitioner and Petitioner's family or household members reasonably believed Respondent's conduct before the filing of the Petition endangered the health, welfare, or safety of Petitioner and Petitioner's family or household members, 2) Respondent presents a continuing danger to Petitioner and Petitioner's family or household members, and 3) the following orders are equitable, fair, and necessary to protect the persons named in this Order.

RESPONDENT SHALL NOT ABUSE, harm, attempt to harm, threaten, follow, stalk, harass, force sexual relations upon, or commit sexually oriented offenses against the protected persons named in this Order. [NCIC 01 and 02]

ALL OF THE PROVISIONS CHECKED BELOW ALSO APPLY TO RESPONDENT

☐ **1. RESPONDENT SHALL NOT ENTER** the places indicated in this Order, including the buildings, grounds, and parking lots at those locations, except as specifically provided. [NCIC 04]

☐ **Residence:**

_____

_____

☐ **School:**

_____

_____

_____

☐ **Business or Place of Employment:**

_____

_____

☐ **Other:**

_____

_____

_____

☐ **RESPONDENT IS A MINOR AND WILL RESIDE** at the following address until the Court determines otherwise:

_____

_____

☐ **2. RESPONDENT SHALL STAY AWAY FROM** the protected persons named in this Order or as follows [NCIC 04]:

_____

_____

☐ **3. RESPONDENT IS ALLOWED CONTACT** with the protected persons as follows:

_____

_____

_____

☐ **4. RESPONDENT SHALL NOT REMOVE, DAMAGE, HIDE, OR DISPOSE OF ANY PROPERTY, COMPANION ANIMALS, OR PETS** owned or possessed by the protected persons named in this Order.

☐ **RESPONDENT MAY REMOVE THE FOLLOWING:**

_____

_____

_____

☐ **5. PETITIONER IS AUTHORIZED TO REMOVE THE FOLLOWING COMPANION ANIMALS OR PETS** owned by Petitioner from the possession of Respondent:

_____

_____

Exchange of listed companion animals or pets shall take place as follows:

_____

_____

☐ **6. RESPONDENT SHALL NOT INITIATE OR HAVE ANY CONTACT** by any means with the protected persons named in this Order. Contact includes, but is not limited to, landline, cordless, or cellular telephone; text; instant messaging; fax; e-mail; voicemail; delivery service; social media; writings; blogging; electronic communications; posting a message; or communications by any other means regardless if directly or through another person, and as follows: [NCIC 05]

_____

_____

_____

_____

☐ **7. RESPONDENT SHALL NOT** use any form of electronic surveillance on protected persons.

☐ **8. RESPONDENT SHALL NOT CAUSE OR ENCOURAGE ANY OTHER PERSON** to do any act prohibited by this Order.

☐ **9. RESPONDENT SHALL COMPLETE THE FOLLOWING COUNSELING PROGRAM:**

_____

_____

Respondent shall contact this program within _____days after receiving this Order and immediately arrange for an initial appointment. The program is requested to provide the Court a written notice when Respondent attends the initial appointment, if Respondent fails to attend or is discharged, and when Respondent completes the program. Respondent is required to sign all necessary waivers to allow the Court to receive information from the program.

Respondent is ordered to appear before Judge or Magistrate _____ on _____ / _____ / _____ at _____ ☐a.m. ☐p.m., to review the Respondent's compliance with this Order. Respondent is warned: If you fail to attend the above-named program you may be held in contempt of court.

10. **RESPONDENT SHALL NOT POSSESS, USE, CARRY, OR OBTAIN ANY DEADLY WEAPON, INCLUDING FIREARMS, OR AMMUNITION** while this Order remains in effect for the safety and protection of the protected persons named in this Order.

    Upon the expiration or termination of this Order, Respondent may reclaim any deadly weapons held in protective custody by law enforcement pursuant to this Order unless Respondent otherwise disqualified as verified by a check of the NCIC protection order file.

☐ 11. **RESPONDENT SHALL BE ELECTRONICALLY MONITORED.** The Court having found the factors set forth in R.C. 2151.34(E)(1)(b). Respondent is ordered to report to

_____

for the installation of a global positioning system for the purpose of electronic monitoring for the duration of this Order or until _____ / _____ / _____whichever expires first.
The Court further imposes the following terms and conditions:

_____

_____

_____

☐ 12. **IT IS FURTHER ORDERED:** [NCIC 08]

_____

_____

_____

_____

_____

_____

13. **THE CLERK OF COURT SHALL CAUSE A COPY OF THE PETITION AND THIS ORDER** to be served on Respondent as set forth in Civ.R. 5(B) and 65.1(C)(3) and Respondent's parent, guardian, or legal custodian.

14. **IT IS FURTHER ORDERED NO COSTS OR FEES SHALL BE ASSESSED AGAINST PETITIONER** for filing, issuing, registering, modifying, enforcing, dismissing, withdrawing, serving, subpoenaing witnesses for, or obtaining a certified copy of this Order. This Order is granted without bond.

15. **THE COSTS OF THIS ACTION ARE** ☐ assessed against Respondent ☐ waived.

16. **THE COURT WILL SEAL THIS RECORD ON RESPONDENT'S 19TH BIRTHDAY,** unless the Court determines otherwise**.**

17. **RESPONDENT WILL ATTAIN** 19 years of age on: _____/_____/_____.

18. **IF THE FULL HEARING PROCEEDING WAS REFERRED TO A MAGISTRATE,** the Court has reviewed the magistrate's granting of this Order and finds no error of law or other defect evident on the face of the Order. Accordingly, the Court adopts the magistrate's granting of the Order as set forth in Civ.R. 65.1.

IT IS SO ORDERED.

_____ _____

MAGISTRATE **JUDGE**

Case No._____

NOTICE TO RESPONDENT, PARENTS, GUARDIAN, OR LEGAL CUSTODIAN

NO PERSON PROTECTED BY THIS ORDER CAN GIVE YOU LEGAL PERMISSION TO CHANGE OR VIOLATE THE TERMS OF THIS ORDER. IF YOU VIOLATE ANY TERMS OF THIS ORDER EVEN WITH THE PROTECTED PERSON'S PERMISSION, YOU MAY BE HELD IN CONTEMPT OR ARRESTED. ONLY THE COURT CAN CHANGE THIS ORDER. YOU ACT AT YOUR OWN RISK IF YOU DISREGARD THIS WARNING.

NOTICE OF FINAL APPEALABLE ORDER

Copies of this Order, which is a final appealable Order, were served on or delivered to the parties indicated pursuant to Civ.R. 5(b) and 65.1(C)(3), including by ordinary mail, on a following date: _____/_____/_____ .

By: _____

TO THE CLERK:

COPIES OF THIS ORDER SHALL BE SERVED PURSUANT TO CIV.R. 65.1(C)(3) TO:

- ☐ Respondent
- ☐ Respondent's Parent 1: _____
- ☐ Respondent's Parent 2: _____
- ☐ Respondent's Guardian or Legal Custodian: _____
- ☐ Respondent's Attorney

COPIES OF THIS ORDER SHALL BE DELIVERED TO:

- ☐ Petitioner
- ☐ Petitioner's Parent 1: _____
- ☐ Petitioner's Parent 2: _____
- ☐ Petitioner's Guardian or Legal Custodian: _____
- ☐ Law Enforcement Agency Where Petitioner Resides: _____
- ☐ Law Enforcement Agency Where Petitioner Works: _____
- ☐ Sheriff's Office
- ☐ School: _____
- ☐ Law Enforcement Agency Where School is Located: _____
- ☐ Other: _____

IN THE COURT OF COMMON PLEAS, _____ DIVISION
_____ COUNTY, OHIO

Order of Protection

Per R.C. 3113.31(F)(3), this Order is indexed at

_____
LAW ENFORCEMENT AGENCY WHERE INDEXED

( ) -
PHONE NUMBER

Case No.

Judge/Magistrate _____

State **OHIO**

☐ **JUVENILE DOMESTIC VIOLENCE CIVIL PROTECTION ORDER FULL HEARING (R.C. 3113.31)**

☐ **JUVENILE DOMESTIC VIOLENCE CONSENT AGREEMENT CIVIL PROTECTION ORDER (R.C. 3113.31)**

PETITIONER:

First Middle Initial Last

v.

PERSON(S) PROTECTED BY THIS ORDER:

Petitioner: _____ DOB: _____
Petitioner's Family or Household Members:
(☐ Additional forms attached)

_____ DOB: _____
_____ DOB: _____
_____ DOB: _____
_____ DOB: _____

RESPONDENT:

First Middle Initial Last

Distinguishing Features: _____

RESPONDENT IDENTIFIERS

SEX	RACE	HGT	WGT
EYES	HAIR	DOB	
		/ /	
DRIVER'S LIC. NO	EXP. DATE	STATE	

Violence Against Women Act, 18 U.S.C. 2265, Federal Full Faith & Credit Declaration: Registration of this Order is not required for enforcement.

THE COURT HEREBY FINDS:
That it has jurisdiction over the parties and subject matter, and Respondent will be provided with reasonable notice and opportunity to be heard within the time required by Ohio law. **Additional findings of this Order are set forth below.**

THE COURT HEREBY ORDERS:
That the above named Respondent be restrained from committing acts of abuse or threats of abuse against Petitioner and other protected persons named in this Order. Additional terms of this Order are set forth below.

Case No._____

DATE CERTAIN – NO LATER THAN RESPONDENT ATTAINS 19 YEARS OF AGE

The terms of this Order shall be effective until _____/_____/_____
Respondent will attain 19 years of age on _____/_____/_____

WARNING TO RESPONDENT: See the warning page attached to the front of this Order.

This proceeding came for a hearing on _____ / _____ / _____ before the Court and the Petition filed on _____ / _____ / _____ . The following individuals were present:

The Court hereby makes the following findings of facts:

☐ **Additional findings on a separate page are included and attached herein.**

☐ The Court finds by a preponderance of the evidence that 1) Petitioner and Petitioner's family or household members are in danger of being or have been a victim of domestic violence or sexually oriented offenses, as defined in R.C. 3113.31(A), committed by Respondent; and 2) the following orders are equitable, fair, and necessary to protect the persons named in this Order from offenses of violence.

☐ The parties agree to waive their notice and hearing rights. Therefore, the Court approves the Juvenile Domestic Violence Consent Agreement Protection Order pursuant to R. C. 3113.31(E)(1).

RESPONDENT SHALL NOT ABUSE, harm, attempt to harm, threaten, follow, stalk, harass, force sexual relations upon, or commit sexually oriented offenses against the protected persons named in this Order. [NCIC 01 and 02]

ALL OF THE PROVISIONS CHECKED BELOW ALSO APPLY TO RESPONDENT

☐ **1. RESPONDENT SHALL IMMEDIATELY VACATE** the following residence:

_____

_____

☐ **2. RESPONDENT IS A MINOR AND WILL RESIDE** at the following address until the Court determines otherwise:

_____

_____

☐ **3. RESPONDENT SHALL NOT INTERFERE WITH THE PROTECTED PERSONS' RIGHT** to occupy the residence, including, but not limited to canceling utilities or insurance or interrupting telecommunications (e.g., telephone, internet, cable) services, mail delivery, or the delivery of any other documents or items. [NCIC 03]

☐ **4. RESPONDENT SHALL NOT ENTER** the places indicated in this Order, including the buildings, grounds, and parking lots at those locations, except as specifically provided. [NCIC 04]

☐ **Residence:**

_____

_____

☐ **School:**

_____

_____

_____

☐ **Business or Place of Employment:**

_____

_____

_____

☐ **Other:**

_____

_____

_____

☐ **5. RESPONDENT SHALL STAY AWAY FROM** the protected persons named in this Order or as follows [NCIC 04]:

_____

_____

☐ **6. RESPONDENT SHALL NOT REMOVE, DAMAGE, HIDE, OR DISPOSE OF ANY PROPERTY, COMPANION ANIMALS, OR PETS** owned or possessed by the protected persons named in this Order.

☐ **7. PETITIONER IS AUTHORIZED TO REMOVE THE FOLLOWING COMPANION ANIMALS OR PETS,** owned by Petitioner, from the possession of Respondent:

_____

_____

Exchange of listed companion animals or pets shall take place as follows:

_____

_____

☐ **8. RESPONDENT SHALL NOT INITIATE OR HAVE ANY CONTACT** by any means with the protected persons named in this Order. Contact includes, but is not limited to, landline, cordless, or cellular telephone; text; instant messaging; fax; e-mail; voicemail; delivery service; social media; writings; blogging; electronic communications; posting a message; or communications by any other means regardless if directly or through another person, and as follows: [NCIC 05]

_____

_____

_____

_____

☐ **9. RESPONDENT SHALL NOT** use any form of electronic surveillance on protected persons.

☐ **10. RESPONDENT SHALL NOT CAUSE OR ENCOURAGE ANY OTHER PERSON** to do any act prohibited by this Order.

☐ **11. RESPONDENT IS ALLOWED CONTACT** with the protected persons as follows:

_____

_____

☐ **12. RESPONDENT MAY PICK UP CLOTHING** and personal items effects from the above residence only in the company of uniformed law enforcement officer within seven or _____ days of the filing of this Order. Arrangements may be made by contacting:

_____

_____

☐**13. RESPONDENT SHALL COMPLETE THE FOLLOWING COUNSELING PROGRAM:**

_____

Respondent shall contact this program within _____ days after receiving this Order and immediately arrange for an initial appointment. The program is requested to provide the Court a written notice when Respondent attends the initial appointment, if Respondent fails to attend or is discharged, and when Respondent completes the program. Respondent is required to sign all necessary waivers to allow the Court to receive information from the program.

Respondent is ordered to appear before Judge/Magistrate _____ on _____ / _____ / _____ at _____ ☐a.m. ☐p.m. to review Respondent's compliance with this Order. Respondent is warned: If you fail to attend the above-named program you may be held in contempt of court.

☐**14. RESPONDENT SHALL NOT POSSESS, USE, CARRY, OR OBTAIN ANY DEADLY WEAPON, INCLUDING FIREARMS, OR AMMUNITION** while this Order remains in effect in order to bring about the cessation of violence.

Upon the expiration or termination of this Order, Respondent may reclaim any deadly weapons held in protective custody by law enforcement pursuant to this Order unless Respondent otherwise disqualified as verified by a check of the NCIC protection order file.

☐**15. RESPONDENT SHALL NOT INTERFERE** with wireless service transfer, prevent the functionality of a device on the network, or incur further contractual or financial obligations related to the transferred numbers.

Wireless service rights to and billing responsibility for the wireless service number or numbers in use by Petitioner or any minor children in the care of Petitioner shall be transferred to Petitioner by separate order.

☐**16. IT IS FURTHER ORDERED:** [NCIC 08]

_____

_____

_____

_____

17. THE CLERK OF COURT SHALL CAUSE A COPY OF THE PETITION AND THE ORDER to be served on Respondent as set forth in Civ.R. 5(B) and 65.1(C)(3) and Respondent's parent, guardian, or legal custodian.

18. IT IS FURTHER ORDERED NO COSTS OR FEES SHALL BE ASSESSED AGAINST PETITIONER for filing, issuing, registering, modifying, enforcing, dismissing, withdrawing, serving, subpoenaing witnesses for, or obtaining a certified copy of this Order. This Order is granted without bond.

19. THE COSTS OF THIS ACTION ARE ☐ assessed against Respondent ☐ waived.

20. THE COURT WILL SEAL THIS RECORD ON RESPONDENT'S 19TH BIRTHDAY, unless the Court determines otherwise**.**

21. **RESPONDENT WILL ATTAIN** 19 years of age on: _____ / _____ / _____ .

22. **IF THE FULL HEARING PROCEEDING WAS REFERRED TO A MAGISTRATE,** the Court has reviewed the magistrate's granting of this Order and finds no error of law or other defect evident on the face of the Order. Accordingly, the Court adopts the magistrate's granting of the Order as set forth in Civ.R. 65.1.

IT IS SO ORDERED.

MAGISTRATE **JUDGE**

NOTICE TO RESPONDENT, PARENTS, GUARDIAN, OR LEGAL CUSTODIAN

NO PERSON PROTECTED BY THIS ORDER CAN GIVE YOU LEGAL PERMISSION TO CHANGE OR VIOLATE THE TERMS OF THIS ORDER. IF YOU VIOLATE ANY TERMS OF THIS ORDER EVEN WITH THE PROTECTED PERSON'S PERMISSION, YOU MAY BE HELD IN CONTEMPT OR ARRESTED. ONLY THE COURT CAN CHANGE THIS ORDER. YOU ACT AT YOUR OWN RISK IF YOU DISREGARD THIS WARNING.

I have read this Consent Agreement and agree to its terms.

SIGNATURE OF PETITIONER

Address of Petitioner

Signature of Petitioner's Attorney

Address of Petitioner's Attorney

I have read this Consent Agreement and agree to its terms.

SIGNATURE OF RESPONDENT

Address of Respondent

Signature of Respondent's Attorney

Address of Respondent's Attorney

Case No._____

NOTICE OF FINAL APPEALABLE ORDER

Copies of this Order, which is a final appealable Order, were served on or delivered to the parties indicated pursuant to Civ.R. 5(B) and 65.1(C)(3), including ordinary mail, on the following date:

_____/_____/_____ .

TO THE CLERK

COPIES OF THIS ORDER SHALL BE SERVED PURSUANT TO CIV.R. 65.1(C)(3) TO:

TO:

Respondent

☐ Respondent's Parent 1: _____

☐ Respondent's Parent 2: _____

☐ Respondent's Guardian or Legal Custodian: _____

☐ Respondent's Attorney

COPIES OF THIS ORDER SHALL BE DELIVERED TO:

Petitioner

☐ Petitioner's Parent 1: _____

☐ Petitioner's Parent 2: _____

☐ Petitioner's Guardian or Legal Custodian: _____

☐ Petitioner's Attorney

☐ Law Enforcement Agency Where Petitioner Resides: _____

☐ Law Enforcement Agency Where Petitioner Works: _____

☐ Sheriff's Office

☐ School: _____

☐ Law Enforcement Agency Where School is Located: _____

☐ Other: _____

CIVIL PROTECTION ORDER FORM 23:
INSTRUCTIONS FOR OBTAINING CIVIL STALKING PROTECTION ORDER OR CIVIL SEXUALLY ORIENTED OFFENSE PROTECTION ORDER (SSOOPO)

- If you have any questions about completing the Petition for a Civil Stalking Protection Order (CSPO) or a Civil Sexually Oriented Offense Protection Order (Civil Protection Order Form 24), contact the local victim assistance program, domestic violence program, or Ohio Domestic Violence Network at 800-934-9840.
- Neither the Clerk of Court's Office nor the local domestic violence program can give legal advice. If you need legal advice, talk to a lawyer. Only a lawyer can give you legal advice.
- There is NO FEE for filing the Petition.
- Once completed, take the Petition and other necessary documents to the Clerk of Court's Office.
- If you want an emergency order, also known as an Ex Parte Protection Order, check "want" in paragraph 2 of the Petition.
- The Court will consider your request for an Ex Parte Protection Order and may ask you questions.
- Regardless if an Ex Parte Protection Order was requested, granted, or denied, a full hearing will be scheduled.
- You must attend the full hearing. Your victim advocate may also be present at the hearing.
- On the day of the full hearing, be prepared to (1) tell the Court what happened, (2) bring with you any witnesses, evidence, and documentation to prove your case, and (3) ask Respondent questions.
- Respondent may be represented by a lawyer. You may ask for a continuance to obtain a lawyer per R.C. 2903.214(D)(2)(iii).
- Respondent or Respondent's lawyer may present evidence and ask you questions.
- The Court cannot issue a protection order against you unless Respondent has filed a Petition.

DEFINITIONS

Menacing by Stalking
[R.C. 2903.211(A)(1) through (3)]

No person by engaging in a pattern of conduct shall knowingly cause another person to believe that the offender will cause physical harm to the other person or cause mental distress to the other person.

No person, through the use of any form of written communication or any electronic method of remotely transferring information, including, but not limited to, any computer, computer network, computer program, or computer system, or telecommunication device, shall post a message or use any intentionally written or verbal graphic gesture with purpose to (a) violate [this law] **OR** (b) urge or incite another to commit a violation of [this law]. No person, with a sexual motivation, shall violate [this law].

Pattern of Conduct [R.C. 2903.211(D)(1)]	Pattern of conduct means two or more actions or incidents closely related in time.
Mental Distress [R.C. 2903.211(D)(2)]	Mental distress means: (a) any mental illness or condition that involves some temporary substantial incapacity **OR** (b) any mental illness or condition that would normally require psychiatric treatment, psychological treatment, or other mental health services, regardless if psychiatric treatment, psychological treatment, or other mental health services was requested or received.
Sexually Oriented Offense [R.C. 2950.01.]	Sexually oriented offenses are defined at R.C. 2950.01.

IN THE COURT OF COMMON PLEAS
_____ COUNTY, OHIO

Petitioner	:	**Case No.** _____
	:	
Address (Safe mailing address)	:	**Judge/Magistrate** _____
City, State, Zip Code	:	
Date of Birth: ____/____/____	:	
v.	:	☐ **PETITION FOR CIVIL STALKING PROTECTION ORDER (R.C. 2903.214)**
	:	
Respondent		☐ **PETITION FOR CIVIL SEXUALLY ORIENTED OFFENSE PROTECTION ORDER (R.C. 2903.214)**
	:	
Address (If home address unknown, may be work address)	:	
City, State, Zip Code	:	
Date of Birth: ____/____/____		☐ **Respondent is 18 years old or older**

IF YOU ARE ASKING YOUR ADDRESS TO BE KEPT CONFIDENTIAL, PLEASE PUT A MAILING ADDRESS WHERE YOU CAN SAFELY RECEIVE MAIL. IF YOU ARE A PARTICIPANT IN THE SECRETARY OF STATE'S ADDRESS CONFIDENTIALITY PROGRAM, PLEASE USE THE P.O. BOX ADDRESS GIVEN TO YOU. THIS FORM IS A PUBLIC RECORD.

☐1. I need or a witness needs a foreign language interpreter in _____ or an American Sign Language interpreter per Sup.R. 88.

2. I ☐ **want** ☐ **do not want** an ***ex parte*** **(emergency) protection order** per R.C. 2903.214(D). Petitioner further requests a full hearing trial be scheduled, even if the *ex-parte* protection order is granted, denied, or not requested.

☐3. Who needs protection?

- ☐ Me
- ☐ My minor children
- ☐ A family or household member who is not a minor child
- ☐ Other _____

4. I have listed below all family or household members who need protection, other than me or the person for whom I am filing the Petition. (Leave blank if you are **not** including other family or household members.)

NAME	DATE OF BIRTH	RELATIONSHIP TO PETITIONER	LIVES WITH PETITIONER
	/ /		☐ YES ☐ NO
	/ /		☐ YES ☐ NO
	/ /		☐ YES ☐ NO
	/ /		☐ YES ☐ NO
	/ /		☐ YES ☐ NO

☐ 5. Petitioner requests a **Civil Stalking Protection Order.**

You **must** describe two or more incidents closely related in time that made you believe that Respondent will cause you physical harm or cause (or has caused) you mental distress. When did they happen (if you do not know exact dates, give approximate dates)?
If you need more space, attach an additional page.

☐ 6. Petitioner requests a **Civil Sexually Oriented Offense Protection Order.**

You **must** describe what Respondent did to you or the persons named in this Petition as fully as possible. You do not need to prove a pattern of conduct. One act may be enough.
If you need more space, attach an additional page.

7. Petitioner further requests the Court grant relief under R.C. 2903.214 for Petitioner and the family or persons named in this Petition by granting a Civil Stalking Protection Order or Civil Sexually Oriented Offense Protection Order that:

☐ (a) Directs Respondent to not abuse Petitioner and persons named in this Petition by harming, attempting to harm, threatening, following, stalking, harassing, contacting, forcing sexual relations upon them, or by committing sexually oriented offenses against them.

☐ (b) Directs Respondent to not enter the residence, school, business, place of employment, child care providers, or day care centers of Petitioner and persons named in this Petition, including the buildings, grounds, and parking lots at those locations.

☐ (c) Directs Respondent not to interfere with Petitioner's right to occupy the residence including, but not limited to canceling any utilities or insurance or interrupting phone service, mail delivery, or the delivery of any other documents or items.

☐ (d) Directs Respondent not to remove, damage, hide, or dispose of any property, companion animals, or pets owned or possessed by Petitioner and persons named in this Petition.

☐ (e) Grants Petitioner permission to take Petitioner's companion animals or pets, as described below, away from the possession of Respondent.

☐ (f) Directs Respondent not to possess, use, carry, or obtain any deadly weapon, firearms, and ammunition.

☐ (g) Directs Respondent to be electronically monitored, because Respondent's conduct, as explained below, puts the health, welfare, or safety of Petitioner and the persons named in this Petition at risk. Also, as explained below, Respondent continues to present a danger to Petitioner and the persons named in this Petition. **If you need more space, attach an additional page.**

_____
_____
_____
_____

☐ (h) Includes the following additional provisions:

_____
_____
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_____
_____

8. Petitioner further requests that the Court not issue any mutual protection orders or other orders against Petitioner unless all of the conditions of R.C. 2903.214(E)(3) are met.

9. Petitioner further requests that if Petitioner has a victim advocate, the Court permit the victim advocate to accompany Petitioner at all stages of these proceedings as required by R.C. 2903.214(L).

10. Petitioner further requests that the Court grant such other relief designed to ensure the safety and protection of Petitioner and persons named in this Petition.

11. Petitioner has listed court cases (including divorce, custody, visitation, children service case; pending criminal case or conviction for felonious assault, aggravated assault, assault, aggravated menacing, menacing by stalking, menacing, aggravated trespass; animal cruelty; sexually oriented offenses; no contact order; stay away order, and other protection order) and other legal matters involving Respondent, that may relate to this case: **(If you need more space, attach an additional page.)**

CASE NAME	CASE NUMBER	COURT/COUNTY	RESULT OF CASE

I swear or affirm that the answers above are true, complete, and accurate to the best of my knowledge. I understand that making false statements in this document may result in a contempt of court finding against me which could result in a jail sentence and fine, and may also subject me to criminal penalties for perjury under R.C. 2921.11.

SIGNATURE OF PETITIONER **DATE**

IF YOU DO NOT HAVE A LAWYER, PLEASE LEAVE THE INFORMATION BELOW BLANK.

Signature of Petitioner's Attorney	Attorney's Registration Number
Name of Attorney	Attorney's Telephone
Attorney's Address	Attorney's Fax
City, State, Zip Code	Attorney's Email

Case No._____

THE COURT OF COMMON PLEAS

_____ **COUNTY, OHIO**

Petitioner	:	Case No. _____
v.	:	Judge/Magistrate _____
Respondent	:	

REQUEST FOR SERVICE

TO THE CLERK OF COURT:

Pursuant to Civ.R. 65.1(C)(2), please serve Respondent a copy of the Petition, *ex parte* protection order, if granted, and any other accompanying documents to the address below and as follows:

_____

_____

☐ Personal service ☐ Certified Mail, Return Receipt Requested
☐ Other (specify) _____

☐ Other (address): _____
☐ Personal Service ☐ Certified Mail, Return Receipt Requested
☐ Other (specify) _____

SPECIAL INSTRUCTIONS TO SHERIFF:

_____

_____

_____

_____
SIGNATURE OF ATTORNEY OR PETITIONER

RETURN OF SERVICE

Respondent was served on _____ .

_____ _____
Officer and Badge Number Law Enforcement Agency

_____
Date

CLERK'S CERTIFICATE OF MAILING

Service of Process was sent by _____ this _____ day of _____ .

Attest: _____ Deputy Clerk

IN THE COURT OF COMMON PLEAS

_____ COUNTY, OHIO

Order of Protection

Per R.C. 2903.214(F)(3), this Order is indexed at

LAW ENFORCEMENT AGENCY WHERE INDEXED

( ) -

PHONE NUMBER

Case No.

Judge/Magistrate

State **OHIO**

☐ **CIVIL STALKING PROTECTION ORDER *EX PARTE* (R.C. 2903.214)**

☐ **CIVIL SEXUALLY ORIENTED OFFENSE PROTECTION ORDER EX *PARTE* (R.C. 2903.214)**

PETITIONER:

First Middle Last

v.

RESPONDENT:

First Middle Last

Relationship to Petitioner:

Address where Respondent can be found:

PERSON(S) PROTECTED BY THIS ORDER:

Petitioner: DOB:

Petitioner's Family or Household Members:
(☐ Additional forms attached.)

DOB:

DOB:

DOB:

DOB:

RESPONDENT IDENTIFIERS

SEX	RACE	HGT	WGT

EYES	HAIR	DOB
		/ /

DRIVER'S LIC. NO.	EXP. DATE	STATE

Distinguishing Features:

☐ **WARNING TO LAW ENFORCEMENT: RESPONDENT HAS FIREARMS ACCESS – PROCEED WITH CAUTION**

Violence Against Women Act, 18 U.S.C. 2265, Federal Full Faith & Credit Declaration: Registration of this Order is not required for enforcement.

THE COURT HEREBY FINDS:
That it has jurisdiction over the parties and subject matter, and Respondent will be provided with reasonable notice and opportunity to be heard within the time required by Ohio law. **Additional findings of this Order are set forth below.**

THE COURT HEREBY ORDERS:
That the above named Respondent be restrained from committing acts of abuse or threats of abuse against Petitioner and other protected persons named in this Order. Additional terms of this Order are set forth below.

The terms of this Order shall be effective until / / **UNLESS EXTENDED BY SEPARATE ENTRY.**

WARNING TO RESPONDENT: See the warning page attached to the front of this Order.

This proceeding came on for an *ex parte* hearing on _____/_____/_____ (Respondent not being present), upon the filing of a Petition by Petitioner for a ☐civil stalking protection order or ☐ civil sexually oriented offense protection order against Respondent, pursuant to R.C. 2903.214. In accordance with R.C. 2903.214(D)(1), the Court held an *ex parte* hearing not later than the next day that the Court was in session after the Petition was filed.

The Court finds that the protected persons herein are in immediate and present danger and, for good cause shown, the following temporary orders are necessary to protect the persons named in this Order.

The Court also finds

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☐ **Additional findings on a separate page are included and attached herein.**

RESPONDENT SHALL NOT ABUSE, harm, attempt to harm, threaten, follow, stalk, harass, force sexual relations upon, or commit sexually oriented offenses against the protected persons named in this Order. [NCIC 01 and 02]

ALL OF THE PROVISIONS CHECKED BELOW ALSO APPLY TO RESPONDENT

☐ **1. RESPONDENT SHALL NOT ENTER** or interfere with the residence, school, business, place of employment, day care centers, or child care providers of the protected persons named in this Order, including the buildings, grounds, and parking lots at those locations. Respondent may not violate this Order **even with the permission of a protected person**. [NCIC 04]

☐ **2. RESPONDENT SHALL NOT INTERFERE** with protected persons' right to occupy the residence including, but not limited to canceling utilities or insurance or interrupting telecommunication (e.g., telephone, internet, or cable) services, mail delivery, or the delivery of any other documents or items.

☐ **3. RESPONDENT SHALL SURRENDER** all keys and garage door openers to the following residence:

_____

within 24 hours of service of this Order to the law enforcement agency that serves Respondent with this Order or as follows:

_____

_____

_____

☐ **4. RESPONDENT SHALL STAY AWAY FROM PETITIONER** and all other protected persons named in this Order, and not be present within 500 feet or _____ (distance) of any protected persons wherever those protected persons may be found, or any place Respondent knows or should know the protected persons are likely to be, **even with a protected person's permission**. If Respondent accidentally comes in contact with protected persons in any public or private place, Respondent must depart *immediately*. This Order includes encounters on public and private roads, highways, and thoroughfares. [NCIC 04]

☐ **5. RESPONDENT SHALL NOT REMOVE, DAMAGE, HIDE, OR DISPOSE OF ANY PROPERTY, COMPANION ANIMALS, OR PETS** owned or possessed by the protected persons named in this Order.

☐ **6. PETITIONER IS AUTHORIZED TO REMOVE THE FOLLOWING COMPANION ANIMALS OR PETS**, owned by Petitioner, from the possession of Respondent:

_____

Exchange of the listed companion animals or pets shall take place as follows:

_____

_____

☐ **7. RESPONDENT SHALL NOT INITIATE OR HAVE ANY CONTACT** by any means with the protected persons named in this Order or with their residences, businesses, places of employment, schools, day care centers, or child care providers. Contact includes, but is not limited to, landline, cordless, cellular or digital telephone; text; instant messaging; fax; e-mail; voicemail; delivery service; social media; blogging; writings; electronic communications; posting a message; or communications by any other means directly or through another person.

Respondent may not violate this Order **even with the permission of a protected person**. [NCIC 05]

☐ **8. RESPONDENT SHALL NOT** use any form of electronic surveillance on protected persons.

☐ **9. RESPONDENT SHALL NOT CAUSE OR ENCOURAGE ANY PERSON** to do any act prohibited by this Order.

☐ **10. RESPONDENT SHALL NOT POSSESS, USE, CARRY, OR OBTAIN ANY DEADLY WEAPON** at any time while the Order remains in effect for the safety and protection of the protected persons named in this Order. Furthermore, Respondent may be subject to firearms and ammunition restrictions pursuant to 18 U.S.C. 922(g)(1) through (9), 18 U.S.C. 922(n), or R.C. 2923.13. [NCIC 07]

RESPONDENT IS EXCEPTED only for official use pursuant to 18 U.S.C. 925(a)(1), if no other firearms and ammunition prohibitions apply.

☐ **11. RESPONDENT SHALL TURN OVER ALL DEADLY WEAPONS** owned by Respondent or in Respondent's possession to the law enforcement agency that serves Respondent with this Order no later than _____ or as follows:

_____

_____

_____

Any law enforcement agency is authorized to accept possession of deadly weapons pursuant to this paragraph and hold them in protective custody for the duration of this Order. [NCIC 07]

Law enforcement shall immediately notify the Court upon receiving Respondent's deadly weapons for protective custody as set forth in this Order.

Upon the expiration or termination of this Order and if a full hearing order is not granted, Respondent may reclaim any deadly weapons held in protective custody by law enforcement pursuant to this Order unless Respondent is otherwise disqualified as verified by a check of the NCIC protection order file.

12. RESPONDENT'S CONCEALED CARRY WEAPON LICENSE, if any, is now subject to R.C. 2923.128.

☐ **13. IT IS FURTHER ORDERED:** [NCIC 08]

_____

_____

_____

14. ALL DISCOVERY SHALL STRICTLY COMPLY with Civ.R. 65.1(D).

15. THE CLERK OF COURT SHALL CAUSE A COPY OF THE PETITION, THIS ORDER, AND ANY OTHER ACCOMPANYING DOCUMENTS to be served on Respondent as set forth in Civ.R. 65.1(C)(2). The Clerk of Court shall also provide copies of the Petition and certified copies of this Order to Petitioner upon request.

16. THIS ORDER DOES NOT EXPIRE because of a failure to serve notice of the full hearing upon Respondent before the date set for the full hearing or because the Court grants a continuance, as set forth in R.C. 2903.214(D)(2)(b).

17. IT IS FURTHER ORDERED NO COSTS OR FEES SHALL BE ASSESSED AGAINST PETITIONER for filing, issuing, registering, modifying, enforcing, dismissing, withdrawing, serving, subpoenaing witnesses for, or obtaining a certified copy of this Order. This Order is granted without bond.

IT IS SO ORDERED.

_____

JUDGE / MAGISTRATE

Case No._____

NOTICE TO RESPONDENT

NO PERSON PROTECTED BY THIS ORDER CAN GIVE YOU LEGAL PERMISSION TO CHANGE OR VIOLATE THE TERMS OF THIS ORDER. IF YOU VIOLATE ANY TERMS OF THIS ORDER EVEN WITH THE PROTECTED PERSON'S PERMISSION, YOU MAY BE HELD IN CONTEMPT OR ARRESTED. ONLY THE COURT CAN CHANGE THIS ORDER. YOU ACT AT YOUR OWN RISK IF YOU DISREGARD THIS WARNING.

A FULL HEARING on this Order, and on all other issues raised by the Petition, shall be held before Judge or Magistrate _____

on the _____ day of _____ , 20 _____

at _____ ☐a.m. ☐p.m. at the following location:

On the day of the Full Hearing, come prepared to (1) tell the Court what happened, (2) bring with you any witnesses, evidence, and documentation to prove your case, and (3) be aware that the other party or party's attorney may ask you questions. If you do not have an attorney, you may ask for a brief continuance to obtain an attorney per R.C. 2903.214(D)(2)(a)(iii) or you may represent yourself.

Parties do not have to give discovery, answer questions, or give information to the other party or the other party's lawyer unless ordered by judge or magistrate (Civ.R. 65.1(D)(2)).

TO THE CLERK

A COPY OF PETITION, THIS ORDER, AND ANY OTHER ACCOMPANYING DOCUMENTS SHALL BE SERVED ON RESPONDENT PURSUANT TO CIV.R. 65.1(C)(2). COPIES OF THIS ORDER AND ANY OTHER ACCOMPANYING DOCUMENTS SHALL BE

DELIVERED TO:

☐ Petitioner
☐ Petitioner's Attorney
☐ Law Enforcement Agency Where Petitioner Resides:

_____

☐ Sheriff's Office:

_____

☐Law Enforcement Agency Where Petitioner Works:

_____

☐ Other: _____

IN THE COURT OF COMMON PLEAS

_____ **COUNTY, OHIO**

Order of Protection

Per R.C. 2903.214(F)(3), this Order is indexed at

_____

LAW ENFORCEMENT AGENCY WHERE INDEXED

( ) -

PHONE NUMBER

Case No. _____

Judge _____

State **OHIO**

☐ **CIVIL STALKING PROTECTION ORDER FULL HEARING (R.C. 2903.214)**

☐ **CIVIL SEXUALLY ORIENTED OFFENSE PROTECTION ORDER FULL HEARING (R.C. 2903.214)**

PETITIONER:

_____

First Middle Last

v.

PERSON(S) PROTECTED BY THIS ORDER:

Petitioner _____ DOB: _____

Petitioner's Family or Household Members:
(☐ Additional forms attached)

_____ DOB: _____

_____ DOB: _____

_____ DOB: _____

_____ DOB: _____

RESPONDENT:

_____

First Middle Last

Relationship to Petitioner: _____

Address where Respondent can be found:

_____

_____

RESPONDENT IDENTIFIERS

SEX	RACE	HGT	WGT
EYES	**HAIR**	**DOB**	
		/ /	
DRIVER'S LIC. NO.		**EXP. DATE**	**STATE**

Distinguishing Features: _____

_____

☐ **WARNING TO LAW ENFORCEMENT: RESPONDENT HAS FIREARMS ACCESS – PROCEED WITH CAUTION**

Violence Against Women Act, 18 U.S.C. 2265, Federal Full Faith & Credit Declaration: Registration of this Order is not required for enforcement.

THE COURT HEREBY FINDS:

That it has jurisdiction over the parties and subject matter, and Respondent was provided with reasonable notice and opportunity to be heard within the time required by Ohio law. **Additional findings of this Order are set forth below.**

THE COURT HEREBY ORDERS:

That the above named Respondent be restrained from committing acts of abuse or threats of abuse against Petitioner and other protected persons named in this Order. Additional terms of this Order are set forth below.

Case No._____

The terms of this Order shall be effective until _____ / _____ / _____ **(DATE CERTAIN – 5 YEARS MAXIMUM)**

WARNING TO RESPONDENT: See the warning page attached to the front of this Order.

This proceeding came on for a hearing on _____ / _____ / _____ before the Court and the ☐ Civil Stalking Protection Order Ex Parte or ☐ Civil Sexually Oriented Offense Protection Order Ex Parte issued on _____ / _____ / _____, all in accordance with R.C. 2903.214. The following individuals were present:

The Court hereby makes the following findings of fact:

☐ **Additional findings on a separate page are included and attached herein.**

☐ The Court finds by a preponderance of the evidence that 1) Respondent has knowingly engaged in a pattern of conduct that caused Petitioner to believe that Respondent will cause physical harm or cause or has caused mental distress; and 2) the following orders are equitable, fair, and necessary to protect the persons named in this Order from stalking offenses.

☐ The Court finds by a preponderance of the evidence that 1) Petitioner or Petitioner's family or household members have been a victim of a sexually oriented offense as defined in R.C. 2950.01, committed by Respondent; and 2) the following orders are equitable, fair, and necessary to protect the persons named in this Order from sexually oriented offenses.

☐ The Court finds by clear and convincing evidence that 1) Petitioner or Petitioner's family or household members reasonably believed Respondent's conduct before the filing of the Petition endangered the health, welfare, or safety of Petitioner or Petitioner's family or household members; 2) Respondent presents a continuing danger to Petitioner or Petitioner's family or household members; and 3) the following orders are equitable, fair, and necessary to protect the persons named in this Order from experiencing a continuing danger.

RESPONDENT SHALL NOT ABUSE, harm, attempt to harm, threaten, follow, stalk, harass, force sexual relations upon, or commit sexually oriented offenses against the protected persons named in this Order. [NCIC 01 and 02]

ALL OF THE PROVISIONS CHECKED BELOW ALSO APPLY TO RESPONDENT

☐ **1. RESPONDENT SHALL NOT ENTER** the residence, school, business, place of employment, day care centers, or child care providers of the protected persons named in this Order, including the buildings, grounds, and parking lots at those locations. Respondent may not violate this Order **even with the permission of a protected person**. [NCIC 04]

☐ **2. RESPONDENT SHALL NOT INTERFERE** with the protected persons' right to occupy the residence including, but not limited to canceling utilities or insurance or interrupting telecommunication (e.g., telephone internet, or cable) services, mail delivery, or the delivery of any other documents or items. [NCIC 03]

☐ **3. RESPONDENT SHALL SURRENDER** all keys and garage door openers to the following residence:

_____

within 24 hours of service of this Order to the law enforcement agency that serves Respondent with this Order or as follows:

_____

_____

☐ **4. RESPONDENT SHALL STAY AWAY FROM PETITIONER** and all other protected persons named in this Order, and not be present within 500 feet or _____(distance) of any protected persons wherever those protected persons may be found, or any place Respondent knows or should know the protected persons are likely to be, **even with a protected person's permission**. If Respondent accidentally comes in contact with protected persons in any public or private place, Respondent must depart *immediately*. This Order includes encounters on public and private roads, highways, and thoroughfares. [NCIC 04]

☐ **5. RESPONDENT SHALL NOT REMOVE, DAMAGE, HIDE, OR DISPOSE OF ANY PROPERTY, COMPANION ANIMALS, OR PETS** owned or possessed by the protected persons named in this Order.

☐ **6. PETITIONER IS AUTHORIZED TO REMOVE THE FOLLOWING COMPANION ANIMALS OR PETS** owned by Petitioner from the possession of Respondent:

_____

Exchange of the listed companion animals or pets shall take place as follows:

_____

☐ **7. RESPONDENT SHALL NOT INITIATE OR HAVE ANY CONTACT** by any means with the protected persons named in this Order or with their residences, businesses, places of employment, schools, day care centers, or child care providers. Contact includes, but is not limited to, landline, cordless, cellular or digital telephone; text; instant messaging; fax; e-mail; voicemail; delivery service; social media; blogging; writings; electronic communications; posting a message; or communications by any other means directly or through another person.

Respondent may not violate this Order **even with the permission of a protected person**. [NCIC 05]

☐ **8. RESPONDENT SHALL NOT** use any form of electronic surveillance on protected persons.

☐ **9. RESPONDENT SHALL NOT CAUSE OR ENCOURAGE ANY PERSON** to do any act prohibited by this Order.

☐ **10. RESPONDENT SHALL NOT POSSESS, USE, CARRY, OR OBTAIN ANY DEADLY WEAPON** at any time while this Order remains in effect for the safety and protection of the protected persons named in this Order. Furthermore, Respondent may be subject to firearms and ammunition restrictions pursuant to 18 U.S.C. 922(g)(1) through (9), 18 U.S.C. 922(n), or R.C. 2923.13. [NCIC 07]

RESPONDENT IS EXCEPTED only for official use pursuant to 18 U.S.C. 925(a)(1), if no other firearms and ammunition prohibitions apply.

☐ **11. RESPONDENT SHALL TURN OVER ALL DEADLY WEAPONS OWNED** by Respondent or in Respondent's possession to the law enforcement agency that serves Respondent with this Order no later than _____ or as follows:

_____

_____

Any law enforcement agency is authorized to accept possession of deadly weapons pursuant to this paragraph and hold them in protective custody for the duration of this Order. [NCIC 07]

Law enforcement shall immediately notify the Court upon receiving Respondent's deadly weapons into protective custody as set forth in this Order.

Upon the expiration or termination of this Order, Respondent may reclaim any deadly weapons held in protective custody by law enforcement pursuant to this Order unless Respondent is otherwise disqualified as verified by a check of the NCIC protection order file.

12. RESPONDENT'S CONCEALED CARRY WEAPON LICENSE, if any, is now subject to R.C. 2923.128.

☐ **13. IT IS FURTHER ORDERED:** [NCIC 08]

_____

_____

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_____

_____

☐ **14. RESPONDENT SHALL COMPLETE** the following counseling program:

_____

Respondent shall contact this program within _____ days after receiving this Order and immediately arrange for an initial appointment. The counseling program is requested to provide the Court a written notice when Respondent attends the initial appointment, if Respondent fails to attend or is discharged, and when Respondent completes the program. Respondent is required to sign all necessary waivers to allow the Court to receive information from the counseling program.

☐ **Respondent is ordered to appear before Judge or Magistrate _____ on _____ / _____ / _____ at _____ ☐a.m. ☐p.m. to review Respondent's compliance with this counseling order. Respondent is warned: If you fail to attend the counseling program you may be held in contempt of court. If you fail to appear at this hearing, the Court may issue a warrant for your arrest.**

☐ **15. RESPONDENT SHALL NOT USE OR POSSESS** ☐alcohol or ☐ illegal drugs.

☐ **16. RESPONDENT SHALL BE SUBJECT TO ELECTRONIC MONITORING.** Respondent is ordered to report to _____ for placement of a global positioning system for the purpose of electronic monitoring for the duration of this Order or until _____ / _____ / _____ whichever expires first. The Court further imposes the following terms and conditions:

☐ **17.** The Clerk of Court shall cause a copy of this Order to be served on Respondent as set forth in Civ.R. 5(B) and 65.1(C)(3). The Clerk of Court shall also provide certified copies of this Order to Petitioner upon request.

18. IF THE FULL HEARING PROCEEDING WAS REFERRED TO A MAGISTRATE, the Court has reviewed the magistrate's granting of this Order and finds no error of law or other defect evident on the face of the Order. Accordingly, the Court adopts the magistrate's granting of this Order.

19. IT IS FURTHER ORDERED NO COSTS OR FEES SHALL BE ASSESSED AGAINST PETITIONER for filing, issuing, registering, modifying, enforcing, dismissing, withdrawing, serving, or subpoenaing witnesses or obtaining a certified copy of this Order. This Order is granted without bond.

20. THE COSTS OF THIS ACTION ARE ☐assessed against Respondent ☐waived.

IT IS SO ORDERED.

_____ _____

MAGISTRATE **JUDGE**

NOTICE TO RESPONDENT

NO PERSON PROTECTED BY THIS ORDER CAN GIVE YOU LEGAL PERMISSION TO CHANGE OR VIOLATE THE TERMS OF THIS ORDER. IF YOU VIOLATE THE TERMS OF THIS ORDER, EVEN WITH THE PROTECTED PERSON'S PERMISSION, YOU MAY BE HELD IN CONTEMPT OR ARRESTED. ONLY THE COURT CAN CHANGE THIS ORDER. YOU ACT AT YOUR OWN RISK IF YOU DISREGARD THIS WARNING.

NOTICE OF FINAL APPEALABLE ORDER

Copies of the foregoing Order, which is a final appealable order, were served on or delivered to the parties indicated pursuant to Civ.R. 5(B) and 65.1(C)(3), including ordinary mail

on _____/_____/_____

By: _____
CLERK OF COURT

TO THE CLERK

A COPY OF THIS ORDER SHALL BE SERVED ON RESPONDENT PURSUANT TO CIV.R. 65.1(C)(3).

COPIES OF THIS ORDER SHALL BE DELIVERED TO:

Petitioner

☐ Petitioner's Attorney
☐ Respondent's Attorney
☐ Law Enforcement Agency Where Petitioner Resides:
_____
☐ Law Enforcement Agency Where Petitioner Works:
_____
☐ Sheriff's Office
_____
☐ Other: _____

WAIVER

I, _____ (Respondent) understand that I have the right to a full hearing on the Petition for Civil Stalking Protection Order or Civil Sexually Oriented Offense Protection Order, and acknowledge each of the following:

1. I waive the right to have a full hearing on this Protection Order.
2. I waive the right to cross-examine witnesses and review evidence submitted in support of this Protection Order.
3. I waive the right to present witnesses and evidence on my own behalf.
4. I waive the right to file objections and recognize this may limit my right to appeal the issuance of this Protection Order.

I understand that based on the waivers listed above, a Protection Order will be entered against me.

_____ _____
RESPONDENT DATE

Case/Order No. _____

CIVIL PROTECTION ORDER FORM 27/CRIMINAL PROTECTION ORDER FORM 7: PROTECTION ORDER NOTICE TO NCIC

PROTECTION ORDER NOTICE TO NCIC (Required fields appear in bold print)

☐ **Initial NCIC Form** ☐ **Amended NCIC Form** ☐ **Removal from NCIC**

☐ **Service Completed (Law Enforcement Agency: If unchecked, presume Service Unknown)**

Pursuant to Civil Rule 65.1 and Criminal Rule 38, this information shall be promptly entered into the National Crime Information Center (NCIC) index.

SUBJECT NAME _____
(LAST) (FIRST) (M.I.)

ADDRESS _____
(STREET) (CITY) (STATE) (ZIP)

PHYSICAL DESCRIPTION: HGT _____ WGT _____ HAIR _____
EYES _____ RACE _____ SEX ☐M ☐F

NUMERICAL IDENTIFIER (NOTE: Only ONE of the 4 numerical identifiers is needed.)

1. SSN _____ - _____ - _____ 2. DOB _____ / _____ / _____

3.* DRIVER'S LIC. NO. _____ STATE _____ EXPIRATION YR. _____

4.* VEHICLE LIC. NO. _____ STATE _____ EXPIRATION YR. _____

(* If #3 or #4 is used as a numerical identifier, entire line MUST be completed.)

BRADY DISQUALIFIERS: Pursuant to 18 U.S.C. 922(g)(8), a "yes" response to all three Brady questions disqualifies the subject from purchasing or possessing any firearms, including a rifle, pistol, revolver, or ammunition.

- Does the Order protect an intimate partner or child(ren)? ☐ YES ☐ NO
- Did the subject have notice of the hearing and opportunity to participate in the hearing regarding the Order? ☐ YES ☐ NO
- Does the Order find the subject a credible threat or explicitly prohibit physical force? ☐ YES ☐ NO

CASE / ORDER NO. _____ (15 DIGIT MAXIMUM) **Is order term of probation/ community control?** ☐ YES ☐ NO

COURT ORIGINATING AGENCY IDENTIFIER _____ (9 DIGIT ORI ASSIGNED BY NCIC)

NAME OF JUDGE/MAGISTRATE _____

DATE OF ORDER _____ / _____ / _____ **EXPIRATION OF ORDER** _____ / _____ / _____
(IN R.C. 2919.26 AND 2903.213 CASES, "NONEXP" MAY BE USED)

TERMS AND CONDITIONS OF ORDER (Mark all that are applicable):

☐01 The subject is restrained from assaulting, threatening, abusing, harassing, following, interfering, or stalking the protected person and/or the child(ren) of the protected person.

☐02 The subject shall not threaten a member of the protected person's family or household.

☐03 The protected person is granted exclusive possession of the residence or household.

☐04 The subject is required to stay away from the residence, property, school, or place of employment of the protected person or other family or household member.

OHP DATA ONLY #EPO

☐05 The subject is restrained from making any communication with the protected person, including but not limited to, personal, written, or telephone contact, or their employer, employees, or fellow workers, or others with whom the communication would be likely to cause annoyance or alarm the victim.

☐06 The subject has visitation or custody rights of the child(ren) named in this Order.

☐07 The subject is prohibited from possessing and/or purchasing a firearm or other weapon as identified in the Miscellaneous Field.

☐08 See the Miscellaneous Field for comments regarding the specific terms and conditions of this Order.
Miscellaneous comments: _____

☐09 The protected person is awarded temporary exclusive custody of the child(ren) named.

LIST ALL PROTECTED PERSONS (Total of 9 allowed. **SSN is NOT necessary if DOB is given.**)

PROTECTED PERSON _____
(LAST) (FIRST) (M.I.)
DOB ___/___/___ SSN ___-___-___ RACE ___
SEX ☐M ☐F

PROTECTED PERSON _____
(LAST) (FIRST) (M.I.)
DOB ___/___/___ SSN ___-___-___ RACE ___
SEX ☐M ☐F

PROTECTED PERSON _____
(LAST) (FIRST) (M.I.)
DOB ___/___/___ SSN ___-___-___ RACE ___
SEX ☐M ☐F

PROTECTED PERSON _____
(LAST) (FIRST) (M.I.)
DOB ___/___/___ SSN ___-___-___ RACE ___
SEX ☐M ☐F

PROTECTED PERSON _____
(LAST) (FIRST) (M.I.)
DOB ___/___/___ SSN ___-___-___ RACE ___
SEX ☐M ☐F

PROTECTED PERSON _____
(LAST) (FIRST) (M.I.)
DOB ___/___/___ SSN ___-___-___ RACE ___
SEX ☐M ☐F

PROTECTED PERSON _____
(LAST) (FIRST) (M.I.)
DOB ___/___/___ SSN ___-___-___ RACE ___
SEX ☐M ☐F

PROTECTED PERSON _____
(LAST) (FIRST) (M.I.)
DOB ___/___/___ SSN ___-___-___ RACE ___
SEX ☐M ☐F

PROTECTED PERSON _____
(LAST) (FIRST) (M.I.)
DOB ___/___/___ SSN ___-___-___ RACE ___
SEX ☐M ☐F

Authorized by (signature): _____ ___/___/___
Judge/Magistrate (circle one) Date

CIVIL PROTECTION ORDER FORM 28/CRIMINAL PROTECTION ORDER FORM 8: INSTRUCTIONS FOR COMPLETING A PROTECTION ORDER NOTICE TO NCIC

Civil Protection Order Form 27/Criminal Protection Order Form 7: Protection Order Notice to NCIC, is the mechanism to enter protection orders or consent agreements into the FBI's National Crime Information Center ("NCIC") Protection Order file. Inaccurate or inconsistent information on Civil Protection Order Form 27/Criminal Protection Order Form 7 will delay entering the court order into the NCIC index; result in improper enforcement of the order; and impermissibly allow or deny a person from owning, possessing, purchasing, or transporting firearms and ammunition. Civil Protection Order Form 27/Criminal Protection Order Form 7 must be completed each time the court grants, approves, modifies, renews, or terminates a criminal or civil *ex parte* or full hearing protection order or consent agreement or otherwise makes a clerical correction on a previously issued order or agreement.

Courts are encouraged to verify that orders are timely entered.

ELEMENTS OF CIVIL PROTECTION ORDER FORM 27/CRIMINAL PROTECTION ORDER FORM 7

(A) Although Civil Protection Order Form 27/Criminal Protection Order Form 7 is the primary method to inform law enforcement of the terms and conditions of a protection order or consent agreement, it is not a substitution for a protection order or judgement entry.

(B) The court must mark the appropriate box:

- **Initial NCIC Form:** This box indicates the court is issuing a criminal or civil protection order or approving a consent agreement for the first time.
- **Amended NCIC Form:** This box points out to law enforcement that the original terms of an existing protection order or consent agreement have been modified, including modifications due to clerical errors.
- **Removal from NCIC:** This box notifies law enforcement that the protection order or consent agreement is no longer valid and the order must be removed from the NCIC protection order database active file, regardless of the reason.
- **Service Completed:** This box is marked if the court has knowledge that service of process has been perfected as set forth in Civ.R. 65.1 and Crim.R.49. The protection order should be entered promptly regardless of service.

(C) **NUMERICAL IDENTIFIER.** Although the FBI only requires one numerical identifier, the court should provide additional numerical identifiers, if available, to facilitate identification of the subject of the protection order.

(D) **BRADY DISQUALIFIERS.** All of the following requirements must be met to result in firearms disability pursuant to 18 U.S.C. 922(g)(8):

- Existence of an intimate relationship between the protected parties and Respondent or Defendant, i.e., spouse, former spouse, an individual who cohabits or has cohabited with Respondent or Defendant, and an individual who is a parent of a child of the Respondent or Defendant;
- Respondent or Defendant had actual notice of the hearing and an opportunity to participate;
- The court made a finding in the order that Respondent or Defendant poses a credible threat of harm or the order explicitly prohibits Respondent or Defendant from the use, attempted use, or threatened use of physical force against an intimate partner or child.

In addition to the firearms and ammunition prohibition per 18 U.S.C. 922(g)(8), a Respondent or Defendant may be firearms and ammunition disqualified as result of other circumstances, e.g., 18 U.S.C. 922(g)(1) through (9), state law, or a court order.

(E) **DATE OF ORDER AND EXPIRATION OF ORDER.** The NCIC protection order database will automatically render a record inactive on the order's expiration date. Protection orders issued pursuant to R.C. 2903.213 or 2919.26 may indicate "NONEXP." Upon disposition of the criminal case or the issuance of a civil protection order arising out of the same facts, the court must send to law enforcement another Civil Protection Order Form 27/Criminal Protection Order Form 7 indicating Removal from the NCIC and state the expiration date of the order.

(F) **TERMS OF ORDER.** The court must check every box that corresponds to the terms of the protection order. Note that the numbering next to each term in Civil Protection Order Form 27/Criminal Protection Order Form 7 does not correspond to the sequence of remedies in a protection order or consent agreement. However, the remedies in the protection order forms are cross-referenced with the terms and conditions listed in Civil Protection Order Form 27/Criminal Protection Order Form 7, e.g., NCIC 01.

In every instance that the court changes a term of the protection order or consent agreement, e.g., divorce decree, custody order, continuance of hearing, or extension of the protection order, the court must submit Civil Protection Order Form 27/Criminal Protection Order Form 7 or a form that is substantially similar, indicate the applicable terms to law enforcement and mark "Amended NCIC Form."

IN THE COURT OF COMMON PLEAS
_____ COUNTY, OHIO

	:	Case No. _____
Petitioner	:	Judge/Magistrate _____
v.	:	**WIRELESS SERVICE TRANSFER ORDER IN DOMESTIC VIOLENCE CIVIL PROTECTION ORDER**
Respondent		

This Court issued a Domestic Violence Civil Protection Order, pursuant to R.C. 3113.31, on _____

Wireless service provider or reseller agent is _____

The account holder name and billing telephone number: _____

THE COURT HEREBY ORDERS:

Within 72 hours after receipt of this Order, the wireless service provider shall transfer to Petitioner _____ each of the following telephone numbers listed below:

_____

_____

That the provider transfer to Petitioner all financial responsibility for any costs associated with the wireless service numbers and any costs for the devices associated with the wireless service numbers from the date of transfer forward.

That this Order shall be automatically suspended upon the wireless service provider's notification to Petitioner that one of the following circumstances apply:

1. The account holder named in this Order has terminated the account.
2. The differences in network technology prevent the functionality of a device on the network if transfer occurs.
3. There are geographic or other limitations on network or service availability to Petitioner.
4. Another operational or technical issue prevents or impairs the use of the wireless service number if the transfer occurs.

That the wireless service provider shall notify Petitioner within 72 hours after receipt of the Order that based on the circumstances listed above the transfer could not be operationally or technically completed.

Petitioner's contact information as listed in the Domestic Violence Civil Protection Order Petition is:

_____

_____

_____

IT IS SO ORDERED.

MAGISTRATE **JUDGE**

REQUEST FOR SERVICE

A copy of this Order shall be served pursuant to R.C. 3113.454 on the wireless service provider or reseller agent listed with the Ohio Secretary of State.

IN THE COURT OF COMMON PLEAS

_____ COUNTY, OHIO

Petitioner	:	Case No. _____
Address (Safe mailing address)	:	Judge/Magistrate _____
City, State, Zip Code	:	
v.	:	**MOTION TO MODIFY OR TERMINATE DOMESTIC VIOLENCE OR DATING VIOLENCE CIVIL PROTECTION ORDER OR CONSENT**
	:	**AGREEMENT**
Respondent		**(R.C. 3113.31)**
	:	
Address		
	:	
City, State, Zip Code		

IF YOU ARE ASKING FOR YOUR ADDRESS TO BE KEPT CONFIDENTIAL, PLEASE PUT A MAILING ADDRESS WHERE YOU CAN SAFELY RECEIVE MAIL. IF YOU ARE A PARTICIPANT IN THE SECRETARY OF STATE'S ADDRESS CONFIDENTIALITY PROGRAM, PLEASE USE THE P.O. BOX ADDRESS GIVEN TO YOU. THIS FORM IS A PUBLIC RECORD.

☐ Petitioner ☐ Respondent moves this Court to modify or terminate the following Order:

☐ Domestic Violence Civil Protection Order granted on _____
☐ Dating Violence Civil Protection Order granted on _____
☐ Consent Agreement Domestic Violence Civil Protection Order approved on _____
☐ Consent Agreement Dating Violence Civil Protection Order approved on _____

In the original proceeding, I was the ☐Petitioner ☐Respondent.

1. The terms of the civil protection order or consent agreement to be modified or terminated are:

_____
_____
_____

2. The reasons for the modification or termination are:

_____
_____
_____

3. Court fees cannot be assessed against Petitioner for filing a Motion to Modify or Terminate Civil Protection Order or Consent Agreement, which is in connection with a previously issued or approved protection order or consent agreement, pursuant to R.C. 3113.31(J)(1).

Respectfully submitted,

_____

SIGNATURE OF PETITIONER/RESPONDENT

Safe mailing address where the Court may send the moving party (YOU) mail. **If you are a participant in the Secretary of State's address confidentiality program, please use the P.O. Box address given to you.**

_____

_____

_____

_____

_____

Signature of Attorney for Petitioner/Respondent (if applicable)

_____

Name

_____

_____

_____

Address

_____

Attorney Registration

_____

Attorney's Telephone

_____

Attorney's Fax

_____

_____

Attorney's Email

Case No._____

IN THE COURT OF COMMON PLEAS

_____ **COUNTY, OHIO**

Petitioner	:	Case No. _____
v.	:	Judge/Magistrate _____
Respondent	:	

REQUEST FOR SERVICE

TO THE CLERK OF COURT:

Pursuant to Civ.R. 65.1(C)(4), please serve ☐ Petitioner ☐ Respondent a copy of the Motion and any other accompanying documents to the address below and as follows:

_____

_____

☐ Personal service ☐ Certified Mail, Return Receipt Requested

☐ Other (specify) _____

☐ Other (address): _____

☐ Personal Service ☐ Certified Mail, Return Receipt Requested

☐ Other (specify) _____

SPECIAL INSTRUCTIONS TO SHERIFF:

_____

_____

_____

_____

SIGNATURE OF ATTORNEY OR PETITIONER / RESPONDENT

RETURN OF SERVICE

Respondent was served on _____ .

_____ _____

Officer and Badge Number Law Enforcement Agency

_____

Date

CLERK'S CERTIFICATE OF MAILING

Service of Process was sent by _____ this _____ day of _____ .

Attest: _____ Deputy Clerk

IN THE COURT OF _____

_____ **COUNTY, OHIO**

_____	:	Case No. _____
Petitioner	:	**NOTICE OF RECEIPT**
v.	:	
_____	:	
Respondent	:	

Pursuant to an ex parte or full hearing civil or criminal protection order issued pursuant to R.C. 2151.34, 2903.213, 2903.214, 2919.26, or 3113.31, law enforcement was instructed to notify the Court upon receiving Respondent's deadly weapons, including firearms, and ammunition for protective custody.

I hereby notify the Court that on _____ Respondent turned in deadly weapons, including firearms, and ammunition for protective custody. Attached is a copy of the receipt.

_____

_____

_____

☐ The deadly weapons, firearms, and ammunition were not turned in for protective custody in accordance with the Order. Respondent reported the deadly weapons, including firearms, and ammunition were:

☐ Transferred to a federal firearms licensee: _____

☐ Other: _____

_____

_____

_____ _____

Officer and Badge Number Law Enforcement Agency

_____

Date

This Notice shall be returned to the Clerk of Court for entry into the docket

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

SURVIVING SPOUSE, CHILDREN, NEXT OF KIN, LEGATEES AND DEVISEES

[R.C. 2105.06, 2106.13 and 2107.19]

[Use with those applications or filings requiring some or all of the information in this form, for notice or other purposes. Update as required.]

The following are decedent's known surviving spouse, children, and the lineal descendants of deceased children. If none, the following are decedent's next of kin who are or would be entitled to inherit under the statutes of descent and distribution.

Name	Residence Address	Relationship to Decedent	Birthdate of Minor
		Surviving Spouse	

[Check whichever of the following is applicable]

☐ The surviving spouse is the natural or adoptive parent of all of the decedent's children.

☐ The surviving spouse is the natural or adoptive parent of at least one, but not all, of the decedent's children.

☐ The surviving spouse is not the natural or adoptive parent of any of the decedent's children.

☐ There are minor children of the decedent who are not the children of the surviving spouse.

☐ There are minor children of the decedent and no surviving spouse.

CASE NO. _____

The following are the vested beneficiaries named in the decedent's will:

Name	Residence Address	Birthdate of minor

[Check whichever of the following is applicable]

☐ The will contains a charitable trust or a bequest or devise to a charitable trust, subject to R.C. 109.23 to 109.41.

☐ The will is not subject to R.C. 109.23 to 109.41 relating to charitable trusts.

_____ _____

Date Applicant (or give other title)

_____

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

APPLICATION TO PROBATE WILL

[R.C. 2107.11, 2107.18, and 2107.19]

Applicant states that decedent died on _____

Decedent's domicile was _____
Street Address

_____
City or Village, or Township if unincorporated area County

_____
Post Office State Zip Code

A document purporting to be decedent's last will is attached and offered for probate, and applicant waives notice of probate of this will.

Decedent's surviving spouse, children, next of kin, and legatees and devisees, known to applicant, are listed on the attached Form 1.0.

_____	_____
Attorney for Applicant	Applicant
_____	_____
Typed or Printed Name	Typed or Printed Name
_____	_____
Address	Address
_____	_____
_____	_____
Phone Number (include area code)	Phone Number (include area code)

Attorney Registration No. _____

WAIVER OF NOTICE OF PROBATE OF WILL

The undersigned, being persons entitled to notice of the probate of this will, waive such notice. After a certificate is filed evidencing these waivers and any notices given, any action to contest the validity of this will must be filed no more than three months after the filing of the certificate for estates of decedents who die on or after January 1, 2002, and no more than four months after the filing of the certificate for estates of decedents who die before January 1, 2002.

_____	_____
_____	_____
_____	_____
_____	_____

CASE NO. _____

ENTRY ADMITTING WILL TO PROBATE

The Court finds that the purported will of decedent, either on its face or from testimony of the witnesses, complies with applicable law. It is therefore admitted to probate and ordered recorded. The Court further orders that notice of the probate be given to all parties entitled to notice.

_____ _____

Date Probate Judge

CERTIFICATE OF WAIVER OF NOTICE

The undersigned states that all persons entitled to notice:

[Check applicable boxes]

☐ Have waived notice of the application for probate of this will or of a contest as to jurisdiction.

☐ Have waived notice of this will's admission to probate. The waivers are filed herein.

☐ Have not been notified because their names or places of residence are unknown and cannot with reasonable diligence be ascertained.

_____

☐ Fiduciary
☐ Applicant for the admission of this will to probate
☐ Applicant for a release from administration
☐ Other interested person
☐ Attorney for any of the above

Attorney Registration No. _____

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

WAIVER OF NOTICE OF PROBATE OF WILL

[R.C. 2107.19(A)(2)]

The undersigned, being persons entitled to notice of the probate of this will, waive such notice. After a certificate is filed evidencing these waivers and any notices given, any action to contest the validity of this will must be filed no more than three months after the filing of the certificate for estates of decedents who die on or after January 1, 2002, and no more than four months after the filing of the certificate for estates of decedents who die before January 1, 2002.

_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

NOTICE OF PROBATE OF WILL

[R.C. 2107.19(A)]

To: _____

_____

_____

You are hereby notified that the decedent died on _____, _____, that the decedent's will was admitted to probate by this Court located at _____ _____ Ohio, on _____, _____.
This notice is given to all persons who would be entitled to inherit from the decedent had the decedent died intestate and to all legatees and devisees named in this will who do not waive notice. You are receiving this notice as: [check all of the following that apply]

☐ The Surviving Spouse.

☐ A person who would be entitled to inherit from the decedent had the decedent died intestate.

☐ A legatee or devisee named in the will.

After a certificate is filed evidencing any notices given, any action to contest the validity of this will must be filed no more than three months after the filing of the certificate for estates of decedents who die on or after January 1, 2002, and no more than four months after the filing of the certificate for estates of decedents who die before January 1, 2002.

_____
Date

_____
Typed or Printed Name

_____
Address

_____

_____
Phone Number (include area code)

_____

☐ Fiduciary
☐ Applicant for the admission of this will to probate
☐ Applicant for a release from administration
☐ Other interested person
☐ Attorney for any of the above

Attorney Registration No. _____

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____,
DECEASED

CASE NO. _____

ENTRY ADMITTING WILL TO PROBATE

The Court finds that the purported will of decedent, either on its face or from testimony of the witnesses, complies with the applicable law. It is therefore admitted to probate, and ordered recorded. The Court further orders that notice of the probate be given to all parties entitled to notice.

_____ _____
Date Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____,
DECEASED

CASE NO. _____

CERTIFICATE OF SERVICE OF NOTICE OF PROBATE OF WILL

[R.C. 2107.19(A)(3)]

The undersigned states that all persons entitled to notice:

[Check all applicable boxes]

☐ Have waived notice of the admission of this will to probate. The waivers are filed herein.

☐ Have received notice of the admission of this will to probate.

☐ Have been notified of the hearing on the probate of this will or a contest as to jurisdiction.

☐ Evidence of notification is filed herein.

☐ Have not been notified because their names or places of residence are unknown and cannot with reasonable diligence be ascertained.

_____

☐ Fiduciary
☐ Applicant for the admission of this will to probate
☐ Applicant for a release from administration
☐ Other interested person
☐ Attorney for any of the above

Attorney Registration No. _____

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

ESTATE OF _____, DECEASED

CASE NO. _____

APPOINTMENT OF APPRAISER

[R.C. 2115.02 & R.C. 2115.06]

☐ The fiduciary / applicant appoints _____ to appraise those assets of decedent's estate which do not have readily ascertainable value, and asks the Court to approve the appointment. Subject to Court approval on the amount of such compensation, the fiduciary agrees to pay the appraiser reasonable compensation for the services as part of the expenses of administering the estate.

☐ The fiduciary / applicant will use the valuation of the real property by the County Auditor.

CERTIFICATION

The fiduciary / applicant hereby certifies that the appraiser appointed above is qualified in accordance with the Local Rules of Court

_____ _____

Date Fiduciary / Applicant

ENTRY APPROVING APPRAISER / ENTRY SETTING HEARING

☐ The application is hereby approved.

☐ The Court sets _____ at _____o'clock ___.M. as the date and time for hearing the above appointment of appraiser.

_____ _____

Date Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

APPLICATION FOR AUTHORITY TO ADMINISTER ESTATE

[R.C. 2109.02 and 2109.07]

[For Executors and all Administrators; attach supplemental application for ancillary administration, if applicable]

Applicant states that decedent died on _____

Decedent's domicile was _____
Street Address

_____
City or Village, or Township if unincorporated area County

_____
Post Office State Zip Code

Applicant asks to be appointed _____ of decedent's estate. **[Check whichever of the following are applicable]** - ☐ To applicant's knowledge, decedent did not leave a Will - ☐ Decedent's Will has been admitted to probate in this Court - ☐ A supplemental application for ancillary administration is attached.

Attached is a list of the surviving spouse, children, next of kin, and legatees and devisees, known to applicant, which list includes those persons entitled to administer the estate.

The estimated value of the estate is:

Personal property..... $ _____

Annual real property rentals..... $ _____

Subtotal, personalty and rentals..... $ _____

Real Property..... $ _____

Total estimated estate..... $ _____

Applicant owes the estate..... $ _____

The estate owes applicant..... $ _____

[Check one of the following four paragraphs]

☐ Applicant says that decedent's Will requests that no bond be required, and therefore asks the Court to dispense with bond.

☐ Applicant is a trust company duly qualified in Ohio, and bond is dispensed with by law.

CASE NO. _____

☐ Applicant is decedent's surviving spouse and is entitled to the entire net proceeds of the estate, or applicant is the next of kin entitled to the entire net proceeds of the estate and there is no will. Bond is dispensed with by law.

☐ Applicant offers the attached bond in the amount of $ _____.

Applicant accepts the duties of fiduciary in the estate imposed by law, and such additional duties as may be required by the Court. Applicant acknowledges being subject to removal as fiduciary for failure to perform such duties as required, and also acknowledges being subject to criminal penalties for improper conversion of any property held as fiduciary.

_____	_____
Attorney for Applicant	Applicant
_____	_____
Typed or Printed Name	Typed or Printed Name
_____	_____
Address	Address
_____	_____
_____	_____
Phone Number (include area code)	Phone Number (include area code)

Attorney Registration No. _____

WAIVER OF RIGHT TO ADMINISTER

[R.C. 2113.06]

The undersigned, being persons entitled to administer decedent's estate, and whose priority of right to do so is equal or superior to that of applicant, hereby waive appointment to administer the estate.

_____	_____
_____	_____
_____	_____
_____	_____

ENTRY SETTING HEARING AND ORDERING NOTICE

The Court sets _____, at _____ o'clock _____. M. as the date and time for hearing the application for authority to administer decedent's estate. The Court orders notice to take or renounce administration to be given those persons entitled to administer decedent's estate, whose priority of right to do so is equal or superior to that of applicant, and who have not waived appointment to administer the estate.

_____	_____
Date	Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

SUPPLEMENTAL APPLICATION FOR ANCILLARY ADMINISTRATION

Applicant says that the decedent named in the attached application for authority to administer the estate died **[check one of the following]** - ☐ owning property in this county - ☐ having a debtor residing in this county.

Applicant is a resident of Ohio.

[Check one of the following three paragraphs]

☐ Applicant is the general executor named in decedent's Will, and is duly appointed, qualified and acting in that capacity in the state of _____. An exemplified record of the grant of his letters of authority is attached.

☐ Applicant is named in decedent's Will as executor of his Ohio estate.

☐ Applicant is a resident of this county. Decedent either died intestate, or did not designate an Ohio executor or administrator in his Will.

[Check if applicable] - ☐ An authenticated copy of decedent's Will, duly proved in another state, is attached and offered for record.

The estimated value of decedent's Ohio estate is $ _____.

_____
Applicant

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF_____, DECEASED

CASE NO. _____

FIDUCIARY'S BOND

[For Executors and all Administrators]

Amount of bond $ _____

The undersigned principal, and sureties if any, are obligated to the State of Ohio in the above amount, for payment of which we bind ourselves and our successors, heirs, executors, and administrators, jointly and severally.

The principal has accepted in writing the duties of fiduciary in decedent's estate, including those imposed by law and such additional duties as may be required by the Court.

This obligation is void if the principal performs such duties as required.

This obligation remains in force if the principal fails to perform such duties, or performs them tardily, negligently, or improperly, or if the principal misuses or misappropriates estate assets or improperly converts them to his own use or the use of another.

[Check if personal sureties are involved.] ☐ The sureties certify that each of them owns real estate in this county, with a reasonable net value as stated below.

_____
Date

_____
Principal

_____
Surety

_____
Surety

by _____
Attorney in Fact

by _____
Attorney in Fact

_____
Typed or Printed Name

_____
Typed or Printed Name

_____
Address

_____
Address

_____

_____

Net value of real estate owned in this county

$ _____

Net value of real estate owned in this county

$ _____

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

WAIVER OF RIGHT TO ADMINISTER

Application of _____ for appointment to administer decedent's estate.

The undersigned, being persons entitled to administer decedent's estate, and whose priority of right to do so is equal or superior to that of the applicant, hereby waive appointment to administer the estate.

_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

NOTICE AND CITATION OF HEARING ON APPOINTMENT OF FIDUCIARY

[R.C. 2113.06 and 2113.07]

To the following persons:

_____ Name	_____ Address
_____ Name	_____ Address
_____ Name	_____ Address
_____ Name	_____ Address
_____ Name	_____ Address

_____ has filed an application in this Court, asking to be appointed to administer decedent's estate.

The hearing on the application will be held _____ at _____ o'clock _____ M. in this Court.

The Court is located at _____

_____

You are one of the persons entitled to administer decedent's estate, and if you wish to be considered for appointment to do so you must apply to this Court. If you do not apply, it will be considered that you renounce your right to administer the estate. The Court may appoint any suitable and competent person to administer the estate, giving due weight to relative priority of right to do so. Even if you decline appointment yourself, if you know of any reason why the above applicant is not suitable or competent, you should appear and inform the Court.

_____
Probate Judge/Deputy Clerk

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF_____, DECEASED

CASE NO. _____

ENTRY APPOINTING FIDUCIARY; LETTERS OF AUTHORITY

[For Executors and all Administrators]

Name and Title of Fiduciary _____
_____

On hearing in open Court the application of the above fiduciary for authority to administer decedent's estate, the Court finds that;

Decedent died **[check one of the following]** ☐ testate - ☐ intestate - on _____, domiciled in _____.

[Check one of the following] ☐ Bond is dispensed with by the Will - ☐ Bond is dispensed with by law - ☐ Applicant has executed and filed an appropriate bond, which is approved by the Court; and

Applicant is a suitable and competent person to execute the trust.

The Court therefore appoints applicant as such fiduciary, with the power conferred by law to fully administer decedent's estate. This entry of appointment constitutes the fiduciary's letters of authority.

_____ _____
Date PROBATE JUDGE

CERTIFICATE OF APPOINTMENT AND INCUMBENCY

The above document is a true copy of the original kept by me as custodian of the records of this Court. It constitutes the appointment and letters of authority of the named fiduciary, who is qualified and acting in such capacity.

_____
Probate Judge/Clerk

by

_____
[Seal]

_____
Date

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

APPLICATION TO RELIEVE ESTATE FROM ADMINISTRATION

[R.C. 2113.03]

Applicant states that decedent died on _____

Decedent's domicile was _____
Street Address

_____
City or Village, or Township if unincorporated area County

_____
Post Office State Zip Code

[Check one of the following]
☐ Decedent's will has been admitted to probate in this Court.
☐ To applicant's knowledge, decedent did not leave a will.

[Check one of the following]
☐ The assets are $15,000 or less and decedent died on or after January 1, 1976.
☐ The assets are $25,000 or less and decedent died on or after October 20, 1987.
☐ The assets are $35,000 or less and decedent died on or after November 9, 1994.
☐ The assets are $50,000 or less; the surviving spouse is entitled to all of the assets and the decedent died on or after April 16, 1993.
☐ The assets are $85,000 or less; the surviving spouse is entitled to all of the assets and the decedent died on or after September 14, 1993.
☐ The assets are $100,000 or less; the surviving spouse is entitled to all of the assets and the decedent died on or after March 18, 1999.

Applicant asks that the estate be relieved from administration because the assets do not exceed the statutory limits. A statement of the assets and liabilities of the estate is listed on the attached Form 5.1.

The decedent's surviving spouse, next of kin, legatees, and devisees known to applicant, are listed on the attached Form 1.0.

_____	_____
Attorney for Applicant	Applicant
_____	_____
Typed or Printed Name	Typed or Printed Name
_____	_____
Address	Address
_____	_____
_____	_____
Phone Number (include area code)	Phone Number (include area code)

Attorney Registration No. _____

WAIVER OF NOTICE

The undersigned surviving spouse, heirs at law, legatees, devisees, and other persons entitled to notice of the filing of the application to relieve decedent's estate from administration, waive such notice.

_____ _____

_____ _____

_____ _____

_____ _____

ENTRY SETTING HEARING AND ORDERING NOTICE

The Court sets _____, at _____ o'clock _____. M., as the date and time for hearing the application to relieve decedent's estate from administration.

[Check one of the following]

☐ All notice is dispensed with as unnecessary.

☐ Notice by publication to interested parties is dispensed with as unnecessary. Written notice shall be given, as provided by law and the Rules of Civil Procedure, to those persons entitled to notice, who have not waived notice.

☐ Written notice is dispensed with as unnecessary. Notice by publication shall be given to interested parties as provided by law and the Rules of Civil Procedure.

☐ Written notice shall be given to those persons entitled to notice, who have not waived notice, and notice by publication shall be given to interested parties, as provided by law and the Rules of Civil Procedure.

_____ _____

Date Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

ASSETS AND LIABILITIES OF ESTATE TO BE RELIEVED FROM ADMINISTRATION

Following is a summary statement of the character and value of the assets in decedent's estate [Insert a check in the "Appraised" column opposite an item if it was valued by the appraiser. Leave blank if the readily ascertainable value of the item was determined by applicant. Use extra sheets if necessary.]

Automobiles distributed to surviving spouse by affidavit	**Value**
First automobile selected by surviving spouse under R.C. 2106.18 [Omit value when computing total assets] - - - - - - - - - - Appraised value $	XXXX
Second automobile selected by surviving spouse under R.C. 2106.18 [Omit value when computing total assets] - - - - - - - - - - Appraised value $	XXXX
Total value [not to exceed $40,000.00] $	XXXX

Character of asset	**Appraised**	**Value**
Real Estate, described in accompanying Certificate of Transfer No.		$
Other assets		$
Total Assets		$

Following is a list of decedent's known debts. [Use extra sheets if necessary]

Name of Creditor	Nature of Debt	Amount
		$
Total Debts		$

CERTIFICATION

The undersigned appraiser agreed to act as appraiser of decedent's estate, and to appraise the property exhibited truly, honestly, impartially, and to the best of the appraiser's knowledge and ability. The appraiser further says that those assets whose values were not readily ascertainable are indicated above by a check in the "Appraised" column opposite each such item, and that such values are correct.

The undersigned applicant determined the value of those assets whose values were readily ascertainable and were not appraised by the appraiser, and that such values are correct, and to applicant's knowledge the above list of decedent's debts is correct.

_____
Date

_____ _____
Appraiser Applicant

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

WAIVER OF NOTICE OF APPLICATION TO RELIEVE ESTATE FROM ADMINISTRATION

The undersigned surviving spouse, heirs at law, legatees, devisees, and other persons entitled to notice of the filing of the application to relieve decedent's estate from administration, waive such notice.

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

NOTICE OF APPLICATION TO RELIEVE ESTATE FROM ADMINISTRATION

To the following persons:

_____ Name	_____ Address _____
_____ Name	_____ Address _____
_____ Name	_____ Address _____
_____ Name	_____ Address _____
_____ Name	_____ Address _____

An application has been filed in this Court asking that decedent's estate be relieved from administration, saying that the assets in the estate do not exceed the statutory limits.

The hearing on the application will be held _____ at _____ o'clock _____ M. in this Court.

The Court is located at _____

_____

If you know of any reason why the application should not be granted, you should appear and inform the Court.

_____
Probate Judge/Deputy Clerk

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

PUBLICATION OF NOTICE

[Use when only one estate included in notice]

To: _____
Newspaper of General Circulation in the County

Please publish the following notice [check one of the following] - ☐ once - ☐ once per week for two consecutive weeks - ☐ once per week for three consecutive weeks. When publication is complete, fill out the attached proof of publication and return to the Court.

"TO ALL PERSONS INTERESTED IN THE ESTATE OF _____
Decedent's Name

DECEASED, LATE OF _____
Decedent's Address

_____ COUNTY PROBATE COURT, CASE NO. _____

An application as been filed asking to relieve the estate from administration, saying that the assets do not exceed the statutory limits. A hearing on the application will be held _____, at _____ o'clock ____.m. Persons knowing any reason why the application should not be granted should appear and inform the Court. The Court is located _____

_____."

_____
Probate Judge/Deputy Clerk

(Reverse of Form 5.4)

PROOF OF PUBLICATION

As directed by the Court, the attached notice was published in the named newspaper, in editions dated

_____

The cost of publication is $ _____

_____
Editor [or give other title]

_____

[Attach copy of printed notice below]

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

PUBLICATION OF NOTICE

[Use when multiple estates are included in same notice]

To: _____
Newspaper of General Circulation in the County

Please publish the following notice [check one of the following] - ☐ once - ☐ once per week for two consecutive weeks - ☐ once per week for three consecutive weeks. When publication is complete, fill out the attached proof of publication and return to the Court.

"TO ALL PERSONS INTERESTED IN THE FOLLOWING DECEDENT'S ESTATE PENDING IN THE _____ COUNTY PROBATE COURT. Applications have been filed asking to relieve the estates from administration, saying that the assets in each case do not exceed the statutory limits. Persons knowing any reason why any such application should not be granted should appear and inform the Court. The Court is located _____

_____."

The decedent's name, case number, and the date and time for hearing in each case are as follows:

Decedent's Name and Address	Case Number	Date of Hearing	Time

FORM 5.5 - PUBLICATION OF NOTICE
PROOF OF PUBLICATION

(Reverse of Form 5.5)

As directed by the Court, the attached notice was published in the named newspaper, in editions dated

_____

The cost of publication is $ _____

_____
Editor [or give other title]

_____

[Attach copy of printed notice below]

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

ENTRY RELIEVING ESTATE FROM ADMINISTRATION

[R.C. 2113.03]

Upon hearing the application to relieve decedent's estate from administration, the Court finds that:

Decedent died [check one of the following] - ☐ testate - ☐ intestate. The date of death and domicile are as stated in the application, and the Court has jurisdiction over the estate;

Notice to the surviving spouse, heirs at law, legatees, devisees, and other persons was duly effected or dispensed with by the Court as unnecessary;

The values of the several assets in the estate, given in the application do not exceed the statutory limits.

The Court therefore relieves the estate from administration, and orders [check and complete whichever of the following are applicable]:

☐ That the following personal property be sold [describe]:

_____

_____

☐ That the following debts of decedent shall be paid to the extent of assets:

_____

_____

☐ That the statutory family allowance be paid to the ☐ surviving spouse - ☐ minor children of the decedent - ☐ apportioned between the surviving spouse and minor children of the decedent who are not the children of the surviving spouse. Attach Form 7.2A if necessary.

☐ That Certificate of Transfer No. _____, attached to the application and describing decedent's real estate, issue and be preserved in the records of the Court and that authenticated copies of the certificate be delivered as required to the persons entitled to them;

☐ That the financial institutions holding accounts in decedent's name as set forth below pay the same upon proper tax release [check one of the following] -☐ to the commissioner - ☐ to

_____

_____

_____

☐ That the remainder of the estate be distributed in cash or in kind, as follows:

Name of Distributee	Property	Value or Amount
		$

The Court appoints _____ commissioner, to receive and sell or distribute the personal property or proceeds thereof, and to execute all necessary documents of conveyance, including without limitation those necessary to transfer title to any motor vehicle, motorcycle, watercraft, or other titled personal property sold or distributed in kind. The commissioner shall complete the duties and report to the Court within sixty days of the date of this entry.

_____ _____

Date PROBATE JUDGE

PROBATE COURT OF _____ COUNTY, OHIO
_____, JUDGE

ESTATE OF _____, DECEASED

CASE NO. _____

APPLICATION FOR SUMMARY RELEASE FROM ADMINISTRATION [R.C. 2113.031]

Applicant states that decedent died on _____.

Decedent's domicile was _____.
Street Address

_____
City or Village, or Township if unincorporated area County

_____.
Post Office State Zip Code

[Check one of the following]

☐ The applicant is decedent's surviving spouse entitled to one hundred percent of the allowance for support and decedent's funeral and burial expenses have been prepaid or the surviving spouse has paid or is obligated in writing to pay decedent's funeral and burial expenses and the value of the assets does not exceed the $40,000 allowance for support under R.C. 2106.13(B) plus an amount not exceeding $5,000 for decedent's funeral and burial expenses.

☐ The applicant, who is not the surviving spouse, has paid or is obligated in writing to pay decedent's funeral and burial expenses and the value of the assets is the lesser of $5,000 or the amount of decedent's funeral and burial expenses.

Attached hereto is a receipt, contract or other document that confirms the applicants payment or obligation to pay decedent's funeral and burial expenses or if the applicant is the surviving spouse, the prepayment receipt, if applicable.

The decedent's surviving spouse, next of kin, legatees and devisees known to applicant, are listed on attached Form 1.0.

Applicant states that there are no pending proceedings for the administration of decedent's estate or relief of decedent's estate from administration under R.C. 2113.03.

All known assets with date of death values of the estate are as follows:

☐ Motor Vehicles (include year, make, model, body type, manufacturer's vehicle identification number and Certificate of Title number)

_____ $_____
_____ $_____

CASE NO._____

☐ Accounts maintained by a Financial Institution (include financial institution name and the account's complete identifying number):

_____ $_____
_____ $_____

☐ Stocks and Bonds (include for each stock or bond its serial number, the name of its issuer, the name and address of its transfer agent, and the total number of shares of stocks or bonds):

_____ $_____
_____ $_____

☐ Real estate described in accompanying Form 12.0 Application for Certificate of Transfer and Form 12.1 Certificate of Transfer and date of death value. **[Attach verification of value.]** $_____

☐ Other assets and date of death values

_____ $_____

Total Assets $_____

Applicant requests an order granting summary release.

_____	_____
Attorney for Applicant	Applicant's Signature
_____	_____
Typed or Printed Name	Applicant's Typed or Printed Name
_____	_____
Street Address	Street Address
_____	_____
City State Zip Code	City State Zip Code
_____	_____
Phone Number (include area code)	Phone Number (include area code)

Attorney Registration No. _____

Signed and acknowledged by the applicant in my presence this _____ day of _____, _____.

_____
Notary Public/Deputy Clerk

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

ENTRY GRANTING SUMMARY RELEASE FROM ADMINISTRATION

[R.C. 2113.031]

The Court finds that the application by _____, satisfies all requirements of R.C. 2113.031 and therefore summarily releases the estate from administration and directs:

☐ The delivery to the applicant of decedent's personal property set forth in the application with the title to that property.

☐ That Certificate(s) of Transfer, attached to the application, be issued.

A certified copy of this order together with a certified copy of the application for this order constitutes sufficient authority for a financial institution, corporation or other entity or person referred to in division (A) to (F) of Section 5731.39 of the Revised Code or for a clerk of a Court of Common Pleas to transfer title to the applicant of an asset of the decedent's estate listed in the application.

This order eliminates the need for a financial institution, corporation, or other entity or person to be provided a written consent of the tax commissioner prior to the delivery, transfer, or payment to the applicant of an asset of the decedent's estate listed in the application.

This order eliminates the duty of all persons to file an Ohio Estate Tax Return exclusively for the assets listed in the application.

_____ _____

Date PROBATE JUDGE

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

INVENTORY AND APPRAISAL

[R.C. 2115.02 and 2115.09] – Date of Death After April 5, 2017

To the knowledge of the fiduciary the attached schedule of assets in decedent's estate is complete. The fiduciary determined the value of those assets whose values were readily ascertainable and which were not appraised by the appraiser, and that such values are correct.

The estate is recapitulated as follows:

Tangible personal property……$_____

Intangible personal property……..$_____

Real property……$_____

Total……..$_____

Automobiles transferred to surviving spouse under R.C. 2106.18

Value(s): $ _____, $_____, $_____, $ _____,
$ _____, $_____, $_____, $ _____

Total value [not to exceed $65,000.00]…….. $_____

☐ The fiduciary is also the surviving spouse of the decedent and waives notice of the taking of the inventory.

_____ _____
Attorney Fiduciary

Attorney Registration No. _____

APPRAISER'S CERTIFICATE

The undersigned appraiser agreed to act as appraiser of decedent's estate and to appraise the property exhibited truly, honestly, impartially, and to the best of the appraiser's knowledge and ability. The appraiser further says that those assets whose values were not readily ascertainable are indicated on the attached schedule by a check in the "Appraised" column opposite each such item, and that such values are correct.

_____
Appraiser

CASE NO. _____

WAIVER OF NOTICE OF TAKING OF INVENTORY

[R.C. 2115.04]

The undersigned surviving spouse hereby waives notice of the time and place of taking the inventory of decedent's estate.

_____
Surviving Spouse

WAIVER OF NOTICE OF HEARING ON INVENTORY

[Use when notice is required by the Court or deemed necessary by the fiduciary]

The undersigned, who are interested in the estate, waive notice of the hearing on the inventory.

_____ _____

_____ _____

_____ _____

_____ _____

_____ _____

_____ _____

_____ _____

ENTRY SETTING HEARING

The Court sets _____ at _____ o'clock _____.M., as the date and time for hearing the inventory of decedent's estate.

_____ _____
Date Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

SCHEDULE OF ASSETS

(Attach to inventory and appraisal)

Page _____ of _____ pages.

(Insert a check in the column "Appraised" opposite an item if it was valued by the appraiser. Leave blank if the readily ascertainable value was determined by fiduciary)

Item	Appraised	Value
		$

Page _____ of _____ pages.

Item	Appraised Value
	$

_____
Fiduciary

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

WAIVER OF NOTICE OF HEARING ON INVENTORY

[Use when notice is required by the Court or deemed necessary by the fiduciary]

The undersigned, who are interested in the estate, waive notice of the hearing on the inventory.

_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

NOTICE OF HEARING ON INVENTORY

[R.C. 2115.16]

To:

_____

_____

_____

You are hereby notified that the inventory of decedent's assets has been filed, and the hearing on the inventory will be held on _____at _____ o'clock _____ . M.
The Court is located at _____
_____

Exceptions to the inventory must be filed in writing at least five days prior to the date set for the hearing.

_____
Fiduciary/Attorney for Fiduciary

Attorney Registration

No._____

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

ESTATE OF:_____, DECEASED

CASE NO. _____

CERTIFICATION OF NOTICE TO ADMINISTRATOR OF MEDICAID ESTATE RECOVERY PROGRAM

[R.C. 2117.061 AND 5162.21]

THIS FORM SHALL BE FILED IN THE PROBATE COURT UPON COMPLETION OF NOTICE TO ADMINISTRATOR

The undersigned certifies that a Notice in compliance with Ohio Revised Code 2117.061 and 5162.21 was served upon the following by a method authorized by Civ.R. 73 on the _____ day of _____, 20_____:

Medicaid Estate Recovery
30 East Broad Street, 14th Floor
Columbus, Ohio 43215

_____	_____
Attorney for Applicant	Person Responsible for the Estate
_____	_____
Typed or Printed Name	Typed or Printed Name
_____	_____
Address	Address
_____	_____
City, State, Zip Code	City, State, Zip Code
_____	_____
Telephone Number (include area code)	Telephone Number (include area code)

Attorney Registration No. _____

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

ESTATE OF:_____

CASE NO. _____

NOTICE TO ADMINISTRATOR OF MEDICAID ESTATE RECOVERY PROGRAM

[R.C. 2117.061 AND 5162.21]

IF THE ESTATE OF THE DECEDENT IS SUBJECT TO THE MEDICAID ESTATE RECOVERY PROGRAM PURSUANT TO R.C. 5162.21, THIS NOTICE SHALL BE FILED WITH THE ADMINISTRATOR OF THE PROGRAM AT THE FOLLOWING ADDRESS:

Medicaid Estate Recovery
30 East Broad Street, 14th Floor
Columbus, Ohio 43215

THIS NOTICE IS NOT A PUBLIC RECORD AND SHALL NOT BE FILED IN THE PROBATE COURT

The undersigned person responsible for the estate hereby states the following:

1. Name of Decedent:_____

2. Address of Decedent:_____

   _____

3. Date of Birth:_____ Age: _____

4. Date of Death:_____

5. Social Security Number:_____

6. Check all applicable boxes:

   ☐ A copy of the Schedule of Assets (Form 6.1) or Assets and Liabilities (Form 5.1) is attached;

   ☐ A schedule of any other real and personal property and other assets in which the decedent had any legal title or interest at the time of death (to the extent of the interest), including assets conveyed to a survivor, heir, or assign of the individual through joint tenancy, tenancy in common, survivorship, life estate, living trust, or other arrangement;

   ☐ The spouse of the decedent was subject to the Medicaid estate recovery program, a separate notice is being submitted for the pre-deceased spouse.

_____

Signature - Person Responsible for the Estate

_____

Typed or Printed Name

_____

Address

_____

City, State, Zip

_____

Telephone Number (include area code)

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

APPLICATION FOR FAMILY ALLOWANCE

[R.C. 2106.13]

The fiduciary states that there is ☐ a surviving spouse and no minor children of the decedent who are not the children of the surviving spouse; ☐ no surviving spouse and one minor child of the decedent; that the surviving spouse or minor child is entitled to receive in money or property the sum of ☐ $25,000, if decedent died prior to March 18, 1999 or ☐ $40,000, if the decedent died on or after March 18, 1999, as an allowance for support, and the fiduciary hereby moves the Court to allow the surviving spouse or minor child the following items:

Description	Appraised Value
☐ _____ Lowest-valued vehicle if multiple vehicles were selected pursuant to R.C. 2106.18	_____
_____	_____
_____	_____
_____	_____
_____	_____

DO NOT USE THIS FORM IF THERE ARE MINOR CHILDREN OF THE DECEDENT WHO ARE NOT THE CHILDREN OF THE SURVIVING SPOUSE, OR IF THERE IS NO SURVIVING SPOUSE AND MORE THAN ONE MINOR CHILD. USE FORM 7.2

_____
FIDUCIARY

ENTRY

The Court finds that there is ☐ a surviving spouse and no minor children of the decedent who are not the children of the surviving spouse; ☐ no surviving spouse and one minor child of the decedent; who is entitled to receive ☐ $25,000 or ☐ $40,000 in money or property as an allowance for support.

Therefore it is ORDERED that the property requested in the foregoing application be transferred to the person described in said application.

The Court further orders that the fiduciary, if not the surviving spouse, serve a copy of this Entry upon all interested persons within seven (7) days.

_____
PROBATE JUDGE

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

APPLICATION FOR APPORTIONMENT OF FAMILY ALLOWANCE

[R.C. 2106.13(B)(3) and (4)]

The fiduciary states that there is [ ] a surviving spouse and minor children of the decedent who are not the children of the surviving spouse; [ ] no surviving spouse and more than one minor child; and the fiduciary requests the Court for an Order to apportion the family allowance. The fiduciary states that the names of the surviving spouse and minor children are as follows:

SPOUSE

_____

NAME ADDRESS

MINOR CHILDREN

1. _____
Minor Address Date of Birth

_____
(Parent)(Custodian) Address

2. _____
Minor Address Date of Birth

_____
(Parent)(Custodian) Address

3. _____
Minor Address Date of Birth

_____
(Parent)(Custodian) Address

4. _____
Minor Address Date of Birth

_____
(Parent)(Custodian) Address

5. _____
Minor Address Date of Birth

_____
(Parent)(Custodian)

_____
FIDUCIARY

(Reverse of Form 7.2)

ENTRY SETTING HEARING AND ORDERING NOTICE

The Court finds that there is [ ] a surviving spouse and minor children of the decedent who are not the children of the surviving spouse; [ ] no surviving spouse and more than one minor child; and assigns this application for hearing on _____, 20____, at _____ o'clock ____.m. and orders that the fiduciary give seven (7) days notice of this hearing by certified mail to all interested parties.

_____
PROBATE JUDGE

ENTRY ON APPORTIONMENT

[R.C. 2106.13(B)(3) and (4)]

The Court finds that there is [ ] a surviving spouse and minor children of the decedent who are not the children of the surviving spouse; [ ] no surviving spouse and more than one minor child; and orders that the family allowance be apportioned as follows:

☐ _____
Surviving spouse - second automobile selected pursuant to R.C. 2106.18 — Property or Amount

☐ _____
Surviving spouse — Property or Amount

_____
Distributee — Property or Amount

_____
Distributee — Property or Amount

_____
Distributee — Property or Amount

_____
Distributee — Property or Amount

_____
Distributee — Property or Amount

The Court further orders that the fiduciary serve a copy of this Entry upon all interested persons within seven (7) days.

_____
PROBATE JUDGE

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF: _____

CASE NO. _____

CITATION TO SURVIVING SPOUSE TO EXERCISE ELECTIVE RIGHTS

[R.C. 2106.01 and 2106.02]

To: _____
Name of Surviving Spouse

_____
Address

_____
City, State, Zip Code

You are hereby cited to elect to exercise your rights as surviving spouse. A summary of these rights is attached and incorporated herein. These rights include the right to elect against the will. Most of the rights must be exercised within five months from the date of the initial appointment of the administrator or executor. If you do not timely elect to exercise any specific right, it will be conclusively presumed you have elected not to exercise that right and the right will be forfeited. If you have questions concerning your rights, you should consult an attorney of your choice.

The date of appointment of the administrator or executor is: _____.

The address of the probate court is: _____
_____.

The names and addresses of the executor or administrator and his or her attorney are:

_____ Attorney for Applicant	_____ Name
_____ Attorney Registration No.	_____ Title
_____ Address	_____ Address
_____	_____
_____ Phone Number (include area code)	_____ Phone Number (include area code)

Probate Judge

Date: _____ By: _____
Deputy Clerk

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

ELECTION OF SURVIVING SPOUSE TO TAKE UNDER WILL

[R.C. 2106.05]

I, decedent's surviving spouse, elect to take under decedent's Will.

_____ _____

Date Surviving Spouse

Approved By:

_____

Attorney for Surviving Spouse

_____

Typed or Printed Name

_____

Address

_____

_____

Phone Number (include area code)

Attorney Registration No. _____

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

ELECTION OF SURVIVING SPOUSE TO TAKE AGAINST WILL

[R.C. 2106.01 and 2106.06]

I, decedent's surviving spouse, elect to take against decedent's Will.

Decedent's Will, my rights under the Will, and my rights by electing to take against the Will have been explained to me.

_____ _____

Date Surviving Spouse

The above election to take against decedent's Will was made by the surviving spouse in person, before me. Before accepting the election, I explained to the surviving spouse the decedent's Will, the rights under the Will, and the rights by electing to take against the Will.

_____

Probate Judge/Magistrate

Approved By:

_____

Attorney for Surviving Spouse

_____

Typed or Printed Name

_____

Address

_____

_____

Phone Number (include area code)

Attorney Registration No. _____

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF: _____

CASE NO. _____

SUMMARY OF GENERAL RIGHTS OF SURVIVING SPOUSE

[R.C. 2106.02] – Date of Death After April 5, 2017

To: _____ _____
Surviving Spouse Address

_____
City, State, Zip Code

This is a summary of your general rights as surviving spouse under Chapter 2106 of the Revised Code. Many of these rights have specific time limits in which they must be exercised. If you have questions concerning your rights, you should discuss them with an attorney of your choice. The Court cannot advise you.

1. Election to Take Under or Against the Will (R.C. 2106.01 - 2106.08)

If you elect to take against the Will, you are entitled to one-half of the decedent's net estate, unless there are two or more of the decedent's children or their lineal descendants surviving, in which case you are entitled to one-third of the decedent's net estate. You will not be entitled to receive any assets given to you under the Will.

If you elect to take under the Will, you will receive those assets given to you under the Will.

Whichever choice you make, (unless you elect to take under the Will and the Will specifically precludes you from exercising these rights), you will not be barred from your rights to purchase certain assets at the appraised value, to remain in the mansion house (the residence) for one year, to receive an allowance for support, to receive one or more automobiles not to exceed an aggregate value of $65,000 and one watercraft and one outboard motor owned by the decedent, and such rights as a surviving spouse may be entitled under law.

Although your election may not affect certain non-probate property, such as joint and survivorship, payable on death, and transfer on death property, it may have an effect on other types of non-probate property, including property held in trust.

Before making your election, you are entitled to file a complaint in this Court asking that the Will be construed.

If you elect to take under the Will, you may do so in writing if you wish, but you may also do so by taking no action.

If you elect to take against the Will, you must do so in person before the Probate Judge or a Magistrate. This election must be exercised within five months from the date of the initial appointment of the administrator or executor of the estate or it is forfeited.

2. Right to Receive Mansion House (R.C. 2106.10)

Depending upon the value of the real estate, you may have the right to receive the mansion house (the residence) as part of your inheritance.

3. Right to Place Charge on Real Estate (R.C. 2106.11)

If there is no Will and there are insufficient assets to pay the specific monetary share due to the surviving spouse pursuant to R.C. 2106.05, you have the right to place a charge (lien) on any real property included in the probate estate in the amount of the unpaid portion of the specific monetary share.

CASE NO. _____

4. Allowance for Support (R.C. 2106.13)

You may be entitled to an allowance for support. For deaths occurring after March 18, 1999, the amount is $40,000 of probate assets. If there are one or more minor children of the decedent, not the children of the surviving spouse, this Court will apportion the allowance among those children and the surviving spouse.

5. Right to Remain in the Mansion House (R.C. 2106.15)

You have the right to remain in the mansion house (the residence), if it is a probate asset, for a period of one year from the date of death without the payment of rent to the estate. If the mansion house is sold to pay debts during this period of time, you may be entitled to the fair rental value of the mansion house. This election must be exercised within five months from the initial appointment of the administrator or executor or the right is forfeited.

6. Right to Purchase Property (R.C. 2106.16)

You have the right to purchase assets of the probate estate at the appraised values. The application or petition to purchase the assets must be filed within one month of the approval of the inventory or the right is forfeited.

7. Right to Automobiles (R.C. 2106.18)

You may be entitled to receive one or more automobiles, not specifically bequeathed, that would otherwise be included in the probate estate and do not exceed an aggregate value of $65,000. This election may affect the amount you may receive under the Allowance for Support. This election must be exercised within five months from the initial appointment of the administrator or executor or the right is forfeited.

8. Right to Watercraft and Outboard Motor (R.C. 2106.19)

You may be entitled to receive one watercraft, one watercraft trailer, and one outboard motor, not specifically bequeathed, that would otherwise be included in the probate estate. This election must be exercised within five months from the initial appointment of the administrator or executor or the right is forfeited.

9. Right to Reimbursement of Funeral Bill (R.C. 2106.20)

You may be entitled to be reimbursed for the payment of the funeral bill. If the estate is insolvent, you will receive the same statutory priority as granted to the funeral and burial expenses.

10. Right to Challenge Antenuptial or Separation Agreement (R.C. 2106.22)

You are entitled to file an action to contest the validity of an antenuptial or separation agreement. This action must be filed within four months after the appointment of the executor or administrator or the right is forfeited.

This is a summary of your general rights. There may be additional rights to which you are entitled.

Ohio Revised Code § 2106.25 states:

Unless otherwise specified by a provision of the Revised Code or this section, a surviving spouse shall exercise all rights under Chapter 2106 of the Revised Code within five months of the initial appointment of an executor or administrator of the estate. It is conclusively presumed that a surviving spouse has waived any right not exercised within that five-month period or within any longer period of time allowed by the court pursuant to this section. Upon the filing of a motion to extend the time for exercising a right under Chapter 2106 of the Revised Code and for good cause shown, the court may allow further time for exercising the right that is the subject of the motion.

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF: _____

CASE NO. _____

CERTIFICATE OF SERVICE AND NOTICE OF CITATION TO SURVIVING SPOUSE TO EXERCISE ELECTIVE RIGHTS

[R.C. 2106.02]

This is to certify that a Citation to Surviving Spouse to Exercise Elective Rights and a Summary of General Rights of Surviving Spouse were mailed to the surviving spouse by certified mail, and a copy of this Certificate mailed to the administrator, executor, or the attorney for the administrator or executor, by ordinary mail, on this _____ day of _____, _____.

Probate Judge

By: _____
Deputy Clerk

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF: _____

CASE NO. _____

RETURN FOR CERTIFICATE OF SERVICE OF CITATION TO SURVIVING SPOUSE TO EXERCISE ELECTIVE RIGHTS

[R.C. 2106.02]

ATTACH

RETURN

RECEIPT

HERE

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

WAIVER OF SERVICE TO SURVIVING SPOUSE OF THE CITATION TO ELECT

[R.C. 2106.01(A)]

The undersigned, surviving spouse of the above named decedent, being eighteen years of age or older and not under disability, waives the service of the citation required by section 2106.01(A) of the Revised Code.

I acknowledge I have received Standard Probate Form 8.3, Summary of General Rights of Surviving Spouse.

I understand that most of my rights must be exercised within five months from the date of the initial appointment of the administrator or executor. If I do not timely elect to exercise any specific right, it will be conclusively presumed I have elected not to exercise that right and the right will be forfeited.

_____ _____

Date Signature of Surviving Spouse

_____

Typed or printed name of surviving spouse

_____

Attorney for Fiduciary

_____

Typed or Printed Name

_____

Address

_____

City, State, Zip

_____

Telephone Number (including area code)

Attorney Registration No. _____

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

APPLICATION TO SELL PERSONAL PROPERTY

[R.C. 2113.40, 2113.41, 2113.42, and 2113.43]

The fiduciary asks the Court to authorize the sale of the personal property of the decedent listed on the within schedule, at a public or private sale, for a fixed price or for the best price obtainable, and for cash or on terms as the Court may determine.

The fiduciary states that the sale will be in the best interests of the estate, that none of the property listed is subject to a demand for distribution in kind made by the surviving spouse or other beneficiary entitled to such distribution, and that none of the property listed is subject to a wish expressed by the decedent in the Will that it not be sold. Further, none of the property listed is specifically bequeathed; or if some or all of the property is specifically bequeathed, as noted on the schedule, either its sale is necessary to pay debts, or the persons entitled to it consented to the sale.

The fiduciary further states that: **[Check the applicable boxes]**

☐ The sale is before the expiration of the time within which the surviving spouse may elect to take at the appraised value and ☐ the surviving spouse consents to such sale or waives notice thereof ☐ the surviving spouse does not consent to such sale, ☐ the property is not perishable and the surviving spouse is entitled to notice of the sale as provided by law.

☐ The fiduciary further states that: **[Include any special allegations or information]**

_____

_____

The fiduciary further states that for a public sale, notice will be given by advertisement appearing at least three times in a newspaper of general circulation in the county during a period of fifteen days next preceding such sale and/or by advertisement posted not less than fifteen days next preceding such sale in at least five public places in the township or municipal corporation where such sale is to take place.

_____
Fiduciary

CONSENT TO SALE AND WAIVER OF NOTICE

The undersigned, being the decedent's surviving spouse or other interested persons, hereby waive notice and consent to the sale as described herein.

_____ _____
Surviving Spouse

_____ _____

_____ _____

(Reverse of Form 9.0)

SCHEDULE OF PERSONAL PROPERTY FOR SALE

Item	Sale Method Public/Private	Price Fixed/Best	Payment Cash/Terms

ENTRY AUTHORIZING SALE OF PERSONAL PROPERTY

The Court finds that the sale of the personal property of the decedent as set forth herein is not prohibited by law and will be in the best interests of the estate.

It is hereby ordered: **[check the applicable boxes]**

☐ That the fiduciary is authorized to sell the personal property in accordance with the terms and conditions as set forth in the application.

☐ That the fiduciary is authorized to sell the personal property in accordance with the terms and conditions as set forth in the application, except as follows: _____

_____

_____

[Check if applicable] - ☐ The time has not expired within which the surviving spouse may elect to purchase personal property at its appraised value; the surviving spouse has not consented to the sale, and the property is not perishable. It is therefore further ordered that the fiduciary give at least ten days notice of the sale to the surviving spouse, as provided by law.

_____ _____

Date **Probate Judge**

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

ENTRY AUTHORIZING SALE OF PERSONAL PROPERTY

The Court finds that the sale of the personal property of the decedent as set forth in the application is not prohibited by law and will be in the best interests of the estate.

It is hereby ordered: **[check the applicable boxes]**

☐ That the fiduciary is authorized to sell the personal property in accordance with the terms and conditions as set forth in the application.

☐ That the fiduciary is authorized to sell the personal property in accordance with the terms and conditions as set forth in the application, except as follows: _____

_____

_____

[Check if applicable] - ☐ The time has not expired within which the surviving spouse may elect to purchase personal property at its appraised value; the surviving spouse has not consented to the sale, and the property is not perishable. It is therefore ordered that the fiduciary serve at least ten days notice of the sale upon the surviving spouse, as provided by law.

_____ _____

Date **Probate Judge**

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

NOTICE OF SALE OF PERSONAL PROPERTY

To: _____ _____
Surviving Spouse Address
_____

This Court has approved an application to sell certain items of personal property belonging to decedent. The items to be sold, and the manner and terms of sale are as listed and described in the attached schedule.

The sale will be held on _____, at
Date
_____.
Location

_____
Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

APPLICATION TO DISTRIBUTE IN KIND

[R.C. 2113.55]

The fiduciary asks the Court to authorize distribution in kind, according to the within schedule, of personal property in the estate which is not specifically bequeathed and is available for distribution.

[Check one of the following] - ☐ Decedent's known debts have been paid or secured to be paid - ☐ Sufficient assets are in hand to pay decedent's known debts.

[Check whichever of the following paragraphs are applicable]:

☐ All interested persons whose interests may be affected by the distribution have consented to the distribution as proposed in the within schedule.

☐ All interested persons whose interests may be affected by the distribution have not consented to the distribution as proposed in the within schedule. The fiduciary will give notice as required by law to all interested persons who have not consented and who are listed on the notice of hearing accompanying this application.

☐ The distribution is to satisfy part or all of the allowance for support due decedent's **[check applicable boxes]** - ☐ surviving spouse - ☐ minor children.

☐ The distribution is with the consent of the surviving spouse, and is to satisfy part or all of the specific monetary share due the surviving spouse under the Statute of Descent and Distribution **[if this paragraph is checked, the following must be completed and the surviving spouse must sign the consent form]**:

Specific monetary share due surviving spouse	$_____
Less: Value of property to be distributed hereunder to surviving spouse	$_____
Probate assets previously received by surviving spouse in excess of the allowance for support	$_____
Balance of specific monetary share remaining	$_____

_____
Fiduciary

(Reverse of Form 10.0)

CONSENT TO DISTRIBUTION IN KIND

The undersigned, being the decedent's surviving spouse or other interested persons, hereby consent to the distribution as described herein.

_____ _____

Surviving Spouse

_____ _____

_____ _____

SCHEDULE OF PROPERTY TO BE DISTRIBUTED IN KIND

Name of Distributee	Item to be Distributed	Appraised Value
		$

JUDGMENT ENTRY

[Check the applicable boxes]

☐ The Court finds that the distribution in kind as set forth herein is not prohibited by law and will be in the best interests of the estate, and that all interested persons have consented to the proposed distribution. It is ordered that the fiduciary is authorized to distribute the personal property in accordance with the within application.

☐ The Court finds that all interested persons have not consented, and it is therefore ordered that the Application to Distribute in Kind is scheduled for hearing before the Court located at _____ _____ on _____ at _____o'clock _____M., and that the fiduciary shall serve a copy of the application and notice of the hearing as required by law, upon all interested persons who have not consented.

☐ The Court further finds and orders: _____ _____.

_____ _____

Date **Probate Judge**

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

ENTRY APPROVING DISTRIBUTION IN KIND

[Check the applicable boxes]

☐ The Court finds that the distribution in kind as set forth in the application is not prohibited by law and will be in the best interests of the estate, and that all interested persons have consented to the proposed distribution. It is ordered that the fiduciary is authorized to distribute the personal property in accordance with the within application.

☐ The Court finds after hearing that the distribution in kind as set forth in the application is not prohibited by law and will be in the best interests of the estate. It is ordered that the fiduciary is authorized to distribute the personal property in accordance with the application.

☐ The Court further finds and orders: _____

_____

_____

_____.

_____ _____

Date **Probate Judge**

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

NOTICE OF HEARING ON APPLICATION TO DISTRIBUTE IN KIND

To the following persons:

_____ Name	_____ Address _____
_____ Name	_____ Address _____
_____ Name	_____ Address _____
_____ Name	_____ Address _____
_____ Name	_____ Address _____

An application has been filed in this Court asking for authority to distribute certain personal property of decedent in kind.

The hearing on the application will be held _____ at _____ o'clock _____ M. in this Court.

The Court is located at _____

_____

You are one of those persons whose interests may be affected by the proposed distribution in kind, and if you know of any reason why such distribution should not be permitted you should appear and inform the Court.

_____
Probate Judge/Deputy Clerk

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

CONSENT TO POWER TO SELL REAL ESTATE

The undersigned are the surviving spouse and legatees, devisees or heirs of decedent. Each declares that he is an adult.

The undersigned empower the fiduciary in the estate, at any time, to sell at public or private sale, or to grant options to buy, or to exchange or re-exchange real estate belonging to the estate, and to execute and deliver the necessary deeds or other conveyances, consistent with law and this power of sale.

Any such sale, option, exchange or re-exchange shall be on terms consistent with law and at a price of not less than eighty per cent of the appraised value of the parcel, as shown on the inventory and appraisal filed in this Court.

[Check one of the following]

☐ The power of sale consented to herein is general, and extends to all real estate in the estate.

☐ The power of sale consented to herein is limited, and applies only to the parcels of real estate particularly described below **[describe on back].**

_____ _____

_____ _____

_____ _____

_____ _____

_____ _____

_____ _____

_____ _____

_____ _____

_____ _____

_____ _____

_____ _____

_____ _____

The particular parcels of real estate in decedent's estate and to which this power of sale is limited are described as follows **[use extra sheets if necessary]:**

PROBATE COURT OF _____ COUNTY, OHIO
_____. JUDGE

ESTATE OF _____ DECEASED

CASE NO. _____

APPLICATION FOR CERTIFICATE OF TRANSFER
[R.C. 2113.61]

Applicant states that decedent died on _____.

Decedent's domicile at death was_____
Street Address

_____.
City or Village, or Township if unincorporated area County

_____.
Post Office State Zip Code

Decedent died owning the real property described in the accompanying Certificate of Transfer No. _____, which also lists those persons to whom the real property passed. Applicant asks the Court to issue a Certificate of Transfer so that new ownership interests may be recorded.

[Check the applicable boxes]

☐ Decedent died intestate.

☐ Decedent died testate on _____; will admitted to probate on _____.

☐ Decedent's known debts have been paid or secured to be paid.

☐ Sufficient other assets are in hand to pay decedent's known debts.

☐ Estate is insolvent and the transfer shall apply toward the allowance for support.

☐ Applicant was appointed by this Court on _____ and is the qualified and acting executor or administrator of decedent's estate.

☐ Executor or administrator of decedent's estate failed to file this application before being discharged.

☐ Applicant is the executor or administrator appointed in another state. There is and has been no ancillary administration in Ohio. The real property to be transferred is located in this county.

☐ The transfer is subject to a written contract for the sale and conveyance of the real property, entered into but uncompleted by decedent before death. A copy of the contract is attached.

☐ There has been no administration and none is contemplated [R.C. 2113.61(D)].

☐ The transfer is pursuant to decedent's Will.

☐ The transfer is pursuant to the statutes of descent and distribution.

☐ The transfer is pursuant to summary release from administration [R.C. 2113.031(D)(3)].

☐ The real property to be transferred is subject to a charge in favor of the surviving spouse in the amount of $_____ as computed pursuant to R.C. 2106.11 on attached Exhibit A, and as shown on the accompanying Certificate of Transfer, in respect of the unpaid balance of the specific monetary share which is part of the surviving spouse's total intestate share.

(Reverse of Form 12.0)

CASE NO. _____

☐ Spousal elections have been exercised.

☐ Disclaimers or assignments have been filed.

☐ The transfer is of decedent's entire interest in the mansion house to the surviving spouse, who hereby elects to take such interest as part or all of the intestate share and/or allowance for support. **[If this paragraph is checked, the following must be completed, and both the surviving spouse and applicant must sign this form].**

The value of the total intestate share to which decedent's surviving spouse is entitled is ..... $_____

The value of the allowance for support to which decedent's surviving spouse is entitled is ..... $_____

The value of decedent's entire interest in the mansion house is:

Interest in mansion house ..... $ _____

Interest in household goods in house ..... $ _____

Interest in lots or farm land adjacent to house and used in conjunction with it, which are described in Certificate of Transfer and which spouse hereby elects to include ..... $ _____

Less: Decedent's share of liens on any and all of above ..... $ _____

Total ..... $ _____ $ _____

_____
Surviving Spouse

_____
Applicant

_____
Title or status

ENTRY ISSUING CERTIFICATE OF TRANSFER

The Court finding that the above application contains the information required by statute orders that Certificate of Transfer No. _____ be filed with this Entry and a copy of the Certificate of Transfer be issued for recording.

☐ **[Check if applicable]** The Court further finds that the transfer is subject to a charge pursuant to R. C. 2106.11.

_____
Date

_____
Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO
_____, JUDGE

ESTATE OF _____ ,DECEASED

CASE NO. _____

CERTIFICATE OF TRANSFER

NO. _____

[Check one of the following]

☐ Decedent died intestate.

☐ Decedent died testate.

Decedent died on _____ owning the real property described in this certificate. The persons to whom such real property passed by devise, descent or election are as follows:

Name	**Residence Address**	**Transferee's share of decedent's interest**

[Complete if applicable] The real property described in this certificate is subject to a charge of $_____ in favor of decedent's surviving spouse, _____ in respect of the unpaid balance of the specific monetary share which is part of the surviving spouse's total intestate share.

CASE NO._____

The legal description of decedent's interest in the real property subject to this certificate is: **[use extra sheets, if necessary].**

Prior Instrument Reference:

Parcel No:

This instrument was prepared by _____

ISSUANCE

This Certificate of Transfer is issued this _____ day of _____, 20_____.

_____
Probate Judge

AUTHENTICATION

I certify that this document is a true copy of the original Certificate of Transfer No. _____ issued on _____ and kept by me as custodian of the official records of this Court.

_____
Date

_____
Probate Judge

By _____
Deputy Clerk

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

FIDUCIARY'S ACCOUNT

[R.C. 2109.30, 2109.301 and 2109.32]

[Executors and Administrators]

The fiduciary offers the account given below and on the attached itemized statement of receipts and disbursements. The fiduciary states that the account is correct, and asks that it be approved and settled.

[Check one of the following]

☐ This is a partial account. A statement of the assets remaining in the fiduciary's hands is attached.

☐ This is a final account. A statement of the assets remaining in the fiduciary's hands for distribution to the beneficiaries is attached.

☐ This is an account of distribution, and fiduciary asks to be discharged upon its approval and settlement.

☐ This is a final and distributive account, and the fiduciary asks to be discharged upon its approval and settlement.

☐ This is a supplemental final account.

[Complete if this is a partial account, or if one or more accounts have previously been filed in the estate] The period of this account is from _____ to _____

[Complete if applicable] Accounts previously filed in the estate, the accounting periods, and the fiduciary and attorney fees paid for each period, are as follows:

Date Filed	Accounting Period	Fiduciary Fees Paid	Attorney Fees Paid
		$	$

Note:
2117.06(K) states: "The distributee may be liable to the estate up to the value of the distribution and may be required to return all or any part of the value of the distribution if a valid claim is subsequently made against the estate within the time permitted under this section."
2109.32(C) states: "The rights of any person with a pecuniary interest in the estate are not barred by approval of an account pursuant to division (A) and (B) of this section. These rights may be barred following a hearing on the account pursuant to section 2109.33 of the Revised Code."

Case No. _____

This account is recapitulated as follows:

RECEIPTS

Personal property not sold . . . . . $_____

Proceeds from sale of personal property. . . . . _____

Real property not sold. . . . . _____

Proceeds from sale of real property. . . . . _____

Income. . . . . _____

Other receipts. . . . . _____

Total receipts . . . . . $_____

DISBURSEMENTS

Fiduciary fees this accounting period . . . . . $_____

Attorney fees this accounting period . . . . . _____

Other administration costs and expenses. . . . . _____

Debts and claims against estate . . . . . _____

Ohio and federal estate taxes . . . . . _____

Personal property distributed in kind . . . . . _____

Real property transferred . . . . . _____

Other distributions to beneficiaries . . . . . _____

Other disbursements . . . . . _____

Total disbursements . . . . . $_____

BALANCE REMAINING IN FIDUCIARY'S HANDS . . . . . $_____

_____ _____

Attorney Fiduciary

Attorney Registration No. _____ Date_____

ENTRY SETTING HEARING

The Court sets _____ at _____ o'clock _____ M., as the date and time for hearing the above account.

Date_____ Probate Judge_____

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

RECEIPTS AND DISBURSEMENTS

[Attach to fiduciary's account]

Page _____ of _____ pages

Following is an itemized statement of receipts and disbursements by the fiduciary in the administration of his trust.

Item	Voucher No.	Value or Amount	Value or Amount
		$	$

(Reverse of Form 13.1)

Page _____ of _____ pages

Item	Voucher No.	Value or Amount	Value or Amount
		$	$

_____
Fiduciary

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

ASSETS REMAINING IN FIDUCIARY'S HANDS

[Attach to partial or final fiduciary's account]

Page _____ of _____ pages

The estate assets remaining in fiduciary's hands are recapitulated as follows:

Tangible personal property ..... $ _____

Intangible personal property..... $ _____

Total Personal property..... $ _____

Real Estate..... $ _____

Total assets remaining in fiduciary's hands ..... $ _____

Following is an itemized statement of estate assets remaining in the fiduciary's hands.

Item	Value or Amount	Value or Amount
	$	$

(Reverse of Form 13.2)

Page _____ of _____ pages

Item	Value or Amount	Value or Amount
	$	$

_____
Fiduciary

PROBATE COURT OF _____ COUNTY, OHIO

TRUST OF
GUARDIANSHIP OF
ESTATE OF _____

CASE NO. _____

ENTRY APPROVING AND SETTLING ACCOUNT

[R.C. 2109.32]

Upon hearing the account filed _____, the Court finds that:

[Check whichever of the following are applicable]

☐ The _____ partial account has been lawfully administered;

☐ The estate has been lawfully administered, except for final distribution to the beneficiaries;

☐ The estate has been fully and lawfully administered, and the assets have been distributed in accordance with the law or the applicable instruments governing distribution;

☐ The events have occurred after which the Court may approve and settle a final account;

☐ The events have occurred after which the Court may approve and settle a supplemental final account.

The account is therefore approved and settled.

[Check whichever of the following are applicable]

The fiduciary shall be discharged without further order of the Court twelve months following the approval of the final and distributive account unless discharged by this entry.

☐ The fiduciary is discharged herewith;

☐ The surety bond is terminated herewith.

_____ _____
Date Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

WAIVER OF PARTIAL ACCOUNT

[R.C. 2109.301(B)(2)]

Partial Account due _____

The fiduciary says that all of the decedent's legatees, devisees, or heirs have waived the above partial account. This waiver is accordingly presented in lieu of the partial account.

_____ _____

Date Fiduciary

The undersigned legatees, devisees, or heirs of decedent not under legal disability hereby waive the filing of the above partial account by the fiduciary, and consent to the filing of this waiver in lieu thereof.

Legatees, Devisees, or Heirs:

_____ _____

_____ _____

_____ _____

_____ _____

_____ _____

_____ _____

_____ _____

_____ _____

_____ _____

_____ _____

_____ _____

_____ _____

_____ _____

_____ _____

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

NOTICE OF HEARING ON ACCOUNT

[R.C. 2109.33]

To:

_____

_____

_____

You are hereby notified that a _____ account covering the period from _____ to _____ has been filed, and the hearing will be held on _____ at _____ o'clock ___ M. The Court is located at _____

_____.

You are required to examine the account, to inquire into the contents of the account, and into all matters that may come before the Court at the hearing on the account. Any exceptions to the account shall be filed in writing not less than five days prior to the hearing. Absent the filing of written exceptions, the account may be approved without further notice.

_____

Fiduciary/Attorney for Fiduciary

Attorney Registration No. _____

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

CERTIFICATE OF TERMINATION

[R.C. 2109.30]

I certify I am the executor or administrator and the sole legatee, devisee or heir.

I further certify:

(1) all debts and claims presented to the estate have been paid in full or settled finally;

(2) an estate tax return, if required under Chapter 5731 of the Revised Code, has been filed, and any estate tax due under that chapter has been paid;

(3) all attorney fees have been [check one] ☐ waived by counsel of record, ☐ paid to counsel of record in the amount of $ _____;

(4) all fiduciary fees have been [check one] ☐ waived by the fiduciary; ☐ paid to the fiduciary in the amount of $ _____;

(5) all assets remaining after completion of the activities described above have been distributed to myself as the sole legatee, devisee or heir.

_____ Attorney for Fiduciary

_____ Fiduciary

Attorney Registration No. _____

ENTRY

Based upon the above certification it is ordered that the fiduciary and surety, if any, are discharged.

_____ Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

WAIVER OF NOTICE OF HEARING ON ACCOUNT

[R.C. 2109.33]

The undersigned, who are interested in the estate, waive notice of the hearing on the account.

_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____

CASE NO. _____

APPLICATION TO EXTEND ADMINISTRATION

[R.C. 2109.301, Civ.R. 73.28 (B) and (C)]

The undersigned fiduciary applies to extend the administration of the estate beyond six months. The fiduciary states it would be detrimental to the estate and its beneficiaries or heirs to file a final and distributive account or certificate of termination within that time for the following reasons (state with specificity):

_____

_____

_____

_____

_____

_____ _____

Attorney Fiduciary

Attorney Registration No._____

ENTRY

Upon consideration of the Application, the Court orders:

☐ An account or certificate of termination shall be due not later than thirteen months after the appointment of the fiduciary.

☐ A final and distributive account or certificate of termination is due _____.

☐ The Application is denied.

☐ Other: _____

A status letter shall be filed with each partial account or waiver of partial account.

Probate Judge_____

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____

CASE NO. _____

CERTIFICATE OF SERVICE OF ACCOUNT TO HEIRS OR BENEFICIARIES

[R.C. 2109.32]

This is to certify that a true and accurate copy of the _____ account was
Type of Account

served _____upon all beneficiaries of the estate except:
Date

☐ The following heir or beneficiary whose address is unknown: _____

_____

☐ The following beneficiary of a specific bequest or devise who has received his or her distribution and for which a receipt has been filed or exhibited with the Court:

_____

_____ _____
Attorney Fiduciary

Attorney Registration No._____

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____

CASE NO. _____

NOTICE TO EXTEND ADMINISTRATION

[R.C. 2109.301, Civ.R. 73.28 (B) and (C)]

The undersigned fiduciary hereby gives notice to extend the administration beyond six months for the following reason(s):

☐ An Ohio estate tax return must be filed for the estate.

☐ A proceeding contesting the validity of the decedent's will pursuant to R.C. 2107.71 has been commenced.

☐ The surviving spouse has filed an election to take against the will.

☐ The administrator or executor is a party in a civil action, Case No. _____ in _____ Court.

☐ The estate is insolvent.

An account or certificate of termination shall be due not later than thirteen months after the appointment of the fiduciary.

_____ Attorney

_____ Fiduciary

Attorney Registration No. _____

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

APPLICATION TO DISBURSE ATTORNEY DECEDENT'S TRUST ACCOUNT(S)

Applicant, an Ohio-licensed attorney with a Supreme Court of Ohio Registration Number of _____ states that decedent died on _____. Decedent was an Ohio-licensed attorney with a Supreme Court of Ohio Registration Number of _____. As such, decedent kept at least one interest-bearing trust account to hold client funds in accordance with R.C. 4705.09 and Prof.Cond.R. 1.15. At the time of decedent's death, decedent had trust account(s) in the name of the decedent or decedent's law practice identified as Exhibit A. Exhibit A is filed under seal to protect the account numbers from misuse, but Applicant shall be permitted to provide Exhibit A to the financial institution(s) named therein to accomplish the purpose of this order.

Applicant requests that the trust account(s) named in Exhibit A be disbursed by the referenced financial institution(s) to the Applicant for the purpose of distributing the contents in accordance with the Supreme Court Rules for the Government of the Bar of Ohio and the Ohio Rules of Professional Conduct.

_____
Applicant

_____
Typed or Printed Name

_____

_____
Mailing Address

_____
Phone number

_____
Email Address

Entry

The Court finds that disbursing the attorney decedent's trust account(s) to Applicant will facilitate the winding down of the attorney decedent's business and therefore assist in the resolution of the attorney decedent's estate. Pursuant to the Court's plenary powers under R.C. 2101.24(C), the Court hereby orders that the bank account(s) referenced in Exhibit A be disbursed to the Applicant for the purpose of distributing the contents in accordance with the Supreme Court Rules for the Government of the Bar of Ohio and the Ohio Rules of Professional Conduct. Exhibit A is filed under seal to protect the account numbers from misuse, but Applicant is permitted to provide Exhibit A to the financial institution(s) named therein. Applicant shall provide a copy of this Application/Entry to the Office of Disciplinary Counsel.

_____ _____
Date Probate Judge

[Reverse of Form 13.11]

CASE NO. _____

EXHIBIT A

Bank	Account Number	Name on Account
_____	_____	_____
_____	_____	_____
_____	_____	_____

INSTRUCTIONS

Funds withdrawn from an attorney decedent's Interest on Lawyer's Trust Account (IOLTA) must be deposited into an IOLTA held at an eligible financial institution, registered with the Ohio Access to Justice Foundation (Foundation), and held in the name of Applicant or Applicant's law practice.

IOLTA funds remain the property of the attorney decedent's clients. Upon being deposited into an IOLTA in the control of Applicant, they must be properly identified and distributed. Under Board Adv. Op. 2008-3, if Applicant is unable to identify or locate the client owner of the funds, the funds should be reported and remitted to the Ohio Department of Commerce, Division of Unclaimed Funds using the nature of funds code TR88. Reporting must be done electronically on the Ohio Department of Commerce's website at: https://unclaimedfunds.ohio.gov/app/submit-a-report.

When opening a new IOLTA, the tax ID number to be associated with the account is: 31-1126612. IOLTAs must be opened at an eligible financial institution. A complete list of eligible financial institutions can be found at: https://www.ohiojusticefoundation.org/lawyers/iolta-iota-financial-institutions/.

R.C. 4705.09 requires all IOLTAs to be "in the name of the attorney, firm, or association that established and is maintaining it and shall be identified as an IOLTA or an interest on lawyer's trust account. The name of the account may contain additional identifying features to distinguish it from other trust accounts established and maintained by the attorney, firm, or association."

An IOLTA established to manage an attorney decedent's client funds should be identified as an IOLTA and include the additional identifying words: "Custodian for attorney decedent's name." (e.g. Applicant IOLTA: Custodian for the Estate of Jones Law Firm).

For additional information on IOLTA/IOTA or Attorney Unclaimed Funds, please contact the Foundation at ioltaquestions@ohiojusticefoundation.org or 614-715-8560.

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

NOTICE OF WILL LOCATION

Applicant hereby notifies this court and the public that the original, executed wills in the possession of attorney _____, Supreme Court of Ohio Registration Number _____, are located as follows:

☐ With Ohio-licensed attorney _____, Supreme Court of Ohio Registration Number _____ (contact information available through Supreme Court of Ohio Attorney Registration Database);

☐ With the Supreme Court of Ohio Office of Disciplinary Counsel;

☐ With the law firm _____ located at _____

_____;

☐ With the Probate Court of _____ County, Ohio;

☐ Have been destroyed.

For wills that have not been destroyed. Applicant has prepared an alphabetical listing of all testators covered by this notice. That list and this notice shall be filed with the Office of Disciplinary Counsel. That office will keep a record of all notices received and post the attorney's name and the location of that attorney's wills, as indicated above, on its website (www.odc.ohio.gov). Applicant requests that this notice document be made a public record in this court under the deceased attorney's estate or, if no estate has been filed, under a miscellaneous case number for an attorney who is deceased, retired, disabled, disappeared, disciplined, deported, or otherwise cannot be found or contacted pursuant to Gov.Bar R. V(26).

_____

Applicant Signature Typed or Printed Name

_____

Address

_____ (____)_____

Email Address Phone Number

☐ Check here if Applicant wishes name and contact information redacted.

By applying his/her signature above. Applicant certifies that this notice and the alphabetical listing of all testators covered by this notice was provided to the Office of Disciplinary Counsel at 65 East State Street. Suite 1510, Columbus, Ohio 43215. (614) 397-0700, fax (614) 387-9709, www.odc.ohio.gov on the _____day of _____, 20___.

PROBATE COURT OF _____ COUNTY, OHIO
_____, JUDGE

ESTATE OF _____, DECEASED

CASE NO. _____

APPLICATION TO APPROVE SETTLEMENT AND DISTRIBUTION OF WRONGFUL DEATH AND SURVIVAL CLAIMS

[R.C. 2117.05, 2125.02, Civ.R. 19.1 and Civ.R. 73.20]

The fiduciary states:
[Check whichever of the following are applicable, strike inapplicable words, and incorporate all attachments into a single statement.]

☐ There is an offer of (full) (partial) settlement without suit being filed.

☐ There is an offer of (full) (partial) settlement after suit was filed. The style of the case, the court, and case number being _____.

☐ A judgment has been recovered for damages for the decedent's wrongful death (and personal injury and property damage arising out of the same act and which survive the decedent).

☐ The amount of the settlement or judgment is $_____.

☐ There is a partial settlement and therefore the estate must remain open pending final disposition of the claims.

☐ The offer includes, or the judgment sets forth separately, reasonable funeral and burial expenses in the amount of $_____.

☐ Reasonable compensation for the fiduciary for services rendered is $_____ and an itemization of such services is attached.

☐ Outstanding hospital and medical bills in the amount of $_____ and an itemization of such bills is attached.

☐ Outstanding claims to a right of subrogation for the payment of hospital and medical bills in the amount of $_____ and an itemization of such is attached.

☐ A reasonable attorney fee for the attorney's services is $_____ and reimbursement to the attorney for case expenses is $_____. A copy of the attorney's fee contract that (has) (has not) received prior approval of the Court, subject to modification, and itemization of the case expenses are attached.

☐ Other: _____
_____.

☐ The net proceeds of $_____ should be allocated $_____ to the wrongful death action and $_____ to the survival action. A statement in support thereof is attached.

☐ A statement in support of the proffered settlement is attached.

CASE NO. _____

☐ Supplemental forms required by local rule of court are attached.

☐ All of the beneficiaries of the wrongful death action are on equal degree of consanguinity, are adults, and have agreed how the net proceeds allocated to the wrongful death claim are to be distributed.

☐ The beneficiaries of the wrongful death action are not all on equal degree of consanguinity, or one or more of the beneficiaries is a minor, or the beneficiaries have not agreed how the net proceeds are to be distributed.

☐ The surviving spouse, children, and parents of the decedent and the other next of kin who have suffered damages by reason of the wrongful death are as follows and the distribution should be as follows:

Name	Residence Address	Relationship to Decedent	Birthdate of Minor	Amount

☐ The survival claim beneficiaries are as follows:

Name	Residence Address	Relationship to Decedent	Birthdate of Minor	Amount

The fiduciary requests that the Court approve the application and authorize the fiduciary to execute a (complete) (partial) release which upon payment of the settlement shall be a (complete) (partial) discharge of the claim.

_____ _____

Attorney for Fiduciary Fiduciary

Attorney Registration No. _____

ENTRY SETTING HEARING AND ORDERING NOTICE

The Court sets _____ at _____ o'clock _____.m. as the date and time for hearing the above application and orders notice to be given by the fiduciary, as provided in the Rules of Civil Procedure, to the wrongful death and survival claim beneficiaries who have not waived notice.

_____

_____, Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

WAIVER AND CONSENT
WRONGFUL DEATH AND SURVIVAL CLAIMS

The undersigned waive notice of the hearing and consent to and approve the settlement and distribution as set forth in Form 14.0, Application to Approve Settlement and Distribution of Wrongful Death and Survival Claims, a copy of which I have received.

_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

ESTATE OF_____, DECEASED

CASE NO. _____

ENTRY APPROVING SETTLEMENT AND DISTRIBUTION OF WRONGFUL DEATH AND SURVIVAL CLAIMS

Upon hearing the application to approve settlement and distribution of the wrongful death and survival claims, the Court:

☐ Approves the proffered settlement of $ _____.

☐ Orders payment of $ _____ to be applied to decedent's funeral and burial expenses.

☐ Orders payment of $ _____ to the fiduciary for services rendered with respect to the wrongful death and survival claims.

☐ Orders payment of $ _____ to the attorney for reimbursement of case expenses and $ _____ for attorney fees for services rendered with respect to the wrongful death and survival claims.

☐ Orders that the net proceeds of $ _____ be allocated $ _____ to the wrongful death claim and $ _____ to the survival claim. The amount allocated to the survival claim shall be considered an asset of the estate and shall be reflected in the fiduciary's account of the administration of the estate.

☐ Finds all of the beneficiaries of the wrongful death claim are on an equal degree of consanguinity, are adults, and have agreed how the net proceeds allocated to the wrongful death claim are to be distributed.

☐ Orders distribution of the net proceeds allocated to the wrongful death claim to the surviving spouse, children, parents, and other next of kin, in the equitable shares shown below, fixed by the Court having due regard for the injury and loss to each beneficiary resulting from the death and for the age and condition of the beneficiaries.

Name	Residence Address	Relationship to Decedent	Birthdate of Minor	Amount

CASE NO. _____

[Reverse of Form 14.2]

Orders that the share of:

☐ _____a minor(s) be deposited pursuant to R.C. 2111.05.

☐ _____a minor(s) be paid to the guardian of the estate of such minor.

☐ _____a child(ren) be deposited in a trust for the benefit of the child(ren) until twenty-five years of age.

Authorizes the fiduciary to execute a release which, upon payment, shall be a discharge of the claim.

Orders the fiduciary and the attorney to report the distribution of the proceeds within thirty days of the date of this Entry.

Further orders_____

_____

_____

_____

Approved:

_____ _____

Attorney for Fiduciary Probate Judge

Attorney Registration No. _____ _____

Date

PROBATE COURT OF _____ COUNTY, OHIO

ESTATE OF _____, DECEASED

CASE NO. _____

REPORT OF DISTRIBUTION OF WRONGFUL DEATH AND SURVIVAL CLAIMS

Pursuant to Entry filed _____, _____, the proceeds have been paid as shown below and on the accompanying vouchers.

Gross Proceeds	$ _____
Funeral and burial expenses	$ _____
Fiduciary fees to _____	$ _____
Reimbursement of case expenses to _____	$ _____
Attorney fees to _____	$ _____
Survival claim to the estate	$ _____
Total Deductions	$ _____
Net Proceeds	$ _____
Net proceeds to beneficiaries:	
To: _____	$ _____
To: _____	$ _____
To: _____	$ _____
To: _____	$ _____
To: _____	$ _____
To: _____	$ _____
To: _____	$ _____
Total payments to beneficiaries	$ _____
Balance	-0-

☐ The fiduciary states that there are no other assets remaining in the estate.

☐ The fiduciary states that there are assets remaining in the estate.

_____ _____

Attorney for Fiduciary Fiduciary

Attorney Registration No. _____

(Reverse of Form 14.3)

ENTRY

The above report of the distribution of the proceeds is hereby approved.

☐ There being no further assets to administer, the fiduciary and surety, if any, are discharged.

_____ _____

Date PROBATE JUDGE

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF THE GUARDIANSHIP OF _____

CASE NO. _____

NEXT OF KIN OF PROPOSED WARD

[R.C. 2111.04]

(NOTE: Specify age and birthdate of each minor under 16 on the line containing the minor's name. List the name and address of the minor's parent, guardian or custodian on the name and address lines following the minor's address.)

Service Waived		Relationship	Birthdate Of Minor
1. [ ]	Name _____	_____	_____
	Address _____ Zip _____		
2. [ ]	Name _____	_____	_____
	Address _____ Zip _____		
3. [ ]	Name _____	_____	_____
	Address _____ Zip _____		
4. [ ]	Name _____	_____	_____
	Address _____ Zip _____		
5. [ ]	Name _____	_____	_____
	Address _____ Zip _____		
6. [ ]	Name _____	_____	_____
	Address _____ Zip _____		
7. [ ]	Name _____	_____	_____
	Address _____ Zip _____		
8. [ ]	Name _____	_____	_____
	Address _____ Zip _____		
9. [ ]	Name _____	_____	_____
	Address _____ Zip _____		
10. [ ]	Name _____	_____	_____
	Address _____ Zip _____		

_____ _____

Date Applicant

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF THE GUARDIANSHIP OF _____

CASE NO. _____

JUDGMENT ENTRY
SETTING HEARING ON APPLICATION FOR APPOINTMENT OF GUARDIAN

This day _____ appeared in open Court, and filed an application for the appointment of (limited) guardian of the (person and estate) of _____. It is ordered that the _____ day of _____, 20____ at _____o'clock __.M., be and is hereby fixed as the time of hearing said application before this Court. It is further ordered that written notice be served personally upon minors over fourteen years of age and in the manner as is provided by law upon all others entitled to receive the same.

_____ _____

Date Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF THE GUARDIANSHIP OF _____

CASE NO. _____

WAIVER OF NOTICE AND CONSENT

We, the undersigned, do each of us hereby waive the issuing and service of notice, and voluntarily enter our appearance herein.

We do hereby consent to the appointment of _____.

_____ _____

_____ _____

_____ _____

_____ _____

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF THE GUARDIANSHIP OF _____

CASE NO. _____

FIDUCIARY'S ACCEPTANCE

GUARDIAN

[R.C. 2111.14]

I, the undersigned, hereby accept the duties which are required of me by law, and such additional duties as are ordered by the Court having jurisdiction.

AS GUARDIAN OF THE ESTATE, I WILL:

1. Make and file an inventory of the real and personal estate of the ward within 3 months after my appointment.
2. Deposit funds which come into my hands in a lawful depository located within this state.
3. Invest surplus funds in a lawful manner.
4. Make and file an account biennially, or as directed by the Court.
5. File a final account within 30 days after the guardianship is terminated.
6. Inventory any safe deposit box of the ward.
7. Preserve any and all Wills of the ward as directed by the Court.
8. Expend funds only upon written approval of the Court.
9. Make and file a guardian's report biennially, or as directed by the Court.

AS GUARDIAN OF THE PERSON, I WILL:

1. Protect and control the person of my ward, and make all decisions for the ward based upon the best interest of the ward.
2. Provide suitable maintenance for my ward when necessary.
3. Provide such maintenance and education for my ward as the amount of the estate justifies if the ward is a minor and has no parents, or has a parent who fails to maintain and educate the ward.
4. Make and file a guardian's report biennially, or as directed by the Court.
5. Obey all orders and judgments of the Court pertaining to the guardianship.
6. Obtain the written approval of the Court before executing a caretaker power of attorney authorized by R.C. 3109.52.

If I change my address or the ward's address, I shall immediately notify Probate Court in writing. I acknowledge that I am subject to removal as such fiduciary if I fail to perform such duties. I also acknowledge that I am subject to possible penalties for improper conversion of the property which I hold as such fiduciary.

_____ _____

Date Fiduciary

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF THE GUARDIANSHIP OF _____

CASE NO. _____

GUARDIAN'S BOND

[R.C. 2109.04(A)(1)]

Amount of this bond $ _____

The undersigned principal, and sureties if any, are obligated to the State of Ohio in the above amount, for payment of which we bind ourselves and our successors, heirs, executors, and administrators, jointly and severally.

The principal has accepted in writing the duties of fiduciary in ward's estate, including those imposed by law and such additional duties as may be required by the Court.

This obligation is void if the principal performs such duties as required.

This obligation remains in force if the principal fails to perform such duties, or performs them tardily, negligently, or improperly, or if the principal misuses or misappropriates estate assets or improperly converts them to the principal's own use or the use of another.

[Check if personal sureties are involved.] ☐ The sureties certify that each of them owns real estate in this county, with a reasonable net value as stated below.

_____
Date

_____
Principal

_____
Surety

_____
Surety

by _____
Attorney in Fact

by _____
Attorney in Fact

_____
Typed or Printed Name

_____
Typed or Printed Name

_____
Address

_____
Address

_____

_____

Net value of real estate owned in this county

Net value of real estate owned in this county

$_____

$_____

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF THE GUARDIANSHIP OF _____

CASE NO. _____

LETTERS OF GUARDIANSHIP

[R.C. 2111.02]

_____ is appointed Guardian of

_____, an _____ Incompetent _____ Minor.

Guardian's powers are:

All powers conferred by the laws of Ohio and rules of this Court over the ward's:

_____ Person and Estate _____ Person Only _____ Estate Only

Limited to _____

_____

_____

_____

Those guardianship powers, until revoked, are for an:

_____ Indefinite time period

_____ Definite time period to _____

The above named Guardian has the power conferred by law to do and perform all the duties of Guardian as described. **No expenditures shall be made without prior Court authorization.**

_____ _____

Date PROBATE JUDGE

NOTICE TO FINANCIAL INSTITUTIONS

Funds being held in the name of the within-named Ward shall not be released to Guardian without a Court order directing release of a specific fund and amounts thereof.

CERTIFICATE OF APPOINTMENT AND INCUMBENCY

The above document is a true copy of the original kept by me as custodian of this Court. It constitutes the appointment and letters of authority of the named guardian, who is qualified and acting in such capacity.

Probate Judge

by_____

(Seal) Deputy Clerk

_____

Date

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF THE GUARDIANSHIP OF _____

CASE NO. _____

GUARDIAN'S INVENTORY

[R.C. 2111.14(A)]

of the real and personal estate of the ward with its value and the value of the yearly rent of the real estate

List any safe deposit box and date and location of any will. $_____

_____

_____

_____

_____

_____

_____

_____

RECAPITULATION

Total value of Personal Estate . . . . . $ _____

Total value of Real Estate . . . . . $ _____

Yearly rent of Real Estate . . . . . $ _____

Other Annual Income . . . . . $ _____

Total . . . . . $ _____

_____
Guardian

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF THE GUARDIANSHIP OF _____

CASE NO. _____

APPLICATION TO RELEASE FUNDS TO GUARDIAN

Now comes the guardian of the above named ward and makes application for authority to secure the release of the following funds of the ward.

The applicant further states that it is for the best interest of the ward that this authority be granted.

_____
Guardian

ORDER AUTHORIZING RELEASE OF FUNDS

This _____day of _____, 20___, this cause came on to be heard upon the application of the guardian of the above named ward and the evidence, and the Court being fully advised in the premises, hereby authorized the release of the above named funds to the guardian.

_____
Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF THE GUARDIANSHIP OF _____

CASE NO. _____

APPLICATION FOR AUTHORITY TO EXPEND FUNDS

Now comes the undersigned, guardian of the estate of the above named _____ minor _____incompetent ward, and makes application for authority to expend funds for the best interest of the ward as follows: [State amount requested, nature of expenditure, and the frequency and duration of authority requested. Attach additional explanation, documentation, or estimates as needed.]

_____
Guardian

ORDER AUTHORIZING EXPENDITURE OF FUNDS

This _____day of _____, 20___, this cause came on to be heard upon the application of the guardian of the estate of the above named ward and the evidence, and the Court being fully advised in the premises, hereby authorizes the guardian to expend funds as set forth in the Application.

_____
Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF THE GUARDIANSHIP OF _____

CASE NO. _____

GUARDIAN'S ACCOUNT

[R.C. 2109.30]

_____ ACCOUNT

FROM _____ TO _____

20___	(Balance from previous account)	Voucher No.	$	$

(Reverse of Form 15.8)

RECAPITULATION

Total Receipts _____ $ _____

Total Disbursements _____ $_____

Balance Remaining _____ $_____

ITEMIZED STATEMENT OF ALL FUNDS, ASSETS AND INVESTMENTS

ITEM _____

$

_____ _____

Attorney Guardian

Attorney Registration No. _____ _____

Typed or Printed Name

_____

Address of Guardian

_____

ENTRY SETTING HEARING

The Court sets _____ at _____ o'clock _____.M., as the date and time for hearing the above account.

_____ _____

Date Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO
_____, Judge

GUARDIANSHIP OF _____

CASE NO. _____

OATH OF GUARDIAN

[R.C. 2111.02(C)]
[To be taken on Appointment of Guardian]

I, _____, Guardian of _____, will faithfully and completely fulfill my duties as Guardian, including the duty:

☐ To file, and continue to make diligent efforts to file, a true inventory in accordance with the Ohio Revised Code, and report all assets belonging to the estate of my ward.

☐ To file timely and accurate reports.

☐ To file timely and accurate accounts.

☐ To, at all times, protect my ward's interests and to make all decisions based on the best interest of my ward.

☐ To apply to the Court for authority to expend funds prior to so doing.

☐ To obey all orders and rules of this Court pertaining to guardianships.

_____
Guardian

The above oath was taken and signed in my presence on this _____ day of _____, _____.

_____
Judge/Referee

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF THE GUARDIANSHIP OF _____

CASE NO. _____

APPLICATION FOR APPOINTMENT OF GUARDIAN OF MINOR

[R.C. 2111.03(C)]

Applicant, a resident of _____ County, Ohio, hereby applies for the appointment of (himself) (herself) or some suitable person as guardian of the following minor and represents that the applicant is not an administrator, executor, or other fiduciary of an estate wherein the minor is interested

Name of Minor	Age	Date of Birth	Residence or Legal Settlement

Attached is a list of the next of kin of the minor. (Form 15.0)

A guardian is necessary because (R.C. 2111.06), _____

_____

TYPE OF GUARDIANSHIP APPLIED FOR IS

____ non-limited ____ limited _____ person and estate ____ estate only ____ person only

IF THE APPLICATION IS FOR LIMITED GUARDIANSHIP,

The length (time period) of the guardianship requested is:

_____ indefinite _____ definite to _____, 20____

The limited powers requested are: _____

_____

_____

Applicant attaches affidavit pursuant to R.C. 3109.27.

Applicant represents that grounds exist for the Court to exercise its jurisdiction. (Applies to guardianship of person only. R.C. 3109.22).

The Applicant has (not) been charged with or convicted of a crime involving theft, physical violence, or sexual, alcohol or substance abuse except as follows (if applicable, state date and place of each charge or each conviction.)

_____

_____

The whole estate of said minor is estimated as follows:

Personal Property ..... $ _____

Real Estate ..... $ _____

Annual Rents..... $ _____

Other annual income..... $ _____

Total $ _____

Applicant offers the attached bond in the amount of $ _____

I hereby certify that all the information and statements contained in this application and attached exhibits are correct to the best of my knowledge and belief.

_____
Attorney for Applicant

_____
Typed or Printed Name

_____
Address

_____
City State Zip

_____
Phone Number (include area code)

_____
Supreme Court Registration Number

_____
Applicant

_____
Typed or Printed Name

_____
Address

_____
City State Zip

_____
Phone Number (include area code)

PROBATE COURT OF _____ COUNTY, OHIO
_____, Judge

GUARDIANSHIP OF _____

CASE NO. _____

AFFIDAVIT
[R.C. 3109.27]

State of Ohio, County of _____s.s.

(To be filed only when guardianship of the person of a minor is sought)

Affiant being first duly sworn, deposes and says:

1. That the child's present address, the places where the child has lived within the last five years, and the names and present addresses of the person(s) with whom the child has lived during that period are:

2. That affiant has (not) participated as a party, witness, or in any other capacity in any litigation concerning the custody of the child(ren) in this or any other state.

3. That affiant has (no) information of any custody proceeding concerning the child(ren) pending in a court of this or any other state.

4. That affiant has (no) knowledge of any person not a party to the proceedings who has physical custody of the child(ren) or claims to have custody or visitation rights with respect to the child(ren).

If 2, 3, or 4 is answered in the affirmative, and the space afforded is insufficient for full explanation, please attach and incorporate herein any necessary information.

Affiant realizes that affiant has a continuing duty to inform the Court of any custody proceedings concerning the child(ren) in this or any other state of which affiant obtains information during the pendency of this proceeding.

_____

Sworn to before me and subscribed in my presence this _____ day of _____, _____.

_____
Notary Public

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF THE GUARDIANSHIP OF _____

CASE NO. _____

SELECTION OF GUARDIAN BY MINOR OVER FOURTEEN YEARS OF AGE

(R.C. 2111.12)

The undersigned hereby selects _____

a resident of _____ County, Ohio, as Guardian of the (person and estate), and respectfully asked the Court to appoint_____ Guardian.

Signature

Date of Birth

_____ _____

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF THE GUARDIANSHIP OF _____

CASE NO. _____

NOTICE OF HEARING FOR APPOINTMENT OF GUARDIAN OF MINOR

To Minor Over Age 14
[R.C. 2111.04]

To _____

Address _____

You are hereby notified that an application was filed in the Court by_____

_____
for the appointment of a (limited) guardian for your (person and estate).

A minor over the age of fourteen years may select a guardian who shall be appointed if a suitable person. If such minor fails to select a suitable person, an appointment may be made without reference to the minor's wishes.

The application will be for hearing before the Probate Court in _____

_____

on the _____ day of _____, 20_____ at _____o'clock _____.M.

If you are over age 14 and fail to appear in said Court on or before the time of hearing and select some suitable person to act as your guardian, the Court will appoint a guardian for you, if a guardian is found necessary.

Witness my signature and the seal of the Court,

this _____ day of _____, 20_____

Probate Judge

By:_____
Deputy Clerk

(Reverse of Form 16.3)

CASE NO. _____

RETURN

_____County, Ohio
_____, 20_____

Received this writ on the_____day of _____, 20___, at _____o'clock ___.M., and on the _____ day of _____, 20___, I served the same by delivering a true copy thereof personally to

_____

_____

_____

_____ _____

_____Fees_____ _____

Service and return, 1st name $_____ _____

_____Additional names, at_____ _____

_____Miles traveled, at _____

_____ _____
Sheriff

Total $ _____ _____

AFFIDAVIT OF SERVICE

The State of Ohio, _____ County.

_____, being first duly sworn, says that on the

_____ day of _____, 20_____, the within notice was served by delivering a true copy thereof personally to _____

_____

_____

Sworn to before me and signed in my presence, this _____ day of _____, 20_____

_____

_____

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF THE GUARDIANSHIP OF _____

CASE NO. _____

NOTICE OF HEARING ON APPLICATION FOR APPOINTMENT GUARDIAN OF MINOR

To Parent, Known Next of Kin and Person Having Custody
[R.C. 2111.04]

To _____

Address _____

To _____

Address _____

To _____

Address _____

You are hereby notified that _____ filed in this Court an application for appointment of a (limited) guardian of the (person and estate) of the minor.

The application will be for hearing before the Probate Court in _____

_____

On the _____ day of _____, 20____ at _____ o'clock _____.M.

Witness my signature and the seal of the Court,

this _____ day of _____, 20_____

(Seal)

Probate Judge

By: _____
Deputy Clerk

FORM 16.4 NOTICE OF HEARING ON APPLICATION FOR APPOINTMENT GUARDIAN OF MINOR TO PARENT, KNOWN NEXT OF KIN AND PERSON HAVING CUSTODY

Amended: March 15, 2016
Discard all previous versions of this form

(Reverse of Form 16.4)

CASE NO. _____

RETURN

_____County, Ohio
_____, 20_____

Received this writ on the_____day of _____, 20___, at _____o'clock ___.M., and on the _____ day of _____, 20___, I served the same by delivering a true copy thereof personally to

_____

_____

_____

_____ _____

_____Fees_____ _____

Service and return, 1st name $_____ _____

_____Additional names, at_____ _____

_____Miles traveled, at _____

_____ _____
Sheriff

Total $ _____ _____

AFFIDAVIT OF SERVICE

The State of Ohio, _____ County.

_____, being first duly sworn, says that on the

_____ day of _____, 20_____, the within notice was served by delivering a true copy thereof personally to _____

_____

_____

Sworn to before me and signed in my presence, this _____ day of _____, 20____

_____

_____

FORM 16.4 NOTICE OF HEARING ON APPLICATION FOR APPOINTMENT GUARDIAN OF MINOR TO PARENT, KNOWN NEXT OF KIN AND PERSON HAVING CUSTODY

Amended: March 15, 2016
Discard all previous versions of this form

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF THE GUARDIANSHIP OF _____

CASE NO. _____

JUDGMENT ENTRY
APPOINTMENT OF GUARDIAN OF MINOR

[R.C 2111.02]

Upon hearing the application for appointment of guardian herein the Court finds that _____ is a minor and that a guardianship is necessary.

The Court further finds that all persons who were entitled to notice of the hearing thereon were given or waived notice thereof, that the minor is (not) over the age of fourteen years (and has (not) made selection of a guardian, whom the Court finds suitable), that the minor is a resident of this county or has legal settlement herein; that this Court has jurisdiction and that grounds exist for the Court to exercise that jurisdiction.

The Court therefore appoints _____, a suitable and competent person, (limited) guardian of the (person and estate) of_____ _____, minor, with the powers conferred as described, and limited to those powers contained in the Letters of Guardianship issued by this Court.

The Court approves the bond as filed.

The Court finds a record of the hearing was waived.

The Court orders Letters of Guardianship issued to _____ _____ as provided by law.

_____ _____

Date PROBATE JUDGE

PROBATE COURT OF _____ COUNTY, OHIO
_____, JUDGE

GUARDIANSHIP OF_____

CASE NO. _____

APPLICATION FOR APPOINTMENT OF GUARDIAN OF ALLEGED INCOMPETENT

[R.C. 2111.03]

Applicant represents to the Court that _____ resides or has a legal settlement at _____ in _____ County, Ohio and that the prospective ward is incompetent by reason of (R.C. 2111.01(D)) _____
_____.

The proposed ward's date of birth is _____.

A Statement of Expert Evaluation is attached. (Form 17.1)

A list of Next of Kin of Proposed Ward is also attached. (Form 15.0)

The whole estate of the prospective ward is estimated as follows:

Personal Property……..$_____

Real Estate…….....$_____

Annual Rents…….....$_____

Other annual income……..…$_____

Applicant represents that the applicant is not an administrator, executor or other fiduciary of the estate wherein the alleged incompetent is interested.

Applicant offers the attached bond in the amount of $ _____.

Applicant further represents that a guardian of the alleged incompetent is necessary in order that ☐ the ward ☐ ward's property may be taken proper care of and asks that a guardian be appointed.

TYPE OF GUARDIANSHIP APPLIED FOR IS **[check the applicable boxes]**

☐ non-limited ☐ limited ☐ person and estate ☐ estate only ☐ person only

If limited guardianship is applied for, the limited powers requested are
_____
_____.

[Reverse of Form 17.0]

CASE NO._____

The time period requested is ☐ indefinite ☐ definite to _____
_____.

Applicant's relationship to alleged incompetent is _____
_____.

The Applicant has (not) been charged with or convicted of a crime involving theft, physical violence, or sexual, alcohol or substance abuse except as follows (if applicable, state date and place of each charge or each conviction.)
_____
_____.

☐ The Applicant represents that a guardian has been nominated in a writing pursuant to R.C. 1337.09(D) or R.C. 2111.121. The nominated person is _____.

☐ The nominated person's contact information is listed on Form 15.0 (Next of Kin).

☐ A copy of the document which nominates the guardian is attached.

☐ The Applicant represents that the proposed ward had military service.

Military I.D.:_____

Branch of service:_____

Dates of service:_____

☐ Applicant represents that the address provided is the applicant's permanent address and acknowledges the requirement that the court be notified of any change of address. Removal may result from a failure to comply with this requirement.

_____ Attorney for Applicant	_____ Applicant
_____ Typed or Printed Name	_____ Typed or Printed Name
_____ Address	_____ Age
_____ City State Zip	_____ Permanent Address
_____ Telephone Number (include area code)	_____ City State Zip
Attorney Registration No._____	_____ Telephone Number (include area code)

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE MATTER OF THE GUARDIANSHIP OF _____

CASE NO. _____

STATEMENT OF EXPERT EVALUATION

[Sup.R. 66 & R.C. 2111.49]

Definition of Incompetent (R.C. 2111.01(D)): "Incompetent" means any person who is so mentally impaired, as a result of a mental or physical illness or disability, as a result of intellectual disability, or as a result of chronic substance abuse, that the person is incapable of taking proper care of the person's self or property or fails to provide for the person's family or other persons for whom the person is charged by law to provide, or any person confined to a correctional institution within this State. The examiner shall complete this statement using personal observations and prior history obtained during the examiners course of treatment / interaction with the individual.

The Statement of Evaluation does not declare the individual competent or incompetent. It is evidence to be considered by the Court. The Probate Court **WILL NOT** pay the fee for completing this evaluation, unless otherwise ordered by the Court. The evaluator should secure payment from the Applicant or Guardian.

1. This Statement of Expert Evaluation is to be filed with or attached to:

   ☐ A. Guardianship Application: [Evaluation must be completed before the filing of the attached application.]

   Evaluation completed by: ☐ Licensed Physician ☐ Licensed Clinical Psychologist

   ☐ B. Application for Emergency Guardianship:

   Evaluation completed by: ☐ Licensed Physician ☐ Licensed Clinical Psychologist

   [NOTE: If this Statement relates to an emergency guardianship of the person, a Licensed Physician or a Licensed Clinical Psychologist must complete the Supplement for Emergency Guardian, Form 17.1A, specifying the details of the emergency, and why immediate action is required to prevent significant injury or death to the person. The Supplement must be signed by a Licensed Physician or a Licensed Clinical Psychologist, dated, and attached to this completed Statement.]

   ☐ C. Guardian's Report: [Evaluation must be conducted within three months before the date of this Report. R.C. 2111.49]

   Evaluation completed by: ☐ Licensed Physician ☐ Licensed Clinical Psychologist
   ☐ Licensed Independent Social Worker ☐ Licensed Professional Clinical Counselor
   ☐ Developmental Disability Team ☐ Certified Nurse Practitioner ☐ Licensed Clinical Nurse Specialist

2. Statement completed by: (Please print clearly)
   Name & Title/Profession: _____
   Business Address: _____
   Business Telephone Number: _____

3. Date(s) of evaluation: _____
   Place(s) of evaluation: _____
   Amount of time spent on evaluation: _____
   Length of time the individual has been your patient: _____
   Individual's language preference: _____

4. Is the individual presently taking medication? ☐ Yes ☐ No If yes, what is the medication, dosage, and purpose? [Continue comments on page 4]

CASE NO. _____

Are there any signs of physical and/or mental impairments caused by the medications themselves? _____

5. Is the individual mentally impaired? ☐ Yes ☐ No If yes, indicate the diagnosis below:
☐ Intellectual or Developmental Disabilities: *(Please check the severity)*
☐ Profound ☐ Severe ☐ Moderate ☐ Mild

☐ Mental Illness: Type and Severity _____

☐ Substance Abuse: Description _____

☐ Dementia: Type and Severity _____

☐ Other: Description, Type, and Severity _____
[Continue comments on page 4]

6. During the examination did you notice an impairment of the individual's:

a) Orientation	☐ Yes	☐ No	☐ Unknown
b) Speech	☐ Yes	☐ No	☐ Unknown
c) Motor Behavior	☐ Yes	☐ No	☐ Unknown
d) Thought Process	☐ Yes	☐ No	☐ Unknown
e) Affect	☐ Yes	☐ No	☐ Unknown
f) Memory	☐ Yes	☐ No	☐ Unknown
g) Concentration	☐ Yes	☐ No	☐ Unknown
h) Comprehension	☐ Yes	☐ No	☐ Unknown
i) Judgment	☐ Yes	☐ No	☐ Unknown

7. Please describe any impairments identified in question six. [Continue comments on page 4].

8. Is the individual physically impaired? I.e. visual, mobility, hearing, etc. ☐ Yes ☐ No If yes, please describe: ___

9. Are there any special characteristics of the individual which should be considered in evaluating the individual for guardianship: ☐ Yes ☐ No If yes, please explain: _____

10. Is there any indication of abuse, neglect, or exploitation of the individual? ☐ Yes ☐ No If yes, please explain:

11. Do you believe the individual is capable of caring for his or her activities of daily living or making decisions concerning his or her own medical treatments, living arrangements, and diet?

☐ Yes ☐ No If no, please explain: _____

CASE NO. _____

12 Do you believe this individual is capable of managing his or her finances and property? ☐ Yes ☐ No If no, please explain: _____

13. What is the recommended living situation for the individual?

☐ Independent living arrangement ☐ Assisted living facility or group home
☐ A nursing home ☐ A memory care facility or lockdown unit
☐ Other: _____

14. Prognosis of the individual:
A. Is the condition stabilized? ☐ Yes ☐ No ☐ Unknown
B. Is the condition reversible: ☐ Yes ☐ No ☐ Unknown

15. In my opinion a guardianship should be:
If this is a new application for appointment of guardian: ☐ Established ☐ Denied
If this is an existing guardianship: ☐ Continued ☐ Terminated

I certify that I have evaluated the individual on _____, 20_____.

Date:_____

_____
Signature of Evaluator

_____
Printed Name of Evaluator

GUARDIAN'S REPORT ADDENDUM

(Not to be used with initial Application)

It is my opinion, based upon a reasonable degree of medical or psychological certainty that the mental capacity of this ward will not improve.

Date_____

_____
Signature – Licensed Physician/Clinical Psychologist

_____
Printed Name of Licensed Physician/Clinical Psychologist

CASE NO. _____

ADDITIONAL COMMENTS

Date_____

_____
Signature of Evaluator

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF THE GUARDIANSHIP OF_____

CASE NO. _____

SUPPLEMENT FOR EMERGENCY GUARDIAN OF PERSON

[R.C. 2111.49]

This Supplement must be completed when there is a request for Emergency Guardianship. The following questions must be answered with specificity and item 1.C, page 1 of the Statement of Expert Evaluation, Form 17.1 must be checked.

A. Does the individual have a durable health care power of attorney? _____ If yes, why is it not being honored?

_____

_____

B. Exact nature of emergency: _____

_____

_____

C. Length of time emergency has existed, and why? _____

_____

D. Specific action required to prevent significant injury to the person: _____

_____

_____

E. Ability of the alleged Incompetent to receive notice and give consent: _____

_____

F. Medical prognosis in detail if immediate action, within 24 hours, is not taken: _____

_____

_____

G. Additional statements regarding condition, family, support services, etc: _____

_____

_____

Note: Any above answers may be supplemented by attachments.

_____ _____

Date and Time of Evaluation Licensed Physician

_____

Date of Report

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF THE GUARDIANSHIP OF _____

CASE NO. _____

NOTICE TO PROSPECTIVE WARD OF APPLICATION AND HEARING

To _____

Address _____

An application for appointment of _____ as (limited) guardian for your (person and estate) has been filed with the Probate Court.

A hearing on that application will be held on _____at _____ o'clock _____.M. at the Probate Court, _____. At that hearing, Applicant must prove by clear and convincing evidence that, because of mental impairment, you are unable to handle your own affairs.

1. **You have the right to be present at the hearing to contest the application, and to be represented by an attorney of your choice;**

2. **The right to have a friend or family member of your choice present at the hearing;**

3. **The right to have evidence of an independent expert evaluation introduced at the hearing;**

4. **If you are indigent, upon your request, an attorney and an independent expert evaluator will be appointed at court expense;**

5. **If you are indigent, and you appeal the guardianship decision, you have the right to have an attorney appointed and necessary transcripts prepared at court expense.**

Witness my signature and the seal of the Court,

this _____ day of _____, 20___

(Seal)

Probate Judge

By: _____
Deputy Clerk

(Reverse of Form 17.3)

RETURN

_____ County, Ohio

_____ , 20____

Received this notice on the _____day of _____, 20_____, and on the _____ day of _____, 20_____, I served the same by delivering a true copy thereof personally to _____.

I communicated with him/her in a language or method of communication understandable to the alleged incompetent.

_____
Investigator

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF THE GUARDIANSHIP OF_____

CASE NO. _____

NOTICE OF HEARING FOR APPOINTMENT OF GUARDIAN OF ALLEGED INCOMPETENT PERSON

To Spouse and Known Next of Kin
[R.C. 2111.04]

To _____

Address _____

To _____

Address _____

To _____

Address _____

next of kin of _____ known to reside in this state.

You are hereby notified that on the _____ day of _____, 20_____,

_____ filed in the Court an application for the appointment

of a (limited) guardian of the (person and estate) of _____, an alleged incompetent.

The application will be for hearing before the Probate Court in _____

_____, on the _____ day of _____, 20_____, at

_____ o'clock _____.M.

Witness my signature and the seal of the Court,

this _____ day of _____, 20_____

(Seal)

Probate Judge

By:_____
Deputy Clerk

(Reverse of Form 17.4)

CASE NO. _____

RETURN

_____County, Ohio
_____,20__

Received this writ on the _____ day of _____, 20____, at _____o'clock_____.M.

and on the _____ day of _____, 20_____, I served the same by (insert, "delivering", "leaving", or "sending") _____ a true copy thereof (insert, "personally to", "at the Usual place of residence", or "by certified mail to the last known address of") _____

_____

_____

_____ _____

_____Fees_____ _____

Service and return, 1st name $_____ _____

_____Additional names, at_____ _____

_____Miles traveled, at _____ _____

_____ _____
Sheriff

Total $ _____ _____
Deputy

AFFIDAVIT OF SERVICE

The State of Ohio, _____ County.

_____, being first duly sworn, says that on the _____ day of _____, 20_____, the within notice was served by delivering a true copy thereof personally to _____

_____

_____

_____

Sworn to before me and signed in my presence, this _____ day of _____, 20____

_____

_____

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

GUARDIANSHIP OF _____

CASE NO. _____

JUDGMENT ENTRY

APPOINTMENT OF GUARDIAN FOR INCOMPETENT PERSON
[R.C 2111.02 and Sup.R. 66.04 and 66.06]

Upon hearing the application for appointment of guardian herein, the Court finds that _____, the above-named Ward, is incompetent by reason of _____ and therefore is incapable of taking proper care of _____ self and _____ property, and that a guardianship is necessary.

The Court further finds that all persons who were entitled to notice of the hearing thereon were given or waived notice thereof; that the incompetent is a resident of this county or has legal settlement herein; and that this Court has jurisdiction.

It is therefore ordered that a (limited) guardian of the (person and estate) be appointed.

The Court therefore appoints _____, a suitable and competent person, (limited) guardian of the (person and estate) of _____ _____, the above-named Ward, incompetent, with the powers conferred as described, and limited to those powers contained in the Letters of Guardianship issued by this Court. This appointment is in compliance with R.C. 2111.09.

☐ The Court approves/dispenses with the bond.

☐ The Court finds a record of the hearing was waived.

The Guardian shall comply with the requirements of Sup.R. 66.06.

The Court orders Letters of Guardianship issue to _____ as provided by law.

The Court further ORDERS:_____

_____

IT IS SO ORDERED

_____ _____

Date PROBATE JUDGE

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

GUARDIANSHIP OF _____

CASE NO. _____

GUARDIAN'S REPORT

[R.C. 2111.49 and Sup.R. 66.05(B)(2)]

NOTE: If allotted space is inadequate to respond, write "See Exhibit" in the space and add appropriate exhibit letter sequence, then attach exhibit containing information requested for that space.

1. This is the **(circle one)** 1st, 2nd, 3rd, 4th, 5th, 6th, or _____, Guardian's Report.
2. Ward's present address:_____
   City _____ State _____
   Zip Code_____Telephone Number (____)_____
3. Ward's living arrangements at the above address are best described as:
   - ☐ a. His or her own apartment or home (includes assisted living facilities.)
   - ☐ b. Private home or apartment of:
     - ☐ (1) the ward's guardian
     - ☐ (2) a relative of the ward, whose name is _____ and relationship is _____
     - ☐ (3) a non-relative whose name is _____
   - ☐ c. A foster, group, or boarding home.
   - ☐ d. A nursing home.
   - ☐ e. A medical facility or state institution.
   - ☐ f. Other (describe) _____
     _____
   - g. If **c**, **d**, **e,** or **f** is checked, complete the following:
     - ☐ (1) The name of the home, facility, or institution _____
     - ☐ (2) The name of an individual at the home, facility, or institution who has knowledge and is authorized to give information to the court about the ward.
       Name _____
       Telephone Number (_____)_____
4. The ward will be at the address given in Item 2:
   - ☐ a. Indefinitely.
   - ☐ b. Temporarily. The new address and telephone number is:
     - ☐ (1) Unknown. I will provide this information when known.
     - ☐ (2) _____
       City _____ State _____
       Zip Code _____ Telephone Number (____)_____

CASE NO._____

5. Guardian's contact with the ward.
   a. Approximate number of times the guardian had contact with the ward during the period covered by this report: _____
   b. The nature of those contacts (phone, personal, or other): _____
   _____
   c. Date the ward was last seen by the guardian: _____

6. Have you observed any **major** change in the ward's physical or mental condition during the period covered by this report? ☐ Yes ☐ No
   If "yes" is checked, briefly describe the changes._____
   _____
   _____

7. The care given to the ward is ☐ Adequate ☐ Not Adequate
   If "Not Adequate" is checked, explain. _____
   _____
   _____

8. The guardianship should be ☐ Continued ☐ Not Continued
   If "Not Continued" is checked, explain. _____
   _____
   _____

9. During the period covered by this report, the ward ☐ has ☐ has not been seen by a physician. If the ward has been seen, the last date was _____ and for the purpose of _____

10. ☐ I currently serve as the guardian to ten or more wards and certify to the Court that I am unaware of any circumstances that may disqualify me from serving as guardian for this ward.

11. With regard to the continuing education requirement pursuant to Sup.R. 66.07:
    ☐ I have completed the continuing education requirement. (Attach Certificate of Completion if applicable)
    ☐ The continuing education requirement was waived.

Attached is a statement by a licensed physician, a licensed clinical psychologist, a licensed social worker, or a developmental disability team, that has evaluated or examined the ward within three months prior to the date of this report regarding the need for continuing the guardianship. [R.C. 2111.49(A)(1)(I)](Form 17.1)

If an attorney has been consulted on this report:
Attorney for Guardian

_____
Street

_____
City State Zip Code

_____
Telephone Number (include area code)

_____
Attorney Registration No.

_____

Date

_____
Guardian's Printed Name

_____
Guardian's Signature

_____
Street

_____
City State Zip Code

_____
Telephone Number (include area code)

_____

(Knowingly giving false information on a Probate document is a criminal offense)
[R.C. 2921.13(A)(11)]

PROBATE COURT OF _____ COUNTY, OHIO
_____, JUDGE

GUARDIANSHIP OF: _____

CASE NO: _____

COURT INVESTIGATOR'S REPORT ON PROPOSED GUARDIANSHIP
[R.C. 2111.041]

GENERAL INFORMATION
[To be compiled by Probate Court Investigator]

Individual's age_____ Relationship to applicant_____

Individual's residence _____

Individual's highest level of education _____

Individual's marital status _____

Grounds for application (R.C.2111.01(D)):

The individual is alleged to be:

- ☐ mentally impaired as a result of a mental illness or disability.
- ☐ mentally impaired as a result of a physical illness or disability.
- ☐ mentally impaired as a result of intellectual disability.
- ☐ mentally impaired as a result of chronic substance abuse.
- ☐ any person confined to a correctional institution within this state.

so that

- ☐ the individual is incapable of taking proper care of the individual's self.
- ☐ the individual is incapable of taking proper care of the individual's property.
- ☐ the individual fails to provide for the individual's family or other individual for whom the person is charged by law to provide.

Documentation submitted and date of evaluation _____

Referral Source: _____

CASE NO. _____

INVESTIGATOR'S REPORT

I. Service of Notice

☐ Made at Individual's home

☐ Made in Hospital, Nursing Facility, or Community-Based Care Facility:

Name of Facility _____

Address of Facility _____

Administrator or representative served _____

☐ Other _____

Date of Service of Notice: _____

Others present during the contact (if yes, list name and relationship) _____

_____

A. Individual's understanding of the concept of guardianship:

☐ Good ☐ Fair ☐ Poor ☐ Unable to determine.

Explain _____

_____.

B. Individual's attitude to the concept of guardianship:

☐ Consenting ☐ Opposed ☐ Unable to Determine.

Explain _____

_____.

C. What is the individual's attitude towards the applicant serving as guardian?

☐ Consenting ☐ Opposed ☐ Unable to Determine.

Explain _____

_____.

CASE NO. _____

D. Is there someone other than the applicant that the individual would prefer as guardian?

☐ Yes _____ (name/relationship) ☐ No

Explain _____

_____.

E. Specific requests of the individual concerning enumerated rights

II. Mental and Physical Conditions of Individual

A. Individual's reported mental and physical diagnosis:_____

_____.

Individual's reported medications: _____

_____.

Reported by whom: _____

B. Mental Status Observations: During interview were impairments noted in the Individual's:

	Yes	No	Unable to Determine
1. Orientation (Person, Place and Time)	☐	☐	☐
2. Speech	☐	☐	☐
3. Thought Process	☐	☐	☐
4. Affect	☐	☐	☐
5. Memory	☐	☐	☐
6. Concentration & Comprehension	☐	☐	☐
7. Judgment	☐	☐	☐

Explain further if necessary:_____

_____.

CASE NO. _____

C. Describe the Physical Condition of Individual

1. Isolation _____

2. Eating Habits _____

3. Significant Weight Loss or Gain _____

4. Sleep Habits _____

5. Mobility _____

Explain further if necessary:_____

_____.

D. Describe the Environmental or Living Condition of the Individual:

1. Housing & Sanitation _____

2. Risk of Accidents _____

3. Physical Barriers _____

4. Resource Availability _____

Explain further if necessary:_____

_____.

III. Functional Capacities

Activities and Instrumental Activities of Daily Living

	Capable	Incapable	Unable to Determine
1. Eating	☐	☐	☐
2. Dressing	☐	☐	☐
3. Transfer from bed	☐	☐	☐
4. Toileting	☐	☐	☐

CASE NO. _____

5. Bathing	☐	☐	☐
6. Handling personal finances	☐	☐	☐
7. Shopping	☐	☐	☐
8. Driving	☐	☐	☐
9. Meal preparation	☐	☐	☐
10. Doing housework	☐	☐	☐
11. Using telephone	☐	☐	☐
12. Taking medications	☐	☐	☐

Explain further if necessary:

_____

_____.

IV. Additional Items Affecting Guardianship Plan Development

A. Are there any indications or allegations of substance abuse by the individual or significant others that could impact the guardianship issue? Yes ☐ No ☐ Explain and recommend actions needed:

_____

_____

_____.

B. Are there any special characteristics of the individual (including aggressive, violent, or sexual behaviors, or other vulnerabilities) that pose a risk to self or others, which should be considered as guardianship decisions on living arrangements and supervision are made? Yes ☐ No ☐ Explain the characteristics and make recommendations:

_____

_____

_____.

C. Are there any allegations or indications of abuse, neglect, or exploitation of the individual? Yes ☐ No ☐ Explain and recommend needed actions:

CASE NO. _____

_____

_____

_____.

D. Is there a need for additional medical, psychiatric, or psychological testing? Yes ☐ No ☐ If yes, give specific recommendations:

_____

_____

_____.

E. Are there inconsistencies between the Expert Evaluation and the Court Investigator's findings that need further review by the Court? Yes ☐ No ☐ If yes, identify the inconsistencies and make a recommendation(s) to the Court:

_____

_____

_____.

F. Are there unresolved issues/conflicts/ differences among the parties? Yes ☐ No ☐ If yes, would mediation be of assistance? Yes ☐ No ☐
Explain _____

_____.

G. Is there a power of attorney for financial affairs? Yes ☐ No ☐ Unknown ☐ If yes, where is it located?_____.

Who is the attorney-in-fact?_____.

H. Is there a last will and testament? Yes ☐ No ☐ Unknown ☐
If yes, where is it located? _____.

I. Is there a durable power of attorney for health care/living will? Yes ☐ No ☐ Unknown ☐ If yes, where is it located? _____.

Give name and address of attorney-in-fact: _____.

J. Is there an advance directive for mental health care? Yes ☐ No ☐ Unknown ☐ If yes, where is it located?_____.

CASE NO. _____

Give name and address of attorney-in-fact: _____

_____.

K. Is the individual a veteran? Yes ☐ No ☐

L. Does the individual have regular visitors? Yes ☐ No ☐

Source of the Information: _____.

M. If yes, who:_____.

Relationship of visitor(s) to individual:_____.

N. Did the individual express a desire to have visitors? Yes ☐ No ☐

If yes, who?_____.

If no, why not?_____.

V. RECOMMENDATIONS: Given the above information and Expert Evaluation(s):

A. IS A GUARDIANSHIP NECESSARY?

☐ Yes

- ☐ Person Only
- ☐ Estate Only
- ☐ Person and Estate
- ☐ Limited List Duties:_____

_____

_____

☐ No Explain and recommend a less restrictive alternative(s):_____

_____

B. NECESSITY FOR THE APPOINTMENT OF:

Attorney ☐ Independent Expert Evaluator ☐

Are there special urgency needs? Explain: _____

_____

CASE NO. _____

C. VISITATION RECOMMENDATION: _____

Remarks:

I certify that I have served notice to the alleged incompetent as required by statute and I have communicated to the individual in a language and method best understandable by the individual the individual's right to be present at the hearing, the right to contest any application for the appointment of a guardian for his or her person, estate, or both, and the right to be represented by counsel.

_____ _____

Date Investigator

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

GUARDIANSHIP OF _____

CASE NO. _____

SERVICE OF NOTICE INFORMATION FOR ADULT GUARDIANSHIPS

[R.C. 2111.04]

You are asking to be appointed guardian for an adult. Ohio law requires that the prospective ward be visited and personally served notice of the application by a Probate Court Investigator. The below information is required in order to assist the Court Investigator in this process.

Please provide the requested information with your application.

1. At the time of the filing of the Application for Guardianship, the proposed ward is physically at:
   ☐ Home ☐ Facility ☐ Other *(please check one)*

   Address (Do not answer unknown): _____

   _____

2. Does the proposed ward leave the above location on a regular basis (day care, etc.) during the day?
   ☐ Yes ☐ No

   If yes, explain: _____

   _____

3. Please provide a name and phone number of a person who can be contacted by the Court Investigator so that the Court Investigator may arrange a visit with the proposed ward (case manager, social worker, nurse, parent, applicant, or attorney)

   a. Contact person's name: _____

   b. Contact person's relation to proposed ward: _____

   c. Telephone number: _____

   d. Best time for Court Investigator to contact: _____

4. Has the proposed ward been told of the pending action? ☐ Yes ☐ No

5. To ensure safety, should the Court Investigator be accompanied by someone or require assistance?
   ☐ Yes ☐ No
   If yes, explain: _____

   _____

Date:_____ _____

Applicant's Signature

CAUTION: The hearing may not be held unless this visit is completed at least 7 days prior to the hearing date. If there is any change in the location of the proposed ward from the time the application is filed to the hearing date, please contact _____ at____ _____.

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE MATTER OF THE ADOPTION OF _____
(Name after adoption)

CASE NO. _____

PETITION FOR ADOPTION OF MINOR
[R.C. 3107.05]

The undersigned petitions to adopt _____,

a minor, and to change the name of the minor to _____.

PETITIONER

The petitioner states the following:

Full Name:_____ Age _____

Full Name:_____ Age _____

Place of Residence: _____
Street Address

_____
Post Office State Zip Code Duration of residence

Marital Status:_____ Date and Place of Marriage:_____

Relationship of Minor to Petitioner: _____

The petitioner has facilities and resource suitable to provide for the nurture and care of the minor and it is the desire of the petitioner to establish the relationship of parent and child with the minor.

MINOR TO BE ADOPTED

Birth Name:_____ Date of Birth: _____

Place of Birth:_____ Property and Value: _____

☐ The minor is living in the home of the petitioner, and was placed therein for adoption on the _____ day of _____, 20____ by _____.

☐ The minor is not living in the home of the petitioner, and resides at _____

_____.

☐ A certified copy of the birth certificate of the minor is filed with this petition or is not available due to the following:

_____.

☐ A Preliminary Estimate Accounting (Form 18.9), if required, is filed with this petition.

☐ The minor is in the permanent custody of _____

whose address is _____.

CASE NO. _____

☐ The guardian ad litem during the permanent custody proceedings was _____

whose address is _____.

☐ The attorney representing the minor during the permanent custody proceedings was _____

whose address is _____.

☐ A child support order exists and is administered by the _____ County Child Support Enforcement Agency.

PERSONS OR AGENCIES WHOSE CONSENT TO THE ADOPTION IS REQUIRED

☐ Name:_____ Relationship:_____ Age, if minor _____
Address:_____ ☐ Consent filed

☐ Name:_____ Relationship: _____ Age, if minor _____
Address:_____ ☐ Consent filed

☐ _____, the agency has permanent custody of the minor filed under _____ ☐ Consent filed

PERSONS WHOSE CONSENT TO THE ADOPTION IS NOT REQUIRED

☐ No person registered with Ohio's putative father registry within 15 days of the minor's birth. See verification attached.

A The consent of _____
Name Address Relationship

B The consent of _____
Name Address Relationship

is/are not required because:

A B
☐ ☐ The parent has failed without justifiable cause to have more than de minimis contact with the minor for a period of one year immediately preceding the filing of the petition.

☐ ☐ The parent has failed without justifiable cause to provide meaningful and regular maintenance and support of the minor as required by law or judicial decree for a period of one year immediately preceding the filing of the petition.

☐ ☐ The person meets criteria set forth under subsection _____ of R.C. 3107.07 and therefore the person's consent is not required.

CASE NO. _____

_____
Attorney for Petitioner

_____
Typed or Printed Name

_____
Street Address

_____
City State Zip Code

_____
Telephone Number (include area code)

_____
Email Address

Attorney Registration No. _____

_____
Petitioner

_____
Typed or Printed Name

_____
Petitioner

_____
Typed or Printed Name

_____
Street Address

_____
City State Zip Code

_____
Telephone Number (include area code)

_____
Email Address

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF THE ADOPTION OF _____
(Name after adoption)

CASE NO. _____

JUDGMENT ENTRY
SETTING HEARING AND ORDERING NOTICE

[R.C. 3107.11]

On the _____ day of _____, 20 ___ , _____

_____

filed a petition to adopt _____

and to change the name of the minor to _____

It is ordered that the Petition For Adoption will be heard on the _____ day of _____,

20 _____, at _____ o'clock ____. M. , and that notice be given as required by law.

_____
Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO
_____, JUDGE

ADOPTION OF _____
(Name after adoption)

CASE NO. _____

NOTICE OF HEARING ON PETITION FOR ADOPTION

Notice must be served not less than 30 days before the date of the hearing
[R.C. 3107.11]

To: _____

_____

_____

You are hereby notified that on the _____ day of _____, 20___, _____ _____, filed in this Court a Petition for Adoption of _____, a minor, whose date of birth is _____, and for change of the name of the minor to _____. This Court, located at _____ _____ will hear the petition on the _____ day of _____, 20____, at _____ ____.M.

It is alleged in the petition, pursuant to R.C. 3107.07, that the consent of _____ is not required due to the following:
(Name)

☐ That person is a parent who has failed without justifiable cause to have more than de minimis contact with the minor for a period of one year immediately preceding the filing of the adoption petition.

☐ That person is a parent who has failed without justifiable cause to provide meaningful and regular maintenance and support of the minor as required by law or judicial decree for a period of one year immediately preceding the filing of the adoption petition.

☐ The person meets criteria set forth under subsection _____ of R.C. 3107.07 and therefore the person's consent is not required.

A FINAL DECREE OF ADOPTION, IF GRANTED, WILL TERMINATE YOUR PARENTAL RIGHTS AND RESPONSIBILITIES, INCLUDING THE RIGHT TO CONTACT THE MINOR. ALL LEGAL RELATIONSHIPS BETWEEN THE MINOR AND YOU AND YOUR RELATIVES WILL TERMINATE, SO THAT THE MINOR IS A STRANGER TO YOU AND YOUR RELATIVES FOR ALL PURPOSES, WITH THE EXCEPTION OF DIVISION (A)(1)(b) OF SECTION 3107.15 OF THE REVISED CODE.

IF YOU OBJECT TO THE ADOPTION, AND THE MINOR WAS LESS THAN ONE YEAR OF AGE AT THE TIME THE PETITION FOR ADOPTION WAS FILED, YOU MUST DO BOTH OF THE FOLLOWING:

(1) FILE A WRITTEN OBJECTION WITH THE COURT WITHIN FOURTEEN DAYS FROM THE DATE OF SERVICE OF NOTICE OF THE FILING OF THE PETITION AND OF THE TIME AND PLACE OF HEARING.

(2) APPEAR AT THE HEARING.

IF YOU OBJECT TO THE ADOPTION, AND THE MINOR WAS ONE YEAR OF AGE OR OLDER AT THE TIME THE PETITION FOR ADOPTION WAS FILED, YOU MUST DO BOTH OF THE FOLLOWING:

(1) FILE A WRITTEN OBJECTION WITH THE COURT WITHIN TWENTY-EIGHT DAYS FROM THE DATE OF SERVICE OF NOTICE OF THE FILING OF THE PETITION AND OF THE TIME AND PLACE OF HEARING. FOR GOOD CAUSE SHOWN, THE COURT MAY EXTEND THE TIME IN WHICH A WRITTEN OBJECTION MAY BE FILED.

(2) APPEAR AT THE HEARING.

A FINAL DECREE OF ADOPTION MAY BE ENTERED IF YOU FAIL TO FILE AN OBJECTION ON TIME AND APPEAR AT THE HEARING.

RIGHT TO AN ATTORNEY: YOU HAVE A RIGHT TO BE REPRESENTED BY AN ATTORNEY. IF YOU ARE INDIGENT AND UNABLE TO EMPLOY AN ATTORNEY, YOU ARE ENTITLED TO HAVE AN ATTORNEY PROVIDED TO YOU PURSUANT TO CHAPTER 120 OF THE REVISED CODE. YOU MUST CONTACT THE COURT ON RECEIPT OF THIS NOTICE IF YOU ARE REQUESTING THAT AN ATTORNEY BE APPOINTED FOR YOU.

THE COURT SHALL CONSIDER A WRITTEN REQUEST FOR AN ATTORNEY OR A NOTICE OF APPEARANCE FILED BY AN ATTORNEY ON YOUR BEHALF, IN ACCORDANCE WITH THE ABOVEMENTIONED TIME FRAMES, AS GROUNDS FOR AN EXTENSION TO FILE WRITTEN OBJECTIONS.

_____, Probate Judge

By:_____
Deputy Clerk

CASE NO. _____

The State of Ohio, _____Probate Court

I hereby certify that I caused a copy of the within notice to be mailed, by certified mail, to the last known address of _____

At _____

_____

At _____

_____

_____, Probate Judge

By: _____
Deputy Clerk

RETURN

_____, County, Ohio

_____, 20_____

Received this writ on the _____ day of _____, 20___, at _____ ____.M., and on the _____ day of _____, 20___, I served the same by delivering a true copy thereof personally to _____

_____

FEES

_____
Sheriff

Service and return, 1st name, $ _____

_____
Deputy Sheriff

____ Additional names, at $ _____

____ Miles traveled, at $ _____

_____
Name

_____ _____

_____
Title

Total $ _____

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF THE ADOPTION OF _____
(Name after adoption)

CASE NO. _____

CONSENT TO ADOPTION

[R.C. 3107.06, 3107.08 & 3107.081]

The undersigned _____

[check one of the following seven capacities by which your consent is given]

- □ Mother
- □ Father
- □ Parent
- □ Putative father who has registered under R.C. 3107.062
- □ Agency having permanent custody
- □ Minor, who is more than twelve years of age (this consent must be executed in the presence of the Court)
- □ Other_____

hereby waives notice of the hearing on the Petition For Adoption to be filed in the court, and consents to the adoption of _____

(Name before adoption)

as proposed in the petition.

The undersigned further states that this consent is voluntarily executed irrespective of disclosure of the name or other identification of the prospective adopting parents.

_____

Sworn to before me and signed in my presence this _____ day of _____, 20_____

_____
Person authorized pursuant to R.C. Chapter 3107 to take this acknowledgement

_____
Title

PROBATE COURT OF _____ COUNTY, OHIO
_____, JUDGE

ADOPTION OF _____
(Name after adoption)

CASE NO. _____

JUDGMENT ENTRY FINDING CONSENT NOT REQUIRED

[R.C. 3107.07]

The Court finds all parties properly before the Court by waiver of notice or by proper service and after hearing the testimony of witnesses, and the evidence, finds that the consent of _____ _____ is not required because;

☐ That person is a parent who has failed without justifiable cause to have more than de minimis contact with the minor for a period of one year immediately preceding the filing of the adoption petition.

☐ That person is a parent who has failed without justifiable cause to provide meaningful and regular maintenance and support of the minor as required by law or judicial decree for a period of one year immediately preceding the filing of the adoption petition.

☐ The person meets criteria set forth under subsection _____ of R.C. 3107.07 and therefore the person's consent is not required.

IT IS SO ORDERED that the consent of the above-named person is not required.

_____ _____
Date Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF THE ADOPTION OF _____
(Name after adoption)

CASE NO. _____

INTERLOCUTORY ORDER OF ADOPTION

[R.C. 3107.14]

This day this matter came on to be heard on the petition of _____ _____ for the adoption and change of name of the minor being adopted.

The Court finds that notice has been given to all parties in interest; that all consents have been filed herein or have been found not required; that the allegations in the petition are true; that the minor has been lawfully placed in the home of the petitioner; that the minor has resided for a period of _____ in the home of the petitioner in accordance with the laws relating to the placement of children; that the best interests of the minor will be promoted by the adoption and that the accountings, as required, have been filed, reviewed and approved.

It is therefore ordered that an Interlocutory Order of Adoption is granted, and this cause is continued until the minor has lived in the home of the petitioner for at least six months.

It is further ordered that the assessor shall make and file a further assessment on or before _____.

_____ _____

Date Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE MATTER OF THE ADOPTION OF _____
(Name after adoption)

CASE NO. _____

FINAL DECREE OF ADOPTION

(After Interlocutory Order)
[R.C. 3107.02 & 3107.14]

The Court finds that the minor has now lived in the home of the petitioner, _____ _____ for at least six months; that a further report of the assessor has been filed and is approved; that the adoption is in the best interest of the minor being adopted; that the accountings, as required, have been filed, reviewed and approved; and that the minor is an adopted person.

It is therefore ordered that the Petition for Adoption is granted, and that the name of the minor is changed to _____.

_____ _____
Date Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE MATTER OF THE ADOPTION OF _____
(Name after adoption)

CASE NO. _____

FINAL DECREE OF ADOPTION

(Without Interlocutory Order)
[R. C. 3107.02, 3107.14, and 3107.19]

This day this matter came on to be heard on the petition of _____ _____ for the adoption and change of name of the minor being adopted.

The Court finds that notice has been given to all parties; that all consents have been filed or have been found not required; that the allegations in the petition are true; that the minor has been lawfully placed in the home of the petitioner; that the minor has lived in the home of the petitioner for six months as required by law; that a report of the assessor has been filed and is approved; that the adoption is in the best interest of the minor being adopted; that the accountings, as required, have been filed, reviewed and approved, and that the minor is an adopted person.

It is therefore ordered that the Petition for Adoption is granted, and that the name of the minor is changed to _____

_____ _____
Date Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF THE ADOPTION OF _____
(Name after adoption)

CASE NO. _____

ADOPTION CERTIFICATE FOR PARENTS

This is to certify, that in an action pending in this Court, on a petition filed by _____

_____

to adopt _____

a minor, satisfactory evidence was submitted to prove, and the Court found, that the minor was born on the _____ day of _____, 20_____, at _____ and that all necessary proceedings relative to an adoption were complied with; and the Court on the _____ day of _____, 20_____, decreed that the minor is legally adopted by _____

and the minor's name is changed to _____

in the records of the Court.

WITNESS my signature and seal of said Court,

this _____ day of _____, 20_____

_____
Probate Judge

By: _____
Deputy Clerk

PROBATE COURT OF _____ COUNTY, OHIO

ADOPTION OF _____
(Name after adoption)

CASE NO. _____

PETITIONER'S ACCOUNT
[R.C. 3107.055]

☐ PRELIMINARY ESTIMATE ACCOUNTING
(To be filed not later than date petition filed)

☐ FINAL ACCOUNTING
(To be filed not later than 10 days prior to date of final hearing)

This accounting specifies all disbursements of anything of value the petitioner, a person on the petitioner's behalf, and the agency or attorney made and has agreed to make in connection with the minor's permanent surrender under division (B) of Section 5103.15 of the Revised Code, placement under Section 5103.16 of the Revised Code, and adoption under Chapter 3107. (Attach extra sheets if necessary)

DATE	DATE AND ADDRESS	DISBURSEMENT MADE OR AGREED TO BE MADE	ACTUAL COSTS
	PHYSICIAN'S NAME		
	PHYSICIAN'S ADDRESS		
	HOSPITAL/MEDICAL FACILITY'S NAME		
	HOSPITAL/MEDICAL FACILITY'S ADDRESS		
	ATTORNEY'S NAME		
	ATTORNEY'S ADDRESS		
	ACTUAL COST TO THE ATTORNEY		
	AGENCY'S NAME		
	AGENCY'S ADDRESS		
	MAINTENANCE AND MEDICAL CARE REQUIRED UNDER R.C. 5103.15		
	EXPENSES PURSUANT TO R.C. 3107.055(C)(9)		
	FOSTER CARE		
	GUARDIAN AD LITEM		
	COURT COSTS		
	ALL OTHER DISBURSEMENTS		
	TOTAL		

CASE NO. _____

[Reverse of Form 18.9]

CERTIFICATION OF PETITIONER'S ACCOUNT

The undersigned certifies this _____ day of _____, 20___, that this accounting is true and accurate.

_____
Attorney or Agency

_____
Typed or Printed Name

_____
Address

_____
City State

_____
Telephone Number (include area code)

The petitioner has reviewed this accounting and attests to its accuracy this _____ day _____, 20___.

_____
Petitioner

_____
Petitioner

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE MATTER OF THE ADOPTION OF _____
(Name after adoption)

CASE NO. _____

PETITION FOR ADOPTION OF ADULT
[R.C. 3107.02]

The undersigned respectfully petitions the court for permission to adopt _____

an adult and to have the adult's name changed to _____.

The Petitioner may adopt because the adult:

☐ is totally and permanently disabled.

☐ is determined to be a person with a developmental disability under R.C. 5123.01.

☐ had established a child-foster caregiver, kinship caregiver, or child-stepparent relationship with the petitioner as a minor.

☐ was, at the time of the adult's eighteenth birthday, in the permanent custody of or in a planned permanent living arrangement with a public children services agency or a private child placing agency

☐ is the child of the spouse of the petitioner.

The undersigned states that:

☐ neither parent of the adult is obligated to pay child support or cash medical support for the adult adoptee.

☐ one or more of the adult's parents is obligated to pay child support or cash medical support for the adult adoptee through the _____County Child Support Enforcement Agency.

_____
Attorney for Petitioner

_____
Typed or Printed Name

_____
Address

_____
City State Zip Code

_____
Telephone Number (include area code)

_____
Petitioner

_____
Typed or Printed Name

_____
Address

_____
City State Zip Code

_____
Telephone Number (include area code)

CASE NO. _____

_____ _____

Email Address Email Address

Attorney Registration No._____

ENTRY

This cause is set for hearing on the _____ day of _____, 20____ at _____ _____.M.

_____

PROBATE JUDGE

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF THE ADOPTION OF _____
(Name after adoption)

CASE NO. _____

FINAL ORDER OF ADOPTION OF ADULT

This day this cause came on to be heard on the petition of _____

_____

to adopt _____,

an adult, and on the evidence.

On consideration thereof the Court finds (R.C. 3107.02(B)) _____

_____

_____

and that the adoption should be granted.

It is ordered that the name of the adopted adult be changed to _____

_____

It is therefore further ordered by a final decree of adoption be, and the same hereby is entered herein.

It is further ordered that at that time a Certificate of Adoption, certified by the Court, be forwarded to the State Department of Health, Division of Vital Statistics at _____

_____. Further, that a copy of this decree be forwarded to the Ohio State Department of Human Services for Statistical purposes.

_____ _____

Date PROBATE JUDGE

PROBATE COURT OF_____ COUNTY, OHIO

_____, JUDGE

ADOPTION OF_____
(Name after adoption)

CASE NO. _____

PETITION TO RECOGNIZE FOREIGN ADOPTION
[R.C. 3107.18]

[Check applicable boxes, complete blanks, strike inapplicable language, and attach supporting documentation]

The Petitioner(s) is/are the adoptive parent(s) of a minor child pursuant to a Foreign Decree or Certificate of Adoption and state that:

PETITIONER(S)

Petitioner's Full Name:_____

Petitioner's Full Name:_____

Residence: _____

Duration of Residence: _____

Marital Status: _____

Date and Place of Marriage: _____

ADOPTED CHILD

Name of Child before Adoption: _____

Name of Child after Adoption: _____

Date and Place of Birth: _____

A Foreign Decree or Certificate of Adoption in compliance with the laws of the Country of _____ was issued by (Name of Court) _____ in Case Number _____ on the _____ day of _____, 20_____, as evidenced by:

- ☐ IR-3
- ☐ IH-3
- ☐ Successor Immigrant Visa

Also, attached are the other necessary documents:

- ☐ a certified copy of the child's Birth Certificate, and if not in English, a translation certified as to its accuracy by the translator.

☐ a certified copy of the Foreign Decree or Certificate of Adoption which has been verified and approved by the Immigration and Naturalization Service of the United States, and if not in English, also a translation certified as to its accuracy by the translator.

☐ a fully completed Ohio Department of Health, Division of Vital Statistics, Certificate of Adoption.

The Petitioner(s) respectfully pray for the following Order(s):

☐ An Order that the child's name shall be changed to:
_____

☐ An order to the Ohio Department of Health to issue a new birth record for the adopted person under R.C. 3705.12(A)(1)

☐ Other _____

_____
Attorney for Petitioner

_____
Typed or Printed Name

_____
Street Address

_____
City State Zip Code

_____
Telephone Number (include area code)

_____
Email Address

Attorney Registration No. _____

_____
Petitioner

_____
Typed or Printed Name

_____
Petitioner

_____
Typed or Printed Name

_____
Email Address

_____
Street Address

_____
City State Zip Code

_____
Telephone Number (include area code)

PROBATE COURT OF_____ COUNTY, OHIO

_____, JUDGE

ADOPTION OF_____
(Name after adoption)

CASE NO. _____

ORDER FOR OHIO BIRTH RECORD FOR FOREIGN BORN CHILD

This matter came on to be heard on the _____ day of _____, 20____, upon the Petition to Recognize Foreign Adoption filed by _____
_____.

The Court finds the petitioner(s) has/have complied with the requirements of R.C. 3107.18 and giving effect to the Decree or Certificate of Adoption that was issued under the laws of a foreign country would not violate the public policy of the State of Ohio.

It is therefore **ORDERED** that:

☐ A Final Decree recognizing the Foreign Decree of Certificate of Adoption is entered, herein;

☐ An Interlocutory Decree recognizing the Foreign Decree or Certificate of Adoption is entered herein which, unless vacated, shall become final on _____.

☐ The child's name shall be changed from: _____
to _____.

☐ The Ohio Department of Health shall issue a new birth record for the child pursuant to R.C. 3705.12(A)(1).

☐ Other_____
_____
_____

_____ _____
Date JUDGE

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE MATTER OF THE ADOPTION OF _____
(Name after adoption)

CASE NO. _____

NOTICE TO THE CHILD SUPPORT ENFORCEMENT AGENCY

[R.C. 3107.20]

To: _____

_____

_____

You are hereby notified that on _____ _____, 20_____

an Order was issued by this Court regarding the minor child, _____
(name before adoption)

_____, whose date of birth is_____,

that is cause for termination of support for said child pursuant to R.C.3119.89.

Obligee Name and DOB: _____

Obligor Name and DOB: _____

Sets #: _____

Prior name(s) of minor child: _____

_____ _____
Date Probate Judge

By: _____
Deputy Clerk

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE MATTER OF _____

CASE NO. _____

AFFIDAVIT OF MENTAL ILLNESS

[R.C. 5122.111]

The State of Ohio

_____ County, ss.

_____ Court

_____, the undersigned,

residing at _____

says that he/she has information to believe or has actual knowledge that _____

_____

(Please specify specific category(ies) below with an X.)

☐ Represents a substantial risk of physical harm to self as manifested by evidence of threats of, or attempts at, suicide or serious self-inflicted bodily harm;

☐ Represents a substantial risk of physical harm to others as manifested by evidence of recent homicidal or other violent behavior or evidence of recent threats that place another in reasonable fear of violent behavior and serious physical harm, or other evidence of present dangerousness;

☐ Represents a substantial and immediate risk of serious physical impairment or injury to self as manifested by evidence of being unable to provide for and of not providing for basic physical needs because of mental illness and that appropriate provision for such needs cannot be made immediately available in the community;

☐ Would benefit from treatment for mental illness and is need of such treatment as manifested by evidence of behavior that creates a grave and imminent risk to substantial rights of others or the person; or

☐ Would benefit from treatment as manifested by evidence of behavior that indicates all of the following:

(a) The person is unlikely to survive safely in the community without supervision, based on a clinical determination.

(b) The person has a history of lack of compliance with treatment for mental illness and one of the following applies:

(i) At least twice within the thirty-six months prior to the filing of an affidavit seeking court-ordered treatment of the person under section 5122.111 of the Revised Code, the lack of compliance has been a significant factor in necessitating hospitalization in a hospital or receipt of services in a forensic or other mental health unit of a correctional facility, provided that the thirty-six month period shall be extended by the length of any hospitalization or incarceration of the person that occurred within the thirty-six month period.

(ii) Within the forty-eight months prior to the filing of an affidavit seeking court-ordered treatment of the person under section 5122.111 of the Revised Code, the lack of compliance resulted in one or more acts of serious violent behavior toward self or others or threats of, or attempts at, serious physical harm to self or others, provided that the forty-eight month period shall be extended by the length of any hospitalization or incarceration of the person that occurred within the forty-eight month period.

(c) The person, as a result of mental illness, is unlikely to voluntarily participate in necessary treatment.

(d) In view of the person's treatment history and current behavior, the person is in need of treatment in order to prevent a relapse or deterioration that would be likely to result in substantial risk of serious harm to the person or others.

_____ further says that the facts supporting this belief are as follows: _____

_____

_____

_____

These facts being sufficient to indicate probable cause that the above said person is a mentally ill person subject to court order.

The undersigned represents a trial court or a prosecutor who, as described in division (B)(1)(a)(v)(I) of section 2945.38 of the Revised Code, is alleging that the above said person is a mentally ill person subject to court order:

☐ Yes ☐ No (please specify with an X). If Yes, please specify the name and address of the trial court or prosecutor: _____

_____

Name of Patient's Last Physician or Licensed Clinical Psychologist:

_____

Address of Patent's Last Physician or Licensed Clinical Psychologist:

_____

The name and address of Respondent's legal guardian, spouse and adult next of kin are:		
Name	**Kinship**	**Address**
	Legal Guardian	
	Spouse	
	Adult Next of Kin	
	Adult Next of Kin	

The following constitutes additional information that may be necessary for the purpose of determining residence:

_____

_____

_____

_____

Dated this _____ day of _____, 20_____.

_____
Signature of the Party Filing the Affidavit

Sworn to before me and signed in my presence on the day and year above dated.

_____
Probate Judge

_____
Deputy Clerk or Notary Public

WAIVER

I, the undersigned party filing the affidavit hereby waive the issuing and service of notice of the hearing on said affidavit, and voluntarily enter my appearance herein.

Dated this _____ day of _____, 20_____.

_____
Signature of Party Filing the Affidavit

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE MATTER OF _____
(Patient's Name)

CASE NO. _____

CERTIFICATE OF EXAMINATION

[R.C. 5122.11]

Age	Date of Birth	Place of Birth	Sex	Race	Marital Status	Social Security Number
Patient's Address (Street, City, County, State, and Zip Code)						

The undersigned certify that they are either a ☐ **psychiatrist** or ☐ a **licensed clinical psychologist *and* a licensed physician** of the State of Ohio, and that the following are facts relating to the examination of the above named person.

I/we further certify that I/we have, with care and diligence, personally observed and examined the named person on the _____ day of _____, 20_____. The examination occurred at _____.

I/we have reviewed the Affidavit of Mental Illness to be filed with the Court, and as a result of my/our examination:

☐ I/we believe this person meets one of the first four criteria listed on the Affidavit and, therefore, is a person with mental illness and subject to **hospitalization** by court order because of the risk they present. (Undersigned should ensure that one of the first four boxes on page 1 of the Affidavit is checked.)

or

☐ I/we believe this person meets the fifth criteria listed on the Affidavit and, therefore, is a person who can benefit from **community based treatment** at this time, is in need of treatment to prevent deterioration that will likely result in a substantial risk to self or others, is unlikely to survive safely in the community without supervision, and is unlikely to participate in treatment voluntarily. (Undersigned should ensure that the fifth box on page 1 of the Affidavit is checked).

The findings that support my/our recommendation are: (Please indicate any physical or mental conditions demanding the immediate attention such as withdrawal symptoms due to addiction, need for insulin, recent severe head injury, tuberculosis, or other information the examiner considers important and/or any specific treatment recommendations): _____

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____.

Signature of ☐ Psychiatrist *or* ☐ Licensed Physician	Signature of Licensed Clinical Psychologist (*required if opposite line signed by physician*)
Printed Name, Title	Printed Name, Title
Address	Address
City/State/Zip	City/State/Zip
License Number	License Number
Phone Number	Phone Number
Email Address	Email Address

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE MATTER OF _____

CASE NO. _____

AFFIDAVIT OF REFUSAL OF DOCTOR'S EVALUATION

[R.C. 5122.14]

The undersigned, having been duly sworn, states that _____ _____ the alleged mentally ill person subject to court order, refused to submit to an examination by a psychiatrist or a licensed clinical psychologist and licensed physician.

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

_____

Dated this _____ day of _____, 20_____.

_____
Affiant

Sworn to and subscribed before me, a Notary Public or Deputy Clerk of the Probate Court on this _____ day of _____, 20_____.

_____
Deputy Clerk/Notary Public

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE MATTER OF _____

CASE NO. _____

ORDER REFERRING AFFIDAVIT FOR SCREENING

[R.C. 5122.13]

On the _____ day of _____, 20_____, an affidavit was filed in this Court alleging that _____ is mentally ill subject to hospitalization by Court order. This matter is before the Court in accordance with Section 5122.13 of the Revised Code.

This affidavit is referred to _____ to report to this Court whether the person is subject to court-ordered treatment and whether alternatives to hospitalization are available.

It is further the order of this Court that _____ report to this Court and submit its written findings by _____, 20_____.

_____
Probate Judge/Magistrate

PROBATE COURT OF _____ COUNTY, OHIO
_____, JUDGE

IN THE MATTER OF _____

CASE NO. _____

TEMPORARY ORDER OF DETENTION

[R.C. 5122.11 & R.C. 5122.141]

TO: _____

Whereas, _____ of _____ filed in the Probate Court of _____ County, an affidavit alleging that _____ presently at _____ is mentally ill subject to hospitalization by Court order. Pursuant to Section 5122.11 of the Revised Code, the Court finds probable cause to believe that the Respondent is a mentally ill person subject to hospitalization by Court order.

YOU ARE THEREFORE ORDERED to detain the said person at the _____

_____

and transport to _____.

I hereto set my hand and affix the seal of the Probate Court of _____ County, Ohio.

_____ _____

Date Probate Judge/Magistrate

CERTIFICATION

The above document is a true copy of the original kept by me as custodian of this Court.

Probate Judge

By: _____
Deputy Clerk

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE MATTER OF _____

CASE NO. _____

ORDER TO CONVEY

To _____ of _____ County.

All the proceedings prescribed by law mandate that _____, the Respondent, be admitted to _____. Therefore, you are commanded forthwith to take charge of and convey the Respondent to the _____. After executing this order you will make due return thereof to this office.

WITNESS my signature and the seal of said Probate Court of _____ County, Ohio this _____ day of_____, 20_____.

_____
Probate Judge

By: _____
Deputy Clerk

SHERIFF'S RETURN

Sheriff's Office, _____ County, Ohio

Received this writ, _____, 20 _____ and on _____, 20 _____, I executed the same by conveying the person named to the place designated, as shown by the receipt endorsed herein.

_____
Sheriff

SHERIFF'S FEES

Service and Return……..… $ _____
Mileage (_____ miles)…. $ _____
Total……. $ _____

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE MATTER OF _____

CASE NO. _____

ORDER TRANSFERRING JURISDICTION

[R.C. 5122.35]

It appears to the Court that on the _____ day of _____, 20_____, _____ of _____, filed an affidavit in this Court alleging that _____ is a person with mental illness and subject to hospitalization by Court order; that on the same date, the Court, for good cause shown, issued its order to detain the Respondent and transfer the above named individual thereafter to _____ located in _____.

NOW THEREFORE, it is the Order of this Court that the within cause, with certified copies of all papers, proceedings and correspondence filed herein, be transferred as provided by law forthwith to the _____ County Probate Court located in _____, Ohio, for further proceedings in this matter.

_____
Probate Judge/Magistrate

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE MATTER OF _____

CASE NO. _____

NOTICE TO RESPONDENT OF INITIAL HEARING

[R.C. 5122.12]

To: _____
_____
_____

You are hereby notified that on the _____ day of _____, 20_____, _____ on behalf of _____ filed an Affidavit of Mental Illness in the Probate Court. *See attached*.

☐ The Affidavit alleges that you are mentally ill and should be subject to hospitalization.

☐ The Affidavit alleges that you are mentally ill and should be required to complete outpatient treatment.

This application will be heard on the _____ day of _____, 20_____ at _____ o'clock at _____ _____.

You have the right to have an attorney represent you and to have an independent expert evaluation.

☐ Contact the Court at _____ if you wish for an attorney to be appointed for you.

☐ An attorney has already been appointed for you. Attorney _____ _____ can be reached at _____.

WITNESS my signature this _____ day of _____, 20_____.

_____
Probate Judge

By: _____
Deputy Clerk

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE MATTER OF _____ ALLEGED TO BE MENTALLY ILL

CASE NO. _____

NOTICE OF HEARING

[R.C. 5122.12]

TO THE FOLLOWING PERSONS:

- ☐ Hospital: _____
- ☐ Petitioner: _____
- ☐ Attorney for Respondent: _____
- ☐ Attorney for Mental Health Board: _____
- ☐ Mental Health Board for _____ County/Counties
- ☐ Physician: _____
- ☐ Legal Guardian, if any: _____
- ☐ Spouse, if any: _____
- ☐ Respondent's parents (if Respondent is a minor): _____
- ☐ Respondent's designee or adult next of kin: _____
- ☐ Other: _____
- ☐ Other: _____

You are hereby notified that the following has been filed in the Court:

- ☐ Affidavit of Mental Illness (Request for Commitment)
- ☐ Request for Continued Commitment
- ☐ Request for Forced Psychotropic Medication
- ☐ Other: _____

This matter is set for the _____ day of _____, 20_____ at ____m. at _____.

_____
Probate Judge

By: _____
Deputy Clerk

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE MATTER OF _____

CASE NO. _____

ORDER APPOINTING COUNSEL

As provided for in Section 5122.15(A)(3) of the Revised Code and it further appearing to the Court that the Respondent is unable to obtain counsel or is indigent, the Court hereby orders that _____, Attorney at Law, is appointed to act as counsel in this matter. In the event that the above Respondent is not indigent, the Court reserves the right to assess costs to said person. The Court also orders the release of relevant medical records to the attorney for Respondent pursuant to Section 5122.31 of the Revised Code.

_____
Probate Judge/Magistrate

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE MATTER OF _____

CASE NO. _____

MOTION TO APPOINT INDEPENDENT EXPERT

[R.C. 5122.15(A)(4)]

The undersigned, having been appointed as counsel to represent the Respondent in this matter, hereby requests that an independent expert be appointed to examine the Respondent and to report his/her findings to respondent's counsel.

_____
Attorney for Respondent

_____
Typed or Printed Name

_____
Street Address

_____
City State Zip

_____
Telephone Number

_____
Email Address

Attorney Registration No. _____

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE MATTER OF _____

CASE NO. _____

ORDER APPOINTING INDEPENDENT EXPERT

[R.C. 5122.15(A)(4)]

For good cause shown, the Court hereby orders that _____ _____ be appointed as an independent expert in this matter and that as an independent expert shall examine the Respondent, be entitled to access to relevant medical records, and report their opinion to Respondent's counsel forthwith.

_____
Probate Judge/Magistrate

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN RE: CHANGE OF NAME OF_____
(Present Name)

TO _____
(Requested Name)

CASE NO. _____

APPLICATION FOR CHANGE OF NAME OF ADULT

[R.C. 2717.02 and 2717.03]

Applicant is an adult and has been a bona fide resident of _____ County, Ohio, for at least 60 days immediately prior to the filing of this application.

Applicant requests a change of name from _____
First Middle Last

to_____
First Middle Last

for the following reason: _____

_____

_____.

An affidavit in support of this Application is attached.

_____
Attorney for Applicant

_____
Typed or Printed Name

_____
Address

_____
City State Zip

_____
Telephone Number (include area code)

_____
Email Address

Attorney Registration No. _____

_____
Applicant's Signature

_____
Typed or Printed Name

_____
Address

_____
City State Zip

_____
Telephone Number (include area code)

_____
Email Address

PROBATE COURT OF_____COUNTY, OHIO

_____, JUDGE

IN RE: CHANGE OF NAME OF_____
(Present Name)

TO_____
(Requested Name)

CASE NO. _____

AFFIDAVIT IN SUPPORT OF APPLICATION FOR CHANGE OF NAME OF ADULT

[R.C. 2717.06]

State of Ohio }
} *SS*
County of _____ }

The undersigned, in support of the Applicant's Application for Change of Name of Adult, deposes, says, and verifies the following:

Check all that apply:

1. ☐ Applicant has been a bona fide resident of _____, County, Ohio, for at least sixty (60) days immediately prior to the filing of the Application;

2. ☐ The Application is not made for the purpose of evading any creditors or other obligations;

3. ☐ Applicant is not a debtor in any currently pending bankruptcy proceeding;

4. ☐ Applicant has not been convicted of, pleaded guilty to, or been adjudicated a delinquent child for identity fraud;

5. ☐ Applicant does not have a duty to comply with R.C. 2950.04 or R.C. 2950.041 because the Applicant was NOT convicted of, pleaded guilty to, or was adjudicated a delinquent child for having committed a sexually oriented offense or a child-victim-oriented offense;

Any other information relevant to the Application_____

_____

All documentary evidence submitted with the Application is true, accurate, and complete.

_____
Applicant

Sworn to before me and subscribed in my presence the_____day of _____

_____
Notary Public/Deputy Clerk

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN RE: CHANGE OF NAME OF_____
(Present Name)

TO_____
(Requested Name)

CASE NO. _____

AFFIDAVIT IN SUPPORT OF APPLICATION FOR CHANGE OF NAME OF MINOR

[R.C. 2717.06]

State of Ohio }
} *SS*
County of _____ }

The undersigned, in support of the Applicant's Application for Change of Name of Minor, deposes, says, and verifies the following:

Check all that apply:

1. ☐ Applicant is the ☐ parent ☐ legal guardian ☐ legal custodian ☐ guardian ad litem of the minor;

2. ☐ The minor has been a bona fide resident of_____, County, Ohio, for at least sixty (60) days immediately prior to the filing of the Application;

3. ☐ The Application is not made for the purpose of evading any creditors or other obligations;

4. ☐ The minor has not been adjudicated a delinquent child for identity fraud;

5. ☐ The minor does not have a duty to comply with R.C. 2950.04 or R.C. 2950.041 because the minor was NOT adjudicated a delinquent child for having committed a sexually oriented offense or a child-victim-oriented offense;

Any other information relevant to the Application_____

_____

All documentary evidence submitted with the Application is true, accurate, and complete.

_____
Applicant

Sworn to before me and subscribed in my presence the _____ day of _____

_____
Notary Public/Deputy Clerk

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN RE: CHANGE OF NAME OF_____
(Present Name)

TO_____
(Requested Name)

CASE NO. _____

JUDGMENT ENTRY SETTING HEARING AND ORDERING NOTICE

[R.C. 2717.08 and 2717.14]

The Court sets the Application for Change of Name in this case for hearing on _____, 20__ at _____ _ M.

The Court orders the Applicant to serve a Notice of Hearing in the following manner on all necessary parties who have not waived notice:

☐ By certified mail, return receipt requested

☐ By personal service

☐ By publication once in a newspaper of general circulation in this county at least 30 days before the hearing

☐ Other:_____

_____

_____

Applicant shall file proof of service with the Court before the hearing.

_____ _____
Date Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN RE: CHANGE OF NAME OF_____
(Present Legal Name)

TO_____
(Requested Conformed Legal Name)

CASE NO. _____

AFFIDAVIT IN SUPPORT OF APPLICATION TO CONFORM LEGAL NAME OF ADULT

[R.C. 2717.06]

State of Ohio }
} *SS*
County of _____ }

The undersigned, in support of the Application to Conform Legal Name of Adult, deposes, says, and verifies the following:

1. ☐ Applicant has been a bona fide resident of this county for a period of at least 60 days;

2. ☐ The Application is not being made for the purpose of evading any creditors or other obligations;

3. ☐ Applicant is not a debtor in any currently pending bankruptcy proceeding;

4. ☐ All documentary evidence submitted with the Application is true, accurate, and complete.

The Applicant certifies under penalty of perjury that the statements in this Affidavit are accurate and complete.

_____ _____
Date Applicant

Sworn to before me and subscribed in my presence the _____ day of _____

_____
Notary Public/Deputy Clerk

_____
Typed or Printed Name

Commission Expiration Date_____

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN RE: THE NAME OF_____
(Present Name)

TO_____
(Requested Conformed Legal Name)

CASE NO. _____

AFFIDAVIT IN SUPPORT OF APPLICATION TO CONFORM LEGAL NAME OF MINOR

[R.C. 2717.06]

State of Ohio }
} *SS*
County of _____ }

The undersigned, in support of the Application to Conform Legal Name of Minor, deposes, says, and verifies the following.

Check all that apply:

1. ☐ Applicant has personal knowledge of the facts stated in this Affidavit;

2. ☐ The minor has been a bona fide legal resident of this county for a period of at least 60 days;

3. ☐ The Application is not being made for the purpose of evading any creditors or other obligations;

4. ☐ The minor is not a debtor in any currently pending bankruptcy proceeding;

5. ☐ All documentary evidence submitted with the Application is true, accurate, and complete.

The Applicant certifies under penalty of perjury that the statements in this Affidavit are accurate and complete.

_____ _____
Date Applicant

Sworn to before me and subscribed in my presence the _____ day of _____

_____
Notary Public/Deputy Clerk

_____
Typed or Printed Name

Commission Expiration Date_____

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN RE: CHANGE OF NAME OF _____
(Present Name)

TO _____
(Requested Name)

CASE NO. _____

JUDGMENT ENTRY - CHANGE OF NAME OF ADULT

[R.C. 2717.09]

On _____ an application for change of name was heard by this Court. The Court finds that Applicant has provided sufficient proof that the facts in the application show reasonable and proper cause for changing the name. Applicant's date of birth was _____, and the place of birth was

_____
City County State

Therefore, it is **ORDERED** the name of _____
First Middle Last

be changed to _____
First Middle Last

_____
Probate Judge

CERTIFICATION OF JUDGMENT ENTRY

The above Judgment Entry - Change of Name of Adult is a true copy of the original kept by me as custodian of the records of this Court.

_____, **Probate Judge**

(Seal)

By: _____
Deputy Clerk

_____
Date

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN RE: CHANGE OF NAME OF _____
(Present Name)

TO_____
(Requested Name)

CASE NO. _____

APPLICATION FOR CHANGE OF NAME OF MINOR

[R.C. 2717.01]

Applicant is the ☐ Parent ☐ Legal Guardian ☐ Legal Custodian ☐ Guardian ad Litem of the minor. The minor has been a bona fide resident of this county for at least 60 days immediately prior to the filing of this Application. Applicant requests a change of the name of the minor from

_____
First Middle Last

to _____.
First Middle Last

The reason for requesting this name change is:_____

_____

_____

_____

A certified copy of the minor's birth certificate is attached.

The name and address of Parent 1 of the minor is:

_____
Name

_____
Address

_____
City, State, Zip Code

☐ The Waiver of Notice of Hearing and Consent of Parent 1 accompanies this Application.

☐ Applicant states that the address of Parent 1 is unknown. Applicant has exercised all due diligence and made every reasonable effort to find the current address but cannot locate this individual.

The name and address of ☐ Parent 2 or ☐ the alleged father of the minor is:

_____
Name

CASE NO. _____

_____
Address

_____
City, State, Zip Code

☐ The Waiver of Notice of Hearing and Consent of Parent 2 or the alleged father accompanies this Application.

☐ Applicant states that the address of Parent 2 or the alleged father is unknown. Applicant has exercised all due diligence and made every reasonable effort to find the current address but cannot locate this individual.

☐ There is no person alleged to be the father/Parent 2 of the minor.

An Affidavit in support of this Application is attached.

The Applicant will serve Notice of the Hearing on any nonconsenting parent or alleged father as the Court requires pursuant to R.C. 2717.14.

_____	_____
Attorney for Applicant	Applicant's Signature
_____	_____
Typed or Printed Name	Typed or Printed Name
_____	_____
Address	Address
_____	_____
City State Zip	City State Zip
_____	_____
Telephone Number (include area code)	Telephone Number (include area code)
_____	_____
Email Address	Email Address

Attorney Registration No. _____

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN RE: CHANGE OF NAME OF_____
(Present Name)

TO _____
(Requested Name)

CASE NO. _____

JUDGMENT ENTRY
CHANGING NAME OF MINOR
[R.C. 2717.09]

On _____, an Application for Change of Name of Minor was heard by this Court. The Court finds that all parties entitled to notice, e.g., legal parents, parent, father, or alleged father, either have waived notice of hearing and consented to the Application or were properly served and failed to object to the Application. The Court finds that Applicant has provided sufficient proof that the facts in the Application show reasonable and proper cause for changing the minor's name as requested.

The Court finds the minor's complete name at birth was _____. The minor's date of birth was _____, and the place of birth was _____
City County State

Therefore, it is **ORDERED** the name of _____
First Middle Last

be changed to _____
First Middle Last

_____ _____
Date Probate Judge

CERTIFICATION OF JUDGMENT ENTRY

The above Judgment Entry Changing Name of Minor is a true copy of the original kept by me as custodian of the records of this Court.

_____, **Probate Judge**

(Seal)

By: _____
Deputy Clerk

_____
Date

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN RE: CHANGE OF NAME OF_____
(Present Name)

TO_____
(Requested Name)

CASE NO. _____

CONSENT TO CHANGE OF NAME

[R.C. 2717.14]

The undersigned _____

[check one of the following 2 capacities by which your consent is given]

☐ Parent
☐ Alleged Father

hereby waives notice of the hearing on the Application for Change of Name and consents to the change of name of _____

to _____

as proposed in the Application.

_____

Sworn to before me and signed in my presence this _____ day of _____,20_____.

_____
Deputy Clerk/Notary Public

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN RE: CHANGE OF NAME OF _____
(Present Name)

TO _____
(Requested Name)

CASE NO. _____

NOTICE OF HEARING ON CHANGE OF NAME

[R.C. 2717.08 and 2717.14]

Applicant gives notice that the Applicant has filed an Application for Change of Name in this

Court requesting the change of name of _____
First Middle Last

to _____.
First Middle Last

A hearing on the Application will be held on _____, 20____, at _____ o'clock ___M.

in the Probate Court of _____, County, located at

_____.

_____
Applicant's Signature

_____
Typed or Printed Name

_____
Address

_____
City State Zip

_____
Email Address

Note to Publisher: The above legal notice including the caption is to be published once in its entirety. Costs are to be paid by applicant and an Affidavit of Publication is to be furnished to applicant.

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN RE: CHANGE OF NAME OF_____
(Present Name)

TO _____
(Requested Name)

CASE NO. _____

APPLICATION TO WAIVE PUBLICATION REQUIREMENT AND SEAL FILE

[R.C. 2717.11]

Now comes _____, pursuant to R.C. 2717.11, hereby requests this Court to waive the publication requirement and order the file in the above-captioned matter be sealed. The publication of notice in a newspaper of general circulation will jeopardize the applicant's personal safety for the following reason:

_____
_____
_____
_____

☐ Exhibits attached in support of application.

_____ _____
Attorney for Applicant Applicant's Signature

JUDGMENT ENTRY WAIVING PUBLICATION AND SEALING FILE

It is hereby ORDERED that the publication requirement for the Application for Change of Name is waived, and the file in the above-captioned matter be and hereby is sealed pursuant to R.C. 2717.11.

_____
Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN RE: CHANGE OF NAME OF_____
(Present Name)

TO _____
(Requested Name)

CASE NO. _____

APPLICATION TO WAIVE PUBLICATION AND SEAL FILE

[R.C. 2717.11]

Now comes _____, pursuant to R.C. 2717.11, hereby requests this Court to waive the publication and order the file in the above-captioned matter be sealed. The open records of the name change or publication of the hearing notice will jeopardize the applicant's personal safety for the following reason:

_____
_____
_____
_____

☐ Exhibits attached in support of application.

_____ _____
Attorney for Applicant Applicant's Signature

JUDGMENT ENTRY WAIVING PUBLICATION AND SEALING FILE

It is hereby ORDERED that the publication for the Application for Change of Name is waived, and the file in the above-captioned matter be and hereby is sealed pursuant to R.C.2717.11. The record of these proceedings shall be opened only by Order of the Court for good cause shown or at the request of the applicant for any reason.

_____
Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN RE: THE NAME OF_____
(Present Name)

TO _____
(Requested Conformed Legal Name)

CASE NO. _____

APPLICATION TO WAIVE PUBLICATION AND SEAL FILE
[R.C. 2717.11]

Now comes _____, pursuant to R.C. 2717.11, hereby requests this Court to waive the publication and order the file in the above-captioned matter be sealed. The open records of the name conformity or publication of the hearing notice will jeopardize the applicant's personal safety for the following reason:

_____
_____
_____
_____

☐ Exhibits attached in support of application.

_____ _____
Attorney for Applicant Applicant's Signature

JUDGMENT ENTRY WAIVING PUBLICATION AND SEALING FILE

It is hereby ORDERED that the publication for the Application to Conform Legal Name is waived, and the file in the above-captioned matter be and hereby is sealed pursuant to R.C.2717.11. The record of these proceedings shall be opened only by Order of the Court for good cause shown or at the request of the Applicant for any reason.

_____
Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN RE: THE NAME OF_____
(Present Name)

TO _____
(Requested Conformed Legal Name)

CASE NO. _____

APPLICATION TO CONFORM LEGAL NAME OF ADULT

[R.C. 2717.04 AND 2717.05]

Applicant is an adult and has been a bona fide resident of this county for at least 60 days immediately before filing this Application.

Applicant states that a misspelling, inconsistency, or other error of Applicant's legal name exists on one or more of his or her official identity documents, which causes a discrepancy in Applicant's chain of identity. This Application provides the necessary information to explain the misspelling, inconsistency, or other error and the corrections needed to conform Applicant's legal name on all official identity documents.

Applicant's Information:

Present name: _____

Address: _____

Marital Status: ☐ Never married ☐ Married ☐ Widowed ☐ Divorced ☐ Separated

Name at birth: _____

Date of birth: _____

State where birth record was issued: _____

The following official identify documents(s) contain a misspelling, inconsistent, or other error: *[Check all that apply]*

☐ Driver's License
☐ Marriage Record
☐ Divorce Decree
☐ State-issued Identification Card
☐ Passport
☐ Social Security Card
☐ Other _____

The misspelling, inconsistency, or other error on the official identity document(s) marked above is described below:

Official identity document: _____

Name that needs conformed on this document: _____

Conformed legal name that should be stated on this document: _____

Official identity document: _____

Name that needs conformed on this document: _____

Conformed legal name that should be stated on this document:_____

Requested conformed legal name: _____
First Middle Last

CASE NO._____

☐ Check this box if more than two official identity documents are affected and attach the information on a separate page.

Applicant is one and the same person referenced in each of the official identity documents, despite the name discrepancy. But for the misspelling, inconsistency, or other error identified above, there would not be any discrepancy in Applicant's chain of identity.

An Affidavit in support of this Application is attached.

All of the documentary evidence required by Local Rule or court order also accompanies this Application.

Applicant requests the Court to issue an order conforming Applicant's legal name in the manner described in this Application. Applicant acknowledges this application will not be used to correct the birth record.

_____	_____
Attorney for Applicant	Applicant's Signature
_____	_____
Typed or Printed Name	Typed or Printed Name
_____	_____
Address	Address
_____	_____
City State Zip	City State Zip
_____	_____
Telephone Number (include area code)	Telephone Number (include area code)
_____	_____
Email Address	Email Address

Attorney Registration No. _____

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN RE: THE NAME OF_____
(Present Name)

TO _____
(Requested Conformed Legal Name)

CASE NO. _____

JUDGMENT ENTRY CONFORMING LEGAL NAME OF ADULT

[R.C. 2717.10]

This matter came before the Court for hearing on _____, on an Application to Conform Legal Name of Adult. The Court finds there is sufficient proof that a misspelling, inconsistency, or other error of the Applicant's legal name exists on the official identity document indicated below, and that reasonable and proper cause exists for issuing this order to resolve the discrepancy and to conform the Applicant's legal name.

Official identify document that requires conformity of misspelling, inconsistency, or other error:

- ☐ Driver's License
- ☐ Marriage Record
- ☐ Divorce Decree
- ☐ State-issued Identification Card
- ☐ Passport
- ☐ Social Security Card
- ☐ Other _____

Name that needs conformed on document(s):_____

Conformed legal name to be stated on the document(s): _____
First Middle Last

The Court finds that, despite the name discrepancy, this official identity document identifies one and the same person. Therefore, the Court orders that Applicant's name on this official identity document is deemed conformed as stated above to be consistent with Applicant's other official identity document(s).

The Court further Orders that Applicant's conformed legal name is: _____
First Middle Last

This Order shall not be used to correct the birth record.

CERTIFICATION OF JUDGMENT ENTRY

The above Judgment Entry Confirming Legal Name of Adult is a true copy of the original kept by me as custodian of the records of this Court.

_____, Probate Judge

(Seal)

By: _____
Deputy Clerk

_____
Date

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN RE: THE NAME OF_____
(Present Name)

TO _____
(Requested Conformed Legal Name)

CASE NO. _____

APPLICATION TO CONFORM LEGAL NAME OF MINOR

[R.C. 2717.04, 2717.05, and 2717.13]

Applicant states that a misspelling, inconsistency, or other error of the above-named minor's legal name exists on one or more of his or her official identity documents. This Application provides the necessary information to explain the misspelling, inconsistency, or other error and the corrections needed to conform the minor's legal name on all official identity documents.

The minor has been a bona fide resident of this county for at least 60 days immediately before filing this Application.

Minor's Information:

Present name: _____

Address: _____

Name at birth: _____

Date of birth: _____

State where birth record was issued: _____

Applicant's relationship to the minor is:

☐ Parent ☐ Legal Guardian ☐ Legal Custodian ☐ Guardian ad Litem

The name and address of Parent 1 of the minor is:

_____
Name

_____
Address

_____
City, State, Zip Code

☐ The Waiver of Notice of Hearing and Consent of Parent 1 accompanies this Application.

☐ Applicant states that the address of Parent 1 is unknown. Applicant has exercised all due diligence and made every reasonable effort to find the current address but cannot locate this individual.

The name and address of ☐ Parent 2 or ☐ the alleged father of the minor is:

CASE NO._____

_____
Name

_____
Address

_____
City, State, Zip Code

☐ The Waiver of Notice of Hearing and Consent of Parent 2 or the alleged father accompanies this Application.

☐ Applicant states that the address of Parent 2 or the alleged father is unknown. Applicant has exercised all due diligence and made every reasonable effort to find the current address but cannot locate this individual.

☐ There is no person alleged to be the father of the minor.

The following official identify documents(s) contain a misspelling, inconsistency, or other error: *[Check all that apply]*

☐ Social Security Card ☐ Driver's License

☐ Passport ☐ State-issued Identification Card

☐ Other _____

The misspelling, inconsistency, or other error on the official identity document(s) marked above is described below:

Official identity document:_____

Name that needs conformed on this document:_____

Conformed legal name that should be stated on this document: _____

Official identity document: _____

Name that needs conformed on this document: _____

Conformed legal name that should be stated on this document:_____

Requested conformed legal name: _____
First Middle Last

☐ Check this box if more than two official identity documents are affected and attach the information on a separate page.

The minor is one and the same person referenced in each of the official identity documents, despite the name discrepancy. But for the misspelling, inconsistency, or other error identified above, there would not be any discrepancy in the minor's chain of identity.

An Affidavit in support of this Application is attached.

All of the documentary evidence required by Local Rule or court order also accompanies this Application.

The Applicant will serve Notice of the Hearing on any nonconsenting parent or alleged father as the Court requires pursuant to R.C. 2717.14.

Applicant requests the Court to issue an order conforming the minor's legal name in the manner described in this Application so the minor's legal name and chain of identity are consistent on all of his or her official identity documents.

_____ _____
Attorney for Applicant Applicant's Signature

CASE NO._____

_____	_____
Typed or Printed Name	Typed or Printed Name
_____	_____
Address	Address
_____	_____
City State Zip	City State Zip
_____	_____
Telephone Number (include area code)	Telephone Number (include area code)
_____	_____
Email Address	Email Address

Attorney Registration No. _____

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN RE: THE NAME OF_____
(Present Name)

TO _____
(Requested Conformed Legal Name)

CASE NO. _____

JUDGMENT ENTRY CONFORMING LEGAL NAME OF MINOR

[R.C. 2717.10]

This matter came before the Court for consideration of an Application to Conform Legal Name of Minor. Upon review of all the evidence presented, the Court finds there is sufficient proof that a misspelling, inconsistency, or other error of the minor's legal name exists on the official identity document indicated below, and that reasonable and proper cause exists for issuing this order to resolve the discrepancy and to conform the minor's legal name.

Official identity document(s) that requires conformity of misspelling, inconsistency, or other error:

- ☐ Social Security Card
- ☐ Driver's License
- ☐ Passport
- ☐ State-issued Identification Card
- ☐ Other _____

Name that needs conformed on document(s):_____

Conformed legal name that should be stated on the document(s): _____
First Middle Last

The Court finds that, despite the name discrepancy, this official identity document identifies one and the same person as the other official identity documents. Therefore, the Court orders that minor's name on this official identity document is conformed as stated above to be consistent with minor's other official identity document(s).

The Court further orders that minor's conformed legal name is: _____
First Middle Last

It is so ordered.

_____
Date

_____
_____, Probate Judge

CERTIFICATION OF JUDGMENT ENTRY

The above Judgment Entry Confirming Legal Name of Minor is a true copy of the original kept by me as custodian of the records of this Court.

_____, Probate Judge

(Seal)

By: _____
Deputy Clerk

_____
Date

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN RE: THE NAME OF_____
(Present Name)

TO_____
(Requested Conformed Legal Name)

CASE NO. _____

JUDGMENT ENTRY SETTING HEARING AND ORDERING NOTICE

[R.C. 2717.08 and 2717.14]

The Court sets the Application for Change of Name in this case for hearing on _____, 20__ at ____ _____ M.

The Court orders the Applicant to serve a Notice of Hearing in the following manner on all necessary parties who have not waived notice:

- ☐ By certified mail, return receipt requested
- ☐ By personal service
- ☐ By publication once in a newspaper of general circulation in this county at least 30 days before the hearing
- ☐ Other: _____

_____

_____

Applicant must file proof of service with the Court before the hearing.

_____ _____
Date

_____, Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN RE: THE NAME OF_____
(Present Name)

TO_____
(Requested Conformed Legal Name)

CASE NO. _____

NOTICE OF HEARING ON CONFORMING LEGAL NAME

[R.C. 2717.08 and 2717.14]

Applicant gives notice that the Applicant has filed an Application to Conform Legal Name in this Court requesting the Court resolve discrepancies in the legal name of _____
First Middle Last
in one or more official identity documents.

A hearing on the Application will be held on _____, 20____, at _____ ___M. in the Probate Court of _____, County, Ohio located at _____.

_____
Applicant's Signature

_____
Typed or Printed Name

_____
Address

_____
City State Zip

_____
Email Address

Note to Publisher: The above legal notice including the caption is to be published once in its entirety. Costs are to be paid by applicant and an Affidavit of Publication is to be furnished to applicant.

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN RE: THE NAME OF_____
(Present Name)

TO_____
(Requested Conformed Legal Name)

CASE NO. _____

CONSENT TO NAME CONFORMITY

[R.C. 2717.14]

The undersigned _____

[check one of the following 2 capacities by which your consent is given]

☐ Parent
☐ Alleged Father

hereby waives notice of the hearing on the Application to Conform Legal Name and consents to the conformed legal name of: _____

to _____

as proposed in the Application.

_____

Sworn to before me and signed in my presence this _____ day of _____,20_____.

_____
Deputy Clerk/Notary Public

RELEASE FOR CRIMINAL BACKGROUND CHECK

I understand that, as a result of making an application to change or conform my name, I am hereby authorizing and requesting the Probate Court, its agents, and its authorized employees, to make any and all examinations of my criminal record, and I hereby release any police or law-enforcement agency, and all individuals connected therewith, from all liability in providing such information.

DATED_____

_____
Printed Name

_____
Signature

_____
Social Security Number

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF _____

CASE NO. _____

APPLICATION TO SETTLE A MINOR'S CLAIM

[R.C. 2111.05, R.C. 2111.182, Civ.R. 73.17 AND 73.18]

[Check applicable boxes, complete applicable blanks, strike inapplicable language, and attach supporting documentation.]

The applicant states that:

_____, is an unemancipated minor, born _____, _____, residing at _____ in this county who on or about _____, _____, suffered personal injury (and damage to this minor's property) by wrongful act, neglect, or default that entitles this minor to maintain an action to recover damages. A copy of the birth certificate is attached.

Attached is a narrative statement in support of the proffered settlement setting forth a description of the occurrence, the injury or damage, the treatment progress and current prognosis by the treating physicians, and other proposed or actual settlements resulting from the same occurrence being paid to persons other than this minor. Counsel will advise at the hearing as to liability and collectability.

☐ There is no legal guardian of the estate, and the Court may authorize the settlement without the appointment of a guardian.

☐ _____ is the legal guardian of the estate. Case No. _____

☐ _____ is (are) the parent__ and natural guardian__.

☐ _____ is the person by whom the minor is maintained.

☐ There is a (full) (partial) settlement offer of $ _____ without suit being filed.

☐ There is a (full) (partial) settlement offer of $ _____ after suit was filed; the style of the case, court, and case number being _____.

☐ The proffered settlement should be approved.

☐ Unreimbursed medical and other expenses of $ _____ have been incurred. Attached is a list of such expenses and proposed payees.

☐ A reasonable attorney fee for the attorney's services is $ _____ and reimbursement to the attorney for suit expenses is $ _____. A copy of the attorney's fee contract that has (has not) received prior approval of this Court, subject to modification, and an itemization of suit expenses are attached.

☐ The parent_ , _____, claim $ _____ for damages on account of loss of service of this minor and that claim is included in this settlement offer.

☐ This is a structured settlement. All necessary documents, including a statement of the present value of the settlement, are filed herewith.

CASE NO._____

The applicant requests that:

☐ The Court authorizes the applicant to execute a release which shall be effective upon payment of the settlement.

☐ The Court order payment of the above expenses and order that the net amount of $ _____ for the benefit of the minor be:

- ☐ Deposited in the name of the minor with _____ _____, a financial institution, and not to be released until the minor attains the age of majority or upon further order of this Court.
- ☐ Delivered to the legal guardian.
- ☐ Delivered to _____, parent and natural guardian.
- ☐ Delivered to _____, the person by whom the minor is maintained.
- ☐ Structured as set forth in the attached documents.
- ☐ Deposited into a trust, proposed trust attached, for the benefit of the beneficiary until the beneficiary reaches 25 years of age (R.C. 2111.82).

☐ Supplemental forms required by local rule of Court are attached.

_____ Attorney for Applicant	_____ Applicant
_____ Typed or Printed Name	_____ Typed or Printed Name
_____ Address	_____ Address
_____ Phone Number (include area code)	_____ Phone Number (include area code)
_____ Email Address	_____ Email Address

Attorney Registration No. _____

ENTRY SETTING HEARING AND ORDERING NOTICE

The Court sets _____, at _____ o'clock __.m. as the date and time for hearing the above application and orders notice to be given by the applicant, as provided in the Rules of Civil Procedure, to the parents who have not waived notice and (further orders that the minor and parent attend the hearing.)

_____
Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF _____

CASE NO. _____

WAIVER AND CONSENT TO SETTLE MINOR'S CLAIM

The undersigned, waive all claims for damages on account of loss of services of said minor, waive notice of the hearing, and consent to and approve the Form 22.0, Application To Settle Minor's Claim, a copy of which is attached hereto.

_____	_____
_____	_____
Typed or Printed Name	Typed or Printed Name
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF _____

CASE NO. _____

ENTRY APPROVING SETTLEMENT OF A MINOR'S CLAIM

Upon hearing the application to approve and distribute the settlement of the claim of the minor, the Court: [check whichever of the following are applicable]

☐ Approves the proffered settlement of $ _____;

☐ Orders payment of $ _____ for medical and other expenses, as follows:

_____

_____;

☐ Orders payment of $ _____ to the attorney for reimbursement of suit expenses and $ _____ for attorney fees for service rendered with respect to this matter;

☐ Orders payment of $ _____ to the parent_, _____, for damages on account of loss of service of this minor;

☐ Authorizes the applicant to execute a release, which shall be effective upon payment of the settlement;

☐ Orders that the net amount of $ _____, for the benefit of the minor be:

- ☐ Deposited in the name of the minor and not to be released until the minor attains the age of majority or upon further order of this Court with Form 22.3 Verification of Receipt and Deposit filed with the Court;
- ☐ Delivered to the legal guardian of the estate of this minor;
- ☐ Delivered to _____, parent __ and __ natural guardian;
- ☐ Delivered to _____, the person by whom the minor is maintained;
- ☐ Structured as set forth in the documents attached to the application;
- ☐ Deposited into a trust, for the benefit of the beneficiary until the beneficiary reaches 25 years of age. (R.C. 2111.182).

☐ Orders the applicant and the attorney to report on their distribution of the proceeds within 30 days of the date of this entry;

☐ Further orders _____

_____

_____ _____

Date Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF _____

CASE NO. _____

VERIFICATION OF RECEIPT AND DEPOSIT

Pursuant to Court order, the sum of $_____ was deposited with _____ on the _____ day of _____, _____, as evidenced by Savings/Certificate of Deposit Account Number _____. This account is held solely in the name of _____, a minor, whose Social Security Number is _____.

By accepting said deposit for said minor, this institution agrees that said deposit, together with accumulated interest, shall be held and no part thereof released until minor attains the age of majority or upon further order of this Court.

_____
Financial Institution

By_____
Authorized Officer

_____
Typed or Printed Name

_____
Phone Number

_____
Date

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF _____

CASE NO. _____

REPORT OF DISTRIBUTION MINOR'S CLAIM

Pursuant to Entry filed _____, _____, the proceeds have been paid as shown below and on the accompanying vouchers.

Gross Proceeds $_____

Less:
Medical expenses $ _____
Reimbursement of suit expenses to_____
_____ $ _____
Attorney fees to _____ $ _____
Loss of service to _____ $ _____
Other: _____ $ _____
Total $ _____

Net Proceeds

☐ Deposited pursuant to R.C. 2109.13
Form 22.3 attached $ _____

☐ Delivered to _____,
legal guardian of the estate $ _____

☐ Delivered to _____,
parent _ and natural guardian_ $ _____

☐ Delivered to _____,
the person by whom the minor is maintained $ _____

☐ Structured - see documents previously filed $ _____

☐ Deposited into a trust, for the benefit of the beneficiary until the beneficiary reaches 25 years of age. (R.C. 2111.182)

Balance $ - 0 -

_____ _____
Attorney for Applicant Applicant

Attorney Registration No. _____

ENTRY

The above report of distribution is hereby approved, and the applicant is discharged from further responsibility.

_____ _____
Date Probate Judge

PROBATE COURT OF_____ COUNTY, OHIO
_____, JUDGE

IN THE MATTER OF_____

CASE NO._____

APPLICATION TO SETTLE A CLAIM OF AN ADULT WARD

[R.C. 2111.18, Civ.R. 73.19]

[Check applicable boxes, complete applicable blanks, strike inapplicable language, and attach supporting documentation.]

The applicant states that:_____, is an adult ward residing at _____in this county who on or about _____, suffered personal injury and/or damage to property by wrongful act, neglect, or default that entitles this person to maintain an action to recover damages.

Attached is a narrative statement in support of the proffered settlement setting forth a description of the occurrence, the injury or damage, the treatment progress and current prognosis by the treating physicians, and other proposed or actual settlements resulting from the same occurrence being paid to the persons other than this ward. Counsel will advise at the hearing as to liability and collectability.

☐ There is a (full) (partial) settlement offer of $_____ without suit being filed.

☐ There is a (full) (partial) settlement offer of $_____after suit was filed; the style of the case, court, and case number being _____.

☐ The proffered settlement should be approved.

☐ Unreimbursed medical and other expenses of $_____ have been incurred. Attached is a list of such expenses and proposed payees.

☐ A reasonable attorney fee for the attorney's services is $_____ and reimbursement to the attorney for suit expenses is $_____. A copy of the attorney's fee contract that has (has not) received prior approval of this Court, subject to modification, and an itemization of suit expenses are attached.

☐ This is a structured settlement. All necessary documents, including a statement of the present value of the settlement, are filed herewith.

CASE NO. _____

Applicant requests that:

☐ The Court authorizes the applicant to execute a release which shall be effective upon payment of the settlement.

☐ The Court order payment of the above expenses and order that the net amount of $_____ for the benefit of the ward be:

- ☐ Deposited in the name of the ward with _____ _____, a financial institution, in a restricted account and not be released without written order of this Court.
- ☐ Delivered to guardian of the estate.
- ☐ Structured as set forth in the attached documents.
- ☐ Other: _____.

☐ Supplemental forms required by local rule of Court are attached.

_____	_____
Attorney for Applicant	Applicant
_____	_____
Typed or Printed Name	Typed or Printed Name
_____	_____
_____	_____
Address	Address
_____	_____
Phone Number (include area code)	Phone Number (include area code)

Attorney Registration No. _____

ENTRY SETTING HEARING AND ORDERING NOTICE

The Court sets _____, at _____ o'clock ___.m. as the date and time for hearing the above application and orders notice to be given by the applicant, as provided in the Rules of Civil Procedure, to all interested parties.

_____

_____, **PROBATE JUDGE**

PROBATE COURT OF_____ COUNTY, OHIO

_____, JUDGE

IN THE MATTER OF_____

CASE NO._____

ENTRY APPROVING SETTLEMENT OF A CLAIM OF AN ADULT WARD

Upon hearing the application to approve and distribute the settlement of the claim of the adult ward, the Court: [check whichever of the following are applicable.]

☐ Approves the proffered settlement of $_____;

☐ Orders payment of $_____ for medical and other expenses, as follows:
_____
_____;

☐ Orders payment of $_____ for attorney fees for service rendered and $_____ to the attorney for reimbursement of suit expenses with respect to this matter;

☐ Authorizes the applicant to execute a release which shall be effective upon payment of the settlement;

☐ Orders that the net amount of $_____, for the benefit of the ward be:

- ☐ Deposited in the name of the ward with _____, a financial institution, in a restrictive account and not be released without written order of this Court with Form _____ Verification of Receipt and Deposit filed with the Court;
- ☐ Delivered to the guardian of the estate;
- ☐ Structured as set forth in the documents attached to the application;
- ☐ Other:_____.

☐ Orders the applicant and the attorney to report on their distribution of the proceeds within thirty days of the date of this entry;

☐ Further orders _____.

_____ _____

Date _____, **PROBATE JUDGE**

PROBATE COURT OF_____ COUNTY, OHIO

_____, JUDGE

IN THE MATTER OF_____

CASE NO._____

REPORT OF DISTRIBUTION

Pursuant to the Entry filed on _____, _____, the proceeds have been paid as shown below and on the accompanying vouchers.

Gross Proceeds	$ _____
Less:	
Medical expenses	$ _____
Reimbursement of suit expenses to _____	
_____	$ _____
Attorney fees to _____	$ _____
Other: _____	$ _____
Total	$ _____

Net Proceeds

☐ Deposited pursuant to R.C. 2109.13

Form ____ attached $ _____

☐ Delivered to _____
legal guardian of the estate $ _____

☐ Structured - see documents previously filed $ _____

☐ Other:_____.

Balance $ _____

_____ _____
Attorney for Applicant Applicant

Attorney Registration No._____

ENTRY

The above report of distribution is hereby approved.

_____ _____
Date _____, **PROBATE JUDGE**

PROBATE COURT OF _____COUNTY, OHIO
_____, JUDGE

IN THE MATTER OF _____, AN ADULT

CASE NO. _____

PETITION FOR PROTECTIVE SERVICES

[R.C. 5101.68]

1. Petitioner, _____, is an authorized provider of adult protective Services pursuant to R.C. 5101.60, *et seq*. and has received a report that the above-named Adult is in need of protective services.

2. The Adult, _____, residing at_____ _____is _____years of age, with a date of birth of _____ and is alleged to be an incapacitated person subject to abuse, neglect, or exploitation.

3. The specific facts alleging the abuse, neglect, or exploitation are:

_____
_____
_____

4. The proposed protective service plan including the least restrictive placement, if applicable, is as follows:

_____
_____
_____
_____

5. The Adult and the following persons are required to receive notice pursuant to R.C. 5101.681:

Name	Address	Relationship to Adult

_____
_____
_____
_____
_____

6. The Adult has not consented and there is no person authorized by law or court order available to give consent to the protective services.

CASE NO._____

WHEREFORE, the Petitioner requests the Court to authorize the implementation of the proposed protective services plan and for such other relief as may be equitable.

_____County Department of Job and Family Services

_____
Attorney

_____
Address

_____

_____
Phone Number (including area code)

_____
Registration No.

_____
E-mail

By:_____

_____
Title

_____
Address

_____

_____
Phone Number (including area code)

_____
E-mail

PROBATE COURT OF _____COUNTY, OHIO
_____, JUDGE

IN THE MATTER OF _____, AN ADULT

CASE NO. _____

NOTICE OF PETITION FOR COURT ORDERED PROTECTIVE SERVICES

[R.C. 5101.681]

TO: _____
Name and Address of Adult Incapacitated Person

Name **Address** **Relationship of Adult**

_____
Adult, Guardian, Legal Counsel, Caretaker, Spouse, if any, and if none of these to the Adult's Children or Next of Kin

You are hereby notified that on the _____ day of _____, 20___, the _____County Department of Job and Family Services filed in this Court a Petition for Court Ordered Protective Services for the above-named Adult for the following reason(s): _____
_____.

This Petition for Court Ordered Protective Services shall be heard in the _____County Probate Court, _____, Ohio located at _____
on the _____ day of _____, 20 __, at _____o'clock _____. M.

The Adult has the right to legal counsel and if indigent, legal counsel will be appointed if requested.

Witness my signature and the seal of the Court this _____ day of _____, 20 _____.

_____
Probate Judge

By:
_____
Deputy Clerk

WAIVER OF NOTICE

We, the undersigned, whose relationship to the Adult is indicated, enter our appearance and waive notice and consent to the hearing.

Name **Relationship to the Adult**

_____
_____
_____

CASE NO._____

State of Ohio, _____ County Probate Court

I hereby certify that I caused a copy of the within notice to be mailed, by certified mail, to the last known address of

_____

at_____

_____

at_____

_____, Probate Judge

By: _____
Deputy Clerk

RETURN

_____County, Ohio

_____,_____

Received this notice on the ____ day of _____, 20____, at _____ o'clock _____.M., and on the _____ day of _____, 20_____, I served the same by delivering a true copy thereof personally to _____
_____

_____
FEES

_____
Service and return, 1st name, $ _____

Additional names, at $ _____
Miles traveled, at $ _____

_____ $ _____

Total $ _____

_____
Sheriff

_____
Deputy Sheriff/Process Server

_____
Name

_____
Title

PROBATE COURT OF _____COUNTY, OHIO
_____, JUDGE

IN THE MATTER OF _____, AN ADULT

CASE NO. _____

PETITION FOR EMERGENCY PROTECTIVE SERVICES

[R.C. 5101.70]

1. Petitioner, _____, is an authorized provider of adult protective Services pursuant to R.C. 5101.60, *et seq*. and has received a report that the above-named Adult is in need of protective services.

2. The Adult, _____, residing at _____ _____is _____years of age, with a date of birth of _____, is alleged to be an incapacitated person and an emergency exists.

3. The specific facts alleging the nature of the emergency are:

_____
_____
_____

4. The proposed emergency protective services including placement, if applicable, are:

_____
_____
_____
_____

5. The Adult and the following persons are required to receive notice 24 hours prior to the hearing pursuant to R.C. 5101.70:

Name	Address	Relationship to Adult

CASE NO._____

6. (Complete if applicable) Petitioner requests a waiver of the 24-hour notice requirement because:

a.) Immediate and irreparable physical harm to the Adult or others will result from the 24-hour delay. Explain:_____
_____
_____
_____

And

b.) Reasonable attempts have been made to notify the above listed individuals, if any, if their whereabouts are known. Explain:_____
_____
_____
_____

7. The Adult has not consented and there is no person authorized by law or court order available or willing to give consent to the emergency protective services.

WHEREFORE, the Petitioner requests the Court to authorize the implementation of the proposed emergency protective services and for such other relief as may be equitable.

_____County Department of Job and Family Services

_____
Attorney

_____
Address

_____

_____
Phone Number (including area code)

_____
Registration No.

_____
E-mail

By:_____

_____
Title

_____
Address

_____

_____
Phone Number (including area code)

_____
E-mail

PROBATE COURT OF _____COUNTY, OHIO
_____, JUDGE

IN THE MATTER OF _____, AN ADULT

CASE NO. _____

NOTICE OF PETITION FOR COURT ORDERED PROTECTIVE SERVICES ON AN EMERGENCY BASIS

[R.C. 5101.70]

TO: _____
Name of Adult, spouse, if any, if no spouse, adult children or next of kin, and guardian, if any, if their whereabouts are known.

You are hereby notified that on the ____ day of _____, 20___, the _____County Department of Job and Family Services filed a Petition for Court Ordered Protective Services to be provided for the above-named Adult without the Adult's consent on the grounds that an emergency exists and that the Department has been unable to obtain the consent of the Adult for protective services to be given. A copy of the petition is attached hereto.

The Petition has been set for hearing in the _____ County Probate Court, _____, Ohio located at _____ on the _____ day of _____, 20___at _____ o'clock _____.M. The Adult may appear at the hearing, may present, examine, and cross-examine witnesses, and present evidence to contest the petition. The Adult is entitled to be represented by an attorney and, if found to be indigent, the Adult may request an attorney to be appointed without cost.

Witness my signature and the seal of the Court this _____ day of _____, 20 _____.

_____
Probate Judge

By:
_____
Deputy Clerk

CASE NO._____

The State of Ohio, _____ County Probate Court

I hereby certify that I caused a copy of the within notice to be mailed, by certified mail, to the last known address of

_____

at_____

_____

at_____

_____, Probate Judge

By:

_____

Deputy Clerk

RETURN

_____County, Ohio

_____++_____,_____

Received this notice on the _____ day of _____, 20_____, at _____ o'clock _____.M., and on the _____ day of _____, _____, I served the same by delivering a true copy thereof personally to _____

_____

_____ _____

FEES Sheriff

_____

Service and return, 1st name, $ _____ _____

Deputy Sheriff/Process Server

_____ Additional names, at $ _____

_____Miles traveled, at $ _____ _____

Name

_____ $ _____ _____

Title

Total $ _____

_____

PROBATE COURT OF _____COUNTY, OHIO
_____, JUDGE

IN THE MATTER OF _____, AN ADULT

CASE NO. _____

PETITION FOR TEMPORARY RESTRAINING ORDER TO PREVENT INTERFERENCE WITH INVESTIGATION OF REPORTED ABUSE OF AN ADULT

[R.C. 5101.651]

1. Petitioner, _____, is an authorized provider of adult protective services pursuant to R.C. 5101.60, *et seq*. and has received a report that the above-named Adult is in need of protective services.

2. The Adult, _____, residing at _____ _____is _____years of age, with a date of birth of _____ and is alleged to be an incapacitated person subject to abuse, neglect, or exploitation.

3. The Respondent (Name and Address): _____ _____ denied or obstructed access by Petitioner to the residence of the Adult.

4. Unless Respondent is restrained, Petitioner will be unable to perform its duty to investigate the report as mandated by R.C. 5101.65.

5. An Affidavit setting forth the facts to support this petition is attached.

WHEREFORE, the Petitioner requests the Court to issue an order restraining Respondent from obstructing or in any way interfering with Petitioner's access to the residence of the Adult and further ordering access to the Adult by any Peace Officer requesting to accompany the Petitioner.

_____County Department of Job and Family Services

_____	By:_____
Attorney	
_____	_____
Address	Title
_____	_____
	Address
_____	_____
Phone Number (including area code)	
_____	_____
Registration No.	Phone Number (including area code)
_____	_____
E-mail	E-mail

PROBATE COURT OF _____COUNTY, OHIO
_____, JUDGE

IN THE MATTER OF _____, AN ADULT

CASE NO. _____

PETITION FOR TEMPORARY RESTRAINING ORDER TO PREVENT INTERFERENCE WITH THE PROVISION OF PROTECTIVE SERVICES TO AN ADULT

[R.C. 5101.69]

1. The above-named Adult is in need of protective services for the following reasons:

_____
_____
_____

2. The Adult has consented to the protective services.

3. The Respondent (Name and Address):

_____
_____

has interfered with the provision of these services in the following manner:

_____
_____
_____

4. Unless Respondent is restrained, Petitioner will be unable to provide protective services in accordance with Chapter 5101. of the Revised Code.

WHEREFORE, the Petitioner requests the Court to issue an order restraining Respondent from interfering with the provision of protective services to the Adult and such further relief as may be equitable.

_____County Department of Job and Family Services

_____
Attorney

_____
Address

_____

_____
Phone Number (including area code)

_____
Registration No.

_____
E-mail

By:_____

_____
Title

_____
Address

_____

_____
Phone Number (including area code)

_____
E-mail

PROBATE COURT OF _____COUNTY, OHIO
_____, JUDGE

IN THE MATTER OF _____, AN ADULT

CASE NO. _____

NOTICE OF HEARING ON PETITION FOR TEMPORARY RESTRAINING ORDER TO PREVENT INTERFERENCE WITH THE PROVISION OF SERVICES

[R.C. 5101.69]

TO:_____
(Name of Person interfering with the provision of services)

_____
(Address)

The above captioned Adult has consented to the provision of adult protective services pursuant to Chapter 5101. of the Revised Code.

You hereby notified that a Petition for Temporary Restraining Order to Prevent Interference with the Provision of Services was filed with this Court pursuant to R.C. 5101.69. It is alleged in the Petition that you are interfering with the provision of protective services for the Adult, and that a temporary restraining order should be issued against you to prevent your interference. A copy of the Petition is attached hereto.

The Petition for Temporary Restraining Order to Prevent Interference with the Provision of Services shall be heard in the _____ County Probate Court, _____, Ohio located at _____ on the _____ day of _____, 20 _____ at _____ o'clock _____.M. You or any interested person is permitted to attend this hearing and give testimony or present other evidence as to why the petition for restraining order should or should not be granted.

Witness my signature and the seal of the Court
This _____ day of _____, 20 ___.

_____
Probate Judge

By:_____
Deputy Clerk

CASE NO._____

The State of Ohio, _____ County Probate Court

I hereby certify that I caused a copy of the within notice to be mailed, by certified mail, to the last known address of

_____

at_____

_____

at_____

_____, Probate Judge

By: _____
Deputy Clerk

RETURN

_____County, Ohio

_____,_____

Received this notice on the _____ day of _____, 20___, at _____ o'clock _____.M., and on the _____ day of _____, 20_____, I served the same by delivering a true copy thereof personally to _____
_____

_____		_____
FEES		Sheriff
_____		
Service and return, 1st name,	$ _____	_____
		Deputy Sheriff/Process Server
_____ Additional names, at	$ _____	
_____Miles traveled, at	$ _____	_____
		Name
_____	$ _____	_____
Total	$ _____	Title
_____		

FORM 23.7 – NOTICE OF HEARING ON PETITION FOR TEMPORARY RESTRAINING ORDER TO PREVENT INTERFERENCE WITH THE PROVISION OF SERVICES

Amended: May 1, 2021
Discard all previous versions of this form

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

ESTATE OF_____, DECEASED

CASE NO. _____

REPRESENTATION OF INSOLVENCY

[R.C. 2117.15]

The fiduciary states that the decedent died on _____.

☐ The fiduciary states that:

- ☐ there is a surviving spouse and no minor children of the decedent who are not the children of the surviving spouse, and an "Application for Family Allowance" (Standard Probate Form 7.1) has been filed, or
- ☐ there is a surviving spouse and minor children of the decedent who are not the children of the surviving spouse and an "Application for Apportionment of Family Allowance"(Standard Probate Form 7.2) has been filed, or
- ☐ there is no surviving spouse and more than one minor child of the decedent and an "Application for Apportionment of Family Allowance" (Standard Probate Form 7.2) has been filed.
- ☐ an election has been made to take the mansion house, other real property and/or tangible personal property as part of the allowance for support. It is unnecessary to liquidate these assets.

The fiduciary states that the Inventory and Schedule of Assets have been filed and approved.

The fiduciary states that the time for filing claims has expired, and that claims against the estate, either presented or secured, are in the sum of $ _____, and there are no known contingent claims.

The fiduciary states that the Schedule of Claims is attached, and that all claims have been listed by priority pursuant to R.C. 2117.25.

☐ The fiduciary states that the assets of the estate to the extent necessary have been liquidated.

The estate consists of:

- ☐ a mansion house $ _____.
- ☐ other real property $_____.
- ☐ tangible personal property $_____.
- ☐ intangible personal property $_____.

The fiduciary states that the claims against the estate exceed the assets of the estate and that the estate appears to be insolvent.

The fiduciary applies to this Court to set this matter for further hearing and instructions as to the priority of and the payment of claims.

_____	_____
Attorney for Fiduciary	Fiduciary
_____	_____
Typed or Printed Name	Typed or Printed Name
_____	_____
Address	Address
_____	_____
_____	_____
Phone Number (include area code)	Phone Number (include area code)

Attorney Registration No. _____

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

ESTATE OF_____, DECEASED

CASE NO. _____

JUDGMENT ENTRY SETTING HEARING AND ORDERING NOTICE

[R.C. 2117.17]

The fiduciary has filed a Representation of Insolvency and Schedule of Claims. It appears probable that there will not be sufficient assets to pay in full all of the valid claims of the estate.

The Representation of Insolvency and the Schedule of Claims shall be heard before the _____ County Probate Court, located at _____ on the _____ day of _____, 20 _____ at _____ o'clock____ M.

Unless waived, the fiduciary shall give written notice, no less than 10 days prior to the hearing, by personal service or certified mail to all creditors, claimants, to the surviving spouse, to the custodians of minor children who are not the children of the surviving spouse, and other persons having an interest in the estate as devisees, legatees, heirs and distributees.

The fiduciary shall file verification of service of notice with the Court, no later than the date of the hearing.

_____
, Probate Judge

PROBATE COURT OF_____ COUNTY, OHIO

_____, JUDGE

ESTATE OF_____, DECEASED

CASE NO. _____

NOTICE OF HEARING ON REPRESENTATION OF INSOLVENCY AND SCHEDULE OF CLAIMS

[R.C. 2117.17]

TO THE FOLLOWING CREDITOR, CLAIMANT OR INTERESTED PERSON:

_____
Typed or Printed Name of Creditor, Claimant or Interested Person

_____
Address
_____

You are hereby notified that the fiduciary of this estate has filed a Representation of Insolvency and a Schedule of Claims in the Probate Court of _____ County, Ohio. A copy of the Representation of Insolvency and the Schedule of Claims is attached to this Notice of Hearing.

The Representation of Insolvency and the Schedule of Claims shall be heard before the _____ County Probate Court, located at _____ on the _____ day of _____, 20____, at _____ o'clock ___ . M.

The actions of the fiduciary in allowing and classifying claims will be confirmed at the hearing unless cause to the contrary is shown. Exceptions, if any, to the allowance or classification of any specific claim, must be in writing and filed with the Court prior to the hearing.

_____
Fiduciary/Attorney for Fiduciary

_____
Typed or Printed Name

_____
Address

_____

_____
Phone Number (include area code)

Attorney Registration No. _____

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

ESTATE OF_____, DECEASED

CASE NO. _____

VERIFICATION OF SERVICE
NOTICE OF HEARING ON REPRESENTATION OF INSOLVENCY AND SCHEDULE OF CLAIMS

[R.C. 2117.17]

The undersigned does hereby verify that, unless waived, written notice was given, no less than 10 days prior to the hearing, by personal service or certified mail to all creditors, claimants, to the surviving spouse, to the custodians of minor children who are not the children of the surviving spouse, and other persons having an interest in the estate as devisees, legatees, heirs and distributees.

Attached hereto are the proofs of service and/or waivers of notice.

_____
Fiduciary/Attorney for Fiduciary

_____
Typed or Printed Name

_____
Address

_____

_____
Phone Number (include area code)

Attorney Registration No. _____

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

ESTATE OF_____, DECEASED

CASE NO. _____

INSOLVENCY SCHEDULE OF CLAIMS

[R.C. 2117.15, 2117.17, 2117.25]

The fiduciary states that this Schedule of Claims lists all claims which are presented or secured. The claims are listed by classes and in the order of priority of payment pursuant to Section 2117.25 of the Ohio Revised Code. **(Use extra sheets if necessary)**

_____
Fiduciary

Page _____ of _____ Pages

[Note: Include a subtotal following each payment class and a grand total for all payment classes.]

Name and Address of Claimant	Payment Class	Amount Claimed	Estimated Payment	Claim Rejected: Y/N
1.	(1)			

Comments (Refer to Claim Number) _____

_____

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

ESTATE OF_____, DECEASED

CASE NO. _____

CONTINUATION
INSOLVENCY SCHEDULE OF CLAIMS

[R.C. 2117.15, 2117.17, 2117.25]

Page _____ of _____ Pages

[Note: Include a subtotal following each payment class and a grand total for all payment classes.]

Name and Address of Claimant	Payment Class	Amount Claimed	Estimated Payment	Claim Rejected: Y/N
1.	(1)			

Comments (Refer to Claim Number) _____

_____

_____

Fiduciary

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

ESTATE OF_____, DECEASED

CASE NO. _____

JUDGMENT ENTRY OF INSOLVENCY

[R.C. 2117.15, 2117.17, 2117.25]

This matter was heard on the _____ day of _____, 20____ on the Representation of Insolvency and Insolvency Schedule of Claims.

The Court finds that notice was properly given to all creditors, claimants and other interested persons.

The Court finds:

☐ that there were no exceptions filed as to the allowance or classification of any specific claim, or

☐ that any exceptions filed were addressed and resolved by the Court.

The Court finds:

☐ that the fiduciary acted properly in classifying, allowing or rejecting claims on the Insolvency Schedule of Claims.

☐ that the Insolvency Schedule of Claims is amended as follows:_____

_____

_____

_____

The Court finds that the claims against the estate exceed the assets of the estate, and that the estate is insolvent.

☐ It is Ordered that the fiduciary shall pay the claims in the order and in the amount as proposed.

☐ It is Ordered that the fiduciary shall pay the claims in the order and in the amount as proposed, except as follows: _____

_____

_____

_____

CASE NO._____

☐ It is Ordered: ☐ that all claims in Class _____ are to be paid in full, ☐ that all claims in Class _____ are to paid pro rata at _____ % per attached computation, and ☐ that all claims below Class _____ are disallowed in that there are no funds available.

☐ It is Ordered that the fiduciary shall file a Final and Distributive Account within thirty (30) days of this Order.

☐ It is Ordered that the fiduciary shall file a Certificate of Termination within thirty (30) days of this Order.

_____

, Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

DISINTERMENT OF _____, DECEASED

CASE NO. _____

APPLICATION FOR ORDER TO DISINTER REMAINS

[R.C. 517.24, 517.25, 2108.70 et seq.]

The Applicant states that this Application is made to disinter the remains of the above-named Decedent by Court Order. The Decedent's remains are currently located in _____ cemetery, _____County.

Applicant further states that the following information is true:

1. Applicant is an interested person of sound mind who is at least eighteen years old.

2. Applicant ☐ did or ☐ did not assume/have financial responsibility for the funeral and burial expenses of the decedent.

3. Applicant's relationship to Decedent is_____.

4. The remains will be reinterred at _____
(Name and Address)

_____.

5. Attached is Form 1.0 listing all persons who would have been entitled to inherit from the Decedent under R.C. Chapter 2105, and if the Decedent had a Will, all legatees and devisees named in that Will, and if applicable, the person who has been assigned the rights of disposition for the deceased person under R.C. 2108.70 to 2108.90.

6. Notice of this Application and Hearing on the Application shall be given by certified mail return receipt requested to Decedent's surviving spouse, to all persons entitled to inherit if Decedent died without a Will, to all legatees and devisees named in Decedent's Will, and to the cemetery in which the Decedent's remains are interred in accordance with R.C. Section 517.24 unless waived. If notice is not given to any person specified above, Applicant shall file an affidavit specifying which persons were not given notice and the reason for not giving notice to those persons (see R.C. 517.24(B)(2)(d)).

7. Attached to this application are any written waivers waiving the right to receive the notice stated above.

CASE NO._____

8. Applicant states that the disinterment is not against Decedent's religious beliefs.

9. Decedent's cause of death was _____.

10. The Decedent did not die of a contagious or infectious disease, or if so, a permit has been issued by the appropriate Board of Health, attached.

11. To the best of Applicant's knowledge, the Decedent

☐ Had not executed a written Declaration of Assignment of Right of Disposition pursuant to R.C. 2108.70 *et seq*.

☐ Had executed a written Declaration of Assignment of Right of Disposition pursuant to R.C. 2108.70 et seq. and a true and correct copy is attached.

☐ The written Declaration of Assignment of Right of Disposition is not available to Applicant.

_____	_____
Attorney for Applicant	Applicant
_____	_____
Typed or Printed Name	Typed or Printed Name
_____	_____
Address	Address
_____	_____
_____	_____
Telephone Number (include area code)	Telephone Number (include area code)
_____	_____
Email address	Email address

Attorney Registration No._____

Sworn to and subscribed in my presence this _____ day of_____,_____

_____
Notary Public

PROBATE COURT OF_____ COUNTY, OHIO

_____, JUDGE

DISINTERMENT OF_____, DECEASED

CASE NO. _____

JUDGMENT ENTRY SETTING HEARING ON APPLICATION FOR DISINTERMENT

The Application for Disinterment filed by _____is

hereby set for hearing on the _____day of _____,_____, at

_____o'clock _____.m., in this Court. The Court is located at _____

_____.

The Court Orders that notice of hearing be given to the surviving spouse and next of kin and, if applicable, all legatees and devisees named in the decedent's Will, by the person requesting the hearing, and that proof of services be filed.

_____

Judge

PROBATE COURT OF_____ COUNTY, OHIO

_____, JUDGE

DISINTERMENT OF_____, DECEASED

CASE NO. _____

NOTICE OF HEARING ON APPLICATION FOR DISINTERMENT

To: _____

_____

_____

_____

An Application has been filed in this Court to disinter the remains of the Decedent. The Application is attached to this Notice. The hearing on the Application will be heard on the _____ day of _____, _____, at _____ o'clock _____.m., in this Court. The Court is located at _____

_____.

_____
Applicant

PROBATE COURT OF_____ COUNTY, OHIO

_____, JUDGE

DISINTERMENT OF_____, DECEASED

CASE NO. _____

AFFIDAVIT OF SERVICE OF NOTICE ON HEARING ON APPLICATION FOR DISINTERMENT

The undersigned Applicant states that all persons interested in the Application, as described by R.C. Section 517.24(B)(2)(a), have been notified according by law; or have waived notice of the hearing on the Application; or their names and addresses are unknown to Applicant and cannot with reasonable diligence be ascertained.

The following persons for the following reasons were not notified:

Name	Reason
_____	_____
_____	_____
_____	_____

_____
Applicant

Sworn to and subscribed in my presence this day _____, 20_____.

_____
Notary Public/Deputy Clerk

PROBATE COURT OF_____ COUNTY, OHIO

_____, JUDGE

DISINTERMENT OF_____, DECEASED

CASE NO. _____

VERIFICATION OF REINTERMENT

The undersigned _____
(Name and Title)
of the _____ cemetery, states that the remains of the above-named Decedent were reinterred on the _____ day of _____, 20_____, pursuant to the Order of this Court.

_____
Signature

_____
Typed or Printed Name

_____
Cemetery

_____

_____
Address

_____
Telephone (include area code)

PROBATE COURT OF_____ COUNTY, OHIO

_____, JUDGE

DISINTERMENT OF_____, DECEASED

CASE NO. _____

WAIVER OF NOTICE OF APPLICATION TO DISINTER REMAINS

(R.C. 517.24 and 517.25)

The undersigned, being persons entitled to notice of the disinterment of the Decedent, waive such notice and consent to the disinterment and reinterment of the Decedent as stated in said application, and hereby acknowledge receipt of a copy of said application:

_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

DISINTERMENT OF _____, DECEASED

CASE NO. _____

ORDER TO DISINTER REMAINS

An application for Order to Disinter Remains came on for hearing on the _____day of _____,_____.

The Court finds that all interested parties, whose names and addresses are known, have been notified according to law or have waived notice of hearing on the application.

The Court further finds that the statements contained in the application are true and that no testimony was adduced to establish that disinterment would be against the decedent's religious beliefs.

The Court further finds that a permit ☐ has ☐ has not been issued pursuant to R.C. 517.23(B) by the Board of Health (or other authorized agency) and that if issued, has been filed herein.

It is the Order of this Court that:

(1) Applicant is hereby authorized to disinter the remains of the decedent from _____ _____ Cemetery;

(2) Applicant is hereby authorized to reinter the remains of the decedent at _____ _____ Cemetery;

(3) Unless the gravestone or marker is relocated to the site of reinterment, Applicant shall cause said gravestone or marker to remain at the site of original interment;

(4) Applicant shall file a Verification of Reinterment within thirty (30) days that the remains of the decedent have been reinterred;

(5) The board of township trustees, the trustees or board of the cemetery association, or the other officers having control and management of the municipal cemetery shall have a period of at least thirty (30) days from receipt of the order to perform the ordered disinterment.

_____
Judge

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE INTEREST OF: _____

CASE NO. _____

PETITION FOR INVOLUNTARY TREATMENT FOR ALCOHOL AND OTHER DRUG ABUSE

[R.C. 5119.93]

RESPONDENT'S Residence Address: _____

RESPONDENT'S Current Location (if different): _____

PETITIONER: _____

PETITIONER'S Address: _____

States that he/she is:

☐ Spouse; ☐ Relative _____ ☐ Guardian of the above named Respondent

PETITIONER further states that the name, address, and residence of person related to the Respondent are (if known)

Parents or guardian: _____
Name and complete address

Spouse: _____
Name and complete address

Person having custody of Respondent: _____
Name and complete address

Nearest Relative: _____
Name and complete address

Friend: _____
Name and complete address

PETITIONER believes that Respondent is a person suffering from alcohol and/or other drug abuse because: (state facts to support belief)

_____

_____

_____

CASE NO. _____

PETITIONER also believes that the Respondent presents an imminent danger or imminent threat of danger to self, family, or others if not treated because: (state facts to support belief)

_____

_____

_____

Check one:

☐ Certificate of Physician is attached.
OR
☐ Respondent has refused all requests made by me, the Petitioner, to undergo a physician's examination.

Petition is accompanied by:

1.) A security deposit in the amount of $_____.
2.) Guarantee of Payment form.

_____ _____
Signature of Attorney Signature of Petitioner

_____ _____
Name of Attorney (Please Print) Name of Petitioner (Please Print)

Sworn before me and signed in my presence on _____of_____, 20__

_____
Notary Public

VERIFICATION OF TREATMENT BY PETITIONER

*****A statement from Facility MUST accompany this petition*****

_____, the petitioner, has arranged for the treatment of
Name of Petitioner

_____ to be facilitated by:
Name of Respondent

_____
Name of Treatment Provider

_____
Full Address of Treatment Provider (Street, City, State, Zip Code)

CASE NO. _____

GUARANTEE OF PAYMENT

[R.C. 5119.93(D)(2)]

Pursuant to R.C. 5119.93(D)(2), either the Petitioner or other authorized person (spouse, relative or guardian) shall guarantee any and all costs and fees for examinations, hearing cost and treatment for the Respondent for alcohol and other drug abuse as may be herein after ordered by the Court. The GUARANTEE below shall be completed by either the Petitioner or other authorized person.

By my signature below, I do hereby assume responsibility for and GUARANTEE PAYMENT FOR ALL COSTS incurred on behalf of Respondent for all alcohol and other drug abuse treatment, including, but not limited to, initial examination and transportation costs, as hereinafter ordered by the Court.

_____ _____
Signature Date

_____
Name (Please Print)

_____
Relationship to Respondent (Petitioner, Spouse, Relative or Guardian)

_____
Complete Billing Address

Sworn before me and signed in my presence on _____ of _____, 20___

_____
Notary Public

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE INTEREST OF: _____

CASE NO. _____

CERTIFICATE OF PHYSICIAN

[R.C. 5119.92 and 5119.93(C)(1)]

Affiant states that he/she is a Physician as defined in Chapter 4731 of the Ohio Revised Code.

Affiant states that he/she examined the above named Respondent on: _____ and based on that examination, in his/her professional opinion, the Respondent:

☐does ☐ does not suffer from alcohol and/or drug abuse

☐does ☐ does not present an imminent danger or imminent threat of danger to self, family, or others if not treated

☐ does ☐ does not present a substantial likelihood of such a threat in the near future; and

☐ can ☐ cannot reasonably benefit from treatment

The facts that support Affiant's belief that Respondent does suffer from alcohol and/or drug abuse and the need for treatment:

_____

_____

_____

_____

_____

_____

_____

Type of Treatment: ☐ Inpatient ☐ Outpatient

Length of Treatment: _____

CASE NO. _____

Affiant further certifies that he/she knows that the following treatment facilities are willing and able to provide the recommended treatment:

_____
Name of Treatment Provider

_____
Telephone Number of Treatment Provider

_____
Name of Treatment Provider

_____
Telephone Number of Treatment Provider

_____
Name of Treatment Provider

_____
Telephone Number of Treatment Provider

_____
Physician's Signature

_____
Name and Title of Physician (Please Print)

_____
Telephone Number of Physician

_____
License Number of Physician

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE INTEREST OF: _____

CASE NO. _____

AFFIDAVIT OF REFUSAL OF EXAMINATION

[R.C. 5119.93(C)(1)]

I, _____, Petitioner, filed in this Court a Petition on _____alleging that _____, Respondent, is a person in need of substance abuse treatment by Court Order.

Respondent has refused all requests made by me, the Petitioner, to undergo a physician's examination concerning the possible need for substance abuse treatment.

_____
Petitioner's Printed Name

_____
Petitioner's Signature

Sworn to and signed in my presence on _____ day of_____, 20_____.

_____
Notary Public

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE INTEREST OF: _____

CASE NO. _____

STATEMENT OF TREATMENT

[R.C. 5119.93(C)(2)]

_____ hereby agrees to provide the
Name of Treatment Provider

appropriate treatment for_____.
Name of Respondent

_____
Name of Treatment Provider

_____
Full Address of Treatment Provider (Street, City, State, & Zip Code)

_____
Name of Contact Person at Treatment Provider

_____
Telephone Number for Treatment Provider Fax Number for Treatment Provider

_____
Estimated Time for Treatment Estimated Cost of Treatment

_____
Signature of Authorizing Agent at Treatment Provider Date

_____
Printed Name of Authorizing Agent at Treatment Provider

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE INTEREST OF: _____

CASE NO. _____

NOTICE OF HEARING ON PETITION

[R.C. 5119.94(B)(2)]

To: _____
_____
_____
_____

You are hereby notified that a Hearing is set on the Petition filed in this Court alleging that _____ is a person in need of involuntary treatment for alcohol or other drug abuse.

The Hearing is scheduled for _____ at _____ o'clock __.M., at _____ County Probate Court, _____.

Attached is a copy of the Petition.

_____
Judge

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE INTEREST OF: _____

CASE NO. _____

NOTICE TO RESPONDENT AND ORDER TO APPEAR FOR EXAMINATIONS AND HEARING

[R.C. 5119.94(B)(3)(4) and (5)]

To: _____
_____
_____

You are hereby notified that on _____, _____ filed in this Court a Petition alleging that _____ is a person in need of involuntary treatment for alcohol and/or other drug abuse by Court Order. The Petition is set for a Hearing before this Court at:

Place:_____County Probate Court,_____,

Date: _____ Time:_____

_____ is to be examined by a Physician for the purpose of a physical examination and by a Qualified Health Professional for the purpose of a drug and alcohol addiction assessment and diagnosis no later than 24 hours before the Hearing. These examinations will be held at:

Place:_____,

Date: _____ Time:_____

You are hereby ordered to appear at both the Court hearing and the examinations.

You are hereby notified that you have the following rights:

*You may retain counsel. If you are indigent, you may be represented by Court-appointed counsel upon request.

*You have the right to obtain an independent expert evaluation for the purpose of a physical examination for a drug and alcohol addiction assessment at your own expense.

[Reverse of Form 26.5]

CASE NO. _____

Attached is a copy of the Petition.

_____
Judge/Magistrate

RETURN OF SERVICE

I delivered an original Notice to Respondent and a copy of the Petition that was filed in this Court to the above-named Respondent.

_____
Process Server

_____
Date Served

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE INTEREST OF: _____

CASE NO. _____

NOTICE TO RESPONDENT AND EMERGENCY ORDER TO REPORT TO HOSPITAL

[R.C. 5119.95]

To: _____
_____
_____

You are hereby notified that on _____, _____ filed in this Court a Petition alleging that _____ is a person in need of involuntary treatment for alcohol and/or other drug abuse by Court Order.

The Court has received a certification from a qualified health professional that _____ suffers from alcohol and other drug abuse and presents an imminent danger or imminent threat of danger to self, family, or others as a result of alcohol and other drug abuse.

By clear and convincing evidence, the Court finds that _____ presents an imminent danger or threat of danger to self, family, or others as a result of alcohol and other drug abuse and hereby orders that _____ be hospitalized immediately at the following hospital:

Place:_____,

_____ is to be held at the hospital until:

☐ Date:_____, Time:_____, or

☐ The time of the Hearing.

The Petition is set for a Hearing before this Court at:

Place:_____ County Probate Court,_____,

Date: _____ Time:_____

[Reverse of Form 26.6]

CASE NO. _____

You are hereby notified that you have the following rights:

- You may retain counsel. If you are indigent, you may be represented by Court-appointed counsel upon request.

- You have the right to obtain an independent expert evaluation for the purpose of a physical examination for a drug and alcohol addiction assessment at your own expense.

- Upon reporting to the hospital, you may make a reasonable number of phone calls or use other reasonable means to:

  contact an attorney, a licensed physician, or a qualified health professional,

  contact any other person or persons to secure representation by counsel or to obtain medical or psychological assistance.

You will also be provided with assistance in making calls if the assistance is needed or requested.

Attached is a copy of the Petition and the Certification by the qualified health professional.

_____
Judge

RETURN OF SERVICE

I delivered an original Notice to Respondent and a copy of the Petition that was filed in this Court to the above-named Respondent.

_____
Process Server

_____
Date Served

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE INTEREST OF: _____

CASE NO. _____

RESPONDENT'S RIGHTS

[R.C. 5119.95]

1. You are hereby notified that on _____, a petition was filed in the _____ County, Ohio, Court of Common Pleas, Probate Division, alleging that you:

    - **suffer from alcohol and other drug abuse;**
    - **present an imminent danger or imminent threat of danger to self, family, or others as a result of alcohol and drug abuse, or there exists a substantial likelihood of such a threat in the near future; and**
    - **can reasonably benefit from treatment.**

2. You have the right to:

    1. BE NOTIFIED AND BE PRESENT AT HEARING to determine whether or not you are in need of involuntary treatment for alcohol and other drug abuse by Court order.

    2. RETAIN A PHYSICIAN for the purpose of a physical examination and a qualified health professional for the purpose of a drug and alcohol assessment at your own expense.

    3. RETAIN COUNSEL if you are unable to afford an attorney, you will be represented by Court-appointed counsel.

    4. Make immediately a REASONABLE NUMBER of telephone calls or use other means to contact an attorney, physician, or a qualified health professional, or to contact some other person or persons to secure representation by counsel if you are hospitalized pending the hearing.

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE INTEREST OF: _____

CASE NO. _____

AFFIDAVIT OF INDIGENCY

_____, respondent, being first duly cautioned and sworn, states the following facts are true:

1. My current address is: _____.
2. I have lived at this address for:_____.
3. My current monthly income is:_____.
4. My monthly source of income is:_____.
5. My monthly expenses are:_____.
6. I am responsible for the care of _____persons
7. I own the following:

Real Estate	$_____.
Bank Accounts	$_____.
Automobile(s)	$_____.
Other (stocks, bonds, IRA, etc.)	$_____.
TOTAL OF ASSETS	$_____.

_____.
Affiant, Respondent

Sworn to before me and subscribed in my presence this_____day of_____, 20_____.

_____.
Notary Public

ENTRY

Upon consideration of the Affidavit of Indigency, the Court finds the respondent is indigent and orders the appointment of Court-Appointed Counsel.

_____.
Judge

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE INTEREST OF: _____

CASE NO. _____

ENTRY APPOINTING COUNSEL

The Court finding that the Respondent is indigent, the Court, under R.C. 5119.94(B)(3), appoints _____, Attorney at Law, whose address is

_____

_____

Telephone No. _____

In the event that the above captioned person is not indigent, the Court shall assess costs to said person.

_____
Judge/Magistrate

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE INTEREST OF: _____

CASE NO. _____

PROBABLE CAUSE HEARING DECISION AND ENTRY

On_____, this cause came on to be heard upon evidence presented in the Petition that was filed on _____ by _____.

The Court finds that the Petitioner was examined under oath as to the contents of the Petition.

The Court proceeded to hear the evidence and after full and careful consideration thereof the Court finds that there is sufficient evidence to establish by probable cause that the respondent:

☐ **suffers from alcohol and other drug abuse;**

☐ **presents an imminent danger or imminent threat of danger to self, family, or others as a result of alcohol and drug abuse, or there exists a substantial likelihood of such a threat in the near future; and**

☐ **can reasonably benefit from treatment.**

IT IS ORDERED that a Full Hearing is to be held on _____at_____ at
(Date) (Time)
_____ County Probate Court _____ to
(Address)

determine if there is clear and convincing evidence that the respondent may reasonably benefit from treatment for alcohol and other drug abuse.

Written notice of said hearing shall be given by mail or otherwise to all persons entitled to notice.

_____
Judge/Magistrate

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE INTEREST OF: _____

CASE NO. _____

ENTRY SETTING HEARING & ORDERING NOTICE

On _____ a Petition alleging _____ to be in need of involuntary treatment for alcohol and other drug abuse by Court Order, was filed in this Court by _____.

A Probable Cause Hearing was held on _____ and the Court found that there is probable cause to believe that the Respondent may reasonably benefit from involuntary treatment for alcohol and other drug abuse.

Therefore, it is ORDERED that a Hearing on the Petition will be heard before this Court at _____ at _____ o'clock _____.M., at _____ County Probate Court,_____ _____and that written notice of said hearing shall be given by mail or otherwise to all persons entitled to notice who have not waived notice.

_____
Judge

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE INTEREST OF: _____

CASE NO. _____

SUMMONS

TO THE FOLLOWING NAMED RESPONDENT:

_____
_____
_____

YOU HAVE BEEN NAMED AS A RESPONDENT IN A PETITION FILED IN THE _____ COUNTY COURT OF COMMON PLEAS, PROBATE DIVISION, _____, _____, OHIO _____.

BY _____ PETITIONER.
_____
_____

A COPY OF THE PETITION IS ATTACHED HERETO. THE NAME AND ADDRESS OF THE PETITIONER'S ATTORNEY IS:

_____ _____
_____ _____
_____ _____

(1) YOU WERE ORDERED TO APPEAR FOR A MEDICAL EXAMINATION ON _____, AND FAILED TO APPEAR. YOU ARE HEREBY SUMMONED AND REQUIRED TO APPEAR AT _____ HOSPITAL BY _____.

(2) IF YOU FAIL TO COMPLY WITH THIS SUMMONS, YOU WILL BE SUBJECT TO AN ORDER TO BE TRANSPORTED BY THE SHERIFF OR ANY OTHER PEACE OFFICER TO A HOSPITAL OR TREATMENT FACILITY.

By: _____
Deputy Clerk

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE INTEREST OF: _____

CASE NO. _____

ORDER TO TRANSPORT

To _____ of _____ County, Ohio

All the proceedings prescribed by law mandate that _____, the respondent be admitted to the _____, therefore, you are commanded forthwith to transport the respondent to the _____ _____. After executing this order you will make due return thereof to this office.

WITNESS my signature and the seal of said Probate Court at _____, Ohio this _____ day of _____, _____.

_____
Probate Judge

By: _____
Deputy Clerk

RETURN

Received this Order to Transport this day, and I executed the same by transporting the person to the place designated.

_____
Sheriff/Person Appointed/Police Officer

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE INTEREST OF: _____

CASE NO. _____

ORDER

On _____, this cause came on to be heard upon evidence presented.

The Court finds from the evidence that the Respondent was served with notice of this hearing on _____ and that other parties entitled to notice have been served.

The Court finds that the Respondent is a resident of _____ County, Ohio.

The Court proceeded to hear the evidence and by clear and convincing thereof, the Court finds that the Respondent:

☐ suffers from alcohol and/or other drug abuse;

☐ presents an imminent danger or imminent threat of danger to self, family, or others as a result of alcohol and/or drug abuse or there exists a substantial likelihood of such a threat in the near future; and

☐ can reasonably benefit from treatment.

Based upon the recommendation of the treating Qualified Health Professional, the Court finds that IN / OUT patient treatment is consistent with the treatment goals.

Therefore, it is recommended that the Court issue an order that _____, Respondent, attend treatment at _____ for a period not to exceed _____, from the date of this decision.

A party shall not assign as error on appeal the Court's adoption of any factual finding or legal conclusion, whether or not specifically designated as a finding of fact or conclusion of law under Civ.R. 53(D)(3)(a)(ii), unless the party timely and specifically objects to that factual finding or legal conclusion as required by Civ.R. 53(D)(3)(b).

_____

☐ Magistrate ☐ Judge

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

GUARDIANSHIP OF _____

CASE NO. _____

NOTICE TO GUARDIAN-SUBMISSION OF COMMENTS OR COMPLAINTS

[Sup.R. 66.03(B)(2)]

You are hereby notified that this Court has received the attached comments/complaints regarding your performance as Guardian of the Person/Estate of the above-named Ward. The Court will consider these comments or complaints, notify you of their disposition, and inform you if a hearing is necessary.

[Attach copy of comments or complaints.]

_____
Probate Judge

By:_____
Deputy Clerk

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

GUARDIANSHIP OF _____

CASE NO. _____

NOTICE TO GUARDIAN AND MAKER OF COMMENTS OR COMPLAINTS-DISPOSITION OF COMMENTS OR COMPLAINTS

[Sup.R. 66.03(B)(5)]

You are hereby notified that this Court has received comments or complaints regarding the Guardian's performance in this case. The Court has considered the comments or complaints and will maintain them in the Court's records. The Court has determined that:

☐ a hearing is not necessary and no further action will be taken at this time.

☐ a hearing is necessary and is scheduled for _____ at

_____ __.m. at _____

_____.

☐ other _____

_____.

_____

Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

GUARDIANSHIP OF _____

CASE NO. _____

NOTIFICATION OF COMPLIANCE WITH GUARDIAN EDUCATION REQUIREMENTS

[Sup.R. 66.06 and 66.07]

The undersigned, currently serves as the Guardian of the above-named Ward, and hereby reports to the Court that I have successfully completed:

☐ the guardian fundamentals course pursuant to Sup.R. 66.06; or

☐ the continuing education course pursuant to Sup.R. 66.07

Title of Course: _____

Date Attended: _____

Location of Course: _____

Education Provided by: _____

[Attach certificate of completion if applicable.]

_____ _____
Guardian's Printed Name Guardian's Signature

_____ _____
Street Telephone Number (include area code)

_____
City State Zip Code

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

GUARDIANSHIP OF _____

CASE NO. _____

NOTICE OF/APPLICATION FOR CHANGE OF ADDRESS

[Sup.R. 66.08(E)]

Guardian's New Address:_____

Guardian's Old Address:_____

Ward's New Address:_____

Ward's Old Address:_____

New Telephone Number:_____

Reason:_____

_____

[Attach additional pages if necessary.]

Please choose one:

_____ This change in placement IS NOT to a more restrictive setting and therefore the Court's approval is not required.

_____ This change in placement IS to a more restrictive setting and therefore the Court's approval is needed. The change in placement has not yet occurred.

_____ This change in placement IS to a more restrictive setting and therefore the Court's approval is needed. The change in placement, however, has already occurred because any delay in authorizing the change in placement would have affected the health and safety of the ward.

_____ _____

Guardian's Printed Name Guardian's Signature

_____

Telephone Number (include area code)

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

GUARDIANSHIP OF _____

CASE NO. _____

ENTRY ON APPLICATION TO CHANGE ADDRESS OF THE WARD

This cause came to be heard on the application of the guardian of the above-named Ward. Based on the information/testimony presented, the Court hereby finds that it is in the best interest of the ward that the application is □ APPROVED □ DENIED. Therefore, the Court ORDERS that the Application to Change the Address of the Ward is □ APPROVED □ DENIED and the ward □ SHALL □ SHALL NOT be removed from the current residence.

THE COURT FURTHER ORDERS _____

_____

_____

IT IS SO ORDERED.

_____
Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

ANNUAL REGISTRATION
GUARDIAN WITH TEN OR MORE WARDS

[Sup.R. 66.05(B)(1)]

I, the undersigned, currently serve as the Guardian to ten or more wards.

The wards I currently serve are the following:

Ward's Name	County/Case No.	Ward's Name	County/Case No.
1.		7.	
2.		8.	
3.		9.	
4.		10.	
5.		11.	
6.		12.	

[Attach additional pages if necessary.]

Guardian's current information is the following:

_____ _____
Guardian's Printed Name Guardian's Signature

_____ _____
Street Telephone Number (include area code)

_____ _____
City State Zip Code E-mail

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

GUARDIAN WITH TEN OR MORE WARDS
ANNUAL FEE SCHEDULE

[Sup.R. 66.05 (B)(3)]

I, the undersigned, currently serve as the Guardian to ten or more wards. I hereby submit to the Court the following fee schedule indicating guardianship service fees, legal fees, and other direct service fees incurred from serving as Guardian for said wards.

Description of Fee or Expense	Fee Amount (Last Year)	Fee Amount (This Year)
Guardianship Service Fees		
Legal Fees		
Other Direct Service Fees		

[Attach additional pages if necessary.]

_____
Attorney for Guardian

_____
Street

_____
City State Zip Code

_____
Telephone Number (include area code)

_____
Attorney Registration No.

_____
Guardian's Printed Name

_____
Guardian's Signature

_____
Street

_____
City State Zip Code

_____
Telephone Number (include area code)

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

GUARDIANSHIP OF _____

CASE NO. _____

ANNUAL GUARDIANSHIP PLAN - PERSON

[Sup.R. 66.08 (G)]

[Attach as addendum to Form 17.7-Guardian's Report.]

I am the guardian of the for the above-named Ward. I have identified the following goal(s) for the next year and how I intend the goal(s) to be met.

For the Person

Goal - (for example: address medication issues; obtain assistance devices; secure medical and rehab services; meet mental health service needs; secure personal care services; enhance nutrition; improve social skills, etc.)

_____

_____

_____

Means to Meet the Goal – (for example: educate on benefits of medications and compliance; obtain walker, wheelchair, hearing aid; schedule semi-annual checkups/exams; secure outpatient examinations and mental health counseling; arrange for shopping and/or meals on wheels; enroll in sheltered workshop/socialization programs, etc.)

_____

_____

_____

[Attach additional pages if necessary]

CASE NO._____

_____	_____
Guardian's Printed Name	Guardian's Signature
_____	_____
Street	Telephone Number (include area code)
_____	
City State Zip Code	

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

GUARDIANSHIP OF _____

CASE NO. _____

ANNUAL GUARDIANSHIP PLAN - ESTATE

[Sup.R. 66.08 (G)]

[Attach as addendum to Form 17.7-Guardian's Report.]

I am the guardian of the estate for the above-named Ward. I have identified the following goal(s) for the next year and how I intend the goal(s) to be met.

For the Estate

Goal - (for example: obtain representative payee; enroll in Medicaid; establish Special Needs Trust; improve money handling skills)

_____

_____

_____

Means to Meet the Goal – (for example: contact Social Security; contact Job and Family Services/Attorney re exempt assets/eligibility; secure supporting documentation; schedule skill training, etc.)

_____

_____

_____

Attach additional pages if necessary]

_____ _____

Guardian's Printed Name Guardian's Signature

_____ _____

Street Telephone Number (include area code)

_____

City State Zip Code

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

GUARDIANSHIP OF _____

CASE NO. _____

APPLICATION TO TERMINATE GUARDIANSHIP

☐ PERSON ONLY ☐ ESTATE ONLY ☐ PERSON AND ESTATE

Now comes the guardian of the above-named Ward and represents to the Court that the guardianship should be terminated for the following reason: **[check appropriate box]**

☐ The Ward is over 18 years of age. The Ward's date of birth is _____.

☐ The Ward is now deceased. The Ward's date of death is_____.

☐ Other_____

_____

_____

Therefore, the applicant requests the Court to terminate the guardianship ☐ of the person only, ☐ of the estate only, ☐ of the person and estate. ☐ The guardian request a reasonable period of time to file a final account.

Consent if applicable:

_____ _____

Guardian's Signature

_____

_____

ENTRY

Upon consideration of the guardian's application to terminate the guardianship, the Court finds that there is no further need for the guardianship to remain open. Therefore, it is ordered that the guardianship be terminated forthwith. ☐ The guardian shall file a final account by _____☐ Guardianship of the person only to continue with Letters of Authority issued forthwith.

CASE NO. _____

The Court further ORDERS: _____

_____

_____

_____
Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

GUARDIANSHIP OF _____

CASE NO. _____

NOTIFICATION OF GUARDIAN'S RECEIPT OF FEES OTHER THAN THROUGH GUARDIANSHIP

[Sup.R. 66.08(J)(2)]

The undersigned currently serves as the Guardian of the above-named ward. I hereby report to the Court the receipt of the following fees not set forth in Sup.R. 73 covering Guardian's Compensation:

Fee Amount: _____

Source of Fee: _____

Entity Reviewing and Authorizing Payment of the Above Fee:

_____
Name of Entity

_____
Street

_____
City State Zip Code

[Attach additional pages if necessary.]

_____ _____
Guardian's Printed Name Guardian's Signature

_____ _____
Street Telephone Number (include area code)

_____
City State Zip Code

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

GUARDIANSHIP OF _____

CASE NO. _____

NOTIFICATION OF WARD'S IMPORTANT LEGAL PAPERS

[Sup.R. 66.08 (L)]

The undersigned currently serves as the Guardian of the above-named Ward. I hereby report to the Court the existence and location of the Ward's important legal documents.

The Ward is known to have:	Location:
☐ Will(s)	_____
☐ Other Estate Planning Documents	_____
☐ Advance Directives	_____
☐ Powers of Attorney	_____
☐ Contract for Prearranged Funeral	_____
☐ Other _____	_____

_____

[Attach additional pages if necessary.]

_____ _____

Guardian's Printed Name Guardian's Signature

_____ _____

Street Telephone Number (include area code)

_____

City State Zip Code

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

GUARDIANSHIP OF: _____

CASE NO.: _____

RECEIPT

[R.C. 2111.011]

I hereby acknowledge receipt of the Guardian's Guidebook.

_____ _____
Guardian's Printed Name Guardian's Signature

_____ _____
Street Telephone Number (include area code)

_____
City State Zip Code

PROBATE COURT OF _____ COUNTY, OHIO

GUARDIANSHIP OF_____

CASE NO. _____

MOTION BY GUARDIAN FOR REAL ESTATE SALE BY CONSENT

[R.C. 2127.012, Civ.R. 73.16]

The Guardian of the Estate in this case moves the Court for an Order authorizing sale of real estate of the ward pursuant to R.C. 2127.012 and Civ.R. 73.16 and represents:

1. That attached hereto, are consents from the ward's spouse, if any, and all persons entitled to inherit the real property;

2. All of the persons executing a consent are adults;

3. Neither the ward's spouse nor any or of the next of kin is a minor;

4. Attached hereto is a copy of the real estate appraisal (not more than two years old) from which the 80% minimum sale price shall be calculated; and

5. A copy of the settlement/closing statement shall be filed with the Court within 30 days of completion of each real estate sale unless otherwise ordered by the Court.

NOTE: This form, all consents, the appraisal, and the bond, if required, shall be filed contemporaneously.

_____ _____

Guardian's Signature Guardian's Typed or printed name

ENTRY

☐ This Court hereby approves the sale.

☐ This Court hereby does not approve the sale.

☐ This Court hereby sets bond at $ _____

_____

PROBATE JUDGE

PROBATE COURT OF _____ COUNTY, OHIO

GUARDIANSHIP OF_____

CASE NO. _____

CONSENT TO POWER TO SELL REAL ESTATE – GUARDIANSHIP

[R.C. 2127.012]

The undersigned are the ward's spouse and all persons entitled to the next estate of inheritance from the ward. Each declares to be an adult. Each acknowledges that if the guardian of the estate is the spouse of the ward, the sale may be to the guardian.

The undersigned empower the Guardian of the ward's estate, at any time, to sell the real estate of the ward, as indicated below, at public or private sale and to execute and deliver the necessary deeds or other conveyances, consistent with law and this power of sale.

Any such sale shall be on terms consistent with law and at a price of not less than eighty percent (80%) of the appraised value indicated in an appraisal not more than two years old (being $ _____).

(See attached appraisal)

[Check one of the following]

☐ The power of sale consented to herein is general, and extends to all real estate titled to the Ward.

☐ The power of sale consented to herein is limited, and applies only to the parcels of real estate particularly described on page two this form.

_____	_____
(Signature)	(Signature)
_____	_____
(Typed or Printed Name)	(Typed or Printed Name)
_____	_____
(Signature)	(Signature)
_____	_____
(Typed or Printed Name)	(Typed or Printed Name)
_____	_____
(Signature)	(Signature)
_____	_____
(Typed or Printed Name)	(Typed or Printed Name)

CASE NO. _____

The particular parcels of real estate in the ward's estate and to which this power of sale is limited are described as follows (use extra sheets if necessary):

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

ESTATE OF _____, DECEASED

CASE NO. _____

APPLICATION TO RELEASE MEDICAL RECORDS AND MEDICAL BILLING RECORDS

[R.C. 2113.032]

Now comes _____ the _____ of the
(Applicant's Name) (Relationship)
above named decedent who died on _____ and resided at _____
_____ whose last four (4) digits of his/her social security number are _____, and hereby requests authority to obtain information regarding decedent's medical records and medical billing records for the purpose of evaluating a potential wrongful death, personal injury, or survivorship action on behalf of the decedent.

Applicant states the following:

☐ Applicant is an individual who is eligible to be appointed as a personal representative of the above-named decedent's estate under Ohio law; or

☐ Applicant is named as executor in the above-named decedent's will, and Applicant has filed a copy of decedent's will with this Application.

Applicant has attached Form 1.0 – Surviving Spouse, Children, Next of Kin, Legatees and Devisees.

Applicant acknowledges that an order shall not be issued until ten days following the probate court's transmission of a copy of this application to those persons listed on the Form 1.0 who have not filed a signed Waiver of Notice/Consent.

_____
Signature

_____
Typed or Printed Name

_____
Address

_____

_____
Phone Number

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

ESTATE OF _____, DECEASED

CASE NO. _____

ENTRY AUTHORIZING RELEASE OF MEDICAL RECORDS AND MEDICAL BILLING RECORDS

[R.C. 2113.032]

For good cause shown, all medical providers that provided medical care or treatment to the above-named decedent shall release those medical records and medical billing records to the Applicant for the limited purpose of deciding whether or not to file a wrongful death, personal injury, or survivorship action.

The medical records and medical billing records are confidential and shall not be made available for public viewing, unless otherwise provided for by law or subsequent court order.

Applicant shall file a report with the court certifying that all medical records and medical billing records have been received and shall indicate whether an administration of the decedent's estate will be filed before the expiration of the applicable statute of limitations.

_____ _____

Date _____, Probate Judge

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

ESTATE OF _____, DECEASED

CASE NO. _____

REPORT ON RECEIPT OF MEDICAL RECORDS AND MEDICAL BILLING RECORDS

[R.C. 2113.032]

Now comes _____, who was authorized to receive the decedent's medical records and medical billing records, and hereby certifies that all requested medical records and medical billing records have been received.

☐ An application to administer decedent's estate will not be filed.

☐ An application to administer decedent's estate will be filed prior to the expiration of the applicable statute of limitations.

_____
Signature

_____
Typed or Printed Name

_____
Address

_____

_____
Phone Number

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

ESTATE OF _____, DECEASED

CASE NO. _____

NOTICE OF APPLICATION TO RELEASE MEDICAL RECORDS AND MEDICAL BILLING RECORDS

[R.C. 2113.032]

To the following persons:

_____ Name	_____ Address
_____ Name	_____ Address
_____ Name	_____ Address
_____ Name	_____ Address
_____ Name	_____ Address

_____ has filed an application in this Court, seeking the release of the decedent's medical records and medical billing records for use in evaluating a potential wrongful death, personal injury, or survivorship action on behalf of the decedent.

You are one of the above-named decedent's next of kin and are therefore entitled to notice of the pending Application to Release Medical Records and Medical Billing Records. The Court shall issue an order not earlier than ten (10) days of the transmission of this Notice.

The Application to Release Medical Records and Medical Billing Records shall be heard before the _____ County Probate Court, located at _____, _____, Ohio _____ on the _____ day of _____, 20 _____ at _____ o'clock____ M.

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

ESTATE OF _____, DECEASED

CASE NO. _____

WAIVER OF NOTICE / CONSENT

[R.C. 2113.032]

Application of _____for release of medical records and medical billing records of the above-named decedent.

The undersigned, being the next of kin of the above-named decedent, hereby waive notice and consent to the release of medical records and medical billing records of the above-named decedent.

_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____
_____	_____

PROBATE COURT OF _____ COUNTY, OHIO

_____, JUDGE

IN THE MATTER OF THE CORRECTION OF BIRTH RECORD OF_____

CASE NO. _____

APPLICATION FOR CORRECTION OF BIRTH RECORD

[R.C. 3705.15]

In the Probate Court of _____ County on the _____ day of _____ 20___ appeared _____ requesting that their birth record be corrected in accordance with Section 37.05.15 of the Revised Code as follows:

<table>
<tr><td colspan="4">Information recorded in this box should match information currently listed on the Birth Record</td></tr>
<tr><td colspan="4">Child's Information</td></tr>
<tr><td>1. Full Name of Child
_____</td><td>2. Date of Birth
_____</td><td>3. Place of Birth (city and county)
_____</td><td>4. Sex
_____</td></tr>
<tr><td colspan="4">Information of parent(s) currently listed on the Birth Record</td></tr>
<tr><td colspan="2">5. Parent's Name
_____</td><td colspan="2">6. Parent's Name
_____</td></tr>
<tr><td>7. Place of Birth
_____</td><td>8. Date of Birth
_____</td><td>9. Place of Birth
_____</td><td>10. Date of Birth
_____</td></tr>
</table>

ITEMS TO BE CORRECTED OR ADDED

Box No. _____ Reads as _____ Should Read _____

Box No. _____ Reads as _____ Should Read _____

Box No. _____ Reads as _____ Should Read _____

Box No. _____ Reads as _____ Should Read _____

The undersigned being first duly sworn, says the facts stated in the foregoing Application are true as they verily believe and pray that the Court order the correction of the registration of birth.

_____
Signature of Registrant or Applicant

_____
Address

Sworn to before me and subscribed in my presence this _____ day of _____, 20_____.

_____
Notary Public

JOURNAL ENTRY ORDERING CORRECTION OF BIRTH RECORD

The Court on consideration of the evidence submitted finds and orders that notice of hearing be dispensed with and the birth record of registrant be corrected in accordance with the facts set forth above and that a certified copy of the order of the Court be forthwith transmitted to the Director of Health as provided by law.

_____
Probate Judge

By: _____
Deputy Clerk

SUPPORTING AFFIDAVITS

IN THE MATTER OF THE CORRECTION OF BIRTH OF RECORD_____

State of Ohio, _____ Affidavit of Physician
(Name of Attending Physician)

The undersigned, being first duly sworn, deposes and says that they were the physician in attendance at the birth of _____ and that the facts stated herein are true as they verily believe.
(Name of Applicant)

_____
Signature of Attending Physician

_____
Address

Sworn to before me and subscribed in my presence this _____ day of _____, 20_____.

_____
Notary Public

NOTE: If the affidavit of the attending physician cannot be secured, the application must be supported by the following affidavits of two persons having personal knowledge of the facts.

State of Ohio, _____ Affidavit
(Name of Affiant)

The undersigned, being first duly sworn, deposes and says that they have read the application of _____ and that they have personal knowledge of the facts therein and that the statements made in the application are true as they verily believe.
(Name of Applicant)

_____
Signature of Affiant

_____
Address

Sworn to before me and subscribed in my presence this _____ day of _____, 20_____.

_____
Notary Public

State of Ohio, _____ Affidavit
(Name of Affiant)

The undersigned, being first duly sworn, deposes and says that they have read the application of _____ and that they have personal knowledge of the facts
(Name of Applicant)

therein and that the statements made in the application are true as they verily believe.

_____
Signature of Affiant

_____
Address

Sworn to before me and subscribed in my presence this _____ day of _____, 20_____.

_____
Notary Public

PROBATE COURT OF _____ COUNTY, OHIO

IN THE MATTER OF: _____

CASE NO. _____

CONFIDENTIAL DISCLOSURE OF PERSONAL IDENTIFIERS

[Rule 45(D) of the Rules of Superintendence for the Courts of Ohio]

	Complete Personal Identifier	Institution	Abbreviation	Form No.	Filing Date
Ex.	**123-45-6789**	**Social Security**	**6789**	**22.3**	**7/1/2009**
Ex.	**0001234567**	**Anytown Bank Checking**	**Anytown #1**	**6.1**	**7/1/2009**
1.					
2.					
3.					
4.					
5.					
6.					
7.					
8.					
9.					
10.					

☐ Check if additional pages are attached

_____
Signature of Filing Party

_____
Printed Name

Date: _____

This is page _____ of _____pages